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House of Representatives

The House met at 10 a.m. and was called to order by the Speaker pro tempore (Mr. LAMALFA).

DESIGNATION OF SPEAKER PRO TEMPORE

The SPEAKER pro tempore laid before the House the following communication from the Speaker:

WASHINGTON, DC,
February 11, 2014.

I hereby appoint the Honorable DOUG LAMALFA to act as Speaker pro tempore on this day.

JOHN A. BOEHNER,
Speaker of the House of Representatives.

MORNING-HOUR DEBATE

The SPEAKER pro tempore. Pursuant to the order of the House of January 7, 2014, the Chair will now recognize Members from lists submitted by the majority and minority leaders for morning-hour debate.

The Chair will alternate recognition between the parties, with each party limited to 1 hour and each Member other than the majority and minority leaders and the minority whip limited to 5 minutes, but in no event shall debate continue beyond 11:50 a.m.

WHAT IS MORE DANGEROUS, MARIJUANA OR METHAMPHETAMINES?

The SPEAKER pro tempore. The Chair recognizes the gentleman from Oregon (Mr. BLUMENAUER) for 5 minutes.

Mr. BLUMENAUER. Mr. Speaker, last week, during a hearing with the Deputy Director of the Office of Drug Policy, there was a moment of clarity for me. I was struck by the realization that our own office, charged with drug policy, discouraging or eliminating drug use, might well be part of the problem.

The poor witness was unable to answer my simple question, What is more dangerous, marijuana or methamphetamines? I asked, How many marijuana overdose deaths were there last year? No clear answer.

The United States does have a drug problem—make no mistake—and it appears to be getting worse: 100 people per day die of drug overdoses. About 9 of them are from heroin; 60 percent of the deaths are from prescription drugs; pharmaceuticals, over 22,000 in 2010, the most recent year we have available, almost three times higher than in 1999.

Why is the $25 billion we spend fighting drugs each year so ineffective in stopping, much less reversing, the trend? Are our policies and programs misguided? Could it be that too many of the wrong people are spending far too long in jail, wasting lives and money? The States seem to think so. They are reducing sentences and releasing prisoners. Now even the Federal Government is starting to do that as well.

I think part of the problem is that we aren't honest about the impacts and dangers. Nothing better illustrates that than the continued misclassification of marijuana under Federal law as worse than cocaine and methamphetamines. That's according to Federal law.

Is it possible that this Federal dishonesty means that people don't take drug warnings seriously? No one knows anybody who ever died from a marijuana overdose. The failed marijuana prohibition could actually make the real drug problem worse.

Since all marijuana sales are, by definition, illegal, in the shadows, the money, the income, the profits help finance a drug trade that destroys life, like heroin, cocaine, illegal prescription drugs, and methamphetamines.

How easy is it for the distributor, who has no license to lose, who never checks ID, to offer his marijuana customer something else, something worse, something more dangerous?

I fear spreading misinformation and wasting resources, arresting two-thirds of a million people for something that most Americans now think should be legal, undermines what could be an effective approach. Think for a moment. Unlike marijuana, tobacco is a highly addictive killer—over four hundred thousand people a year die from it yet tobacco use has declined almost two-thirds in the last half century. How did that happen?

We don't arrest people who smoke. We didn't try tobacco prohibition. What we did was research. We found out the facts. We told the truth. We controlled the product. We taxed it heavily, raising the cost, especially to young people—all the steps exactly the opposite of our failed marijuana approach.

I will be clear. For me, this goes beyond issues of marijuana policy. It is a symbol of a political process that is not thoughtful, not rational on dealing with things from the national debt, to our failing infrastructure, to climate change. Isn't it time for us to face some facts, adjust some policies, and move ahead?

CELEBRATING THE WORLD WAR II WOMEN AIRFORCE SERVICE PILOTS

The SPEAKER pro tempore. The Chair recognizes the gentlewoman from Florida (Ms. ROS-LEHTINEN) for 5 minutes.

Ms. ROS-LEHTINEN. Mr. Speaker, on Saturday, we had beautiful skies in Miami. It was a perfect day for flying. I was given the opportunity to visit the Wings Over Miami Air Museum to revel in the history of aviation with veterans, fliers, and the families of World War II Women Airforce Service Pilots celebrating the life of one special WASP, Fran Sargent.

Printed on recycled paper.

We came to honor these American heroines, the first women in history to fly America's military aircraft. They flew over 60 million miles in every type of aircraft on every type of mission, except combat missions.

The WASPs served our country without hesitation and no expectations of recognition or praise. Yet, as our 23rd President, Benjamin Harrison, once noted:

> The manner by which women are treated is a good criterion to judge the true state of a society.

These courageous women had never received the full recognition they warranted for their wartime military service to America. It was my honor then, as the most senior Republican woman in the House of Representatives, to introduce the bipartisan legislation to honor and award the Women Airforce Service Pilots of World War II with the Congressional Gold Medal. The Congressional Gold Medal is the highest honor that this body, the United States Congress, can bestow. Cointroducing the bill with me was Congresswoman SUSAN DAVIS of California and Senators Kay Bailey Hutchison of Texas and BARBARA MIKULSKI of Maryland. I was so honored to be part of this effort to finally grant these women the recognition they deserved.

It was right there at the Wings Over Miami Air Museum in August of 2009 that I was able to present to our local WASP framed, signed copies of the legislation for the Women Airforce Service Pilots' Congressional Gold Medal; and in March of 2010, the presentation ceremony of the Congressional Gold Medal was held in Emancipation Hall, in our Nation's Capital, with over 100 WASPs in attendance.

South Florida is very fortunate to herald several Women Airforce Service Pilots in our midst. Air Force Major Ruth Shafer Fleisher is now retired. Bee Haydu is active and says ''hello'' to her fellow WASPs. Shirley Chase Kruse was there with us on Saturday and shared her vivid memories, while Jeremy Snapp and family represented his mother, whom we recently lost, Helen Wyatt Snapp. Most importantly, Mr. Speaker, we gathered for a celebration of life and a memorial for Frances Rohrer Sargent, who was well represented by her daughter, Donna—and Terry and Jim—Timmons, and Fran's son, Kenny Sargent, with many grand- and great-grandchildren honoring their WASP.

My thanks to aviatrix Ursula Davidson and all of the women pilots flying with the Ninety-Nines for honoring these women of aviation and to the Civil Air Patrol and the crew at Wings Over Miami for making the day possible. We know you loved Fran as your director emeritus and as a great teacher of flight.

How special are they, these women pioneers of flight? While 25,000 volunteered, only 1,830 qualified women pilots were accepted, and then only 1,102 women earned the wings of WASP. The WASP are all true pioneers whose examples paved the way for the armed services to finally lift the ban on women attending military flight training in the 1970s. While flying their P–14s and AT–4s in training in Sweetwater, Texas, the WASP never sought to break the barriers for women, but through their service and their success, more opportunities became available for women in all fields.

Fran became a professor at my alma mater, Miami Dade College, where she took charge of developing the aviation program. One of her students, 73-year-old Judy Portnoy, called Professor Sargent ''the most amazing person I know.''

Mr. Speaker, today, women in military fly every type of aircraft, from the F–15s to the space shuttle. My daughter-in-law, Lindsay Nelson, a Marine Corps pilot, is part of this lasting legacy of WASP. Lindsay, a graduate of the United States Naval Academy, served combat tours in Iraq and Afghanistan where she flew F/A–18 fighter jets. I am so proud of Lindsay and of all of our servicewomen, past and present, who continue to inspire young women to achieve what was, heretofore, unimaginable. So, on behalf of Lindsay, my congressional colleagues and a grateful Nation, I offer my sincere thanks and utmost admiration to our WASP.

Climbing high into the Sun, Helen, Ruth, Bee, Shirley, and Fran, thank you all, women pioneers.

AFFORDABLE CARE ACT

The SPEAKER pro tempore. The Chair recognizes the gentleman from Illinois (Mr. QUIGLEY) for 5 minutes.

Mr. QUIGLEY. Mr. Speaker, all things are subject to interpretation, but as Nietzsche once said:

> Whichever interpretation prevails at a given time is often more a function of power and not truth.

Last week, the Congressional Budget Office came out with a report evaluating the economic impacts of the Affordable Care Act. Since then, there are those who have used the power they have to frame a false narrative. Rather than talking about what the report actually says, they have spent the last week talking about what they would like it to say. Their false interpretation of the ObamaCare act is that it will cost the American economy 2.5 million jobs; but the truth is that the much-misrepresented CBO study didn't say that at all because, as The Wall Street Journal accurately reported, reducing the total number of hours Americans have to work is very different than eliminating jobs.

One of the reasons we passed the Affordable Care Act in the first place was to fix the pitfalls of this country's employer-based health care system. Before the ACA, people with preexisting conditions were often forced to stay in their jobs to avoid losing their health care coverage. Even if they wanted to leave their jobs to reduce their hours, retire early, change careers, or to spend more time with their families, they couldn't because doing so would risk their ability to provide affordable health insurance for their families.

□ 1015

What the Affordable Care Act did was right this wrong. By broadening access to health insurance, the ACA has increased personal freedom and market choice. Now Americans can choose jobs based on what they want to be doing instead of staying where they are unhappy just to keep their insurance.

The expansion of Medicaid eligibility and the subsidies available in the exchanges will give Americans the flexibility they need to raise their families, not encourage workers to seek less employment, which was one of the most misleading claims made after the report was released.

The idea that hardworking Americans will modify their employment just to be eligible for social safety net programs is both ludicrous and offensive. Nobody wants to live in a situation that makes you eligible for Medicaid or other social safety net programs, but too many hardworking Americans are forced to.

In Illinois, a family of four must exist on less than $32,500 per year to qualify for these programs. In the Chicago area, the cost of living is high and families struggle to make ends meet.

Measures like Medicaid and SNAP are meant to help people lift themselves from poverty. Claiming that poor people want to be poor to rely more on the government is misguided and just flat out wrong.

I have said from the beginning that the ACA is far from perfect and that we should work together to improve it, but arguing that at-risk and low-income Americans will actively choose to work less, reducing their own incomes and jeopardizing their family's economic future just to ''game the system,'' is not a legitimate issue and speaks volumes about the extreme views that are dividing our government and preventing real reform from occurring.

By focusing on false interpretations, we are forgetting the economic benefits contained in the law. To quote the CBO report:

> If some people seek to work less, other applicants will be readily available to fill those positions and the overall effect on employment will be muted.

At a time when long-term employment is at its highest since World War II, there are more than enough workers willing and able to take these jobs. That is why the director of the CBO recently testified about the likelihood of the ACA creating jobs, not eliminating them.

The report also acknowledged that insurance premiums under the law are 15 percent lower than originally forecast, that ''the slowdown in Medicare cost growth'' is ''broad and persistent,''

and that enrollments will increase over time to where they would have been if not for the Web site's issues.

Mr. Speaker, thanks to the Affordable Care Act, millions of Americans can now access affordable health insurance. With a focus on personal responsibility, preventive care, consumer protections, and increased choices, the Affordable Care Act has helped empower Americans to lead healthier lives.

Let's put aside the punditry and focus on the facts.

GOOGLE GLASS

The SPEAKER pro tempore. The Chair recognizes the gentleman from North Carolina (Mr. HOLDING) for 5 minutes.

Mr. HOLDING. Mr. Speaker, I rise today to share a story about Patrick Jackson.

Patrick is a firefighter from North Carolina who is using new technologies and his programming skills in his mission to save lives. Patrick is using Google Glass, along with the Android and iPhone apps he has developed, to support firefighters on the job. The apps he has created encourage and increase communication between firefighters and emergency responders to accelerate the process of saving victims and putting out fires as quickly as possible.

Although Google Glass is not yet on the market, except for Google's Explorer's program, it has generated a lot of buzz in the tech community. With Glass, people can send and view messages and emails, videos and pictures, and surf the net without using their hands. They can also ask the device for information or get directions without using their hands.

Patrick's Glass app would help firefighters locate incidents and hydrants, and give them hands-free building layouts and the ability to record video from the first responders on the scene. Some departments that have expressed interest in this technology want to take it a step further, such as linking the app to a thermal imaging camera and oxygen masks to increase a firefighter's ability to see in smoke. Although it is still in its preliminary stage of development, technologies like Patrick's could potentially help firefighters and other emergency response teams do their jobs and save lives.

Mr. Speaker, Patrick's idea is a perfect example of how technology betters our lives and can, ultimately, save lives. Innovation leads to job creation. We need to encourage more innovators like Patrick to keep America on top as the world's leader in innovation.

IMMIGRATION REFORM

The SPEAKER pro tempore. The Chair recognizes the gentleman from Illinois (Mr. GUTIÉRREZ) for 5 minutes.

Mr. GUTIÉRREZ. Mr. Speaker, on Sunday morning, I tweeted out a message to the 30,000 people who follow me on Twitter. The tweet said:

The GOP doesn't determine when the fight for immigration reform ends. We will continue to fight for a bill in 2014 because that is what is right, what is fair, and what is best for the USA.

I sent this because many in the pro-immigration reform community thought they heard Speaker JOHN BOEHNER giving up on immigration reform in 2014. That is not what I heard, but many in the community and in the press heard it that way.

I wanted to make it clear that the immigrant community and the huge movement behind immigration reform—business, clergy, and everyone else—are just not going away. We are not taking ''wait,'' ''maybe,'' and ''no'' for an answer.

By now, every time Speaker BOEHNER says anything about immigration reform, the press and the pundits go crazy. Even if it isn't clear what exactly the Speaker said, a good percentage of the press runs out and writes obituary number 247 for immigration reform.

What I heard the Speaker say last week was that getting immigration reform passed in the House would be hard.

Tell me about it.

I also heard the Speaker say at his news conference that the House ''needs'' to get immigration reform done this year, and he is right.

Then I heard the Speaker say that the GOP doesn't trust the President of the United States. Really? Despite 2 million deportations and the lowest rate of illegal immigration in recent decades, the House GOP doesn't believe President Barack Obama will enforce immigration laws.

Well, I have been working on this for a while, and, first of all, you are right. It is hard. For more than a decade, I had to work on my own party to get them behind substantial immigration reform, but the Democrats are ready now—and ready to help you, Mr. Speaker, pass a bill. The movement will help supporters of immigration reform in the House GOP Conference work to convince their members that moving forward to actual legislation is not only the right thing to do from a justice perspective, from a law and order perspective, and from an economic perspective, but the right thing to do from a political perspective.

Mr. Speaker, when you said the House needs to pass a bill, boy, are you right.

Nobody believes the Republican Party can elect anyone for President unless you find some way to neutralize the damage you have done to yourselves with your deportation-only approach to immigration. The immigration issue doesn't just hurt you with Latino voters. It has hurt you with Asian and younger voters, too.

There is simply no math that adds up to 270 electoral votes unless the Republican Party stops getting slaughtered by 30, 40, or 50 points among the largest-, fastest-growing groups of voters in this country. It gets only worse with each passing day, with another 2,000 Latino citizens turning 18 every day and becoming eligible to vote.

Speaker BOEHNER knows this is the best chance his party has of getting the immigration issue off the table before 2016, and I believe he plans to come back to immigration reform. The cost to the GOP politically is just too high if the GOP-controlled House blocks legislation this year.

You thought the Super Bowl was a blowout last month? Wait until November 2016 if immigration reform is still hanging out there undone. You can tell the babysitter you will be home by 10:30 on election night. The contest will be over early. It will be Democrats in the White House by a landslide.

This notion, Mr. Speaker, that President Obama cannot be trusted to enforce immigration laws just doesn't make any sense to anyone who follows the issue. Every day, day after day, week after week, and year after year, people are being ''disappeared'' by our immigration enforcement machine. Another 1,100 today—and tomorrow.

Where is the generosity of spirit in that? This lax, liberal, soft-heartedness you seem to imagine, I wish you could tell that to the estimated 5,000 children currently in foster care because their parents are in detention or have already been deported. Tell them how soft Obama is.

I am going out to suburban Washington this evening to talk with immigrants and advocates at Casa de Maryland. I don't expect I will hear very much praise for President Obama's enlightened approach to deportation and detention tonight.

They are not waiting patiently for Speaker BOEHNER or anyone in the Republican Conference to make up their minds about whether or when to start legislating on this matter. I know they are not taking ''maybe'' or ''not now'' or ''no'' for an answer.

Mr. Speaker, you are not going to be spared. Kids will keep showing up to interrupt your breakfast as long as their parents are facing deportation and their communities are being ripped apart.

Mr. Speaker, you can't deport your way out of this. You can't ignore your way out of this. You can't blame Obama for your way out of this. You must act for the good of the country.

AFGHANISTAN

The SPEAKER pro tempore. The Chair recognizes the gentleman from North Carolina (Mr. JONES) for 5 minutes.

Mr. JONES. Mr. Speaker, I am on the House floor today to share with my colleagues several recent headlines from our national papers.

From The Washington Post on January 30:

After billions in U.S. investment, Afghanistan roads are falling apart.

This article goes on to describe the Afghan road network, built with U.S. tax dollars, as a ''$4 billion project that was once a symbol of promise in post-Taliban Afghanistan but is now falling apart.''

Another headline from January 30 from The New York Times:

U.S. aid to Afghanistan flows on despite warnings of misuse.

This report informs us that two global firms hired by the United States 3 years ago have found that none of the 16 Afghan ministries can be counted on to keep American aid from being stolen or wasted.

Most recently, this week Reuters published an article titled, ''U.S. aid plan seeks to shield Afghanistan from end to war economy,'' which details a new initiative from the U.S. Agency for International Development that would spend almost $300 million to prop up the Afghan economy.

Mr. Speaker, the common factor in these articles is that each describes in alarming detail the absolute waste of American tax dollars overseas. How can we in good conscience tell the American people we are going to continue to send their money to Afghanistan for 10 more years under the Bilateral Strategic Agreement that the United States is currently negotiating with President Karzai?

I hope President Karzai will not sign the agreement. It would be the best thing to happen to the American taxpayer.

Ironically, today or tomorrow we are going to raise the debt ceiling. This is after already raising it by $230 billion in October of 2013, with $30 billion reserved for Afghanistan. This is not right or fair to the American people.

We need to stop the insanity in Afghanistan, which could be done if the leaders of the House and Senate would allow Members of both parties to bring bills related to this issue to the floor for a vote.

In addition to the money we are spending, how many more American lives must be lost overseas before Congress decides to act? We cannot continue to waste American money and precious lives in this manner. It is time to end the abuse of the American resources in Afghanistan.

With that, I will ask God to continue to bless our men and women in uniform and their families, and ask God to please continue to bless America.

EXPRESSING MY APPRECIATION

The SPEAKER pro tempore. The Chair recognizes the gentleman from New Jersey (Mr. ANDREWS) for 5 minutes.

Mr. ANDREWS. Mr. Speaker, I rise this morning in appreciation.

Next week, I am leaving the Congress to pursue the chance to build a career in the private sector. I wanted to take a few minutes this morning to offer appreciation and thanksgiving for a lot of people who have helped make this wonderful experience possible.

I start with, as in all things in my life, my wife, Camille, and my daughters, Jacquelyn and Josie, without whom nothing good would be possible and through whom all good things are.

□ 1030

I look forward to many, many more happy years, God willing, with them and thank them for their support and sacrifice.

I thank my staff. Over all of these years, these men and women are overworked, underpaid, and underappreciated, sometimes by their employer. These are true public servants. They are inspirations, and I assure you that I have learned much more from them than I have taught to them.

I want to single out, in particular, in the present staff, our chief of staff, Fran Tagmire; our general counsel, Amanda Caruso; and our legislative director, J.Z. Golden, for their excellence, and for many, many others over many, many years.

I want to thank my colleagues. I thank Speaker BOEHNER for his friendship and leadership.

I especially thank the first woman Speaker of the House of Representatives—in my view the best Speaker of the House of Representatives—NANCY PELOSI, who has taught me strength and principle and doggedness and focus, and whose inspiration will guide me, my daughters, and others' sons and daughters for many years to come. I thank her profoundly for her influence and service.

I thank all of my colleagues. I want to come back to that in a minute.

I most especially thank the people of the First Congressional District of the State of New Jersey, who have been the best employer one could possibly have for these last 24 years. And, yes, I would include the people who stop us in the supermarket and complain about a vote that we have cast or wonder why we haven't solved a problem. There are a few of them.

There are many, many more whose words of encouragement have lifted us up for all these years, and I assure you that we appreciate you, and we are staying in our community and looking forward to new ways that we can serve our friends and our neighbors.

I especially, though, do want to come back to the men and women with whom I have had the privilege of serving for all these years. We have done a lot of things that are good together. Some of us have not always agreed on what is good together, but we passed the Affordable Care Act, which I believe will withstand the test of time and will stand together with Medicare and Social Security as pillars of middle class prosperity and American opportunity.

We have opened the door for college students with the direct student loan program that has helped many, many millions of students get an education.

We have improved our environment. In our district at home, there are construction workers building transportation projects today because of our work. There are police and firefighters and teachers on the job because of our cooperation.

There are two veterans health clinics. We can simply not say thank you with our words to our veterans, but by our deeds. And I must say this morning that I especially remember young men and women on duty around the world serving our country, and I express my deepest appreciation to them.

But to my colleagues, I would say this, that I have had 150,000 constituents over the years come to our office with various issues and problems, and they are certainly an inspiration. But so, too, ladies and gentlemen, are you, my colleagues.

The House is a rambunctious and energetic place. I suspect we will see some of that rambunctiousness even later today. We have seen a little bit this morning. People should not confuse debate with division. Healthy, passionate debate is the elixir of American democracy. It is the fuel that makes the country better. And for those who look at the House and say, well, all they ever do is argue with each other, I would certainly hope so. I would certainly hope we would bring to this Chamber deeply held beliefs, deeply held convictions, and express them in the course of debate.

Of course, there is time for compromise, and there is always a season to get the job done; but may this place never lose the strong convictions of people, right and left, Republican and Democrat, north, south, east, and west, because that is what makes democracy go.

I would also say this, that we, in this Chamber, should never confuse a difference of opinion with a difference of intention. I have served here for nearly 24 years, and I can safely say I have never met a fellow Member who does not love this country, who was not here for the purpose of improving this country as he or she sees that improvement. I have certainly disagreed with the definition of ''improvement,'' but I have never questioned the motivation or motive of any of the men and women with whom I have had the privilege of serving.

So my admonition would be: Keep the energy flowing. Those who misunderstand debate, let them misunderstand it. Keep the passionate beliefs that occupy this place going. And when we do, I believe with great confidence that the institution will continue to lead the way to a country that is more prosperous, more safe, more free, and more generous than any nation in the history of the face of the Earth.

It has been an honor and a privilege to serve. I thank each of you who has given me this privilege.

RUSSIAN OCCUPATION OF THE COUNTRY OF GEORGIA

The SPEAKER pro tempore. The Chair recognizes the gentleman from Illinois (Mr. SHIMKUS) for 5 minutes.

Mr. SHIMKUS. Mr. Speaker, as ROB departs the Chamber, let me thank him for his service and for his family's service. As, obviously, the first Republican Member to be able to respond to your comments, let me say what most of us always know, that although many of us disagree on public policy, no one has ever questioned your commitment, your sacrifice, your focus, and your tenacity, and I think I value that more than almost anything we do.

Your words are very important for us and for the American people to understand that spirited debate is not bad. It is a part of this process. As a former high school teacher in government history, we would relish this in our classrooms, to have this type of exchange between our students. So thank you for that, and I am just fortunate to be here when you made your comments.

Now, Mr. Speaker, I would like to focus and turn my comments to Sochi, Russia. As the world focuses on that area of the world, let me talk about what is going on on the southern side of the Caucasus mountain range.

In the country of Georgia, a small country, people have to understand that the Russian Federation occupies two provinces of the country of Georgia, actually, with military troops: one for a long time, South Ossetia, one relatively recently in Abkhazia.

That kind of changes the understanding of this great show that the Russian Federation is putting on with the treatment of their neighbors in occupying provinces. That would be like a country occupying one or two of our States and occupying one or two of the provinces in Georgia.

So, Mr. Speaker, it is important to just remind the public of this, especially when the world's focus is there. And I want to specifically talk about what has happened with the Olympics and the Abkhazia region, using Olympic security as an excuse.

Russia has actively created a so-called buffer zone between Abkhazia and Georgia, pushing the cease-fire line established in 2008 7 miles further into Georgia territory. So here we have an international peace agreement that kind of sets a line allowing the occupation in Georgian territory of Russian forces, and then the Russian Federation decides, based upon the Olympics, to push that line further into the country of Georgia 7 more miles.

It is a very troubling extension of Russia's earlier efforts to enclose South Ossetia, this other province, in a barbed wire enclave. And this new incursion of Georgian territory is a violation of Georgia's sovereignty as it stands in stark contrast to Russia's many commitments under international law.

According to the cease-fire signed on August 12, 2008, Russian military forces were to return to their pre-war positions, yet they have now established militarized security perimeters on the Georgian side of the administrative border with both South Ossetia and Abkhazia. This is a violation of the European Convention on Human Rights, to which Russia is a signatory, and a violation of customary international law.

Russian President Putin claims that he must close borders within the internationally recognized territory of Georgia to prevent security threats in Sochi. This move is nothing more than a power grab. I will continue to support Georgia's sovereignty and urge my colleagues to do the same.

HONORING AMELIA BOYNTON ROBINSON DURING BLACK HISTORY MONTH 2014

The SPEAKER pro tempore. The Chair recognizes the gentlewoman from Alabama (Ms. SEWELL) for 5 minutes.

Ms. SEWELL of Alabama. Mr. Speaker, I rise today to continue my commitment to honoring influential African Americans from Alabama during this Black History Month. This week, we honor the heroines of the movement for civil rights and voting rights. These courageous women had tremendous roles in our Nation's fight for justice and equality, and I am honored to share their stories.

Today I honor the tremendous life and legacy of Mrs. Amelia Boynton Robinson. Amelia was a key figure in the voting rights movement in Selma, Alabama, and she is often remembered for her historic role in Bloody Sunday, on that solemn day on the Edmund Pettus Bridge. At 102 years old, she is an American treasure whose story is a testament to her commitment to serving as a conduit of change.

Amelia Boynton Robinson was born August 18, 1911, in Savannah, Georgia. Her mother was an activist during the women's suffrage movement. After the passage of the 19th Amendment, she and her mother would distribute voter registration information to women from the family's horse and buggy in the 1920s.

Her mother's tireless efforts to secure the right to vote for women would have a lasting impact on Amelia. It also paved the way for the young activist to claim her own place in history. Fueled by the same passion, Amelia began her own service to mankind when she and her husband, Samuel Boynton, fought for voting rights and property ownership for Blacks in the poorest rural counties of Alabama.

She was later named the only female lieutenant to Dr. Martin Luther King, Jr. during the civil rights movement. In this role, Amelia would travel alongside Dr. King and often appear in his stead for various events and gatherings during the movement.

Amelia is best known for being on the front lines during Bloody Sunday in Selma, Alabama. During the protest, she was gassed, beaten, and left for dead at the foot of the Edmund Pettus Bridge.

Despite the violent attacks, this heroine was committed to staying the course. Her direct involvement in the movement led to the passage of the Voting Rights Act of 1965. Amelia was such a valued part of this process that some of the contents of the bill were drafted at her kitchen table in Selma.

On May 5, 1964, Amelia Boynton Robinson broke yet another barrier when she became the first woman in the State of Alabama to run for Congress. She garnered 10.7 percent of the vote during a time when very few Blacks were registered voters. Her historic run further solidified her impact on the movement for human rights, civil rights, and voting rights in Alabama.

When this extraordinary woman wasn't contributing her time to the causes of her generation, she worked as an educator, a home agent with the Department of Agriculture, an insurance agent, an income tax preparer, as well as a real estate agent.

She attended Georgia State Industrial School, which is now known as Savannah State University, and Tuskegee Normal, which is also known as Tuskegee University.

I am certain that I would not stand before you today as Alabama's first Black Congresswoman without the tremendous contributions of this amazing woman. It is indeed humbling to experience and pay honor and tribute to the first African American woman to pursue this office in my great State.

Her compelling story is one that reminds us of the undeniable power of courage. She refused to be silent and even risked her life to blaze trails for future generations. And at 102 years old, Amelia is still alive and still with us today, and she is still dispensing her wisdom.

As we celebrate Black History Month and the notable contributions of African Americans to this country, I ask my colleagues to join me in saluting Mrs. Amelia Boynton Robinson, an Alabama gem and an American treasure.

□ 1045

TRIBUTE TO PENN STATE LUNAR LION SPACE TEAM

The SPEAKER pro tempore. The Chair recognizes the gentleman from Pennsylvania (Mr. THOMPSON) for 5 minutes.

Mr. THOMPSON of Pennsylvania. Mr. Speaker, Penn State University's Lunar Lion Team will make history as the first-ever university-led space mission to the Moon.

This group of talented young minds is competing in the Google Lunar XPRIZE competition to land a robotic spacecraft on the Moon in December of 2015. The mission, which the team began preparing in January of 2013, includes a launch onboard a commercial

space vehicle, a cruise through space for 5 days, landing, and a relaunch for a second landing on the Moon. The mission will then be used to send high resolution images, videos, and other information back to Penn State's mission control center.

To put this in perspective, only the U.S., Russia, India, Japan, and China have ever landed a craft on the Moon. Penn State looks to join this elite club next year.

The Lunar Lion Team includes Penn State science and engineering researchers as well as 80 undergraduate and graduate students in science, technology, engineering, and math programs, commonly known as STEM, as well as communications, business, logistics, computer science, and information technology, just to name a few majors.

The team will have the opportunity to gain hands-on experience in spacecraft design, construction, and operation. Not only that, Mr. Speaker, the team is learning skills necessary for public-private partnerships through collaboration with NASA and commercial space companies.

Like so many of the university's education research initiatives, it will also be used to support new innovations and research in the private sector, real world outcomes that will benefit not just students, but America's competitiveness.

Penn State's bold mission sets the stage for a resurgence of interests in space exploration among America's youth and demonstrates an exciting practical application of STEM education. The team is making great progress towards the mission. Prototype development is underway, and last month, the team commenced rocket testing.

As a Penn State alumnus and a lifelong resident of Centre County, I take great pride in the university and its long list of scholastic and volunteer achievements. The Lunar Lion Team adds another stellar achievement to that list.

The work at the university that has led to the formation and development of this program is another example of innovation and creative leadership on the part of the Penn State community.

As one of the only nonprofit groups working towards the Lunar XPRIZE, and the only university, those working on this Lunar Lion project in State College are truly doing something special.

Mr. Speaker, I want to offer my very best to the Penn State Lunar Lion Team as they continue this important work. Their community and the Nation are very proud.

MILITARY SEXUAL ASSAULT

The SPEAKER pro tempore. The Chair recognizes the gentlewoman from California (Ms. SPEIER) for 5 minutes.

Ms. SPEIER. Mr. Speaker, before presenting the topic on which I plan to speak about this morning, I want to take a couple of minutes to talk about the career of the gentleman from New Jersey, Congressman ROB ANDREWS, who leaves this House on February 18 after a remarkable career.

We will be losing an amazing talent, a great intellect, and a fine leader. It has been a great privilege to serve with him and to watch him do his work so ably. We will miss you, ROB.

I now rise, Mr. Speaker, to speak for the 29th time on this House floor about rape in the military. I rise today to speak on a scathing report on military sexual assault by the Associated Press. Sexual assault scandals exposed by the press are the new norm for the military, but this damning report offers us a window into the gross mishandling of sexual assaults at the hands of the chain of command on a massive scale.

This weekend, a deluge of sex crime reports in Japan have been revealed, thanks not to the military disclosing them, but to the Associated Press through FOIA requests. The data reveal how broken the military scales of justice truly are and offers a rare glimpse into how reports of sexual assaults are handled.

Many of these stories involved commanders that undermined investigations, refused to bring a case to court-martial, or overturned a case after a jury had found the perpetrator guilty and sentenced them to jail. Of the 1,000 reports, punishments were wildly inconsistent, and of the suspects determined to be guilty, two-thirds of them spent no time in jail at all. In more than 30 cases, a letter of reprimand was the only punishment. What is truly unacceptable is that we have to rely on FOIA requests at all.

These cases and their outcomes must face the light of day and the scrutiny of the taxpayers that pay for our military in the first place, and I intend to work to make sure that this happens.

What is clear from these cases is that commanders are part of the problem, not the solution. Commanders often decided to not move forward with courts-martial, but when they did—even with DNA evidence and tape-recorded confessions of rape—the predators were typically given mild punishments after pleading to lesser offenses. It is the culture of the military that the rules simply don't apply. Commanders also lessened numerous punishments unilaterally and, in two cases, threw out guilty verdicts and punishments completely.

Among the most disturbing stories in the AP analysis was about a doctor at a health clinic at a Naval Air Facility near Tokyo. Airman Tina Wilson went to the clinic in 2008 to have a dressing changed following surgery on her tailbone. But the doctor, Lieutenant Commander Anthony L. Valasquez, decided it was perfectly okay to slip his hand down the front of her panties and then have the nerve to give her a smile and a wink as she walked out the door.

Wilson complained, an investigation was started, and three other women also reported the doctor had touched them inappropriately, but after 10 months, the investigation was closed with no action taken, according to an NCIS document on the investigation obtained by the AP.

The story gets even more disgusting. Two years later, the Navy finally filed charges against the doctor after more than 25 women reported he touched them, too. But guess what? Most of the charges were dropped under a plea deal, and the doctor served just a week in the brig. He was dismissed and thankfully stripped of his license, but Valasquez could have been stopped years before. Instead, he was allowed to carry on his lewd behavior and scar so many more victims.

Airman Tina Wilson left the Navy, distraught over how the case was handled, according to the AP analysis. This is another of the thousands of tragedies of how sexual assault victims are treated in the military justice system. They often leave or are forced out after making their reports and enduring a grueling, unjust process. Survivors often face retaliation and punishment while their predators get letters of reprimand.

The retaliation is brutal. Survivors are debased, humiliated, and then discharged by the military they so proudly served because another servicemember raped them or sexually assaulted them.

As we know, there are an estimated 26,000 sexual assaults a year in the military, but reporting is low. Courts-martial are rare, and the conviction rate is less than 1 percent. This is the result of a legal system beholden to the chain of command that some are hell-bent on protecting.

It is time to pass the STOP Act and bring back justice for all servicemembers, especially victims. When will we stop protecting the predators?

FINAL FRONTIERS OF FREEDOM

The SPEAKER pro tempore. The Chair recognizes the gentleman from California (Mr. SWALWELL) for 5 minutes.

Mr. SWALWELL of California. Mr. Speaker, I rise today to join my colleagues in, again, calling attention to our continued war on poverty, and I thank my colleague and neighbor in California, Congresswoman BARBARA LEE, for leading this effort.

This war is, however, but the latest chapter in a larger struggle that goes all the way back to the founding of our country. When we declared our independence in 1776, Thomas Jefferson helped define the purpose and the mission of this new country with his timeless words in that Declaration of Independence. He wrote:

> We hold these truths to be self-evident, that all men are created equal, that they are endowed by their Creator with certain unalienable rights, that among these are life, liberty, and the pursuit of happiness.

They endeavored on what was called at the time a freedom experiment. It

was this perfect idea that no longer should this British nobility system prevail where your destiny was often charted for you before you were even born based on where you were born or to whom you were born to. It was the idea that you should be able to decide your own independence, chart your own destiny.

It was a perfect idea carried out by imperfect men. It wasn't extended to African Americans. It wasn't extended to women. Certain religious sects were left out. So we fought a civil war, ended slavery. We went through the suffragist movement, and women were given the right to vote. Eventually, entire classes of people—Catholics, the poor, and others who had been shut out—were now brought into American opportunity.

Today, when I think about what are some of the final frontiers of freedom that have not yet been expanded, I think back to President Johnson. We are very grateful for President Johnson's declaration of the war on poverty. Fifty years ago, he stated that we are in a war on poverty, and we must fight for civil rights, and he signed legislation that marked the beginning of the end of the Jim Crow era. He also recognized it was time to give the poor a real chance to pursue their happiness.

He hearkened back, just as I did, to our Nation's beginnings. President Johnson said that our Founders made a covenant with this new land and that it was conceived in justice. In his words, this ''justice was the promise that all who made the journey would share in the fruits of the land.''

So began a renewed effort in America to fight poverty, a renewed effort to give those who are poor the freedom to dream that they could be anything they want. We recognized that kids needed to be better prepared before they go to school, so we created the Head Start program. We recognized the critical importance of health and wellness, and so we created Medicare and Medicaid.

But this freedom to dream has not yet been expanded across America. In fact, I see every day that there are still millions of children living in poverty, and just like every politician, when I see one of these young children in a schoolhouse, I ask them, What do you want to be when you grow up? After doing this a number of times, I realized, I should really ask them, Are you hungry? Are you cold? Are you safe? Because the opportunities around them—the crumbling buildings they are trying to learn in, the parents who are working at a minimum wage that is not a living wage—do not provide them with the tools that these children need to realize their opportunity. This leaves them no different than a child born in the 1700s under the British nobility system.

The freedom to dream is no different, and they are no more able to dream beyond where they were born or whom they were born to. So our goal must be to continue to fight this war on poverty, to give every child across every schoolhouse in this country the freedom to dream. This means we must raise the minimum wage. We must extend unemployment insurance for the long-term unemployed so that they can find a job and make sure they can reinforce the skills at home that their children are learning in the classroom.

We will not rest on this issue until I can ask and every Member of this Congress can ask a child, What do you want to be when you grow up? And that child will be able to say, My country has given me the tools to be anything I want.

RECESS

The SPEAKER pro tempore. Pursuant to clause 12(a) of rule I, the Chair declares the House in recess until noon today.

Accordingly (at 10 o'clock and 57 minutes a.m.), the House stood in recess.

□ 1200

AFTER RECESS

The recess having expired, the House was called to order by the Speaker at noon.

PRAYER

The Chaplain, the Reverend Patrick J. Conroy, offered the following prayer:

We give You thanks, O God, for giving us another day.

As You make available to Your people the grace and knowledge to meet the needs of the day, we pray that Your spirit will be upon the Members of this people's House, giving them the richness of Your wisdom.

Bless the Members of the minority party as they prepare to gather the end of this week. May they, with those who accompany them, travel safely and meet in peace.

Bless also the majority party, as they will be returning to their constituencies. Give them hearts and ears to listen well to all those whom they represent.

May the power of Your truth and our faith in Your providence give them all the confidence they must have to do the good work required for service to our Nation.

May all that is done this day be for Your greater honor and glory.

Amen.

THE JOURNAL

The SPEAKER. The Chair has examined the Journal of the last day's proceedings and announces to the House his approval thereof.

Pursuant to clause 1, rule I, the Journal stands approved.

Mr. CICILLINE. Mr. Speaker, pursuant to clause 1, rule I, I demand a vote on agreeing to the Speaker's approval of the Journal.

The SPEAKER. The question is on the Speaker's approval of the Journal.

The question was taken; and the Speaker announced that the ayes appeared to have it.

Mr. CICILLINE. Mr. Speaker, I object to the vote on the ground that a quorum is not present and make the point of order that a quorum is not present.

The SPEAKER. Pursuant to clause 8, rule XX, further proceedings on this question will be postponed.

The point of no quorum is considered withdrawn.

PLEDGE OF ALLEGIANCE

The SPEAKER. Will the gentleman from California (Mr. HUFFMAN) come forward and lead the House in the Pledge of Allegiance.

Mr. HUFFMAN led the Pledge of Allegiance as follows:

I pledge allegiance to the Flag of the United States of America, and to the Republic for which it stands, one nation under God, indivisible, with liberty and justice for all.

ANNOUNCEMENT BY THE SPEAKER

The SPEAKER. The Chair will entertain up to 15 requests for 1-minute speeches on each side of the aisle.

HONORING MATT COWDREY

(Ms. ROS-LEHTINEN asked and was given permission to address the House for 1 minute.)

Ms. ROS-LEHTINEN. Mr. Speaker, I rise today to honor Matt Cowdrey on being named Australia's 2013 Multi-Class Swimmer of the Year.

Matt is serving as a fellow in my office as part of the UNI-Capitol Washington Internship Program, which is ably led by Director Eric Federing. Matt is no stranger to success. He is the most decorated Paralympic athlete of all time in Australia, having won 13 gold medals, and 23 overall in Athens, Beijing, and London.

Even though Matt was born Down Under, he exemplifies the American spirit and is a testimony to the power of hard work and determination.

Matt, it has been wonderful having you be part of our congressional team. I look forward to hearing all about your future successes, including from the pool in Rio in 2016, and likely someday in the Australian Parliament.

Congratulations, Matt, once again, on all of your amazing accomplishments. It has been great having you on our team.

COLGAN FLIGHT 3407

(Mr. HIGGINS asked and was given permission to address the House for 1 minute.)

Mr. HIGGINS. Madam Speaker, 5 years ago tomorrow, Continental

Flight 3407 crashed in western New York. This was a tragedy that took so many people far too soon and changed a community forever.

The cause of the crash was found to be pilot and crew error, with fatigue being a contributing factor. In an inspiring act of love, the families of those lost formed as impressive an advocacy effort as I have ever seen. Drawing strength and purpose from their loss, they successfully convinced Congress and the FAA to enact landmark aviation safety reforms.

Their call for ''one level of safety'' has become a rallying cry for all of those who want to make sure that this kind of preventable tragedy is not visited upon other families and other communities.

Madam Speaker, I and all of western New York stand united with the families of Flight 3407. We feel their loss and express our sympathy to them. We also stand in awe of their commitment and tireless effort to work on behalf of travelers everywhere. The entire American traveling public owes a debt of gratitude to these families who turned tragedy into purpose.

CBO REPORT MAKES REFORMS EVEN MORE URGENT

(Ms. FOXX asked and was given permission to address the House for 1 minute.)

Ms. FOXX. Madam Speaker, recent CBO estimates predict that regulatory changes created by ObamaCare will remove 2.3 million Americans from the full-time workforce. The President has gone to great lengths to spin this as a positive development, saying job losses will come as a result of people voluntarily choosing to pursue interests other than full-time work.

It is true that, all else being equal, individuals and families being able to make ends meet while working less is a cause for celebration. The problem is that all else is not equal. We have a social safety net that depends on robust economic growth and is already forecast to run perpetual deficits for decades to come. No one disputes that 2.2 million lost jobs will diminish economic growth.

For as long as I have been in Congress, Republicans have been working to enact structural reforms to put our budget back in balance. Last week's CBO report makes those reforms even more urgent.

CONSUMER FINANCIAL PROTECTION BUREAU

(Mrs. DAVIS of California asked and was given permission to address the House for 1 minute.)

Mrs. DAVIS of California. Madam Speaker, in the aftermath of the Great Recession, Congress established the Consumer Financial Protection Bureau for a very clear reason: to ensure that financial markets and services work for all Americans, not just the big banks and best connected.

Today, the CFPB makes sure that consumers get the information they need to make smart financial decisions on everything from mortgages to credit cards to student loans.

Today, the House majority will introduce a purely partisan measure called the Consumer Financial Protection Safety and Soundness Improvement Act. That is a mouthful, if nothing else, but rather than improve the CFPB, it would do precisely the opposite by undermining its independence and eliminating its rulemaking authority.

Consumer protections could be scrapped. We must not repeat the same costly mistakes that put our economy in the free fall of the Great Recession.

RECOGNIZING NATIONAL MARRIAGE WEEK

(Mr. BYRNE asked and was given permission to address the House for 1 minute.)

Mr. BYRNE. Madam Speaker, I rise today in recognition of National Marriage Week.

Every year, in the lead-up to Valentine's Day, we recognize the importance of the institution of marriage and the stability it brings to the American household. Married couples lead longer lives, have greater financial and emotional stability, and are healthier and generally happier than their unmarried counterparts. However, only 52 percent of adults in America are married today—a steep decline from 80 percent in 1970.

Children who grow up in a two-parent household generally perform better in school, stay out of trouble, and are on track to live a healthier and happier life. Yet today, over 40 percent of babies are born out of marriage, compared to only 5 percent in 1960.

I have been married to my wife, Rebecca, for 32 years. We have enjoyed raising our four wonderful children together, the oldest of whom is now married himself.

I believe promoting the positive benefits of marriage is important for the happiness, stability, and well-being of the next generation. I am proud to recognize National Marriage Week, and I am honored to be married to Rebecca and be the father of Patrick, Kathleen, Laura, and Colin.

IMMIGRATION REFORM

(Ms. JACKSON LEE asked and was given permission to address the House for 1 minute.)

Ms. JACKSON LEE. Madam Speaker, just a few minutes ago, I left the House Judiciary Committee, where they were discussing, ''Asylum Fraud: Abusing America's Compassion,'' a hearing that was called by the Republican majority.

Madam Speaker, I adhere to following the law, but I do believe as we approach the 50th year of the 1964 Civil Rights Act, we will see more and more voices being raised for the indignity and lack of human rights in not passing comprehensive immigration reform.

Let me remind my colleagues that the Refugee Act was signed by President Reagan in 1980. It reflects America's values and this country's deep-seated commitment to liberty and human dignity, as well as to pledge, under the Refugee Convention protocols, to save those who have been abused, sexually or otherwise, and children or families who have been subject to violence.

Let's get on with the values of this Nation. Let's pass comprehensive immigration reform. Let's restore the values of this country and provide laws that secure all of our borders. Yet we continue to have these hearings suggesting that those of us who cry out for immigration reform do not understand the law. Coming from a border State, let me be very clear, Madam Speaker, that I understand the law.

Let's pass comprehensive immigration reform.

HONORING ILLINOIS VETERAN OF THE MONTH JOHN CARR

(Mr. HULTGREN asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. HULTGREN. Madam Speaker, I rise today to honor U.S. Army veteran John Carr, who was recognized as Illinois' January Veteran of the Month.

Enlisting in 1969 during the Vietnam war, John was wounded in action and was medically retired in 1972. For his service, John received the Bronze Star, the Army Commendation Medal, and a Purple Heart, among others.

John didn't know what was in store upon leaving the service, but when he saw an ad to transport other veterans to the hospital, he signed up. He then joined the Kane County Veteran's Assistance Commission as a hospital caseworker and was elected as superintendent only 3 years later. He retired last February, after nearly four decades of service to his fellow veterans.

My staff is proud to have worked alongside John to help Illinois veterans navigate the Federal benefits system. Constituents regularly told us how John helped anxious veterans or spouses receive their well-deserved benefits.

Thank you, John, for your service to our country and to the men and women like you who have made sacrifices to defend it.

JOBS AND VOCATIONAL TRAINING

(Mr. SIRES asked and was given permission to address the House for 1 minute.)

Mr. SIRES. Madam Speaker, I rise today to address the issue of joblessness in America.

A simple way to enhance opportunities for all Americans is continued investments in career technical education or vocational schools. Not every

child's career path takes them through a 4-year college. It is necessary to provide opportunities for them to learn skills to apply for a job either right after graduation or through further certification.

Career technical education teaches general employment skills and teaches skills required in specific occupations or careers. It can provide young people with confidence to focus on a career path.

Many occupations taught at vocational schools are in high demand, such as nursing, business administration, culinary arts, automotive maintenance, software programming, and engineering technology.

Our labor market is evolving and placing greater emphasis on high-tech skills. To ensure vocational training keeps pace with these changes, we should encourage private industries to partner with vocational schools to identify emerging job markets and have students trained to fill these jobs.

By investing in career technical education we can ensure that more Americans have secure career opportunities after graduation.

END THE TAX ON U.S. OLYMPIC CHAMPIONS

(Mr. MESSER asked and was given permission to address the House for 1 minute.)

Mr. MESSER. Madam Speaker, there is almost nothing Uncle Sam won't tax. You get hit at the grocery store, the gas pump, and your paycheck. You even get taxed when you die.

Now, as the eyes of the world are on Sochi, Uncle Sam's eyes are on yet another way to collect: U.S. Olympians.

Believe it or not, our men and women who bring home the gold, silver, or bronze are taxed on the value of the medals they earn and their minimal winnings while representing our country on the world stage. That is not okay.

Competing on the U.S. Olympic team is an achievement that should be celebrated, not taxed. That is why I have cosponsored the Tax Exemptions for American Medalists Act. It prevents Olympic athletes from paying taxes on their winnings. Our Federal Government shouldn't penalize them for performing at their best.

We need broad-based tax reform. In the meantime, I encourage my colleagues to support the TEAM Act and end this undue tax on our Olympians.

□ 1215

THE END OF SNOW

(Mr. HUFFMAN asked and was given permission to address the House for 1 minute.)

Mr. HUFFMAN. Madam Speaker, there was a deeply troubling story this Sunday in The New York Times, entitled, ''The End of Snow.''

Like all of you, I have been cheering on our Olympians in Sochi, particularly in the snow-related events. But as this article notes, climate change is threatening the very concept of Winter Olympics and snow sports in general.

Current models project a 7-degree rise in global temperatures by the year 2100, leaving winters drier and our mountains bare of snow. Of the 19 cities that have hosted Winter Olympics, only 10 might still be cold enough by 2050 to host them again.

Warmer winters and less snow will be disastrous to the United States' $66 billion ski industry. Until this weekend, California had just 12 percent of its average snowpack. Thankfully, it snowed in the Sierras, bringing some needed relief.

But one snowstorm in California and another on the east coast does not solve our bigger, long-term climate crisis. Climate change will impact our lives in every way. Let's get to work. Let's reduce greenhouse gases and prevent the worst impacts of climate change.

THE TRAIN WRECK OF OBAMACARE

(Mr. HARRIS asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. HARRIS. Madam Speaker, the train wreck of the President's health care reform just continues.

This week, there have been two developments: the first one, the CBO announcing their study that shows that 2½ million full-time equivalents—that is, jobs—will be eliminated from the economy by ObamaCare; and yesterday, the President finally recognized that ObamaCare, in fact, destroys jobs and will delay the bill's mandate to buy insurance, but only for corporations, not for hardworking American families.

Madam Speaker, you don't get to keep your policy. You don't get to keep your doctor. Now you don't get to keep your job. America deserves better.

TWIN PRIME NUMBERS

(Mr. MCNERNEY asked and was given permission to address the House for 1 minute.)

Mr. MCNERNEY. Madam Speaker, I would like to talk about twin prime numbers. Twin primes are two prime numbers separated by a single number, like 11 and 13, or 17 and 19. The question is, Are there an infinite number of twin primes? It was the general consensus of the mathematical community until just recently that that question was beyond the capability of our current mathematical community.

However, there have been some stunning advances on this problem in the last few years. In particular, last May, with the help of an online collaborative project, mathematicians pioneered new methods for addressing this problem with a huge breakthrough from Tom Zhang at the University of New Hampshire. We now know that there are an infinite number of prime number pairs separated by amounts smaller than 270.

While the twin prime problem itself is still unsolved, mathematicians are hopeful that this year they can reduce the separation from 270 to less than 100.

SUPPORT FOR THE A–10 AND CLOSE AIR SUPPORT

(Mrs. HARTZLER asked and was given permission to address the House for 1 minute.)

Mrs. HARTZLER. Madam Speaker, I rise today in strong support of the A–10 and close air support for our warfighters.

Hundreds of brave Americans are alive today because of the performance of the A–10 in Iraq and Afghanistan. I agree with Army Chief of Staff General Raymond Odierno, who said in an SASC hearing, ''The A–10 is the best close air support platform we have today.'' Even Air Force Chief of Staff General Mark Welsh has said the A–10 ''is the best airplane in the world at what it does.''

The Air Force should not retire the A–10 before its replacement reaches full operational capability. Otherwise, it will result in a close air support gap that will put our ground troops at increased risk.

There is no greater responsibility than ensuring our men and women in uniform have the support they need to accomplish their missions and return home safely. Premature divestment of the A–10 by the Air Force would create a dangerous close air support capability gap that could unnecessarily endanger American servicemembers in future conflicts.

FAIR MINIMUM WAGE ACT

(Mr. CICILLINE asked and was given permission to address the House for 1 minute.)

Mr. CICILLINE. Madam Speaker, I rise today in support of raising the minimum wage and passing H.R. 1010, the Fair Minimum Wage Act, which would give approximately 28 million Americans an overdue pay raise, promote economic growth, and strengthen the middle class.

In America, if you work hard and play by the rules, you should be able to provide for your family and provide them with a decent quality of life. But for about 4.6 million Americans living in poverty, this is not the case.

It has been 5 years since those working for the minimum wage have seen an increase in the minimum wage and, according to one study, the minimum wage today is worth $2 less than in 1968. This is shameful, and we have the responsibility to address growing income inequality by increasing the minimum wage immediately.

Unfortunately, some of my colleagues on the other side of the aisle oppose this commonsense legislation, arguing that it will hurt jobs. But as

The New York Times noted this past weekend, this position is contrary to decades of economic research that shows increases in the minimum wage have lifted pay without hurting employment.

Americans deserve a raise, and raising the minimum wage will help to protect U.S. workers, grow our economy, and build ladders of opportunity into the middle class.

THE DAY WE FIGHT BACK

(Mr. YODER asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. YODER. Madam Speaker, each day Americans use new and more common technology to communicate with each other, to read online, share photographs, shop and purchase goods, do their banking, and countless other everyday tasks.

In this new tech age, Americans live their lives online, yet the Federal Government acts as if these communications are not subject to Fourth Amendment protections. In fact, the IRS has claimed that Americans ''do not have a reasonable expectation of privacy'' when it comes to their emails being read by the Federal Government.

Thousands of Americans are joining together today in an effort to bring awareness to some of the unconstitutional and intrusive surveillance practices of our United States Government.

February 11 is ''The Day We Fight Back.'' It is a reminder that law-abiding Americans have certain expectations of privacy and rights guaranteed in our Constitution that our government cannot unreasonably search and seize our personal property, including electronic property, without just cause. That is why I am a lead sponsor of the Email Privacy Act, which will apply the same Fourth Amendment protections to our electronic communication as the paper documents in your home file cabinet.

Madam Speaker, let's pass this bipartisan bill. Let's draw clear lines to ensure our government protects the constitutional rights of every American.

CONGRESS MUST ALSO MAKE 2014 A YEAR OF ACTION

(Mrs. BEATTY asked and was given permission to address the House for 1 minute.)

Mrs. BEATTY. Madam Speaker, 2 weeks ago, President Obama stood in this Chamber and addressed the Nation, declaring 2014 as the ''Year of Action'': a year of action to put more Americans back to work and continue to make sure that middle class families across the country are secure in their jobs and their homes; a year of action to continue fighting for equal pay, for equal work, in order to strengthen the American family and ensure fairness in the workplace for women; a year of action to understand that, when women succeed, America succeeds.

Just today, I witnessed in the 100 years of the Federal Reserve to have a female Chair, Janet Yellen, come before us.

A year of action to make sure that American students can have dreams and that they can have an affordable education.

We must understand that we must work together. Democrats, Madam Speaker, are doing their part. We invite our Republican colleagues to understand we need a year of action.

NATIONAL COURT REPORTING AND CAPTIONING WEEK

(Mr. ROSS asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. ROSS. Madam Speaker, today I rise to honor National Court Reporting and Captioning Week, taking place from February 16 to February 22, a week that serves to recognize the value and importance that court reporters and captioners have made in American society.

As a lawyer who has spent over 25 years as a litigator, I have a profound respect and appreciation for those who preserve the official record.

Court reporters, broadcast captioners, and Communication Access Realtime Translation, or CART, captioners serve an integral role in my home State of Florida and throughout the United States. In fact, Florida has a particularly vibrant court reporting economy. My cousin, Les Renfroe, has been one for over 35 years. They have over 400 small business owners in Florida, 1,300 court reporters and captioners, and three court reporting programs which will help fulfill the needs of an industry, an industry that the Bureau of Labor Statistics predicts will grow by 2022.

That is why I am happy to join the National Court Reporters Association in commemorating the week from February 16 to February 22 as National Court Reporting and Captioning Week.

CELEBRATING BLACK HISTORY MONTH

(Ms. HAHN asked and was given permission to address the House for 1 minute.)

Ms. HAHN. Madam Speaker, every February we have the opportunity to celebrate Black History Month by honoring the great achievements and contributions of African American leaders who have courageously pushed boundaries and moved our country forward in the name of justice and equality. It is an honor for me today to mention some of the great leaders from Los Angeles who have made Black history:

Tom Bradley, from Los Angeles, the first African American to be mayor of Los Angeles; great leaders like Merv Dymally, the first African American Lieutenant Governor of California; Congresswoman Juanita Millender-McDonald, the first African American woman to chair the House Administration Committee; Aja Brown, the first African American female mayor of Compton; and my colleague, Congresswoman KAREN BASS, the first Black woman to be speaker of any State legislature in U.S. history.

This year is the 50th anniversary of the passage of the Civil Rights Act, but this milestone should be a reminder of the work that still needs to be done. We can't forget that, for many Americans, the promise of civil rights and equality remains unfulfilled. So, today and every day, let us reaffirm our commitment.

PASS A BIPARTISAN FLOOD INSURANCE BILL

(Ms. CASTOR of Florida asked and was given permission to address the House for 1 minute and to revise and extend her remarks.)

Ms. CASTOR of Florida. Madam Speaker, I rise today to urge the House Speaker and the Republican leadership to take up the bipartisan flood insurance bill as soon as possible.

Hardworking families all cross America, and plenty of small businesses as well, are facing exorbitant increases in their flood insurance rates. This is very harmful to their economic security and is really putting a damper on the economic recovery in communities all across the country. We need the Congress to fix this.

After the reform bill was passed last session, no one imagined these exorbitant increases in flood insurance rates. The best course of action right now is to take up the bipartisan Senate-passed flood insurance bill that passed on January 30.

We can work on this together, but we need action now.

WHAT DO WOMEN WANT FOR VALENTINE'S DAY?

(Ms. HANABUSA asked and was given permission to address the House for 1 minute.)

Ms. HANABUSA. Madam Speaker, February 14 is Valentine's Day, a great commercial event. But what is it that women really want for Valentine's?

It may differ for each of us, but I believe we can all agree on one thing: we want equality.

Women want equal pay for equal work.

Women want equal access to health care, not paying more for our health care premiums, not having pregnancy defined as a preexisting condition, and not having decisions as to our body made for us by the denial of contraceptive services.

Women want to be treated as political equals, recognized for the work we do, what we have contributed, not looked upon as second-class citizens, not deemed less, somehow, because our right to vote is less than 100 years old and our great country will be celebrating its 238th birthday.

We want what we have earned: equality.

BRING AN END TO DEPORTATION

(Mr. POLIS asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. POLIS. Madam Speaker, today, unfortunately, we commemorate the 2 millionth deportation under President Obama. President Obama continues to tear families apart by deporting noncriminal immigrants to our country who want nothing more than to make our country stronger, grow our economy, and raise their American families.

But the President can bring an end to deportation. Even if this body doesn't act, the President can stop deporting noncriminal detainees. If somebody has violated our criminal laws, they should suffer the consequences of their crimes.

If their only crime was trying to make a better life for themselves in our great country, just as our own forebears did, just as my great-grandparents did, we should welcome them to help make our country stronger, create jobs for Americans, and grow our economy.

Madam Speaker, it is time for this body to act. Absent this body acting on comprehensive immigration reform, I encourage the President to stop deporting noncriminal aliens.

□ 1230

THE RULE OF LAW

(Mr. WENSTRUP asked and was given permission to address the House for 1 minute.)

Mr. WENSTRUP. In 1788, over 225 years ago, James Madison wrote these words:

> It will be of little avail to the people that the laws are made by men of their own choice, if the laws be so voluminous that they cannot be read, or so incoherent that they cannot be understood. If they be repealed or revised before they are promulgated, or undergo such incessant changes, that no man who knows what the law is today, can guess what it will be tomorrow.

Oh, how relevant these remarks are today. Off-the-cuff changes and delays to the Affordable Care Act without proper legislative authority confuse and confound American individuals and businesses alike.

We are formed as a Nation of laws, laws crafted by Representatives of the people. America achieved great things by adhering to the principles of our legal framework. The fundamental genius of the American Republic came from the simple, yet absolute, affirmation that we, as a Nation, operate by the rule of law, law crafted by the many, not the one.

COMMUNICATION FROM THE CLERK OF THE HOUSE

The SPEAKER pro tempore (Mrs. CAPITO) laid before the House the following communication from the Clerk of the House of Representatives:

OFFICE OF THE CLERK,
HOUSE OF REPRESENTATIVES,
Washington, DC, February 11, 2014.

Hon. JOHN A. BOEHNER,
The Speaker, House of Representatives, Washington, DC.

DEAR MR. SPEAKER: Pursuant to the permission granted in Clause 2(h) of Rule II of the Rules of the U.S. House of Representatives, the Clerk received the following message from the Secretary of the Senate on February 11, 2014 at 11:05 a.m.:

That the Senate passed S. 1954.

Appointments:

Washington's Farewell Address.

With best wishes, I am,

Sincerely,

KAREN L. HAAS.

PROVIDING FOR CONSIDERATION OF H.R. 3193, CONSUMER FINANCIAL FREEDOM AND WASHINGTON ACCOUNTABILITY ACT; PROVIDING FOR PROCEEDINGS DURING THE PERIOD FROM FEBRUARY 13, 2014, THROUGH FEBRUARY 24, 2014; AND FOR OTHER PURPOSES

Mr. SESSIONS. Madam Speaker, by direction of the Committee on Rules, I call up House Resolution 475 and ask for its immediate consideration.

The Clerk read the resolution, as follows:

H. RES. 475

Resolved, That at any time after adoption of this resolution the Speaker may, pursuant to clause 2(b) of rule XVIII, declare the House resolved into the Committee of the Whole House on the state of the Union for consideration of the bill (H.R. 3193) to amend the Consumer Financial Protection Act of 2010 to strengthen the review authority of the Financial Stability Oversight Council of regulations issued by the Bureau of Consumer Financial Protection, and for other purposes. The first reading of the bill shall be dispensed with. All points of order against consideration of the bill are waived. General debate shall be confined to the bill and amendments specified in this section and shall not exceed one hour equally divided and controlled by the chair and ranking minority member of the Committee on Financial Services. After general debate the bill shall be considered for amendment under the five-minute rule. It shall be in order to consider as an original bill for the purpose of amendment under the five-minute rule an amendment in the nature of a substitute consisting of the text of Rules Committee Print 113-36 modified by the amendment printed in part A of the report of the Committee on Rules accompanying this resolution. That amendment in the nature of a substitute shall be considered as read. All points of order against that amendment in the nature of a substitute are waived. No amendment to that amendment in the nature of a substitute shall be in order except those printed in part B of the report of the Committee on Rules accompanying this resolution. Each such amendment may be offered only in the order printed in the report, may be offered only by a Member designated in the report, shall be considered as read, shall be debatable for the time specified in the report equally divided and controlled by the proponent and an opponent, shall not be subject to amendment, and shall not be subject to a demand for division of the question in the House or in the Committee of the Whole. All points of order against such amendments are waived. At the conclusion of consideration of the bill for amendment the Committee shall rise and report the bill to the House with such amendments as may have been adopted. Any Member may demand a separate vote in the House on any amendment adopted in the Committee of the Whole to the bill or to the amendment in the nature of a substitute made in order as original text. The previous question shall be considered as ordered on the bill and amendments thereto to final passage without intervening motion except one motion to recommit with or without instructions.

SEC. 2. On any legislative day during the period from February 13, 2014, through February 24, 2014—

(a) the Journal of the proceedings of the previous day shall be considered as approved; and

(b) the Chair may at any time declare the House adjourned to meet at a date and time, within the limits of clause 4, section 5, article I of the Constitution, to be announced by the Chair in declaring the adjournment.

SEC. 3. The Speaker may appoint Members to perform the duties of the Chair for the duration of the period addressed by section 2 of this resolution as though under clause 8(a) of rule I.

SEC. 4. The requirement of clause 6(a) of rule XIII for a two-thirds vote to consider a report from the Committee on Rules on the same day it is presented to the House is waived with respect to any resolution reported through the legislative day of February 12, 2014, providing for consideration or disposition of a measure relating to the public debt limit.

The SPEAKER pro tempore. The gentleman from Texas is recognized for 1 hour.

Mr. SESSIONS. Madam Speaker, for the purpose of debate only, I yield the customary 30 minutes to the gentleman from Boulder, Colorado (Mr. POLIS), my colleague and my friend, pending which I yield myself such time as I may consume. During consideration of this resolution, all time yielded is for the purpose of debate only.

GENERAL LEAVE

Mr. SESSIONS. Madam Speaker, I ask unanimous consent that all Members have 5 legislative days to revise and extend their remarks.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Texas?

There was no objection.

Mr. SESSIONS. Madam Speaker, House Resolution 475 provides for a structured rule for consideration of H.R. 3193. This rule makes in order every amendment that complied with House rules, giving House Members of the majority and the minority ample opportunity to participate in today's debate.

The legislation before us today takes important steps to restore transparency, accountability, and effective oversight in our Federal regulatory process. Established in 2010 under the Dodd-Frank Wall Street Reform and Consumer Protection Act, the Consumer Financial Protection Bureau, known as CFPB, is granted the authority to regulate the financial services industry in an effort to limit bad actors and protect consumers from fraud and abuse.

Unfortunately, by design—no mistake—the CFPB has virtually zero congressional oversight, limited judicial review, and the unilateral ability to promulgate any rule or regulation it deems appropriate. In essence, it is wholly unaccountable to the American people and to the United States Congress, the men and women who, by the Constitution of the United States, have the authority and the responsibility to represent the American people through elected office.

This is not how our government was meant to operate, but this is what former Speaker NANCY PELOSI and House Democrats desperately wanted, control of the financial services industry by one person, one person who answers solely to the President of the United States.

I have heard from numerous community bankers in Texas. Madam Speaker, I am from Dallas, Texas, and am proud to say that Dallas, Texas, is home to community bankers who understand that they are on the front lines of a new regulatory regime, and that is not just community bankers, but all bankers and those covered under financial services regulations. Their accounts of the impacts stemming from the new CFPB rules are startling. Specifically, they have told me that the CFPB's new regulations regarding ''qualified mortgages'' will significantly increase borrowing costs and considerably reduce the number of available mortgages.

Sounds familiar, doesn't it? Sounds like something that the Democrats concocted to make sure that health care was in trouble so they could show up with the answer of the Affordable Care Act, which is nothing that is implied in its name.

They are doing exactly to financial services what the Democrats did to health care in this country, and bankers and the financial services industry understand this.

In a time when Americans are looking to the Federal Government simply to promote increased private sector investment in our economy and to allow the free enterprise system to flourish, up to and including offering more jobs, stable opportunities for meaningful capital, instead, we see one person at the head of the organization who can make all these decisions handing down new rules and regulations which, I believe, do the exact opposite of making it easier, safer, and better to grow jobs and to have Americans be competitive in the marketplace.

The bill before us today is not about deregulation. It is about appropriate balanced regulation with ideas that come from not just the Committee on Financial Services, led by our great young Chairman JEB HENSARLING, but perhaps, more importantly, ideas that coincide with other government agencies, where it is a bipartisan effort, not by a particular head of one organization.

While the American people do need protection from bad actors in the financial services industry, they also need protection, I believe, from an activist government that unilaterally dispenses burdensome and needless regulations which negatively impact not only our economy but the industry that helps provide needed capital, jobs, and enrichment of the American financial services industry, which is a part of the free enterprise system.

Madam Speaker, I am sure you are familiar with ObamaCare's Independent Payment Advisory Board, known as IPAB. Yes, it is the one body of unelected bureaucrats which rations health care and makes decisions, once again, without judicial or congressional oversight on America's seniors.

Just as IPAB restricts choices in the health care sector, so too do unelected bureaucrats at the CFPB. They restrict choices in the financial sector. They are trying to choke off the free enterprise system as a result of rules and regulations that become burdensome, and so people quit offering their services.

By regulating the types of credit cards, mortgages, or loans that Americans can get, the CFPB makes unilateral decisions regarding what types of financial tools Americans can use. The American people, I believe, deserve something better from Washington, as opposed to this which they are getting, which is a one-size-fits-all approach from Washington, D.C.

That is why I support H.R. 3193. It brings much-needed balance to the CFPB by replacing the lone director with a five-member commission to be appointed by the President and confirmed by the Senate, similar to other financial regulators, so that no one person can unilaterally determine regulations which impact millions of Americans and has little oversight by our courts or by Congress.

Additionally, as an independent agency housed in the Federal Reserve today, the CFPB is not subject to appropriation. They are a mandatory spending item as a result of what President Obama and House and Senate Democrats have done.

By restoring this important check and balance, Congress needs to make sure that we appropriate the money that they should use. It will ensure that the CFPB acts as intended and does not continue to impose economically devastating regulations on the American economy.

To have no oversight and no authority for the money that they spend I believe is a misuse of the way we would want a government agency to work. Whether you are a Republican or a Democrat, we should be for understanding they should serve at the pleasure of the American people, not the reverse therein.

Finally, this legislation takes important steps. It protects Americans' personal nonpublic information. Yesterday, up in the Rules Committee, we heard testimony from Chairman JEB HENSARLING of Dallas, Texas, that the CFPB currently maintains over 900 million credit card records. That is right: the NSA of financial services, that is exactly what the CFPB is, and such an immense amount of private data held by the Federal Government presents ample opportunity for misuse.

Madam Speaker, I do not believe that they should have this information, and I believe they should immediately recuse themselves of gaining this information.

H.R. 3193 will ensure that Americans are protected by requiring express written consent from the CFPB before they can obtain, access, collect, use, or disclose any personal nonpublic information.

□ 1245

I think it is dangerous to have a government agency with this type of power, information, and, as we have seen from the IRS, a misuse of personal information and data that has become an abuse of power. This bill will require that the CFPB assert in writing how that information will be used and to request it.

Madam Speaker, the American people are tired of the Obama administration's blatant disregard for the laws which govern our great Nation. Just yesterday, we witnessed, once again, President Obama's willingness to do whatever he wants when he unilaterally delayed the employer mandate of the health care bill by 1 year. Instead of giving all Americans relief from the Affordable Care Act, known as ObamaCare, the administration is single-handedly picking winners and losers—by the way, on behalf of business as opposed to individuals. Just as the President has done with health care, there is nothing to prevent the CFPB from following suit and unilaterally deciding who will be subject to crushing regulation and who will not. That is why H.R. 3193 is so important.

Madam Speaker, we are on the floor today because we are talking about what literally is a Big Government action that was done several years ago by the President of the United States, by the former Speaker of the House, NANCY PELOSI, and by Senate Majority Leader HARRY REID. Republicans understand that Big Government not only is costly and expensive but that some people want them to control our lives. Freedom, in fact, Madam Speaker, is worth fighting for, and so Republicans are here today on the floor to balance that tilt in favor of freedom, opportunity, and for the right of their own person, an individual in this Nation, to know if your government is collecting your financial records.

And you have a right to know that. That is another reason why Republicans are pleased to say today we are talking about very, very important issues to every single American. It is more than freedom. It is rule of law.

I urge my colleagues to vote ''yes'' on the rule and ''yes'' on the underlying legislation.

I reserve the balance of my time.

Mr. POLIS. Madam Speaker, I thank the gentleman from Texas for yielding me the customary 30 minutes. I yield myself such time as I may consume.

Madam Speaker, I rise in opposition to the rule and the underlying bill, H.R. 3193. This package of bills was brought under a restrictive process that prevented efforts by Members on both sides of the aisle to improve the legislation.

H.R. 3193 would gut the Consumer Financial Protection Bureau. Now, a lot has been said by the gentleman from Texas that I believe has mischaracterized what the Consumer Financial Protection Bureau actually does. It in no way restricts our freedoms, Madam Speaker. In fact, banks aren't the only entities that have freedom. American consumers have freedom, too. American consumers want to be protected from predatory practices, Madam Speaker.

How many of us have signed a credit card agreement with a font size that is too small to even read? We want to make sure that people aren't giving away their home and their livelihood when they enter into a credit card agreement, a simple loan, or other financial transactions. The American people want that certainty.

When we are talking about making sure that markets operate well, that competition exists in the consumer financial marketplace, that people have different financial options that empower themselves, there needs to be a referee on the field. This bill effectively blindfolds and handcuffs that referee, takes her off the field, and let's the banks have their day with the American people.

That is why I oppose this bill. This bill will not advance a constructive economic agenda. This bill will not address our broken immigration system. It won't secure our borders that hundreds of people enter our country illegally every day, and it won't reunite shattered families.

Earlier today, I spoke of how, under President Obama's administration, over 2 million people have now been deported from this country. This bill will not end that. Instead of moving forward, it blindfolds the referee and ensures that predatory financial institutions can take advantage of the American people without a watchdog.

This bill has serious flaws. It would add additional bureaucracy to the Consumer Financial Protection Bureau by replacing its Director with a commission. The gentleman from Texas said somehow this bill meant that there wasn't Big Government. This bill establishes more Big Government, more commissions, rather than having—guess how most private companies are run, Madam Speaker? There is usually a CEO in charge. They don't have some directorate or commission. I mean, that sounds more like the Soviet Union than the United States of America what the Republicans are proposing in this bill.

This bill would also prevent the Consumer Financial Protection Bureau from offering salaries and benefits to employees that are competitive with other financial regulators. Guess what, Madam Speaker? The financial industry pays well. The big banks pay well. That is wonderful. That is the beauty of the capitalist system. If they are creating value working for a big bank and they are earning hundreds of thousands of dollars a year in our market economy, that is wonderful. Well, guess what? If you want somebody who understands that business to be able to work on behalf of the American people as a watchdog, you need to pay a competitive salary to make sure that they are able to then use their expertise that they have developed in the private sector to protect their fellow Americans from predatory or scrupulous activities.

This bill would impede the ability to attract and retain qualified and experienced people that have to handle very complex regulatory issues. It would also eliminate the Consumer Financial Protect Bureau's independence and parity with other regulators by subjecting it to the appropriations process.

Sadly, last night during the rules debate, one of my colleagues on the Rules Committee equated the Consumer Financial Protection Bureau with the gestapo. That is insulting to our civil servants who work for the Consumer Financial Protection Bureau, consumers that it serves, and it is extremely offensive to the true victims of Nazi Germany. It is inappropriate to even compare the intentions of the U.S. Government, whether it is led by Democrats or Republicans, to those of Adolph Hitler and Nazi Germany.

The Consumer Financial Protection Bureau has played a crucial role in helping millions of Americans become more informed and empower them to make financial choices that benefit them and their families. For instance, at a time that we know that higher education and college are more important than ever, the cost of higher education continues to skyrocket. The Consumer Financial Protection Bureau has developed a Web site that helps students understand their borrowing options before they take on substantial debt and make sure they are aware of the lowest interest rates that they can use to finance their education. Their user-friendly tools allow families to compare financial aid and college costs, choose a loan with a low interest rate, and select repayment terms that are most favorable to them. As the largest student loan lender, the Federal Government should help make sure that students have the information they need to help take control of their financial destinies.

I was honored to work with the Consumer Financial Protection Bureau on my Know Before You Owe Act, which would provide students and families with information about their eligibility for Federal loans before they take out more costly, higher interest rate, private loans. While I hope that Congress would pass this bill, the Consumer Financial Protection Bureau also hopes to advance this important cause even without legislation. This bill on the floor today would hamper their ability to prevent students from paying more than they need to for their college education.

Now, Democrats are open to improving the Consumer Financial Protection Bureau through bipartisan proposals. Unfortunately, the House majority has shunned bipartisanship in favor of these bills. We can do better, Madam Speaker. The American people want to make sure there is a referee and that there is a watchdog. We want to make sure that our banking industry and financial services industry can continue to grow and flourish in this country. One of the most important factors in the success of that industry is the confidence that the American people have in the financial services industry to be fair and honest.

The establishment of the Consumer Financial Protection Bureau helps ensure that the American people are confident in the financial products that are being marketed by banks across the country and will lead to continued job growth in the financial services industry, which America is a leader in, both here and abroad.

Let's talk for a moment about what we are not discussing under this rule, Madam Speaker. We are not taking one step, 1 inch, towards fixing our broken immigration system—a huge drag on our economic growth. Many residents of our country that are living here illegally in the shadows of the underground economy simply want to work. They want to pay taxes. They want to raise their American kids here. They want to raise a family. They want to participate in the same American Dream that welcomed my great-grandparents when they came to this country.

The House Republicans' principles on immigration reform were an important step forward. I applaud them. They were promising. There was nothing in those principles that was mutually inconsistent with a Democratic desire to secure our borders, create a law enforcement environment where we know who is here, and make sure that we can have a compassionate approach to uniting families.

Nearly a year ago, the New Democrat Coalition Immigration Task Force released detailed principles, as well, on comprehensive immigration reform. I am proud to say that, last October, Democrats and Republicans joined together to introduce a bipartisan bill, H.R. 15, on comprehensive immigration reform. The bill creates jobs, reduces our deficit, secures our borders, and reflects our values as Americans. Yet, to date, the only immigration vote in this Congress that the House has had was a vote to defund the deferred action, or

DACA, program, which allows DREAMers to finally get to work and pay taxes to make our country stronger, and instead subjected DREAMers to deportation at taxpayer expense.

We can and we must do better, Madam Speaker, and this rule and this bill simply don't do it.

I reserve the balance of my time.

Mr. SESSIONS. Madam Speaker, at this time, I yield 7 minutes to the gentleman from Weston, Wisconsin (Mr. DUFFY), a member of the Financial Services and Budget Committees. He is not just the author of the bill; he is an awesome and outstanding new Member of Congress.

Mr. DUFFY. Mr. Chairman, thank you for yielding.

Madam Speaker, just to be clear, the bill that is before the House today is not a repeal bill of the CFPB. It is a modification, a reform package to the CFPB. So when my colleagues and friends across the aisle talk about how there will be no consumer protection, that is absolutely false. We just want to make sure the Consumer Financial Protection Bureau works better and is more responsive to the American people.

So I want to talk about a few of the things that this bill does. The first thing is it moves the Director of the CFPB over to a bipartisan commission of five. Now, I know my friends across the aisle have taken issue with this. However, when, under Dodd-Frank, the CFPB was originally envisioned by House Democrats and the former chairman Barney Frank, they didn't have a single director; they actually had a commission. When ELIZABETH WARREN, now Senator WARREN, envisioned this package, it wasn't a director; it was a commission. So now that my friends across the aisle take issue with the reform package that has a commission and not a director, it was their original idea. So let's not play partisan politics. Let's join together on points of agreement, and this is one of them.

Another concern, the Consumer Financial Protection Bureau is not responsive to Congress because it doesn't get its funding from Congress. It doesn't go through the appropriations process, which gives us great oversight here in the House. Their funding comes from the Federal Reserve. We think it is appropriate, when you have an agency that is so powerful and so unaccountable, that we give the elected Members of the American people power to say how much money they should have and how they should use it. We don't have that ability right now. And who on God's green Earth says that we should take power away from Congress and let them set their own budgets?

Going to the point of unaccountability, the Consumer Financial Protection Bureau sets their own pay. Where in the free-market system does any employee tell the employer, This is what you are going to pay me; I am setting my own pay? That is what they do at the Consumer Financial Protection Bureau. And all we say is we, the Congress, the elected representatives of the American people, we should set the pay of the Consumer Financial Protection Bureau.

These are commonsense reforms that actually work for the American people, and, frankly, it will work for the CFPB to make them far more accountable.

□ 1300

The way this bill is set up, not the bill, the law, the way the law is set up, big banks on Wall Street, the very big banks that caused the financial crisis, they are actually able to go and have consumer financial protection rules reviewed by FSOC, and if FSOC thinks that the rule as petitioned by big banks can create systemic risk, the rule can be overturned. So big banks on Wall Street, they get a voice. They get to go: This is bad for us; overturn the rule.

If you come from rural Wisconsin, where we only have small community banks and credit unions, and you see one of our small financial institutions going to FSOC and saying, Hey, this rule is bad for us, the small banks and credit unions, please overturn the CFPB rule, they are going to laugh them out of FSOC. They don't have a voice. Small financial institutions, credit unions, and small banks don't have a choice to go to FSOC and have a ruled overturned by the CFPB.

The way the law was written and the way it has been implemented, they have given a big, loud voice to Wall Street banks but have shut out the small community banks and credit unions that are all over America, the very banks and institutions that lend money to our families, the very institutions that our small businesses on Main Street America, they go to and ask, Will you give me a loan so I can expand my business, maybe create an extra job or two in America? Those are the ones that have been shut out in the review process by the CFPB.

That doesn't work for consumers. That doesn't hurt consumers. That actually helps consumers, and that helps small town America.

I think one of the most important portions of this reform bill—and again, it is a reform bill; it is not a repeal bill—is what we do in regard to data. America has recently learned that the NSA is collecting phone data and information on them and keeping it. Now Americans have said, Listen, I am okay with AT&T or Verizon, whoever my phone company is, that they have my records. But the American people have never given the American government permission to take their phone records, and when they heard about it, they were outraged. They were outraged.

I know my friends on the other side of the aisle are supportive of this expansive NSA, they are supportive of a big government taking information on Americans, but most Americans say, no, we don't want that kind of relationship between the American citizenry and our government. Just like the NSA, the Consumer Financial Protection Bureau is collecting financial data on the American citizenry. They are collecting information on almost 1 billion credit cards. I will say that again. The Consumer Financial Protection Bureau is collecting data and information on almost 1 billion credit cards, and I would ask, Do you think they have asked permission of the American people to take their financial data? Absolutely not.

All we ask for in this reform bill is, if you want to take America's financial information and you say that you are here to protect the American citizenry, why don't you ask them? Ask if you can take it because I guarantee I know what they are going to say. They are going to say: No way. I am okay with my bank having this information, my credit union having this information, but I will be darned if I want some agency that says they are here to protect me to collect my financial information and my financial records.

The SPEAKER pro tempore (Mr. RIBBLE). The time of the gentleman has expired.

Mr. SESSIONS. Mr. Speaker, I yield an additional 4 minutes to the gentleman.

Mr. DUFFY. Mr. Speaker, collecting information from the American people and their phone records is one thing, knowing who you call and when you call them. It is something far different, Mr. Speaker, when you see how they spend, where they spend, when they spend. If you want to know about America, take their financial records.

So all we say in this reform package is give them a choice. If you are here to protect them, ask them and say, We want to take your financial data information; are you okay with that?

If you are here to protect the consumer, why wouldn't you ask them? We mandate, we require the CFPB to make that ask, and there is an important reason behind it, because, as many folks in this body understand, in politics, you can get a good representation of the whole by sampling data, taking a small, small segment of the whole and getting a representation of the whole body.

That is what the CFPB could do if they wanted good market data on how things are working because I do think they need data, they need information, but that is not what they are doing. They are not sampling; they are taking almost a billion credit cards and information from those.

Mr. Speaker, they don't keep that information for a month, they don't want to keep it for a year; they want to keep your financial data for over 10 years. They want to keep your financial data for over 10 years. This is unacceptable, and for my colleagues across the aisle to say that the Consumer Financial Protection Bureau is only protecting consumers and there is no need for reform is a misstatement. There is plenty of room for reform in a very powerful, very unaccountable agency that is

accessing financial information from Americans in a way that they would find unacceptable.

So as we debate this rule, I hope that my friends across the aisle will see the pure-hearted, spirited effort that has been made to actually make the CFPB more effective and more accountable to the consumer.

Mr. POLIS. Before I further yield, I want to clarify: the Consumer Financial Protection Bureau is already prohibited from collecting personally identifiable information in the course of its market-monitoring responsibilities to make sure that American consumers are not taken advantage of.

I yield 2 minutes to the gentleman from Illinois (Mr. QUIGLEY).

Mr. QUIGLEY. Mr. Speaker, how quickly some forget. When Congress created the Consumer Financial Protection Bureau, we did so on behalf of every constituent unfairly defrauded during the financial crisis.

As a Cook County commissioner in 2007, I remember the financial crisis and the damage it did to Chicago's community. I remember when your credit card rate was about how well you could read fine print, not how regularly you paid your bill. I remember when auto loan financing could be based on a whim, not on your credit history, and when home buyers were pushed into loans no one could ever expect them to repay. I remember when it was open season on our veterans, when a whole industry was made out of defrauding our returning sons and daughters.

I also remember how many of my colleagues characterized the creation of the CFPB, calling it a bureaucratic behemoth that would devastate credit markets and make lending impossible. Yet here we are today, with a growing economy and a vibrant credit market. Only now, we do it with fair practices, protecting American consumers and treating them with dignity.

So I reject this attempt today to undermine the CFPB and the progress we have made. We simply cannot afford to return to the free-for-all that existed pre-crisis. H.R. 3193 is either a bad case of congressional amnesia or an attack on the most important financial reform of a generation. Either way, it is ill-sighted, and I urge my colleagues to defeat this effort.

Mr. POLIS. Mr. Speaker, I yield 2 minutes to the gentleman from Illinois (Mr. SCHNEIDER).

Mr. SCHNEIDER. Mr. Speaker, I thank the gentleman from Colorado for yielding me this time.

I rise today in opposition to H.R. 3193. Congress created the Consumer Financial Protection Bureau in response to a regulatory system that couldn't keep pace with the needs and the entities that it oversaw. The system was neither agile enough nor properly equipped for protecting consumers. The financial crisis exposed subprime lending practices that preyed on the most vulnerable consumers. It uncovered obscene credit card contracts that put working families underwater. It found student loans that left our next generation more worried about their interest rates than about changing the world.

The list goes on.

The CFPB was our answer to these and prospective concerns. It is the only independent agency that is tasked with protecting consumers, our constituents. Free from the political melee, this watchdog focuses on making sure that markets are fair and players follow the rules.

The CFPB may not be perfect. Undoubtedly, missteps may occur. That is why the agency is subject to regular audits and why the government maintains ways of addressing flawed rules.

I am willing and eager to work with my colleagues to improve the CFPB to ensure that the American people are properly protected, but that is not what this bill does. This bill scraps the intention of the agency and re-exposes our families and our students to the same unfair and undue risks which necessitated the agency's creation in the first place.

I urge my colleagues to use this agency to help protect their constituents and to address their concerns. Remember your constituents when you vote today. I ask my colleagues to join in opposition to this measure and the underlying bill.

Mr. SESSIONS. Mr. Speaker, I yield 4 minutes to the gentleman from Wisconsin (Mr. DUFFY).

Mr. DUFFY. Mr. Speaker, I thank the gentleman from Texas for yielding to me.

I am hearing the arguments from across the aisle about how the Consumer Financial Protection Bureau is protecting consumers and protecting America from unfair practices and risks in the financial sector, but I would challenge my friends on the other side of the aisle to tell me how is that mission of protecting consumers diluted if we go from a single payer to a commission, which was originally their idea. How is this diluted if we go to a pay scale set by Congress and not by themselves? That doesn't impact their ability to work on consumer protection issues.

Why are consumer protection issues impacted if we give a similar and same voice to small community banks and credit unions, the same that they have given in this bill to big Wall Street banks? You are still protecting consumers. There is nothing in here that prohibits the CFPB's ability to do their job.

Finally, how are we hurting consumers by making sure that the CFPB asks them first before they get their information?

I guess I haven't heard those comments being made. I am hearing a lot of platitudes, a lot of comments at 30,000 feet that have nothing to do with the reform package that is here in the House today. I would enjoy hearing my friends across the aisle talk about what is actually in the bill. It is not immigration; it is protecting consumers from the CFPB, and they are bringing up issues that aren't relevant.

One other issue I want to clarify, which is in regard to personally identifiable information. Two points: information has been very clearly made to us that, one, the CFPB is not following the directive of the statute; and, number two, the amount of information that the CFPB has, the quantity, the amount, it is easily reverse engineered, simply re-engineered to find out who the individual is. So if I have your ZIP Code plus four, your date of birth, your age, all this information, I might not have your name, but in an instant I can get your name because I have all the data I need to do just that. That is not protecting consumers.

If you want to have a debate about protecting consumers and having an agency that is accountable to Congress, I would love to have that debate, but when we bring up issues that aren't in the bill, it is pretty hard to have an honest and fair conversation about that.

Mr. POLIS. Mr. Speaker, Mr. DUFFY is correct that immigration reform is not in the bill or the rule. It should be, but it is not. We have another motion for something that should be in the bill, but is not.

Mr. Speaker, last week we provided the House two opportunities to consider flood insurance reform, a bipartisan measure that now has almost 200 cosponsors, but unfortunately, it was denied. Not only does this bill not have immigration reform, it also does not have flood insurance reform.

Today, we are offering Members another chance to put aside party politics and do something that is important for the American people. If we defeat the previous question, I will offer an amendment to the rule to bring up the bill that would delay flood insurance premium hikes and provide relief to thousands of American families.

To discuss this proposal, I yield 2 minutes to the gentlewoman from Florida (Ms. CASTOR).

Ms. CASTOR of Florida. Mr. Speaker, I want to thank my colleague from Colorado for yielding me the time. I rise to encourage all of our colleagues to vote ''no'' on the rule, ''no'' on the previous question, and ''no'' on the underlying bill.

□ 1315

It has been 2 weeks since the Senate passed a bipartisan fix to the exorbitant rise in flood insurance rates across the country, but it has been particularly dismaying that in the past 2 weeks the GOP-controlled House has not taken up the Senate-passed bill or the House version to provide some relief for hardworking families across the country. Because there has been no action, we are asking today that all Members come together to vote ''no'' on the previous question so we can take up the flood insurance fix bill.

Many of us have been working in a bipartisan way for much longer than 2 weeks. For many months, we have had bipartisan proposals here in the House, but for some reason the GOP leadership has been resistant to bringing up this bipartisan solution.

I have offered an amendment on every piece of legislation passing through the Rules Committee since November for a flood insurance fix, but, again, the Republicans refused to make it in order. So, without any scheduling of a bill yet, we have to resort to going to the previous question.

If you take a step back, flood insurance reform was very well-intentioned. The reform bill was passed in 2012, intended to make the flood insurance trust fund solvent. Especially after Superstorm Sandy, the flood insurance trust fund that is the backstop to economic security for many families was insolvent, so we came together and passed a reform bill. The problem is it hasn't been implemented in the right way.

FEMA has actually implemented it in an irrational way. It is not affordable, and they have problems with mapping. What this does is it creates a very troublesome path to eventual solvency of the trust fund. People are not going to be able to pay into the trust fund like they should.

So what is happening? Families are facing exorbitant, unconscionable increases, depressed home values, an inability to buy or sell a home.

The SPEAKER pro tempore. The time of the gentlewoman has expired.

Mr. POLIS. I yield an additional 30 seconds to the gentlewoman.

Ms. CASTOR of Florida. Here is another concern. You remember how difficult it was for the GOP House to actually provide emergency aid when Superstorm Sandy hit? 179 Republicans voted against the emergency aid. So that makes it even more important that we fix the flood insurance trust fund so that it is there for families who need it.

Last week, I pointed out that many are very skeptical that the Republicans in Congress will act in support of the middle class, in support of small businesses across America. Well, I ask my friends on the other side of the aisle to prove them wrong. Let's come together. Vote ''no'' on the previous question, and let's move the flood insurance fix.

Mr. SESSIONS. Mr. Speaker, I reserve the balance of my time.

Mr. POLIS. Mr. Speaker, I yield 2 minutes to the gentlewoman from Florida (Ms. WASSERMAN SCHULTZ).

Ms. WASSERMAN SCHULTZ. Mr. Speaker, I rise to follow up on my good friend and colleague from Florida's comments on behalf of homeowners in south Florida and around the Nation who are trying to maintain affordable flood insurance coverage, and I urge the House leadership to bring the Homeowner Flood Insurance Affordability Act to a vote today.

Through the National Flood Insurance Program, millions of homeowners benefit from the ability to purchase affordable coverage, including thousands of south Florida families.

While I understand the need to keep the national flood program financially stable, we must do so while ensuring that these families can afford the coverage on their homes or they won't have coverage. Surging premiums destabilize our recovering housing market and they cause uncertainty for homeowners. The system cannot withstand these increases, and we must act to fix it.

I want to thank my colleagues in the Senate who, in a bipartisan way, passed this legislation, and my colleagues on both sides of the aisle who make up the 207 bipartisan cosponsors here in the House of Representatives who want to pass this bill into law. This is essential. We can't allow this to go on.

Mr. Speaker, our Nation's homeowners can't afford to wait any longer. We need to defeat the previous question and vote on this bipartisan agreement today.

Mr. SESSIONS. Mr. Speaker, I yield myself such time as I may consume.

I thank the gentlewomen from Florida who bring up this issue again. We spoke about this issue last week, how it is actually a $24 billion problem to the taxpayer. It is also equally a very difficult lift financially on the problems that it is creating to homeowners who live in flood areas.

As was noted last week, FEMA did not complete their job. We have known about this. This is not a new issue. The numerous Members of Congress, Republicans and Democrats, are trying very diligently to work on this and have been.

I want to acknowledge the work that has been put in by both these Members and others—including the gentleman from Florida, Judge HASTINGS—who sit on the Rules Committee, including the gentlemen and gentlewoman that sit on the Rules Committee from Florida. There are a total of 4 people out of 13 on the Rules Committee that live in Florida.

This is a nationwide problem wherever those people live, predominantly along coastal areas. We are working on it. But it is a $24 billion problem that was not addressed by the Senate—not addressed. What we are trying to do is to work with the chairman of the Financial Services Committee, Mr. HENSARLING, as well as the ranking member and the committee on getting an answer.

As I have stated to people numerous times, I do appreciate not only them keeping this issue in the forefront, but it is something that we must address in the Rules Committee. We intend to do that.

I reserve the balance of my time.

Mr. POLIS. Mr. Speaker, it is my honor to yield 3 minutes to the gentleman from Maryland (Mr. HOYER), the Democratic whip.

Mr. HOYER. Mr. Speaker, I thank the gentleman from Colorado for yielding. I thank my colleagues from Florida for being on the floor, and I rise to urge my colleagues to defeat the previous question so that instead we can call up a bipartisan bill to alleviate the anxiety of millions of homeowners in flood-prone areas that their flood insurance premiums won't become simply unaffordable.

Should we do any less? Twice already we have had the votes in this House to bring up this bill, a companion of which passed the Senate with a bipartisan vote of 68–32 on January 30. There is no reason why this bill wouldn't pass overwhelmingly.

Once again, partisan politics has wedged itself into Congress' best intentions and the potential for achieving results. It is surprising that Republican Members from flood-prone districts have twice voted to block this bill from coming to the floor and to deprive their constituents of the assistance they need and the reassurance they deserve.

Sometimes party asks too much. Sometimes party asks for votes which will hurt your constituents. Rise above party and vote for your people. We should not repeat the overwhelming delay that occurred in supplying assistance in response to Superstorm Sandy. After that storm, the Republican leadership blocked Congress from taking action on emergency disaster funding for more than 90 days.

The continued obstruction of this bipartisan flood insurance bill is an unfortunate continuation of that same trend of letting partisanship get in the way of doing what is right. I know there are many of our colleagues on the Republican side of the aisle that want to do what is right for their constituents. Do not let party regularity dissuade you from doing the right thing.

I appeal to them, Mr. Speaker, to support their constituents, not their party, by setting partisanship aside, working with us to defeat the previous question, and allowing the House to vote on the Grimm-Waters legislation, a bipartisan piece of legislation that will make sure homeowners don't find themselves under water in more ways than one.

Mr. Speaker, I am sure that the previous question, what does that mean? Our constituents, Mr. Speaker, must be watching. What is Mr. HOYER talking about the previous question? What is all this talk about the previous question?

The SPEAKER pro tempore. The time of the gentleman has expired.

Mr. POLIS. I yield the gentleman an additional 30 seconds.

Mr. HOYER. I thank the gentleman.

It is simply a vote by which it says that, if the previous question is not approved, we can offer the bipartisan legislation to give the relief that is so desperately needed now, not 90 days from now—now. So defeat this previous question.

And my Republican colleagues, if you care about your flood-ravaged and flood-risk constituents, vote ''no'' on the previous question.

Mr. SESSIONS. Mr. Speaker, I yield myself 1 minute.

I do appreciate the distinguished gentleman from Maryland coming down. Once again, I would tend to not just acknowledge what the gentleman is asking for, but I will speak to it.

The problem is that we have to worry about the solvency of the program. The program is some $24 billion in the red right now. Not addressing its solvency just to give some new program life rather than fixing it correctly is where we politely disagree.

We believe that the ability we have in this Congress with this issue is to do it right where it is in the best interest of the people back home that I care about, that every Member of this body cares about, but also the financial integrity to the taxpayer. The national debt is a tremendous national embarrassment, and we are not going to just waive a $24 billion that will become a $50 billion problem. That is why we are trying to address it the way we are.

I reserve the balance of my time.

Mr. POLIS. Mr. Speaker, I yield 30 seconds to the gentleman from Maryland (Mr. HOYER).

Mr. HOYER. Mr. Speaker, I thank the gentleman for yielding.

I share my friend's view that we need to be worried about the solvency of our Nation. We haven't done such a good job at that. We are, by the way, going to have a bill on the floor pretty soon which won't do much for that either, somewhat irresponsibly, in my view.

But the solvency that I am worried about right now is the guy who lives in a $190,000 home with his family and has got a $25,000 premium facing him yearly, annual premium. It is going to make him move out of his home. But the problem he is going to have is nobody is going to buy his home. We need to act.

Mr. SESSIONS. Mr. Speaker, I reserve the balance of my time.

Mr. POLIS. Mr. Speaker, I yield 2 minutes to the gentleman from Florida (Mr. GARCIA).

Mr. GARCIA. Mr. Speaker, I would like to thank my colleague from Colorado for yielding.

I want to recognize precisely what the gentleman from Maryland was talking about.

I would like to urge my colleagues to vote ''no'' on the previous question so we can get to this important issue.

I appreciate the gentleman from Texas' understanding of this. But I want to talk about the Homeowner Flood Insurance Affordability Act, which is a bipartisan bill that would delay crippling premium increases that are affecting people throughout south Florida and throughout the country, and I want to talk about specific people.

Mr. Speaker, because of rising flood insurance rates, people are literally walking away from their homes. I recently spoke to Derek and Robin Menard. They had an increase because the property owner of where they rent put it on their bill, and so they could not afford to remain in south Florida because it just got too expensive. After 9 years of calling south Florida home, they were forced to move away. They were forced to find jobs where they had moved to in Pennsylvania. They had to pull their little daughter, Millie, out of school, and she had to change friends and neighborhood.

Mr. Speaker, this is not right. While I recognize the gentleman from Texas wants to solve this, we have a bipartisan bill that was passed out of the Senate. We can pass this out now and then get to working on this problem before we hurt more people, before we force more people to move away from their community, their friends, their loved ones, due to these exorbitant insurance rates.

So, for this reason, I urge my colleagues to defeat the previous question so we can pass a bipartisan bill that makes common sense and provides a solution and much-needed relief to policyholders.

□ 1330

Mr. SESSIONS. Mr. Speaker, I don't consider common sense or the right thing to do a $24 billion irresponsibility, which is, once again, what the Democrat Party is pushing today on the floor of the House of Representatives.

I yield 1 minute to the gentleman from Wisconsin (Mr. DUFFY).

Mr. DUFFY. Mr. Speaker, I have to acknowledge that I am a little disheartened that my friends across the aisle are encouraging the defeat of a rule that would bring a vote to protect consumers from having the CFPB collect financial data on them. I know my friends want to talk about flood insurance, and we are, no doubt, going to have that day to have that conversation, and it is important; but the bottom line today—the conversation today—is that we protect consumers from having their information collected on them just like the NSA is collecting phone records on Americans.

Let's stand together. Let's protect the middle class. Let's protect small community banks and financial institutions. That is the vote today. Stand with us. Let's move the ball forward for hardworking middle class families who want to keep their information and their data to themselves, and let's move forward at a date soon to be acknowledged on flood insurance.

Mr. POLIS. Mr. Speaker, I would like to yield 2 minutes to the gentlewoman from Florida (Ms. FRANKEL).

Ms. FRANKEL of Florida. Mr. Speaker, this great country of ours has weathered hurricanes, tornadoes, earthquakes, and fires. Now our families in Florida and across the Nation are confronting a man-made crisis, created unintentionally by past acts of this Congress.

An economic storm is brewing. Just ask my constituents, the Woodlaws, who live in a modest home in Lauderdale-By-The-Sea. They have paid off their mortgage and pay $2,400 a year in flood insurance. Because of Congress' past actions, they now face a $12,000 bill for the same coverage that they cannot afford and are one flood away from financial disaster. Our constituents like the Woodlaws are facing skyrocketing jumps in flood insurance premiums unless we act now and take up the bipartisan Homeowner Flood Insurance Affordability Act.

Mr. Speaker, a storm is brewing.

Mr. SESSIONS. Mr. Speaker, I reserve the balance of my time.

Mr. POLIS. Mr. Speaker, I would like to yield 30 seconds to the gentleman from Florida (Mr. HASTINGS), my colleague on the Rules Committee.

Mr. HASTINGS of Florida. I thank my friend.

Mr. Speaker, I would like to first say and credit the chairman of the Rules Committee for having addressed this problem. He has spoken about it to me and to others. The same holds for my cochair of the Florida delegation, VERN BUCHANAN. All of us on the Florida delegation, minus one person, are supportive of this particular measure.

Here is an opportunity then for us to defeat the previous question and bring this matter up now. Enough already of continuing to discuss it. We have had ample time to deal with this problem. Don't forget: Florida, among other States, is a donor-state in this business.

Mr. SESSIONS. Mr. Speaker, I have no further requests for time, and I am prepared to close.

I continue to reserve the balance of my time.

Mr. POLIS. Mr. Speaker, I would like to yield 1 minute to the gentlewoman from Texas (Ms. JACKSON LEE).

Ms. JACKSON LEE. I thank the gentleman from Colorado and the gentleman from Texas.

Mr. Speaker, what we can do is really do our work and pass comprehensive immigration reform to deal with the pain of so many in this country.

I do believe that we should defeat the previous question so that my constituents in Texas, along the coastline, can stop paying $8,000 in flood insurance. It is absolutely absurd. A bill has passed. We are ready to go.

Finally, Mr. Speaker, I think it is important that we discuss H.R. 3193, which wants to undo the corrections that we made to save America's jobs, homes, life savings, and pensions when we reformed Wall Street. We believe in the capitalistic system. We just don't believe in the abuse of the capitalistic system. The Consumer Protection Agency that has been put in place to help consumers with credit, credit cards, and other matters dealing with their financial needs is now being imploded by this legislation.

What do we have to say to speak for the people of the United States? This bill effectively defunds the CFPB.

What we want to do is to continue the consumer protection board, continue the leverage that it has given to protect consumers. I have actually heard from consumers who have said, Thank you; we now have a board that will hear our voices and that will express our concerns with what kind of treatment we are getting from financial agencies.

Let's move on behalf of the American people now, not on behalf of special interests.

Mr. POLIS. I yield myself such time as I may consume.

Mr. Speaker, I think it has been clear—and we actually have some bipartisan agreement here—about what this bill lacks. This bill does not do anything about hundreds of people sneaking across our southern border every day. It does nothing to reunite American families. It does nothing to end over 2 million deportations that have occurred during the Obama administration. It also does nothing to address the imminent hikes in flood insurance that many Americans face, including Americans in my home State of Colorado, if Congress fails to act.

So what does this bill do that has preempted Congress instead of dealing with illegal immigration? instead of dealing with flood insurance?

It creates additional Federal Government bureaucracy. It takes one person's job and turns it into a commission of five people who will endlessly debate things rather than decide things.

What if one is sick and what if there are four at work and it is deadlocked 2–2, and then the other one comes in and one is missing because the appointment is held up? Do we really need to have more government regulators in charge of this Federal agency, Mr. Speaker?

That is exactly what this bill does. One person can do the job.

How many companies in this country are run by a panel of five co-CEOs? I don't know of a single one. Why would we want to run a Federal agency like that?

The gamesmanship that we are doing in this House, while there are important issues like illegal immigration and flood insurance, is at a serious cost to the American people. The Senate passed a bipartisan immigration reform bill last June. The House hasn't dedicated a single minute of legislative floor time to an immigration reform bill.

Mr. Speaker, I ask unanimous consent to insert the text of the amendment in the RECORD, along with the extraneous material, immediately prior to the vote on the previous question.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Colorado?

There was no objection.

Mr. POLIS. Mr. Speaker, I urge my colleagues to vote ''no'' and defeat the previous question so we can deal with one of these pressing issues that my colleagues from Florida and other States have made a compelling case for here on the floor of the House today in order to address flood insurance. I also urge a ''no'' vote on the rule.

I yield back the balance of my time.

Mr. SESSIONS. I yield myself the balance of my time.

Mr. Speaker, I want to thank my colleagues from the Democratic Party for coming and for, once again, offering their ideas about flood insurance. That is not part of the bill. I would simply reply to them, as I have previously, that the Senate-offered compromise or the Senate-offered language spends $900 million more but does not take care of the $24 billion problem, which is red ink that the taxpayer would pick up, which harms the solvency of the program.

Why have a government program that runs in the red $24 billion and then goes to $50 billion?

That is not what we are going to do. We are going to come up with an answer in the House of Representatives, and I expect it to be done quickly.

Today, we are talking about the CFPB, and Americans have witnessed firsthand the negative effects of the CFPB. We have looked at how this administration and one agency cannot only gather records but literally control a marketplace. I believe that what you have heard today lends us to understand that a balance of the CFPB is what is important. We have brought five distinctly different bills to bear here, one of them saying that we should not have employees of the CFPB who are paid well outside of normal government standards, where even an intern who serves for this CFPB makes over $51,000.

Mr. Speaker, what Republicans are trying to do is to balance the piece of legislation that passed this House with President Obama, with Speaker PELOSI, with Senator REID. We are trying to offer a balance to that on behalf of the consumer, on behalf of a legislative process where Members of Congress and the Financial Services Committee have an opportunity to work with any administration, not just with the Democrats, on what the policy of the CFPB would be. Secondly, we think it is wrong that 900 million financial records are taken without notice given to a consumer. We think that is not just an overreach; we think that is an abuse of power. When the government unilaterally has 900 million records, I would have to ask why.

So I support the rule. ''Yes'' on the rule. ''Yes'' on the underlying legislation.

The material previously referred to by Mr. POLIS is as follows:

AN AMENDMENT TO H. RES. 475 OFFERED BY MR. POLIS OF COLORADO

At the end of the resolution, add the following new sections:

Sec. 5 Immediately upon adoption of this resolution the Speaker shall, pursuant to clause 2(b) of rule XVIII, declare the House resolved into the Committee of the Whole House on the state of the Union for consideration of the bill (H.R. 3370) to delay the implementation of certain provisions of the Biggert-Waters Flood Insurance Reform Act of 2012, and for other purposes. The first reading of the bill shall be dispensed with. All points of order against consideration of the bill are waived. General debate shall be confined to the bill and shall not exceed one hour equally divided and controlled by the chair and ranking minority member of the Committee on Financial Services. After general debate the bill shall be considered for amendment under the five-minute rule. All points of order against provisions in the bill are waived. At the conclusion of consideration of the bill for amendment the Committee shall rise and report the bill to the House with such amendments as may have been adopted. The previous question shall be considered as ordered on the bill and amendments thereto to final passage without intervening motion except one motion to recommit with or without instructions. If the Committee of the Whole rises and reports that it has come to no resolution on the bill, then on the next legislative day the House shall, immediately after the third daily order of business under clause 1 of rule XIV, resolve into the Committee of the Whole for further consideration of the bill.

Sec. 6. Clause 1(c) of rule XIX shall not apply to the consideration of H.R. 3370.

THE VOTE ON THE PREVIOUS QUESTION: WHAT IT REALLY MEANS

This vote, the vote on whether to order the previous question on a special rule, is not merely a procedural vote. A vote against ordering the previous question is a vote against the Republican majority agenda and a vote to allow the Democratic minority to offer an alternative plan. It is a vote about what the House should be debating.

Mr. Clarence Cannon's Precedents of the House of Representatives (VI, 308–311), describes the vote on the previous question on the rule as ''a motion to direct or control the consideration of the subject before the House being made by the Member in charge.'' To defeat the previous question is to give the opposition a chance to decide the subject before the House. Cannon cites the Speaker's ruling of January 13, 1920, to the effect that ''the refusal of the House to sustain the demand for the previous question passes the control of the resolution to the opposition'' in order to offer an amendment. On March 15, 1909, a member of the majority party offered a rule resolution. The House defeated the previous question and a member of the opposition rose to a parliamentary inquiry, asking who was entitled to recognition. Speaker Joseph G. Cannon (R-Illinois) said: ''The previous question having been refused, the gentleman from New York, Mr. Fitzgerald, who had asked the gentleman to yield to him for an amendment, is entitled to the first recognition.''

The Republican majority may say ''the vote on the previous question is simply a vote on whether to proceed to an immediate vote on adopting the resolution . . . [and] has no substantive legislative or policy implications whatsoever.'' But that is not what they have always said. Listen to the Republican Leadership Manual on the Legislative Process in the United States House of Representatives, (6th edition, page 135). Here's how the Republicans describe the previous question vote in their own manual: ''Although it is generally not possible to amend the rule because the majority Member controlling the time will not yield for the purpose of offering an amendment, the same result may be achieved by voting down the previous question on the rule . . . When the motion for the previous question is defeated,

control of the time passes to the Member who led the opposition to ordering the previous question. That Member, because he then controls the time, may offer an amendment to the rule, or yield for the purpose of amendment.''

In Deschler's Procedure in the U.S. House of Representatives, the subchapter titled ''Amending Special Rules'' states: ''a refusal to order the previous question on such a rule [a special rule reported from the Committee on Rules] opens the resolution to amendment and further debate.'' (Chapter 21, section 21.2) Section 21.3 continues: ''Upon rejection of the motion for the previous question on a resolution reported from the Committee on Rules, control shifts to the Member leading the opposition to the previous question, who may offer a proper amendment or motion and who controls the time for debate thereon.''

Clearly, the vote on the previous question on a rule does have substantive policy implications. It is one of the only available tools for those who oppose the Republican majority's agenda and allows those with alternative views the opportunity to offer an alternative plan.

Mr. SESSIONS. Mr. Speaker, I yield back the balance of my time, and I move the previous question on the resolution.

The SPEAKER pro tempore. The question is on ordering the previous question.

The question was taken; and the Speaker pro tempore announced that the ayes appeared to have it.

Mr. POLIS. Mr. Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, further proceedings on this question will be postponed.

□ 1400

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore (Mr. POE of Texas). Pursuant to clause 8 of rule XX, the Chair will postpone further proceedings today on motions to suspend the rules on which a recorded vote or the yeas and nays are ordered, or on which the vote incurs objection under clause 6 of rule XX.

Record votes on postponed questions will be taken later.

EXTENSION OF DIRECT SPENDING REDUCTION FOR FISCAL YEAR 2024

Mr. FITZPATRICK. Mr. Speaker, I move to suspend the rules and pass the bill (S. 25) to direct the Secretary of the Interior to convey certain Federal features of the electric distribution system to the South Utah Valley Electric Service District, and for other purposes, as amended.

The Clerk read the title of the bill.

The text of the bill is as follows:

S. 25

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. EXTENSION OF DIRECT SPENDING REDUCTION FOR FISCAL YEAR 2024.

Paragraph (6)(B) of section 251A of the Balanced Budget and Emergency Deficit Control Act of 1985 (2 U.S.C. 901a) is amended by striking ''and for fiscal year 2023'' and by inserting '', for fiscal year 2023, and for fiscal year 2024''.

SEC. 2. INAPPLICABILITY OF REDUCED ANNUAL ADJUSTMENT OF RETIRED PAY FOR MEMBERS OF THE ARMED FORCES UNDER THE AGE OF 62 UNDER THE BIPARTISAN BUDGET ACT OF 2013 WHO FIRST BECAME MEMBERS PRIOR TO JANUARY 1, 2014.

(a) IN GENERAL.—Section 1401a(b)(4) of title 10, United States Code, as added by section 403(a) of the Bipartisan Budget Act of 2013 (Public Law 113–67) and amended by section 10001 of the Department of Defense Appropriations Act, 2014 (Public Law 113–76), is amended by adding at the end the following new subparagraph:

''(G) MEMBERS COVERED.—This paragraph applies to a member or former member of an armed force who first became a member of a uniformed service on or after January 1, 2014.''.

(b) EFFECTIVE DATE.—The amendment made by subsection (a) shall take effect on December 1, 2015, immediately after the coming into effect of section 403 of the Bipartisan Budget Act of 2013 and the amendments made by that section.

SEC. 3. TRANSITIONAL FUND FOR SUSTAINABLE GROWTH RATE (SGR) REFORM.

Section 1898 of the Social Security Act (42 U.S.C. 1395iii) is amended—

(1) by amending the heading to read as follows: ''TRANSITIONAL FUND FOR SUSTAINABLE GROWTH RATE (SGR) REFORM'';

(2) by amending subsection (a) to read as follows:

''(a) ESTABLISHMENT.—The Secretary shall establish under this title a Transitional Fund for Sustainable Growth Rate (SGR) Reform (in this section referred to as the 'Fund') which shall be available to the Secretary to provide funds to pay for physicians' services under part B to supplement the conversion factor under section 1848(d) for 2017 if the conversion factor for 2017 is less than conversion factor for 2013.'';

(3) in subsection (b)(1), by striking ''during—'' and all that follows and inserting ''during or after 2017, $2,300,000,000.''; and

(4) in subsection (b)(2), by striking ''from the Federal'' and all that follows and inserting ''from the Federal Supplementary Medical Insurance Trust Fund.''.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from Pennsylvania (Mr. FITZPATRICK) and the gentleman from Washington (Mr. SMITH) each will control 20 minutes.

The Chair recognizes the gentleman from Pennsylvania.

GENERAL LEAVE

Mr. FITZPATRICK. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks and insert extraneous material on the bill under consideration.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Pennsylvania?

There was no objection.

Mr. FITZPATRICK. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, President Washington once said:

The willingness with which our young people are likely to serve in any war, no matter how justified, shall be directly proportional to how they perceive veterans of earlier wars were appreciated by our Nation.

There is no doubt that we appreciate the service and sacrifice of each generation of veterans, from our original veterans, patriots, to those who landed at Normandy during World War II, to present. We as Americans and as lawmakers are forever in debt to the dedication of our military men and women who bore the pain of battle, physically and emotionally.

While we stand here in this Chamber each day and pledge our allegiance to the American flag that they defend, while we are able to act as a democratic body freely elected by the people thanks to their sacrifices, sometimes simple appreciation isn't enough. We have a chance today to treat our veterans with the honor they deserve by ensuring that they are fully compensated for their service during retirement, while also addressing other concerns facing our Nation.

Today we will take up the legislation under consideration to ensure that all servicemen and -women who are enlisted prior to January 1 of this year will receive the full cost of living adjustments in retirement before and after the age of 62. Furthermore, this bill also ensures our seniors will have access to the health care services they depend on through Medicare.

For too long, the relationship between doctor and patient has been strained by the confusion and instability of a well-intentioned but unaddressed problem with the Medicare program itself, known as the sustainable growth rate or SGR. A component of this legislation works to ensure that seniors are able to receive the care they depend on from the physicians who know them, while also guaranteeing that those physicians are fairly compensated by Medicare through a fund until long-term reform of the SGR is achieved this spring. In doing so, this legislation provides much-needed stability for the medical community by ensuring that physicians have the predictability in billing they need to further their practice and to focus on their patients.

By taking up and passing this legislation in bipartisan fashion, we can address areas of critical concern, while working together to make sure we are also being fiscally responsible. This legislation provides a necessary offset that is in the same vein of the bipartisan budget agreement this Chamber passed just over a month ago.

The American people expect us to make the tough decisions that help them in their daily lives, be it a military veteran looking to secure his retirement after a lifetime of duty and commitment, to the senior making sure their next doctor's visit is free from any undue stress, or ensuring that physicians can further their passion of serving their community.

This legislation provides a path forward for our Nation and this body in addressing their concerns. I urge full bipartisan support of this legislation

and encourage the whole House to consider the important needs that the bill addresses.

Mr. Speaker, I reserve the balance of my time.

Mr. SMITH of Washington. Mr. Speaker, I yield myself such time as I may consume.

There are a number of problems with this piece of legislation. One of the biggest ones is just the process of it. This has been dropped on us at the absolute last minute. In fact, on a bill that has profound impacts on the budget in a number of different areas, we just, moments ago, received a broad outline of a score of how it is going to impact that budget—moments ago. We did not have time to consider this legislation adequately to figure out what impact it was going to have on the budget, but there are a couple of things we do know about it that creates a major problem.

Yes, in the short-term, this pleases two constituency groups. It pleases veterans, and it pleases doctors by giving them the money that they want. But what was not mentioned in the speech talking about this bill in favor of it is how it is paid for. It is paid for by adding another year to sequestration.

Now, there are a couple of interesting things about this. First of all, that is 8 years from now. We have heard nothing but, from the other side of the aisle, about how government is spending too much money, about how the deficit and the debt are out of control, and yet here we have up-front money being spent on the promise that 8 years from now we will cover those costs. And what is worse, 8 years from now, the way we are going to cover those costs is through sequestration, across-the-board cuts that will cut other entitlement, other mandatory spending programs. So we are really simply robbing one group of deserving people to pay another group of deserving people. That is hardly responsible and hardly helpful.

There are a couple of other specific aspects of this that I want to mention from the Department of Defense standpoint, focusing now just on the portion that addresses the cost of living reduction.

I want to make sure we understand what exactly that cost of living reduction was. In the military, if you serve 20 years, you can retire at that point with your full pension, which is basically half of your pay at that point. This bill took, for those people between the ages of 42 and 62, working age, and reduced their COLA by 1 percent. It didn't reduce the pension. It reduced how much that pension would be increased by each year by 1 percent.

Now, I don't deny that that is a hit and a cost, but what is it offsetting?

The Pentagon has to pay this cost, or at least a portion of this cost. They have to pay—the old bill, and again, I am just getting the new score. But in the old bill, it was roughly $700 million a year that DOD had to take out of their operating budget and put in to paying for this pension. So, by doing this, we are taking roughly $700 million a year out of the Pentagon budget.

What does that mean? What it means is a further blow to readiness. Now, Republican and Democratic members of the Armed Services Committee have rightly screamed that we are cutting readiness to the point where we are not training our forces to prepare to fight the fight that we ask them to fight.

Now, the gentleman made an excellent point that, basically, what is going to make people want to sign up for the military? And he mentioned making sure that we take care of our veterans. I certainly think that is an issue. And I will tell you, for the last 10 years we have increased the GI Bill. We have increased pay every single year. We have made dramatic increases in combat pay. I applaud this Chamber for the bipartisan way in which they have taken care of our military veterans. But one other major issue that is going to determine whether or not people want to join the military and stay in it is whether or not we train them and prepare them for the fight we are going to ask them to do. And what the consequences of this are going to be is it is another blow to that.

If you are a pilot, you will not have enough fuel or enough fixed equipment to train as often as you need to. If you are an infantryman, you will not have the bullets to practice as much as you need to. Doing this creates the one thing that everyone has said we don't want, and that is a hollow force, a force that exists but is not trained to fight the fight that we ask them to do.

In fact, there is a great and compelling story told by the chairman of the Armed Services Committee in an argument for why readiness is important, and that was the Korean war, and those were the troops that we sent over in the initial effort to stop the North Koreans. Those troops were not trained, and men died because they were not trained and they were not prepared for a battle that we sent them into.

So we are robbing one portion of the Pentagon budget to pay another, and I think we are robbing precisely the portion that we can least afford to rob. And I don't think there is anything noble about standing up and taking money away from the readiness that is going to train our troops to fight fights that we, as politicians, send them to fight.

Now, I will say, on the SGR fix and the doc fix, that is a short-term problem, and we need to deal with it. Step aside. I would be very, very happy to pay for that, and I support that very strongly.

I do not like the pay-for. Personally, I would be more than willing to raise taxes or cut spending in other places other than to, once again, go back to the sequester option and also to kick it out 8 years from now.

This is an irresponsible bill that approaches very, very real problems. But make no mistake about it. You can stand up and talk about what you are paying for, whom you are giving the money to, but I do hope people will address whom you are taking the money from. You are taking the money from other recipients of mandatory spending by doing sequester again. And as importantly, you are taking the money away from the readiness accounts that will train our troops so that they are able to fight, so that we will hopefully not do the one thing that I think would be utterly unconscionable, and that is to send troops to a battle that we have not prepared them for.

Mr. Speaker, I reserve the balance of my time.

Mr. FITZPATRICK. Mr. Speaker, I reserve the balance of my time.

Mr. SMITH of Washington. Mr. Speaker, I yield 2½ minutes to the gentlewoman from Texas (Ms. JACKSON LEE), though she is in support of the bill.

Ms. JACKSON LEE. I thank the gentleman, and I thank the manager of this legislation.

I thank our chairman, our ranking member of the Armed Services Committee, for his consistent diligence on acting on behalf of the men and women in the United States military, and certainly those who have already served.

I, for one, will associate myself with the disappointment of the offset that has been offered in this legislation. No one likes sequester.

I will add an additional point of contention is that this Nation is not broke. Economists have said over and over again that we are not broke. We can fully fund and should fund our military as it relates to preparedness. That is part of protecting the homeland, which I serve on the Homeland Security Committee.

□ 1415

Then of course we all have tried to deliberate on what we can do best for our doctors under what we call the SGR, or the doctor fix. Let me just say this as I rise to support this legislation, because I do come from Texas, and I do interact with veterans across the Nation and others.

As painful as the extending out of the sequester to 2024 was, I just want to offer this thought. First of all, as I have argued—and I hope maybe the light will come on that we are not broke, that we will rid ourselves of the sequester and begin to budget fully to provide investment in our people.

So, the reason for advocating is, as I go home every weekend, and throughout the week when I am in the district I will run into military personnel and/or veterans, to speak about the impact that this would have on them, their families. Certainly I believe that this was one that needs to be corrected, and I would like to see us working fairly across the board, that we find a way to respond to the high numbers that this costs, and as well to work with those with optional ideas. I hope before 2024

we have no sequester. As my good friend has indicated, it is a poor way of managing our budget.

Let me also say, because of the many low-income areas and the physicians that I have interacted with, who indicate how difficult it is to serve my low-income patients or my patients that are elderly, that the doctor fix is crucial for the 18th Congressional District in providing health care for those who are in need, particularly those who are elderly.

So, as we look askance at how this has been formulated—and I know that it is one that has come to us—but I would hope that we would do this fix this time, Mr. Speaker, and then work to undo the offset so that we can help seniors and doctors.

Mr. FITZPATRICK. Mr. Speaker, I continue to reserve the balance of my time.

Mr. SMITH of Washington. Mr. Speaker, I have no further speakers, so if the gentleman has no further speakers I will close.

I yield myself the balance of my time just really to drive home one point on the Armed Services' side of the equation, and that is the impact that personnel costs are having on the Department of Defense. They are an increasing, growing part of our defense budget in large part because we have been very, very generous with people who serve in the military in terms of pay, benefits, and retirement, but as everyone who serves on the Armed Services Committee knows, increasing personnel costs squeezes out other portions of the budget.

I have talked a lot about readiness. I think that is incredibly important, but also procurement, making sure that the men and women who serve in the military have the equipment that they need to fight the fight. We can have a great military where everyone is very well paid, the benefits go on forever, but they don't have the equipment or the training necessary to fight.

I will tell you, every single expert, right, left, middle, wherever, who studies this question, we just had four prominent think-tanks spanning that spectrum come out with a study on the future of the Department of Defense budget. Every single one of those experts has said that if we do nothing to rein in personnel costs, that is precisely the force that we will have; it will be hollow. It will not have the equipment, and it will not have the training to do what it is that we ask them to do.

Now, we may not think that the 1 percent cut that was done here in the COLA is the best way to go. I can entertain that argument. I certainly understand veterans who were promised this, who expect to receive it. If it is not that, what is it? What is on the table? All we have done in this Chamber is said no, no, no to every effort the Department of Defense has put out there to try to rein in this spending, to try to rein in this spending, as I said, so that we can have a military that lives up to what we want it to live up to. This is a very, very real issue.

Once again, we are punting it and completely ignoring it, completely unaddressed by supporters of this bill. They are just addressing this narrow area, making the broader problem worse.

As I said in the beginning, also, once again, adding sequester back in the lexicon for another year. This is not a solution to any problem, other than a series of political ones. We have just too many difficult choices to make to simply rely on politics with every bill that we bring up here. We have got to make some hard choices. This bill doesn't do it. It punts once again in every conceivable way. It simply makes the problems worse.

I know it is not going to happen, but I would nonetheless urge this body to oppose this bill and make some responsible choices, actually make choices as to what to do with the budget instead of continually punting on every difficult decision that comes before us. I assure you, this will not be the last one by any stretch of the imagination.

With that, I yield back the balance of my time

Mr. FITZPATRICK. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, it is always responsible to keep promises made to our Nation's veterans. What is before the House today is an extension of current policy that was passed in overwhelming bipartisan fashion right here in this Chamber less than 2 months ago.

In addition, it does protect the promises that the Nation has made to our veterans. So, I encourage my colleagues to vote in favor of the bill, to care for those who have borne the battle, and to send that message to all who can hear it.

Mr. Speaker, I yield back the balance of my time.

Mr. DEFAZIO. Mr. Speaker, due to heavy snow in Oregon, and the associated cancellation of flights out of the State, I am unable to be present for the vote on S. 25. I plan to vote in favor of S. 25. I voted against the Murray-Ryan Budget that put in place the unacceptable cuts to military retirement cost of living adjustments (COLAs). These cuts would have reduced annual COLA for military retirees by 1 percent every year until the service member turns 62. This could be as much as an $83,000 cut over the lifetime of a typical enlisted member who retires after 20 years of service. It is unconscionable that Congress would try to balance the budget on the backs of our military retirees, and I am glad that S. 25 prevents COLA cuts from going into place for all current military retirees and future retirees who are currently serving.

I am also pleased that S. 25 sets aside some funding for preventing Sustainable Growth Rate (SGR) cuts to Medicare and TRICARE reimbursements for doctors. I voted against the creation of the faulty SGR formula in 1997 and have fought to fix it ever since. Unfortunately, instead of fixing the SGR Congress has delayed it year after year. This means that if Congress fails to act by March of this year, doctors would face a cut of approximately 27% in their Medicare and TRICARE reimbursements. This is not acceptable. I am hopeful that Congress will use the funds set aside by S. 25 to help pay for a permanent fix to the SGR rather than another delay.

Mr. BRALEY of Iowa. Mr. Speaker, while I support the effort to fix the cut to veterans' pensions included in S. 25, I am staunchly opposed to extending sequestration cuts to Medicare. Given that the cut to veterans' pensions is due to occur many years before the sequestration extension, I am supporting this bill, with the hope that Congress will undo this additional extension of sequestration cuts to Medicare. Again, let me state clearly: I oppose extending sequestration cuts to Medicare, and I will be working to convince the Senate to find an alternative way to fund the fix to veterans' pensions.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Pennsylvania (Mr. FITZPATRICK) that the House suspend the rules and pass the bill, S. 25, as amended.

The question was taken.

The SPEAKER pro tempore. In the opinion of the Chair, two-thirds being in the affirmative, the ayes have it.

Mr. FITZPATRICK. Mr. Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, further proceedings on this motion will be postponed.

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, proceedings will resume on questions previously postponed.

Votes will be taken in the following order:

Ordering the previous question on House Resolution 475;

Adopting House Resolution 475, if ordered; and

Suspending the rules and passing S. 25.

The first electronic vote will be conducted as a 15-minute vote. Remaining electronic votes will be conducted as 5-minute votes.

PROVIDING FOR CONSIDERATION OF H.R. 3193, CONSUMER FINANCIAL FREEDOM AND WASHINGTON ACCOUNTABILITY ACT; PROVIDING FOR PROCEEDINGS DURING THE PERIOD FROM FEBRUARY 13, 2014, THROUGH FEBRUARY 24, 2014; AND FOR OTHER PURPOSES

The SPEAKER pro tempore. The unfinished business is the vote on ordering the previous question on the resolution (H. Res. 475) providing for consideration of the bill (3193) to amend the Consumer Financial Protection Act of 2010 to strengthen the review authority of the Financial Stability Oversight Council of regulations issued by

the Bureau of Consumer Financial Protection, and for other purposes; providing for proceedings during the period from February 13, 2014, through February 24, 2014; and for other purposes, on which the yeas and nays were ordered.

The Clerk read the title of the resolution.

The SPEAKER pro tempore. The question is on ordering the previous question.

The vote was taken by electronic device, and there were—yeas 222, nays 195, not voting 14, as follows:

[Roll No. 58]

YEAS—222

Amash
Bachmann
Bachus
Barletta
Barr
Barton
Benishek
Bentivolio
Bishop (UT)
Black
Blackburn
Boustany
Brady (TX)
Bridenstine
Brooks (AL)
Brooks (IN)
Broun (GA)
Buchanan
Bucshon
Burgess
Byrne
Calvert
Camp
Cantor
Capito
Carter
Chabot
Chaffetz
Coble
Coffman
Cole
Collins (GA)
Collins (NY)
Conaway
Cook
Cotton
Cramer
Crawford
Crenshaw
Culberson
Daines
Davis, Rodney
Denham
Dent
DeSantis
DesJarlais
Diaz-Balart
Duffy
Duncan (SC)
Duncan (TN)
Ellmers
Farenthold
Fincher
Fitzpatrick
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foxx
Franks (AZ)
Frelinghuysen
Gardner
Garrett
Gerlach
Gibbs
Gibson
Gingrey (GA)
Gohmert
Goodlatte
Gowdy
Granger
Graves (GA)
Graves (MO)
Griffin (AR)
Griffith (VA)
Grimm
Guthrie
Hall
Hanna
Harper
Harris
Hartzler
Hastings (WA)
Heck (NV)
Hensarling
Herrera Beutler
Holding
Hudson
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurt
Issa
Jenkins
Johnson (OH)
Johnson, Sam
Jordan
Joyce
Kelly (PA)
King (IA)
King (NY)
Kingston
Kinzinger (IL)
Kline
Labrador
LaMalfa
Lamborn
Lance
Lankford
Latta
LoBiondo
Long
Lucas
Luetkemeyer
Lummis
Marchant
Marino
Massie
McAllister
McCarthy (CA)
McCaul
McClintock
McHenry
McKeon
McKinley
McMorris Rodgers
Meadows
Meehan
Messer
Mica
Miller (FL)
Miller (MI)
Miller, Gary
Mullin
Mulvaney
Murphy (PA)
Neugebauer
Noem
Nugent
Nunes
Nunnelee
Olson
Palazzo
Paulsen
Pearce
Perry
Petri
Pittenger
Pitts
Poe (TX)
Pompeo
Posey
Price (GA)
Reed
Reichert
Renacci
Ribble
Rice (SC)
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rogers (MI)
Rohrabacher
Rokita
Rooney
Ros-Lehtinen
Roskam
Ross
Rothfus
Royce
Runyan
Ryan (WI)
Salmon
Scalise
Schock
Schweikert
Scott, Austin
Sensenbrenner
Sessions
Shimkus
Shuster
Simpson
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Southerland
Stewart
Stivers
Stockman
Stutzman
Terry
Thompson (PA)
Thornberry
Tiberi
Tipton
Turner
Upton
Valadao
Wagner
Walberg
Walden
Walorski
Weber (TX)
Webster (FL)
Wenstrup
Westmoreland
Whitfield
Williams
Wilson (SC)
Wittman
Wolf
Womack
Woodall
Yoder
Yoho
Young (AK)
Young (IN)

NAYS—195

Andrews
Barber
Barrow (GA)
Bass
Beatty
Becerra
Bera (CA)
Bilirakis
Bishop (GA)
Bishop (NY)
Blumenauer
Bonamici
Brady (PA)
Braley (IA)
Brown (FL)
Brownley (CA)
Bustos
Butterfield
Capps
Capuano
Carney
Carson (IN)
Cartwright
Cassidy
Castor (FL)
Castro (TX)
Chu
Cicilline
Clark (MA)
Clarke (NY)
Clay
Cleaver
Clyburn
Cohen
Connolly
Conyers
Cooper
Costa
Courtney
Crowley
Cuellar
Cummings
Davis (CA)
Davis, Danny
DeGette
Delaney
DeLauro
DelBene
Deutch
Dingell
Doggett
Doyle
Duckworth
Edwards
Ellison
Engel
Enyart
Eshoo
Esty
Farr
Fattah
Foster
Frankel (FL)
Fudge
Gabbard
Gallego
Garamendi
Garcia
Grayson
Green, Al
Green, Gene
Grijalva
Gutiérrez
Hahn
Hanabusa
Hastings (FL)
Heck (WA)
Higgins
Himes
Holt
Honda
Horsford
Hoyer
Huffman
Jackson Lee
Jeffries
Johnson (GA)
Johnson, E. B.
Jones
Kaptur
Keating
Kelly (IL)
Kennedy
Kildee
Kilmer
Kind
Kirkpatrick
Kuster
Langevin
Larsen (WA)
Larson (CT)
Lee (CA)
Levin
Lipinski
Loebsack
Lofgren
Lowenthal
Lowey
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lynch
Maffei
Maloney, Carolyn
Maloney, Sean
Matheson
Matsui
McCarthy (NY)
McCollum
McDermott
McGovern
McIntyre
McNerney
Meeks
Meng
Michaud
Miller, George
Moore
Moran
Murphy (FL)
Nadler
Napolitano
Neal
Negrete McLeod
Nolan
O'Rourke
Owens
Pallone
Pascrell
Payne
Pelosi
Perlmutter
Peters (CA)
Peters (MI)
Peterson
Pocan
Polis
Price (NC)
Quigley
Rahall
Rangel
Richmond
Roybal-Allard
Ruiz
Ruppersberger
Ryan (OH)
Sánchez, Linda T.
Sanchez, Loretta
Sanford
Sarbanes
Schakowsky
Schiff
Schneider
Schrader
Schwartz
Scott (VA)
Serrano
Sewell (AL)
Shea-Porter
Sherman
Sinema
Sires
Slaughter
Smith (WA)
Speier
Swalwell (CA)
Takano
Thompson (CA)
Thompson (MS)
Tierney
Titus
Tonko
Tsongas
Van Hollen
Vargas
Veasey
Vela
Velázquez
Visclosky
Walz
Wasserman Schultz
Waters
Waxman
Welch
Wilson (FL)
Yarmuth

NOT VOTING—14

Aderholt
Amodei
Campbell
Cárdenas
DeFazio
Gosar
Hinojosa
Israel
Latham
Lewis
Pastor (AZ)
Pingree (ME)
Rush
Scott, David

□ 1453

Ms. CLARKE of New York and Mr. GALLEGO changed their vote from ''yea'' to ''nay.''

Mr. GRIFFIN of Arkansas changed his vote from ''nay'' to ''yea.''

So the previous question was ordered.

The result of the vote was announced as above recorded.

Stated against:

Mr. HINOJOSA. Mr. Speaker, on rollcall No. 58, had I been present, I would have voted "no."

The SPEAKER pro tempore. The question is on the resolution.

The question was taken; and the Speaker pro tempore announced that the ayes appeared to have it.

RECORDED VOTE

Mr. POLIS. Mr. Speaker, I demand a recorded vote.

A recorded vote was ordered.

The SPEAKER pro tempore. This will be a 5-minute vote.

The vote was taken by electronic device, and there were—ayes 223, noes 193, answered ''present'' 1, not voting 14, as follows:

[Roll No. 59]

AYES—223

Amash
Bachmann
Bachus
Barletta
Barr
Barton
Benishek
Bentivolio
Bilirakis
Bishop (UT)
Black
Blackburn
Boustany
Brady (TX)
Bridenstine
Brooks (IN)
Broun (GA)
Buchanan
Bucshon
Burgess
Byrne
Calvert
Camp
Cantor
Capito
Carter
Cassidy
Chabot
Chaffetz
Coble
Coffman
Cole
Collins (GA)
Collins (NY)
Conaway
Cook
Cotton
Cramer
Crawford
Crenshaw
Culberson
Daines
Davis, Rodney
Denham
Dent
DeSantis
DesJarlais
Diaz-Balart
Duffy
Duncan (SC)
Duncan (TN)
Ellmers
Farenthold
Fincher
Fitzpatrick
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foxx
Franks (AZ)
Frelinghuysen
Gardner
Garrett
Gerlach
Gibbs
Gibson
Gingrey (GA)
Gohmert
Goodlatte
Gowdy
Granger
Graves (GA)
Graves (MO)
Griffin (AR)
Griffith (VA)
Grimm
Guthrie
Hall
Hanna
Harper
Harris
Hartzler
Hastings (WA)
Heck (NV)
Hensarling
Herrera Beutler
Holding
Hudson
Huizenga (MI)
Hultgren
Hunter
Hurt
Issa
Jenkins
Johnson (OH)
Johnson, Sam
Jordan
Joyce
Kelly (PA)
King (IA)
King (NY)
Kingston
Kinzinger (IL)
Kline
Labrador
LaMalfa
Lamborn
Lance
Lankford
Latta
LoBiondo
Long
Lucas
Luetkemeyer
Lummis
Marchant
Marino
Massie
McAllister
McCarthy (CA)
McCaul
McClintock
McHenry
McKeon
McKinley
McMorris Rodgers
Meadows
Meehan
Messer
Mica
Miller (FL)
Miller (MI)
Miller, Gary
Mullin
Mulvaney
Murphy (PA)
Neugebauer
Noem
Nugent
Nunes
Nunnelee
Olson
Palazzo
Paulsen
Pearce
Perry
Petri
Pittenger
Pitts
Poe (TX)
Pompeo
Posey
Price (GA)
Reed
Reichert
Renacci
Ribble
Rice (SC)
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rogers (MI)
Rohrabacher
Rokita
Rooney
Ros-Lehtinen
Roskam
Ross
Rothfus
Royce
Runyan
Ryan (WI)
Salmon
Sanford
Scalise
Schock
Schweikert
Scott, Austin
Sensenbrenner
Sessions
Shimkus
Shuster
Simpson
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Southerland
Stewart
Stivers
Stockman
Stutzman
Terry
Thompson (PA)
Thornberry
Tiberi
Tipton
Turner
Upton
Valadao
Wagner
Walberg
Walden
Walorski
Weber (TX)
Webster (FL)
Wenstrup
Westmoreland
Whitfield
Williams
Wilson (SC)
Wittman
Wolf
Womack
Woodall
Yoder
Yoho
Young (AK)
Young (IN)

NOES—193

Andrews
Barber
Barrow (GA)
Bass
Beatty
Becerra
Bera (CA)
Bishop (GA)
Bishop (NY)
Blumenauer
Bonamici
Brady (PA)
Braley (IA)
Brown (FL)
Brownley (CA)
Bustos
Butterfield
Capps

Capuano
Carney
Carson (IN)
Cartwright
Castor (FL)
Castro (TX)
Chu
Cicilline
Clark (MA)
Clarke (NY)
Clay
Cleaver
Clyburn
Cohen
Connolly
Conyers
Cooper
Costa
Courtney
Crowley
Cuellar
Cummings
Davis (CA)
Davis, Danny
DeGette
Delaney
DeLauro
DelBene
Deutch
Dingell
Doggett
Doyle
Duckworth
Edwards
Ellison
Engel
Enyart
Eshoo
Esty
Farr
Fattah
Foster
Frankel (FL)
Fudge
Gabbard
Gallego
Garamendi
Garcia
Grayson
Green, Al
Green, Gene
Grijalva
Gutiérrez
Hahn
Hanabusa
Hastings (FL)
Heck (WA)
Higgins
Himes
Holt
Honda
Horsford
Hoyer
Huelskamp
Huffman
Jackson Lee
Jeffries
Johnson (GA)
Johnson, E. B.
Jones
Kaptur
Keating
Kelly (IL)
Kennedy
Kildee
Kilmer
Kind
Kirkpatrick
Kuster
Langevin
Larsen (WA)
Larson (CT)
Lee (CA)
Levin
Lipinski
Loebsack
Lofgren
Lowenthal
Lowey
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lynch
Maffei
Maloney, Carolyn
Maloney, Sean
Matheson
Matsui
McCarthy (NY)
McCollum
McDermott
McGovern
McIntyre
McNerney
Meeks
Meng
Michaud
Miller, George
Moore
Moran
Murphy (FL)
Nadler
Napolitano
Neal
Negrete McLeod
Nolan
O'Rourke
Owens
Pallone
Pascrell
Payne
Pelosi
Perlmutter
Peters (CA)
Peters (MI)
Peterson
Pocan
Polis
Price (NC)
Quigley
Rahall
Rangel
Richmond
Roybal-Allard
Ruiz
Ruppersberger
Ryan (OH)
Sánchez, Linda T.
Sanchez, Loretta
Sarbanes
Schakowsky
Schiff
Schneider
Schrader
Schwartz
Scott (VA)
Serrano
Sewell (AL)
Shea-Porter
Sherman
Sinema
Sires
Slaughter
Smith (WA)
Speier
Swalwell (CA)
Takano
Thompson (CA)
Thompson (MS)
Tierney
Titus
Tonko
Tsongas
Van Hollen
Vargas
Veasey
Vela
Velázquez
Visclosky
Walz
Wasserman Schultz
Waters
Waxman
Welch
Wilson (FL)
Yarmuth

ANSWERED ''PRESENT''—1

Brooks (AL)

NOT VOTING—14

Aderholt
Amodei
Campbell
Cárdenas
DeFazio
Gosar
Hinojosa
Israel
Latham
Lewis
Pastor (AZ)
Pingree (ME)
Rush
Scott, David

□ 1501

So the resolution was agreed to.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

Stated against:

Mr. HINOJOSA. Mr. Speaker, on rollcall No. 59, had I been present, I would have voted "no."

EXTENSION OF DIRECT SPENDING REDUCTION FOR FISCAL YEAR 2024

The SPEAKER pro tempore. The unfinished business is the vote on the motion to suspend the rules and pass the bill (S. 25) to direct the Secretary of the Interior to convey certain Federal features of the electric distribution system to the South Utah Valley Electric Service District, and for other purposes, as amended, on which the yeas and nays were ordered.

The Clerk read the title of the bill.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Pennsylvania (Mr. FITZPATRICK) that the House suspend the rules and pass the bill, as amended.

This is a 5-minute vote.

The vote was taken by electronic device, and there were—yeas 326, nays 90, answered ''present'' 1, not voting 14, as follows:

[Roll No. 60]

YEAS—326

Amash
Andrews
Bachmann
Bachus
Barber
Barletta
Barr
Barrow (GA)
Beatty
Benishek
Bentivolio
Bera (CA)
Bilirakis
Bishop (GA)
Bishop (NY)
Bishop (UT)
Black
Blackburn
Bonamici
Boustany
Brady (TX)
Braley (IA)
Bridenstine
Brooks (AL)
Brooks (IN)
Broun (GA)
Brown (FL)
Brownley (CA)
Buchanan
Bucshon
Burgess
Bustos
Butterfield
Byrne
Calvert
Camp
Cantor
Capito
Capps
Capuano
Carney
Carson (IN)
Carter
Cassidy
Castor (FL)
Castro (TX)
Chabot
Chaffetz
Chu
Cicilline
Clark (MA)
Cleaver
Coble
Coffman
Cohen
Cole
Collins (NY)
Conaway
Connolly
Cook
Cooper
Costa
Cotton
Courtney
Cramer
Crawford
Crenshaw
Cuellar
Culberson
Daines
Davis, Rodney
Delaney
DelBene
Denham
Dent
DeSantis
Deutch
Diaz-Balart
Dingell
Doggett
Duckworth
Duffy
Duncan (SC)
Duncan (TN)
Ellmers
Enyart
Eshoo
Esty
Farenthold
Farr
Fincher
Fitzpatrick
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foster
Foxx
Franks (AZ)
Gabbard
Gallego
Garamendi
Garcia
Gardner
Garrett
Gerlach
Gibbs
Gibson
Gingrey (GA)
Gohmert
Goodlatte
Gowdy
Granger
Graves (GA)
Graves (MO)
Green, Al
Green, Gene
Griffin (AR)
Griffith (VA)
Grimm
Guthrie
Gutiérrez
Hall
Hanna
Harper
Harris
Hartzler
Hastings (FL)
Hastings (WA)
Heck (WA)
Hensarling
Herrera Beutler
Higgins
Himes
Hinojosa
Holding
Horsford
Hudson
Huizenga (MI)
Hultgren
Hunter
Hurt
Issa
Jackson Lee
Jenkins
Johnson (GA)
Johnson (OH)
Johnson, Sam
Jordan
Joyce
Keating
Kelly (PA)
Kennedy
Kildee
Kilmer
Kind
King (IA)
King (NY)
Kingston
Kirkpatrick
Kline
Kuster
Labrador
LaMalfa
Lamborn
Lance
Langevin
Lankford
Latta
Lipinski
LoBiondo
Loebsack
Lofgren
Long
Lowenthal
Lowey
Lucas
Luetkemeyer
Lujan Grisham (NM)
Lummis
Lynch
Maffei
Maloney, Carolyn
Maloney, Sean
Marchant
Marino
Massie
Matheson
McAllister
McCarthy (CA)
McCarthy (NY)
McCaul
McClintock
McHenry
McIntyre
McKeon
McKinley
McMorris Rodgers
Meadows
Messer
Mica
Michaud
Miller (FL)
Miller (MI)
Miller, Gary
Moore
Mullin
Murphy (FL)
Murphy (PA)
Neal
Neugebauer
Noem
Nolan
Nunes
Nunnelee
O'Rourke
Olson
Owens
Palazzo
Pascrell
Paulsen
Pearce
Perlmutter
Perry
Peters (CA)
Peters (MI)
Peterson
Petri
Pittenger
Pitts
Poe (TX)
Polis
Pompeo
Posey
Price (GA)
Price (NC)
Quigley
Rahall
Rangel
Reed
Reichert
Renacci
Rice (SC)
Richmond
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rogers (MI)
Rohrabacher
Rooney
Ros-Lehtinen
Roskam
Ross
Rothfus
Royce
Ruiz
Runyan
Ruppersberger
Ryan (OH)
Salmon
Sarbanes
Scalise
Schiff
Schneider
Scott (VA)
Scott, Austin
Sensenbrenner
Sessions
Sewell (AL)
Shea-Porter
Sherman
Shuster
Simpson
Sinema
Sires
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Southerland
Stewart
Stivers
Stockman
Swalwell (CA)
Takano
Terry
Thompson (MS)
Thompson (PA)
Thornberry
Tiberi
Tierney
Tipton
Titus
Tsongas
Turner
Upton
Valadao
Van Hollen
Vargas
Veasey
Vela
Wagner
Walberg
Walden
Walorski
Walz
Wasserman Schultz
Weber (TX)
Webster (FL)
Welch
Wenstrup
Westmoreland
Whitfield
Williams
Wilson (SC)
Wittman
Womack
Woodall
Yarmuth
Yoder
Yoho
Young (AK)
Young (IN)

NAYS—90

Barton
Bass
Becerra
Blumenauer
Brady (PA)
Cartwright
Clarke (NY)
Clay
Clyburn
Collins (GA)
Conyers
Crowley
Cummings
Davis (CA)
Davis, Danny
DeGette
DeLauro
DesJarlais
Doyle
Edwards
Ellison
Engel
Fattah
Frankel (FL)
Fudge
Grayson
Grijalva
Hahn
Hanabusa
Heck (NV)
Holt
Honda
Hoyer
Huelskamp
Huffman
Jeffries
Johnson, E. B.
Jones
Kaptur
Kelly (IL)
Kinzinger (IL)
Larsen (WA)
Larson (CT)
Lee (CA)
Levin
Luján, Ben Ray (NM)
Matsui
McCollum
McDermott
McGovern
McNerney
Meehan
Meeks
Meng
Miller, George
Moran
Mulvaney
Nadler
Napolitano
Negrete McLeod
Nugent
Pallone
Payne
Pelosi
Pocan
Ribble
Rokita
Roybal-Allard
Ryan (WI)
Sánchez, Linda T.
Sanford
Schakowsky
Schock
Schrader
Schwartz
Schweikert
Serrano
Shimkus
Slaughter
Smith (WA)
Speier
Stutzman
Thompson (CA)
Tonko
Velázquez
Visclosky
Waters
Waxman
Wilson (FL)
Wolf

ANSWERED ''PRESENT''—1

Sanchez, Loretta

NOT VOTING—14

Aderholt
Amodei
Campbell
Cárdenas
DeFazio
Frelinghuysen
Gosar
Israel
Latham
Lewis
Pastor (AZ)
Pingree (ME)
Rush
Scott, David

□ 1509

Ms. KAPTUR changed her vote from ''yea'' to ''nay.''

Mrs. CAROLYN B. MALONEY of New York changed her vote from ''nay'' to ''yea.''

So (two-thirds being in the affirmative) the rules were suspended and the bill, as amended, was passed.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

RESIGNATION AS MEMBER OF COMMITTEE ON THE BUDGET

The SPEAKER pro tempore laid before the House the following resignation as a member of the Committee on the Budget:

CONGRESS OF THE UNITED STATES,
HOUSE OF REPRESENTATIVES,
Washington, DC, January 22, 2014.

Hon. JOHN A. BOEHNER,
Speaker of the House,
Washington, DC.

DEAR SPEAKER BOEHNER, Due to my recent appointment to the House Judiciary Committee, I hereby resign from the House Committee on the Budget.

Sincerely,

DAVID N. CICILLINE,
Member of Congress.

The SPEAKER pro tempore (Mr. HOLDING). Without objection, the resignation is accepted.

There was no objection.

MEDICAL CERTIFICATION REQUIREMENTS FOR AIRMEN AND AIR TRAFFIC CONTROLLERS RELATING TO SLEEP DISORDERS

Mr. LOBIONDO. Mr. Speaker, I move to suspend the rules and pass the bill (H.R. 3578) to ensure that any new or revised requirement providing for the screening, testing, or treatment of an airman or an air traffic controller for a sleep disorder is adopted pursuant to a rulemaking proceeding, and for other purposes, as amended.

The Clerk read the title of the bill.

The text of the bill is as follows:

H.R. 3578

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

[SECTION 1. MEDICAL CERTIFICATION REQUIREMENTS FOR AIRMEN AND AIR TRAFFIC CONTROLLERS RELATING TO SLEEP DISORDERS.

[(a) IN GENERAL.—The Secretary of Transportation may implement or enforce a requirement providing for the screening, testing, or treatment (including consideration of all possible treatment alternatives) of an airman or an air traffic controller for a sleep disorder only if the requirement is adopted pursuant to a rulemaking proceeding.

[(b) APPLICABILITY.—Subsection (a) shall not apply to a requirement that was in force before November 1, 2013.

[(c) DEFINITIONS.—In this section, the following definitions apply:

[(1) AIRMAN.—The term ''airman'' has the meaning given that term in section 40102(a) of title 49, United States Code.

[(2) AIR TRAFFIC CONTROLLER.—The term ''air traffic controller'' means a civilian employee of the Department of Transportation described in section 2109 of title 5, United States Code.

[(3) SLEEP DISORDER.—The term ''sleep disorder'' includes obstructive sleep apnea.]

SECTION 1. MEDICAL CERTIFICATION REQUIREMENTS FOR AIRMEN AND AIR TRAFFIC CONTROLLERS RELATING TO SLEEP DISORDERS.

(a) IN GENERAL.—The Secretary of Transportation may, consistent with accepted medical standards and practices, implement or enforce a requirement providing for the screening, testing, or treatment (including consideration of all possible treatment alternatives) of an airman or an air traffic controller for a sleep disorder—

(1) in the case of an airman, only if the requirement is adopted pursuant to a rulemaking proceeding; and

(2) in the case of an air traffic controller, only if the Federal Aviation Administration meets its obligations pursuant to chapter 71 of title 5, United States Code.

(b) APPLICABILITY.—Subsection (a) shall not apply to a requirement that was in force before November 1, 2013.

(c) DEFINITIONS.—In this section, the following definitions apply:

(1) AIRMAN.—The term ''airman'' has the meaning given that term in section 40102(a) of title 49, United States Code.

(2) AIR TRAFFIC CONTROLLER.—The term ''air traffic controller'' means a civilian employee of the Department of Transportation described in section 2109 of title 5, United States Code.

(3) SLEEP DISORDER.—The term ''sleep disorder'' includes obstructive sleep apnea.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from New Jersey (Mr. LOBIONDO) and the gentleman from Washington (Mr. LARSEN) each will control 20 minutes.

The Chair recognizes the gentleman from New Jersey.

□ 1515

GENERAL LEAVE

Mr. LOBIONDO. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks and include extraneous materials for the RECORD on H.R. 3578.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from New Jersey?

There was no objection.

Mr. LOBIONDO. Mr. Speaker, I yield myself such time as I may consume.

I rise today in support of H.R. 3578.

Let me begin by thanking some of my colleagues—first and foremost, Congressman LARSEN, also Congressmen BUCSHON, LIPINSKI, and GRAVES—for their help and support in introducing this very important bill.

Before I explain the bill, I would like to enter into the RECORD letters of support for H.R. 3578.

Mr. Speaker, H.R. 3578 addresses the medical certification process for pilots and air traffic controllers as it relates only to sleep disorders.

Currently, pilots and controllers are required to be medically certificated by the FAA at varying intervals. The duration, as well as the type of medical certification, depends on the type of activity they are seeking to perform—airline pilot, private pilot, et cetera—and all other factors, such as age. Regardless, pilots and controllers undergo a thorough medical review process, and the FAA ultimately decides whether or not to issue them a medical certification. Further, there are no certain medical conditions that the FAA automatically deems as disqualifying. Currently, pilots with one or more of those conditions, including sleep apnea, are required to seek a special certificate, which is issued at the sole discretion of the FAA and only if the applicants can prove they will not endanger public safety. Neither process is perfect, but it is a process that works.

In November of 2013, the FAA announced a proposal to significantly and arbitrarily modify the medical requirements for airmen who might be at risk of having a sleep disorder, such as sleep apnea, even in the absence of any clinical evidence. The FAA's proposal would effectively assume overweight pilots have a sleep disorder based solely on their body mass index and would require them to prove otherwise at their own expense. It is a scenario of being guilty before proven innocent. The potential cost to these pilots could be thousands of dollars.

The FAA proposal, announced without any input from the stakeholders, is neither reasonable nor effective. However, health issues can arise unexpectedly, which is why I have always supported reasonable, effective, and proactive efforts to improve aviation safety; but the FAA's action related to sleep disorders was carried out behind closed doors, with no input from stakeholders, and based upon controversial assumptions. While I applaud the FAA for seeking stakeholder input recently, it is too little, too late.

Safety is my top priority as chairman of the Aviation Subcommittee. That is why the legislation we are considering today, H.R. 3578, does not prohibit the FAA from implementing new medical certification requirements for sleep disorders, but it does require the FAA, in the case of pilots, to conduct an open rulemaking process and, in the case of air traffic controllers, to use a process established under current Federal employment law.

Finally, it is important to note that H.R. 3578 does not change the FAA's medical certification process or otherwise prevent the agency from responding to new medical issues in a timely manner. This legislation applies only to proposed changes to the medical certification process for sleep disorders. In addition, the rulemaking process required by this legislation does not apply to the enforcement of requirements providing for the screening, testing, or treatment of pilots and controllers for sleep disorders in force prior to November 1, 2013.

H.R. 3578 is a bipartisan bill that is supported by a wide range of stakeholders, and I urge my colleagues to support it.

With that, I reserve the balance of my time.

H.R. 3578
Industry Supporters:
Air Line Pilots Association
Aircraft Owners and Pilots Association
Airlines for America
Allied Pilots Association
Coalition of Airline Pilots Association
Experimental Aircraft Association
Federal Aviation Administration Managers Association
General Aviation Manufacturers Association
Helicopter Association International
National Agricultural Aviation Association
National Air Traffic Controllers Association
National Air Transportation Association
National Business Aviation Association
NetJets Association of Shared Aircraft Pilots

Recreational Aviation Foundation
Southwest Airlines Pilots Association

Mr. LARSEN of Washington. Mr. Speaker, I yield myself such time as I may consume.

I rise in support of H.R. 3578.

I want to thank Chairman LOBIONDO for bringing this issue to the attention of the committee and for working hard to bring it to the floor so quickly.

This bill would require the Federal Aviation Administration to go through a rulemaking process if it chooses to propose and implement new pilot medical certification requirements for sleep apnea.

Under current law, in order for a pilot to be certificated, every pilot is screened by an aviation medical examiner to ensure he is safe and capable of piloting an aircraft. If a pilot is diagnosed with obstructive sleep apnea or with any other disqualifying medical condition, that pilot must obtain a ''special issuance'' medical certificate from the FAA to keep flying.

Last November, the FAA abruptly announced changes to the medical certification process as it pertains only to sleep apnea. The new policy would require all airmen with a body mass index, or BMI, of 40 or more to undergo new testing and evaluation requirements for obstructive sleep apnea in order to maintain their medical certificates.

General aviation groups and pilot unions have raised concerns that the FAA's proposed policy changes could impose significant undue costs on thousands of airmen without an adequate opportunity for the public to comment on the relative safety merits of these new requirements.

H.R. 3578 would ensure transparency and would require the FAA to initiate a rulemaking if it chooses to implement a new pilot medical certification requirement for sleep apnea. This bill would not prohibit the FAA from implementing new medical certification requirements, but the rulemaking process will provide the opportunity for all interested parties to comment on any proposed changes. So I urge my colleagues to support H.R. 3578.

With that, I reserve the balance of my time.

Mr. LOBIONDO. Mr. Speaker, I yield 3 minutes to the gentleman from Missouri (Mr. GRAVES), who has been a big help on this issue.

Mr. GRAVES of Missouri. Mr. Speaker, as a general aviation pilot myself, I was shocked when the FAA Air Surgeon, Dr. Fred Tilton, announced a forthcoming guidance to require additional testing for pilots, as was mentioned, with the arbitrary numbers of a BMI of 40 and a neck size of 17 inches. Not only did he indicate in December that the FAA would move forward with this new guidance on sleep apnea, but that it would challenge Congress by saying:

If Congress passes a law to force industry consultation, we will be compliant; but until they do so, we will move forward with our guidance.

Today, Congress is acting against the FAA's egregious assumption that these pilots pose a safety risk if untreated. When it comes to the general aviation community's safety record, there is simply no data or evidence to suggest that sleep apnea—or any other medical issue for that matter—is the cause behind general aviation accidents. In fact, most of these accidents happen as a result of weather. GA pilots know that, every time they get into a plane, they are taking their own lives into their hands as well as the lives of others. So, naturally, pilots are not going to knowingly put themselves into an unsafe situation.

What is so absurd about this process is just the medical certification in general. The FAA requires GA pilots—or any pilot for that matter—to go through certification every 2 years for a third-class medical and certification every year for a first- or a second-class medical, but there is nothing in that process that guarantees a pilot's fitness to fly within that time period. It is up to the pilot to determine his fitness to fly himself or herself, and he or she knows best.

General aviation supports 1.2 million jobs, and it contributes $150 billion annually to the GDP. There are 223,000 general aviation aircraft out there serving 19,000 small and regional airports. It accounts for 27 million flight-hours, and it serves 166 million passengers every year. It is more important than most people realize, and adding burdensome regulations like the FAA is proposing on sleep apnea do nothing but discourage further participation, at least in general aviation.

This rule would also have some dramatic effects on commercial aviation, which is also facing a pilot shortage in and of itself. Based on these arbitrary benchmarks, a pilot is going to be required, as was pointed out, to get further examinations and sleep tests, which is going to slow the process down that much more.

The outcry from the pilot community, both in general aviation and in commercial, has led to the introduction of this bill, H.R. 3578. It requires the FAA to go through the normal rulemaking process, which allows for public comment and requires them to analyze the impact of the regulation. The FAA should follow the rules, plain and simple. That is all we are asking. They should listen to pilots and take their viewpoints into account.

I want to thank Chairman LOBIONDO and all of the others for sponsoring this piece of legislation and for joining me to make sure the FAA goes through the proper channels in issuing this regulation.

Similar legislation addressing sleep apnea for truckers was passed by both the House and Senate last fall, and it was signed by the President. I hope my House colleagues will join me in supporting this similarly commonsense piece of legislation.

Mr. LARSEN of Washington. Mr. Speaker, I continue to reserve the balance of my time.

Mr. LOBIONDO. Mr. Speaker, I would like to yield 3 minutes to the gentleman from New York (Mr. HANNA).

Mr. HANNA. I thank the gentleman from New Jersey.

Mr. Speaker, I rise today in support of H.R. 3578, which would require the FAA to conduct a formal rulemaking process for sleep apnea certifications for pilots and air traffic controllers.

As a member of both the Small Business Committee and the Transportation Committee and as a pilot, I am deeply concerned that complex Federal regulations and bureaucracy are hurting America's aviation industry.

When deemed absolutely necessary, new FAA rules should follow a transparent and open process that includes strong oversight and input from all stakeholders. The proposed sleep apnea regulation was a broad administration guidance with no oversight or input. Furthermore, this is yet another example of the administration's regulating in search of a problem.

According to the Civil Aviation Medical Association, there is no scientific evidence that sleep apnea has compromised aviation safety. According to yesterday's Washington Post, the number of small planes flying across this country has fallen by nearly 200,000 since 1980. The production of single-engine airplanes has fallen twentyfold to below 700 per year.

We need to ensure that any regulations help, not hinder, the aviation industry in growing and prospering. Across the Nation, nearly 1.2 million workers depend on the general aviation industry. This is especially true in rural upstate New York. I encourage the FAA to ensure that we promote safety in a way that is consistent with growing our vital aviation industry and so that it makes sense in the real world.

H.R. 3578 would require the FAA to follow a proven and transparent process when issuing rules, so I urge my colleagues to support this bill.

Mr. LARSEN of Washington. Mr. Speaker, I continue to reserve the balance of my time.

Mr. LOBIONDO. Mr. Speaker, how much time remains?

The SPEAKER pro tempore. The gentleman from New Jersey has 11 minutes remaining.

Mr. LOBIONDO. Mr. Speaker, I now yield 3 minutes to the gentleman from Indiana (Mr. BUCSHON). I thank him for his help on this issue.

Mr. BUCSHON. Mr. Speaker, I rise today in support of this bill.

Less than 6 months ago, the House passed my bill, which requires the Department of Transportation to address the issue of sleep apnea for truck drivers through a rule and not guidance, potentially saving the industry $1 billion. Unfortunately, our Nation's pilots and air traffic controllers are facing a similar arbitrary guidance issued by

the FAA, and we have brought a bill to the floor to protect them.

As a doctor, I know firsthand that sleeping disorders are incredibly serious and can be very dangerous. However, I also know that you can't diagnose any patient by a set of arbitrary guidelines and stereotypes. Like any major disease, it can only be diagnosed through proper testing and conversation with a doctor. Issuing guidance based on nonmedical factors on this issue for pilots and air traffic controllers will cause doctors to order unnecessary tests, driving up the costs of health care and potentially affecting our Nation's airline travelers.

I urge all of my colleagues to vote ''yes'' on this piece of legislation.

Mr. LARSEN of Washington. Mr. Speaker, I continue to reserve the balance of my time.

Mr. LOBIONDO. Mr. Speaker, I do not have any more speakers, and I am prepared to close when Mr. LARSEN is finished.

Mr. LARSEN of Washington. Mr. Speaker, in closing, I would like to again ask my colleagues to support this legislation. It is bipartisan. We have worked hard to get it here quickly, and we appreciate people supporting this.

With that, I yield back the balance of my time.

Mr. LOBIONDO. Mr. Speaker, in closing, I again thank my colleague Mr. LARSEN and colleagues who were interested in this issue.

I would like to reiterate that this bill is about transparency and about working with stakeholders, two areas in which the Federal Government desperately needs to improve. I strongly urge all of my colleagues to support the bill.

I yield back the balance of my time.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from New Jersey (Mr. LOBIONDO) that the House suspend the rules and pass the bill, H.R. 3578, as amended.

The question was taken.

The SPEAKER pro tempore. In the opinion of the Chair, two-thirds being in the affirmative, the ayes have it.

Mr. LOBIONDO. Mr. Speaker, I object to the vote on the ground that a quorum is not present and make the point of order that a quorum is not present.

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, further proceedings on this question will be postponed.

The point of no quorum is considered withdrawn.

□ 1530

SMALL CAP LIQUIDITY REFORM ACT OF 2013

Mr. GARRETT. Mr. Speaker, I move to suspend the rules and pass the bill (H.R. 3448) to amend the Securities Exchange Act of 1934 to provide for an optional pilot program allowing certain emerging growth companies to increase the tick sizes of their stocks, as amended.

The Clerk read the title of the bill.

The text of the bill is as follows:

H.R. 3448

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Small Cap Liquidity Reform Act of 2014''.

SEC. 2. LIQUIDITY PILOT PROGRAM FOR SECURITIES OF CERTAIN EMERGING GROWTH COMPANIES.

(a) IN GENERAL.—Section 11A(c)(6) of the Securities Exchange Act of 1934 (15 U.S.C. 78k–1(c)(6)) is amended to read as follows:

''(6) LIQUIDITY PILOT PROGRAM FOR SECURITIES OF CERTAIN EMERGING GROWTH COMPANIES.—

''(A) QUOTING INCREMENT.—Beginning on the date that is 90 days after the date of the enactment of the Small Cap Liquidity Reform Act of 2014, the securities of a covered emerging growth company shall be quoted using—

''(i) a minimum increment of $0.05; or

''(ii) if, not later than 60 days after such date of enactment, the company so elects in the manner described in subparagraph (D)—

''(I) a minimum increment of $0.10; or

''(II) the increment at which such securities would be quoted without regard to the minimum increments established under this paragraph.

''(B) TRADING INCREMENT.—In the case of a covered emerging growth company the securities of which are quoted at a minimum increment of $0.05 or $0.10 under this paragraph, the Commission shall determine the increment at which the securities of such company are traded.

''(C) FUTURE RIGHT TO OPT OUT OR CHANGE MINIMUM INCREMENT.—

''(i) IN GENERAL.—At any time beginning on the date that is 90 days after the date of the enactment of the Small Cap Liquidity Reform Act of 2014, a covered emerging growth company the securities of which are quoted at a minimum increment of $0.05 or $0.10 under this paragraph may elect in the manner described in subparagraph (D)—

''(I) for the securities of such company to be quoted at the increment at which such securities would be quoted without regard to the minimum increments established under this paragraph; or

''(II) to change the minimum increment at which the securities of such company are quoted from $0.05 to $0.10 or from $0.10 to $0.05.

''(ii) WHEN ELECTION EFFECTIVE.—An election under this subparagraph shall take effect on the date that is 30 days after such election is made.

''(iii) SINGLE ELECTION TO CHANGE MINIMUM INCREMENT.—A covered emerging growth company may not make more than one election under clause (i)(II).

''(D) MANNER OF ELECTION.—

''(i) IN GENERAL.—An election is made in the manner described in this subparagraph by informing the Commission of such election.

''(ii) NOTIFICATION OF EXCHANGES AND OTHER TRADING VENUES.—Upon being informed of an election under clause (i), the Commission shall notify each exchange or other trading venue where the securities of the covered emerging growth company are quoted or traded.

''(E) ISSUERS CEASING TO BE COVERED EMERGING GROWTH COMPANIES.—

''(i) IN GENERAL.—If an issuer the securities of which are quoted at a minimum increment of $0.05 or $0.10 under this paragraph ceases to be a covered emerging growth company, the securities of such issuer shall be quoted at the increment at which such securities would be quoted without regard to the minimum increments established under this paragraph.

''(ii) EXCEPTIONS.—The Commission may by regulation, as the Commission considers appropriate, specify any circumstances under which an issuer shall continue to be considered a covered emerging growth company for purposes of this paragraph after the issuer ceases to meet the requirements of subparagraph (L)(i).

''(F) SECURITIES TRADING BELOW $1.—

''(i) INITIAL PRICE.—

''(I) AT EFFECTIVE DATE.—If the trading price of the securities of a covered emerging growth company is below $1 at the close of the last trading day before the date that is 90 days after the date of the enactment of the Small Cap Liquidity Reform Act of 2014, the securities of such company shall be quoted using the increment at which such securities would be quoted without regard to the minimum increments established under this paragraph.

''(II) AT IPO.—If a covered emerging growth company makes an initial public offering after the day described in subclause (I) and the first share of the securities of such company is offered to the public at a price below $1, the securities of such company shall be quoted using the increment at which such securities would be quoted without regard to the minimum increments established under this paragraph.

''(ii) AVERAGE TRADING PRICE.—If the average trading price of the securities of a covered emerging growth company falls below $1 for any 90-day period beginning on or after the day before the date of the enactment of the Small Cap Liquidity Reform Act of 2014, the securities of such company shall, after the end of such period, be quoted using the increment at which such securities would be quoted without regard to the minimum increments established under this paragraph.

''(G) FRAUD OR MANIPULATION.—If the Commission determines that a covered emerging growth company has violated any provision of the securities laws prohibiting fraudulent, manipulative, or deceptive acts or practices, the securities of such company shall, after the date of the determination, be quoted using the increment at which such securities would be quoted without regard to the minimum increments established under this paragraph.

''(H) INELIGIBILITY FOR INCREASED MINIMUM INCREMENT PERMANENT.—The securities of an issuer may not be quoted at a minimum increment of $0.05 or $0.10 under this paragraph at any time after—

''(i) such issuer makes an election under subparagraph (A)(ii)(II);

''(ii) such issuer makes an election under subparagraph (C)(i)(I), except during the period before such election takes effect; or

''(iii) the securities of such issuer are required by this paragraph to be quoted using the increment at which such securities would be quoted without regard to the minimum increments established under this paragraph.

''(I) ADDITIONAL REPORTS AND DISCLOSURES.—The Commission shall require a covered emerging growth company the securities of which are quoted at a minimum increment of $0.05 or $0.10 under this paragraph to make such reports and disclosures as the Commission considers necessary or appropriate in the public interest or for the protection of investors.

''(J) LIMITATION OF LIABILITY.—An issuer (or any officer, director, manager, or other agent of such issuer) shall not be liable to

any person (other than such issuer) under any law or regulation of the United States, any constitution, law, or regulation of any State or political subdivision thereof, or any contract or other legally enforceable agreement (including any arbitration agreement) for any losses caused solely by the quoting of the securities of such issuer at a minimum increment of $0.05 or $0.10, by the trading of such securities at the increment determined by the Commission under subparagraph (B), or by both such quoting and trading, as provided in this paragraph.

''(K) REPORT TO CONGRESS.—Not later than 6 months after the date of the enactment of the Small Cap Liquidity Reform Act of 2014, and every 6 months thereafter, the Commission, in coordination with each exchange on which the securities of covered emerging growth companies are quoted or traded, shall submit to Congress a report on the quoting and trading of securities in increments permitted by this paragraph and the extent to which such quoting and trading are increasing liquidity and active trading by incentivizing capital commitment, research coverage, and brokerage support, together with any legislative recommendations the Commission may have.

''(L) DEFINITIONS.—In this paragraph:

''(i) COVERED EMERGING GROWTH COMPANY.—The term 'covered emerging growth company' means an emerging growth company, as defined in the first paragraph (80) of section 3(a), except that—

''(I) such paragraph shall be applied by substituting '$750,000,000' for '$1,000,000,000' each place it appears; and

''(II) subparagraphs (B), (C), and (D) of such paragraph do not apply.

''(ii) SECURITY.—The term 'security' means an equity security.

''(M) SAVINGS PROVISION.—Notwithstanding any other provision of this paragraph, the Commission may—

''(i) make such adjustments to the pilot program specified in this paragraph as the Commission considers necessary or appropriate to ensure that such program can provide statistically meaningful or reliable results, including adjustments to eliminate selection bias among participants, expand the number of participants eligible to participate in such program, and change the duration of such program for one or more participants; and

''(ii) conduct any other study or pilot program, in conjunction with or separate from the pilot program specified in this paragraph (as such program may be adjusted pursuant to clause (i)), to evaluate quoting or trading in various minimum increments.''.

(b) SUNSET.—Effective on the date that is 5 years after the date of the enactment of this Act, section 11A(c)(6) of the Securities Exchange Act of 1934 (15 U.S.C. 78k–1(c)(6)) is repealed.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from New Jersey (Mr. GARRETT) and the gentleman from Delaware (Mr. CARNEY) each will control 20 minutes.

The Chair recognizes the gentleman from New Jersey.

GENERAL LEAVE

Mr. GARRETT. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days within which to revise and extend their remarks and submit extraneous materials for the RECORD on H.R. 3448, as amended, currently under consideration.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from New Jersey?

There was no objection.

Mr. GARRETT. Mr. Speaker, I yield myself such time as I may consume.

I rise in support of H.R. 3448, the Small Cap Liquidity Reform Act of 2013. This bill, approved by a vote of 57–0 in the Financial Services Committee last year, represents yet again another bipartisan and commonsense effort by the House to promote small business capital formation.

I want to thank the gentleman from Wisconsin (Mr. DUFFY) for all of his hard work and leadership in bringing this very important piece of legislation to the floor. I also would like to thank Mr. CARNEY from Delaware for all of his hard work and support for this legislation as well.

What are we talking about here?

Today, many small, publicly traded companies are finding it more and more difficult to attract investor demand and trading liquidity for their stocks. As a result, these companies may have trouble obtaining the investor capital they need for their companies to grow and create jobs.

H.R. 3448 would begin to address this liquidity crunch by testing, through a pilot program, whether increasing the minimum trading increment, also called the ''tick'' size, for certain emerging growth company stocks, or EGCs, from a penny to 5 cents or 10 cents would promote liquidity by incentivizing market makers and others investors to trade these stocks, and by concentrating this trading interest around fewer price points.

All of this may sound like a lot of Wall Street and stock market jargon, but at its core this bill is a simple bill aimed at helping small American companies obtain the capital that they need from investors so that they can grow their businesses.

What the bill does is leave most of the details of designing and administering the tick size pilot program to the experts at the SEC. As a result, the SEC should have the discretion it needs to devise a pilot program that reflects the views of all market participants and interested parties, and that generates the maximum amount of deep and useful data on how different tick sizes impact trading liquidity in small-cap stocks.

By first establishing a temporary pilot program, this bill will ensure that any potential and permanent changes to tick sizes that may be done sometime in the future will be done only in a thoughtful, incremental, and data-driven manner.

The data generated from this pilot program may also be useful into how other aspects of the stock market work, but on this point, let me be clear. This bill is focused on improving small business capital formation. This is not a bill to reform the fundamental structure of U.S. equity markets, nor is it intended to be a substitute for a more detailed, holistic review by the SEC of how these markets work.

Ultimately, there are no guarantees that a tick size pilot program will achieve the desired results and that the benefits of any future action on tick sizes will outweigh the cost, but we should all be agreed that this commonsense approach will help small businesses grow. It is worth trying, and we need many more like it.

Again, I will conclude by saying that this bill was approved by the Financial Services Committee 57–0. In addition, many market participants, as well as SEC Chair White; at least two of her colleagues, Commissioners Gallagher and Piwowar; and the SEC's Advisory Committee on Small and Emerging Companies, have all vocally supported the concept of a tick size pilot program.

So I hope that this legislation will serve as a final push forward getting this tick size program forward and moving off the ground. I urge my colleagues to, again, promote small business capital formation by passing H.R. 3448, and I urge my friends over in the Senate to take up this bill immediately as well.

With that, I reserve the balance of my time.

Mr. CARNEY. Mr. Speaker, I yield myself such time as I may consume.

I rise in support of H.R. 3448. I would like to thank Mr. GARRETT, chairman of the Capital Markets Subcommittee. Particularly, I would like to thank the gentleman from Wisconsin (Mr. DUFFY) for his good work on this piece of legislation. I certainly enjoyed working with him on it.

I particularly want to applaud Mr. DUFFY for his willingness to address concerns raised by stakeholders, members of the committee, and those we heard from during the hearing on this bill. I appreciate his commitment to working in a bipartisan way in developing good and workable policy in this legislation.

As has been already said, the purpose of our bill is really pretty simple. We know that small businesses are the engine of job creation in this country. We want to encourage investors to take a closer look at small businesses and invest in them so that they can continue to grow and create jobs once they have gone public.

In my home State of Delaware, as a corporate center, we have a lot of people who spend a lot of time paying attention to corporate formation and corporate governance. In a former life as the State secretary of finance and as Lieutenant Governor, I worked with a lot of these people. They have been following the trends over the past 10 years, and they have seen and observed the decline in IPOs and the changes in the growth of emerging growth companies after going public.

That is why last year I worked with my colleague, Mr. FINCHER from Tennessee, on a provision in the JOBS Act that created an onramp for companies to go public. The bill has already been credited with helping fuel the recent uptick we have seen in the initial public offerings, which is very good for job

growth in this economy. H.R. 3448 builds on that work by helping companies grow after their IPO.

Our hope, as has been described, is that increasing the increments that stocks trade in will draw more attention to these small emerging growth companies. We hope that brokers will spend more time and resources researching these companies and, ultimately, encourage greater investment in them. This increased coverage from brokers and analysts will help small companies grow and create jobs.

We have heard concerns about some unintended consequences that increased tick size could have, which is why this bill instructs the SEC to conduct a pilot program to better examine the effects and effectiveness of larger spreads. Additionally, this bill gives the SEC the flexibility to implement a pilot program in a way that will produce the best information on how to proceed afterwards.

Thanks to members and staff on both sides of the aisle working closely together, we were able to come up with a bill that makes sense and that addresses the concerns that we heard from other members, from stakeholders, and from the Financial Services Committee hearing that we had.

The four amendments accepted in the committee were all consistent with our original objective. Each improved the bill based on input that we received from members and stakeholders.

This bill is truly a bipartisan effort. As Mr. GARRETT pointed out, it passed out of the committee on a 57–0 vote. As with any piece of legislation, once we got into the weeds, it turned out to be a little bit more complicated than we initially thought, but the end result is a good product that Members on both sides of the aisle can support.

I want to close by again thanking Mr. DUFFY and his staff for their hard work and for working together with us and involving us in the discussions about the particulars of this bill.

I urge Members on both sides of the aisle to support H.R. 3448, the Small Cap Liquidity Reform Act of 2013.

I yield back the balance of my time.

Mr. GARRETT. Mr. Speaker, I yield such time as he may consume to the gentleman from Wisconsin (Mr. DUFFY), the prime sponsor of this legislation and the gentleman who has been the driving force behind this idea.

Mr. DUFFY. Thank you, Mr. Chairman, for yielding time.

As both you and the gentleman from Delaware mentioned, it is pretty remarkable that on the Financial Services Committee, a committee which comes together and doesn't always agree on the particulars of every debate that we have, that this bill came out with a vote of 57–0, moving it forward, which I think underscores the fact that there was a lot of work put in on the front end, making sure we were working out the kinks and the concerns.

I am very appreciative of Mr. CARNEY from Delaware and all the effort and help he put in, and for Mr. GARRETT's help in making sure that we could put a package together that we can get a lot of folks to buy into.

We all realize that job creation, especially in a slower moving economy, is incredibly important. Job creation at the higher levels comes from our small businesses, our emerging growth companies. As Mr. CARNEY earlier referenced, that is why Financial Services came together and passed a bill out of the House, along with the Senate moving it, and the President signing, the JOBS Act, which helped emerging growth companies actually get on the onramp and go public, accessing more and better capital.

What we have seen, though, are a few concerns from those small emerging growth companies that are going public that they are not as easily accessing capital as I thought they may. That is why we have come together to start a pilot program to see if we can enhance the interest and the capital and liquidity of these emerging growth companies.

It really is not very complicated, as Mr. GARRETT indicated. This is a 5-year pilot program. So if things don't go as expected, the program will end. If it goes as well as we think it may, we can continue this on permanently.

We are truly looking at small emerging growth companies—those that have revenue of less than $750 million a year. Again, the small, fast-growing companies. It is a small space of the market. It is only 2 percent of trading on and off exchanges.

There has been a lot of debate as we have done this about what is an appropriate model to use when we increase the tick size. Do we do a trade-at, a quote-at, midpoint matches? A lot of people came to us with a lot of different ideas. All of us realized there is a larger debate going on right now that involves our ''dark pools'' and our exchanges.

To be very clear, no one here who worked on this legislation wants to impact that debate in this field. The intent of this bill is not to influence that debate at all. It is really very specifically and narrowly tailored to help small businesses as they look for additional capital to grow and create more jobs.

That is why we have given the SEC the ability to set up different baskets or different segments. One can be a trade-at, one can have price improvement of a different variation, but allowing us to get good quality data that will help us make decisions as we move forward.

One other thing: companies that may not want to participate will have the option to opt out if they don't feel like this kind of a program would work for them.

I just want to say I very much appreciate the gentleman from Delaware and the chairman from New Jersey for all the effort they have put into this bill. I hope that our colleagues, after seeing the great support that we had in the committee, will support this bill today.

□ 1545

Mr. GARRETT. Mr. Speaker, I believe the gentleman from Delaware has already yielded back. So, at this point, I would just like to again thank the gentleman from Delaware for his work, the gentleman from Wisconsin for his leadership on this issue.

And, also on his page, I saw written in a large number was the magic number 57–0. I hope that does send a resounding message over to the other body, to the Senate, to do as they have not been doing for the last 14 months, which is to take up some of these good job-creation bills, a bill that helps promote jobs and small businesses in this country.

Mr. Speaker, I yield back the balance of my time.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from New Jersey (Mr. GARRETT) that the House suspend the rules and pass the bill, H.R. 3448, as amended.

The question was taken.

The SPEAKER pro tempore. In the opinion of the Chair, two-thirds being in the affirmative, the ayes have it.

Mr. CARNEY. Mr. Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, further proceedings on this motion will be postponed.

REPORT ON RESOLUTION PROVIDING FOR CONSIDERATION OF S. 540, PATRICIA CLARK BOSTON AIR ROUTE TRAFFIC CONTROL CENTER, AND FOR OTHER PURPOSES

Mr. WOODALL, from the Committee on Rules, submitted a privileged report (Rept. No. 113–351) on the resolution (H. Res. 478) providing for consideration of the bill (S. 540) to designate the Air Route Traffic Control Center located in Nashua, New Hampshire, as the ''Patricia Clark Boston Air Route Traffic Control Center'', and for other purposes, which was referred to the House Calendar and ordered to be printed.

PROVIDING FOR CONSIDERATION OF S. 540, PATRICIA CLARK BOSTON AIR ROUTE TRAFFIC CONTROL CENTER, AND FOR OTHER PURPOSES

Mr. WOODALL. Mr. Speaker, by direction of the Committee on Rules, I call up House Resolution 478 and ask for its immediate consideration.

The Clerk read the resolution, as follows:

H. RES. 478

Resolved, That upon adoption of this resolution it shall be in order to consider in the House the bill (S. 540), to designate the air route traffic control center located in Nashua, New Hampshire, as the ''Patricia Clark

Boston Air Route Traffic Control Center''. All points of order against consideration of the bill are waived. An amendment in the nature of a substitute consisting of the text of sections 1 through 3 of Rules Committee Print 113–37 shall be considered as adopted. The bill, as amended, shall be considered as read. All points of order against provisions in the bill, as amended, are waived. The previous question shall be considered as ordered on the bill, as amended, and on any amendment thereto to final passage without intervening motion except: (1) one hour of debate equally divided and controlled by the Majority Leader and Minority Leader or their respective designees; and (2) one motion to recommit with or without instructions.

SEC. 2. House Resolution 475 is amended in section 2 by striking ''February 13, 2014'' and inserting ''February 12, 2014''.

The SPEAKER pro tempore (Mr. WOMACK). The gentleman from Georgia is recognized for 1 hour.

Mr. WOODALL. Mr. Speaker, for the purpose of debate only, I yield the customary 30 minutes to my friend from New York (Ms. SLAUGHTER), pending which I yield myself such time as I may consume. During consideration of this resolution, all time yielded is for the purpose of debate only.

GENERAL LEAVE

Mr. WOODALL. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days to revise and extend their remarks.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Georgia?

There was no objection.

Mr. WOODALL. Mr. Speaker, H. Res. 478 provides a closed rule for the consideration of S. 540.

Now, if you heard the Clerk read S. 540, you might not have understood why we were here today. He read it exactly as it is drafted in the title, but we are here today to move a clean debt ceiling.

Now, I won't tell you, Mr. Speaker, that I am excited about being down here today. I am excited to be carrying the rule, because I believe this is the way that regular order ought to operate. But I came here, as you did, Mr. Speaker, and as so many of my colleagues did on the other side of the aisle, to try to move the needle, to try to move the needle on Federal spending, to try to move the needle on the borrowing that is going on from our children and our grandchildren.

We talk so often back home, Mr. Speaker, about raising taxes. In fact, so many folks in this Chamber have signed a pledge to say I will never raise taxes on the American people, and I admire that sentiment. But, Mr. Speaker, when we have a vote to raise the debt ceiling, debt that has to be paid, we are, in effect, raising taxes on the American taxpayer.

Now, it is not a surprise to anyone in this Chamber. I sit on the Budget Committee. Anyone who has looked at the budget understands that we don't have enough revenue to pay our bills.

In fact, Mr. Speaker, I have the great pleasure of being on the Republican Study Committee as chair of their Budget and Spending Task Force. I had an opportunity last year to offer the most conservative budget offered in this Chamber—the most conservative budget offered in this Chamber—and we had to continue borrowing money as far as the eye can see.

When RAND PAUL was elected to the United States Senate among much fanfare—lots of conservatives across the country looking to RAND PAUL for guidance, and rightfully so—he dropped a budget in the United States Senate, the most conservative budget introduced at that time in Washington, D.C., balanced the budget in 3 years by abolishing agency after agency after agency, sentiments that I happen to agree with wholeheartedly but know that we don't have the votes to achieve, and even that budget required borrowing money from our children and our grandchildren for the next 3 years.

So it is not a happy day that we are here, Mr. Speaker. The happy day, I would argue, was back in August of 2011. I was a young freshman Member, Mr. Speaker. I remember it because it was the kind of vote that you ran for Congress to take. We were here, and the news commentators were back and forth; is it the right deal? Is it the wrong deal? JOHN BOEHNER and President Barack Obama engaged in debate at the White House night after night after night, and suddenly, a deal was reached.

Now, as has been my experience in my 3 years in this Chamber, Mr. Speaker, the term ''a deal has been reached'' 100 percent of the time means what ROB WOODALL wanted didn't happen. It is funny how that works out. I get one voice out of 435, and so when I have to send my Speaker down to the White House and negotiate with not just one President but 100 more Senators, I don't get what I wanted.

But what I did get in August of 2011, Mr. Speaker, was an agreement that, if we raised the debt ceiling, if we agreed to further encumber our children and our grandchildren, as everyone in this Chamber knows that the current laws of the books require us to do, we would take a step, a $2 trillion step to try to make sure that we didn't have to raise the debt ceiling again.

It didn't contain what anybody thought was the 100 percent right plan, Mr. Speaker, but it was a proposal that we could come together around—not just we Republicans; not we, the House of Representatives; not we, Capitol Hill, with the Senate; but we, the elected representatives of the American people, from the White House to the U.S. House to the United States Senate.

We have come 2½ years, Mr. Speaker, and we have done some amazing things. I created No Budget, No Pay last year, for example, Mr. Speaker, which attached an increase in the debt ceiling to the requirement that we pass a budget out of this House and that they pass a budget out of the Senate, allowing us to come together to produce the first budget this institution has seen since I have been elected to the Congress, the first one. Not the first House-passed budget—we do that every year; it is our responsibility; of course we do—but the first one with which we found agreement with the Senate and received a Presidential signature.

Mr. Speaker, the debt limit is a constant reminder of the imbalance of America's taxing and spending. We have a spending problem in this Nation. Everyone in this Chamber knows it. And the debt ceiling is an opportunity for us to come together and find solutions.

And try as hard as he might, Mr. Speaker, when the Speaker of this United States House dug deep to try to find those answers, he could find none. Not that there were no answers out there—of course there are—but there were not answers out there that could receive the approval of this body, the approval of the Senate, and the signature of the President.

I have to ask why, because there is not a man or woman who is going to come into this Chamber today who does not know that we need to take steps to address the problem. And dadgummit, Mr. Speaker, there is not a man or woman in this Chamber who doesn't know we have the ability to do it, because we have done it before—not 100 years ago, not 50 years ago, but just 3 years ago, with largely the same folks that are here today.

That is not what this rule is bringing to the Floor today, but what it is bringing to the Floor is a clean debt ceiling resolution. This should be a day on which we are coming together around solutions to that longer-term spending problem, but we find ourselves here today simply trying to bring America back from an economic brink the likes of which not a single Member of this Chamber wants America to see.

Mr. Speaker, I reserve the balance of my time.

Ms. SLAUGHTER. Mr. Speaker, I thank the gentleman for yielding me the customary 30 minutes and yield myself such time as I may consume.

Mr. Speaker, just a few weeks ago it appeared as though the crises that had come to define this Congress maybe were coming to an end. In a rare show of bipartisanship, Democrats in the Senate and Republicans in the House passed a budget compromise that set the spending levels for the next 2 years. As was clear at the time of its passage, the bipartisan budget agreement authorized spending well beyond the current debt limit. Despite that fact, 166 members of the majority voted to authorize the spending and to increase the Nation's debt. At that time, a member of the majority declared that passing the legislation would be the responsible thing to do, and, indeed, it was.

Now, today, we are going to find out whether that moment of responsibility

was an aberration or a sign of things to come. The majority has a simple choice today. We understand they don't have the votes to pass this. And the Democrats, as they have been on so many other things we have tried to get to the floor, are more than willing to do our part for our country because that, Mr. Speaker, is why we were elected to come here.

The majority has a choice today: act responsibly and pay the country's bills which they voted for, some of them, or trigger another economic panic by threatening default.

For decades, up till about 2011, which was just held up as a landmark here, no matter which party was in charge, Congress always raised the debt ceiling without hesitation or pause. In the years that I have been here, there was never any notion of having to pay a ransom to get the side that you were not on to do what its duty called for. But in recent years, the majority doubts the seriousness of this responsibility and dared the global financial system to punish them for their malfeasance.

Although we need no reminder, in 2011, the majority of this Chamber demanded ransom in exchange for an increase in the debt ceiling. The self-inflicted wound that followed sparked the most volatile week for the financial markets since 2008, when we had the financial crisis, and resulted in the credit rating agency Standard & Poor's downgrading our Nation's credit rating for the first time in history. And for what? Some notion that they didn't have to meet their responsibility.

In the years since, the majority has continued to play this dangerous game of political hostage taking that hurts our economy, and even caused a 16-day government shutdown. And that shutdown, Mr. Speaker, let me remind the people of America, took $24 billion out of our economy for absolutely nothing.

Even when it has been clear that there is only one way out of a self-inflicted crisis such as the government shutdown, the majority pursued an approach that can be summarized as ''only when we have tied ourselves in legislative knots, only when we have thrown the economy into turmoil, only after we have frightened employers from hiring and given global investors pause, we will do the right thing,'' as we are doing today.

□ 1600

This irresponsible approach has particularly drawn the ire of the American people and dragged the approval ratings of the House of Representatives to historic lows. Today I urge the majority to follow the lead of the Democrat leadership, my colleagues, and me and do the right things first instead of last.

I urge my colleagues to vote ''yes'' on today's rule—and that, by itself, is wonderful for me to do; it feels good—and the underlying legislation so that we can honor the commitments this Congress has made and protect the full faith and credit of the United States. We are charged to do no less.

I reserve the balance of my time.

Mr. WOODALL. Mr. Speaker, I would mention to my friend from New York that if she has no further requests for time, I am prepared to close.

Ms. SLAUGHTER. Mr. Speaker, I yield myself the balance of my time.

As I have said, the question before us today is a simple one: Are we going to pay the country's bills or will the United States become a deadbeat nation? This is not a question of increasing our Nation's spending. That question was answered when 166 Members of the majority voted to spend beyond the Nation's debt ceiling by passing the bipartisan budget agreement just a few weeks ago.

Today is simply a matter of paying our bills when they come due, as real Americans do, and we should follow suit. So when this is coming due, we hope after today, we will be able to pay ours.

For our part, my Democratic colleagues and I are ready to do the right thing—and have been for some time—by increasing our Nation's debt ceiling and protecting the full faith and credit of the United States of America. I urge my colleagues to vote ''yes'' on today's rule and the underlying legislation.

I yield back the balance of my time.

Mr. WOODALL. Mr. Speaker, I yield myself such time as I may consume.

I am one of those Members the gentlelady from New York referenced, one of those Members who voted in favor of an appropriations bill that funds the government for this year. In fact, I have voted for the House-passed budget and the Republican Study Committee budget in each and every year that I have been in this institution. What is unique about those votes, Mr. Speaker, is they absolutely understand that we are going to have to spend money that we don't have, but they take steps to make the problem better instead of worse.

I want to take issue with what my friend from New York said about a raising of the debt ceiling with absolutely no strings attached as being the responsible thing to do. It is absolutely not. It is the worst-case scenario.

Now, I am going to have colleagues on the floor today, Mr. Speaker, who are petrified of what happens if we don't do this today. They are petrified that even though we know we can come together and find a solution forward, find a solution that makes the problem better instead of worse, they are petrified that they do not have a willing partner in the President or with the Senate. So unless they vote to pass this bill today, America faces default, and that is an awful box, an awful box that my friends have painted.

I want to read a few quotes, Mr. Speaker. I think words matter. This is from 2006, as a young Senator Barack Obama faced a debt limit increase in the United States Senate, and he said this—and I just want to point out, because my friend from New York talked about the obviousness of this vote, how clearly this is the right thing to do, just to raise the debt ceiling to whatever amount folks would like.

Here is what Senator Barack Obama said in 2006. He said: The fact that we are even here today to debate raising America's debt limit is a sign of leadership failure. Leadership means the buck stops here. Instead, Washington is shifting the burdens of bad choices today onto the backs of our children and grandchildren.

Then-Senator Barack Obama goes on, Mr. Speaker. He said: America has a debt problem and a failure of leadership. America deserves better. Therefore, I intend to oppose this effort to increase America's debt limit.

I don't have to say it very often, Mr. Speaker, but when the President is right, he is right. This was an opportunity to come together and one that we searched for, searched for.

There is not a man or woman in this town who wants to find a path forward more than our Speaker, JOHN BOEHNER, does. There is no one who has sweated to find that opportunity more than our Speaker has. Yet without a willing partner in the White House or the Senate, it can't happen.

The same here, Mr. Speaker, 2006. Then-Senator JOE BIDEN says this: The President's budget plans will bring our debt to $11.8 trillion at the end of the next 5 years. This is a record of utter disregard for our Nation's financial future.

Mr. Speaker, $11.8 trillion is what JOE BIDEN was concerned about. That number reached $16 trillion within that same time period.

He goes on: It is a record of indifference to the price our children and grandchildren will pay to redeem our debt when it comes due. History will not judge this record kindly. My vote against the debt limit increase cannot change the fact that we have incurred this debt already and will, no doubt, incur more. It is a statement that I refuse to be associated with, the policies that brought us to this point.

Mr. Speaker, 2010, then-Chairman of the Joint Chiefs of Staff Admiral Mike Mullen said this: Our national debt is our biggest national security threat. Not terrorism, not al Qaeda, not a rogue nation, but our debt.

Mr. Speaker, it is hard to deal with our debt. If it was easy, we wouldn't have the debt to begin with. It is hard, but I have seen us come together to fix it before. A $2 trillion worth of difference we came together to make 3 years ago, not even. Yet today, we find ourselves unable to find that path.

Mr. Speaker, with the indulgence of my friend from New York—I would very much appreciate it—I yield 2 minutes to the gentleman from Texas (Mr. BARTON).

I thank my friend from New York.

Mr. BARTON. Mr. Speaker, I thank both my friend on the majority side and my friend on the minority side for allowing me this unusual procedure.

I do rise in support of the rule. I am going to vote for the rule. But, Mr. Speaker, I am going to oppose the underlying bill on the debt ceiling.

I have brought some materials that have been prepared by the Congressional Research Service with materials that were provided by the Office of Management and Budget that show in the fiscal year that we are now engaged, mandatory spending is 62 percent of the total budget, and interest on the debt is over 6 percent. Those two combined are two-thirds of all total spending, mandatory spending and interest on the debt.

It is not going to get any easier, Mr. Speaker, to solve this problem by passing so-called clean debt ceilings that don't address the underlying problem. I understand the problems governing on the majority side, and I understand the issues with the Presidency and the Senate being controlled by the Democrats. I understand that.

But I couldn't walk into a bank in Ennis, Texas, today and say, I owe you $300,000 right now, but I want to borrow another $200,000. They would want to know what plan I had to repay the money I had already borrowed, and they would want to know how giving me another $200,000 would actually be the appropriate thing to do.

What we are doing on the underlying bill, Mr. Speaker, with this so-called clean debt ceiling is simply saying, we want to borrow—I am not sure how much it is—probably 600 or $700 billion, where we already owe $17 trillion. We have no plan to repay the money we have already borrowed and certainly have no plan to repay the money we are going to borrow.

So my comment today is, this Congress should be addressing this problem in a bipartisan fashion today. We will be back here in March of next year. We will have the same debate. So I will be voting ''no'' later this evening.

I do thank my good friend from Georgia and my good friend from New York for allowing me to speak.

FEDERAL GOVERNMENT OUTLAYS SINCE FY1984, VARIOUS MEASURES

[Data from FY2014 OMB Public Budget Database]

	fy1984	fy1985	fy1986	fy1987	fy1988	fy1989	fy1990	fy1991	fy1992	fy1993	fy1994	fy1995	fy1996	fy1997
Gross Domestic Product ($billions)	3844.4	4146.3	4403.9	4651.4	5008.5	5399.5	5734.5	5930.5	6242	6587.3	6976.6	7341.1	7718.3	8211.7
GDP Price Index	0.5986	0.618	0.6323	0.6492	0.67	0.696	0.7216	0.749	0.7685	0.7854	0.802	0.819	0.8348	0.8502
Population	2.36E+08	2.38E+08	2.40E+08	2.42E+08	2.45E+08	2.47E+08	2.50E+08	2.52E+08	2.55E+08	2.58E+08	2.60E+08	2.63E+08	2.65E+08	2.68E+08
Outlays, in $Billions:														
Discretionary Outlays	379.5	415.8	438.5	444.2	464.4	488.9	500.6	533.3	533.8	539.7	541.4	544.8	532.8	547.1
Defense (function 050)	228.1	253.1	273.8	282.6	290.9	304.1	300.2	319.7	302.6	292.4	282.3	273.6	266.0	271.7
Non-Defense (all other)	151.4	162.7	164.7	161.6	173.5	184.8	200.4	213.6	231.2	247.3	259.1	271.2	266.8	275.4
Mandatory	361.3	401.0	415.8	421.3	448.2	485.9	568.1	596.5	648.4	670.9	717.4	738.9	786.8	810.1
Net interest	111.1	129.5	136.0	138.6	151.8	168.9	184.4	194.4	199.3	198.7	203.0	232.2	241.0	244.0
Total	852	046	990	1,004	1,064	1,144	1,253	1,324	1,382	1,409	1,462	1,516	1,561	1,601
Constant FY2013 dollars (billions, using CDP price index; FY2014 OMB projections):														
Discretionary Outlays	750	796	820	809	820	831	821	842	822	813	799	787	755	761
Defense (function 050)	451	485	512	515	514	517	492	505	466	440	416	395	377	378
Non-Defense (all other)	299	311	308	295	306	314	329	337	356	373	382	392	378	383
Mandatory	714	768	778	768	791	826	931	942	998	1,011	1,058	1,067	1,115	1,127
Net Interest	220	248	255	253	268	287	302	307	307	299	299	335	342	340
As % of GDP:														
Discretionary Outlays	9.9%	10.0%	10.0%	9.5%	9.3%	9.1%	8.7%	9.0%	8.6%	8.2%	7.8%	7.4%	6.9%	6.7%
Defense (function 050)	5.9%	6.1%	6.2%	6.1%	5.8%	5.6%	5.2%	5.4%	4.8%	4.4%	4.0%	3.7%	3.4%	3.3%
Non-Defense (all other)	3.9%	3.9%	3.7%	3.5%	3.5%	3.4%	3.5%	3.6%	3.7%	3.8%	3.7%	3.7%	3.5%	3.4%
International (fcn 150)	0.4%	0.4%	0.4%	0.3%	0.3%	0.3%	0.3%	0.3%	0.3%	0.3%	0.3%	0.3%	0.2%	0.2%
Mandatory	9.4%	9.7%	9.4%	9.1%	8.9%	9.0%	9.9%	10.1%	10.4%	10.2%	10.3%	10.1%	10.2%	9.9%
Net Interest	2.9%	3.1%	3.1%	3.0%	3.0%	3.1%	3.2%	3.3%	3.2%	3.0%	2.9%	3.2%	3.1%	3.0%
As Share of Total Outlays:														
Discretionary Outlays	44.5%	43.9%	44.3%	44.2%	43.6%	42.7%	40.0%	40.3%	38.6%	38.3%	37.0%	35.9%	34.1%	34.2%
Defense (function 050)	26.8%	26.7%	27.6%	28.1%	27.3%	26.6%	24.0%	24.1%	21.9%	20.7%	19.3%	18.0%	17.0%	17.0%
Non-Defense (all other)	17.8%	17.2%	16.6%	16.1%	16.3%	16.2%	16.0%	16.1%	16.7%	17.5%	17.7%	17.9%	17.1%	17.2%
Mandatory	42.4%	42.4%	42.0%	42.0%	42.1%	42.5%	45.3%	45.0%	46.9%	47.6%	49.1%	48.7%	50.4%	50.6%
Net Interest	13.0%	13.7%	13.7%	13.8%	14.3%	14.8%	14.7%	14.7%	14.4%	14.1%	13.9%	15.3%	15.4%	15.2%

	fy1998	fy1999	fy2000	fy2001	fy2002	fy2003	fy2004	fy2005	fy2006	fy2007	fy2008	fy2009	fy2010	fy2011	fy2012	fy2013	fy2014	fy2015
Gross Domestic Produce ($billions)	8663	9208.4	9821	10225.3	10543.9	10980.2	11676	12428.6	13206.5	13861.4	14334.4	13960.7	14348.8	14929.4	15547.4	16202.7	17011.4	17936.1
GDP Price Index	0.861	0.8724	0.8897	0.9106	0.9257	0.9446	0.9685	1	1.034	1.0646	1.0893	1.1033	1.1145	1.1379	1.1588	1.183	1.2054	1.2283
Population	2.70E+08	2.73E+08	2.82E+08	2.85E+08	2.88E+08	2.90E+08	2.93E+08	2.96E+08	2.98E+08	3.01E+08	3.04E+08	3.07E+08	3.09E+08	3.12E+08	3.14E+08	3.16E+08	3.19E+08	3.21E+08
Outlays, in $Billions:																		
Discretionary Outlays	552.0	572.1	614.6	649.0	733.9	824.3	895.0	968.5	1,016.7	1,041.6	1,134.9	1,237.5	1,347.2	1,347.1	1,286.1	1,257.9	1,241.9	1,232.0
Defense (function 050)	270.2	275.5	294.9	306.0	348.9	405.0	454.0	493.6	520.0	547.8	612.5	656.7	688.9	699.4	670.5	651.5	618.3	603.6
Non-Defense (all other)	281.7	296.7	319.7	343.0	385.0	419.4	441.0	474.9	496.7	493.7	522.4	580.8	658.3	647.7	615.6	606.5	623.7	628.4
Mandatory	859.3	900.0	951.4	1,007.7	1,106.0	1,182.5	1,237.5	1,319.4	1,411.8	1,449.9	1,594.9	2,093.2	1,913.7	2,025.9	2,030.6	2,204.3	2,312.9	2,422.6
Net Interest	241.2	229.8	222.9	206.2	170.9	153.0	160.3	183.9	226.6	237.1	252.7	186.9	196.2	230.0	220.4	222.7	223.0	253.6
Total	1,652	1,702	1,789	1,963	2,011	2,160	2,293	2,472	2,655	2,729	2,983	3,518	3,457	3,603	3,537	3,685	3,778	3,908
Constant FY2013 dollars (billions, using GDP price index; FY2014 OMB projections:																		
Discretionary Outlays	758	776	817	843	938	1,032	1,093	1,146	1,163	1,157	1,233	1,327	1,430	1,400	1,313	1,258	1,219	1,187
Defense (function 050)	371	374	392	398	446	507	555	584	595	609	665	704	731	727	684	651	607	581
Non-Defense (all other)	387	402	425	446	492	525	539	562	568	549	567	623	699	673	628	606	612	605
Mandatory	1,181	1,220	1,265	1,309	1,413	1,481	1,512	1,561	1,615	1,611	1,732	2,244	2,031	2,106	2,073	2,204	2,270	2,333
Net Interest	331	312	296	268	218	192	196	218	259	264	274	200	208	239	225	223	219	244
As % of GDP:																		
Discretionary Outlays	6.4%	6.2%	6.3%	6.3%	7.0%	7.5%	7.7%	7.8%	7.7%	7.5%	7.9%	8.9%	9.4%	9.0%	8.3%	7.8%	7.3%	6.9%
Defense (function 050)	3.1%	3.0	3.0	3.0	3.3%	3.7%	3.9%	4.0%	3.9%	4.0%	4.3%	4,7%	4.8%	4.7%	4.3%	4.0%	3.6%	3.4%
Non-Defense (all other)	3.3%	3.2%	3.3%	3.4%	3.7%	3.8%	3.8%	3.8%	3.8%	3.6%	3.6%	4.2%	4.6%	4.3%	4.0%	3.7%	3.7%	3.5%
International (fcn 150)	0.2%	0.2%	0.2%	0.2%	0.2%	0.3%	0.3%	0.3%	0.3%	0.3%	0.3%	0.3%	0.3%	0.3%	0.3%	0.4%	0.3%	0.3%
Mandatory	9.9%	9.8%	9.7%	9.9%	10.5%	10.8%	10.6%	10.6%	10.7	10.5%	11.1%	15.0%	13.3%	13.6%	13.1%	13.6%	13.6%	13.5%
Net Interest	2.8%	2.5%	2.3%	2.0%	1.6%	1.4%	1.4%	1.5%	1.7%	1.7%	1.8%	1.3%	1.4%	1.5%	1.4%	1.4%	1.3%	1.4%

	fy1998	fy1999	fy2000	fy2001	fy2002	fy2003	fy2004	fy2005	fy2006	fy2007	fy2008	fy2009	fy2010	fy2011	fy2012	fy2013	fy2014	fy2015
As Share of Total Ourlays:																		
Discretionary Outlays	33.4%	33.6%	34.4%	34.8%	36.5%	38.2%	39.0%	39.2%	38.3%	38.2%	38.1%	35.2%	39.0%	37.4%	36.4%	34.1%	32.9%	31.5%
Defense (function 050)	16.4%	16.2%	16.5%	16.4%	17.4%	18.7%	19.8%	20.0%	19.6%	20.1%	20.5%	18.7%	19.9%	19.4%	19.0%	17.7%	16.4%	15.4%
Non-Defense (all other)	17.1%	17.4%	17.9%	18.4%	19.1%	19.4%	19.2%	19.2%	18.7%	18.1%	17.5%	16.5%	19.0%	18.0%	17.4%	16.5%	16.5%	16.1%
Mandatory	52.0%	52.9%	53.2%	54.1%	55.0%	54.7%	54.0%	53.4%	53.2%	53.1%	53.5%	59.5%	55.4%	56.2%	57.4%	59.8%	61.2%	62.0%
Net Interest	14.6%	13.5%	12.5%	11.1%	8.5%	7.1%	7.0%	7.4%	8.5%	8.7%	8.5%	5.3%	5.7%	6.4%	6.2%	6.0%	5.9%	6.5%

Source: CRS calculations based on FY2014 budget submission data from OMB.

Mr. WOODALL. I thank the gentleman. And again, I thank the gentlelady from New York as well.

Mr. Speaker, we don't have these opportunities very often. I would posit to my colleagues that if really the right answer is to pass clean debt ceilings whenever the debt needs to be increased, I would wonder why it is we don't just repeal the debt ceiling altogether. If this isn't a moment for us to come together, if this isn't a moment for us to do those things that have to be done, if this isn't a moment that focuses like a laser the American people on what the consequences are of the decisions we make today, I don't know what would be. This is our best opportunity.

I could not be more grateful to my friends on the other side of the aisle, Mr. Speaker, for coming together to make some of those things possible. In fact, that great day in August of 2011 that I talk about, that wasn't possible with Republican votes. Turning the dial on spending to the tune of $2 trillion, that wasn't possible with just Republican votes. That was a bipartisan effort. That was a collaborative effort that makes a difference for our children and our grandchildren, and it is one of which I hope we are both proud.

The men and women who are going to come to the floor of the House today to cast their vote are all going to be men and women who are deeply concerned about the future of this country. Now, some of those men and women are going to look into their hearts, and they are going to look at what default would mean to the Nation. They are going to believe earnestly that because we cannot find a partner in the Senate or in the White House to negotiate on solving the problem, that the only step left to take is either to default or not, and with a heavy heart, they are going to vote to raise the debt ceiling.

There are other men and women in this body, Mr. Speaker, who are going to come to the floor today for this vote, and they are going to say, Default is a terrible, terrible, terrible even threat to make, but if we do not find a way to curb the growth of Federal spending, default is not a question of if; it is a question of when. It is a question of when.

There is not a budget in Washington, D.C., that stops the borrowing next year or 2 years from now or even 10 years from now. There is not one, and the most conservative budgets we have don't have enough votes to pass. If not today, when?

Now, I think the votes have been counted. The decisions have been made, Mr. Speaker. Folks have been grappling with this issue in their hearts and with their constituents. Mr. Speaker, I plead with you to play that role in this debate so that when this decision confronts us again—not if, but when—we take advantage of that to do the hard things that must be done.

I say to my friends on the other side of the aisle—and I know I speak for a large plurality of our Members on this side of the aisle—challenge me to do those things that are hard. Give me that vote to take that so enrages the right flank that I get sent home in the next primary, but I had a chance to do something that mattered while I was here.

Folks didn't leave their families to come and just cast a ballot to keep things going on the way they are going on, Mr. Speaker. They came from both sides of the aisle to make a difference. The path that we are on with spending and revenue is a path that is unsustainable to the tune of $17.3 trillion today and a path that is unsustainable to the tune of hundreds of trillions of dollars tomorrow.

The economic demise of this country on that path is not if, but when, but we have the ability right here in this Chamber to make that difference. We have the ability right here in this Chamber to look our children and our grandchildren in the eye and say, When I had that voting card for that brief time, I did everything I did to make a difference.

We have been on a streak here, Mr. Speaker, of coming together in surprising ways to achieve things that I thought could not be done. I hope we make deficit reduction in this next budget cycle that same bipartisan priority. I believe we can surprise even ourselves with the amount that can be accomplished.

With that, Mr. Speaker, I yield back the balance of my time, and I move the previous question on the resolution.

The SPEAKER pro tempore. Without objection, the previous question is ordered.

There was no objection.

The SPEAKER pro tempore. The question is on the resolution.

The resolution was agreed to.

A motion to reconsider was laid on the table.

□ 1615

PATRICIA CLARK BOSTON AIR ROUTE TRAFFIC CONTROL CENTER

Mr. CAMP. Mr. Speaker, pursuant to House Resolution 478, I call up the bill (S. 540) to designate the Air Route Traffic Control Center located in Nashua, New Hampshire, as the ''Patricia Clark Boston Air Route Traffic Control Center,'' and ask for its immediate consideration.

The Clerk read the title of the bill.

The SPEAKER pro tempore. Pursuant to House Resolution 478, an amendment in the nature of a substitute consisting of the text of sections 1 through 3 of Rules Committee Print 113–37 is adopted, and the bill, as amended, is considered read.

The text of the bill, as amended, is as follows:

S. 540

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Temporary Debt Limit Extension Act''.

SEC. 2. TEMPORARY EXTENSION OF PUBLIC DEBT LIMIT.

(a) IN GENERAL.—Section 3101(b) of title 31, United States Code, shall not apply for the period beginning on the date of the enactment of this Act and ending on March 15, 2015.

(b) SPECIAL RULE RELATING TO OBLIGATIONS ISSUED DURING EXTENSION PERIOD.—Effective March 16, 2015, the limitation in effect under section 3101(b) of title 31, United States Code, shall be increased to the extent that—

(1) the face amount of obligations issued under chapter 31 of such title and the face amount of obligations whose principal and interest are guaranteed by the United States Government (except guaranteed obligations held by the Secretary of the Treasury) outstanding on March 16, 2015, exceeds

(2) the face amount of such obligations outstanding on the date of the enactment of this Act.

SEC. 3. RESTORING CONGRESSIONAL AUTHORITY OVER THE NATIONAL DEBT.

(a) EXTENSION LIMITED TO NECESSARY OBLIGATIONS.—An obligation shall not be taken into account under section 2(b)(1) unless the issuance of such obligation was necessary to fund a commitment incurred pursuant to law by the Federal Government that required payment before March 16, 2015.

(b) PROHIBITION ON CREATION OF CASH RESERVE DURING EXTENSION PERIOD.—The Secretary of the Treasury shall not issue obligations during the period specified in section 2(a) for the purpose of increasing the cash balance above normal operating balances in anticipation of the expiration of such period.

The SPEAKER pro tempore. The gentleman from Michigan (Mr. CAMP) and the gentleman from New York (Mr. CROWLEY) each will control 30 minutes.

The Chair recognizes the gentleman from Michigan (Mr. CAMP).

GENERAL LEAVE

Mr. CAMP. Mr. Speaker, I ask unanimous consent that all Members have 5 legislative days in which to revise and extend their remarks and to include extraneous material on S. 540.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Michigan?

There was no objection.

Mr. CAMP. Mr. Speaker, I yield myself such time as I may consume.

The last time I stood on the floor to talk about a ''clean'' debt limit increase, I did so to prove that we could do better. It was an effort to implore my Democrat colleagues in the House and the Senate to heed the warnings of the President's own fiscal commission, also known as the Simpson-Bowles Commission, which clearly noted how our economy and hardworking taxpayers would suffer under the mountain of debt Washington was racking up.

My position is unchanged. I remain as committed as ever to grappling with our debt; to making the tough decisions to reform, improve, strengthen, and protect our entitlement programs; and, most importantly, to getting this economy back on track so hardworking taxpayers start seeing their pay go up and those in need of a job can find one. In fact, that work is underway at the Ways and Means Committee where we posted for public comment bipartisan proposals to reform Medicare and Social Security so that they are viable for seniors and taxpayers, not only today but well into the future.

Regrettably, over the last 3 years, Democrats have hardened their position. The President, Senate Democrats, and House Democrats will not even entertain a discussion—let alone a negotiation—over what reforms we can make along with a debt limit increase. They have become unyielding. Democrats are totally adamant: extend the debt limit or default. That is the position of today's Democrat Party: don't negotiate, don't reach out across the aisle, ignore the past, which clearly shows the debt limit typically passes with other reforms.

Mr. Speaker, I remember serving when Bill Clinton was President. Those were different times. Despite our different opinions, we were able to find common solutions for the American people. We balanced the budget, reformed our Nation's welfare laws, and helped break the cycle of dependency by placing an emphasis on work. Today, Democrats openly cheer that their health care law will lead to less work.

Well, Mr. Speaker, I am disappointed the Democrats have walked away from the table, and I am disappointed we are not engaged in a more serious debate today. But as disappointed as I am, I cannot, in good conscience, let the Democrats' refusal to engage lead to a default. For that reason, and that reason alone, I will vote ''yes'' today.

But today's legislation is hardly a solution to our looming debt crisis. That is why the Ways and Means Committee will continue to carefully review and advance policies that not only reform our entitlement programs, providing greater protection for seniors and greater savings for hardworking taxpayers, but also policies that will create a stronger economy with more jobs and higher wages for workers. It is only through a combination of such policies that we can truly solve this problem.

I reserve the balance of my time.

Mr. CROWLEY. Mr. Speaker, I yield myself as much time as I may consume.

I thank the gentleman from Michigan, the chairman of the Ways and Means Committee, for his responsible commitment to vote for this bill today. I wish I could say that a majority of his party was going to be responsible and vote for this bill today, but I cannot.

First, I am pleased that the Republican Party seems to be shedding at least part of its extremist Tea Party ideology in the prevailing belief of holding the Nation hostage to meet the whims of a select few.

Now, I would just like to take a moment to explain what the House is and is not voting on today. We are voting today to ensure that our country can pay the bills we have already incurred—not new bills, old bills, so that Social Security checks can continue to be mailed, so that doctors serving Medicare patients will be reimbursed for their services, so that veterans' pensions and compensation will be paid out, and so income tax refund checks will continue to be processed and paid out.

What we are not voting for—what we are not voting for—we are not voting for a bill to spend money. Our Republican colleagues will argue that this bill allows the Federal Government to continue to borrow and, therefore, spend more money. They say tax revenues come in and even more goes out in spending for government services and programs, services and programs that we all agree benefit our mutual constituents.

So what is the alternative the Republicans would offer instead? My Republican colleagues would offer default, because not supporting this bill would mean you support default and defaulting on our Nation's debt. Default would mean taxpayer dollars would still come into the government. We would still collect. The IRS would still collect taxes, but no money would go out. There would be no services or programs that benefit our constituents; they would be shut down.

Do you all remember how angry the country was during the Republican shutdown of our government when military death benefits were not paid? That would only be magnified under a default led by the Republican side of the aisle. Not only would there be no death benefits, there would be no veterans' benefits at all, and no money for VA hospitals, doctors, and nurses. And a default wouldn't just affect our military and our veterans. There would be no funds for food inspectors, no Pell grants, no air traffic controllers or any other government service because of the default.

Let's be clear. If you liked the Republican-engineered shutdown of our government, you will love the default the Republicans who would vote ''no'' today would perpetuate on the American public.

This is a debt that the Republican caucus helped create. You own a portion of this debt. The American people are watching this vote. They are confounded, once again, that the majority of the majority will vote to default. The overwhelming majority of the minority will vote not to default. I ask the American people, which party is the responsible party? The answer is clear. The Democratic Party will be responsible today. We will vote overwhelmingly for this bill not to default on our Nation's debt, not to raise interest rates on our constituents, and not to raise the cost of money for the government to borrow, either.

I yield as much time as the gentleman from Massachusetts (Mr. NEAL) may consume.

Mr. NEAL. Mr. Speaker, let me thank Mr. CROWLEY for recognizing me, and I want to pursue the themes that he has offered a moment ago.

I listened to the gentleman from Georgia earlier speaking of debt in the years out. That has nothing to do with the argument that is being applied on this floor. This is about the basic arithmetic of the credit card that arrives at a family's doorstep for a variety of costs. This is about paying for the war in Iraq, which I was opposed to but I believe we still have an obligation to pay for, including the 1 million new veterans that were created that are currently straining our VA system.

In addition, this is a vote about paying for the tax cuts in 2001 and 2003 that continued right through 2010 based upon the mistaken notion, the theology that was applied, suggesting that, in fact, tax cuts pay for themselves.

This is about a turnaround of a projected surplus of $5 trillion that instead became ongoing deficits and debt noted for the ill-conceived policies that many of our friends on the other side embraced under the hubris of suggesting that you can have it all.

When else in American history, when else have we embraced the idea enunciated not long ago by the former majority leader of the Republican Party who suggested that it was patriotic in a time of war to cut taxes? Lincoln and Roosevelt certainly didn't embrace that position. You can't have it all.

What was desirable by the Republican Party during those years was essentially this: they were going to score political points on the issue of the debt ceiling. They were going to hold the debt ceiling hostage for isolated issues that placated a minority of the majority.

Now, I know most of the Republicans that have come to the floor today, and I want to tell you, my knowledge of

them is they are very responsible when it comes to budgeteering, but they are caught by a minority of their majority who now dictate the outcome of where many of those positions go. So the result of the last standoff we had over the debt ceiling was that our debt was downgraded. America's credit rating in the world was downgraded. Look at the strength of the American dollar today. Why is it in that position? I have never been anywhere where the world doesn't say, We honor the American dollar.

The point that I offered a moment ago is the following: they were prepared to default on that debt for the purpose, again, of isolated, strident political views that are outside of the mainstream. Job creation? It was held hostage. Fewer jobs were created than at any time since the Great Depression. That is not an opinion; that is a fact.

Now, this behavior was unacceptable, and the American people said so. You pay for what you spend. Raising the debt ceiling ensures that we will not be a deadbeat nation in the eyes of the world nor in the eyes of our own citizenry.

Not long ago, we passed an omnibus spending bill.

Incidentally, because of the breakdown in the regular order here, the idea that we used to spend according to the 12 to 13 appropriations bills that guided us every year, it was known as the regular order where Members had a chance to amend spending bills in committee and then on the floor, I must tell you that is a quaint reservoir of thought these days. Now we wrap it all up, and the same people that could say, Well, I am going to pass the omnibus spending bill to take care of favored spending, and then say, Well, I am not going to vote to raise the debt ceiling, the argument is anachronistic.

So I support this measure having voted against the Bush tax cuts, having voted against the war in Iraq, and having voted against most of the policies that got us into this. But this is about the full faith and credit of the United States, and it should be embraced by this entire body.

Mr. CROWLEY. I am pleased to yield 1 minute to the gentlelady from California, NANCY PELOSI, the leader of the Democratic Caucus in the House.

Ms. PELOSI. Mr. Speaker, I thank the gentleman for yielding. I thank him for his leadership on this important issue to him. To Mr. LEVIN and members of the Ways and Means Committee, thank you for making clear what the stakes are in this vote on the floor today.

Mr. Speaker, the 14th Amendment of our Constitution declares:

The validity of the public debt of the United States, authorized by law, shall not be questioned.

That has always been the standard upheld and advocated by House Democrats.

In each of my conversations with Speaker BOEHNER, I have conveyed the unwavering support of the House Democratic Caucus for a clean bill to lift the debt ceiling. That means no goodies for one side or the other. There is nothing you could add to it that would say, Okay, since it is something I like, then I don't mind if it isn't clean. I said to the Speaker, Even if you added something that I cared about a great deal, that our Caucus cared about a great deal, that does not make it right because the full faith and credit should be unquestioned, and it is not negotiable.

I thank the Speaker for giving us this opportunity. This is really important to bring legislation to the floor that is consistent with the intent of the Constitution and with the best interests of the American people. Well, I tell you this, we have heard from all kinds of leaders of finance, from the boardroom to the kitchen table. The boardroom tells us, the conference table then writes to us and says, We urge you to again take the necessary steps to preserve our Nation's financial standing in the world and help ensure that the American recovery continues in its current path toward restored prosperity by the uncertainty as to whether or not we will incur an historic default in raising the debt ceiling.

□ 1630

I wish to submit the full letter to the RECORD with the signatories who represent the captains of industry and finance in our country.

More important than that, as important as that is, our global standing in the world, more important to each and every person in our country is what Mr. NEAL spelled out: what this means to you. If you are a consumer with a credit card, if we did not take this action today, interest rates could skyrocket, making it harder for families to get loans, and for small businesses to invest, spend and hire. Again, on your kitchen table as you pay the bills each month, you would have higher interest rates for your mortgage, your car payments, your student loans, and your credit card bills. Higher interest rates once again on small business loans that are used to pay employees or expand business. Significant blows would come to 401(k)s as a result of the stock market reaction to our not lifting the debt ceiling. Credit markets could freeze. The value of the dollar would be negatively impacted.

So there is a great deal at stake in this vote today. Again, at the time when we have to lift the debt ceiling, it is appropriate to have a discussion of spending priorities, of budgets that should be a statement of our values; but there should be no question that those debates would be something that would not just be a debate, but be a barrier to lifting the debt ceiling. That is why I am grateful to the Speaker and the Republican leadership for giving this House this opportunity to act in a way that is consistent with the Constitution.

When this measure passes today, Congress will state unequivocally that the full faith and credit of the United States of America is not in doubt. I thank my Democratic colleagues for never wavering from this position and standing firm on behalf of all Americans. I thank once again the Speaker for giving us this opportunity to associate ourselves and support the Constitution and the American people.

JANUARY 30, 2014.

DEAR MEMBERS OF CONGRESS, The undersigned associations representing a broad swath of the nation's business community and sectors serving tens of millions customers, businesses and investors, respectfully urge you to raise the federal debt limit without delay.

While we firmly believe that the time is long overdue for the Administration and the Congress to come together and develop long-term solutions to our very real fiscal challenges, defaulting on the nation's debt obligations should not be an option for policymakers to consider. Should the President and Congress fail to work together and raise the debt limit in a timely fashion, the Treasury will be unable to meet government obligations coming due which would trigger a series of events that would inevitably lead to American taxpayers paying more to finance our debt. Even a short-term failure to fulfill our obligations would seriously impair market operations and could have significant consequences to our fragile economic recovery. When Congress last debated this matter in the fall of 2013, markets clearly signaled the potential negative affects through increased interest rates and weakened investor demand for U.S. assets.

We urge you to again take the necessary steps to preserve our nation's financial standing in the world and help ensure that the American economy continues on its current path toward restored prosperity by eliminating the uncertainty as to whether or not we will incur an historic default and raising the debt ceiling.

Thank you for considering our urgent request. We look forward to working with you to advance this and other critical legislation.

Signed,

American Bankers Association, American Insurance Association, U S Chamber of Commerce, Consumer Bankers Association, Financial Services Forum, Financial Services Roundtable, Independent Community Bankers of America, Investment Company Institute, Securities Industry and Financial Markets Association.

Mr. CAMP. Mr. Speaker, I yield myself such time as I may consume.

The Budget Control Act was signed into law on August 2. On August 5, Standard & Poor's downgraded the United States credit rating and did so because:

The downgrade reflects our opinion that the fiscal consolidation plan that Congress and the President recently agreed to falls short of what, in our view, would be necessary to stabilize the government's medium-term debt dynamics.

There have been some speakers who have come to this floor who said we were downgraded because of brinksmanship. We were downgraded because there were those of us who wanted to see some approach to fiscal responsibility in our debt limit negotiations.

Clearly, that is revisionist history, and the facts bear out. Standard &

Poor's own quote was it was because we didn't go far enough, not because we tried to address our medium term and long-term debt.

So this reinforces my point. We can't be satisfied with just increasing the debt limit. I realize that is where we are today, and as I have said, I will vote for this legislation, but as another speaker has said, they have viewed this as nonnegotiable, and what we really need to do is reach across the aisle and work together to find long-term solutions to both our medium term and long-term debt obligations so that these programs, like Medicare and Social Security, these valuable programs that serve many of our citizens, are not only viable and there today, but there well into the future.

I reserve the balance of my time.

Mr. CROWLEY. Mr. Speaker, I would inquire as to the time remaining on both sides.

The SPEAKER pro tempore. The gentleman from New York has 21 minutes remaining. The gentleman from Michigan has 25½ minutes remaining.

Mr. CROWLEY. Mr. Speaker, I yield 2 minutes to the gentleman from Michigan (Mr. LEVIN), the ranking member of the Ways and Means Committee.

(Mr. LEVIN asked and was given permission to revise and extend his remarks.)

Mr. LEVIN. Mr. Speaker, we have been adamant about a clear, clean debt ceiling vote, and now it is happening. It should have happened the last time, and because of the Republican position, a high price was paid—jobs were lost, 120,000; the stock market plunged nearly 20 percent; and economic growth was slowed significantly. So this time around, we are going to do the right thing.

The gentleman from Michigan, my colleague, the chairman of the committee talked about working together, and I want to close by suggesting now with this vote in terms of the debt ceiling, we have cleared the deck. Let us now take up the other issues of major importance to the people of this country, and one of them is unemployment insurance.

As we stand here today, isolated maybe by the walls around this Chamber, but I hope not, 1.7 million people have lost every dime of their unemployment insurance, the long-term unemployed. All right, we are clearing the decks. Now let's pay attention to the business of the American people in addition to full faith and credit. We should not be leaving here with 1.7 million Americans out in the cold because too many people in this institution haven't been willing to listen to their stories. Listen and act.

Mr. CAMP. Mr. Speaker, I reserve the balance of my time.

Mr. CROWLEY. Mr. Speaker, I yield 3 minutes to the gentleman from Maryland (Mr. HOYER), the minority whip.

Mr. HOYER. Mr. Speaker, I thank the gentleman from New York and I thank the gentleman from Michigan.

Let me start by saying this issue ought not to be subject to debate. America, the greatest land on the face of the Earth, and one of the most successful economic countries in history, ought to pay its bills. I can't believe there is any American who thinks that America should or would welch on that which it owes. That is not a very sophisticated argument. I can make a more sophisticated argument, but when it comes down to it, that is the issue: will America pay its bills? Will it give confidence to the investor community? Will it give confidence to the business community? Will it give confidence to our own citizens? Indeed, will we give confidence to the world that the world's leader can manage its own affairs responsibly?

I want to join Leader PELOSI in congratulating the Speaker for bringing this bill to the floor. He brings it to the floor because he knows, as I have just said, there is no alternative for America but to pay its bills. He brings it to the floor because he knows that if he doesn't, the business community is going to think that the majority party in this House cannot manage the affairs of the United States of America in a responsible fashion. Lamentably, he brings it to the floor, apparently, with some doubts as to whether or not those who have elected him Speaker will follow him in taking a responsible path.

My presumption is, although I don't know, is that the gentleman who chairs the Ways and Means Committee will vote for this. My presumption is Mr. CANTOR, the majority leader, will vote for this. My presumption is that Speaker BOEHNER will vote for this. My presumption is based upon the fact that they have represented that there is not an alternative that is a responsible one.

I doubt that there are many people on this floor who have urged us to pursue a big deal more than I have. I voted against the last budget agreement, otherwise known as Ryan-Murray, because I thought it was too small and did not move us toward fiscal responsibility and sustainability in the magnitude that it should have.

Having said that, however, there is no alternative to pay the bills that we have incurred, that the House, the Senate, and the President on behalf of the American people have incurred, and because we are a great Nation, we will certainly not welch on our debts.

The SPEAKER pro tempore. The time of the gentleman has expired.

Mr. CROWLEY. I yield an additional 3 minutes to the gentleman.

Mr. HOYER. So we come to this time with not many people on the floor, although we have demagogued this issue in the past. We, both sides. Let's be clear. On our side, we said that the Republicans cut revenues; therefore, they were responsible for the debt. On their side, they say Democrats spent money and invested money; and, therefore, they are responsible for the debt.

The fact of the matter is we were all responsible for the debt. The fact of the matter is under the Reagan administration, when I came to Congress, we substantially increased the national debt, and we could only do so with Ronald Reagan's signature. Then under George Bush the first, we substantially increased the debt. We could only do so with George Bush's signature. Under Bill Clinton, we brought the debt down for 4 years running, and we ran surpluses for the next 4. Of course, Republicans were in the House and in charge for 6 years. So it was a team effort, if you will, and we had a budget surplus.

Then in the second Bush administration, we substantially increased the budget deficit. We had two wars, and we paid for none; trillion dollar-plus in additional deficit, many trillions over time.

So, my friends, we come to the floor today to do the only responsible alternative available to us, but that does not mean that anybody who votes for this believes that it is not critically important for us to have America on a fiscally sustainable path.

The Business Roundtable has urged us to pass this bill. As Leader PELOSI quoted, the Chamber of Commerce said not to do so will put our country and our economy at risk. Yet, I fear there are going to be apparently a significant number of people who will come and vote ''no,'' vote ''no'' on paying America's bills; vote ''no'' on giving confidence to the international community that America is in fact able to manage its affairs.

There ought to be no debate, as I said, when it comes to making sure that we pay our bills on time, the bills Congress has incurred. As I said, the Business Roundtable was quoted as saying:

> Urgent action is required on the part of Congress in order to prevent a default.

In fact, they said if we defaulted, every American, all 315-plus million, would feel the negative effects. Why would anybody vote against such a bill?

The SPEAKER pro tempore. The time of the gentleman has expired.

Mr. CROWLEY. I yield an additional 30 seconds to the gentleman.

Mr. HOYER. I will conclude because my friend is running out of time. This is not a partisan vote and should not be viewed as such. Republicans and Democrats have voted to protect the American people, provide for the national defense, and provide for the general welfare of our country pursuant to our constitutional responsibilities. Having done so, there is no responsible alternative but to pay our bills. That is what this vote is about. Let's show the courage, the wisdom, the common sense to do just that. Vote ''yes.''

□ 1645

Mr. CAMP. Mr. Speaker, I yield myself such time as I may consume.

I point out to my friends on the other side that, in recent memory, there have been seven instances where debt limits were part of other major pieces

of legislation. For example, in the first Bush administration, there was a Balanced Budget and Emergency Deficit Act; in the Clinton administration, there was the Reconciliations Act, as well as the Contract with America Advancement Act; in the Obama administration, there was stimulus, Pay-As-You-Go, Budget Control Act. This has happened seven times in recent history.

What is different? Why can't it happen now? Well, the difference is that you had both parties willing to come together and negotiate major pieces of legislation that would help to address the short-term, medium-term, and long-term drivers of our debt. What we have now is a very open admission that it is absolutely nonnegotiable. There is a straight increase in the debt limit without any legislation, even though this happened seven times in the past.

So I would just say that debt limit increases are often parts of larger pieces of legislation and it would not be unusual. And it is, I think, a sad day when the other side has a take-it-or-leave-it approach and is unwilling to come together with the Republicans to find a way to bring other legislation to the floor that will help address the drivers of our debt.

I reserve the balance of my time.

Mr. CROWLEY. Mr. Speaker, I yield 2 minutes to the gentlewoman from California (Ms. WATERS), ranking member of the Financial Services Committee

Ms. WATERS. Mr. Speaker, once again, it is the House Democrats who are required to take the important action to protect our Nation's well-being. Today, most House Republicans will once again refuse to stand behind the full faith and credit of the United States, threatening an economic catastrophe for all Americans.

When Republicans pushed our Nation to the brink of default last year, refusing to increase the debt limit, businesses, large and small, began to cut back by slowing spending and hiring. Consumer confidence fell faster than at any other time since the financial crisis in 2008. Potential home buyers didn't buy homes. But despite these warnings, House Republicans still want to push us to default, and the consequences would be disastrous.

The value of our 401(k)s and IRAs would plummet, significantly hurting those saving for retirement. For consumers, a default would make credit cards, mortgages, and student and automobile loans all more expensive. Default would lead to a U.S. credit rating downgrade, making it harder for new businesses to hire new employees and our cities and States to finance schools, hospitals, roads, and bridges.

Mr. Speaker, the American people cannot afford another round of Republican recklessness. Everyone from Wall Street CEOs to conservative economists agree: we need to honor our debts.

I and my Democratic colleagues will once again do what is necessary. I urge the Republicans to put Americans before ideology and support this legislation to raise the debt ceiling.

Mr. CAMP. I reserve the balance of my time.

Mr. CROWLEY. Mr. Speaker, I yield 2 minutes to the gentleman from California (Mr. HONDA).

Mr. HONDA. Mr. Speaker, today the U.S. Congress is doing its job 5 days after forcing the Treasury to resort to extraordinary measures to finance our government and 3 legislative days before an unprecedented default.

This marks the fourth time in the last 3 years that we have been pushed right to the brink of default. Everyone outside of this Chamber knows we would have and should have lifted the debt ceiling long before we arrived at this point.

I am glad to see that once again we have been able to do our most basic job, but we need to stop playing these political games with our economy, our stability, and our reputation. We should not be forced to wonder, year after year, if we are going to be able to decide to meet our obligations. We should guarantee that the only time we debate spending is during spending debates.

I would ask my colleagues to help me reform this process and install a permanent fix that would end their brinksmanship surrounding the debt limit. That is why I have introduced two bills that allow the debt limit to be raised unless a supermajority of Congress votes to block them. This would permanently shift the rule of Congress to disapproving debt ceiling increases instead of being forced to approve them.

My approach has been introduced in the other Chamber by Senators Schumer, Boxer, and Hirono. It has been endorsed by a growing chorus of economists and outside thought leaders.

Today, I urge my colleagues to vote ''yes'' to lift the debt limit with me today. I also ask my colleagues to join me in pursuing permanent, necessary reforms for tomorrow so we can eliminate the futile hostage-taking.

Mr. CAMP. I reserve the balance of my time.

Mr. CROWLEY. Mr. Speaker, I yield 2 minutes to the gentlewoman from Texas (Ms. JACKSON LEE).

Ms. JACKSON LEE. Mr. Speaker, as I have listened to debate on the floor of the House, I have seen that Members are coming from all regions of the United States, which means that, in fact, this will be impacting all of our constituents. So I would hope Republicans would join the Democrats who will vote by and large, almost near 100 percent, to do what the Federal Reserve former Chairman Ben Bernanke said is to avoid a government shutdown. And perhaps even more so, a failure to raise the debt limit could have very serious consequences for the financial market and for the economy.

More importantly, it will cost student loans much more to our young aspirants who are attempting to develop an expertise to contribute to this society. A longer default could increase payments by $2,000 of 531,327 Texas students who rely on loans to go to college. Mr. Speaker, I don't want to do that.

Higher interest rates for mortgages and auto loans and student loans and credit cards—Mr. Speaker, I don't want to do that.

Families' retirement savings and 401(k)s dropping as the stock market plummets, reminding us of about 4 years ago when we had one of the worst plummets that we have ever experienced during the last administration.

3.4 million veterans not receiving their disability—I know we do not want to do that.

Ten million Americans not receiving their Social Security check on time in just the first week—we cannot do that.

Drug reimbursements under Medicare stopping and doctors and hospitals not getting paid—I know the Members of Congress will not and do not want to do that.

So, a clean debt ceiling is the only direction, but we have some other options. We can do this in a bipartisan manner. We can have the Democrats standing tall as they have advocated for a clean debt ceiling, but we can join with our partners and we can acknowledge the fact that the government is not broke. We can invest in infrastructure.

As my colleague, Congressman LEVIN, has said, we can ensure that we extend the unemployment insurance and provide for education and provide for research and development. We can build this country. It is time now to vote for a clean debt ceiling and do it together so that we can invest in America.

Mr. CAMP. Mr. Speaker, I reserve the balance of my time.

Mr. CROWLEY. Does the gentleman from Michigan have any additional speakers?

Mr. CAMP. I have no further speakers. I am prepared to close.

Mr. CROWLEY. Mr. Speaker, I am prepared to close as well, and I yield myself such time as I may consume.

In closing, I appreciate all of my colleagues coming down to the floor this afternoon to speak in favor of this proposed bill.

I do think it is noteworthy to point out that only the gentleman from Michigan has come down to speak on behalf of the majority today and ably, I should say, he is voting for this bill, and I appreciate his support. But I notice that no one took time in opposition on the other side of the aisle. Maybe they just don't really care as much about this issue as we thought they did.

But the reality is, as I have said before, every vote against this bill is a vote for default. The Republican colleagues have an answer for that. They have a plan. They intend to default some day so they have a plan. They

have a bill they call the Full Faith and Credit Act. We call it the ''Pay China First Act'' because what it does is it says, in the event of a default, we will pay those people who own our bonds, we will pay foreign governments first, and everyone else gets put down to the bottom of the barrel. But they have a plan; the Republicans have a plan in the case that we default.

Let me say, Mr. Speaker, I think it is totally irresponsible to even have had a debate on this floor on a bill that would determine the payments of our debt in lieu of default. I think it is irresponsible. The fact that we have had this man-made brinkmanship is irresponsible. Once again, the Republican Party and their caucus is showing that they are not responsible enough to be ruling and to be governing here in the House of Representatives.

Mr. Speaker, with that, I yield back the balance of my time.

Mr. CAMP. Mr. Speaker, I yield myself such time as I may consume.

We have heard a lot of talk about how our Nation must pay its bills. But one major reason we are in this position is an unpaid for trillion-dollar stimulus bill that did not increase economic growth, did not create jobs, and simply added to our debt.

I know there are some on the other side who want to keep on spending no matter what the impact is on our credit rating. While I believe that we must increase our debt limit, I am clearly not satisfied that there are no provisions that would help us address the long-term drivers of this debt.

But I will say that it is disappointing the Democrats have walked away from the table. It is disappointing that we are not engaged in a more serious debate today, a debate about policy and how we reign in what really has become runaway debt.

But as I have said, as disappointed as I am in that, I cannot in good conscience let the Democrats' refusal to engage lead to a default. I will vote ''yes'' on this legislation today. But it is hardly a solution to our looming debt crisis. That is why the Ways and Means Committee will continue to move forward on reforming Medicare and Social Security, as we have, with bipartisan proposals that are in legislative form, published for the public to view on our Web site.

We will move forward on tax reform, one that will help grow our economy, create jobs, and help address our debt crisis by a stronger, more vibrant economy that will provide opportunities for individuals to get work, increase their wages, and provide for themselves and their families.

I hope that Democrats will join me in these efforts. I believe it is only through a combination of those policies can we really get to the true solutions to this very significant problem facing our country. While this is a short-term solution to prevent what I think is essential that we do prevent, a default, it is not enough. As I have said, there is so much more to do.

With that, I yield back the balance of my time.

Mr. CONNOLLY. Mr. Speaker, the debt ceiling suspension expired last week, and Secretary Lew says that Treasury will only be able to ensure that the U.S. meet its commitments through Feb. 27. Sadly, some in the House Majority still find it difficult to accept that Congress should actually pay its bills, buying into the myth that not raising the debt ceiling will somehow slow government spending.

My colleagues fail to acknowledge that the deficit, as CBO recently reported, fell by more than a third in the first three months of FY14, and CBO predicts it will continue to shrink and stabilize at around 4% of GDP. Last week, the Business Roundtable lamented that Congress's inaction fosters continued uncertainty, increases borrowing costs, and dampens hiring.

The Speaker told reporters that he does not want to play chicken again with the full faith and credit of the United States. So let's have a clean vote on the debt ceiling and put this behind us. It's time to roll up our sleeves and tackle the real challenges facing our nation and start putting people back to work.

The SPEAKER pro tempore. All time for debate has expired.

Pursuant to House Resolution 478, the previous question is ordered on the bill, as amended.

The question is on the engrossment and third reading of the bill.

The bill was ordered to be engrossed and read a third time, and was read the third time.

The SPEAKER pro tempore. The question is on the passage of the bill.

The question was taken; and the Speaker pro tempore announced that the ayes appeared to have it.

Mr. PRICE of Georgia. Mr. Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, this 15-minute vote on passage of S. 540 will be followed by a 5-minute vote on the motion to suspend the rules on H.R. 3448.

The vote was taken by electronic device, and there were—yeas 221, nays 201, not voting 10, as follows:

[Roll No. 61]

YEAS—221

Andrews
Barber
Bass
Beatty
Becerra
Bera (CA)
Bishop (GA)
Bishop (NY)
Blumenauer
Boehner
Bonamici
Brady (PA)
Braley (IA)
Brown (FL)
Brownley (CA)
Bustos
Butterfield
Calvert
Camp
Cantor
Capps
Capuano
Carney
Carson (IN)
Cartwright
Castor (FL)
Castro (TX)
Chu
Cicilline
Clark (MA)
Clarke (NY)
Clay
Cleaver
Clyburn
Coble
Cohen
Collins (NY)
Connolly
Conyers
Cooper
Costa
Courtney
Crowley
Cuellar
Cummings
Davis (CA)
Davis, Danny
DeFazio
DeGette
Delaney
DeLauro
DelBene
Dent
Deutch
Dingell
Doggett
Doyle
Duckworth
Edwards
Ellison
Engel
Enyart
Eshoo
Esty
Farr
Fattah
Fitzpatrick
Foster
Frankel (FL)
Fudge
Gabbard
Gallego
Garamendi
Garcia
Grayson
Green, Al
Green, Gene
Grijalva
Grimm
Gutiérrez
Hahn
Hanabusa
Hanna
Hastings (FL)
Hastings (WA)
Heck (WA)
Higgins
Himes
Hinojosa
Holt
Honda
Horsford
Hoyer
Huffman
Israel
Issa
Jackson Lee
Jeffries
Johnson (GA)
Johnson, E. B.
Kaptur
Keating
Kelly (IL)
Kennedy
Kildee
Kilmer
Kind
King (NY)
Kirkpatrick
Kuster
Langevin
Larsen (WA)
Larson (CT)
Lee (CA)
Levin
Lipinski
LoBiondo
Loebsack
Lofgren
Lowenthal
Lowey
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lynch
Maffei
Maloney, Carolyn
Maloney, Sean
Matsui
McCarthy (CA)
McCarthy (NY)
McCollum
McDermott
McGovern
McIntyre
McKeon
McNerney
Meehan
Meeks
Meng
Michaud
Miller, Gary
Miller, George
Moore
Moran
Murphy (FL)
Nadler
Napolitano
Neal
Negrete McLeod
Nolan
Nunes
O'Rourke
Owens
Pallone
Pascrell
Payne
Pelosi
Perlmutter
Peters (CA)
Peters (MI)
Peterson
Pingree (ME)
Pocan
Polis
Price (NC)
Quigley
Rahall
Rangel
Reichert
Richmond
Rogers (KY)
Roskam
Roybal-Allard
Royce
Ruiz
Runyan
Ruppersberger
Ryan (OH)
Sánchez, Linda T.
Sanchez, Loretta
Sarbanes
Schakowsky
Schiff
Schneider
Schrader
Schwartz
Scott (VA)
Serrano
Sewell (AL)
Shea-Porter
Sherman
Shimkus
Sinema
Sires
Slaughter
Smith (NJ)
Smith (WA)
Speier
Swalwell (CA)
Takano
Thompson (CA)
Thompson (MS)
Tierney
Titus
Tonko
Tsongas
Valadao
Van Hollen
Vargas
Veasey
Vela
Velázquez
Visclosky
Walz
Wasserman Schultz
Waters
Waxman
Welch
Wilson (FL)
Wolf
Yarmuth

NAYS—201

Amash
Bachmann
Bachus
Barletta
Barr
Barrow (GA)
Barton
Benishek
Bentivolio
Bilirakis
Bishop (UT)
Black
Blackburn
Boustany
Brady (TX)
Bridenstine
Brooks (AL)
Brooks (IN)
Broun (GA)
Buchanan
Bucshon
Burgess
Byrne
Capito
Carter
Cassidy
Chabot
Chaffetz
Coffman
Cole
Collins (GA)
Conaway
Cook
Cotton
Cramer
Crawford
Crenshaw
Culberson
Daines
Davis, Rodney
Denham
DeSantis
DesJarlais
Diaz-Balart
Duffy
Duncan (SC)
Duncan (TN)
Ellmers
Farenthold
Fincher
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foxx
Franks (AZ)
Frelinghuysen
Gardner
Garrett
Gerlach
Gibbs
Gibson
Gingrey (GA)
Gohmert
Goodlatte
Gowdy
Granger
Graves (GA)
Graves (MO)
Griffin (AR)
Griffith (VA)
Guthrie
Hall
Harper
Harris
Hartzler
Heck (NV)
Hensarling
Herrera Beutler
Holding
Hudson
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurt
Jenkins
Johnson (OH)
Johnson, Sam
Jones
Jordan
Joyce
Kelly (PA)
King (IA)
Kingston
Kinzinger (IL)
Kline
Labrador
LaMalfa
Lamborn
Lance
Lankford
Latta
Long
Lucas
Luetkemeyer
Lummis
Marchant
Marino
Massie
Matheson
McAllister
McCaul
McClintock
McHenry
McKinley
McMorris Rodgers
Meadows
Messer
Mica
Miller (FL)
Miller (MI)
Mullin
Mulvaney
Murphy (PA)
Neugebauer
Noem
Nugent
Nunnelee
Olson
Palazzo
Paulsen
Pearce
Perry
Petri
Pittenger
Pitts
Poe (TX)
Pompeo
Posey
Price (GA)
Reed
Renacci
Ribble
Rice (SC)

Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (MI)
Rohrabacher
Rokita
Rooney
Ros-Lehtinen
Ross
Rothfus
Ryan (WI)
Salmon
Sanford
Scalise
Schock
Schweikert
Scott, Austin
Sensenbrenner
Sessions
Shuster
Simpson
Smith (MO)
Smith (NE)
Smith (TX)
Southerland
Stewart
Stivers
Stockman
Stutzman
Terry
Thompson (PA)
Thornberry
Tiberi
Tipton
Turner
Upton
Wagner
Walberg
Walden
Walorski
Weber (TX)
Webster (FL)
Wenstrup
Westmoreland
Whitfield
Williams
Wilson (SC)
Wittman
Womack
Woodall
Yoder
Yoho
Young (AK)
Young (IN)

NOT VOTING—10

Aderholt
Amodei
Campbell
Cárdenas
Gosar
Latham
Lewis
Pastor (AZ)
Rush
Scott, David

□ 1727

Mr. ROGERS of Alabama changed his vote from ''yea'' to ''nay.''

Mr. PETERSON, Ms. SPEIER, and Mr. MCINTYRE changed their vote from ''nay'' to ''yea.''

So the bill, as amended, was passed.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

SMALL CAP LIQUIDITY REFORM ACT OF 2013

The SPEAKER pro tempore. The unfinished business is the vote on the motion to suspend the rules and pass the bill (H.R. 3448) to amend the Securities Exchange Act of 1934 to provide for an optional pilot program allowing certain emerging growth companies to increase the tick sizes of their stocks, as amended, on which the yeas and nays were ordered.

The Clerk read the title of the bill.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from New Jersey (Mr. GARRETT) that the House suspend the rules and pass the bill, as amended.

This is a 5-minute vote.

The vote was taken by electronic device, and there were—yeas 412, nays 4, not voting 15, as follows:

[Roll No. 62]

YEAS—412

Amash
Andrews
Bachmann
Bachus
Barber
Barletta
Barr
Barrow (GA)
Barton
Bass
Beatty
Becerra
Benishek
Bentivolio
Bera (CA)
Bilirakis
Bishop (GA)
Bishop (NY)
Bishop (UT)
Black
Blackburn
Blumenauer
Bonamici
Boustany
Brady (PA)
Brady (TX)
Braley (IA)
Bridenstine
Brooks (AL)
Brooks (IN)
Broun (GA)
Brown (FL)
Brownley (CA)
Buchanan
Bucshon
Burgess
Bustos
Butterfield
Byrne
Calvert
Camp
Cantor
Capito
Capps
Capuano
Carney
Carson (IN)
Carter
Cartwright
Cassidy
Castor (FL)
Castro (TX)
Chabot
Chaffetz
Chu
Cicilline
Clarke (NY)
Clay
Cleaver
Clyburn
Coble
Coffman
Cohen
Cole
Collins (GA)
Collins (NY)
Conaway
Connolly
Conyers
Cook
Cooper
Costa
Cotton
Courtney
Cramer
Crawford
Crenshaw
Crowley
Cuellar
Culberson
Cummings
Daines
Davis (CA)
Davis, Danny
DeFazio
DeGette
Delaney
DeLauro
DelBene
Denham
Dent
DeSantis
DesJarlais
Deutch
Diaz-Balart
Dingell
Doggett
Doyle
Duckworth
Duffy
Duncan (SC)
Duncan (TN)
Edwards
Ellison
Ellmers
Engel
Enyart
Eshoo
Esty
Farenthold
Farr
Fattah
Fincher
Fitzpatrick
Fleischmann
Fleming
Flores
Forbes
Foster
Foxx
Frankel (FL)
Franks (AZ)
Frelinghuysen
Fudge
Gabbard
Gallego
Garamendi
Garcia
Gardner
Garrett
Gerlach
Gibbs
Gibson
Gingrey (GA)
Gohmert
Goodlatte
Gowdy
Granger
Graves (GA)
Graves (MO)
Green, Al
Green, Gene
Griffin (AR)
Griffith (VA)
Grijalva
Grimm
Guthrie
Gutiérrez
Hahn
Hall
Hanabusa
Hanna
Harper
Harris
Hartzler
Hastings (FL)
Hastings (WA)
Heck (NV)
Heck (WA)
Hensarling
Herrera Beutler
Higgins
Himes
Hinojosa
Holding
Holt
Honda
Horsford
Hoyer
Hudson
Huelskamp
Huffman
Huizenga (MI)
Hultgren
Hunter
Hurt
Israel
Issa
Jackson Lee
Jeffries
Jenkins
Johnson (GA)
Johnson (OH)
Johnson, E. B.
Johnson, Sam
Jordan
Joyce
Kaptur
Keating
Kelly (IL)
Kelly (PA)
Kennedy
Kildee
Kilmer
Kind
King (IA)
King (NY)
Kingston
Kinzinger (IL)
Kirkpatrick
Kline
Kuster
Labrador
LaMalfa
Lamborn
Lance
Langevin
Lankford
Larsen (WA)
Larson (CT)
Latta
Lee (CA)
Levin
Lipinski
LoBiondo
Loebsack
Lofgren
Long
Lowenthal
Lowey
Lucas
Luetkemeyer
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lummis
Lynch
Maffei
Maloney, Carolyn
Maloney, Sean
Marchant
Marino
Massie
Matheson
Matsui
McAllister
McCarthy (CA)
McCarthy (NY)
McCaul
McCollum
McDermott
McGovern
McHenry
McIntyre
McKeon
McKinley
McMorris Rodgers
McNerney
Meadows
Meehan
Meeks
Meng
Messer
Mica
Michaud
Miller (FL)
Miller (MI)
Miller, Gary
Miller, George
Moore
Moran
Mullin
Mulvaney
Murphy (FL)
Murphy (PA)
Nadler
Napolitano
Neal
Negrete McLeod
Neugebauer
Noem
Nolan
Nugent
Nunes
Nunnelee
O'Rourke
Olson
Owens
Palazzo
Pallone
Pascrell
Paulsen
Payne
Pearce
Pelosi
Perlmutter
Perry
Peters (CA)
Peters (MI)
Peterson
Petri
Pingree (ME)
Pittenger
Pitts
Pocan
Poe (TX)
Polis
Pompeo
Posey
Price (NC)
Quigley
Rahall
Rangel
Reed
Reichert
Renacci
Ribble
Rice (SC)
Richmond
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rogers (MI)
Rohrabacher
Rokita
Rooney
Ros-Lehtinen
Roskam
Ross
Rothfus
Roybal-Allard
Royce
Ruiz
Runyan
Ruppersberger
Ryan (OH)
Ryan (WI)
Salmon
Sánchez, Linda T.
Sanchez, Loretta
Sanford
Sarbanes
Scalise
Schakowsky
Schiff
Schneider
Schock
Schrader
Schwartz
Schweikert
Scott (VA)
Scott, Austin
Sensenbrenner
Serrano
Sessions
Sewell (AL)
Shea-Porter
Sherman
Shimkus
Shuster
Simpson
Sinema
Sires
Slaughter
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Smith (WA)
Southerland
Speier
Stewart
Stivers
Stutzman
Swalwell (CA)
Takano
Terry
Thompson (CA)
Thompson (MS)
Thompson (PA)
Thornberry
Tiberi
Tierney
Tipton
Titus
Tonko
Tsongas
Turner
Upton
Valadao
Van Hollen
Vargas
Veasey
Vela
Velázquez
Visclosky
Wagner
Walberg
Walden
Walorski
Walz
Wasserman Schultz
Waters
Waxman
Weber (TX)
Webster (FL)
Welch
Wenstrup
Whitfield
Williams
Wilson (FL)
Wilson (SC)
Wittman
Wolf
Womack
Woodall
Yarmuth
Yoder
Yoho
Young (AK)
Young (IN)

NAYS—4

Fortenberry
Jones
McClintock
Stockman

NOT VOTING—15

Aderholt
Amodei
Campbell
Cárdenas
Clark (MA)
Davis, Rodney
Gosar
Grayson
Latham
Lewis
Pastor (AZ)
Price (GA)
Rush
Scott, David
Westmoreland

□ 1735

Mr. POE of Texas changed his vote from ''nay'' to ''yea.''

So (two-thirds being in the affirmative) the rules were suspended and the bill, as amended, was passed.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

Stated for:

Mr. RODNEY DAVIS of Illinois. Mr. Speaker, on rollcall No. 62 I was unavoidably detained. Had I been present, I would have voted ''yes.''

MEDICAL CERTIFICATION REQUIREMENTS FOR AIRMEN AND AIR TRAFFIC CONTROLLERS RELATING TO SLEEP DISORDERS

The SPEAKER pro tempore. The unfinished business is the question on suspending the rules and passing the bill (H.R. 3578) to ensure that any new or revised requirement providing for the screening, testing, or treatment of an airman or an air traffic controller for a sleep disorder is adopted pursuant to a rulemaking proceeding, and for other purposes, as amended.

The Clerk read the title of the bill.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from New Jersey (Mr. LOBIONDO) that the House suspend the rules and pass the bill, as amended.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the bill, as amended, was passed.

The title of the bill was amended so as to read: ''A bill to establish requirements for the adoption of any new or revised requirement providing for the screening, testing, or treatment of an airman or an air traffic controller for a sleep disorder, and for other purposes.''.

A motion to reconsider was laid on the table.

THE JOURNAL

The SPEAKER pro tempore. The unfinished business is the question on

agreeing to the Speaker's approval of the Journal, which the Chair will put de novo.

The question is on the Speaker's approval of the Journal.

Pursuant to clause 1, rule I, the Journal stands approved.

PROVIDING FOR THE APPOINTMENT OF JOHN FAHEY AS A CITIZEN REGENT OF THE BOARD OF REGENTS OF THE SMITHSONIAN INSTITUTION

Mr. HARPER. Mr. Speaker, I ask unanimous consent that the Committee on House Administration be discharged from further consideration of the joint resolution (S.J. Res. 28) providing for the appointment of John Fahey as a citizen regent of the Board of Regents of the Smithsonian Institution, and ask for its immediate consideration in the House.

The Clerk read the title of the joint resolution.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Mississippi?

There was no objection.

The text of the joint resolution is as follows:

S.J. RES. 28

Resolved by the Senate and House of Representatives of the United States of America in Congress assembled, That, in accordance with section 5581 of the Revised Statutes of the United States (20 U.S.C. 43), the vacancy on the Board of Regents of the Smithsonian Institution, in the class other than Members of Congress, occurring by reason of the expiration of the term of Roger W. Sant of the District of Columbia, on October 24, 2013, is filled by the appointment of John Fahey of the District of Columbia. The appointment is for a term of 6 years, beginning on the date of enactment of this joint resolution.

The joint resolution was ordered to be read a third time, was read the third time, and passed, and a motion to reconsider was laid on the table.

PROVIDING FOR THE APPOINTMENT OF RISA LAVIZZO-MOUREY AS A CITIZEN REGENT OF THE BOARD OF REGENTS OF THE SMITHSONIAN INSTITUTION

Mr. HARPER. Mr. Speaker, I ask unanimous consent that the Committee on House Administration be discharged from further consideration of the joint resolution (S.J. Res. 29) providing for the appointment of Risa Lavizzo-Mourey as a citizen regent of the Board of Regents of the Smithsonian Institution, and ask for its immediate consideration in the House.

The Clerk read the title of the joint resolution.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Mississippi?

There was no objection.

The text of the joint resolution is as follows:

S.J. RES. 29

Resolved by the Senate and House of Representatives of the United States of America in Congress assembled, That, in accordance with section 5581 of the Revised Statutes of the United States (20 U.S.C. 43), the vacancy on the Board of Regents of the Smithsonian Institution, in the class other than Members of Congress, occurring by reason of the expiration of the term of Patricia Q. Stonesifer of Washington, DC, on December 21, 2013, is filled by the appointment of Risa Lavizzo-Mourey of Pennsylvania. The appointment is for a term of 6 years, beginning on the later of December 22, 2013, or the date of enactment of this joint resolution.

The joint resolution was ordered to be read a third time, was read the third time, and passed, and a motion to reconsider was laid on the table.

PERSONAL EXPLANATION

Mr. GENE GREEN of Texas. Mr. Speaker, I was unable to be in Washington on Monday, February 10, 2014, for votes because of events in our district. If I would have been here I would have voted as follows:

On passage of H.R. 2431, the National Integrated Drought Information Systems Reauthorization Act, rollcall No. 55, I would have voted ''yea.''

On passage of H. Res. 447, a House resolution supporting the democratic and European aspirations of the people of Ukraine and their right to choose their own future free of intimidation and fear, rollcall No. 56, I would have voted ''yea.''

On approval of the Journal, rollcall No. 57, I would have voted ''no.''

ADJOURNMENT FROM TUESDAY, FEBRUARY 11, 2014, TO FRIDAY, FEBRUARY 14, 2014

Mr. HARPER. Mr. Speaker, I ask unanimous consent that when the House adjourns today, it adjourn to meet at 2 p.m. on Friday, February 14, 2014.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Mississippi?

There was no objection.

PROVIDING A CORRECTION IN THE ENROLLMENT OF S. 25

Mr. HARPER. Mr. Speaker, I send to the desk a concurrent resolution and ask unanimous consent for its immediate consideration in the House.

The Clerk read the title of the concurrent resolution.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Mississippi?

There was no objection.

The text of the concurrent resolution is as follows:

H. CON. RES. 81

Resolved by the House of Representatives (the Senate concurring), That in the enrollment of the bill, S. 25, the Secretary of the Senate shall amend the title so as to read: ''To ensure that the reduced annual cost-of-living adjustment to the retired pay of members and former members of the Armed Forces under the age of 62 required by the Bipartisan Budget Act of 2013 will not apply to members or former members who first became members prior to January 1, 2014, and for other purposes.''.

The concurrent resolution was agreed to.

A motion to reconsider was laid on the table.

PROVIDING A CORRECTION IN THE ENROLLMENT OF S. 540

Mr. HARPER. Mr. Speaker, I send to the desk a concurrent resolution and ask unanimous consent for its immediate consideration in the House.

The Clerk read the title of the concurrent resolution.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Mississippi?

There was no objection.

The text of the concurrent resolution is as follows:

H. CON. RES. 82

Resolved by the House of Representatives (the Senate concurring), That in the enrollment of the bill, S. 540, the Secretary of the Senate shall amend the title so as to read: ''To temporarily extend the public debt limit, and for other purposes.''.

The concurrent resolution was agreed to.

A motion to reconsider was laid on the table.

REMOVAL OF NAME OF MEMBER AS COSPONSOR OF H.R. 1762

Ms. GRANGER. Mr. Speaker, I ask unanimous consent to be removed as a cosponsor of H.R. 1762, the Biennial Budgeting and Appropriations Act.

The SPEAKER pro tempore. Is there objection to the request of the gentlewoman from Texas?

There was no objection.

REMOVAL OF NAME OF MEMBER AS COSPONSOR OF H. RES. 417

Mr. PERRY. Mr. Speaker, I ask unanimous consent to remove my name as a cosponsor from House Resolution 417.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Pennsylvania?

There was no objection.

CONGRATULATING THE WISSAHICKON SKATING CLUB AND THE MERRITTON ATHLETIC ASSOCIATION

(Mr. MEEHAN asked and was given permission to address the House for 1 minute.)

Mr. MEEHAN. Mr. Speaker, I rise today to recognize and congratulate the skaters and families, current and past, of the Wissahickon Skating Club in Chestnut Hill, Pennsylvania, and the Merritton Athletic Association in St. Catherines, Ontario.

This weekend marks the 50th anniversary of the Wissahickon Skating Club—Merritton Athletic Association Hockey Exchange. For five uninterrupted decades, these organizations

have taken turns hosting players and families for a weekend of festivities surrounding a youth hockey tournament. It is understood to be the longest uninterrupted exchange of its type in international competition.

Mr. Speaker, this tournament brings back special memories for me. As a youth, I can recall the bus rides to Canada and the warm hospitality of the families who welcomed my brothers and me into their homes. It was and remains more than a hockey game. It represents the genuine affection Americans and Canadians have for each other, expressed through the rich tradition of friendly competition and the great game of ice hockey.

Mr. Speaker, the 50th anniversary of this very special engagement will be celebrated this weekend in Philadelphia. I hope this wonderful tradition continues with similar enthusiasm for the children of the children who will compete.

□ 1745

EQUAL PAY FOR EQUAL WORK

(Ms. FRANKEL of Florida asked and was given permission to address the House for 1 minute.)

Ms. FRANKEL of Florida. Mr. Speaker, on Friday, people all over the world will be celebrating Valentine's Day, a day of romance when we express our gratitude to the ones we love. We look forward to our chocolate, our candy, our flowers, and our cards.

With that said, Mr. Speaker, the women in our lives deserve more—equal pay for equal work. When our mothers, our daughters, our sisters put in a hard day of labor, they should receive the dignity and equity that they earn. Fair pay is the best gift we could give women and the families they cherish.

VOLUNTEER FIREFIGHTERS AND EMERGENCY PERSONNEL

(Mr. THOMPSON of Pennsylvania asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. THOMPSON of Pennsylvania. Mr. Speaker, the Internal Revenue Service on Monday issued final regulations regarding the treatment of volunteer firefighters and emergency personnel under the employer mandate provision of the President's health care law, the Affordable Care Act. The agency determined that volunteer firefighters and emergency personnel will not be treated as full-time employees under the law, which I was pleased to hear.

Over 97 percent of Pennsylvania's fire departments and 90 percent nationwide are served by community volunteers. Today, by protecting these organizations from being defined as employers, they will no longer be forced to provide health insurance to their volunteers or face the threat of penalty, which would be devastating.

As a firefighter and EMS volunteer since 1983, I joined friend and colleague from Pennsylvania, Congressman LOU BARLETTA, along with numerous colleagues in the House, to force action from the IRS on this matter.

While this decision is long overdue, it is the right one. Our local emergency volunteer organizations now have the certainty knowing they will have the money to keep our communities safe. Unfortunately, Mr. Speaker, this is just a small fix to a massive law that is imposing economic harm on millions of businesses and families. Our work remains.

CHARLES DARWIN

(Mr. HOLT asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. HOLT. Mr. Speaker, I rise today to honor the birth of Charles Darwin 205 years ago tomorrow and to call attention to a resolution I have introduced with a number of other Members marking his birthday as ceremonial Darwin Day.

Through his work, Darwin discovered that the drive for survival of each species produces an evolution by natural selection. This discovery fundamentally changed our understanding of the world. It paved the way for innumerable advancements in the fields of medicine, technology, and education. Without his recognition that natural selection enables increasing complexity, our comprehension of the world around us would be vastly poorer.

To me, Charles Darwin represents much more than a discovery or a theory. He represents a way of thinking, a philosophy. His approach to life and to the world around him should be celebrated as much as his discoveries. It was his thirst for knowledge and his scientific approach that led to new truths that enabled him to uncover the theory of evolution. This lesson is as valuable as the discovery he made and the explanations he gave.

Thinking like a scientist is all too absent from our public dialogue, and this is why we should continue to celebrate Darwin as a master of clear, evidence-based thinking. We, in this House, would do well to emulate his vision and his thinking, and I urge my colleagues to join me in marking Darwin Day.

FIFTH ANNIVERSARY OF FLIGHT 3407

(Mr. COLLINS of New York asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. COLLINS of New York. Mr. Speaker, tomorrow, on February 12, 2014, we honor the fifth anniversary of the crash of Flight 3407 in Clarence Center, New York, and remember the 50 men and women and the one unborn child who died that tragic night.

As Erie County executive, I was on the scene following the crash, and witnessing the grief of the victims' families will remain with me forever. Flight 3407 families had their loved ones ripped away in such a horrible and preventable accident, but with grace and courage, these families turned their loss into a crusade to make the skies safer for all of our families. Against very steep obstacles, Flight 3407 families prevailed and forced Congress to pass legislation requiring airlines to put well-trained pilots in every cockpit.

On the fifth anniversary, we remember those who died that night and extend our gratitude to their families for fighting to make sure their loved ones did not die in vain.

BREAST CANCER MORBIDITY RATES

(Mr. COHEN asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. COHEN. Mr. Speaker, on Thursday in Memphis at 10 o'clock, I will be holding the first of a series of health forums on issues of importance to the people of the Ninth District. The one on Thursday will be on the racial difference in breast cancer morbidity. A New York Times story told of a study which showed that African American women have a greater likelihood than Caucasian women of dying from breast cancer in Memphis than any other city. We will have a panel to discuss it and try to find ways to have people get mammograms, change their diets, and see their physicians.

Under the Affordable Care Act, you don't have to pay a copay or a deductible to get preventative care. The Affordable Care Act could reverse that morbidity difference in Memphis. People need to get their mammograms.

People can go to community health centers that have been funded through the Affordable Care Act to get mammograms, watch their diet, and reverse this horrible trend. I encourage people to come to the Church Health Center on Union at 10 o'clock Thursday morning in Memphis to learn about this problem.

HUMAN RIGHTS IN BAHRAIN

(Mr. JOHNSON of Georgia asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. JOHNSON of Georgia. Mr. Speaker, today I rise in solidarity with the people of Bahrain as they mark the third anniversary of the February 2011 popular protest. More than 200,000 people took to the streets to demand basic human rights and government protection.

Sadly, this anniversary will not be one of celebration. Rather than seeing a move toward reform, systematic human rights abuses and restrictions

continue, and freedom of association and expression have been curtailed drastically. Human rights defenders are jailed for life for peacefully calling for reform, while police officers convicted of torturing a prisoner to death are allowed to walk free.

As home to the 5th Fleet and thousands of U.S. servicemembers, the U.S. has an obligation to call on the government of Bahrain to enact meaningful reforms and adhere to its international human rights commitments. In the midst of increasing instability, it is time for the U.S. to hold its ally accountable and consider a contingency plan for a removal of the 5th Fleet.

MARRIAGE

The SPEAKER pro tempore (Mr. DESANTIS). Under the Speaker's announced policy of January 3, 2013, the gentleman from Kansas (Mr. HUELSKAMP) is recognized for 60 minutes as the designee of the majority leader.

Mr. HUELSKAMP. Mr. Speaker, I appreciate the opportunity to visit with you this evening. I know many of my colleagues would like to visit about a very, very important topic; and that is the topic of marriage. We are currently in the midst of National Marriage Week, which is a global effort with 16 other countries to promote marriage.

I think we are going to hear tonight, Mr. Speaker, some very important information on how important marriage is to our culture, to our families, to our society and, most importantly, in my mind, to our children.

So first I would like to yield to the Congresswoman from Minnesota (Mrs. BACHMANN) to speak on this topic.

Mrs. BACHMANN. Mr. Speaker, I thank Representative HUELSKAMP for sponsoring this important topic this evening on National Marriage Week.

It is fitting and proper that we would set aside this period of 1 hour to focus on the institution that is the fundamental grounding institution of the United States of America. There are various units of government. We, here, are in the well of the greatest deliberative body that the world has ever known, the House of Representatives. That is at the Federal Government level. We have 50 State governments here in the United States. We have numerous county governments and numerous cities across the United States, but the fundamental institution, the fundamental unit of government is the family unit, and the family unit begins with husband and wife.

Mr. Speaker, this isn't a creation of the Republican Party. Marriage isn't a creation of Western civilization or of the United States of America. Marriage, as an institution, was created by none other than the Creator of mankind itself, a Holy God, the God of the Bible, and it is stated very clearly in the book of Genesis that after God created man and woman, He then created the institution of marriage, and He created it for a very simple reason: it is because God had a plan for man in the future, and that was through the propagation of the human race.

So as we are here talking about marriage this evening, my colleagues who will be joining us on this floor, we are here not to condemn anyone. My parents were married and then were divorced and then were remarried again, and that is a story that is repeated not just in America but in families across the world.

We are here not to condemn tonight because even though God creates an institution like marriage, and even though men and women can mess up and not necessarily fulfill what God had hoped for—God says He hates divorce, but it does happen—God is also the god of a second chance, and He gives people that opportunity, once again, to go back into a relationship.

So an institution that is meant for our good, it is one that, in fact, has been for good. It is good for man, good for woman, but most of all, good for the children that come from that union.

My husband and I are thankful that we have been blessed with five biological children. We have been privileged to serve as foster parents to 23 wonderful foster children. But you see, Mr. Speaker, without the umbrella and the protective element of marriage, that is the greatest security blanket that any child could ever know, to know that in their life, there is a mom or there is a dad that is crazy about them.

Many, many women raise children on their own in this country. Many men are raising children on their own. But we know that it is this fundamental institution of marriage that is the bedrock institution of this land, and so we are here tonight, as imperfect and filled with mistakes as we are—again, not condemning. We are here to lift up and support and encourage this wonderful gift given to us by the Creator but given to us for our good and for the building up of this country.

Mr. HUELSKAMP. Congresswoman BACHMANN, I appreciate your leadership on so many issues. One of the inspiring parts of your life, to me, is you and your husband's efforts as foster parents. You have stories to share about the many children. Acting as a family, mom and dad to these kids, it sure must have made a difference in their lives.

Mrs. BACHMANN. Well, it really is something, and we had seen another couple in our church that were serving as foster parents. That is really what induced us to take on foster parenting. Our hearts broke when we saw the lives of some of these kids, and we knew we weren't perfect people. We knew we didn't have the perfect marriage, but we thought we could offer something into the lives of these kids.

One thing my husband said is, every child needs to know that at least one person is committed to them and at least one person is crazy about them. It isn't to take away from the foster children's biological parents. Families go through rough patches. Families have challenges. Marriages have challenges. Nothing is perfect, and we are not standing up here saying any of us are perfect because we aren't, but what we do know is that a perfect God created a pretty good institution, and that is marriage, and that is the one thing that we felt that we could offer to our foster children.

□ 1800

We are an example of two very imperfect people in an imperfect home, but we were able to offer that model of what God had created, and that is bringing man and woman together, because we each, we are two whole people, but when we come together in marriage, we are stronger than two people together. So it is a very unique, three-stranded cord.

So I thank you for this opportunity.

Mr. HUELSKAMP. As you know, there are many parts of the country where we are short of foster parents, foster families. If there is one thing you can say to a couple considering that, what would your advice be?

Mrs. BACHMANN. I would say think about it. It is not for everyone. But if you don't think you can do it—we didn't before we were foster parents. We took in one child, a beautiful girl. We took her from a homeless shelter, and we had the experience. It was good. We got a phone call from an agency, would we take another? We thought, okay, we will take another. And then we got a phone call, would we take another? And we took another. We got a phone call, would we take another? At that point, we didn't have enough places around the dining room table, so we blew out a wall and made the dining room bigger. And we just kept taking children into our home.

What we found—it was amazing. What I would say to parents is you will be amazed how your heart can expand. And it is all good, so I just encourage people to consider being foster parents.

Mr. HUELSKAMP. Congresswoman BACHMANN, I appreciate your leadership both personally and here in Congress. So thank you for your time this evening.

Next, I would like to yield to a colleague, a freshman from California. I might remind the body that five Justices on our U.S. Supreme Court apparently didn't think California voters should decide some issues of marriage. But Congressman DOUG LAMALFA is becoming a leader here in Congress on that issue. I would like to yield to him and his thoughts on the issue of marriage, families, and protecting our children.

Mr. LAMALFA. Mr. Speaker, I appreciate my colleague from Kansas (Mr. HUELSKAMP) leading on this very important topic here tonight, especially given that this is, indeed, International Marriage Week culminating on February 14, Valentine's Day. I am also

very pleased that my valentine is actually in town with me here for a few days, and it really, really picks you up because coming from California to the east coast does have its challenges in doing this job and doing it well.

That is really what the institution of marriage is. Your mate is your rock and your support when you are in a role like this, or whatever it is. It doesn't have to be this. It can be any job, or what she is doing at home, when your spouse is at home taking care of family, kids, and all that, you being a rock for them, too.

It is that partnership which is what marriage is. It was perfectly designed by God. It is the part where mankind gets involved where things can get a little messy. And so through prayer, through sticking to it, the institution of marriage is one that is a rock. It is kind of like—what is it?—a Nebraska defense years ago; you bend but you don't break.

That is what that bond of marriage is supposed to be. It is supposed to keep together. Yes, you have some tough days and you have some tough times, whether they are financial or there are things in your life, a stressful job or somebody makes mistakes in their marriage. That bond is what keeps you together. It is sad that in this day and age the sacred institution of marriage has been cheapened so much by you see what is going on in Hollywood, what you see with easy, no-fault divorce, that it makes it where people believe that maybe there is just an easy way out of this.

That is certainly not to say that people shouldn't have an out for a bad, bad marriage, an abusive marriage, but it also needs to be not taken lightly before you enter into it. So a successful blueprint, you will hear time and time again—there are statistics on it—is that if you, in your life, finish school, finish school, whether it is high school, trade school, college, grad school, whatever it is, grow up. Be a little bit mature before you enter this institution, then seek the bonds of marriage, then have kids. If you do it in that order, the percentages, the odds of being successful for you, your spouse, your life, and your kids—you create kids. You bring kids into the world. You have a responsibility, a big one, to help set them on a positive course.

I have heard stats before that kids coming from a marriage, a family with a father and a mother in the same home, have like a 70 percent better chance of being successful, of getting through their life, with getting through school, moving on, being supported to where it goes.

So the institution has so much good going for it. Indeed, it is one created by God and recognized by the Founders and is a cornerstone of this Nation's forming. Indeed, Mr. Speaker, it says right above you on the podium there, ''In God we trust.'' This is important trust we have in upholding marriage.

My colleague mentioned that being from California we do some strange things out there sometimes. But, you know, amazingly, in California, two different propositions in the State of California passed, prop. 22 and then proposition 8, by the people of California, affirming that marriage is, indeed, one man and one woman. If you open the floodgates to other ideas, other concepts, you don't know where it ends. Multiple marriages? Same-sex marriage? There are so many things that are not what the institution is supposed to be about, indeed, an institution created by God, and it is supposed to be held up and respected by men and women.

Indeed, it is an important responsibility. It is a decision you make not lightly because it is a lifetime decision—at least, it is supposed to be. For me and my wife, we just celebrated 25 years this year. We are proud of that statistic, but even more so grateful for the institution and what it means for our kids and the stability this institution brings for them and for a nation, one nation under God.

Mr. HUELSKAMP. I thank you, Congressman.

The gentleman from California raises some incredibly important points; number one, the personal aspect of marriage; also, the social aspect of marriage, particularly for our children.

I appreciate the efforts of voters in California. I apologize that a few Justices decided to attempt to overrule folks in California on this issue.

Next, I would like to turn towards a gentleman from Texas who has rapidly become a leader on this issue as well, and that is Congressman RANDY WEBER.

RANDY, could you share with us some of your thoughts about marriage and its impact as we celebrate National Marriage Week?

Mr. WEBER of Texas. Absolutely.

Mr. Speaker, I want to thank my colleague, TIM HUELSKAMP, for the opportunity to speak out today in support of marriage and also what I am going to call unmarriage, and we will talk a bit more on that later.

Do you know, Mr. Speaker, children are the only thing God can use to make adults, so we had better give Him a ready supply.

I would submit to those of us who are following this and listening that marriage has been the strong foundation of our culture and our society. Our government recognizes marriage because of the benefits it extends to our society. A healthy marriage creates stability, and it creates security, Mr. Speaker. A healthy marriage ensures a committed relationship with a mom and a dad to raise, to teach, and to instill values in those children.

A change in attitude towards marriage over the past several decades has been slowly corrupting our marriage culture. But it is important that we continue to recognize the important institution that is marriage and allow the conversation on its public policy interest to continue in the States.

This past week, sadly, Eric Holder, the Attorney General, has once again thwarted the Constitution, thwarted the separation of powers, and thwarted the popular will of the people when he announced that the Department of Justice—and I use the word loosely—would extend recognition of same-sex marriages nationwide, including my beloved Texas that has adopted a constitutional amendment to define marriage as a union between one man and one woman for our specific public-policy interests. We adopted that in Texas by over 76 percent of the vote in 2005.

Last summer, as we know, Congressman, you have already referred to it, the Supreme Court made yet another mistake. The Federal definition of marriage in the Defense of Marriage Act, or DOMA, was ruled unconstitutional in the United States v. Windsor case. As a result of the vagueness contained in that decision, Federal agencies began developing interagency guidance that surpasses the limits set by our very own Constitution, set by the Supreme Court, and set by Congress. While some of those agencies are referring to State law, Mr. Speaker, in determining a couple's marital status based on where the couple resides, called the State of domicile, other Federal agencies are using the State of celebration or where a couple is married when they enforce Federal laws.

This latter practice is unconstitutional. Agencies do not have the authority to create law and, therefore, agencies, which are following ''the State of celebration'' in determining the recognition of marriage, they undercut State laws and inherently influence the debate within the borders of those States.

That is why I have introduced the State Marriage Defense Act. This act solves that problem. It provides that a marriage will not be recognized by the Federal Government if it is not recognized by the State in which the person lives, aka, the State of domicile. Every American's marital status in the eyes of the Federal Government would be the same as in the eyes of the State where he or she lives. That would simplify the law and do away with the confusion on the part the Federal agencies at least in that one regard.

So again, I have introduced the State Marriage Defense Act of 2014, which simply provides that a relationship will not be recognized as a marriage by the Federal Government if it is not recognized by the State in which that certain person lives. That is it in a nutshell.

My bill, the State Marriage Defense Act of 2014, is a states' rights bill. We in Texas don't want other States telling us—or the Federal Government for that matter—telling us how we should live, and we don't intend to tell them how they should live.

And now about what I call ''unmarriage.'' Federal Government: leave marriage alone and leave it to the individuals who live in, contribute

to, and build families at the local level. Federal Government: divorce yourselves from this notion of dictating to the States. That needs to be an unmarriage.

I have been married to the prettiest gal this side of the Atlantic, TIM, for 37 years, and she is my girlfriend of 39 years. I understand that marriage is a commitment. It is a tremendous institution, and it undergirds our very society. I am glad to participate in National Marriage Week and to stand up and fight for states' rights.

I am RANDY WEBER, and there you have it.

Mr. HUELSKAMP. Thank you, Congressman WEBER.

I have one follow-up question to try to determine in your mind exactly where do you think our Attorney General and the administration believes they have the authority to determine exactly what a marriage is? Can you explain that to me, Congressman?

Mr. WEBER of Texas. You know, I wish I could, TIM. Sadly, I think they have gone around the Constitution, gone around the Supreme Court, and gone around the Congress. I would say we have a constitutional crisis on our hands because here is an administration that is out of control, an Attorney General that is out of control, and, sadly for the executive branch, for someone who taught constitutional law, that is a scary notion to me because I can just assure you that I have read the Constitution many times over, and I don't have a clue where they get the authority, other than people have been silent and not stood up against that kind of what I would call ''want to be kingship.''

So I hope that enough people stand up and say enough is enough, get back to the basics and back to the Constitution. Again, as I said, unmarry this notion that the Federal Government has got to be in on our everyday lives.

Mr. HUELSKAMP. Thank you for your leadership. I appreciate your efforts on the State Marriage Defense Act. I am a cosponsor of that, and I encourage my colleagues to take a close look at that. It is not just the issue of marriage; it is the issue of who makes the decisions. As the author of the Kansas Marriage Amendment in 2005, I believe Kansans should decide that and Texans should decide that, not five unelected Justices here in our Nation's capital.

So, thank you, RANDY, for your efforts.

Next, I would like to yield to a Congressman from New Jersey. Congressman SCOTT GARRETT has been a critical leader on many issues of the home, the heart, marriage, family, and fiscal responsibility. It has been my honor to serve with Congressman GARRETT.

I yield the gentleman from New Jersey as much time as he might consume, Mr. Speaker.

□ 1815

Mr. GARRETT. Mr. Speaker, I thank the gentleman for yielding to me, and for leading this Special Order this evening in recognition of what week we are in, Celebrating Marriage Week, and recognizing the very importance that marriage has to our society.

Our society it can be said is built on four pillars: marriage, family, church, and the government, and today, we are faced with the reality that one of these pillars is crowding out and attempting to change the makeup of the other three. We have seen that some of our government's policies have discouraged traditional family marriage and traditional family structure as well, but I believe our government has an obligation to support policies that support marriage and support the American dream.

One of the most positive influences on a society is a strong family structure. Marriage itself is essential. It is essential to society, and it is essential to our American country and the American Dream. What I say is not ideology; what I say is data-driven. It is verified by the facts that marriage alone stands as a strong social fabric, a stronger economy, and a better future for our children. See, individuals who are part of a marriage household, a married household, are more likely to overcome disadvantaged backgrounds. They are less likely to live in poverty. Married individuals are more likely to earn more money, to save more money, and are less likely to be in debt. See, marriage is not only important for the economic health of our Nation, but it is also important for future generations as well. Children are more likely to succeed not only if they come from a married household, but the chances of prosperity, and this is interesting, are greater even further if they are raised in a community, a neighborhood, if you will, that shares the value of marriage. Children who come from a married household, to give one statistic, are 82 percent less likely to live in poverty and are more likely to gain a college education and succeed in society.

What is most essential to note is it is not only imperative for a child to be raised in a two-parent household, but it is also important for children to be raised, as I said a moment ago, in a community that values marriage and values family. Children who are raised in that sort of community will have higher rates of upward social mobility. I would note, to truly address some of the issues that Congress here tries to address, such as child poverty, we must address the root causes of those problems, and we must then acknowledge a solution to those problems as well.

So if you want to encourage economic growth, reduce poverty and ensure a prosperous Nation for future children, our government must encourage a strong family structure.

I said once before that this is not ideology-driven, this is data-driven. Why do I say that? Well, if you want to try to answer the question of what are the factors that are preventing, for example, poor children from getting ahead, for mobility, we have data to support it. There is an important new Harvard study that looks at the best data on mobility in America that just came out recently. The name of that study is ''Where is the Land of Opportunity? The Geography of Intergenerational Mobility in the United States.'' It is a long title, but basically a study that came out of Harvard by economist Raj Chetty, and some of these colleagues over in Berkeley as well.

What they did was to dive down into the numbers, if you will, to see what are the characteristics most likely to predict mobility for lower-income children. This Harvard study asked which factors are the strongest predictors of upward mobility in various situations. In other words, which are the factors you can look to to see what is it that will bring children in poverty situations to a higher level. They went through all of the various factors you might imagine, but of all of the factors most predictive of economic mobility in America, one that clearly stands out above the rest is family structure, meaning what we are talking about here today, marriage.

I will quote from the study, if I may:

> The strongest and most robust predictor is the fraction of children with single parent.

In other words, the strongest indicator of where they are going to have a problem with social mobility, in other words the indicator that says what is most likely to suppress or to keep children from being able to rise up and increase their stature in the community, to be able to go to college, get a job and support themselves and be productive in society, in short, live the American Dream, is whether or not they come from single-family households or whether they come from a married situation:

> Children of married parents also have higher rates of upper mobility if they live in communities with fewer single parents.

Why do I say that? Well, again, what this recognizes is it is not just an isolationist situation, it is not just if you alone are married; it depends on whether or not you live in a neighborhood or you live in a community where everyone else around you is married, too. If you do, then you are a fortunate child because you live in a situation where you are more likely to be able to say: My future is good; my future is one where I am going to be able to prosper. My future is one where I will probably be able to move out of my current economic situation and do better.

So those two factors: it is whether you come from single parents or married parents, and also whether you live in a community where people around you are all single or people around you are all married.

So I think it is interesting. It is also interesting that this study comes not from some university that you might think of as being more conservative, but coming from Berkeley and Harvard, I guess we consider the source.

In closing, a lot of research, including some new research from Brookings Institution, shows what has already been shown, the first point, and that is to say if you are married, you have a better chance of rising up the economic ladder. This study now adds the additional feature of the community aspect.

My third point, what we are saying here tonight, is not ideology-driven at all. What I am referring to is a data-driven decision that we can make as Members of Congress. As a recent author pointed out, we just had the President of the United States standing before us saying that we must be a data-driven Congress and a data-driven government, and I agree with him. The data is now out there. The data shows to increase opportunity in America, to increase upward mobility in America, to sustain the American Dream, people of all races and people of all income levels have a far better chance if they come from a married family and a married community as well. So to understand this and have government have an effect on civil society, we must understand these parameters, and I applaud the gentleman for bringing this very important issue to the floor tonight.

Mr. HUELSKAMP. I thank the gentleman. You do indicate one study, but clearly what we do have are decades and decades of research, and obviously personal experience as well, on how important marriage is to reducing poverty, reducing crime. The number one single factor is the situation of marriage, and the gentleman from New Jersey has brought some additional issues as far as community.

We sit in this body and hear from the President and others: What can we do for the children? I wonder, it was about a year ago, and we have the President of France in our Nation as we speak, and there were more than 1 million French marching recently to say marriage is important. Were they saying marriage was important for them? Partly, but they were saying it is most important for the children. If you want to help the children, I beseech you, the research is clear. The Congressman has identified a study, and study after study exists, if you want to help reduce poverty, if you want to help self-esteem, let's help encourage marriage.

I appreciate your leadership on this.

Next, I yield to a freshman, the gentleman from Florida (Mr. YOHO). Again, this is National Marriage Week. It is close to Valentine's Day, and I hope you have gotten your Valentine gift for your sweetheart.

Mr. YOHO. I thank my colleague, Mr. HUELSKAMP from the great State of Kansas, for holding this Special Order on the sanctity, the institution of marriage. Marriage, as we have heard, is the bedrock, the foundation of a society, and a strong society is necessary for a strong community. Strong communities are needed for strong States, and thus, they form a strong Nation. We have heard over and over again the different aspects people have brought out.

Sociologists talk about how the family unit, a husband and wife, are the basic building blocks for a strong family, which is essential for strong communities. It has been proven over and over again, the family unit, people will have higher grades, higher economics when they come out of school. We toured several Head Start programs in our district, and I have asked the teachers over and over again: What percentage of the people are at the poverty level? It is 90–95 percent. My next question is: What percentage of the students here are from single-parent households? It is 85–95 percent all the time. That just shows you the importance of marriage.

Marriage is an institution passed down through thousands of years of human history. The three great religions, and others, recognize the importance of a marriage, and it has gone through the test of time and it has been understood to be the union of a man and a woman. It is sanctified by God, and it is interesting to note that children only come from the union of one-half of a DNA strand from a female and one-half of a DNA strand from a father. That is nature's law; that's God's law.

February is the month of lovers with Valentine's Day this coming Friday, February 14. February 14 is also the anniversary of my wife and I. I met her in the fourth grade, my fourth-grade sweetheart, Carolyn. This February 14 marks the 39th anniversary of Carolyn and I, and I am so proud of that fact. Somebody asked me today, What are you most proud of? I said, My marriage to my wife. We believe in a traditional marriage. We tend to stay that way. I just want to say: Thank you, dear. I love you, and happy anniversary.

Mr. HUELSKAMP. I thank the Congressman. I appreciate your compelling personal story. It is a story shared by millions of other Americans. It is something of the heart. We mentioned as well, it is not just of the heart and the home; it is for our community and the entire country.

The President and I can disagree on a number of things, but in 2008 there were some words that I think are clearly on the mark in terms of some items we have been discussing today. In his 2008 Father's Day address, the President said:

> We know the statistics: that children who grow up without a father are five times more likely to live in poverty and commit crime, nine times more likely to drop out of school, and 20 times more likely to have behavioral problems or run away from home or become teenage parents themselves.

Without the institution of marriage, without particularly the institution of fatherhood, and we are facing a crisis epidemic of fatherlessness in this country, the President and I agree. It has an impact. It has an impact on every child. The lack of marriage and the lack of stability and the declining awareness of marriage hurts our children and hurts our society.

It reminds me of a story that I believe was in Dr. James Dobson's book on raising up boys, and I do have two boys myself. He noted some years ago executives of a greeting card company decided to do something special for Mother's Day. So in a Federal prison, they set up a table inviting any inmate who desired to send a free card to his mom. The lines were long, and they had to make another trip to the factory to get more cards. Due to the success of the event, they said let's do the same thing on Father's Day, but this time, this time, no one came. Not one prisoner felt the need to send a card to his dad. Many had no idea who their fathers even were or how important it was.

So those who are listening, whether you are fathers or mothers or looking at that, recognize that even though this society, even though Hollywood will tell us it is all about you, it is not. It is all about someone else. It is all about that child. They need a father, they need a mother.

No one can be perfect. I have four kids myself, and I am reminded of that every day, oftentimes by my daughters themselves, but we are not asking for perfection, we are just asking for that time, that time to promote marriage and to spend the time with your spouse.

□ 1830

If you are not married and you have children, look at getting married. That will stabilize and bring many things to your children.

This is National Marriage Week. This is an opportunity here in our Nation not only to talk about marriage, but talk about its impacts, talk about how its loss has hurt our society. I firmly believe that we could spend endless amounts of money up here, and occasionally we do that, but you cannot replace the family, you cannot replace daddy, you cannot replace mommy. We can do our best. We can help our neighbors.

But as we debate the definition of marriage where we have a Court that on the one hand in June says we are going to let the States decide kind of unless you are in California, and then on the other hand there is a Federal definition or a State definition, at the end of the day it is all about how important marriage is. Marriage predates government. We might like to redefine it.

In 1856, the Republican Party had a number of things in their platform. One is very important. They demanded a free Kansas. Being a Kansan, we appreciated that and entered as a free State a few years later.

They also wanted to face numerous other things, including the twin evils of slavery and barbarism. They were talking about the issues of irregular marriage and the issues of traditional

marriage and how important it was and still is to society.

I appreciate many of my colleagues that joined us here tonight. But most importantly, I want to just speak again to moms and dads and spouses. Marriage can be tough, it really is, but God is calling you to do everything you can. It is just not you and your spouse. There is a third person in your marriage. God would like to bless and protect that marriage and give you many fruitful days ahead.

With that, Mr. Speaker, I appreciate the time on the special hour during National Marriage Week. I appreciate folks that are listening—my colleagues. Feel free to tweet out the message to encourage that. We can do many great things up here we think in Washington, D.C., but oftentimes it is that one little thing we can do for our neighbors and for our spouses as we celebrate Valentine's Day this week.

I yield back the balance of my time.

The SPEAKER pro tempore. Members are reminded to direct their remarks to the Chair and not to a perceived viewing audience.

SEPTEMBER 11, 2012, ATTACK ON BENGHAZI

The SPEAKER pro tempore. Under the Speaker's announced policy of January 3, 2013, the Chair recognizes the gentlewoman from Minnesota (Mrs. BACHMANN) for 30 minutes.

Mrs. BACHMANN. Mr. Speaker, I thank you for recognizing me for 30 minutes to speak on a topic, no matter where I go or what I speak on or if I am being interviewed somewhere, I am not the only one, it is other Members of Congress, too. This isn't a Republican issue. This is a bipartisan issue that Republicans and Democrats, Mr. Speaker, confront wherever we go across the United States. I think that it has to do with the fact that Americans cannot countenance the fact that, when we had people who are serving us in harm's way, it appears that the United States of America, in one of the rarest occasions that anyone can recall, wasn't there for those who were serving us on foreign lines.

What I am speaking of, Mr. Speaker, is the night of September 11, 2012, what is known as ''Benghazi.'' People still say to us, Mr. Speaker—again, Republicans and Democrats alike, because this is clearly a bipartisan issue. They say to us, when will we get the definitive report on Benghazi? When will we get some answers on what happened on that night, September 11, 2012? Because no American citizen should go and serve her country and not be protected by the Nation that sent her there.

Those who were killed that evening: Ambassador Chris Stevens, the first American ambassador to be killed in 30 years in the line of duty; Sean Smith, who was there that evening with our ambassador; and then also two men who gave their lives trying to protect our ambassador, Glen Doherty and Tyrone Woods. They weren't on the scene very long when they finally arrived in Benghazi.

The Senate intelligence report that came out said that perhaps 15 minutes had lapsed by the time they arrived on the scene until they were murdered by a sophisticated mortar fire on the roof of the annex.

Well, let's go back a little bit, Mr. Speaker. Let's take a look of what we know to be true so far.

We have had two reports that have been issued. One is from the Senate Intelligence Committee. I commend every American to go to the Senate Intelligence Committee Web site and download that report, read it for yourself, share it with your friends, share it with your family, and you will be shocked at what you find in these findings.

The media didn't pick it up. The report came out, it is true. It was reported in the media, it is true, that there had been a report, but what the findings said about the lack of management and the lack of accountability coming out of the White House and the State Department, quite literally coming to the very doorstep of the President of the United States and of the Secretary of State, Hillary Rodham Clinton.

Mr. Speaker, I think it is shocking, and shocking is the fact that to this day there have virtually been no firings at the State Department for what happened at Benghazi, despite the fact of the report that was issued by the Senate Intelligence Committee and despite the fact that this week the House Foreign Affairs Committee issued another report after another investigation of what occurred at Benghazi. You see, there was a report, Mr. Speaker, that was issued prior to this one. It was the Benghazi Accountability Review Board.

It is very curious that this Benghazi Accountability Review Board failed to interview the senior-most decision-makers in the Department of State. The facility in Benghazi, the compound where Chris Stevens and Sean Smith lost their lives, that particular compound is managed by the State Department; it is run by the State Department.

I would like to go over some of the findings this evening. In the minutes that we have together, I would like to go over some of the findings that were issued in this report. As I urge my fellow citizens in the United States to go to the Senate Intelligence Committee and read the damming report and the conclusions of that report, I also encourage my fellow citizens to go to the House of Representatives Committee on Foreign Affairs and download the report that was just issued this week also on Benghazi. The report is entitled, Mr. Speaker, Benghazi: Where is the State Department Accountability? Majority Staff Report, House Foreign Affairs Committee.

The chairman of the House Foreign Affairs Committee is a Representative from the State of California, Mr. ED ROYCE. Mr. ED ROYCE said in September of 2013, the State Department cannot have a culture of accountability if no one, literally no one, is held accountable for the mismanagement and poor leadership of the Accountability Review Board it self-identified. In other words, a report which, in my mind, Mr. Speaker, was woefully inadequate in investigating Benghazi, what we will call the ARB, the Accountability Review Board, even that report said there were deficiencies in accountability at the State Department. We know there was woeful inadequacy, and this is something that has to be addressed.

I call on members of the media, Wake up. Take a look at what the American people want to know, and that is answers, answers about what led up to the night of September 11, 2013, in Benghazi. Were there alerts? Were there reports? Did we have any idea that this tragedy was going to occur? Absolutely we do. That is what this report shows from the House Foreign Affairs Committee.

What happened that night? What did the President of the United States do? Why is it that the media has absolutely no curiosity when it comes to where the President of the United States was that evening when the battle ensued? It actually wasn't evening. In Washington, D.C., it was 3:40 in the afternoon.

In the election that occurred in 2008, there were two Democrat candidates. There was Hillary Rodham Clinton and Barack Obama who were vying to become the nominee of the Democrat Party. One particular commercial was aired by Hillary Rodham Clinton. It was famously called ''the 3 a.m. commercial,'' and the question that the ad asked is: Who would be the person that you want to answer the phone at 3 in the morning if a call comes for a tragedy?—inferring a foreign policy tragedy.

Well, the call did come, unfortunately, tragically, but it didn't come at 3 in the morning. It came at 3 in the afternoon. To be precise, Mr. Speaker, that call came in at 3:40 in the afternoon from a desperate security officer in Benghazi inside the U.S. compound who picked up the phone and made a call to the desk that he was to report to. That call immediately was transferred to the appropriate channels. Literally, Mr. Speaker, within minutes of the attack on the compound in Benghazi the President of the United States was informed not only that our American compound was under attack in what can only be called one of the greatest hellholes of the world, but he was also informed that our ambassador went missing and other Americans, as well.

What would a Commander in Chief do? What did our Commander in Chief do? I don't know. As a Member of Congress, I don't know where our Commander in Chief was that night. I don't

know as a Member of Congress what our Commander in Chief was doing that night.

I do know, again, in 2008 Hillary Rodham Clinton said she would be the individual who should appropriately take that call. She was the Secretary of State at that time on September 11, 2012. Where was the Secretary of State? She was here in Washington, D.C. What did she do when that phone call came in? She has testified before the United States Congress and answered questions.

But let's take and review again, for the few moments that we have, what this report states about that infamous evening. To understand anything this tragic, Mr. Speaker, we need to understand the context of the time. That is what this report begins to lay out, the context.

We know that in 2011, in May, our brave United States Special Forces took out the menace and the head of the al Qaeda organization, Osama Bin Laden. We are extremely grateful for the work that they did.

But despite that blow to al Qaeda's network, al Qaeda wasn't done, and al Qaeda still isn't done today. Al Qaeda's influence continued to spread, and it spread well beyond Afghanistan and well beyond Pakistan. It had spread into the area of northern Africa.

There is a disturbing trend that occurred in Libya. There was a concern led by our President of the United States, Barack Obama. He stated that the United States needed to unilaterally go in to Libya and begin bombing.

The leader of Libya was a man named Muammar Qadhafi. He had been the head of Libya for a number of years. He is not a good actor. He is not someone that the United States would consider a friend. As a matter of fact, we had discovered that Qadhafi was hoping to start a nuclear program in Libya. Events ensued and that program was stopped.

Qadhafi changed his ways, so to speak, and Qadhafi actually became a partner in fighting the global war on terror and was, in fact, jailing Islamic terrorists in parts of Libya. Qadhafi was acting in this manner, and yet at that time, President Obama felt that he needed to go in and bomb Qadhafi.

I severely disagreed with President Obama at the time, Mr. Speaker. This was the wrong action for the United States to take. President Obama didn't come to this body. He didn't seek permission from the United States Congress to declare war on Libya, Libya which had not declared war on the United States. But President Obama literally sent in United States airplanes and began bombing Libya.

At the time, Mr. Speaker, I was running to become President of the United States. At that time, I stated I was unalterably opposed to President Obama's policy. We should not be bombing in Libya, Mr. Speaker. That is what I said at the time. Why? Because we already knew that, especially in the eastern part of Libya, this was the number one area where people were recruited, terrorists were recruited, to come and kill American soldiers in Iraq. This was also training grounds and training camps for al Qaeda and other terrorist forces in eastern Libya.

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You see, Mr. Speaker, if President Obama went forward—I said at the time—and bombed Libya and created instability, the question would be: Who would take over for Muammar Qadhafi? Who would fill the leadership void? The only competing power structure was of terrorist forces. Arguably—I said at the time, Mr. Speaker—we could even conceivably see al Qaeda come in to fill the void.

Libya is a nation that is not a poor nation. They have oil revenues that finance that country. I was there recently, speaking with the prime minister and with the head of the justice ministry and also with the foreign affairs ministry. This is a nation that has a great deal of infrastructure, particularly in the Tripoli area, and there are revenues that have come in.

So, if the United States were to go in, as President Obama wanted to do and did, in fact, do in Libya, we could see that there would be bombing, destabilization and that there would be a fight for power. We could see terrorist elements come in, those elements that would be in line with the goals and objectives of al Qaeda, and we could see oil revenues used and go into the pockets of those engaged in terror in order to continue to finance global terrorist activities.

Unfortunately, Mr. Speaker, this is exactly what has happened in this region. That is what President Obama's foreign policy in Libya led to—to terrorists being on the march—and that is the context of the time that led up to that infamous night, September 11, 2012.

In that disturbing trend that was occurring in Libya after a near total collapse after President Obama's ill-timed and unfortunate bombing in Libya, in June of 2012, there were nearly 1,000 Islamist militants who had converged on the courthouse in downtown Benghazi. They came in one night with 150 to 200 vehicles. For 2 days, they had a rally that was sponsored by the terrorist organization known as Ansar al-Sharia. This was in June of 2012, just a few months before September 11.

After this major rally that occurred and also in June of 2012, an improvised explosive device—what we call an ''IED''—blew a hole in the wall that surrounded this very same compound where Chris Stevens was tragically murdered on September 11. So, in June, there was a terrorist explosion that occurred just months before the attack on our compound, but that was the second explosion and attack that occurred on our compound. That was the second attack on that compound.

Did we have notice? We absolutely had notice prior to that time with that second attack.

Elsewhere in Benghazi, the United Kingdom—our closest ally and intelligence English-speaking partner—shuttered their office. Their staff withdrew after a rocket-propelled grenade attacked the British Ambassador's convoy and two security officers were injured. It wasn't just the U.K. that pulled out of Benghazi, Mr. Speaker. The United Nations pulled out, and the International Red Cross pulled out. The U.S. flag was one of the only Western flags that remained flying in Benghazi.

Did we know? Did Secretary of State Hillary Rodham Clinton know? Did President Barack Obama know that Benghazi was in a terribly precarious state leading up to his reelection in the fall of 2012? Absolutely, they knew what a precarious situation this was, because it was our U.S. intelligence agencies that did their jobs.

What have the investigations shown? U.S. intelligence agencies did their jobs. They extensively warned not only President Obama but also Secretary of State Hillary Clinton that there was a deteriorating security environment in eastern Libya, including the expanding operation of al Qaeda in that region and that it mounted a significant risk to United States' personnel and to United States' facilities.

You see, this is the first question that needs to be addressed:

Did the President of the United States know this was a volatile situation? The answer is, undoubtedly, ''yes.''

Did Secretary of State Hillary Clinton have ample warning? Did she know that this was a real concern that Benghazi could potentially be under attack? The answer is, without a doubt, absolutely, yes, she did.

As a matter of fact, it was Secretary of State Hillary Clinton, herself, who stated in testimony before Congress that she well understood and was certainly aware of this reporting by our intelligence community as well as the fact that extremists claiming to be affiliated with al Qaeda were active in the area in Benghazi. Still, after the United Kingdom pulled out and left, Secretary of State Hillary Clinton made the decision that the United States would remain. After the United Nations pulled out, Secretary of State Clinton made the decision the United States would remain. After the International Red Cross pulled out, Secretary of State Clinton made the decision the United States and our Ambassador would stay and remain in a facility that was not secure to vulnerable attacks.

As a matter of fact, the United States taxpayers paid for hundreds of analytical reports that were done and completed by our intelligence services that provided strategic warning that militias and terrorists and affiliated groups had not only the capacity but the intent to strike the United States and Western facilities and personnel in Libya. They could, in fact, do that. In

fact, we even had a report that was entitled in June of 2012: ''Libya terrorists now targeting U.S. and Western interests.''

Could we have been any more clear? Could the Intelligence Committee have been any more clear? They issued a bulletin to our President and to our Secretary of State, ''Libya terrorists now targeting U.S. and Western interests,'' and still they made the decision that our vulnerable facility would remain open.

What happened?

Before and after these attacks, a lieutenant colonel in our military named Andrew Wood appealed to Washington for added security in Benghazi. He knew. He was a military man. Lieutenant Colonel Andrew Wood led a U.S. military team. He asked for supplemental diplomatic security in Libya, and he recommended that the State Department consider pulling out of Benghazi altogether after the U.K. left and the U.N. left and the International Red Cross left—but his warnings weren't heeded. In fact, tragically, his warnings went unheeded.

Despite the growing danger in Libya, State Department officials in Washington denied the request made by Lieutenant Colonel Andrew Wood. When Andrew Wood said that we should get out of Benghazi, he was told no. He said, If we are going to stay in Benghazi, at least add more security. Lieutenant Colonel Andrew Wood was denied. He was told, No, we are not going to give you more security in Benghazi. In fact, they took away security in Benghazi. This was after the compound was attacked with an IED explosive device. This was after a rocket-propelled grenade was fired at the British Ambassador's convoy and the U.K. left and the International Red Cross left.

Numerous incidents—in fact, 16 different terror incidents—occurred in 2012. Despite the pleas from the military for more security, Secretary of State Clinton, as the Secretary of State, did not give in to those requests. The President of the United States did not give in to the requests for additional security, and yet our Ambassador remained on that infamous night of September 11, 2012, without adequate security. It was a tragic loss of life, I believe a preventable loss of life.

What is even worse from that consequence, if there can be anything worse than this loss of life, is that that very action emboldened America's enemies. Our adversaries saw what we did. In the midst of this heightened terrorist activity, they saw we did nothing to protect our Ambassador. When they killed our Ambassador that night, they saw exactly how the United States responded. We did not have military on the ground.

I am not faulting our military. Mr. Speaker, what I am faulting and what I am suggesting is that the President of the United States and the Secretary of State, despite ample warning, did not put the United States military on high alert in this volatile region. What other region of the Earth besides Afghanistan would have had this level of violence on that particular night, especially after there were already protests going on in nearby Cairo and especially after threats had been made by terrorists of retaliatory actions in the Libya region?

It is shocking to me, Mr. Speaker—shocking—that the President of the United States, despite this knowledge, failed to do anything in response to the pleas for additional security or, at a minimum, pull our Ambassador out of that region. Yes, we have answers. We have answers, and we still have more questions.

Committee members on the Foreign Affairs Committee demanded that appropriate State Department officials be held accountable for these decisions, as they rightly should, so that these mistakes wouldn't be repeated, yet neither the White House nor the State Department has stepped up to the responsibility. Instead, the accountability review board, which did the first review, was seriously deficient. It failed to even comment on the actions of our Secretary of State Hillary Clinton or of the most senior officials in the State Department.

Now, why is this? Could it be because Secretary of State Hillary Clinton, herself, selected four out of the five review members?

You see, isn't it convenient, Mr. Speaker, when it is our Secretary of State who gets to decide who sits on her own accountability review board, overlooking the actions of what happened on that infamous night? She selected four out of the five who sat on that phony review board.

Those are my words, no one else's.

So, when she is selecting four out of five of those who are going to review potentially her actions, is it any wonder then, Mr. Speaker, that this accountability review board, if that is what you want to call it, decided: ''We don't think that we will even interview Secretary of State Clinton. We don't think we need to talk to her. We don't think we need to talk to any of the senior decisionmakers in the State Department. Oh, no.'' So they chose to bypass even interviewing those who were the decisionmakers.

Mr. Speaker, that sounds a lot to me like the IRS, after this terrible scandal that is going on in the IRS. Where they appear to be, in a corrupt manner, trying to deny to conservative tea party organizations their tax-exempt status, the IRS also decided not to interview any of the victims.

How can you have an investigation of the IRS when they don't even interview the victims? How can you have an accountability review board if you don't even interview the decisionmakers in the State Department, including the Secretary of State and her top advisors?

This is embarrassing, if it weren't even more tragic, because, again, we are talking about the unprecedented loss of life of four Americans, including our Ambassador.

Secretary of State Clinton, herself, championed the United States' going into Libya going back to as early as 2011. She testified before the committee that she was engaged in the issues relating to the deteriorating threat environment in Libya.

That is pretty interesting, Mr. Speaker. You see, both Hillary Rodham Clinton—the Secretary of State—and President Obama believed that the United States of America unilaterally needed to go into Libya and start bombing.

□ 1900

That was their agreed-upon decision, and when the chips were down and when the threat environment was deteriorating in Libya and Lieutenant Colonel Andrew Wood said, Hey, we've got a problem here in Benghazi and we've got to either pull out or we have to have more security, the Secretary of State and those who serve under her don't heed those warnings. Not only do they not pull out of Benghazi, but they don't give the increased security that was required to keep the Americans who were serving us safe. When they do that, then that is a problem.

What is an additional problem, Mr. Speaker, is the fact that at the State Department not one employee was fired or even missed a paycheck over what happened in Benghazi. I would imagine, Mr. Speaker, there are a lot of Americans that don't know that; that despite this tragedy, despite this lack of accountability, of anyone being held responsible—Oh, yes, we heard that there were four people who were going to lose their jobs. My foot, Mr. Speaker. Four people didn't lose their jobs at the State Department. Two were reassigned, one retired, and another one had another similar situation. No one was fired. No one even missed a paycheck.

What we need to do, Mr. Speaker, is listen to the good commonsense of the American people who are demanding answers.

What in the world happened in this lead-up before Benghazi?

We need to hold the Secretary of State and the President accountable for what they knew and why they failed to make the important commonsense decisions that any Commander in Chief should make.

We need to ask that second question, What in the world was the President of the United States doing that night when the attack happened in Benghazi? For over 8 hours, Americans were under attack and no one came to their aid or assistance, other than those who were at the annex who came and were willing to lay down their lives, and those who came from Tripoli. It took them hours and hours, but they were finally able to come to assist their comrades in arms.

Then also the third question that needs to be addressed, Mr. Speaker, is

this: What happened after that night in Benghazi? Why did Secretary of State Hillary Clinton, why did President Barack Obama continue to force the false fiction that there was a video that no one saw was the cause for a spontaneous outbreak that led to the deaths of these four Americans in Benghazi?

We have listened to people who were on the ground in Benghazi. They stated overwhelmingly that this attack was not spontaneous. It was planned. Yet for weeks afterwards, the President of the United States, as late as September 25, when he went to the United Nations, made a statement—this was after four Americans were killed—the President of the United States said this at the U.N.:

The future does not belong to those who insult the prophet.

Those were his words.

We need to get answers. Again, I encourage the American people, Mr. Speaker, to read this valuable report issued this week on Benghazi by the Committee on Foreign Affairs in the House of Representatives.

I yield back the balance of my time.

LEAVE OF ABSENCE

By unanimous consent, leave of absence was granted to:

Mr. DEFAZIO (at the request of Ms. PELOSI) for today until 5 p.m. on account of weather conditions in Oregon.

Mr. LEWIS of Georgia (at the request of Ms. PELOSI) for February 10 and 11.

Mr. RUSH (at the request of Ms. PELOSI) for February 10 and 11 on account of attending to family acute medical care and hospitalization.

SENATE BILL REFERRED

A bill of the Senate of the following title was taken from the Speaker's table and, under the rule, referred as follows:

S. 1954. An act to provide for the extension of the enforcement instruction on supervision requirements for outpatient therapeutic services in critical access and small rural hospitals through 2014; to the Committee on Energy and Commerce; in addition to the Committee on Ways and Means for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

ADJOURNMENT

Mrs. BACHMANN. Mr. Speaker, I move that the House do now adjourn.

The motion was agreed to; accordingly (at 7 o'clock and 3 minutes p.m.), under its previous order, the House adjourned until Friday, February 14, 2014, at 2 p.m.

EXECUTIVE COMMUNICATIONS, ETC.

Under clause 2 of rule XIV, executive communications were taken from the Speaker's table and referred as follows:

4743. A letter from the Chief Counsel, FEMA, Department of Homeland Security, transmitting the Department's final rule — Final Flood Elevation Determinations (Volusia County, FL, et al.); [Docket ID: FEMA-2013-0002] received January 31, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Financial Services.

4744. A letter from the Chief Counsel, Department of Homeland Security, transmitting the Department's final rule — Final Flood Elevation Determinations (Venango County, Pennsylvania, All Jurisdictions); [Docket ID: FEMA-2013-0002] received January 31, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Financial Services.

4745. A letter from the Assistant Secretary for Legislative Affairs, Department of the Treasury, transmitting a report on Minority Depository Institutions 2013 Report to Congress; to the Committee on Financial Services.

4746. A letter from the Chairman and President, Export-Import Bank, transmitting a report on transactions involving U.S. exports to Air Canada of Saint Laurent, Canada; to the Committee on Financial Services.

4747. A letter from the Secretary, Department of Health and Human Services, transmitting the performance report for the Generic Drug User Fee Amendments for FY 2013; to the Committee on Energy and Commerce.

4748. A letter from the Secretary, Department of Health and Human Services, transmitting the performance report as required by the Animal Generic Drug User Fee Act for FY 2013; to the Committee on Energy and Commerce.

4749. A letter from the Secretary, Department of Health and Human Services, transmitting fiscal year 2013 Performance Report to Congress for the Animal Generic Drug User Fee Act; to the Committee on Energy and Commerce.

4750. A letter from the Secretary, Department of Health and Human Services, transmitting fiscal year 2013 Performance Report to Congress for the Prescription Drug User Fee Act; to the Committee on Energy and Commerce.

4751. A letter from the Secretary, Department of Health and Human Services, transmitting the Evaluation Findings — Performance Improvement 2013-2014 report; to the Committee on Energy and Commerce.

4752. A letter from the Secretary, Department of Health and Human Services, transmitting the FY 2013 performance report for the Biosimilar User Fee Act; to the Committee on Energy and Commerce.

4753. A letter from the Director, Regulatory Management Division, Environmental Protection Agency, transmitting the Agency's final rule — Approval and Promulgation of Air Quality Implementation Plans; Indiana; Consent Decree Requirements [EPA-R05-OAR-2012-0650; FRL-9905-54-Region 5] received January 16, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Energy and Commerce.

4754. A letter from the Director, Regulatory Management Division, Environmental Protection Agency, transmitting the Agency's final rule — Approval and Promulgation of Air Quality Implementation Plans; West Virginia; Section 110(a)(2) Infrastructure Requirements for the 2010 Nitrogen Dioxide National Ambient Air Quality Standards [EPA-R03-OAR-2013-0675; FRL-9905-62-Region 3] received January 16, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Energy and Commerce.

4755. A letter from the Director, Regulatory Management Division, Environmental Protection Agency, transmitting the Agency's final rule — Approval and Promulgation of Air Quality Implementation Plans; Delaware; Infrastructure Requirements for the 2010 Sulfur Dioxide National Ambient Air Quality Standards [EPA-R03-OAR-2013-0492; FRL-9905-63-Region 3] received January 16, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Energy and Commerce.

4756. A letter from the Director, Regulatory Management Division, Environmental Protection Agency, transmitting the Agency's final rule — Approval and Promulgation of Implementation Plans and Title V Operating Permit Program; State of Iowa [EPA-R07-OAR-2013-0483; FRL-9905-21-Region 7] received January 16, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Energy and Commerce.

4757. A letter from the Director, Regulatory Management Division, Environmental Protection Agency, transmitting the Agency's final rule — Changes to Dispute Procedures [EPA-HQ-OARM-2013-0705; FRL-9803-9] received January 16, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Energy and Commerce.

4758. A letter from the Director, Regulatory Management Division, Environmental Protection Agency, transmitting the Agency's final rule — Dinotefuran; Pesticide Tolerances for Emergency Exemptions [EPA-HQ-OPP-2012-0755; FRL-9402-8] received January 16, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Energy and Commerce.

4759. A letter from the Secretary, Department of the Treasury, transmitting as required by section 401(c) of the National Emergencies Act, 50 U.S.C. 1641(c), and section 204(c) of the International Emergency Economic Powers Act, 50 U.S.C. 1703(c), a six-month periodic report on the national emergency with respect to transnational criminal organizations that was declared in Executive Order 13581 of July 24, 2011; to the Committee on Foreign Affairs.

4760. A letter from the Secretary, Department of the Treasury, transmitting as required by section 401(c) of the National Emergencies Act, 50 U.S.C. 1641(c), and section 204(c) of the International Emergency Economic Powers Act, 50 U.S.C. 1703(c), a six-month periodic report on the national emergency with respect to Libya that was declared in Executive Order 13566 of February 25, 2011; to the Committee on Foreign Affairs.

4761. A letter from the Chairman, Council of the District of Columbia, transmitting Transmittal of D.C. Act 20-273, ''Omnibus Health Regulation Amendment Act of 2014''; to the Committee on Oversight and Government Reform.

4762. A letter from the General Counsel, Department of Housing and Urban Development, transmitting three reports pursuant to the Federal Vacancies Reform Act of 1998; to the Committee on Oversight and Government Reform.

4763. A letter from the Director, Mississippi River Commission, Department of the Army, transmitting a copy of the annual report in compliance with the Government in the Sunshine Act, for the Mississippi River Commission covering the calendar year 2013, pursuant to 5 U.S.C. 552b(j); to the Committee on Oversight and Government Reform.

4764. A letter from the Office of Communications and Legislative Affairs, Equal Employment Opportunity Commission, transmitting the Commission's Annual Sunshine Act Report for 2012; to the Committee on Oversight and Government Reform.

4765. A letter from the Secretary, Postal Service, transmitting the Service's report, as required by Section 3686(c) of the Postal Accountability and Enhancement Act of 2006; to the Committee on Oversight and Government Reform.

4766. A letter from the Principal Deputy Assistant Attorney General, Department of

Justice, transmitting a letter regarding the Improper Payments Elimination and Recovery Act; to the Committee on the Judiciary.

4767. A letter from the Regulations Officer, Department of Transportation, transmitting the Department's final rule — Environmental Impact and Related Procedures [Docket No.: FHWA-2013-0007] (RIN: 2125-AF48) (RIN: 2132-AB05) received February 6, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Transportation and Infrastructure.

4768. A letter from the Paralegal Specialist, Department of Transportation, transmitting the Department's final rule — Airworthiness Directives; Eurocopter France Helicopters [Docket No.: FAA-2013-0635; Directorate Identifier 2012-SW-081-AD; Amendment 39-17720; AD 2013-26-11] (RIN: 2120-AA64) received February 6, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Transportation and Infrastructure.

4769. A letter from the Paralegal Specialist, Department of Transportation, transmitting the Department's final rule — Airworthiness Directives; Turbomeca S.A. Turboshaft Engines [Docket No.: FAA-2013-0575; Directorate Identifier 2013-NE-21-AD; Amendment 39-17718; AD 2013-26-09] (RIN: 2120-AA64) received February 6, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Transportation and Infrastructure.

4770. A letter from the Paralegal Specialist, Department of Transportation, transmitting the Department's final rule — Airworthiness Directives; Alexander Schleicher, Segelflugzeugbau Gliders [Docket No.: FAA-2014-0019; Directorate Identifier 2013-CE-045-AD] (RIN: 2120-AA64) received February 6, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Transportation and Infrastructure.

4771. A letter from the Paralegal Specialist, Department of Transportation, transmitting the Department's final rule — Airworthiness Directives; The Boeing Company Airplanes [Docket No.: FAA-2013-0095; Directorate Identifier 2011-NM-197-AD; Amendment 39-17699; AD 2013-25-03] (RIN: 2120-AA64) received February 6, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Transportation and Infrastructure.

4772. A letter from the Paralegal Specialist, Department of Transportation, transmitting the Department's final rule — Environmental Impact and Related Procedures [Docket No.: FHWA-2013-0007] [FHWA RIN: 2125-AF48] [FTA RIN: 2132-AB05] received February 6, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Transportation and Infrastructure.

4773. A letter from the FMCSA Regulatory Ombudsman, Department of Transportation, transmitting the Department's final rule — Patterns of Safety Violations by Motor Carrier Management [Docket No.: FMCSA-2011-0321] (RIN: 2126-AB42) received February 6, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Transportation and Infrastructure.

REPORTS OF COMMITTEES ON PUBLIC BILLS AND RESOLUTIONS

Under clause 2 of rule XIII, reports of committees were delivered to the Clerk for printing and reference to the proper calendar, as follows:

Mr. WOODALL: Committee on Rules. House Resolution 478. Resolution providing for consideration of the bill (S. 540), to designate the air route traffic control center located in Nashua, New Hampshire, as the ''Patricia Clark Boston Air Route Traffic Control Center'', and for other purposes (Rept. 113–351). Referred to the House Calendar.

PUBLIC BILLS AND RESOLUTIONS

Under clause 2 of rule XII, public bills and resolutions of the following titles were introduced and severally referred, as follows:

By Mr. MILLER of Florida (for himself, Mr. BENISHEK, Mr. COFFMAN, Mr. FLORES, Mr. HUELSKAMP, Mr. LAMBORN, Mr. ROTHFUS, Mrs. WALORSKI, Mr. HUDSON, and Mr. KELLY of Pennsylvania):

H.R. 4031. A bill to amend title 38, United States Code, to provide for the removal of Senior Executive Service employees of the Department of Veterans Affairs for performance, and for other purposes; to the Committee on Veterans' Affairs, and in addition to the Committee on Oversight and Government Reform, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. HALL (for himself, Mr. SESSIONS, and Mr. SAM JOHNSON of Texas):

H.R. 4032. A bill to exempt from Lacey Act Amendments of 1981 certain water transfers by the North Texas Municipal Water District and the Greater Texoma Utility Authority, and for other purposes; to the Committee on Natural Resources, and in addition to the Committee on the Judiciary, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. CÁRDENAS (for himself and Mr. MULVANEY):

H.R. 4033. A bill to provide relocation subsidies for the long-term unemployed, and for other purposes; to the Committee on Education and the Workforce.

By Mr. PASCRELL (for himself and Mr. KING of New York):

H.R. 4034. A bill to enhance homeland security by improving efforts to prevent, protect against, respond to, and recover from an attack with a weapon of mass destruction, and for other purposes; to the Committee on Homeland Security, and in addition to the Committees on Energy and Commerce, Transportation and Infrastructure, Foreign Affairs, and Intelligence (Permanent Select), for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. MCDERMOTT (for himself and Mr. LATHAM):

H.R. 4035. A bill to amend title XVIII of the Social Security Act to provide Medicare beneficiaries coordinated care and greater choice with regard to accessing hearing health services and benefits; to the Committee on Energy and Commerce, and in addition to the Committee on Ways and Means, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. BURGESS:

H.R. 4036. A bill to prohibit the Central Intelligence Agency from using an unmanned aerial vehicle to carry out a weapons strike or other deliberately lethal action and to transfer the authority to conduct such strikes or lethal action to the Department of Defense; to the Committee on Intelligence (Permanent Select), and in addition to the Committee on Armed Services, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. FLORES:

H.R. 4037. A bill to amend title 38, United States Code, to make certain improvements in the laws administered by the Secretary of Veterans Affairs relating to training and rehabilitation for veterans with service-connected disabilities, and for other purposes; to the Committee on Veterans' Affairs.

By Mr. FLORES:

H.R. 4038. A bill to direct the Secretary of Veterans Affairs to make certain improvements in the information technology of the Veterans Benefits Administration of the Department of Veterans Affairs to process claims more efficiently, and for other purposes; to the Committee on Veterans' Affairs.

By Mr. COSTA (for himself, Mr. CÁRDENAS, and Mr. FARR):

H.R. 4039. A bill to direct the Secretary of the Interior, the Secretary of Commerce, and the Administrator of the Environmental Protection Agency to take actions to provide additional water supplies and disaster assistance to the State of California due to drought, and for other purposes; to the Committee on Natural Resources, and in addition to the Committees on Transportation and Infrastructure, Energy and Commerce, Agriculture, and the Budget, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. CARTWRIGHT (for himself, Mr. TAKANO, and Mr. STOCKMAN):

H.R. 4040. A bill to promote and ensure delivery of high quality special education and related services to students with visual disabilities or who are deaf or hard of hearing through instructional methodologies meeting their unique learning needs; to enhance accountability for the provision of such services, and for other purposes; to the Committee on Education and the Workforce.

By Mr. JOHNSON of Georgia (for himself, Mr. COLLINS of Georgia, Mr. CONYERS, Mr. RUSH, Ms. NORTON, Mr. NADLER, Mr. CLAY, Ms. JACKSON LEE, Mr. MEEKS, Ms. HAHN, Mr. RANGEL, Mrs. BEATTY, Mr. COHEN, Mr. PITTS, Mr. HINOJOSA, Mr. GRIJALVA, Mr. BUTTERFIELD, Mr. CARSON of Indiana, Mr. TONKO, Mr. DINGELL, Ms. SEWELL of Alabama, Mr. CUMMINGS, Ms. BROWN of Florida, Ms. LEE of California, Mrs. CHRISTENSEN, Ms. MOORE, Mr. HASTINGS of Florida, Ms. WILSON of Florida, Ms. EDWARDS, Ms. WATERS, Ms. SCHAKOWSKY, Mr. BLUMENAUER, Mr. DANNY K. DAVIS of Illinois, Mr. BISHOP of Georgia, Mr. VAN HOLLEN, Mr. PAYNE, Mr. ELLISON, Mr. FATTAH, Mr. RICHMOND, Ms. KELLY of Illinois, Ms. BASS, Mr. GUTIÉRREZ, Ms. CLARKE of New York, Mr. VEASEY, Mr. THOMPSON of Mississippi, Mr. CLYBURN, Ms. ESHOO, Ms. KAPTUR, Ms. FUDGE, Ms. EDDIE BERNICE JOHNSON of Texas, and Mr. JEFFRIES):

H.R. 4041. A bill to award a Congressional Gold Medal to the Freedom Riders, collectively, in recognition of their unique contribution to Civil Rights, which inspired a revolutionary movement for equality in interstate travel; to the Committee on Financial Services, and in addition to the Committee on House Administration, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. LUETKEMEYER (for himself, Mr. PERLMUTTER, Mr. COTTON, Mr. LUCAS, and Mr. WOMACK):

H.R. 4042. A bill to require a study of appropriate capital requirements for mortgage servicing assets for nonsystemic banking institutions, and for other purposes; to the Committee on Financial Services.

By Mr. ROTHFUS:

H.R. 4043. A bill to suspend the debt ceiling temporarily, to hold the salaries of Members of a House of Congress in escrow if the House of Congress does not agree to a budget resolution or pass regular appropriation bills on a timely basis during a Congress, and for other purposes; to the Committee on Ways and Means, and in addition to the Committee on House Administration, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. BRALEY of Iowa:

H.R. 4044. A bill to amend the Internal Revenue Code of 1986 to increase the child tax credit for 2 years; to the Committee on Ways and Means.

By Mr. CICILLINE (for himself, Mr. BARBER, Ms. BASS, Mr. BECERRA, Ms. EDDIE BERNICE JOHNSON of Texas, Mr. BISHOP of New York, Mr. BLUMENAUER, Mr. BROOKS of Alabama, Mrs. BUSTOS, Mr. BUTTERFIELD, Mrs. CAPPS, Mr. CARNEY, Mr. CARTWRIGHT, Ms. CASTOR of Florida, Mr. CASTRO of Texas, Mrs. CHRISTENSEN, Ms. CHU, Ms. CLARKE of New York, Mr. CLEAVER, Mr. CLYBURN, Mr. COHEN, Mr. COSTA, Mr. COURTNEY, Mrs. DAVIS of California, Ms. DELAURO, Mr. DEUTCH, Mr. DINGELL, Mr. DOGGETT, Ms. DUCKWORTH, Ms. EDWARDS, Mr. ELLISON, Mr. FATTAH, Ms. FRANKEL of Florida, Ms. FUDGE, Ms. GABBARD, Mr. GARAMENDI, Mr. GARCIA, Mr. GIBSON, Mr. AL GREEN of Texas, Ms. HAHN, Ms. HANABUSA, Mr. HANNA, Mr. HASTINGS of Florida, Mr. HECK of Washington, Mr. HIGGINS, Mr. HIMES, Mr. HOLT, Mr. HONDA, Mr. HORSFORD, Mr. HOYER, Mr. HUFFMAN, Ms. JACKSON LEE, Mr. JONES, Ms. KAPTUR, Mr. KEATING, Ms. KELLY of Illinois, Mr. KILDEE, Mrs. KIRKPATRICK, Mr. LANCE, Mr. LANGEVIN, Mr. LANKFORD, Mr. LARSON of Connecticut, Mrs. LOWEY, Mrs. CAROLYN B. MALONEY of New York, Ms. MATSUI, Mr. MCALLISTER, Mr. MCGOVERN, Mr. MCNERNEY, Mr. MEADOWS, Mr. MEEKS, Mr. MORAN, Mr. MURPHY of Florida, Mr. NADLER, Mrs. NEGRETE MCLEOD, Mr. NOLAN, Mr. O'ROURKE, Mr. PALLONE, Mr. PASCRELL, Mr. PAYNE, Ms. PELOSI, Mr. POCAN, Mr. QUIGLEY, Mr. RANGEL, Mr. RENACCI, Mr. RICHMOND, Ms. ROS-LEHTINEN, Ms. SCHAKOWSKY, Mr. SCHIFF, Mr. SCHOCK, Ms. SCHWARTZ, Mr. DAVID SCOTT of Georgia, Mr. SCOTT of Virginia, Ms. SEWELL of Alabama, Ms. SHEA-PORTER, Mr. SHIMKUS, Mr. SIRES, Mr. THOMPSON of California, Mr. THOMPSON of Mississippi, Mr. TIERNEY, Mr. TONKO, Mr. VARGAS, Mr. VELA, Ms. VELÁZQUEZ, Mr. WALZ, Ms. WASSERMAN SCHULTZ, Ms. WATERS, Mr. WAXMAN, Mr. WILSON of South Carolina, Mr. YARMUTH, and Mr. YOUNG of Alaska):

H.R. 4045. A bill to award a Congressional gold medal, collectively, to the First Rhode Island Regiment, in recognition of their dedicated service during the Revolutionary War; to the Committee on Financial Services, and in addition to the Committee on House Administration, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. COHEN:

H.R. 4046. A bill to strike provisions that prohibit the Director of the Office of National Drug Control Policy from studying the legalization of marijuana, that require the Director to oppose any attempt to legalize marijuana, and for other purposes; to the Committee on Oversight and Government Reform, and in addition to the Committees on Energy and Commerce, and the Judiciary, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. CULBERSON:

H.R. 4047. A bill to protect 10th Amendment rights by providing special standing for State government officials to challenge proposed regulations, and for other purposes; to the Committee on the Judiciary.

By Mr. DUFFY:

H.R. 4048. A bill to direct the Federal Trade Commission to promulgate regulations prohibiting mobile applications from accessing certain content and functions of a mobile device when such applications are not actively in use unless the user is provided with a disclosure of such access and grants affirmative express consent to such access; to the Committee on Energy and Commerce.

By Mr. DUFFY:

H.R. 4049. A bill to amend the Act to provide for the establishment of the Apostle Islands National Lakeshore in the State of Wisconsin, and for other purposes, to adjust the boundary of that National Lakeshore to include the lighthouse known as Ashland Harbor Breakwater Light, and for other purposes; to the Committee on Natural Resources, and in addition to the Committee on Transportation and Infrastructure, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. HECK of Washington (for himself and Mr. KILMER):

H.R. 4050. A bill to amend the Servicemembers Civil Relief Act to provide for alternate means of proof of period of military service for purposes of the interest rate limitation; to the Committee on Veterans' Affairs.

By Mr. LOEBSACK:

H.R. 4051. A bill to amend the Farm Security and Rural Investment Act of 2002 to establish a competitive grant program for renewable fuel infrastructure, and for other purposes; to the Committee on Agriculture, and in addition to the Committee on Natural Resources, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Ms. MICHELLE LUJAN GRISHAM of New Mexico:

H.R. 4052. A bill to amend the Internal Revenue Code of 1986 to provide a standard home office deduction; to the Committee on Ways and Means.

By Mrs. NEGRETE MCLEOD:

H.R. 4053. A bill to amend title 38, United States Code, to direct the Secretary of Veterans Affairs to establish standards for the provision of mammograms at health care facilities of the Department of Veterans Affairs; to the Committee on Veterans' Affairs.

By Ms. NORTON (for herself, Mr. FARR, Mr. CONYERS, and Mr. CARTWRIGHT):

H.R. 4054. A bill to make supplemental appropriations to provide additional funds to Americorps for the fiscal year ending September 30, 2014; to the Committee on Appropriations.

By Ms. NORTON:

H.R. 4055. A bill to establish the Frederick Douglass Bicentennial Commission; to the Committee on Oversight and Government Reform.

By Mr. PETERS of Michigan (for himself and Mr. LANKFORD):

H.R. 4056. A bill to reduce the operation and maintenance costs associated with the Federal fleet by encouraging the use of remanufactured parts, and for other purposes; to the Committee on Oversight and Government Reform.

By Mr. PETERS of Michigan:

H.R. 4057. A bill to authorize funding for construction of U.S. Customs and Border Protection customs plazas at land ports of entry, and for other purposes; to the Committee on Homeland Security, and in addition to the Committee on Ways and Means, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. LANKFORD:

H.J. Res. 110. A joint resolution granting the consent of Congress to the Health Care Compact; to the Committee on the Judiciary.

By Mr. HARPER:

H. Con. Res. 81. Concurrent resolution providing a correction in the enrollment of S. 25; considered and agreed to. considered and agreed to.

By Mr. HARPER:

H. Con. Res. 82. Concurrent resolution providing a correction in the enrollment of S. 540; considered and agreed to. considered and agreed to.

By Ms. GABBARD (for herself and Ms. HANABUSA):

H. Con. Res. 83. Concurrent resolution authorizing the use of Emancipation Hall in the Capitol Visitor Center for an event to celebrate the birthday of King Kamehameha I; to the Committee on House Administration.

By Mr. AL GREEN of Texas (for himself, Ms. BASS, Mr. BISHOP of Georgia, Mr. BUTTERFIELD, Mr. CARSON of Indiana, Mrs. CHRISTENSEN, Ms. CLARKE of New York, Mr. CLAY, Mr. CLEAVER, Ms. EDWARDS, Mr. ELLISON, Ms. FUDGE, Mr. HASTINGS of Florida, Mr. HINOJOSA, Mr. HONDA, Mr. JEFFRIES, Ms. EDDIE BERNICE JOHNSON of Texas, Mr. JOHNSON of Georgia, Ms. LEE of California, Mr. LEWIS, Mr. MEEKS, Ms. MOORE, Ms. NORTON, Mr. PAYNE, Mr. RANGEL, Mr. RICHMOND, Mr. RUSH, Mr. SCOTT of Virginia, Ms. SEWELL of Alabama, Mr. THOMPSON of Mississippi, Ms. WATERS, Ms. WILSON of Florida, Mr. DAVID SCOTT of Georgia, Mr. VEASEY, Mr. CONYERS, Ms. JACKSON LEE, and Ms. CHU):

H. Con. Res. 84. Concurrent resolution honoring and praising the National Association for the Advancement of Colored People on the occasion of its 105th anniversary; to the Committee on the Judiciary.

By Mr. DUNCAN of South Carolina (for himself, Mr. WILSON of South Carolina, Mr. HARRIS, Mr. MULVANEY, Mr. FRANKS of Arizona, Mr. COLLINS of Georgia, Mr. HULTGREN, Mr. HUELSKAMP, Mr. MASSIE, Mrs. BLACKBURN, Mr. TERRY, Mr. AMASH, Mr. COTTON, Mr. ROGERS of Alabama, Mr. SALMON, Mr. GIBBS, Mr. JONES, Mr. SESSIONS, Mr. POMPEO, Mr. SANFORD, Mr. KINGSTON, Mr. LANCE, Mr. BENTIVOLIO, Mr. COOK, Mr. CRAMER, Mr. DAINES, Mr. FLEMING, Mr. LANKFORD, Mr. BISHOP of Utah, Mr. WEBER of Texas, Mr. STUTZMAN, Mr. MEADOWS, Mr. YOHO, Mr. LAMALFA, Mr. GOHMERT, Mr. FLORES, Mr. KING of Iowa, Mr. CHABOT, Mr. ROONEY, Mr. STEWART, Mr. CRAWFORD, Mr. GOSAR, and Mr. BENISHEK):

H. Res. 476. A resolution strongly supporting the restoration and protection of State authority and flexibility in establishing and defining challenging student academic standards and assessments, and strongly denouncing the President's coercion

of States into adopting the Common Core State Standards by conferring preferences in Federal grants and flexibility waivers; to the Committee on Education and the Workforce.

By Mrs. CAROLYN B. MALONEY of New York (for herself, Mr. BILIRAKIS, and Mr. SARBANES):

H. Res. 477. A resolution expressing the sense of the House of Representatives that the former Yugoslav Republic of Macedonia should work within the framework of the United Nations process and in good faith with Greece to achieve longstanding United States and United Nations policy goals by finding a mutually acceptable name that must apply for all internal and international uses (erga omnes), for the former Yugoslav Republic of Macedonia; to the Committee on Foreign Affairs.

By Mr. ELLISON (for himself, Mr. GRIJALVA, Ms. HAHN, Ms. LEE of California, Mr. MORAN, Ms. SCHAKOWSKY, Mr. HOLT, Mrs. CHRISTENSEN, Ms. CHU, Mr. HONDA, Mr. LEWIS, Mr. NADLER, Ms. CLARKE of New York, Ms. JACKSON LEE, Ms. MCCOLLUM, Mr. QUIGLEY, Ms. NORTON, and Mr. CLEAVER):

H. Res. 479. A resolution recognizing the 20th anniversary of the Executive Order 12898, Federal Actions to Address Environmental Justice in Minority Populations and Low-Income Populations; to the Committee on Energy and Commerce, and in addition to the Committee on Natural Resources, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. ENGEL:

H. Res. 480. A resolution honoring The Hudson River School Painters for their contributions to the United States; to the Committee on Oversight and Government Reform.

By Mr. AL GREEN of Texas (for himself, Ms. BASS, Mr. BISHOP of Georgia, Mr. BUTTERFIELD, Mr. CARSON of Indiana, Mrs. CHRISTENSEN, Ms. CLARKE of New York, Mr. CLAY, Mr. CLEAVER, Ms. EDWARDS, Mr. ELLISON, Ms. FUDGE, Mr. HASTINGS of Florida, Mr. HINOJOSA, Mr. HONDA, Mr. JEFFRIES, Ms. EDDIE BERNICE JOHNSON of Texas, Mr. JOHNSON of Georgia, Ms. LEE of California, Mr. LEWIS, Mr. MEEKS, Ms. MOORE, Ms. NORTON, Mr. PAYNE, Mr. RANGEL, Mr. RICHMOND, Mr. RUSH, Mr. SCOTT of Virginia, Ms. SEWELL of Alabama, Mr. THOMPSON of Mississippi, Ms. WATERS, Ms. WILSON of Florida, Mr. DAVID SCOTT of Georgia, Mr. VEASEY, Mr. CONYERS, Ms. JACKSON LEE, and Ms. CHU):

H. Res. 481. A resolution recognizing the significance of Black History Month; to the Committee on Education and the Workforce.

By Mr. HONDA (for himself, Ms. MATSUI, Ms. CHU, Mr. GRIJALVA, Mr. GRAYSON, Mr. LOWENTHAL, Mr. KILMER, Mr. TAKANO, Ms. SPEIER, Mr. BERA of California, Mr. SWALWELL of California, Mr. FALEOMAVAEGA, Ms. MENG, and Mr. SABLAN):

H. Res. 482. A resolution recognizing the significance of the 67th anniversary of the signing of Executive Order 9066 by President Franklin D. Roosevelt and supporting the goals of the Japanese American, German American, and Italian American communities in recognizing a National Day of Remembrance to increase public awareness of the events surrounding the restriction, exclusion, and incarceration of individuals and families during World War II; to the Committee on the Judiciary.

By Mr. LIPINSKI (for himself, Mr. COLLINS of New York, Ms. BORDALLO, Mr. GRIJALVA, Mr. HONDA, Mr. MCKINLEY, Mr. HINOJOSA, Mr. TONKO, Ms. EDWARDS, Mr. CONYERS, Ms. ESTY, Mr. HOLT, Ms. LOFGREN, Mr. SWALWELL of California, Mr. PETERS of California, Mr. KENNEDY, Mr. ROHRABACHER, Ms. JACKSON LEE, Mr. CÁRDENAS, Mr. POCAN, Ms. SHEA-PORTER, Mrs. CHRISTENSEN, Mr. RANGEL, and Mr. ROYCE):

H. Res. 483. A resolution supporting the goals and ideals of National Engineers Week; to the Committee on Science, Space, and Technology, and in addition to the Committee on Education and the Workforce, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Ms. SLAUGHTER:

H. Res. 484. A resolution expressing support for designation of the week of March 16, 2014, through March 22, 2014, as National Young Audiences Arts for Learning Week; to the Committee on Education and the Workforce.

CONSTITUTIONAL AUTHORITY STATEMENT

Pursuant to clause 7 of rule XII of the Rules of the House of Representatives, the following statements are submitted regarding the specific powers granted to Congress in the Constitution to enact the accompanying bill or joint resolution.

By Mr. MILLER of Florida:

H.R. 4031.

Congress has the power to enact this legislation pursuant to the following:

Article I, section 8 of the Constitution of the United States.

By Mr. HALL:

H.R. 4032.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8, Clause 18.

By Mr. CÁRDENAS:

H.R. 4033.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 1.

All legislative powers herein granted shall be vested in a Congress of the United States, which shall consist of a Senate and House of Representatives.

By Mr. PASCRELL:

H.R. 4034.

Congress has the power to enact this legislation pursuant to the following:

Art. I, Section 8, clause 18: ''The Congress shall have Power. . .To make all Laws which shall be necessary and proper for carrying into Execution the foregoing Powers, and all other Powers vested by this Constitution in the Government of the United States or in any Department or Officer thereof.''

By Mr. McDERMOTT:

H.R. 4035.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8

By Mr. BURGESS:

H.R. 4036.

Congress has the power to enact this legislation pursuant to the following:

Under Article 1, Section VIII, Clause 1, ''The Congress shall have power to lay and collect taxes, duties, imposts and excises, to pay the debts and provide for the common defense and general welfare of the United States . . .'' In addition, Article I, Section VIII, Clause 14 provides, ''To make rules for the government and regulation of the land and naval forces.'' Lastly, Article I, Section VIII, Clause 16 states ''The Congress shall have Power To provide for organizing, arming, and disciplining, the Militia, and for governing such Part of them as may be employed in the Service of the United States, reserving to the States respectively, the Appointment of the Officers, and the Authority of training the Militia according to the discipline prescribed by Congress.''

By Mr. FLORES:

H.R. 4037.

Congress has the power to enact this legislation pursuant to the following:

Article I, section 8 of the Constitution of the United States.

By Mr. FLORES:

H.R. 4038.

Congress has the power to enact this legislation pursuant to the following:

Article I, section 8 of the Constitution of the United States.

By Mr. COSTA:

H.R. 4039.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 7 and Article I, Section 8, Clause 3 of the Constitution

By Mr. CARTWRIGHT:

H.R. 4040.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8 (relating to the power of Congress to lay and collect taxes, duties, imposts and excises, to pay the debts and provide for the common defense and general welfare of the United States).

By Mr. JOHNSON of Georgia:

H.R. 4041.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 18 of the Constitution

By Mr. LUETKEMEYER:

H.R. 4042.

Congress has the power to enact this legislation pursuant to the following:

The constitutional authority on which this bill rests is the explicit power of Congress to regulate commerce in and among the states, as enumerate in Article 1, Section 8, Clause 3, the Commerce Clause, of the United States Constitution.

By Mr. ROTHFUS:

H.R. 4043.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 1

By Mr. BRALEY of Iowa:

H.R. 4044.

Congress has the power to enact this legislation pursuant to the following:

This bill is enacted pursuant to the power granted to Congress under Article I, Section 8, Clause 18 of the United States Constitution.

By Mr. CICILLINE:

H.R. 4045.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8

By Mr. COHEN:

H.R. 4046.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8 of the United States Constitution

By Mr. CULBERSON:

H.R. 4047.

Congress has the power to enact this legislation pursuant to the following:

Article III, Section 2, Clause 1 & the Tenth Amendment.

By Mr. DUFFY:

H.R. 4048.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8, Clause 3 of the Constitution: ''To regulate Commerce with foreign nations, and among several States, and with the Indian Tribes.''

Article 1, Section 8, Clause 18 of the Constitution: ''To make all Laws which shall be necessary and proper for carrying into Execution the foregoing Powers, and all other Powers vested by this Constitution in the Government of the United States or in any Department or Officer thereof.''

By Mr. DUFFY:

H.R. 4049.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8, Clause 17 of the Constitution: ''To exercise exclusive Legislation in all Cases whatsoever, over such District (not exceeding ten Miles square) as may, by Cession of Particular States, and the Acceptance of Congress, become the Seat of the Government of the United States, and to exercise like Authority over all Places purchased by the Consent of the Legislature of the State in which the Same shall be, for the Erection of Forts, Magazines, Arsenals, dock-Yards, and other needful Buildings;''

By Mr. HECK of Washington:

H.R. 4050.

Congress has the power to enact this legislation pursuant to the following:

Article I

By Mr. LOEBSACK:

H.R. 4051.

Congress has the power to enact this legislation pursuant to the following:

Article I, section 8, clause 1

By Ms. MICHELLE LUJAN GRISHAM of New Mexico

H.R. 4052.

Congress has the power to enact this legislation pursuant to the following:

Article 1, located at section 8, clause 18 of the United States Constitution

By Mrs. NEGRETE MCLEOD:

H.R. 4053.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 18: ''The Congress shall have Power To make all Laws which shall be necessary and proper for carrying into Execution the foregoing Powers, and all other Powers vested by the Constitution in the Government of the United States, or in any Department or Officer thereof''

By Ms. NORTON:

H.R. 4054.

Congress has the power to enact this legislation pursuant to the following:

clause 1 of section 8 of article I of the Constitution.

By Ms. NORTON:

H.R. 4055.

Congress has the power to enact this legislation pursuant to the following:

clause 18 of section 8 of article I of the Constitution.

By Mr. PETERS of Michigan:

H.R. 4056.

Congress has the power to enact this legislation pursuant to the following:

Section 8 of Article I of the Constitution of the United States

By Mr. PETERS of Michigan:

H.R. 4057.

Congress has the power to enact this legislation pursuant to the following:

Section 8 of Article I of the United States Constitution

By Mr. LANKFORD:

H.J. Res. 110.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 10, Clause 3 of the United States Constitution:

No State shall, without the Consent of Congress, lay any Duty of Tonnage, keep Troops, or Ships of War in time of Peace, enter into any Agreement or Compact with another State, or with a foreign Power, or engage in War, unless actually invaded, or in such imminent Danger as will not admit of delay.

ADDITIONAL SPONSORS

Under clause 7 of rule XII, sponsors were added to public bills and resolutions as follows:

H.R. 20: Ms. CLARK of Massachusetts and Mr. DANNY K. DAVIS of Illinois.

H.R. 24: Mr. DENHAM, Mr. COFFMAN, and Mr. BISHOP of Utah.

H.R. 38: Mr. DELANEY.

H.R. 60: Ms. SPEIER, Mr. KEATING, Ms. TITUS, and Ms. SLAUGHTER.

H.R. 164: Mr. MEEKS and Mr. BROOKS of Alabama.

H.R. 184: Mr. MORAN.

H.R. 292: Ms. DEGETTE.

H.R. 401: Mr. HANNA.

H.R. 422: Mr. GARDNER.

H.R. 445: Mr. MAFFEI.

H.R. 455: Ms. SPEIER and Mr. HIMES.

H.R. 460: Mr. CARTWRIGHT.

H.R. 498: Mr. HONDA.

H.R. 506: Mr. CARTWRIGHT and Mr. AL GREEN of Texas.

H.R. 519: Mr. DELANEY.

H.R. 521: Mr. ELLISON.

H.R. 522: Mrs. LUMMIS, Mr. SALMON, Mr. ROE of Tennessee, Mr. MEADOWS, Mr. YOHO, Mr. LAMALFA, and Mr. CRAMER.

H.R. 533: Mr. JOYCE.

H.R. 611: Mr. BARLETTA.

H.R. 654: Ms. MCCOLLUM.

H.R. 669: Ms. MATSUI.

H.R. 685: Mr. DUNCAN of South Carolina.

H.R. 718: Mr. CRAMER, Mr. YOHO, Mr. WEBER of Texas, and Mr. SALMON.

H.R. 809: Ms. BONAMICI and Mr. DEFAZIO.

H.R. 831: Mr. GEORGE MILLER of California, Ms. CASTOR of Florida, and Ms. KELLY of Illinois.

H.R. 855: Ms. KELLY of Illinois and Mr. KIND.

H.R. 863: Ms. FRANKEL of Florida.

H.R. 875: Mr. PERRY.

H.R. 883: Mr. STEWART and Mr. RODNEY DAVIS of Illinois.

H.R. 920: Mr. KILMER.

H.R. 988: Mr. JOHNSON of Ohio.

H.R. 1010: Mr. BEN RAY LUJÁN of New Mexico.

H.R. 1015: Mr. THOMPSON of California.

H.R. 1020: Mr. BYRNE, Mr. CRENSHAW, and Mr. WALZ.

H.R. 1074: Mr. TERRY.

H.R. 1076: Mr. WOMACK.

H.R. 1084: Mrs. BEATTY, Ms. BROWN of Florida, Mr. BUTTERFIELD, Mrs. CHRISTENSEN, Mr. CLAY, Mr. CLEAVER, Mr. COHEN, Mr. CONYERS, Ms. EDWARDS, Mr. GRIJALVA, Mr. GRIMM, Mr. HASTINGS of Florida, Mr. HORSFORD, Ms. EDDIE BERNICE JOHNSON of Texas, Mr. JOHNSON of Georgia, Mr. LOEBSACK, Ms. MCCOLLUM, Mr. MEEKS, Ms. NORTON, Mr. RUSH, Mr. SERRANO, and Ms. WATERS.

H.R. 1091: Mr. LAMALFA and Mr. SANFORD.

H.R. 1125: Mrs. BUSTOS.

H.R. 1173: Mr. WAXMAN, Mr. PRICE of North Carolina, Ms. TITUS, and Mr. DEUTCH.

H.R. 1179: Mr. GEORGE MILLER of California.

H.R. 1229: Mr. CARTWRIGHT and Ms. CHU.

H.R. 1252: Mr. THOMPSON of California.

H.R. 1281: Ms. SCHWARTZ.

H.R. 1312: Mr. YOUNG of Alaska.

H.R. 1339: Ms. BROWNLEY of California and Mr. VISCLOSKY.

H.R. 1354: Mr. GRAVES of Missouri.

H.R. 1362: Mr. LOBIONDO.

H.R. 1423: Mr. NUGENT.

H.R. 1428: Mr. CARTWRIGHT.

H.R. 1507: Mr. SENSENBRENNER.

H.R. 1518: Ms. CLARK of Massachusetts and Mr. GRIFFIN of Arkansas.

H.R. 1528: Mr. CHABOT, Mr. ELLISON, Mr. OWENS, Mrs. BACHMANN, and Mr. POLIS.

H.R. 1551: Mr. SMITH of Missouri, Ms. CASTOR of Florida, Mr. HASTINGS of Florida, Mr. WITTMAN, and Mr. DANNY K. DAVIS of Illinois.

H.R. 1590: Ms. DELBENE.

H.R. 1630: Ms. CLARK of Massachusetts.

H.R. 1731: Ms. CLARK of Massachusetts.

H.R. 1739: Ms. SEWELL of Alabama.

H.R. 1750: Mrs. ELLMERS.

H.R. 1761: Mr. VARGAS.

H.R. 1770: Mr. DOGGETT.

H.R. 1851: Mrs. BUSTOS.

H.R. 1861: Mr. STIVERS and Mr. PERRY.

H.R. 2053: Mrs. BLACKBURN.

H.R. 2078: Mr. MORAN.

H.R. 2123: Mr. CROWLEY and Ms. SLAUGHTER.

H.R. 2130: Mr. BLUMENAUER.

H.R. 2229: Mr. CÁRDENAS.

H.R. 2291: Mr. HIGGINS and Mr. ENGEL.

H.R. 2452: Mr. SEAN PATRICK MALONEY of New York.

H.R. 2479: Mr. COURTNEY.

H.R. 2499: Mr. DELANEY.

H.R. 2504: Ms. JENKINS.

H.R. 2536: Mr. BERA of California.

H.R. 2548: Mr. BERA of California and Mr. NOLAN.

H.R. 2575: Mr. BYRNE, Mr. GOSAR, Mr. MCINTYRE, and Mr. BARROW of Georgia.

H.R. 2694: Mr. VALADAO.

H.R. 2702: Mr. LANGEVIN.

H.R. 2804: Mr. GOSAR.

H.R. 2822: Mr. CICILLINE.

H.R. 2839: Mr. GRAYSON.

H.R. 2870: Mr. THOMPSON of California.

H.R. 2911: Ms. MCCOLLUM.

H.R. 2959: Mr. CARTER, Mrs. HARTZLER, Mr. MCCLINTOCK, Mr. BRADY of Texas, and Mr. WALDEN.

H.R. 2985: Mr. MARINO.

H.R. 2996: Mr. STUTZMAN, Mr. YOHO, and Mr. ROONEY.

H.R. 3040: Ms. DEGETTE and Mr. O'ROURKE.

H.R. 3086: Mr. HALL, Mr. SMITH of Missouri, Mr. MARINO, Mr. LAMALFA, Mr. CRAMER, Mr. MCCLINTOCK, Mr. JOHNSON of Georgia, Mr. JOYCE, Mr. CHAFFETZ, Mr. RIBBLE, Mr. COOK, Mr. CARTWRIGHT, Mr. WITTMAN, Mr. ENYART, Mr. GRAVES of Georgia, and Mr. ROGERS of Kentucky.

H.R. 3105: Mr. WOMACK.

H.R. 3118: Mr. HORSFORD.

H.R. 3135: Mr. HUFFMAN.

H.R. 3155: Mr. FRANKS of Arizona and Mr. YOUNG of Alaska.

H.R. 3179: Mr. DESJARLAIS and Mr. DELANEY.

H.R. 3211: Mr. MULVANEY and Mr. WOMACK.

H.R. 3308: Mr. GOSAR.

H.R. 3344: Mr. BERA of California, Ms. SCHAKOWSKY, and Ms. TITUS.

H.R. 3361: Mr. DUNCAN of Tennessee, Mr. GUTHRIE, Mr. CAMPBELL, and Mr. DOYLE.

H.R. 3370: Mr. DOYLE and Ms. ROYBAL-ALLARD.

H.R. 3372: Mr. WELCH, Ms. LEE of California, Mr. CICILLINE, Mr. LARSEN of Washington, Ms. LOFGREN, Mr. CARTWRIGHT, Mr. MCGOVERN, Mr. ELLISON, Mr. MORAN, Mr. HUFFMAN, Mr. LOWENTHAL, Mr. HINOJOSA, Mr. COSTA, and Mr. SWALWELL of California.

H.R. 3384: Mr. CRAMER, Mr. CRAWFORD, Mr. HONDA, and Ms. SLAUGHTER.

H.R. 3395: Mr. BARBER.

H.R. 3398: Mr. NUGENT, Ms. MENG, Mr. DEFAZIO, Mr. PITTENGER, and Ms. SHEA-PORTER.

H.R. 3401: Mr. RICHMOND.

H.R. 3410: Ms. CLARKE of New York.

H.R. 3413: Mr. GARDNER and Mr. BISHOP of Utah.

H.R. 3461: Mr. SARBANES and Mr. O'ROURKE.

H.R. 3463: Mr. PEARCE, Mr. WELCH, and Mr. OWENS.

H.R. 3485: Mr. YODER.

H.R. 3511: Mr. LARSON of Connecticut and Mr. COURTNEY.

H.R. 3532: Mr. ENGEL, Mr. POCAN, Mr. POLIS, and Ms. SLAUGHTER.

H.R. 3541: Mr. SENSENBRENNER.

H.R. 3544: Mr. POSEY.

H.R. 3546: Ms. BROWNLEY of California, Mr. ENYART, Mr. FARR, and Mr. HORSFORD.
H.R. 3556: Mr. POLIS.
H.R. 3635: Mrs. MCMORRIS RODGERS, Mr. MCCLINTOCK, and Mr. KLINE.
H.R. 3658: Mr. HUDSON.
H.R. 3672: Mr. JONES.
H.R. 3676: Ms. SPEIER.
H.R. 3712: Mrs. MCCARTHY of New York, Mr. LOWENTHAL, Ms. HANABUSA, and Mr. DELANEY.
H.R. 3717: Mrs. WALORSKI and Mr. MULLIN.
H.R. 3725: Mr. MURPHY of Pennsylvania.
H.R. 3726: Mr. HUFFMAN.
H.R. 3740: Mr. DELANEY.
H.R. 3743: Mr. GIBSON.
H.R. 3771: Mr. RANGEL and Mr. MCDERMOTT.
H.R. 3788: Mr. HOLDING.
H.R. 3793: Mr. HASTINGS of Florida, Mr. BISHOP of New York, and Mr. ISRAEL.
H.R. 3829: Mr. MCCAUL, Mr. CRAWFORD, Mr. KELLY of Pennsylvania, and Mr. JOHNSON of Ohio.
H.R. 3847: Ms. CLARKE of New York.
H.R. 3851: Mr. SENSENBRENNER.
H.R. 3855: Mr. CRAMER and Mr. DAINES.
H.R. 3857: Mr. MEEHAN, Mr. SENSENBRENNER, and Mr. FORTENBERRY.
H.R. 3864: Mr. RODNEY DAVIS of Illinois.
H.R. 3865: Mr. PERRY and Mr. POE of Texas.
H.R. 3877: Ms. ESHOO and Ms. DELBENE.
H.R. 3899: Mr. HORSFORD and Mr. MESSER.
H.R. 3902: Mr. CARTWRIGHT and Mr. MORAN.
H.R. 3921: Mr. GARCIA, Mr. DELANEY, and Mr. GUTIÉRREZ.
H.R. 3930: Mr. RYAN of Ohio, Ms. MCCOLLUM, Mrs. WALORSKI, Mr. LAMBORN, Mr. HUIZENGA of Michigan, Mrs. BROOKS of Indiana, Mr. KING of Iowa, Mr. COFFMAN, Ms. SEWELL of Alabama, Mr. WELCH, and Mr. TERRY.
H.R. 3933: Mr. POMPEO, Mr. RODNEY DAVIS of Illinois, and Mrs. BACHMANN.
H.R. 3972: Ms. LEE of California.
H.R. 3973: Mr. LATTA.
H.R. 3978: Ms. NORTON.
H.R. 3979: Mr. GIBBS, Mr. BENTIVOLIO, Mr. GARCIA, Mr. BARBER, Mr. GOODLATTE, and Mr. GOSAR.
H.R. 3982: Ms. SLAUGHTER and Mr. LOWENTHAL.
H.R. 3985: Mr. LANCE.
H.R. 3991: Mr. DAINES and Mr. CRAMER.
H.R. 3992: Mr. RIBBLE.
H.R. 3993: Mr. YOHO.
H.R. 3996: Mr. JONES, Mr. CRAWFORD, and Mr. SMITH of Missouri.
H.R. 4001: Mr. BENISHEK and Mr. CONYERS.
H.R. 4006: Mr. MULVANEY, Mr. YOHO, Mr. WEBER of Texas, Mrs. LUMMIS, Mr. GOHMERT, and Mr. LAMALFA.
H.R. 4008: Mr. LATTA, Mr. YOHO, and Mr. DUNCAN of South Carolina.
H.R. 4012: Mr. GOSAR, Mr. WEBER of Texas, Mr. LAMALFA, and Mr. MULLIN.
H.R. 4026: Mr. VARGAS, Ms. BROWN of Florida, Ms. NORTON, and Mrs. NAPOLITANO.
H.J. Res. 56: Mr. KILMER.
H. Con. Res. 36: Ms. CLARK of Massachusetts.
H. Res. 19: Ms. ESHOO.
H. Res. 36: Mr. BYRNE and Ms. HERRERA BEUTLER.
H. Res. 59: Mr. POCAN.
H. Res. 302: Mr. LOWENTHAL and Ms. HERRERA BEUTLER.
H. Res. 365: Mr. HIMES.
H. Res. 418: Mr. LOWENTHAL, Ms. MENG, and Mr. GRIJALVA.
H. Res. 425: Mr. FARENTHOLD.
H. Res. 428: Mr. HASTINGS of Florida.
H. Res. 442: Mr. BARLETTA, Mr. ROGERS of Alabama, Mr. GRIFFIN of Arkansas, and Mr. MILLER of Florida.
H. Res. 456: Mr. GARAMENDI, Ms. LEE of California, Mr. FINCHER, Mr. BENISHEK, Mr. ADERHOLT, Ms. PINGREE of Maine, Ms. JACKSON LEE, Mrs. BROOKS of Indiana, and Mr. GRIFFIN of Arkansas.
H. Res. 467: Mr. MCGOVERN.

DELETIONS OF SPONSORS FROM PUBLIC BILLS AND RESOLUTIONS

Under clause 7 of rule XII, sponsors were deleted from public bills and resolutions as follows:

H.R. 1762: Ms. GRANGER.
H. Res. 417: Mr. PERRY.

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PROCEEDINGS AND DEBATES OF THE 113th CONGRESS, SECOND SESSION

Vol. 160 WASHINGTON, TUESDAY, FEBRUARY 11, 2014 *No. 25*

Senate

The Senate met at 10 a.m. and was called to order by the Honorable RICHARD J. DURBIN, a Senator from the State of Illinois.

PRAYER

The Chaplain, Dr. Barry C. Black, offered the following prayer:

Let us pray.

Eternal Spirit, clothed with honor and majesty, You make the clouds Your chariot and walk upon the wind. You cause the Earth to yield its harvest and send blessings to those who fear You.

Guide our lawmakers today to fulfill Your purposes. Lord, enable them to see the stamp of Your image in each person they serve, realizing that when they lift the marginalized, they labor for You. Use them to bring order out of chaos as You keep them on the road of integrity. Reward their diligence with Your bountiful blessings.

We pray in Your great Name. Amen.

PLEDGE OF ALLEGIANCE

The Presiding Officer led the Pledge of Allegiance, as follows:

I pledge allegiance to the Flag of the United States of America, and to the Republic for which it stands, one nation under God, indivisible, with liberty and justice for all.

APPOINTMENT OF ACTING PRESIDENT PRO TEMPORE

The PRESIDING OFFICER. The clerk will please read a communication to the Senate from the President pro tempore (Mr. LEAHY).

The legislative clerk read the following letter:

U.S. SENATE,
PRESIDENT PRO TEMPORE,
Washington, DC, February 11, 2014.

To the Senate:

Under the provisions of rule I, paragraph 3, of the Standing Rules of the Senate, I hereby appoint the Honorable RICHARD J. DURBIN, a Senator from the State of Illinois, to perform the duties of the Chair.

PATRICK J. LEAHY,
President pro tempore.

Mr. DURBIN thereupon assumed the Chair as Acting President pro tempore.

RECOGNITION OF THE MAJORITY LEADER

The PRESIDING OFFICER (Mr. BOOKER). The majority Leader is recognized.

SCHEDULE

Mr. REID. Mr. President, following my remarks and those of the Republican leader, the Senate will resume consideration of the motion to proceed to S. 1963, the Military Retirement Pay Restoration Act. Senator-designate JOHN WALSH of Montana will become a Senator today at 12:15. The Senate will recess today from 12:30 until 2:15 to allow for our weekly caucus meetings.

WELCOMING LIEUTENANT GOVERNOR JOHN WALSH

Mr. REID. Mr. President, today it is my pleasure to welcome the next Senator from Montana, Lt. Gov. JOHN WALSH. Governor WALSH will be sworn in prior to the weekly caucus meetings.

I am really happy with this man coming here. My friend the assistant leader has heard me say this before, but I think it is worth repeating. When I served in the House of Representatives, I served on the Foreign Affairs Committee, and Henry Kissinger appeared before the subcommittee chaired by Congressman Solarz from New York. The Congressman said to Henry Kissinger: ''I am really at a loss as to what to call you. Doctor?'' He was a Ph.D. ''Mr. Ambassador?'' He had been an ambassador. ''Mr. Secretary?'' He went through some other titles he previously had. Finally, Kissinger interrupted him and said: ''Your Excellency'' would be just fine.

We now have the same problem. JOHN WALSH has been a general. He has been Lieutenant Governor, and it is protocol when one is Lieutenant Governor to be referred to as ''Governor.'' So he has a number of different titles, but soon he will be Senator.

I have talked to him on many different occasions. He is a fine man. I am confident he will find his time here among the most rewarding experiences of his distinguished career. And he is distinguished. He spent his entire adult life serving the people of Montana and our Nation.

Lieutenant Governor WALSH served in the Montana National Guard for more than three decades. After enlisting as a private, he rose through the ranks to lead the Montana National Guard as Adjutant General. He led 2,000 guardsmen in response to the devastating wildfires in 2000. General WALSH also led 700 soldiers of the Montana National Guard's 1st Battalion, 163rd Infantry Regiment in combat in Iraq. And combat it was. It was some of the most difficult fighting that took place in the entire war. It was the largest mobilization of guardsmen in Montana since World War II. The battalion was awarded the Valorous Unit Citation, and General WALSH received a Bronze Star for his exemplary service.

In 2008 Lieutenant Governor WALSH was appointed Adjutant General for the Montana National Guard. He led the State's guardsmen until 2012, when he retired to continue his public service in a new capacity as Lieutenant Governor of the State of Montana. Both as Adjutant General and as Lieutenant Governor, he has fought for access to education for veterans and for every Montana child. The Walsh family places great value on the power of education. Lieutenant Governor WALSH was the first member of his family to graduate from college. His wife of 29 years, Janet, has taught in the public schools in Montana for many years. In fact, JOHN and Janet met while they were

● This "bullet" symbol identifies statements or insertions which are not spoken by a Member of the Senate on the floor.

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both attending Carroll College in Helena, MT. They have two children and one grandchild, all of whom they are very proud. JOHN WALSH received his master's degree at the U.S. Army War College in 2007.

JOHN WALSH possesses a true independent Western spirit and a commendable dedication to the people of Montana. I have no doubt he will continue to serve his State and the Nation with distinction as a U.S. Senator.

RESTORING EARNED PENSIONS

Mr. REID. Mr. President, in addition to the swearing-in of Lieutenant Governor WALSH, I expect that this afternoon the Senate will adopt the motion to proceed to legislation to restore the earned pensions of military retirees. This measure restores cost-of-living adjustments for military retirees. Although no veterans will be affected until the end of next year, there is no reason to delay a solution. I will continue to work with my Republican colleagues to process what we need to do to pass this important measure. We know the Ayotte amendment is one Republicans have indicated they want a vote on, and I see no reason why we shouldn't allow them to have a vote on it.

OBAMACARE

Mr. REID. Mr. President, I was surprised this morning to hear Republicans literally howling over President Obama's decision to ease the transition for medium-sized businesses to providing health insurance for all of their employees. Republicans have complained that health care reform is a burden to employers, but now they are complaining that President Obama is trying to ease that burden and smooth the transition to a new system. Think about that one.

But this Republican duplicity should come as no surprise. After all, Republicans are the ones who invented the individual mandate. It was their idea. It is a conservative idea that every American has a responsibility to seek insurance to cover their health care needs, and the government has a responsibility to make that coverage accessible and affordable. But now Republicans are attacking their own brain child—the individual mandate. The individual mandate was their idea, and Republicans are willfully ignoring the fact that the Affordable Care Act creates a transition period for individuals to obtain insurance as well.

It is time for Republicans to stop talking out of both sides of their mouths. If they have legitimate concerns about the Affordable Care Act, or ObamaCare, and not just political gripes, they should work with the President and the Democrats in Congress to fix and improve the law; otherwise, they should stop complaining and get out of the way.

RECOGNITION OF THE MINORITY LEADER

The PRESIDING OFFICER. The Republican leader is recognized.

IRS REGULATIONS

Mr. MCCONNELL. Mr. President, the two parties have engaged in a lot of big debates over the past several years, and no one, obviously, should be surprised by that. The President came into office vowing to fundamentally transform the country, and a lot of us have had big problems with the policies he has tried to implement in pursuit of that goal. But there are some things we should all agree on, and one of them is this: No President—no President of either party—should use the power of the Federal Government to punish his ideological opponents. That is why, when the targeting of conservative groups by the IRS came to light after the last Presidential election, just about everybody denounced the Nixonian tactics up and down and loudly declared that it should never be allowed to happen again. They knew that this kind of targeting represented a direct attack on our most fundamental freedoms—on our abilities to organize and educate and engage in the democratic process. And while the abuse may have been aimed at conservatives this time, it is easy to see how it could one day be used against organizations of any ideological hue.

So America's culture of civic engagement simply has to be defended—by all of us. Yet, with the passage of time, that is not what we have seen. Instead of putting safeguards in place to protect our civil liberties, the Obama administration is now dragging the IRS back in the opposite direction. It is now pushing a regulation that would actually entrench and encourage the harassment of groups who dare to speak up and engage in the conversation. It is trying to intimidate into silence those who send donations to civic groups too.

Predictably, the Obama administration has tried to spin these regulations as some sort of ''good government'' measure, as reforms initiated in response to the IRS scandal, but, of course, we know that is simply not true. In recent days we learned that these regulations—regulations designed to suppress free speech—have been in the works for years.

So let's be clear. All of this is simply unacceptable. After denouncing the abuse last year, I believe it is shortsighted of our friends on the other side not to oppose these rules forcefully today. The path this administration is embarking on is a dangerous one with the slipperiest of slopes. Left-leaning civic groups should be just as alarmed about what these regulations could mean for them in the future as what the rules almost certainly will mean for conservative groups today. That is why some, such as the ACLU, have begun to speak out against these regulations.

Last week I joined several of my colleagues in sending a letter to the new Commissioner for the IRS that laid out these concerns. We reminded Commissioner Koskinen that he was confirmed with a mandate to reform the IRS and return the agency to its actual mission—processing tax returns, not suppressing speech. We expect him to fulfill that mandate—to prove his reformist credentials—by halting the regulations immediately and to enact new rules that would stop similar harassment from occurring in the future. This is something the Commissioner can and must do now. He needs to realize this isn't some issue to move past but a serious threat to be confronted.

Commissioner Koskinen could go down in history as a hero, as did the IRS Commissioner who stood up to Nixon and said no to harassment of political opponents. I want to believe that this is the choice he will make, that he wants to be remembered as a strong and independent public servant rather than some political pawn. But we can't be sure what he will do, and the American people need a backup plan in case he decides his fealty lies with the opponents of free speech rather than with them.

That is why today I, along with Senators FLAKE, ROBERTS, HATCH, and others, have introduced legislation that would prevent the IRS from enacting regulations that would permit the suppression of First Amendment rights. It aims to return the agency to its mission and get it out of the speech police business altogether—a goal that should be a bipartisan one.

This is something worth fighting for. It is something I hope Commissioner Koskinen will work with us to achieve. But if he does not—if he does not—he should know we are prepared to go to the mat to defend the First Amendment rights of our constituents and our neighbors—and that we will continue to do so until those rights are safe once again.

I yield the floor.

RESERVATION OF LEADER TIME

The PRESIDING OFFICER. Under the previous order, the leadership time is reserved.

REPEALING SECTION 403 OF THE BIPARTISAN BUDGET ACT OF 2013—MOTION TO PROCEED

The PRESIDING OFFICER. Under the previous order, the Senate will resume consideration of the motion to proceed to S. 1963, which the clerk will report.

The legislative clerk read as follows:

Motion to proceed to Calendar No. 298, S. 1963, a bill to repeal section 403 of the Bipartisan Budget Act of 2013.

The PRESIDING OFFICER. The Senator from Illinois.

AYOTTE AMENDMENT

Mr. DURBIN. Mr. President, the Presiding Officer is new to the Senate, and we are glad to have him. He will find in the course of his senatorial experience that occasionally good legislative ideas come from unexpected places. Occasionally they come from phone calls to your office, emails, and letters, where people tell their stories, and from those stories you see the need for a new law, a change in policy.

That happened to me 13 years ago. A Korean-American mother called my office in Chicago with a problem. Her problem was that her daughter Tereza was about to graduate from high school and had an opportunity to go, on scholarship, to the Manhattan Conservatory of Music in New York.

This was a poor family. Mom worked at a dry cleaners. They barely got by. But her daughter had an extraordinary musical talent. She was an accomplished pianist, even as a senior in high school, and this was her chance.

As her daughter started to fill out the application form for the Manhattan Conservatory of Music, there was a box that asked her to identify her nationality, her citizenship. She turned to her mom and said: What should I put here? Her mother said: I'm not sure.

You see, Tereza Lee was brought to the United States at the age of 2 on a visitor's visa. When the visa expired, her mom, her dad, and she stayed in the United States and did nothing else. Technically Tereza, having lived about 16 years in this country, was just another undocumented kid.

So they called my office and said: What do we do about this? Well, we checked the law. The law is very clear. Tereza and those just like her were to be deported from the United States for a minimum of 10 years and then be allowed to petition to come back in.

That seemed to me fundamentally unfair. So I wrote a change for the law called the DREAM Act. The DREAM Act said if you are a child under the age of 16 brought to this country by parents, if you will finish high school, have no serious criminal record, and you are prepared to go to college or enlist in the military, we will put you on a path to citizenship.

I introduced that 13 years ago. As you can see, the wheels of justice grind exceedingly slow in the U.S. Senate. But over the years, this idea of the DREAM Act has really caught hold. The reason is not because of me; it is because of the DREAMers. Initially, they were frightened, afraid of deportation, raised as children in families where they were warned every day: Be careful. Do not get in a position where you are going to get arrested. You will get deported, and the whole family might get deported. We don't want to break up our family, so be careful. So they held back in the shadows, wondering, worrying about a knock on the door.

Over time, though, something happened, and I cannot explain it. The same kids who used to stand outside my meetings, after I would talk about the DREAM Act in Chicago—waiting in the darkness, in the shadows, to tell me, in a whisper, they were DREAMers—decided to step up and speak to the United States, to identify themselves. It was an act of courage. Some people say: Well, they were kids, and kids do rash things. I think it was more courageous than rash.

I came to the floor on more than 50 different occasions to tell the story of the DREAMers: who they are, what they have done, what they hope to do—amazing stories, incredible stories, of young people across America just asking for a chance to be legalized, to be part of America's future. They felt they were Americans start to finish.

The Presiding Officer's colleague, Senator BOB MENENDEZ, used to talk about Hispanics, who are the largest group of DREAMers, standing in those classrooms, hand over their heart, pledging allegiance to the only flag they have ever known, who faced the cruel reality that they were not going to be American citizens unless we changed the law.

Here is the good news. Over time—a long time; 13 years—the sentiment not just of the American people but of Members of Congress started to change. It changed for the better. The House of Representatives enacted the DREAM Act. Even the Senate, in the comprehensive immigration reform bill this last year, enacted the strongest DREAM Act ever written.

In fact, just last week, when Speaker BOEHNER, in the midst of his examination, if you will, of the immigration issue, issued a statement of principles, smack-dab in the middle of it, in clear language, was an endorsement of the DREAM Act. So although the Speaker may have some misgivings—and I am sorry to say I disagree with him—but may have some misgivings about comprehensive immigration reform, he acknowledged that on a bipartisan basis the DREAM Act was something that both parties should embrace.

I still believe in comprehensive immigration reform. The DREAMers will be the first to say: Don't forget my mom and dad when you are talking about immigration reform. But the reason I give this preface to my remarks is to put in perspective an amendment which will be on the floor of the Senate this week offered by Senator KELLY AYOTTE of New Hampshire. It is an amendment which addresses a provision of the Tax Code.

Here is what our laws currently say when it comes to taxes and families working in America. If you are undocumented, you are not legally allowed to work in America. That is what the law says. But if you do work in America, even undocumented, you have a legal obligation to pay your taxes. So how would an undocumented worker pay their taxes? Well, they would have an ITIN, they call it, a basic identification number that they can use to file their tax returns; and so many do.

Undocumented workers here in the United States pay their income taxes, as required by law. One of the provisions in our Tax Code—for every taxpayer—says if you are in certain income categories, you are allowed to claim a credit for your children. It helps 38 million American families who take this credit on their tax returns because they are working families and have children and the Tax Code said: We will help you raise your children.

On its face, it is worth about $1,000 a year in reduced taxes. But there are limitations. If your income reaches certain levels, you do not qualify for this tax credit.

Now comes Senator AYOTTE who makes a proposal that we basically change this child tax credit as it applies to the tax-paying undocumented workers—that we say to them their children can only be claimed for this child tax credit if the children can produce a Social Security number. Therein lies the problem, because many of these children, although they are legally claimed today, do not have a Social Security number.

Let's talk about DREAMers, because that is a group affected most directly by the Ayotte amendment. DREAMers—those who would qualify if the DREAM Act becomes law—have been given a special status because of President Obama. He created a deferred deportation, deferred action program so that DREAMers could step up, identify themselves to the government, register, be given a work permit, and be allowed to apply for a Social Security number—DACA it is called.

We estimate there are about 2.1 million eligible DREAMers in America for the law that I want to change. So far, a half a million of them have applied for DACA and therefore can obtain Social Security numbers. That leaves 1.6 million DREAMers who cannot, under the Ayotte amendment, be counted as children under the child tax credit.

So ultimately what Senator AYOTTE is doing is to deny those who are working in America and paying their income taxes that provision of the Tax Code which says: You get a special consideration for your children. I think that is just plain wrong.

Listen to these numbers: The child tax credit—a refundable credit for working families—of $1,000 for each child under the age of 17 is limited, as I mentioned earlier. The most anyone can claim for the tax credit is 15 percent of family income minus $3,000, regardless of the number of children. For example, a minimum-wage worker earning $14,500 with two or more children would receive at most $1,725 as a tax credit or refundable tax credit. The credit is only available for taxpayers who are working, earning income, and raising children.

The Ayotte amendment, though, has to be put in this perspective. Nearly 38 million families are expected to benefit from this child tax credit this year—I should say this year, filing for last

year's income. Sixty percent of those who claim this tax credit earn less than $25,000 a year. Nearly half of the workers, members of families working in America claiming the child tax credit, earn $10 an hour or less, and 90 percent of those who would be hurt by the Ayotte amendment are Hispanic.

The tax credit is legally available for qualified taxpayers who have children with ITINs—these are individual tax identification numbers—and not everyone who uses an ITIN is undocumented. This amendment, the Ayotte amendment, would also affect lawfully present children who use ITINs, including victims of human trafficking, DREAMers, as I mentioned, under DACA, Cuban and Haitian entrants, and those with a pending application for asylum.

The child tax credit, we estimate, lifts about 3 million people, including 1.5 million children, out of poverty every year. It is an incentive for these low-income families who are working and paying taxes but not earning enough to take care of their kids. The Ayotte amendment would eliminate the use of a tax credit for 1 million children, pushing many low- and moderate-income families with children deeper into poverty.

What Senator AYOTTE is trying to do is to use the proceeds from this amendment she is offering to pay for the cost-of-living adjustment under the military pensions. Those veterans have already paid for their pensions. They paid by volunteering to serve this country and risk their lives. Some of them have come home with visible and invisible wounds of war that will be with them for a lifetime.

I do not believe we should come up with a pay-for for something these veterans have already paid for, No. 1. And, No. 2, I think it is unfair for us to impoverish more children in America as a means of helping our veterans. What a cruel choice to put before the U.S. Senate.

Do not take my word for it. Mr. President, I ask unanimous consent that the statement I am about to refer to be printed in the RECORD.

There being no objection, the material was ordered to be printed in the RECORD, as follows:

[From the NETWORK, Feb. 10, 2014]

IMMIGRANT FAMILIES SHOULD NOT PAY THE PRICE

(By Simone Campbell)

For a while now, kids—particularly those in immigrant families—have been unfairly under attack in the Senate, and the only plausible explanation is unconscionable: to score political points.

Sen. Kelly Ayotte, R–N.H., recently proposed variations of a plan to strip away the refundable Child Tax Credit that now goes to millions of children of taxpaying immigrant workers in low-wage jobs.

Ayotte alleges that immigrants are fleecing taxpayers by claiming children who do not live in the country or do not really exist. At one point, the senator said she wanted money gained by denying the tax credit to pay for extension of emergency unemployment insurance benefits. Then she switched her focus to helping restore earlier cuts to veterans' pension benefits. In fact, there are much fairer sources of funding for these goals. For example, New Hampshire's other senator, Jeanne Shaheen, said veterans' benefits could be paid for by closing offshore tax loopholes.

In the end, it doesn't really matter where the money would go since taking money away from children of low-wage, tax-paying families is indefensible. Ayotte's proposal is misguided and antithetical to the Gospel call to care for children and those at the margins of society. It violates our long-held values as a nation, and it should be rejected.

To set the record straight, children targeted by her plan do exist and they do live in the U.S. Four million of them are U.S. citizens and others are ''little DREAMers,'' young children brought to this country by their families. Under existing tax laws, their families may apply for the child tax credit if they qualify financially. If fraud is suspected, the solution is not to deny all eligible children access to this critical anti-poverty program. That is cruel and ineffective.

The Child Tax Credit is a proven success in addressing poverty. Senators concerned about child poverty agree that funding for other programs can be found without targeting needy children.

Ayotte says she understands families' needs, yet wants to deny a child tax credit to taxpaying immigrant families. Actions speak louder than words, and her proposal hurts families.

Our political leaders should never place poor children in a position of competing with other vulnerable populations for funds that help pay for food and other basic needs.

Deliberately harming immigrant families goes against the fundamental goodwill of Americans, including thousands of people we met last year as our ''Nuns on the Bus'' traveled 6,500 miles across the U.S. to speak out for justice. Throughout our journey, we stood with, prayed with, and heard the stories of hundreds of immigrants who have long served the needs of our nation.

Responsible leaders in Congress should look into their hearts and reject proposals like this one pushed by Ayotte. This political tactic is not good for our economy or the wellbeing of our entire nation—especially children who are the future of our country. We are better than this.

Mr. DURBIN. Sister Simone Campbell is somebody whom I greatly respect. Sister Simone Campbell is executive director of NETWORK, a national Catholic social justice lobby. She is also one of the organizers of Nuns on the Bus, Catholic nuns who have traveled all over the United States speaking out on issues of social justice.

She has sent us a statement opposing the Ayotte amendment. It is a lengthy statement. I will not read it all, but I do want to read several parts that I think are important. Sister Simone Campbell says:

To set the record straight, children targeted by [the Ayotte amendment] do exist and they do live in the U.S. Four million of them are U.S. citizens and others are ''little DREAMers,'' young children brought to this country by their families. Under existing tax laws, their families may apply for the child tax credit if they qualify financially. If fraud is suspected, the solution is not to deny all eligible children access to this critical anti-poverty program. That is cruel and ineffective.

Those are the words of Sister Simone Campbell in reference to this proposed amendment. She concludes by saying:

Responsible leaders in Congress should look into their hearts and reject proposals like this one pushed by [Senator] Ayotte. This political tactic is not good for our economy or the wellbeing of our entire nation—especially children who are the future of our country. We are better than this.

I agree with Sister Campbell. Why is it, week after week, from the other side of the aisle, from the other side of the Rotunda, we hear proposal after proposal to make it harder for working families, and particularly lower income families, to get by in America?

When we talked about unemployment benefits for those who have lost their jobs so they can find additional work, only four Republicans Senators would step up and join us in that effort. When we talk about extending the minimum wage so that those who get up and go to work every single day have a fighting chance, the opposition consistently comes from the other side of the aisle.

Now we have before us this proposal to change the Tax Code to the disadvantage of the poorest workers and the poorest families and the poorest children in America. We are better than this. Sister Campbell is right. I would say to my colleagues, if you believe in the DREAM Act—and many of you have said you do—you cannot vote for the Ayotte amendment without realizing what it does to these children. To impoverish these children on 1 day in the Senate, and before that say that we think they should be citizens some day—we have to have a consistent moral ethic when it comes to the way we treat children in America.

Denying children the most basics in life, whether it is food stamps or assistance on the tax returns of their parents, is just not what America should be about. This Ayotte amendment will really call into question our dedication to these kids and their families. These workers are stepping up, meeting their legal obligation to pay their taxes. All they are asking for is to be treated like everyone else under the Tax Code. The Ayotte amendment will deny that to millions of these children. That is absolutely unacceptable.

Now, let me address a very real issue. Senator AYOTTE has identified some instances—I do not know how many—of fraud in the use of this child tax credit. I stand with her in trying to fight back and end that fraud. But let's be honest. A person making barely minimum wage, filing their tax returns and claiming this credit, is not likely to set out to game the system.

The people who are gaming the system are the tax preparers. They are the ones who may be lying to the government and are guilty of fraud. I will join with Senator AYOTTE and any other colleague who wants to stop that perpetration of fraud. I do not stand for fraud in any program. I do not think any Senator would. But to take this out on the children and low-income taxpayers is just plain wrong.

I urge my colleagues, let's stand by the veterans and restore their pensions. Let's do it as quickly as we can. But please do not help our veterans at the expense of children in America. This is an important amendment. It is one that calls into question our values. I urge my colleagues to look at this very carefully.

This is the last point I will make before I yield the floor; I see other colleagues here. I support comprehensive immigration reform. If the Ayotte amendment is enacted into law, the cost of bringing the DREAMers into citizenship has just gone up by billions of dollars, which we will have to raise to undo the Ayotte amendment at a future time. Let's not put ourselves in that position.

For the good of these children and their families and to put this Nation in the right place by fixing our broken immigration system, I urge my colleagues to oppose the Ayotte amendment.

I yield the floor.

The PRESIDING OFFICER. The Senator from Arizona.

Mr. FLAKE. Mr. President, I ask unanimous consent to enter into a colloquy with my colleagues.

The PRESIDING OFFICER. Without objection, it is so ordered.

IRS POLITICAL TARGETING

Mr. FLAKE. Mr. President, I rise today to bring attention to the latest installment concerning political targeting by the IRS. Last spring we learned of the IRS's targeting of conservative groups that were applying for 401(c)(4) tax exempt status, thanks to a report by the IRS's inspector general. This report detailed how the IRS singled out conservative groups for excessive scrutiny, which caused some applications to lie pending for more than 3 years and another 28 organizations to actually give up on their unanswered application.

The President claimed the targeting was due solely to ''boneheaded decisions.'' Unfortunately, with the head of the tax-exempt organizations unit at the agency, Lois Lerner, choosing to plead the Fifth and resigning rather than answer questions before Congress, we may find that the source of this problem is a little more troubling than that.

Thankfully, multiple investigations are taking place to answer lingering questions such as this one. I look forward to their findings wherever they may lead. Uncovering who directed and participated in the inappropriate targeting and why will allow us to bring justice to the groups affected and ensure that no such targeting like this occurs again.

So imagine my surprise when over the Thanksgiving holiday I learned that the IRS had diagnosed the problem and offered its regulatory solution, despite the fact that multiple investigations are far from complete. On Friday, November 29, without warning, the IRS published a proposed rule that would restrict the activities of 501(c)(4) organizations, effectively limiting their speech and curtailing their civic participation.

This brings a whole new meaning to the term ''Black Friday.'' This rule singles out the same conservative groups that were previously targeted by the IRS and threatens to shut them down. It further attempts to legitimatize the targeting of organizations that hold ideological views that are inconsistent with the administration's views.

It should be no surprise, since critics of these conservative organizations have openly called for their extinction, that this is occurring. At the least, some would like to force 401(c)(4) organizations into ill-fitting structures devised more appropriately for political committees in order to require the disclosure of conservative supporters.

The IRS and the White House claim innocently that the proposed rule is meant to clear up confusion about the process of applications for 501(c)(4) organizations involved in political activities. Over the past several months, we have heard this administration tell the public multiple times how confusing the applications are. Yet 501(c)(4) applications have been processed for years without excessive complaints of confusion that has occurred in recent months.

In fact, before the IRS began flagging the applications of conservative groups in February 2010, these types of applications were being processed within 3 months. Email traffic between IRS employees shows that the applications of conservative organizations were not flagged out of confusion but, rather, because of media attention and potential interest to Washington.

So let's call this rule what it is. It is an attempt to silence the voices of conservative organizations. To be clear, 501(c)(4)s are permitted to engage in the political process and in political discourse, and they should continue to be allowed to do so. But this regulation seeks to limit their participation in a host of advocacy and education activities, even nonpartisan voter registration and education drives.

These activities have a clear role in promoting civic engagement and social welfare, the precise purpose of the 501(c)(4) structure. Unfortunately, the rule would suppress conservative voices by forcing organizations to quit these activities or to be shut down. In fact, according to evidence collected by the House Ways and Means Committee and Chairman DAVE CAMP, the administration has been working on this rule since 2011.

Not surprisingly, the Treasury Department kept quiet of its plans. In fact, it neglected to mention consideration of this rule in the agency's 2011 or 2012 policy guidance plan. These are usually the ones that detail upcoming projects. If it sounds suspicious, it is. Just 3 months after the IRS abuse surfaced, the Treasury Department listed in its 2013 plan the development of guidance related to the political activities of 501(c)(4)s.

Conveniently, the publicity of the IRS abuse provided an opportunity to finally roll out the agency's rule as a solution to its ''boneheaded decisions.'' But this administration is not fooling anyone. Over 20,000 people have already submitted comments to the proposed rule. According to the new IRS Commissioner, this is the largest number of comments ever received by any agency. Clearly, the public sees through the administration's veiled attempts to squash free speech and to shut down opposition to its priorities. This is not a way to win back trust.

Just this past December the IRS Commissioner, known for his ability to turn around organizations, was confirmed as the new IRS Commissioner. This is John Koskinen. He promised to work towards restoring trust to the scandal-ridden agency. But he has yet to turn things around and is allowing this politically charged rule to move ahead.

So I come to the floor today, along with my friend from Kansas, Senator ROBERTS, and with the support of 37 additional Members of this body, to introduce legislation to stop the rule's implementation. I see Senator HATCH from Utah and Senator CORNYN of Texas who will also speak to this in a moment.

The Stop Targeting of Political Beliefs by the IRS Act will prevent this rule or any other that seeks to continue the targeting of groups based on their ideology. It is time to end the intimidation and harassment. Let's preserve the First Amendment rights of all groups regardless of their ideology, especially those that commit themselves to improve our society. Let's restore the public's faith in the ability of the IRS to fairly administer our Nation's laws. I hope the rest of the Senate will join us in this effort. I look forward to coming back to the floor later in the week to ask unanimous consent to pass this legislation outright.

I yield the floor.

The PRESIDING OFFICER. The Senator from Kansas.

Mr. ROBERTS. Mr. President, I would like first to thank my colleagues for working with Senator FLAKE and myself to bring this proposal forward. This is a critical issue, one that really gets straight to the heart of our American democracy.

The current investigations of the IRS clearly show it is not an overreaction to say that the Internal Revenue Service did suppress political opposition. Now, to Kansans, to Arizonans, to Texans, to Utahns all across the country, and to my colleagues, this is not only a scandal but one that is egregious.

There is a great deal more than a ''smidgen'' at stake here. It gets right to the heart of our system of government. The government must be held accountable for its actions and must

never be permitted to trample on the constitutional rights of our citizens. The behavior of the IRS in singling out select groups at their discretion for extra scrutiny and harassment just because they hold views that differ from the administration is simply outrageous.

Worse, the IRS continues to target groups whose politics it does not like even as we speak on the floor of the Senate. In fact, the proposed IRS 501(c)(4) regulations will even more directly prevent groups the IRS does not favor from really participating in the political process.

The proposed regulations would place much tougher controls on what would be considered political activity, effectively blocking the normal practice of a wide range of not-for-profit organizations, not only conservatives. Under the proposed rules, healthy debate and discussion of political issues, political candidates, and Congressional actions would be prohibited.

This is, in effect, suppression of free speech for these Americans. The proposed regulations would result in continued sanction, intimidation and harassment to these groups, and permit the Federal Government to be used as a partisan tool. We recently learned that the proposed regulations have been under development for some time. Senator FLAKE has just mentioned this. This is nothing new, and perhaps it is as far back as 2011. Some say even 2010.

These proposed regulations until recently have been considered off-line—my colleagues, pay attention to this—off-line. Off-line means that the regs are being considered outside the normal regulatory process, which, in my view, has been done in order to circumvent the Administrative Procedures Act. There is no transparency here.

I cannot help but think that all of this, the targeting, the slow walking of exemption applications, and the proposed regulations are part of a calculated plan to deny unfavored groups their First Amendment rights to participate in the political process of the Nation.

My colleagues, this is simple. What we are seeing is a deliberate effort to infringe the peoples' First Amendment rights. It is incredible. I never thought I would live to see the day that this would happen in the United States and we would have to be debating this. This is a copy of the Constitution of the United States—the First Amendment by James Madison. This was given to me by Robert C. Byrd, the institutional flame of the Senate, who sat right over there to the left of the distinguished ranking member from Utah, and I know who is our Republican lead in regards to the investigation of all of this in the Finance Committee.

Congress shall make no law respecting an establishment of religion or prohibiting the free exercise thereof or abridging the freedom of speech.

The freedom of speech, my colleagues, or the press or the right of the people peaceably to assemble and/or to petition the government for a redress of grievances.

As former chair of the Intelligence Committee, I can say that the arrogant response of the administration to the IRS actions, the denials, the evasions, the attempts to downgrade the implications of the IRS efforts, and now counteraccusations—they look like they came from some counterespionage handbook.

The real problem is that the IRS has proposed these regulations before Congress has even completed, as the Senator from Arizona pointed out, its investigation of the agency's actions in these matters. The manner in which these regulations have come up raises questions about the integrity of the rulemaking process—the exact opposite direction the agency should be taking.

Even worse, the IRS proceeds with these rules when they have done as much as possible to slow down the Finance Committee's investigation—I am a member of that committee; Senator HATCH is leading the effort on the Republican side—by responding to document requests at a glacial pace at best and redacting large amounts of critical information.

Senator FLAKE and I have proposed a very straightforward, very commonsense approach to this entire mess. We simply halt further action on the proposed regulations until the Justice Department and the congressional investigations by the House Ways and Means Committee and the Senate Finance Committee into the IRS actions are completed. The bill freezes further IRS action for 1 year and would make it clear that the IRS could only enforce the regulations that were in place before all this mess began.

It is no wonder, given the IRS's behavior, that Kansans and virtually every American—with very good reason—doubt that the agency can in good faith administer the Tax Code. Clearly, the IRS has no capacity to regulate any political activity without running roughshod over the people's fundamental constitutional rights.

I have said this many times, but the scandal also shows that the IRS is too big, too intrusive, and too involved in taxpayers' business. The time for us to scale it back is now. In fact, it is easily the most distrusted agency in the Federal Government. That is a shame. The IRS has become a four-letter word.

This growing lack of faith in the IRS is a very strong reason why Congress should consider a wholesale rewrite of the tax system by simplifying tax collection and reducing the government's intrusion into economic and other affairs of the public. This is the main reason I am supporting legislation to scrap the Tax Code and move to a simplified, single-rate tax system. We do not need the IRS regulating constitutionally guaranteed free speech and muzzling lawful activity in regard to politics and taking part as a partner in government.

Will Rogers once said, ''The difference between death and taxes is death doesn't get worse every time Congress meets.'' Today, Will Rogers is wrong. It is not Congress that is making things worse, it is the IRS.

So let's pass this bill and work to get the IRS out of Americans' lives and their freedom of speech.

I thank Senator FLAKE again for being a cosponsor of the legislation.

Mr. FLAKE. I thank the Senator from Kansas.

I yield to the Senator from Utah, the ranking minority member on the Finance Committee.

Mr. HATCH. I thank my colleague from Arizona and my colleague from Kansas as well.

I rise today in support of the Stop Targeting of Political Beliefs by the IRS Act, the bill introduced today by our Senator from Arizona and the senior Senator from Kansas. This is a Senate companion to the bill being marked up today in the House Ways and Means Committee. This is an important piece of legislation that will protect free speech and ensure—at least for the time being—that the Internal Revenue Service is not used as yet another political arm of this administration.

As we all know, last November the IRS unveiled proposed regulations that would fundamentally alter the nature of the activities tax-exempt 501(c)(4) organizations can engage in. Under current regulations, 501(c)(4) organizations—or social welfare groups—can engage in political activities on a limited basis so long as their primary activity is the promotion of social welfare. However, they remain free to educate the public on important issues—even those that may be politically charged—because that falls within the exempt purpose of promoting social welfare. They can also conduct voter registration drives and distribute voter guides outlining candidates' priorities on issues important to the organization.

Under the proposed regulation, virtually all of these activities would be considered political activity and would be considered inconsistent with various groups' exemptions under 501(c)(4) of the Internal Revenue Code. As a practical matter, this would mean that grassroots organizations all over the country would be forced to shut down—or, to put it more bluntly, conservative grassroots organizations all over this country would be forced to shut down.

That is precisely the point. The Obama administration does not want grassroots organizations—even those that are legitimately nonpartisan—educating the public on the issues of the day. They don't want tax-exempt organizations to be able to tell voters where candidates and politicians stand on the issues. And they certainly don't want these types of groups participating in the political process in any

meaningful way. That is why we are seeing these regulations, that is why they were drafted in the first place, and that is why the administration seems set to finalize them right before the 2014 midterm elections or, at the very latest, before the 2016 Presidential election.

We need to call this what it is.

This is an affront to free speech and the right of all American citizens to participate in the democratic process. This is an attempt by the Obama administration to further marginalize its critics and keep them on the sidelines. It is a blatant attempt to continue the harassment and intimidation that has already been taking place at the IRS over the past few years.

This regulation is just one of many problems we see at the IRS. Indeed, the American people have ample reason to doubt the credibility of the IRS, particularly when it comes to dealing with organizations that might be critical of the President and his policies. The IRS is currently under investigation on three separate congressional committees for its targeting of conservative organizations during the run-up to the 2010 and 2012 elections.

On top of that, the agency recently came under widespread condemnation when, in the midst of these ongoing investigations, they announced they were reinstating bonuses that had been canceled in response to the targeting scandal. It is almost as if they believe there was no scandal at all. Of course, if you have been listening to other people in the Obama administration, that type of thinking appears to be the predominant view. Several weeks ago, for example, leaks from the Justice Department indicated that no criminal charges were likely to be filed in the targeting scandal, even though this scandal is still under investigation. Talk about politics. Talk about political control. Talk about ignoring what is going on.

On Super Bowl Sunday, President Obama said in an interview that there was not a ''smidgen'' of corruption at the IRS. Well, when it comes to suppressing free speech, there is far more than a smidgen of corruption at the IRS. If anything, these proposed regulations on 501(c)(4)s are additional proof. It is one side trying to one-up the other in all cases because they happen to control the Presidency and one House of Congress.

When the proposed rule was first made public, the IRS said it was drafted in response to the 2013 TIGTA report that revealed all the issues the agency was having with regard to 501(c)(4) applications. However, as we learned in a Ways and Means Committee hearing last week, those regulations were under consideration for 2 years before the report was issued—2 years.

On top of that, the regulations were pursued outside of the normal channels for IRS and Treasury Department regulatory efforts in a manner that some IRS officials labeled ''off-plan.'' ''Off-plan'' in this case means hidden—h-i-d-d-e-n—from the public. Why does the IRS need to hide a draft regulation from the public when a regulation project is normally listed on a public Treasury guidance plan? I suppose we can only speculate, but I think it is fair to assume they didn't want the public to know these regulations were in the works. And they expect the American people to believe there is no political motivation for these regulations? Give me a break.

The fact is that these proposed regulations demonstrate that the IRS is willing and able to carry the President's political water even when the agency is, by law, supposed to be an independent and nonpartisan agency. That is why this legislation that has been introduced today by the two distinguished Senators who preceded me in their remarks is so important. We need to send a message to the administration that it cannot tamper with the rules of free speech just because it doesn't like what is being said.

If enacted, this legislation would delay the implementation of these rules for a year. This is the least we can do to protect free speech. People from all across the political spectrum—from the ACLU, to the U.S. Chamber of Commerce, to the unions—have recognized just how egregious this proposed rule is. It needs to be stopped, and our bill would stop it.

I urge my colleagues to support this legislation. Indeed, everyone who supports the right of American citizens to participate in the political process, whether they are Republican or Democrat, should support this bill.

I say to our new IRS Commissioner—whom I fought to get confirmed, who I believe is sincere, who I believe is a person who can clean up this mess over there, this nest of partisan people who are in the IRS, where there should not be any partisanship—Mr. Koskinen, you have the power to stop this regulation from becoming final.

The Commissioner should stop this. All he has to do is just not sign it.

I have to say that I will be watching very carefully because I am sick and tired of the IRS being used for political purposes. I don't want to be used for Republican purposes, Democratic purposes, liberal purposes, or conservative purposes. I want freedom in this country, and I want people to be able to express themselves freely.

What they are trying to do is outrageous, and it shows an administration that can't win fair and square with all of the advantages that it has.

We know that many of the 501(c)(4)s are basically organizations that have a conservative tilt. The 501(c)(5)s are the unions that we know almost 100 percent support Democrats, even though 40 percent of union members are Republicans. I know; I used to be a skilled tradesman. I learned a skilled trade, went through a formal apprenticeship, worked for 10 years in a building construction trade union, and I am proud of that, and I was proud to be a union member. Forty percent of union members are Republicans. Yet almost 100 percent of their effort goes to elect Democrats. The uptick in 501(c)(5) applications was just as high as the uptick for conservative organizations in 501(c)(4)s. We didn't see any of this—neither the targeting nor the regulations—being used against 501(c)(5)s. The only conclusion is that there is a group of people who basically want to support only one side of the equation.

We have to get politics out of the IRS. I don't know what that means. It may mean—like other agencies where we don't want any politics involved—getting rid of any partisan controls. That might include the union. Because we have people who were partisan and did wrong things—our investigation is not complete, but it is a matter of great concern to us—and then to come up with this type of stuff, it is enough to just make you want to cry or, should I say, throw up.

I am a Republican. The Presiding Officer is a Democrat. We are friends. We don't agree on a lot of things. That is what makes this country great. But when one side tries to stifle the free speech of the other side, we both have to stand together. I hope Mr. Koskinen, the new Commissioner, will do what is right and get rid of these regulations. My gosh, let's not have regulations that give a tilt to one side or the other. Let's have the IRS be down the middle, straightforward, decent, and honest, which it has not been in the last number of years. We are going to show that.

All I can say is I commend my two colleagues for their leadership in introducing this bill. It is long overdue, and I hope every Senator in this Senate will support it.

I yield the floor.

Mr. FLAKE. I appreciate the comments of the Senator from Utah and his recitation of the chronology and how this happened.

These regulations are supposedly in response to the scandal that came up, although the President is not calling it a scandal. He says there is not any evidence there was any wrongdoing. But these plans were actually being developed a couple years ago—long before we knew the IRS was targeting conservative organizations. So the notion this is in response to what just occurred is wrong.

What is equally troubling—or more troubling—as the Senator from Utah noted, these plans were described, in an internal memo, as ''offplan,'' around the process—that were hidden. So that is what we are asking for in this legislation. Let's not do any rulemaking until the results of the investigations that are going on come back to us. That is a prudent thing to do, and I hope we will follow through.

I now yield to the minority whip, Senator CORNYN.

Mr. CORNYN. Mr. President, I will be brief, but I just wanted to commend

the Senators from Arizona, Kansas, and my friend and colleague from Utah, Senator HATCH, for their comments and for their support for getting the IRS out of the speech police business.

As if the IRS doesn't have its hands full already with the addition of the implementation of ObamaCare, on top of all of its other problems. I don't know anybody who thinks they need more to do, particularly when it comes to discriminating against people based upon their political affiliations and their desire to engage in debate and advocate their views in the arena. This is a politically neutral issue because we know this legislation will protect people on the left as much as on the right.

I have to agree with my colleagues that it appears there has been a disproportionate amount of attention given to people on the right under this administration. I know my colleague from Arizona has heard of Catherine Engelbrecht of Houston, TX, with the King Street Patriots and True the Vote. She founded two organizations dedicated to improving elections and furthering the ideals of our Founding Fathers. She led a coalition of citizen volunteers to work as election monitors who provide resources for voter registration and to root out election fraud.

One would think those would be commendable actions, not a reason for government discrimination and investigation. But for 3 years the IRS denied her organization tax-exempt status while comparable organizations—as I think the Senator from Arizona pointed out—had received expedited or fairly routine treatment. In the meantime, she was subjected to over-the-top inquiries by the IRS and even by the ATF and other government organizations. The IRS wanted to subpoena every one of her tweets on her Twitter account as well as entries made on her Facebook account.

You can't make up this stuff. It is extraordinarily offensive.

What these proposed rules are going to do is to institutionalize the role of the IRS as the speech police, something we ought to avoid like the plague. We ought to make sure people of all ideological and political affiliations are free to engage in their constitutional rights of association and of political speech.

I wish to point out, in conclusion, that 60 years ago the Supreme Court of the United States handed down a very important decision. It is called the NAACP v. Alabama. The question there was whether the government could compel the disclosure of the membership list of the NAACP when the NAACP felt its members would then be targeted by the government in a negative sort of way. The Supreme Court said the Constitution of the United States and the First Amendment guarantees the right of free association in addition to a right of free speech and that was constitutionally protected activity. Given the importance of that right under the Constitution and also given the likelihood of negative attention by the government, they said the NAACP could keep its membership list confidential.

So at a time when the American people have taxes on their minds—I know my wife and I have a deadline in our family that by the end of February we like to get everything to the people who help us prepare our tax returns—and with a midterm election looming, the last thing we need to do is to support the IRS becoming the speech police and suppressing the constitutionally protected rights of the American people.

I would particularly say to my friend from Arizona that I pulled out a Gallup poll report, dated January 15, 2014, where government was cited as the top problem. That report shows that 21 percent of people in the poll said they were dissatisfied with the government, Congress, politicians, poor leadership, corruption, and abuse of power. What greater abuse of power could there be than to confer upon the IRS the legitimacy to intimidate and suppress people exercising their constitutionally protected rights of free speech.

So I commend the Senator from Arizona and others who are working on this. They can count on me to lend my voice and support to their efforts.

Mr. FLAKE. I thank the Senator from Texas and my other colleagues who have participated in this colloquy. I hope we can speedily bring the Stop Targeting of Political Beliefs by the IRS Act to the floor. When the Senator from Texas talks about his constituents and what they endured at the hands of the IRS, how anybody can say there is nothing amiss there or there is nothing wrong, especially when somebody is asked, upon application for a 501(c)(4), to give up their Facebook posts and tweets and let the IRS review them to see if they are worthy of receiving such status, there is something wrong. I think Americans know that.

I appreciate the support of my colleagues on this legislation and I appreciate the Senator from Kansas, my partner in this effort.

I yield the floor, and I suggest the absence of a quorum.

The PRESIDING OFFICER (Mr. SCHATZ). The clerk will call the roll.

The assistant legislative clerk proceeded to call the roll.

Mr. PRYOR. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

NOMINATIONS

Mr. PRYOR. Mr. President, I rise for the purpose of notifying my colleagues that later today or tomorrow I intend to ask unanimous consent for two of my judge nominees to be voted on this week. Both are noncontroversial, both have been heartily endorsed by Senator BOOZMAN, my colleague from Arkansas, and basically everybody else who has looked at this. These two judges came out of the Judiciary Committee, one of them on October 31 and the other on November 14.

These two judges are completely noncontroversial, but we have a sense of urgency, not only because we have two vacancies on the Federal bench in Arkansas, which is in and of itself a problem, but we have a real sense of urgency because one of these judges is an elected judge. In Arkansas, those are nonpartisan elections. One of these judges is an elected judge and the filing period for his seat opens on February 24 and closes on March 3.

We find ourselves in a situation where we are here this week, then we will be in recess next week. We will then come back on the evening of February 24, presumably for 5:30 p.m. votes, if things work on that day as they typically do around here. We would presumably have a 5:30 p.m. vote, and at that point the filing would be open, with other lawyers and judges interested in that position, and there is a domino effect that happens in Arkansas because of that.

So I am not going to ask unanimous consent right now, but I wanted to put all my colleagues on notice that I intend to do that either later today or tomorrow.

With that, I yield the floor.

The PRESIDING OFFICER. The Senator from Alaska.

Mr. BEGICH. Mr. President, first, I wish to thank Senator PRYOR. Senator PRYOR and a group of us have introduced a piece of legislation that rights a wrong; that makes sure our military continues to receive their COLA in full course and in the full amount.

As the Presiding Officer knows, we had a budget issue we worked through, and in that process the COLA for our active retired military was reduced by 1 percent. We all knew we would take the time, because we had the time after the budget passed, to fix this problem. We have already done it for our disabled retired veterans and now we need to fulfill the final and full promise of their COLA in total.

I spoke last night about this issue, and then we had the vote on cloture, with the result being 94 to 0—94 to 0. If that isn't an indication of how much support there is to make sure the COLA comes back in full force, I don't know what is.

I do know starting right after that vote we began hearing from people already coming up with, well, I voted for cloture, but I have a caveat. I have some qualifications I want to add on that vote. I want to have these things in Washington that are called pay-fors.

Let me make it very clear to the veterans in my State—and there are 77,000 veterans who live in my State. The highest per capita in the Nation is in Alaska. They have paid the bill. They paid the bill time and time again.

This is a perfect photo to use as an example of our military who have served in combat, who served on the

frontlines. Think about those who have already paid the ultimate bill—almost 6,800 servicemembers have died in Iraq and Afghanistan; from Alaska alone, 22, and I will read some of those names in a second.

First, I wish to make it very clear we are going to hear these convoluted reasons as to why we should have this pay-for. I wasn't here when they paid for these wars—no, I am sorry, they didn't pay for these wars. They didn't pay the $2 trillion-plus for the wars, but now that it is time to pay the bill for those who committed to serve our country, to go to the frontlines when called upon and ensure we have the freedom we enjoy in this country, some are saying: Well, yes, we want to give them that retirement COLA, but—there should be no ''but'' here. A promise made is a promise we need to keep.

My view is we should have their backs every single day, and this is the day to do it. Let me make it very clear to those who are going to have this convoluted reason for this pay-for: This is a vote for vets or a vote against vets. You can have all the gobbledygook, all the convoluted arguments, but at the end of the day if you vote against this bill, without all this stuff added to it—just a clean and simple giving the COLA back and then let's move on, give them their full COLA—you are voting against vets.

I don't care how they try to press-release it, spin it, or what amendments they want to add to create a political situation for other Members on other issues unrelated to vets. A promise made is a promise we need to keep. We need to have their backs. They have our backs every single day to make sure this country is safe, no matter where American citizens are in this country or in this world. It is our time to do what is right for veterans.

I shared some stories last night about Alaskans who are struggling with this issue and the commitment they thought they had. One gentleman served 18 years in the military and is close to retirement. He is wondering what did he sign up for. He has had enormous pressures on his family. He has moved six different times. He has two children, one disabled, and a variety of personal issues. But he continues to serve this country. And for us to play politics and start talking about immigration, child tax credits, forget it. It is time to do what is right for our veterans, to put this COLA back in full force.

Over 30 veterans organizations support this bill with no pay-for, clean and simple. Senator PRYOR and I were on a phone call last week and talked to many—the Air Force Association, Army Aviation Association, the Fleet Reserves, Gold Star Wives—I can go through the list of 30-plus organizations who work with our veterans every single day and want us to pass this bill—not an amended bill but this bill: Get it done and give peace of mind to our veterans and retirees and active military.

To some degree this puts our readiness at risk. If someone is thinking about joining the military, they are looking at the benefits. They know at some point they may be called to duty and put their life on the line. So they are looking at the benefits: What can they provide for themselves and their families? What is the retirement if they become a career officer or a career enlisted member? And now they are questioning if they should.

I received emails from some parents whose sons and daughters are currently enlisted and are now wondering, what did they get into when at a moment's notice the commitments, the promises we—Congress—made can change overnight.

Our readiness is at risk, and the promises and commitments we make to our military are in question. Today is the start to make sure our commitments are there. We cannot say to our veterans: Sign up; we will promise you these things, and tomorrow we might change them. That doesn't help our readiness and commitment.

I get that there is going to be a lot of policy wonk conversation by some Members because they want to confuse the issue and make it hard for people to understand what is really going on in Washington. But it is simple. The chairman of the Veterans' Affairs Committee knows this issue is simple. It is about our vets. If you vote yes, you are for our vets; if you vote no, you are against our vets. That is it. They can put in all the spin and all the amendments to make it sound good. But in reality, they are trying to cover an activity they are struggling with; that is, they don't necessarily like some of us who are sponsors. I get that. But let's put aside our politics. Let's do what is right for the vets, let's have their backs, let's keep the promise we made to them.

Again, this bill is simple. It is so simple it is 1 page. It just says: Repeal that action.

I hope my colleagues on the other side who are wondering about what they should do will vote for the vets. Vote yes. Don't mess with amendments, don't try to have this pay-for convoluted argument. The vets at home who will be watching don't care about that. They just want to make sure their COLA is there. Let's give them the peace of mind they deserve.

I will read a few of the names who have paid the ultimate sacrifice. I read some of these last night: GySgt Christopher Eastman, Marines, age 28, from Moose Pass, AK; SGT Joel Clarkson, Army, age 23, Fairbanks; LCpl Grant Fraser, Marine Reserves, age 22, Anchorage; SPC Shane Woods, Army, age 23, Palmer.

These are just a few of the 22 Alaskans who have lost their lives. I don't know if they would have been long-term career if they stayed in the Army or Air Force, but they sacrificed their lives. They put their lives on the line to make sure we do the right thing here. It is time we do it. Today is the opportunity. Don't convolute it with all kinds of amendments. Vote up or down. You are either for vets or against vets.

I yield the floor.

The PRESIDING OFFICER. The Senator from Vermont.

Mr. SANDERS. Mr. President, I rise in full support of the legislation on the floor.

I think most Members understand, as part of the 2013 bipartisan budget agreement, language was included which cut COLAs for military retirees. I think most Members here in the Senate and the House understand that was a mistake, an oversight, and is something that should be rectified and it should be rectified now. Promises made to people in the military should be kept, and our job is to do that.

This morning, as the chairman of the Senate Veterans' Affairs Committee, I wish to say a word on broader issues impacting the veterans community.

Shortly after this legislation is disposed of, we are going to move on to a comprehensive piece of legislation which addresses many of the very serious problems facing our veterans community. I will give a brief overview of what the legislation does. The legislation is the Comprehensive Veterans Health and Benefits and Military Retirement Pay Restoration Act of 2014—S. 1982.

The first point I will make is I honestly believe, in terms of the veterans issues, there is widespread bipartisan support. On the Veterans Committee, every Member of our committee—Democrat, Republican, or in my case Independent—believes very much that we owe our veterans more than we can provide them. Their sacrifices are too deep, the pains are great. But all Members of the committee in a bipartisan way are doing their best to protect the interests of our veterans, and I thank all of them for their hard work.

To as great a degree as possible, the bill which will be on the floor—the comprehensive veterans bill—is a bipartisan bill. It contains many provisions brought forth by my Republican colleagues. This bill consists of two omnibus bills unanimously passed by the Senate Veterans' Affairs Committee, supported by Democrats and Republicans. It also includes other provisions which had strong bipartisan support.

This legislation also contains two new provisions, both of which have bipartisan support. The first new addition addresses the restoration of cuts made to military retiree COLAs as a result of the 2013 bipartisan agreement, the exact same issue being debated on the floor right now. We also have that language in our bill. Promises made to veterans have got to be kept. We have to restore those cuts to COLAs for military retirees.

The second new provision not discussed, frankly, by the committee also has widespread bipartisan support, and

authorizes the VA to enter into 27 major medical facility leases in 18 States and Puerto Rico.

Interestingly, the legislation which will soon be on the floor contains two major provisions already passed by House Republicans. So to as great a degree as possible, in terms of language in the bill, in terms of working with our Republican colleagues in the House, this is a bipartisan bill and should have the support of every Member of the Senate who believes in protecting the interests of veterans. And I hope that is the vast majority of the people here.

As Senator BEGICH mentioned a moment ago, our veterans have paid a very heavy price. What I have learned in the little bit more than the year in which I have been chairman of the Veterans' Affairs Committee is I think most Americans, including myself, were not fully aware of what that sacrifice was. And what that sacrifice was in recent years was not just the loss of over 6,700 Americans who lost their lives in Afghanistan and Iraq but the impact of those wars on hundreds and hundreds of thousands of veterans who came home either wounded in body—loss of arms, loss of legs, loss of hearing, or loss of sight—or the more invisible wounds of war.

What most Americans don't know is a rather shocking number, but we are now dealing with hundreds of thousands of men and women who came home from Iraq and Afghanistan who are doing their best to cope with posttraumatic stress disorder, which has a terrible impact on their lives, on their families' lives, and on their ability to get a job and keep a job; and traumatic brain injury, the result of being in the presence of IEDs and the explosions in Iraq and Afghanistan.

We are also dealing in this rough economy, this struggling economy, this high unemployment economy, with many young veterans coming home unable to find jobs. Some in the National Guard left decent jobs and came home to find those jobs are not there.

I think virtually every Member in the Senate understands that at a time when the VA went from paper to digital and made the transformation which was necessary to deal with the claims process, the claims process today remains too long. The backlog is too great. We have to deal with that issue.

We are dealing with a situation where young men and women were wounded in war who had hopes and dreams of starting their own families, but as a result of injuries sustained in those wars, for whatever reason, lost their reproductive capabilities and they still want to have families.

We are dealing with issues of sexual assault—a scandal, an outrage I know every Member of the Senate feels strongly about. Women and men who were sexually assaulted are coming home in need of treatment and are unable to get that treatment.

We are dealing with a situation today above and beyond the wars in Afghanistan and Iraq, where there are people—often women, wives and sisters—who are under great stress taking care of disabled veterans who have no arms and no legs. They have devoted their lives to those people and they are hurting as well. As chairman of the veterans' committee, what I have done is listened as carefully as I could to what the veterans community—representing some 22 million veterans—had to say about the problems veterans are facing.

My very fine staff and I—along with my Republican colleagues and their very fine staffs—worked together. We said: These are the problems facing our veterans. We all know that on Veterans Day and Memorial Day every Member of the Senate goes out and gives a great speech about how much they love and respect veterans and how much they appreciate the sacrifices made by veterans.

Now is the time to stand and go beyond words and rhetoric. Now is the time to, in fact, address the real and serious problems facing those men and women whose families experienced the ultimate sacrifice and those men and women who came home wounded in body and spirit.

We cannot solve all of the problems facing veterans. We cannot bring back loved ones lost in Iraq, Afghanistan, Vietnam, and the other wars. We cannot bring them back to their wives, their mothers, their dads, and their kids. We cannot do that. We cannot magically replace the arms and the legs or eyesight lost in war, but we do have the moral obligation to do everything humanly possible to protect and defend those men and women who protected and defended us. We can do that and that we must.

I am very proud the legislation that will soon be on the floor has the strong support of virtually every veteran and military organization in this country, and that includes all of the major organizations representing millions and millions of veterans.

I thank the American Legion, the Veterans of Foreign Wars, the VFW, the Disabled American Veterans, also known as DAV, Vietnam Veterans of America, the Military Officers Association of America, the Iraq and Afghanistan Veterans of America, the Paralyzed Veterans of America, the Gold Star Wives, and dozens and dozens of other veterans and military organizations that are supporting this legislation.

The Senate Committee on Veterans' Affairs has received letters of support from virtually all of these organizations, and if Members want to check out why these organizations that are representing millions of veterans are supporting this bill, they will find those letters on our Web site.

I will quote from one of the letters. This letter is from the Disabled American Veterans, DAV.

> This . . . bill, unprecedented in our modern experience, would create, expand, advance, and extend a number of VA benefits, services and programs that are important to DAV and to our members.

They see it—as do many of the other veterans organizations—as one of the most comprehensive pieces of veterans legislation brought forth in the modern history of Congress. I am proud of it. I thank the veterans organizations not just for their support of this legislation but for the help they gave us in drafting this legislation.

This legislation did not come from BERNIE SANDERS or from anybody else on the committee. It came from the veterans community itself. It came from representatives of veterans organizations who came before us in hearings, who came before us in private meetings, and said: Senator, here are the problems facing our veterans. If you are serious about going beyond rhetoric and speeches and truly want to help veterans and their families, this is what needs to be done.

We listened. We could not do everything, but we did put many of the major concerns facing the veterans community in this bill. Again, I thank the veterans organizations for being our partner in drafting this legislation.

I also wish to take this opportunity to thank those people who have currently cosponsored this legislation, and that includes Senator LANDRIEU, Senator BEGICH, the Presiding Officer Senator SCHATZ, Senator BROWN, Senator BLUMENTHAL, Senator HIRONO, Senator BOXER, Senator CASEY, Senator GILLIBRAND, Senator HEINRICH, Senator HEITKAMP, Senator MERKLEY, Senator MURRAY, Senator REED, Senator SHAHEEN, Senator WHITEHOUSE, Senator ROCKEFELLER, Senator TESTER, and Senator CANTWELL. I thank all of them for their strong support.

I will take a few minutes to touch on some of the areas this comprehensive bill covers. As I return to the floor in the coming days, I will go into greater length about each of these provisions. Each of these provisions, unto themselves, is enormously important in terms of the needs of our veterans.

As I mentioned earlier, our comprehensive veterans bill—consistent with the Pryor bill—will restore the cuts made in the Bipartisan Budget Act of 2013 to military retirees. We address that issue in our bill.

This comprehensive veterans legislation deals with another issue—not necessarily a sexy issue—that in fact impacts a large number of veterans in communities all over America, and that is that it will allow the VA to enter into 27 major medical facility leases in 18 States and Puerto Rico. That means—for a variety of reasons too complicated to get into right now—we have CBOC, community-based outpatient clinics, and other veterans facilities that are ready to go. They are on the drawing board.

Actually, it is beyond the drawing board, but we have not been able to pull the plug on it. This is very important to veterans all over this country.

It is important to Republicans, it is important to Democrats, and it is time to get this done. By the way, this has been passed in the House of Representatives. We need to do it and that is part of this legislation.

This legislation includes groundbreaking provisions that would expand access to VA health care. In my view and in the view of veterans all over this country, the VA provides high-quality, cost-effective care to millions and millions of our veterans. There are approximately 6.2 million veterans accessing VA health care today. About 8 million are signed up for VA care.

This legislation expands access to VA health care, allows more veterans to come in, and ends a very complicated priority 8 eligibility. Priority 8 is a situation where there are hundreds and hundreds of different eligibility levels all over the country, and it makes it very confusing for priority 8 veterans to determine whether they are eligible. We ended that and simplified it. The result is that more veterans will be able to access VA health care. We have also expanded complementary and alternative medicine within the VA. The truth is the VA is now doing a good job in providing complementary and alternative medicine, and that means meditation, acupuncture, yoga, and other treatments to veterans who are concerned about not being dependent on medication. One of the great problems we have nationally and in the VA is overmedication of people who have problems associated with pain and other ailments. The VA has done a good job. We are going to expand that opportunity.

My experience—having gone around the country—is that both within the Department of Defense hospitals and the VA, more and more veterans are looking at these alternative-type treatments and want to break their dependence on overmedication.

What we also do in this legislation is something that is terribly important. It is my strong belief that dental care must be considered a part of health care. The fact is that in this country there are millions of people—above and beyond the veterans community—who cannot find affordable dental care. Right now within the VA, dental care—with the exception of service-connected problems and homeless veterans—is not open to veterans, and we begin the process to do a significant pilot program to bring dental care into the VA. That is extremely important for the veterans community.

I think all of us remember not so many months ago the Government of the United States was shut down and caused all kinds of problems for all kinds of people. What is not widely known is that disabled veterans and veterans receiving their pension were 7 to 10 days away from not getting their checks. We have disabled veterans all over this country who live from month to month through those checks, and they were 7 to 10 days away from not getting those checks. This legislation provides for advanced appropriations for mandatory VA benefits. By passing that provision, we will never again put disabled vets or veterans who are dependent on their pensions in the position of not getting their checks when they need it.

One of the issues that has been discussed a great deal is the issue of benefits backlog. There is no disagreement in this Senate—whether one is a Republican, Democrat, Independent—that it is not acceptable for veterans who applied for benefits to have to wait for years to get those benefits. In my view, what the VA is now doing is undergoing a massive transformation of their benefit system, going from paper—which was incomprehensible to me. In 2008 their system was paper. They are going from paper to digital. They are making progress, but I want to see them make more progress. This legislation includes some important provisions to make sure we end this unacceptable backlog of VA benefits.

One of the issues that has also received some attention is the issue of instate tuition assistance for post-9/11 veterans. A number of years ago we passed very significant legislation which enabled some 900,000 post-9/11 veterans and family members to get higher education throughout this country. This legislation would give our transitioning servicemembers a fair shot at attaining their educational goals without incurring an additional financial burden.

We deal with the issue of somebody from out of State moving into another State and making sure that veteran is paying no more than what the instate tuition is for that State. This is a very important provision and, by the way, a provision that was passed in the House of Representatives. The language is pretty much the same in this bill.

We promised veterans who served in Iraq and Afghanistan that they would have 5 years of free VA health care when they came home. For a variety of reasons, people have not taken advantage of that. We think it is important to extend—from 5 to 10 years—unfettered access to VA health care for recently separated veterans, and that is what this legislation does.

I don't have to mention to anybody that our economy—while slowly improving—still has many challenges. Unemployment is much too high. What this legislation would do is reauthorize provisions from the VOW to Hire Heroes Act of 2011, including a 2-year extension for the Veterans Retraining Assistance Program, otherwise known as the VRAP program. In other words, what we are saying to our veterans is when they come home, we want a job to be there for them. We want them to get integrated back into civilian life, so we have some very important provisions in here for employment opportunities for our veterans.

As I mentioned earlier, sexual assault is a scandal. The numbers are appallingly high. What this legislation does is enable those women and men who were sexually assaulted to come into the VA to get the quality of care their situations require and deserve.

This provision was inspired by Ruth Moore, who struggled for 23 years to receive VA disability compensation. So we have language making sure those who suffered sexual assault will get the care within the VA they absolutely are entitled to.

I mentioned earlier, also, that several thousand men and women who served in Iraq and Afghanistan were wounded in ways that make it impossible for them to have babies. These are people who really want families, and some of them are now spending a very significant amount of money in the private sector through a number of approaches in order to be able to have babies. We have language, a provision in this bill, which would help female and male veterans who have suffered significant spinal cord, reproductive, and urinary tract injuries to start a family. I think that is absolutely the right thing to do.

Several years ago this Congress did the right thing by establishing a Caregivers Act, which said to those people who were caring for disabled vets that we understand how difficult—how difficult—that work is, that you are taking care of people who need constant attention, loved ones who need constant attention, and we are going to help you do what you have been doing.

The good news is we passed that legislation. The bad news is it only applied to post-9/11 veterans. I think there was a general understanding, an assumption, that we were going to expand that program to all veterans—Vietnam, World War II, Korea—so those people, mostly women who are staying home, taking care of veterans, get the support they need. So the extension of the Caregivers Act is also included in this legislation.

Those are some of the provisions. This is a 400-page bill, and I just touched on some of them. But let me end in the way I began. There is no way we can ever fully repay the debt we owe to the men and women who put their lives on the line defending this country. That is just the simple nature of things. We are not going to bring back the husbands who were lost in war, the wives who came back without any legs. We are not going to bring fathers and mothers back to children who lost their dad or their mom. We are not going to restore eyesight to people who are blind. We cannot do that.

But if this country means anything, it means that we have to keep the promises we made to veterans and their families; that while we cannot do everything, we have to do as much as we can to make the lives of our veterans and their families, their loved ones, as happy and productive as we possibly can.

So this legislation is from Senators who listened to our veterans, heard

their concerns, worked with them, and developed this comprehensive bill.

Let me conclude once again by thanking all of the veterans organizations. We have virtually every veterans organization in America—not all but almost all—supporting this legislation. We thank them for the work they do every day on behalf of our veterans. I thank them very much for all the help they have provided me and the committee in writing this legislation.

Speeches on Veterans Day or Memorial Day are great. That is good. It is important we all do it. But now is the time to go beyond speeches. Now is the time to address the problems facing the veterans community. This legislation does this in a very comprehensive way, and I ask for the support of all my colleagues in the Senate.

I yield the floor.

The PRESIDING OFFICER. The Senator from Michigan.

Ms. STABENOW. Mr. President, before my colleague, the chairman of the Veterans' Affairs Committee, leaves the floor, I say thank you to him for his passion and advocacy. The legislation he spoke of this morning is incredibly important. I say to Senator SANDERS, if I am not yet on that bill, I need to be and will be. Please sign me up.

It is absolutely true we need to do more than just make speeches. We need to put our commitment, our resources, and keep our promises to our veterans. That is what this bill does, and we thank the Senator very much.

Mr. SANDERS. I thank the Senator.

Ms. STABENOW. We also, Mr. President, have a bill in front of us that is about our veterans. This bill is about our veterans, and the question is on a ''yes'' or ''no'' on this final bill. If we support our veterans, we vote yes. If we do not support our veterans, if we want to play political games with it, find some other excuse not to support veterans, then you vote no. It is very simple. To keep our promise, vote yes. If you do not care about keeping our promise, vote no.

We had a vote last night in the Senate to end the filibuster. I think it was embarrassing we had to have the vote. I thank our friend and colleague, the senior Senator from Arkansas Mr. PRYOR for putting this bill forward, along with a number of colleagues. But we should not even have had to have a vote to end a filibuster to move forward on this bill. This is something that everyone should want to do as quickly as possible. It should not be controversial.

Unfortunately, instead of moving it forward and getting this done, we are seeing Republican colleagues who are arguing about amendments, amazingly, that would increase taxes on families in order to ''pay for'' helping our veterans.

Now, I think every veteran in America should find this absolutely outrageous. I know I do. These men and women have sacrificed for our Nation. Some did not come home. Some came home without an arm or a leg or a closed head injury. They have paid in full for this bill. ''Paid in Full'' is what we stamp on this piece of legislation.

I am proud to represent nearly 700,000 veterans who are living in Michigan—veterans and their families. That is my pay-for for this bill. They have paid in full to make sure they get their veterans benefits, their pensions, the health care we promised them.

I would like to read just a very few of the names of people in Michigan who are the pay-for I offer today on the floor of the Senate:

Richard Belisle from Saint Joseph, MI, who retired from the Coast Guard after 21 years of service—twenty-one years of service—has paid in full for this bill.

Bill Garlinghouse of Holland spent 22 years in the Navy—I am partial to the Navy; my dad was in the Navy—and then 5 years working for the Navy as a civilian. With twenty-two years in the Navy; 5 years working for the Navy as a civilian, he has paid in full for this bill.

Richard Eversole of Sumner spent 22 years in the Air Force and retired as a master sergeant. Richard has paid in full for this bill.

Frank Bell from Kalamazoo retired 10 years ago as a senior master sergeant in the U.S. Air Force. He is 51 years old, so he will see his pension cut by 1 percent every year for the next 11 years.

This needs to be fixed now—no games, no debating about amendments—yes or no on making sure Frank Bell gets his full pension because he has paid in full for this bill.

David Lord of Cheboygan retired from the Navy after 20 years of service. Again, he has paid in full.

John Frollo of Saint Charles spent 20 years in the Navy before retiring in 2006.

Joseph Boogren of Gwinn, MI, spent 32 years—32 years—in the Navy. He served in Iraq and Afghanistan. He flew 177 combat missions defending our country, putting himself in harm's way on behalf of all of us. I believe Joseph Boogren has paid in full for his pension and the other benefits we have promised him and his family.

Debbie Rasmussen from Sheridan, MI, wrote in on behalf of her military family. Debbie and her husband are both Navy veterans, and their son Matt is an Active Duty sailor with over 15 years of service, including service in Afghanistan. They believe—and I believe—the Rasmussens have paid in full for this benefit.

Karen Ruedisueli is the wife of an Active Duty Army major currently stationed at the Pentagon. Kurt and Karen have been a military family for 12 years. The Ruedisuelis have paid in full.

I could go on and on with so many similar letters. Every service is represented in these letters because veterans from every part of our armed services would be hurt by what has been put in place.

We know this needs to be addressed and needs to be fixed. We have all said that—that this needs to be fixed, we need to honor the commitment we have made to the men and women who have served us, and continue to serve us. This bill will restore the cost-of-living adjustments for all military retirees.

We need to act now so our veterans have the certainty and the peace of mind they need to move forward with their lives. We should not be involved in wrangling, in folks trying to find political advantage, and take political hostages, score points in some way. We need to just get this done—no amendments, no jockeying here, just vote for this bill and get this done.

This bill is about keeping our promise to the men and women who have served us and continue to serve us. A ''yes'' vote says we have your back. A ''yes'' vote says we honor and support you. A ''no'' vote or other votes that confuse the situation and play political games are really votes that turn your back on our veterans. Very simply, vote yes to get this done—no distractions, no extraneous issues. No matter how people feel about other things, bringing them into this is not right. It is not fair. This is about yes for veterans or no for veterans.

I hope we will all stand together and understand the ''paid for'' are the people who have served in our States and continue to serve us today. They have paid in full. We need to vote yes and get this done.

The PRESIDING OFFICER (Ms. HEITKAMP). The Senator from South Dakota.

THE ECONOMY

Mr. THUNE. Madam President, I come to the floor today to discuss the stagnant Obama economy and how ObamaCare is making it worse. This Monday marks the fifth anniversary of the day the President signed his trillion-dollar stimulus bill into law. In remarks he gave in Denver that very day he signed the bill, the President stated that the legislation marked ''the beginning of the end'' of the Nation's ''economic troubles.''

Five years later, however, the end of the Nation's economic troubles is nowhere in sight. The headlines of the jobs report released Friday say it all. The headlines from the Associated Press said, ''U.S. Economy May Be Stuck in Slow Lane for Long Run.''

The New York Times headline: ''Weakness Continues as 113,000 Jobs Are Added in January.''

From CBS News: ''Another month of weak job growth raises slowdown fears.''

From the Wall Street Journal: ''U.S. Adds 113,000 Jobs, in Latest Worrying Sign on Growth.''

From Reuters: ''U.S. employment fails to rebound strongly from winter chill.''

Well before passage of the stimulus, Presidential adviser Christina Romer predicted that the stimulus bill would reduce the unemployment rate to 5 percent by the year 2014. In fact, over the

past 5 years, the unemployment rate has never come close to falling that low. Last month's unemployment rate was 6.6 percent. If so many people had not dropped out of the labor force over the past several years, that number would be even higher.

If the labor force participation rate were the same as it was when President Obama took office, our current unemployment rate would be a staggering 10.5 percent. Despite the fact that the recession technically ended 55 months ago, we are still nowhere near where we need to be in terms of economic recovery.

CBS News reported on Friday that the economy would have to gain an average of 285,000 jobs per month for the next 3 years just to get us back to where we were before the recession. Yet job creation for the past year has not even come close to that. In fact, our economy has added just 180,000 new jobs per month, approximately, over the past year. If we continue at that same rate, it will take us over 5 years to return to where we were before the recession.

President Obama's economic policies have left our economy mired in stagnation. His health care law is making things even worse. Last week the nonpartisan Congressional Budget Office released a new report on ObamaCare. It found that ObamaCare will result in the equivalent of 2.5 million fewer full-time jobs over the next 10 years—2.5 million fewer jobs. Our economy is millions of jobs away from where it needs to be.

Our labor force participation rate is near a 35-year low. The President's health care law is going to result in 2.5 million fewer full-time jobs. How will that work? Well, the CBO report made it clear that ObamaCare provides disincentives to work, particularly for those at the low income end of the spectrum.

An individual receiving ObamaCare subsidies to pay for his or her health insurance may decide not to accept more hours or a higher paying job so that she or he does not exceed the income caps for receiving subsidies. At the higher end of the wage spectrum, workers may decide not to rise too far up the ladder so their income does not reach the point at which it would be subject to ObamaCare taxes. Thus, ObamaCare essentially traps workers in lower paying jobs, putting a de facto limit on the prosperity of literally millions of Americans.

The CBO reinforces that notion, not just by projecting that 2.5 million people will drop out of the workforce but also by projecting that those who stay in the workforce will earn less.

According to one analysis of the CBO report, ObamaCare will reduce total wages by an estimated $70 billion per year. Without question, most of this burden will be placed on lower and middle-income families who already are struggling to make ends meet. Furthermore, by providing Americans with disincentives to work, ObamaCare will limit our economic growth.

As the editors of the National Review put it, ''The depth of the Obamacare crater in the labor force isn't some abstract unemployment rate, but the lost value of the work those Americans would have done.''

Americans working creates economic growth. It is as simple as that. Encouraging Americans to work less or quit work altogether will undermine American prosperity and American families' security. Those who find work and are willing and able to fulfill their jobs deserve wages that are unhindered by a government takeover of health care.

Combine the CBO report with our experience of ObamaCare so far and the future does not look promising: lower income Americans living off meager salaries and government health care subsidies just to get by; middle-income Americans struggling to pay higher health insurance premiums and deductibles; and upper income Americans and small business owners too reluctant to create jobs and wealth for fear that they will be subjected to ObamaCare's burdensome taxes and regulations.

That is not the kind of future any American desires, but that is exactly the future ObamaCare is bringing us. In fact, for too many Americans, that future is already here. With ObamaCare's full implementation this year, Americans are facing huge premium increases and steep hikes in their out-of-pocket costs. They are losing access to their doctors and hospitals. All too often they are facing fewer hours with fewer benefits at their jobs as their employers struggle to comply with ObamaCare's taxes and mandates.

Even the President has tacitly acknowledged the burdens his health care law places on employers by once again delaying one of the law's job-destroying mandates. While I am glad some businesses will get relief until 2016, Congress should go further, much further, and ensure that every single American is protected from this disastrous law.

We can do better than ObamaCare and the President's economic policies. The President has called for 2014 to be a year of action. Republicans could not agree more. It is past time to take action to start reversing ObamaCare's damage and finally get our economic recovery off the ground.

Almost 2 weeks ago, the Obama State Department released its fifth environmental review showing that the Keystone XL Pipeline would have no significant impact on global carbon emissions. There is strong bipartisan support in both Houses of Congress for approving that pipeline and the 42,000 jobs it will support. The President needs to stop pandering to far-left environmentalists and immediately approve the pipeline and the good-paying jobs it will open for Americans.

Next, the President should pick up that phone he keeps talking about to call the Senate majority leader and tell him to bring the bipartisan trade promotion authority legislation to the floor. Passing trade promotion authority will help U.S. farmers, ranchers, entrepreneurs, and job creators gain access to 1 billion consumers around the globe. The majority leader needs to stop obstructing the jobs this bill would create and join Members of both parties to pass this important legislation.

Finally, the President should throw his support behind a repeal of the medical device tax in his health care law. This tax on lifesaving medical technology such as pacemakers and insulin pumps is forcing medical device companies to send American jobs overseas. There is strong bipartisan support for repealing the tax, and the President should add his.

Far too many Americans have spent the past 5½ years of the Obama Presidency struggling to get by. Household income has fallen. Health care costs have risen. Jobs and opportunity have been few and far between. For many Americans, the possibility of a secure economic future seems further and further out of reach. It does not have to be this way. We can turn our economy around by abandoning the President's failed economic proposals and embracing the kind of legislation that will open up new jobs and opportunities for the American people.

The three proposals I have outlined above are a good place to start. I hope the President will join Republicans and Democrats to get these priorities done.

I yield the floor, and I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The legislative clerk proceeded to call the roll.

Mr. REID. I ask unanimous consent that the order for the quorum call be rescinded.

The VICE PRESIDENT. Without objection, it is so ordered.

CERTIFICATE OF APPOINTMENT

The VICE PRESIDENT. The Chair lays before the Senate a Certificate of Appointment to fill the vacancy created by the resignation of Senator Max Baucus of Montana. The certificate, the Chair is advised, is in the form suggested by the Senate. If there is no objection, the reading of the certificate will be waived and it will be printed in full in the RECORD.

There being no objection, the material was ordered to be printed in the RECORD, as follows:

STATE OF MONTANA

CERTIFICATE OF APPOINTMENT

To the President of the Senate of the United States:

This is to certify that, pursuant to the power vested in me by the Constitution of the United States and the laws of the State of Montana, I, Steve Bullock, the governor of said State, do hereby appoint John E. Walsh a Senator from said State to represent said

State in the Senate of the United States until the vacancy therein caused by the resignation of Max Sieben Baucus, is filled by election as provided by law.

Witness: His Excellency our governor Steve Bullock, and our seal hereto affixed at Helena, Montana this ninth day of February, in the year of our Lord 2014.

By the governor:

STEVE BULLOCK,
Governor.
LINDA MCCULLOCH,
Secretary of State.

[State Seal Affixed]

ADMINISTRATION OF OATH OF OFFICE

The VICE PRESIDENT. If the Senator-designee will now present himself at the desk, the Chair will administer the oath of office.

The Senator-designee, escorted by Senator TESTER, advanced to the desk of the Vice President, the oath prescribed by law was administered to him by the Vice President, and he subscribed to the oath in the Official Oath Book.

The VICE PRESIDENT. Congratulations, Senator.

(Applause, Senators rising.)

REPEALING SECTION 403 OF THE BIPARTISAN BUDGET ACT OF 2013—MOTION TO PROCEED—Continued

Mr. DURBIN. I suggest the absence of a quorum.

The PRESIDING OFFICER (Ms. HEITKAMP). The clerk will call the roll.

The legislative clerk proceeded to call the roll.

Ms. HIRONO. I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

Ms. HIRONO. Madam President, there is overwhelming bipartisan support to repeal the COLA reduction for military retirees that was enacted last December in the budget bill. The debate now is whether and how to pay for the cost of this repeal. I agree with my friend Senator MARK BEGICH of Alaska that our veterans have already paid for this repeal with their service to this country. However, there are some Senators who take a different view and have offered what we refer to as pay-for amendments.

Today I rise in strong opposition to the Ayotte pay-for amendment. The bill before us, S. 1963, the Military Retirement Pay Restoration Act, would repeal the COLA reduction for military retirees. This bill is sponsored by Senators PRYOR, HAGAN, and BEGICH, and I applaud their leadership on this issue.

Cutting military pensions was a bad idea. An even worse idea is to set up a contest between providing pensions to veterans and providing antipoverty assistance to children. That is the choice Republicans want us to make. I wish I could honestly say this so-called choice is hard to believe, but I can't. It is like choosing between cutting off an arm or a leg from the body politic. Vets or poor children—aren't they both in need of fair treatment?

Again, there is bipartisan support to restore the COLA cuts for veterans, but I am told that my Republican colleagues won't allow us to have an up-or-down vote on the Military Retirement Pay Restoration Act unless we also vote on the Ayotte amendment No. 2732.

What does this amendment do? The Ayotte amendment would deny antipoverty assistance to the children of undocumented immigrants who are working and paying billions of dollars in taxes. It would cut this child poverty program by more than $18 billion over 10 years to pay for the restoration of COLAs for military retirees, which would cost about $6 billion over 10 years. In other words, the Ayotte amendment would deny $3 of antipoverty assistance to children in order to restore $1 of retirement pay to our veterans. That is unconscionable. We should not take the benefits we provide to veterans by hurting children in the process. Hurting children does no honor to our veterans' service.

The children targeted by the Ayotte amendment did not decide on their own to come to this country illegally. They were brought here by their parents. These children are DREAMers—our DREAMers. We should not punish them for their parents' decisions. We should help these children to succeed so they can contribute to this great country. Their parents are doing their part by working and paying more than $16 billion in taxes each year, more than $160 billion over 10 years. We should not deny them this small measure of help.

Let me acknowledge that it is politically difficult to vote against the offset in the Ayotte amendment. Why? Because the amendment targets people who have no political power. These are children of parents who cannot vote. These are children of parents who are very poor, who themselves live on the edge of poverty or far into the depths of it. Their parents work one, two, or even three jobs and pay the taxes they owe, but they are barely making ends meet. They are far removed from the level of wealth that too often today translates into political power. These are children of parents who came to this country the same way many of our ancestors came to this country 100 or 200 years ago and for the same reasons—to escape poverty, to seek opportunity, and to give their children a better life than they had. Their parents are working and paying billions of dollars in taxes each year, which is extending the lives of the Social Security and Medicare trust funds, as examples. Their parents are working and paying taxes, but they came here illegally, and therefore they must live in the shadows and live in fear.

Put simply, these are children of families who have no political power—none. They are the easiest to go after, and that is what this Ayotte amendment does. But we should help these families. We should help these DREAMers. It is an ancient and universal principle that we should help the least among us. To paraphrase the Book of Matthew, we should treat the least among us as we would treat the mightiest among us. That is why the U.S. Council of Catholic Bishops opposes the Ayotte amendment. We should not hurt the least among us in order to help our veterans.

How much money would the Ayotte amendment deny to these children? The maximum child tax credit is $1,000 per child, which is about $2.74 per day per child. To many of us, $2.74 per day seems like a small amount, but to a child in poverty it is literally the difference between eating and not eating.

According to the Bureau of Labor Statistics, in 2011 the average cost of one meal for one person was $2.67. That was the average cost, which means that a lot of people spent less than $2.67 on each meal. By way of comparison, SNAP benefits average about $4 per person per day—$4 for three meals, not just one. So our own food program is less than what our own Bureau of Labor Statistics says is the average cost of a meal.

So for a low-income child, the $2.74 per day she gets from the child tax credit is equivalent to about one meal. If a child is very poor, it probably means two meals. Put simply, if she gets the child tax credit, she eats. If she doesn't, she doesn't.

Of course, not every child receives the maximum refundable credit. The amount of the refund is determined, in part, on a family's income, so poor families receive even less. The average income for the families who would be affected by the Ayotte amendment is about $21,000 per year. They have to be working and paying taxes to get even one dime from the child tax credit program. Their average child tax credit refund is about $1,800, which is about $5 a day. That may not be much money to the Senators in this body, but that $5 pays for a meal for the whole family. It is about 8 percent of their income.

We should not be denying this basic level of assistance to any child in this country, no matter who their parents are or how they came here. We should not deny children this assistance when their parents—and I am going to repeat it—will pay over $160 billion in taxes in the 10 years during which this provision is cutting $18 billion. The way the child tax credit is structured, only working families who are paying these kinds of taxes can claim the refundable portion. It is not fair that families work and pay taxes but are then denied help—$2.74 per day per child.

We should not deny children this assistance under the guise of combating fraud. Imposing a Social Security number requirement on qualifying children will not end the fraud the proponents of this amendment have cited. We should go after the fraud, but it should

be obvious that any criminal willing to commit the fraud described by the proponents will not be deterred by having to fill in a 9-digit Social Security number. This does not solve the fraud problem.

The fraud we have heard about involves undocumented immigrants who are falsifying where they live and where their children live in order to claim their tax credit. We are told about four immigrants using a single address, and yet we hear nothing about the 18,000 corporations that use one address in the Cayman Islands to avoid paying their fair share of corporate tax. Instead of going after working families who are paying taxes, we should close the loophole that allows these corporations to evade their taxes.

How many groups in this country is this Congress going to hurt? We hurt women when we don't raise the minimum wage. We hurt people who are out of work through no fault of their own when we don't extend unemployment benefits. Now we are hurting DREAMers. We should not do this. I urge my colleagues to oppose the Ayotte amendment.

I yield the floor.

RECESS

The PRESIDING OFFICER. Under the previous order, the Senate stands in recess until 2:15 p.m.

Thereupon, the Senate, at 12:33 p.m., recessed until 2:15 p.m. and reassembled when called to order by the Presiding Officer (Ms. BALDWIN).

REPEALING SECTION 403 OF THE BIPARTISAN BUDGET ACT OF 2013—MOTION TO PROCEED—Continued

The PRESIDING OFFICER. The Senator from Maryland.

Mr. CARDIN. Madam President, I ask unanimous consent to speak as if in morning business.

The PRESIDING OFFICER. Without objection, it is so ordered.

REMEMBERING WILLARD HACKERMAN

Mr. CARDIN. Madam President, there is an epitaph on the wall above where Sir Christopher Wren—one of England's greatest architects—is buried. The epitaph reads in part:

> Here . . . lies . . . Christopher Wren, who lived beyond ninety years, not for his own profit but for the public good. Reader, if you seek his monument, look around you.

A similar epitaph would be entirely suitable for my dear friend, the great businessman, engineer, philanthropist, and devoted Baltimorean Willard Hackerman, who died yesterday at the age of 95.

In 1938, Willard was a 19-year-old civil engineer who had just graduated from Johns Hopkins University. He went to work for the Whiting-Turner Contracting Company in his native Baltimore. G.W.C. Whiting and LeBaron Turner had started the construction firm in 1909. In 1955, Whiting promoted Willard to be the president and chief executive officer of the firm, and he served in that capacity until his recent death.

Whiting-Turner issued a press release which stated:

> Mr. Hackerman led Whiting-Turner from a modest-sized local and regional contractor to a highly-ranked nationwide construction manager and general contractor working in all major commercial, industrial, and institutional sectors.

Last year—Willard's 75th year with the firm—it reported $5 billion in revenue. The firm, which has 33 regional offices and more than 2,100 employees, is ranked fourth in domestic general building by Engineering News Record and ranked 117th on the list of America's largest private companies.

As the Baltimore Sun noted, Whiting-Turner Contracting Company built the new University of Baltimore School of Law last year, the Joseph Meyerhoff Symphony Hall, the National Aquarium, and the M&T Bank Stadium. The firm's clients included Yale and Stanford universities, the Cleveland Clinic, Target, IBM, and Unilever, and the Hippodrome Theater. If you seek his monument, look around you.

Through Whiting-Turner, Willard teamed with then-mayor William Donald Schaefer to help transform Baltimore by building the Convention Center, Harborplace, and the Aquarium. These statistics and lists attest to Willard's incredible skills as an engineer and businessman, but they don't begin to capture the magnitude of his accomplishments, his charitable contributions, or his generous spirit.

Willard and his beloved wife Lillian have been lifelong supporters of Johns Hopkins University. He helped to reestablish the university's stand-alone engineering school in 1979, and secured the school-naming gift from the estate of his mentor, G.W.C. Whiting.

Other activities include funding the Willard and Lillian Hackerman Chair in Radiation Oncology at the Johns Hopkins School of Medicine, construction of the Hackerman-Patz Patient and Family Pavilion, and the Hackerman Research Laboratories at the Sidney Kimmel Comprehensive Cancer Center. He and his wife also provided major support for the Robert H. and Clarice Smith Building at the Wilmer Eye Institute.

In 1984, Willard and Lillian donated a mansion on Mount Vernon Place adjacent to the Walters Art Gallery to the city of Baltimore, which in turn entrusted the property to the gallery—now known as the Walters Art Museum—to house its collection of Asian art.

In December 2001, Mr. Hackerman gave the largest gift in the history of the Baltimore City Community College Foundation to establish the Lillian and Willard Hackerman Student Emergency Loan Program, which provides no-interest loans to BCCC students. If you seek his monument, look around you.

Timothy Regan, the Whiting-Turner executive vice president who will succeed Willard as the firm's third president in its 105-year history, noted:

> He is a legend for his good works, and the irony is that most of his good works are not even known.

The Sun recounted a story Baltimore architect Adam Gross told about accompanying Willard through a newly completed project at the Bryn Mawr School. According to Mr. Gross, Willard asked the school's headmistress how many women were graduating with engineering degrees. Then, a few days later, he sent a sizable check to the school to provide scholarships for women in engineering. ''He was like that. He did deeds that nobody knew about,'' Mr. Gross said.

Willard was a man of quiet strength who professionally and charitably enriched his beloved Baltimore. He was an active alumnus of Johns Hopkins University who gave back to the school and its hospital in countless ways. He was a humble man and rarely stood still to take credit for his many successes because he had already begun to tackle the next challenge. Despite being at the helm of one of the largest general building companies in America, Willard never outgrew his city or his fellow citizens. The Meyerhoff, the National Aquarium, and M&T Bank Stadium all stand as enduring monuments to a great man. His benevolent legacy extended to the synagogue where my family and I worship, Beth Tfiloh Congregation, where he will be missed as a man of great faith. Willard Hackerman was a true son of Baltimore.

My thoughts and prayers go out to his wife Lillian, their daughter Nancy, their son Steven Mordecai, their five grandchildren and 23 great-grandchildren, and his extended family at Whiting-Turner, all of whom loved him deeply.

I encourage my fellow colleagues, my fellow Baltimoreans and Marylanders, and all Americans to celebrate Willard Hackerman ''who lived beyond ninety years, not for his own profit but for the public good. If you seek his monument, look around you.''

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The legislative clerk proceeded to call the roll.

Mr. BARRASSO. Madam President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. BARRASSO. I ask unanimous consent to speak for up to 10 minutes as if in morning business.

The PRESIDING OFFICER. Without objection, it is so ordered.

HEALTH CARE

Mr. BARRASSO. Madam President, I come to the floor week after week and talk about the President's health care

law. As a physician who has practiced medicine in Wyoming for 25 years, I am here to give a doctor's second opinion about the law. As we continue to learn more and more and see more and more, I am concerned about how the law affects my former patients, the doctors and nurses who take care of those patients, and the taxpayers who, of course, have been impacted as well.

It has been clear for a long time that this health care law is not working. It has been obvious from the beginning that this law would not work out the way the Democrats had promised the American people it would work out. Republicans had warned that it was a terrible idea, and even some Democrats have admitted this law has been a train wreck.

The Obama administration has been desperate to talk about anything but the failure of the health care law, and they have been desperate to hide some of the biggest problems with the law. The President has unilaterally made one change after another—sometimes with, in my opinion, no legal authority to do so—and tried to do this in a way that, perhaps, nobody would even notice.

Late yesterday the administration leaked word that it would delay again the law's unpopular employer mandate. It was the second time the Obama administration had changed the health care law in just a few days.

On the front page of USA Today, above the fold: ''Health law faces new delay.''

The Wall Street Journal: ''Health-Law Mandate Put Off Again.''

The Washington Post reported on modifications over the weekend. This is from Saturday: ''Administration to allow some changes to health-care plans.'' That article says:

> The Obama administration has quietly reworked rules and computer code for HealthCare.gov to try to stem an outpouring of discontent—

''an outpouring of discontent''—

> by . . . Americans who have discovered that the health plans they bought do not include their old doctors or allow them to add new babies or spouses.

So the administration then sent out a 14-page memo to insurance companies with changes to how its Web site works and new rules for how people can buy coverage.

The Washington Post article goes on to say:

> The changes reflect recent work—still underway—to improve the computer system for the marketplace, as well as fresh thinking about the needs of people who are buying the coverage.

''Fresh thinking about the needs of people who are buying the coverage''? Did the administration not think of these people before they wrote all of these things? The Obama administration has been working on this Web site for 4 years. Do they not talk to people and think about people and lives? I know a lot of these folks who work for the administration have gone right from college to graduate or law school and then right into some cubicle on the administration's payroll. Do they have no clue about how the real world works?

It is worse than that. On Super Bowl Sunday, President Obama sat down for an interview, and he was asked about the failure of his health care Web site, healthcare.gov—the Web site. This is what he said:

> It got fixed within a month and half, it was up and running and now it's working the way it's supposed to.

I do not think many people around the country who have gone on this Web site even today believe it is working the way it is supposed to.

The President was with Bill Clinton in September at the Clinton Forum, and President Obama said: Easier to use than Amazon, cheaper to buy than your cell phone bill. I assume the President actually believed that. I assume the President believes it is working the way it is supposed to today. But I think that is the reason the President's poll numbers are so low—because the American people say the President is out of touch with what the American people are seeing in their own homes and in their own communities, and the President in the White House has very little realization of what is happening in America. So according to the President, healthcare.gov is now working the way it is supposed to work.

Well, if that is true, why did we learn a week later that there are another 14 pages of rules changes and changes to the Web site? Did the President not have a clue that they were even coming? Why do we learn now that their work is ''still underway,'' trying to think about the needs of people who have been forced to buy insurance through this Web site?

Back in December the press gave President Obama the lie of the year award for his statement that if you like your health care plan, you can keep it. Well, when the President says that his Web site is working the way it is supposed to, either he continues to be in denial or he has another entry for this year's lie of the year.

On Sunday, Bob Schieffer on ''Face the Nation'' asked about the latest rules changes. Those were the rules changes that were before Sunday, not the ones that came out yesterday. The President has changed these rules now over two dozen times.

Bob Schieffer said: ''Things just seem, in every day and every way, to be more confused.'' This is Bob Schieffer, who for years, as the face of ''Face the Nation,'' has become a trusted person whom people turn to. As he says in a reasonable way, things just seem, in every day and every way, to be more confused. He then asked: ''Is there any hope of getting it straightened out?'' That is what Bob Schieffer asked—''any hope of getting it straightened out?''

Well, the majority party whip was on the show. The Democratic Senator was on the show, and instead of answering the question, he avoided it. He tried to change the subject, and he repeated an old Democratic talking point. This time that Senator claimed that ''10 million Americans have health insurance today who would not have had it''—this is the Democratic Senator—without the President's law—not actually responding to the question from Bob Schieffer about whether we can get things straightened out—no, not at all, not answering whether there is any hope of getting the law straightened out, just the same old talking points, and the talking points are not even true.

The Washington Post Fact Checker said the statement was so wrong, it deserved four Pinocchios—the most you can get. Well, that is the highest number possible—four Pinocchios. The Washington Post called the Democratic Senator's claim ''simply ridiculous.''

The reality is that the overwhelming majority of the American people signing up under the Obama health care law already had health insurance, so they are actually not getting new insurance or are newly insured because of the law. These are people who got cancellation letters and then said: Uh-oh, I need to get insurance. So then they went to the Web site to buy something—often much more expensive, requiring higher copays, higher deductibles. The law forced them to lose the coverage they had and the coverage that actually had worked for them.

Many people are paying far more now than they were for worse coverage, and it is not the right fit for their families. They are often paying for insurance which they are not going to use, do not want, which is more than they would ever need, and they are paying more than they ever had intended. That is what I hear when I talk to people in Wyoming. I was in Wyoming—in Cheyenne and Casper—this weekend. That is what I hear at home. The administration does not want to talk about that. Democrats in Washington do not want to talk about it at all. They just want to repeat their talking points even though they are completely false and have been proven to be false. Democrats want to avoid the tough questions about how the law has failed. They rely on denial and deception.

The Web site still is not working in spite of what the President may have said on Super Bowl Sunday. The law is not working. The answer to the question is, No, there is no hope of getting it straightened out. The Web site problems we have seen are just the tip of the iceberg.

People are paying higher premiums. Coverages are canceled. People cannot keep their doctors. Fraud and identity theft are going to continue to be a plague of this health care Web site. People are paying higher copays and deductibles.

It has been reported, interestingly enough, that in California, with the so-

called navigators—the people who are the certified navigators—over 40 of them are convicted criminals. Forty convicted criminals were hired and certified—certified—to be navigators in California in spite of the fact that people are being asked to give personal information, health information, financial information to these navigators. So it is no surprise that we are going to continue to see issues of fraud and identity theft.

Another interesting thing we learned recently: The Congressional Budget Office came out with its new estimates about the health care law and its effect on parts of the economy and on jobs. It also talked about the number of people who do not have insurance. It said that in the year 2024—10 years from now—there will be 31 million Americans who will be uninsured: Ten years from now, 31 million Americans uninsured.

Madam President, I ask unanimous consent to speak for an additional 5 minutes.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. BARRASSO. Let's think about the speech the President gave in 2009. He came to Congress. He wanted to talk about health care reform. He talked about why it was so urgent that the Congress pass health care reform. He said: ''There are now more than 30 million American citizens who cannot get coverage.'' So in 2009 the President said 30 million Americans could not get coverage.

The Congressional Budget Office just comes out and says: Ten years in the future—15 years after the President gives his speech—31 million Americans with no insurance. Yet we will have spent trillions of dollars, and yet it will not fix so big of a problem that we know we need to deal with—health care in America—and this present law, this enormous law, this 2,700-page law, has completely failed to deal with the reason the President said we had to deal with this in 2009. Fifteen years later, the same numbers—30 million; over 30 million in 2024. How is that a victory for uninsured Americans? How can the President say this law has succeeded? How is it a sign that the health care law is working in the way it is supposed to work?

On top of that, middle-class people all across the country are paying more because of the health care law. Their premiums have gone up. Their deductibles have gone up. Their copayments have gone up. Millions of hard-working Americans have had their insurance policies canceled because of the law. And the administration is still working on the Web site, in spite of what the President may say about it.

The President says it is working as it is supposed to. On this and so many issues, the President continues to be wrong, and the American people see it. The Web site is not working. The health care law clearly is not working. It is not working the way he promised. It is not working the way the American people need health care to work for them in this country.

It is time for the administration to stop sneaking out these changes under the cover of darkness, in blog posts. If the President is going to make a change, why doesn't he come and tell the American people what he is going to do?

It is time for the Democrats to stop the four-Pinocchio talking points. It is time for folks to be honest about the failings of the health care law. It is time to eliminate this terrible health care law and replace it with real reform that gives people better access to quality, affordable health care—the care they need, from a doctor they choose, at lower cost.

I yield the floor.

The PRESIDING OFFICER. The Republican whip.

Mr. CORNYN. Madam President, we have reached a historic moment in the history of our Republic when the President of the United States claims the unilateral power to waive, delay, or just simply ignore the law of the land.

One of the most frequent questions I get back home in Texas is, How can the President do that? How can he do that? They remember when he was sworn in and put his hand on the Bible and swore to uphold the Constitution and laws of the United States, and now how can he simply ignore what those laws are? How can that contradiction exist?

Usually what I find myself doing is saying: Well, Congress has the authority to pass the laws, and it is the executive branch—the President—that has the authority to enforce the law. That is why he has the authority to appoint the head of the Department of Justice, the Attorney General of the United States, Attorney General Eric Holder.

But when the President and, by extension, his own Department of Justice refuse to enforce the law of the land, what have we become? Well, we certainly cannot claim in good conscience to believe in the rule of law, where the law applies to all of us no matter whether you are the President of the United States or you are the most humble of our citizens. That is the promise over the top of the Supreme Court of the United States. All you have to do is look out the window here. It says: Equal Justice Under The Law.

Quite simply, the President has no legal authority under our Constitution or under any law in America to pick and choose which laws he is going to enforce or not enforce based on political expediency. And the fact that he claimed to do so again, for perhaps the two-dozenth time, does not change anything.

So my constituents at home ask me—they say: Well, Senator CORNYN, what are you going to do about it? I said: Well, I am going to support private litigation to challenge the President. Indeed, that is the nature of the litigation that originally challenged the Affordable Care Act, or ObamaCare. There was private litigation that challenged the President's claimed authority to make a recess appointment and bypass the advice and consent function in the Constitution for the Congress to the National Labor Relations Board, which has now been held unconstitutional by the DC Circuit Court of Appeals, and now the Supreme Court of the United States is considering an appeal from that court.

So there is a way to challenge the President, although it takes time and it is not exactly very satisfying because people say: Well, months, if not years, will go by before we will ultimately get a decision. But just think about the implications of what the President is doing. How would our Democratic friends feel if a Republican President decided not to enforce certain laws—let's say as they pertained to the environment?

They would be outraged. You know what. They would be right; it is wrong. I do not care whether you are a Democratic President or you are a Republican President or an Independent or whatever. It is wrong for the President to put his hand on the Bible, to take an oath to uphold the law of the land and then refuse to do so and to have no embarrassment, no sense of regret, but just the hubris and the arrogance to say: I am going to do it until somebody stops me.

I have said it before, and I will say it again. The issues here go far beyond the health care policy and ObamaCare. Checks and balances are not optional. They are the very fundamental structure of our Constitution. James Madison and the authors of the Federalist Papers, who wrote so eloquently about the new Constitution, at the time said that the concentration of power in a single branch of government is the very definition of tyranny. If the Obama administration continues to undermine checks and balances, it will not only undermine respect for the rule of law but also will create even greater distrust of the Federal Government and Congress itself, not to mention the office of the Presidency.

Make no mistake. We all understand why the President is going down this path. It is because ObamaCare has proved to be even more unworkable than its biggest critics might have imagined. The entire law needs—well, we need a do over. Let me put it that way. This side of the aisle has repeatedly encouraged the President and his allies to work with us to try to replace ObamaCare with patient-centered reforms which would bring down the cost and make sure that we as patients and our families get to make decisions in consultation with our family, and not outsource those to the Federal Government.

We could come up with some ideas, and we actually have ideas that would lower costs, expand coverage, and improve access to care. Unfortunately, the President has shown zero intention in addressing those. I know I heard him say, even at the latest State of the

Union: If my Republican friends have some good ideas, bring them to me.

We have been bringing them to him since 2009 and he simply has ignored or affirmatively rejected any other idea because he is so wed to this signature piece of legislation. I cannot help but think that one reason why the President claimed the authority to unilaterally waive the employer mandates until after the election is because he is focused on—you guessed it—the November elections, and he realizes what an albatross this is around the necks of those people who are going to be going to the voters and asking for them to reelect them.

But if he is wondering why Americans have grown so cynical about Washington, DC, all he needs to do is to look at his own administration's handling of this signature piece of legislation, a program that has come to symbolize big government overreach, and—I hate to say it, but it is true—contempt for the rule of law.

I want to say just a few more words in conclusion about America's fiscal health. As you know, Members of Congress have once again been asked to raise the debt ceiling, even though the national debt is in excess of $17 trillion. The President likes to boast about short-term deficit reduction. That is the difference between what the government brings in on an annual basis and what it spends.

It is true that on an annual basis the last couple of years the number has gone down a little bit, primarily because the President raised taxes by $1.7 trillion, coupled together with the caps on discretionary spending in the Budget Control Act. But the long-term trajectory remains just as bad as it ever was, and America continues to spend money that it does not have.

We are waiting for the President. He is the Commander in Chief. He is the leader of the free world. We are waiting for the President to put out a serious plan to address this problem. Many of us held out hope in December 2010 when the Simpson-Bowles bipartisan fiscal commission got together and made some bipartisan recommendations for doing exactly that. Unfortunately, they were ignored by the President. He demanded, in exchange for the so-called ''grand bargain'' that he wanted $1 trillion more in revenue, more taxes.

Imagine what a body slam that would have been to the American economy. The American economy is still so weak that unemployment is at a historic high, particularly compared to recoveries following recessions. But $1 trillion of additional taxes would have been catastrophic in terms of people looking for work and not being able to find work.

But since the President took office in 2009, our national debt has increased by $6.6 trillion. It is now larger than our entire economy. I wonder who the President thinks will have to pay that back. Probably not our generation; we will not be around. But this generation will be around. They will be left holding the bag as a result of our irresponsibility and unwillingness to deal with this important problem.

Even though interest rates are at a very low point now, and, yes, the interest we have to pay the Chinese government and our other creditors is at a relatively low rate, imagine what will happen, as the Congressional Budget Office has, when interest rates start to tick back up to their historic norms. We will see that more and more of the tax dollars of the American people are used to pay interest on the debt. Whether you are concerned about safety net programs that our most vulnerable citizens need or our national security, we will not be able to do either the way we want to and need to.

According to the CBO's baseline projections, the annual deficit will steadily rise after 2015 and exceed $1 trillion in 2022, at which time the Federal Government will be spending $755 billion a year on net interest payments alone. To put that in another perspective, net interest payments in 2014 are estimated to be $233 billion. That is not money that helps the most vulnerable in our society. That is not money that helps the warfighter keep us safe. That is money we are paying on the debt to our creditors, to the Chinese and other creditor nations as interest for all of this money we are borrowing that eventually somebody some day is going to have to pay back.

The Congressional Budget Office has consistently reminded us that even a small change in U.S. economic growth or interest rates or inflation could dramatically affect the Federal budget outlook. In fact, if interest rates were to rise just 1 percentage point above the CBO baseline each year over the next decade, our cumulative deficit will increase by $1.5 trillion. That shows you how fragile the condition of our fiscal house is.

On multiple occasions back in the mid 1990s, this Chamber came within one vote—one vote—of passing a balanced budget amendment to the U.S. Constitution. Since the vote in March of 1997, our national debt has gone from $5.3 trillion to $17.2 trillion. It has more than tripled. Yet even as the debt problem has gotten massively worse, the number of folks on the other side of the aisle who are willing to acknowledge that we cannot continue to spend money that we do not have and that the debt is a threat to our national security and our ability to do the things we know we want to do and need to do, continue to seem to ignore it.

I am proud to say that everyone on this side of the aisle has cosponsored a balanced budget amendment to the Constitution that would force Washington, whether led by Democrats or Republicans—it would force Washington to live within our means and meet the same type of fiscal requirements that virtually all State governments have to meet.

To those who think that a balanced budget amendment to the Constitution is not the answer, I ask: Where is your plan? I realize that there are some who think that we can raise taxes. Let's raise taxes some more. But even they must understand that we simply cannot tax away our long-term debt problem. The only way we can solve that is by controlling our spending and reforming our programs like Social Security and Medicare. Sooner or later, even the President will have to acknowledge that.

Mr. President, I yield the floor.

The PRESIDING OFFICER (Mr. MANCHIN). The Senator from Arkansas.

Mr. PRYOR. Mr. President, I rise today to talk about S. 1963, which is supported by well over 30 veterans organizations. I want to thank my colleagues for their help and their support of the military retirement pay restoration bill that repeals section 403 of the budget agreement, which unfairly singled out our brave men and women in uniform.

I could spend a long time here, but I do not intend to because I know we have other colleagues who are on the way to speak. But I do want to thank my colleagues for their support. We got a huge vote the other night to move to this measure. I do not think there were any dissenting votes. I appreciate my colleagues voting to move to it.

The bottom line is this bill is about honoring the commitments we have made to our servicemembers. My State is the home of nearly 255,000 veterans—255,000 veterans. We only have a population of 3 million. So if you do the math, per capita we have a lot of veterans in my State—a very patriotic State. These brave men and women have put their lives on the line, and they have also put their lives on hold to serve their country, oftentimes in faraway places, far away from their homes and their families and from their beloved country to protect our Nation and defend our way of life.

They have fulfilled their obligations, and we need to fulfill ours. Day after day we get emails and letters and phone calls from Arkansas veterans and their families. They talk about what the Senate is talking about today; that is, whether we should fix this cost of living adjustment or not and even down to the details of whether we should pay for this or not.

Let me just read a few. I have eight Arkansans here who have written in recent weeks.

MAJ Adam Smith of Sherwood said:

> When I signed on twelve years ago, I swore an oath to defend my country, one that I have upheld through four combat deployments in Iraq, Afghanistan, and the Horn of Africa. It pains me to see that my government is not keeping its faith in my oath. I have served and will continue to serve faithfully, but I want my government to properly compensate me for all the times I nearly made my wife a young widow.

The second one is from Therese Wikoff of North Little Rock. She is an employee of the VA, and she is married to someone in the military. She says:

I see [our veterans] every day struggling. They served and it is our duty to respect and take care of them.

John Barnwell of Fort Smith says:

I spent a career in the U.S. Air Force defending this great country from all enemies . . . How could [Congress] even consider cutting veterans benefits when our sacrifices are the reason we are even able to live in a free country?

SMSgt John W. Smith of Cabot writes:

I served my country for 28 years with the promise that once I completed my part, I would be given a retirement for the rest of my life to include the cost of living increases. However, it appears the government has decided to change the promise made and not honor their part of the bargain.

Sam Garland of Jacksonville says:

When I enlisted I was told if I did my time that I would receive retirement . . . [Don't take away] this hard worked promise.

Marshall Harmon of Vilonia wrote:

This is a military retirement that I worked extremely hard for and in fact earned! The documents I was provided at the time of retirement assured me that my buying power would remain strong and consistent . . . It seems that is just not the case.

Chadwick Cagle of Sherwood wrote to say:

I am a military veteran of almost 15 years, including two deployments to Iraq. I was an Infantryman in the Marine Corps . . . I find it very frustrating that the reductions in benefits were taken from the very men and women who have served and protected this country.

The next will be the last one. I could go on for a long time. As people can tell, I have a lot more where these came from.

Bill Patrick of Mountain Home says:

As a veteran of the U.S. Army, I am saddened by the provision in this bill that in essence penalizes those that have given the most for this great country of ours. Although I do realize the importance of keeping the government funded and running, I am opposed to the fact that we are doing it on the backs of those who have served honorably, and long.

I want those words to sink in for my colleagues in the Senate today. These are men and women from my State. The Senators have the same types of folks in their States. They put on the uniform and they serve our country. This is not how we should repay them.

I know that on this floor and out in press conferences and in press releases and all of that, people say: Well, we need to pay for this.

This bill, S. 1963, has no pay-for. The way I feel about it is this cut to their benefits, this cut in their COLA, the 1 percent adjusted downward, doesn't take effect until 2015. We have all of this year to find a pay-for if that is what we decide we are going to do.

But the way I feel about this is they have already paid. They have paid for this with their service. This was something that was added to a budget deal, and it is something I think probably came in and was put in by the House Republicans. In effect, we are trying to solve this problem for them.

But, regardless, I have a list that I did not fabricate for this speech. This stands in my office in Washington every day. I have a similar poster identical to this poster in Little Rock. It is there every day in our lobby, in our entryway for anyone and everyone who comes to the office to see the sacrifice that Arkansans have made to this country. These men and women—there are over 100 listed.

As much as I hate to say it, this list grows all the time. We change this list out frequently. There are over 100 listed. In fact, there are over 110 listed. These are troops from Arkansas or based in Arkansas who paid the ultimate sacrifice in Iraq and Afghanistan. These people paid for this benefit.

All of the veterans who will receive this benefit were in the exact same situation that these men and women were, but by the grace of God they made it home. We need to honor the commitments we have made to our veterans.

This is no laughing matter. This isn't politics, this isn't a Democratic thing or a Republican thing, this is an American thing.

Do you know what. When we make commitments to our veterans, if we cannot honor those commitments, we never should have made them in the first place.

I know a lot of people in Washington make all kinds of promises, but we have made these commitments to our veterans. Some of them mentioned when they signed on in the very beginning or when they take their retirement in the very end, it is very clear the type of retirement benefits they will get. Just because it is hard now, because it is expensive, doesn't mean we back out on the commitments we have made to our men and women in uniform. We don't back out on the commitments we have made to our veterans.

But now what we have is we have people in Washington who are saying: We like our veterans, but they need to pay for this. They need to pay for this. I disagree. We have all this year. If we make that decision later to find a way to pay for this change, we have time to find the pay-for later.

I am always reminded when I think of our folks who served this Nation in the military, of this one verse that is found in John 15:13. It says: ''Greater love hath no man than this, that a man lay down his life for his friends.''

I have been to a number of funerals, and I have made a number of calls to these families. I don't know how many people I have talked to who have lost a loved one in Iraq or Afghanistan—or in some other military operation somehow, some way—and that is the verse I always remember because they laid down their lives for their country.

Everyone else who puts on that uniform, by the very nature of them putting on that uniform, has made the commitment that they are willing to lay down their lives too. They are in harm's way for us.

I think it is wrong for us to try to lower their benefits. I think it is wrong for us to be having a debate about finding a way to pay for this. We have time to pay for this over the course of this year. I am totally open to talking to people about how to pay for this as we go.

But let's, for crying out loud, not send the message to our men and women in uniform, to our veterans, that we are going to balance the budget on their backs. They are the ones who have made the commitment. They are the ones who have traveled and served overseas.

When it comes to government spending—I just heard a couple of speeches by my friends on the other side of the aisle—everybody who is paying attention knows we can cut unnecessary government programs. We can eliminate duplicative policies. We can do good in the regulatory world to make government more efficient, more effective. We can do that, but we should not use these folks to balance our budget.

I see my colleague from Florida has stepped in. I know he would like to say a few words.

I yield the floor.

The PRESIDING OFFICER. The Senator from Florida.

Mr. NELSON. I am here to support Senator PRYOR's bill. I am a cosponsor. We were about to have a press conference, and the bottom line is there is no way to fully repay someone who puts their life on the line for our country, but we can do what we can, and this legislation ensures that we continue to do all we can. That is a summary of the whole thing.

I have the privilege of being a senior member of the Armed Services Committee, and from day one one of the things we recognize is that we want to keep our promises to the men and women of our military. The strength of the military will always be the people, and they commit their lives to the service of the country. During that commitment there is a lot of sacrifice: overseas deployments, they miss births, birthdays, and countless other hardships.

A retiree has spent years earning the benefits they looked forward to and those were some of the reasons they made the sacrifices when they took the oath of office and put on the uniform.

When that servicemember joins the military, they look at the retirement system in place at the time, and they began to build their life and their plans around those specific retirement benefits. Those who choose to devote long years and the retirement period of 20 years of service—and then happen to retire and pursue a second career—it gives them the flexibility to move back to a location where they can help out a family member or finally become a full-time part of a family business, whatever it is. Those folks shouldn't be penalized because they are not yet 62 years old. They have already done 20 years of service, if not more.

They are choosing to innovate to serve their community or to finally

start that small business they had always dreamed about, and so it is unfair to penalize them when others are not. Why in the world would we want to make a difference between those who had retired from the military?

So safeguarding the benefits servicemembers have earned not only protects the all-volunteer force, but it also attracts and will continue to attract the best talent and encourage somebody to make the military a career. For the career soldier, sailor, airman or marine, what they give back over those 20-plus years is immeasurable.

We have bipartisan agreement that restricting military benefits in this way is not the correct path to address defense cuts and the debt. We must restore this full cost-of-living adjustment for military retirees.

With that vote yesterday, zero against it, why are we out here having to spend all this time? Why don't we just take it up and pass it, because the votes are obviously here. I am hoping that is what the Senate is going to do in the next few hours.

I yield the floor.

The PRESIDING OFFICER. The Senator from New Hampshire.

Ms. AYOTTE. I come to the floor to talk about an amendment I have pending to the bill pending on the floor to fix the unfair cuts to our military retirees.

Let me remind everyone of how we got to this point. It was right before the holidays and there was a budget agreement that was reached between the chairman of the Senate Budget Committee and the chairman of the House Budget Committee.

Let me remind everyone in this Chamber that I serve on the Senate Budget Committee. No one on the Senate Budget Committee—at least myself, I wasn't included, I guess I missed it—brought to our attention the budget agreement before it was brought as a fait accompli to the floor, and that is one of the problems that brought us to where we are today. Only in Washington could you serve on the actual Budget Committee, they come up with a budget agreement and actually never show it to you—even though you are on the Budget Committee.

Had they shown it to me in advance, I can tell you what I would have told them, that this idea to single out our military retirees is totally unfair. It is the wrong priority for America to single out those who have taken the bullets for us when, if we look at the changes that were made in the budget agreement to the contributions for Federal employees, they were prospective. Only new hires had to pay additional contributions.

But for our men and women in uniform, those working-age retirees under 62—and originally our wounded warriors were included in that as well—took the cut. So when I did find out about it—and I see my colleague from South Carolina, who also serves on the Senate Budget Committee, is here—when we and others found out about it—also my colleague Senator WICKER from Mississippi—we pointed out from the beginning, before this body even voted on the budget agreement, that the cuts to military retirees were unfair; that of all the people we were going to single out, why would we single out the people who have taken the bullets for us? What kind of message does that send to those who have served us and sacrificed so much for our country?

So I remember it. We came down here before Christmas, before the holidays. Senator GRAHAM, my colleague from South Carolina, came down here, Senator WICKER from Mississippi, and we said to our colleagues then: Let's fix this. Let's fix this unfair cut now before we actually pass this budget into law, because we have time to do it. Do you know the response we got? We are in a rush. We have to get home to our families before the holidays, rather than fix what was wrong from the beginning.

Right now I hear so many of our colleagues coming to the floor and saying: We have to fix this, even though they voted for this budget agreement.

Mr. GRAHAM. Will the Senator yield for a question?

Ms. AYOTTE. Yes, I yield for a question.

The PRESIDING OFFICER. The Senator from South Carolina.

Mr. GRAHAM. I thank the Chair.

Does the Senator agree with me, if the budget deal had not been paid for it would never have passed?

Ms. AYOTTE. I would agree with that.

Mr. GRAHAM. Most Republicans, and I am sure some Democrats, would not have voted for a budget deal unless it was deficit-neutral and paid for. I know it wouldn't have passed the House. So now, after the fact, if you fix the COLA problem without paying for it, haven't you basically blown the budget deal apart?

Ms. AYOTTE. Well, that is the irony of where we find ourselves. We have people who came to the floor, even though we warned them and said this is really unfair, why are we doing this to military retirees, we should fix this now and we can find other ways to cut spending—

Mr. GRAHAM. And their response was: We can fix it later. Our response was: Well, will you pay for it later? And everybody said yes.

So here we are. I appreciate Senator PRYOR and Senator HAGAN from North Carolina wanting to fix it. The good news is everyone in the body wants to undo the damage done to our military retirees. That is the good news. The bad news is we are doing it in a fashion that would break the budget agreement, and I don't think that should be our choice.

In order to right a wrong done to the military retirement community—which was a $6 billion taking from them, unlike anybody else in the country—can we not find $6 billion over the next 10 years to make up for it? Because if we don't, we have broken the budget agreement and put a burden on the next generation. So, really, to help the military retiree, do you have to turn around and screw future generations by adding $6 billion of debt on top of the $16 trillion? I guess that is the question. And I would say no. That is why I appreciate the Senator's offset.

Ms. AYOTTE. The answer is no. Of course we don't. We don't have to burden the next generation to fix what we should have fixed from the beginning, which was unfair from the beginning. That said, I have an offset——

Mr. GRAHAM. What is the Senator proposing here?

Ms. AYOTTE. I have an offset that is pretty straightforward. We have two major refundable tax credits in our Tax Code, the earned income tax credit and the additional child tax credit, both of which, when you claim them, you actually get money back under the Tax Code. My amendment is pretty straightforward. When you file for the earned income tax credit, you actually have to put a Social Security number when you file for it as the tax filer. Also, if you have a dependent, you have to put a Social Security number. For the additional child tax credit, there was a Treasury IG report done under this administration in 2011 and it raised real concerns about the way this tax refund was being administered, because when you filed for it, you didn't have to put a Social Security number. Also, for any child for whom you were seeking a refund, you didn't have to put a Social Security number.

My fix is very straightforward: All I am asking is, if you want to seek that tax refund for your child, you list a Social Security number for the child. Why is that important? It is important because the Treasury IG found with this tax refund billions and billions of dollars going out the door. In fact, with the amendment I just mentioned, we can save $20 billion over the next 10 years.

There were investigations done of this tax refund, and guess what they found. Massive examples of fraud, which I will go through in detail, of people claiming kids who may not even live in this country; of people claiming kids who might live in Mexico, because there are absolutely no parameters on the way this is being interpreted right now.

So here is the question: Should we fix fraud in our Tax Code and really address this issue, still allowing American children and children who the President has said are eligible—certain DREAMer children—to get this tax refund—real children in this country—or should we let this fraud continue and also add to our debt and not address the underlying problems facing our Nation?

I don't understand why we can't pass something commonsense like this.

Mr. GRAHAM. Let me see if I have this right. There is an earned income

tax credit you can receive based on need; is that right?

Ms. AYOTTE. Exactly.

Mr. GRAHAM. We are not going to get it. You are not going to get it for your kids because you make too much money.

Ms. AYOTTE. Right.

Mr. GRAHAM. I think this is a Ronald Reagan idea. If you are working, even though you may not have any income tax liability, we are going to give you an earned income tax credit. I think it is $500 per child; is that right?

Ms. AYOTTE. This is the earned income we are talking about.

Mr. GRAHAM. Yes, I know. But under the earned income tax credit——

Ms. AYOTTE. I don't know the amount.

Mr. GRAHAM. I think it is $500. But the point is, do you have to have a Social Security number?

Ms. AYOTTE. Yes.

Mr. GRAHAM. Ok. If the argument is that by adding a Social Security number requirement to the additional credit you are somehow burdening people, why isn't that an argument made against the EITC? Because to get the earned income tax credit you have to have a Social Security number.

This new additional tax credit, on top of the earned income tax credit, doesn't have the same requirements. So those who come to the floor to say we are destroying families, why wouldn't you come down here and propose to do away with the Social Security number on the earned income tax credit? That would make perfect sense to me.

If requiring a Social Security number is a bad thing for families, why do you tolerate it for the EITC? The reason you wouldn't propose that change is because people in Treasury would say you would be crazy, because now you have an additional tax credit, something new on top of the EITC, that Senator AYOTTE has found without a Social Security number you have $19 billion in fraud.

So I am curious. If you think requiring a Social Security number for a child to get an additional tax credit is destroying the family, why don't you come down here and suggest changing the law for the EITC? If you did that, you would get blistered by the auditor saying you are opening a new line of fraud.

So could the Senator tell us what would happen to the American taxpayer, what benefit would inure to the American taxpayer if we followed the Senator's proposal and accepted her amendment of requiring a Social Security number?

Ms. AYOTTE. The American taxpayer would save $20 billion over the next 10 years. This is about protecting the American taxpayer. Let me talk about some of the fraud that was found.

In Indiana, they found 4 workers were claiming 20 children living inside 1 residence. The IRS sent these illegal immigrants tax refunds of a total of $29,000-plus. They also found many people were claiming the tax credit for kids who live in Mexico. These are our taxpayer dollars going out the door in this way.

An Indiana tax preparer, who acted as a whistleblower, said: We have seen sometimes 10 or 12 dependents, most times nieces and nephews, on these tax forms. The more you put on there, the more you get back, even though they are not verifying that any of these children live here or exist. That is our tax money going out the door. The whistleblower had thousands of examples.

Another example from a whistleblower: We have over $10,000 in refunds for nine nieces and nephews, he said. It is so easy. I can bring out stacks and stacks. It is so easy, it is ridiculous.

In North Carolina, investigators tied at least 17 tax returns totaling more than $62,000 in returns to a Charlotte, NC, apartment that 1 woman leased. At another apartment nearby, investigators discovered 153 returns valued at over $700,000 in refunds. Another address in the same apartment complex had 236 returns worth over $1 million in returns.

This is money taken into our treasury and turned back in. All I am saying with this amendment is if you can put a Social Security number for the child you are claiming the credit for, you can get this credit. That is all this is, making this consistent with the earned income tax credit. And in fact, the filer can be an undocumented worker in this country and have a child who legitimately has a Social Security number and get the credit for it. So I have modified my amendment to address that issue.

What I am saying is this: Let us end fraud and let us take that money that is being taken from the American taxpayer—$20 billion—and take $6 billion of it to be used to restore these military cuts. This will make sure we do not burden the next generation and we fix a wrong that should be righted.

Let me talk about some other examples of what we have seen. In Tennessee, a search warrant was prepared by the IRS for a tax company that was encouraging undocumented workers to lie on their tax returns by claiming children who live in Mexico as dependents. Why can this tax preparer even encourage that? Because right now, when the refund for the additional child tax credit is filed for, you don't have to put anything about the child to prove the child even exists. So simply requiring a Social Security number for the child you are getting money back for would end that fraud.

The IRS says the Tennessee tax preparer has filed 6,000 tax returns over the last 3 years, and although his—listen to this—although his clients only paid $3.3 million in taxes, they were able to receive back $17 million in refunds. Imagine that: $3.3 million in taxes his clients as a whole claim they have paid, and they received $17 million in refunds back. Pretty good deal, isn't it. Well, it is a bad deal for the American taxpayer.

This amendment makes so much common sense I just hope I can get a vote on it on the floor of the Senate. In the past, when I have tried to bring this amendment forward, I have been denied a vote on many occasions.

I hope the people of this country understand what the vote on the floor is. The vote on the floor is straightforward. This amendment fixes the unfair cuts to our military retirees and ensures we aren't breaking the budget agreement that was just passed or burdening the next generation with debt. In fact, my amendment will further reduce the debt because it saves more money than just paying for this fix. We can also fix this tax fraud and do the right thing by the American taxpayer.

What worries me most is that because this is Washington, and this makes so much sense, I fear I won't get a vote and that my colleagues will use excuses to say: We shouldn't vote for this because—as I heard my colleague from Illinois on the floor this morning saying—we are going to harm children. Well, children will still be able to get this refund. Put a Social Security number down and American children will get this refund. Also children the President has already deemed eligible—so-called DREAMers. In fact, my colleague from Illinois who came to the floor this morning admitted already ½ million of them have filed for a Social Security number, and they too could receive this tax refund.

If we don't pass this amendment, there are two groups that lose: the veterans, but also, most importantly, all of us—the American taxpayer.

Before I conclude, I wanted to mention the groups endorsing my amendment: the American Legion, American Veterans—AMVETs—Concerned Veterans for America, the Military Officers Association of America, the National Guard Association of the United States, the National Military Family Association, the Naval Enlisted Reserve Association, the Retired Enlisted Association, the U.S. Army Warrant Officers Association, the U.S. Coast Guard Chief Petty Officers Association, and the U.S. Coast Guard Enlisted Association.

I hope my colleagues will vote for this commonsense amendment, so we can fix this unfair cut to our military retirees and pay for it and make sure we aren't also adding to our debt and burdening future generations.

Mr. President, I yield the floor.

The PRESIDING OFFICER. The Senator from Arizona.

Mr. MCCAIN. Mr. President, I ask unanimous consent to yield to the majority leader.

The PRESIDING OFFICER. The majority leader.

UNANIMOUS CONSENT AGREEMENT—EXECUTIVE CALENDAR

Mr. REID. Mr. President, I ask unanimous consent that at 4:30 p.m., the

Senate proceed to executive session to consider the following nominations: Calendar Nos. 516, 517, 518, and 593; that there be 30 minutes for debate equally divided in the usual form; that upon the use or yielding back of the time the Senate proceed to vote without intervening action or debate on the nominations in the order listed; that the motions to reconsider be considered made and laid upon the table with no intervening action or debate; that no further motions be in order; that any related statements be printed in the Record; that the President be immediately notified of the Senate's action and the Senate then resume legislative session; further, that there be 2 minutes for debate, equally divided in the usual form prior to each vote, and that all rollcall votes after the first be 10 minutes in duration.

I appreciate the Senator yielding.

The PRESIDING OFFICER. Is there objection?

Without objection, it is so ordered.

Mr. MCCAIN. Mr. President, I ask unanimous consent to engage in a colloquy with the Senator from South Carolina.

The PRESIDING OFFICER. Without objection, it is so ordered.

AFGHANISTAN PRISONER RELEASE

Mr. MCCAIN. Mr. President, I would say to my friend from South Carolina that we have received some disturbing news today; that is, the President of Afghanistan, President Karzai, has made a decision to release 65 of the 88 detainees at Parwan prison in Afghanistan.

The Senator from South Carolina and I have known the President of Afghanistan for many years. We have had many meetings with the President of Afghanistan, and I believe we had established a rather cordial relationship over these last 13 years.

Many of my colleagues may not know that the Senator from South Carolina, in his capacity as a Colonel in the U.S. Air Force Reserve, a lawyer, has spent a great deal of his active-duty time in Afghanistan on Active Duty primarily focusing on the whole issue of detainees, how they are tried, how they are incarcerated, and steps for release and detention. In other words, there is no one that I know who has more indepth knowledge of this issue than the Senator from South Carolina. I don't believe anybody has ever worked as hard as he has on this issue, and there have been significant accomplishments as a result of his and other wonderful Americans' work.

I think facts are stubborn things; and I would ask my friend from South Carolina, isn't it true the release of these detainees poses a direct threat to the lives of our service men and women who are serving in Afghanistan? Is it true that 25 of these individuals are linked to the production and/or emplacement of IEDs; that 33 tested positive for explosive residue when processed after capture; that 40 percent are associated with direct attacks, killing or wounding 57 Afghan citizens and allied forces; that 30 percent are associated with direct attacks, killing or wounding 60 U.S. or coalition force members; that 32 were captured after the ANSF assumed responsibility?

So isn't it clear, I ask my colleague, after all these years of work trying to get this whole system of detainees and trials and incarceration, that we are now seeing—sadly—this result of individuals who can be traced to attacks on or directly responsible for the deaths of brave Americans?

Mr. GRAHAM. Senator MCCAIN is absolutely right.

I thank him for showing such an interest in this topic. He has been so helpful in making sure we get this detention issue right. Having been incarcerated in a war, I think Senator MCCAIN knows the difference between a system that works and one that doesn't. It has always been helpful to have Senator MCCAIN travel with me and make a point to the Afghans that he knows what doesn't work.

General Dunford called this morning with a lot of sadness and, quite frankly, anger in his voice. We have captured thousands of Afghans and some third-country nationals during the 12-year war in Afghanistan. Our confinement facility at Bagram Air Base has improved a thousand percent. We have made our fair share of mistakes, but the prison now called Parwan I would put up against any prison in West Virginia, South Carolina or Arizona. It is a state-of-the-art prison. It is being transferred over to the Afghans.

As we take this prisoner population and turn it over to the Afghans with a collaborative process where we work together to determine what force to take, they have what is called an Accountability Review Board, which is an Afghan board looking at the disposition of this prison population. They were about ready to release about 88 about whom our commander felt the evidence in question deserved criminal court disposition.

The Afghan criminal court at the prison, which is attached right to the prison—the JSAF—has heard 6,000 cases with a 70-percent conviction rate. I am very proud of the judges and lawyers who run that facility.

All we are asking is that they not let 65 of the 88 walk out the door because of an administrative review board which is not recognized under Afghan law. The guy in charge of it is openly against the Bilateral Security Agreement. I think he is a corrupt individual.

General Dunford has basically said: You are going too far here. I cannot in good conscience not object.

We have lodged our objections, and we thought this would be fixed, and they were going to turn these cases over to the attorney general. I received a phone call Sunday night. There was a caveat which nobody told us about. They turned the 88 files over to the attorney general we thought for prosecution, but apparently President Karzai told the attorney general to release 65 of the 88.

If you believe in the rule of law, the President of the country does not have the authority under Afghan law to tell the judiciary or the attorney general what cases to dispose of. This is an extrajudicial exercise of legal authority by the President of Afghanistan. The people in question, the 88, are responsible for killing 60 Americans and coalition forces and 57 Afghans, and the Afghan population does not like the idea that these people are going to walk out of the jail.

I will read the statement issued by our commander in Afghanistan right after the phone call:

> United States Forces-Afghanistan has learned that 65 dangerous individuals from a group of 88 detainees under dispute have been ordered released from the Afghan National Detention Facility at Parwan.
>
> The U.S. has, on several occasions, provided extensive information and evidence on each of the 88 detainees to the Afghan Review Board, the Afghan National Directorate of Security and the Attorney General's office.
>
> This release violates the agreements between the U.S. and Afghanistan.

The agreement is called the Memorandum of Understanding, and this violates the spirit and the letter of the agreement we have negotiated.

> We have made clear our judgment that these individuals should be prosecuted under Afghan law. We requested that the cases be carefully reviewed. But the evidence against them was never seriously considered, including by the Attorney General, given the short time since the decision was made to transfer these cases to the Afghan legal system.

So within 24 hours they decided to let 65 people go. Clearly, they didn't spend much time.

> The release of the 65 detainees is a legitimate force protection concern for the lives of both coalition troops and Afghan National Security Forces.

It goes to Senator MCCAIN's question, and I have spent a lot of time looking at every file. This is our own ground commander, General Dunford, who I think is doing a great job, telling us: If you let these people go, it represents a force protection problem.

He further goes on to say:

> The primary weapon of choice for these primary individuals is the improvised explosive device, widely recognized as the primary cause of civilian casualties in Afghanistan.

And quite frankly, the death of our own troops. Senator MCCAIN made a good point. Twenty-five of the 65 are directly linked to planting IEDs against our forces. We have fingerprints on these people. I have literally seen the evidence where there is biometric identification, where we can look at the pressure plate and the tape and all the material around the making of the IED and pick up fingerprints. When we do that, they match to the biometric data. We have identified the person by fingerprint, and they are going to let that person go. Some of

these people have been captured previously. The recidivism rate is growing in Afghanistan.

This is the final paragraph:

The release of these detainees is a major step backward for the rule of law in Afghanistan. Some previously-released individuals have already returned to the fight, and this subsequent release will allow dangerous insurgents back into Afghan cities and villages.

Back into the Afghan cities and villages to kill our troops and kill innocent Afghans.

I thank Senator MCCAIN so much for his interest in this subject matter.

We are drafting a resolution condemning the actions of the Afghan government, President Karzai, in the strongest terms possible. We are suggesting that, in light of the breach of this agreement, putting our troops at risk, letting killers go, that we suspend all economic aid until after the election.

I want to let this body know that the troops are watching this. Can you imagine being one of the soldiers—Afghan and American—who risked their life to capture these people to have them walk right out the door and never face justice for killing one of your comrades? They are watching us. We have to prove to the troops on the ground in Afghanistan—both Afghan and American and coalition forces—that the Congress of the United States will not accept this; that we have their back; and that we should push back as hard as humanly possible to make the message clear to President Karzai and the Afghan government how much this displeases us. They are due to walk out of the jail Thursday.

I hope I don't have to come back on the floor of the Senate and read about the death of an American caused by one of the people President Karzai released.

Senator MCCAIN and I have been to Afghanistan more times than I can think of. I have not found anybody more attuned to the idea that we need a sustaining permanent relationship with the Afghan people than the Senator from Arizona. He understands a follow-on force is necessary, and that we can win this conflict and end it well with honor if we have a follow-on force, and the Senator from Arizona wants to stay involved.

But does Senator MCCAIN agree with me that the actions of President Karzai defying our commander, his own judges, his own legal system has done enormous damage to public support for this war effort—which is already low—and has hurt the relationship between the Congress and the Afghan government?

Mr. MCCAIN. I thank the Senator from South Carolina, and I hope my colleagues will understand the in-depth knowledge which he has about this issue. No one understands it as well or has been more involved, to the point of being involved with each of the individual cases.

Before I respond to the question, I think it important for our colleagues to understand some of these specific cases. I am not going to submit for the record all 65 because it is long. But let me just mention a couple of examples of people who are about to be released into Afghanistan while our men and women are still there in harm's way.

Habibulla Abdul Hady is a Taliban member, emplaced IEDs used in attacks against ANSF and ISAF forces in Kandahar province which took American lives, and was biometrically matched to an IED incident in Daman, Kandahar, where pressure plate IEDs and components which took American lives were seized by coalition forces.

Nek Mohammad facilitated rocket attacks against our forces in Kandahar province, is an IED expert, and transferred money to Al Qaeda.

The list goes on.

Akhtar Mohammad is a suspected Taliban commander who conducts attacks, provides lethal aid and supports Taliban leaders in operations against ANSF and ISAF in Nangarhar and Kunar province. He acted as a trusted courier for the former Ghaziabad Taliban shadow governor. The list goes on and on. These are not random arrests. These are not misdemeanors. These are serious, hard-core professional terrorists who have already committed these acts, and that is what is so disappointing about it.

Again, I say to my friend from South Carolina, we have been there often, and being around these brave young Americans who are serving and sacrificed has probably been the best part of our lives. Some of them have had three, four, five, six tours of duty in Afghanistan and Iraq. It seems to me that we owe them at least the security of not releasing these trained killers—they are not amateurs—into the fight again. We already know that the ones we released voluntarily—I think it was 27 or 30 percent—reentered the fight.

I say to my friend in response: Isn't it almost totally predictable that these hard-core individuals will quickly reenter the fight? They are talented, professional, trained zealots, and it would obviously put American lives in danger.

Finally, in answer to my colleague's question, again, I am saddened because President Karzai, my friend from South Carolina, Senator Lieberman, and I have developed a relationship over many years of cooperation and assistance. There are reasons for some of his behavior. It has been terribly mishandled by this administration. We still don't know the number of troops they want to leave behind.

Having said all of that, and the sadness I feel, I think it has been replaced a bit by anger because this kind of action cannot be excused when we have an obligation to do everything we can to protect the lives of the young men and women who are serving. To let this go without a response is an abrogation of our responsibility to these young men and women.

I still have hopes for the agreement. I would point out to my colleagues that it was first raised a couple of years ago by Senator GRAHAM when he and I were over there. The overwhelming majority of Afghans support this agreement. But when we have people such as this running around, it is not just Americans and our allies who are in danger but the lives of the Afghan people, whom President Karzai was elected to represent, are in danger.

I ask my colleague again how many times he has been through this drill with President Karzai where they were about to release these people and we managed to pull them back from the brink? Apparently they have finally stepped over the line.

Mr. GRAHAM. We are not asking to bring these people back to the United States for trial. We are asking that they go through the criminal process under Afghan law where Afghan judges will decide their fate. Afghan prosecutors and defense attorneys will take over the case, not us. We agreed to 550 people being released under this administrative review board, but these 88—according to General Dunford, and my own review—represent a different case of detainee.

The evidence in some cases is overwhelming. With some investigation, I think a case could be made against all of them. Many of the people who are part of the NDS, which is basically their FBI and CIA rolled into one, lost their lives capturing these folks.

All we ever asked the Afghans to do is basically follow their own rule of law. The accountability review board was never meant to be a release mechanism. General Dunford did the right thing by lodging a complaint.

I talked to the President of Afghanistan personally about how this is against the letter and spirit of the memorandum of understanding we have regarding detainees and how this will play back in America. Apparently what we think doesn't matter to him anymore. I understand being upset with this administration for the uncertainty and a lot of mistakes they made.

We may be the last two in the whole Senate who understand that we need a relationship with Afghanistan post Karzai. I believe a lot of my colleagues understand that too.

I hope every U.S. Senate Member will agree, no matter what they may think about what we should be doing in the future in Afghanistan, that we need to make a clear statement and agree to this resolution. If there are any Members who have any ideas to enhance it, I welcome those ideas.

I want this body to speak with a single voice—Republicans and Democrats—and stand behind our general and tell the President of Afghanistan that we will not let this happen without a push-back. We owe it to those who have died, we owe it to those who are in harm's way, we owe it to our own value system, and now is the time

for the Congress—and particularly the Senate—to speak with one voice and let President Karzai know that he doesn't understand what is going on in America. He is detached from reality when it comes to Afghanistan and America. No President of Afghanistan who understood this issue at all would ever do this. He is making it impossible for an American political leader and an American general to not respond forcefully.

I look forward to working with Senator MCCAIN on this resolution.

Mr. MCCAIN. I will emphasize one point that my friend from South Carolina has already made. We are not giving up on Afghanistan. We believe that we can't afford to see the movie that we saw in Iraq in which the total withdrawal of American forces caused the chaos and the situation in Iraq today.

In the second battle of Fallujah, 96 soldiers and marines were killed and 600 were wounded. Today the black flags of al-Qaida fly over the city of Fallujah. There is no greater metaphor for the failure of this administration in Iraq.

We are saying that we will make a new deal with Karzai's successor. We will provide the economic assistance and we will provide the follow-on force. But right now we cannot stand by without responding to this act which directly puts the lives of Americans and Afghans in danger. These are professional killers. They are terrorists. They are good at their work, and we cannot expose our allies, our friends, and our men and women to this kind of danger without a response.

I will finally say again that no one understands this issue better than Colonel Graham. Colonel Graham has been through every single one of these cases. He has fought this battle many times before, and if anybody has any question about the severity and the consequences of the act being taken today by President Karzai, I suggest they talk with him since he has all the information.

I thank my colleague for his many years of service in Afghanistan and Iraq on behalf of the men and women who are serving and have served with him.

Mr. GRAHAM. I thank the Senator from Arizona.

To conclude, this is not LINDSEY GRAHAM or Colonel Graham saying this. This is what General Dunford is saying. I know he is right. I clearly understand what he is telling us. I have seen it firsthand.

To the folks at 435, who are in charge of the detainee population—they lost two yesterday. An IED killed two of our civilian contractors, Paul and Michael, who were working out of the Pul-i-Charkhi prison. I know them well. I met them a bunch of times. They have been over there as civilian contractors for years trying to improve the Afghan detention facilities and legal system, and they gave their lives for a very worthy cause.

All I am saying is we need to suspend aid. We are taking hundreds of millions of dollars of American taxpayer money and investing it in Afghanistan in a way that is inappropriate.

After President Karzai's decision to release these detainees, we should cut off the money. Not a dime should go to economic development. No more money. I can't go to a taxpayer in South Carolina and say that they should write a check to a government that is being led by Karzai. Hopefully, as Senator MCCAIN said, when somebody new comes along, reason will prevail.

I thank my colleagues and need their support. I urge every Member of this body to speak out with one voice.

I will conclude with recognizing my good friend from Connecticut. His son is a marine who served in Afghanistan, and he has been there many times. I want Senator BLUMENTHAL to know that we are doing this today to let our marines know that their sacrifice will not go unnoticed, and we will not let these guys walk out of jail without a fight.

Mr. MCCAIN. I want to also recognize that the Senator has a son in the Navy as well.

The PRESIDING OFFICER. The Senator from Connecticut.

Mr. BLUMENTHAL. I thank my distinguished colleagues for recognizing my sons' service. One is a marine reservist deployed to Afghanistan and the other is a Navy officer currently in further training.

I thank them and offer my support to the goals they have articulated today. I look forward to the resolution they are offering and talking further about the specifics of it. I again thank them for recognizing the urgent need for this body to take action at this point in supporting those goals. I look forward to continuing my work with them. Again, my gratitude to them for their courage and determination, and I offer my thanks and support.

I am here today to talk about a bill that undoes an injustice, and frequently the work of this body is to undo injustices, and sometimes even mistakes, such as the repeal of the cost-of-living adjustment reduction for certain military retirees.

I have spoken before in this Chamber and at home in Connecticut about my opposition to the pension cost-of-living adjustment reduction contained in the budget agreement approved by this body. I firmly believe there is no just way to balance the budget on the backs of our military retirees. It was a mistake then, and we can undo it now without a so-called pay-for. Their sacrifice and service has been paid in full. With their sacrifices, military retirees deserve to be paid in full for the promises we have made to them. We made those promises to them for their service and sacrifice that they have given us already, and we should not break that promise.

The reduction in these cost-of-living adjustments impacts both the brave veterans who served for 20 years in the military and those who earned their retirements because of a service-connected medical disability. We should keep our promises to both.

Last month I discussed this problem with about 25 veterans in American Legion Post 96 in West Hartford with Commander Ken Hungerford. Our brave patriots who served and sacrificed for our country understandably agreed they should receive the full benefit of present cost-of-living adjustments. This is a promise we have made and a promise we must keep.

To fix this issue, Senator SHAHEEN of New Hampshire and I first introduced the Military Retirement Pay Restoration Act. I continue to support it. I also support Chairman SANDERS' comprehensive veterans legislation that would restore this cut to military retiree pensions, along with improving access to health care and tackling benefits backlogs for veterans.

I am very proud to have helped draft the omnibus bill, known as the mega bill, that has already been offered on the floor.

There is a very simple, straightforward solution that we should adopt before either of those two options. It is S. 1856, which would repeal section 403 of the Bipartisan Budget Act of 2013. S. 1856 meets this criteria of paid in full. It is simple and straightforward. It has no pay-for because there is no need for an offset when we are talking about fulfilling our promises to our brave and dedicated veterans, who have given on the battlefield their all, who have given us, in service and sacrifice—even before they reach combat or even if they had no combat—the kind of contribution to our national security and our national defense that merits these cost-of-living adjustments.

As a member of the Armed Services Committee, I listened to the testimony of Acting Deputy Secretary of Defense Christine Fox that it was not consulted in the drafting of the cuts in COLA—the cost-of-living adjustments—and does not support the reduction in military retiree benefits enacted through section 403 of the Bipartisan Budget Act of 2013.

If there is a need to combat fraud in any of our programs, let the Department of Justice increase the vigor and effectiveness of enforcement efforts. If there is a need to repair a statute, to prevent waste or fraud or corruption, we should deal with that issue separately and distinctly. If there is a need to reduce the debt and the deficit—and I agree we should be mindful of fiscal responsibility—we ought to do it without breaking our promises to veterans. We ought to keep those promises without worrying about the debt that could be cut by other measures. And we should adopt those other measures rather than demanding a payback or an offset or whatever the terminology may be.

In the next 5 years, we will see 1 million Americans leave the U.S. military.

As troops come home from Afghanistan, as the military downsizes, the Marines and the Army reduce the number of men and women serving in uniform, 1 million Americans will leave the military. That number consists of individuals' lives—it is not just a statistic—individual stories of heroism and bravery on the battlefield, of invisible wounds, as well as horrific visible injuries; invisible wounds involving the issues of post-traumatic stress and chronic brain injury. More than one-third of them, perhaps as many as a half of all of those young men and women leaving the military, will bear those invisible wounds of war.

We need to provide them with the health care, job counseling, skill training, jobs, and treatment for those invisible wounds of war they deserve and they have earned. That is the purpose of the bill I have helped to draft with Senator SANDERS' leadership, the omnibus bill that will address those issues.

I am hopeful, also, we will adopt the VOW to Hire Heroes Act, to extend tax credits for employers who hire those veterans, tax credits that expired at the end of last year. My bill would restore them.

But let us now urgently and immediately adopt S. 1856—a simple and straightforward measure to restore justice to the Federal pension system for military retirees. Let us not balance our budget on the backs of our brave veterans. Let us restore those pensions to the level we promised and keep our promises as a nation to the military veterans who have kept our freedoms strong.

Mr. President, that is the end of my remarks. I thank you. I yield the floor.

The PRESIDING OFFICER. The Senator from California.

Mrs. BOXER. Mr. President, I thank Senator BLUMENTHAL for his remarks, and I am going to utilize the same chart he had in a moment because I think it says it all. It was my colleague MARK BEGICH who first used this terminology—that our soldiers have paid for this benefit already and to get distracted by a discussion on how much to hurt children in order to restore these benefits is not worthy, in my opinion, of the men and women in uniform. So I am proud to stand up in support of Senator PRYOR's commonsense bill.

Mr. President, I ask unanimous consent that I be allowed to proceed for 15 minutes.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mrs. BOXER. Senator PRYOR's bill is a restoration bill. It restores fairness and justice to our military veterans. It repeals the cuts to cost-of-living adjustments—we call them COLAs—for military retirees under the age of 62.

I see the Senator from Alaska just came in the Chamber, and I want to reiterate how much I appreciate his leadership. I say to Senator BEGICH, his analysis of this important restoration bill—restoring fairness and justice—was so right when he said our veterans have paid in full, and to get into some conversation of who do we hurt in order to pay these veterans is not worthy of our men and women in uniform. I want to thank him for his leadership.

Repealing these COLA cuts, well, that is the right thing to do. We are talking about men and women in uniform who have served our Nation bravely for more than 20 years. I have to say, as I stand up in strong support of the Pryor amendment in restoring these benefits to our veterans, I adamantly oppose the Ayotte amendment, which is hurtful to children, very hurtful to children, and I will get into that later.

When these veterans first put on the uniform and they promised to protect and defend our Nation, we made them a solemn promise to provide them with the care and benefits they earned. These men and women have sacrificed so much for us and, tragically, too many of them made the ultimate sacrifice.

In my State of California, we lost 892 service men and women in Iraq, and we have lost 411 in Afghanistan. We cannot break faith with those who put their lives on the line for our Nation. We hear about people who have served 4 deployments, 5 deployments, 6 deployments—I have heard of 10 deployments.

When this benefit was diminished as part of the budget deal, everyone knew we would have to move quickly and change it. We knew right away. That is what we are trying to do. We are not offering a slew of amendments on unrelated matters that hurt children and risk losing this very simple premise: that we honor our men and women in uniform.

We want a simple vote. Either you are for the vets or you are not for the vets. It is pretty simple. Thirty-five organizations are supporting this. We must recognize that when you attach unrelated amendments that have nothing to do with veterans, you slow down the bill. We all know that. It is a way to derail things.

Look what my friends tried to do on unemployment compensation—get us off on some discussion of how to pay for all that in an emergency situation with the long-term unemployed; and that rate is so high historically. Then we said: OK, we will play on your turf. We will agree. We will find a pay-for. We found a pay-for they said they liked. No. It was not good enough for them. We only got 59 votes. We needed 60. If anyone thinks that was not planned, I have a plot of land to sell you in a dump somewhere. Come on. We know how it goes around here. Don't tell me 59 and no more. Please. Those are games. This is not an issue we should be playing games about—restoring veterans' benefits.

So what we have in the Ayotte amendment is an amendment which demeans an entire population—an entire population. The amendment is antichildren, it is anti-immigrant, and it does not do one thing to help our veterans. But it will hurt some of our young DREAMers. We know the DREAMers. We have met the DREAMers—those children who came to the United States through no fault of their own, but now they want to contribute to our great society by staying in school and staying out of trouble. But yet the Ayotte amendment attacks the childcare tax credit, which impacts some of these DREAMers and which protects 1.5 million children from falling into poverty every year.

Honestly, this Ayotte amendment is so mean-spirited, so unnecessary, I just hope it is defeated soundly. The U.S. poverty rate is now the highest it has been in 20 years, with 22 percent of children living in poverty. Why would someone come down to the floor and attack children? Twenty-two percent of children live in poverty.

Low-income immigrant families who claim the child tax credit earn an average of $23,000 a year, and they use this tax benefit to provide for their children's basic needs, including food, rent, and clothing.

This tax credit, which Senator AYOTTE would essentially take away from a whole group of people, is an incentive to do the right thing. These low-income families are working hard. They are earning money. But they need a tax break to help care for their children.

My Republican friends are always fighting for tax breaks for the top, top, top—for the top. What about the people struggling, who are working and earning $23,000 a year? Where are my friends on raising the minimum wage? So far I have not heard of their support. I hope they will change their mind. Where are my friends on giving unemployment insurance to those who through no fault of their own cannot find a job and who paid into that insurance system? Where are they? They are absent. They offer amendments they know are going to get us off track, distract us, and bring the bill down. But we are not doing it this time, I hope. I hope we will say no to the Ayotte amendment because it is an amendment that guts a very important tax break.

So let's be clear. To claim the child tax credit, which is what Senator AYOTTE's amendment wants to weaken, families have to file taxes. So we are talking about tax-paying families. The child tax credit only goes to working people who earn money and pay payroll taxes, who pay State and local taxes, and any other taxes they may owe.

This Ayotte amendment is an outrageously disproportionate response to a problem the Internal Revenue Service is addressing. The IRS has implemented changes to improve enforcement. They are working with the Department of Homeland Security to make sure fake documents do not slip through the cracks.

Let me be clear. If a person commits fraud in this program, as in any other

program, we should go after that person. The law is on the books. I ask Senator AYOTTE, look at the law. The law says: If you commit in any way fraud in the filing of this credit, and you are found guilty of a felony, you will be fined not more than $100,000—$500,000 in the case of a corporation—or imprisoned for not more than 3 years, or both.

So here we have a situation where if fraud is committed by anyone claiming this child tax credit, they can go to jail for 3 years and be fined $100,000.

But what does Senator AYOTTE do? She takes a brush and she paints it all across America to immigrant families with children and says: We do not trust you. I think it is so offensive. It is not fair for law-abiding, tax-paying families to lose their child tax credit because of fraud that might be committed by a few.

I have worked with a number of my colleagues. They have identified billions and billions of dollars of tax-avoidance schemes in this country. We have corporations that use tricks so that they pay zero in taxes. I do not see Senator AYOTTE—and I hope she will do this in the future—come down to the floor and rail against these wealthy individuals and corporations. No. She just goes after the weakest constituency—children. Children. Why should any of us attack children, literally take food out of the mouths of children? Why?

We need to keep our promise to the veterans, but we should keep our promise to the children. You do not say: I will restore one promise, but I will break another promise. We already have a law on the books: If anyone is guilty of fraud in this program, they go to jail for 3 years; they could be fined up to $100,000.

I just think it is so wrong. It is so wrong.

We can do this.

I wish to close by reading from Sister Simone Campbell, executive director of NETWORK, a national Catholic social justice lobby. I know Senator DURBIN has quoted this. I hope I am not being too repetitive, but her words ring to my heart.

Some of you know about Nuns on the Bus. These were nuns who saw the injustice in some of the budgets that came before the Congress. They went on a bus and they said: Please do not cut funds for the most vulnerable people. That is not America. We are already losing the middle class.

The Presiding Officer knows that 400 families are worth more in this country than 150 million Americans. I want us to think about that—400 American families are worth more than 150 million Americans. Surely we can do better than hurt our most vulnerable children as we aim to restore benefits to our veterans.

This is what Sister Simone Campbell says about the Ayotte amendment:

> For a while now, kids—particularly those in immigrant families—have been unfairly under attack in the Senate, and the only plausible explanation is unconscionable: to score political points.

This is Sister Simone:

> Sen. KELLY AYOTTE recently proposed variations of a plan to strip away the refundable Child Tax Credit that now goes to millions of children of taxpaying immigrant workers in low-wage jobs. The proposal is misguided and antithetical to the Gospel call to care for children and those at the margins of society. It violates our long-held values as a nation, and it should be rejected.

I have such respect for Sister Simone Campbell and the work of NETWORK because they do not just read the gospel and go to church and practice their religion, they live it. They live it. When they see things happening on this floor that hurt the most vulnerable people, they speak out. That is what Nuns on the Bus did. That is what Sister Simone Campbell says.

This is what she says further:

> Ayotte says she understands families' needs, yet she wants to deny a child tax credit to taxpaying immigrant families. Actions speak louder than words, and her proposal hurts families. Our political leaders should never place poor children in the condition of competing with other vulnerable populations for funds that help pay for food and other basic needs.
>
> Deliberately harming immigrant families goes against the fundamental goodwill of Americans, including thousands of people we met last year as our ''Nuns on the Bus'' traveled 6,500 miles across the U.S. to speak out for justice. Throughout our journey, we stood with, prayed with, and heard the stories of hundreds of immigrants who have long served the needs of our nation.
>
> Responsible leaders in Congress should look into their hearts and reject proposals like this one . . . The political tactic is not good for our economy or the wellbeing of our entire nation—especially children who are the future of our country. We are better than this.

As I sum up, let's go back to our other chart. Senator PRYOR, Senator BEGICH, and a group of Senators, I believe including Senator SHAHEEN, Senator HAGAN, and Senator LANDRIEU—I believe they are all on this proposal.

With their sacrifice, military retirees paid in full. They paid in full. And to offer amendments that have nothing to do with the subject matter but open an entire battle on immigrant families, who are working so hard, because there are some examples of fraud, just as there are examples of fraud in corporate America—unfortunately, there are examples of fraud all across America, including in politics. But I have to say that to go after the most vulnerable children and the most vulnerable families and try to convince this Senate that is something fair—I think it is off the mark. I hope we will reject the Ayotte amendment. I hope everyone will read what Sister Simone says:

> The proposal to go after children is misguided and antithetical to the gospel call to care for children and those at the margins of society. It violates our long-held values as a nation and it should be rejected.

I want to remind everyone that if anyone commits fraud in this society, I will be the first one on the floor saying: Go after them. We already have a law that is very clear. Anyone who commits fraud in connection with the child credit, the refundable credit, shall be guilty of a felony and upon conviction thereof shall be fined not more than $100,000—$500,000 in the case of a corporation—or imprisonment of not more than 3 years or both.

If the Justice Department or the IRS is not doing enough to go after this fraud, I have to say, let's call the folks in charge and let's tell them we want to make sure there is an effort. Write a letter. But do not say—because a few people are doing a bad thing and should go to jail for it, do not take your paint brush and paint every immigrant family who has dreams with this. This is an outrageous thing to do, especially to claim that you are not doing anything to hurt children and you are doing it to help the veterans. The veterans have paid in full.

Let's vote for the veterans—for the veterans and for the children. You vote for the veterans by voting for Pryor. You vote for the children by voting no on the mean-spirited Ayotte amendment.

Ms. MIKULSKI. Mr. President, I come to the floor today in support of S. 1963, a bill to restore the 1 percent COLA cut for military retirees.

We must honor the sacrifices our military men and women—and their families—have made at home and abroad. We can do this by making sure that they have a government on their side and that promises made are promises kept.

Our men and women in uniform face specific challenges when it comes to their own financial security. It can be difficult to save for retirement while serving abroad or to build equity in a home when relocating every few years. Having a COLA you can depend on and plan for is crucial to building financial security.

That is why I fully support restoring the 1 percent COLA for all military retirees. As chairwoman of the Appropriations Committee, I included a provision in the fiscal year 2014 omnibus spending bill to cancel the COLA cut for working-age disabled veterans and survivors of departed members. This provision was an important downpayment toward restoring COLA for all military retirees.

Today we must finish the job to ensure that no military retiree has his or her COLA reduced. There are smarter and fairer ways to save money than reducing COLAs for men and women who served in uniform. We can start by closing tax loopholes for businesses sending jobs overseas or canceling outdated Dust-Bowl farm subsidies.

Rather than targeting veterans for budget savings, we should be working together to make sure they and their families are supported medically, financially, and emotionally.

Today is the day to right this wrong, and I encourage my colleagues to support this legislation.

I yield the floor, and I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The legislative clerk proceeded to call the roll.

Mrs. BOXER. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded and that the nominations be reported.

The PRESIDING OFFICER. Without objection, it is so ordered.

EXECUTIVE SESSION

NOMINATION OF RICHARD STENGEL TO BE UNDER SECRETARY OF STATE FOR PUBLIC DIPLOMACY.

NOMINATION OF SARAH SEWALL TO BE AN UNDER SECRETARY OF STATE (CIVILIAN SECURITY, DEMOCRACY, AND HUMAN RIGHTS)

NOMINATION OF CHARLES HAMMERMAN RIVKIN TO BE AN ASSISTANT SECRETARY OF STATE (ECONOMIC AND BUSINESS AFFAIRS).

NOMINATION OF SLOAN D. GIBSON TO BE DEPUTY SECRETARY OF VETERANS AFFAIRS.

The PRESIDING OFFICER. Under the previous order, the Senate will proceed to executive session to consider the following nominations, which the clerk will report.

The legislative clerk reported the nominations of Richard Stengel, of New York, to be Under Secretary of State for Public Diplomacy; Sarah Sewall, of Massachusetts, to be an Under Secretary of State (Civilian Security, Democracy, and Human Rights); Charles Hammerman Rivkin, of the District of Columbia, to be an Assistant Secretary of State (Economic and Business Affairs); and Sloan D. Gibson, of the District of Columbia, to be Deputy Secretary of Veterans Affairs.

The PRESIDING OFFICER. Under the previous order, there will be 30 minutes of debate equally divided in the usual form.

Mrs. BOXER. Mr. President, I ask unanimous consent that any time in quorum calls be equally divided.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mrs. BOXER. I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The legislative clerk proceeded to call the roll.

Mr. MENENDEZ. I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. MENENDEZ. I come to the floor to talk about three highly qualified nominees for very significant posts at the Department of State.

The Foreign Relations Committee, which I am privileged to chair, has moved 48 nominees through the committee this year alone. I am pleased these three will move, but I would like to express my concern about the remaining nominees. They are critical to us promoting our foreign policy and our national interests and security interests abroad. I urge my colleagues to support movement of these nominees to the floor as quickly as possible.

There are three today.

Richard Stengel has more than 30 years of experience as an author and journalist. He brings a very unique perspective to his role as Under Secretary for Public Diplomacy and Public Affairs, on which we will be voting.

He has served as the managing editor of Time magazine during the past 7 years, demonstrating his impressive managerial capabilities.

As president and CEO he led the National Constitution Center in Philadelphia, where he led public education efforts to raise awareness about our Nation's founding charter and the values enshrined in it.

This public diplomacy role is incredibly important in a world that is constantly getting closer and smaller by virtue of the mass media, the Internet, and all of the different forms of communication. Our advocacy in public diplomacy is incredibly important to get our message out as the United States in terms of our bilateral and multilateral pursuits.

Dr. Sarah Sewall has been nominated to serve as Under Secretary for Civilian Security, Democracy, and Human Rights. She comes to this position with significant relevant experience. She taught at the Naval War College and served as a director of Harvard's Carr Center for Human Rights Policy. She is highly regarded as an expert on mass-atrocity prevention and response. She is now a senior lecturer in public policy at the John F. Kennedy School of Government at Harvard University.

Her large portfolio includes a range of issues, including challenges to civilian security in Latin America; Syria's growing refugee problem, which is a concern for us in terms of the entire region and our good ally—Jordan, for example; counterterrorism; counternarcotics; human trafficking; and women's issues. These are all incredibly important in the pursuit of our foreign policy.

I am confident Dr. Sewall will be an excellent Under Secretary, and I urge my colleagues to support her nomination.

Finally, we have Ambassador Charles Rivkin's deep experience in the private sector and clear talent for managing large organizations which position him well to take on the position of Assistant Secretary of State for Economic and Business Affairs.

At a time when our country is pursuing the most ambitious trade agenda in generations and our companies and workers are facing tougher and more aggressive competition than ever before, Ambassador Rivkin has demonstrated the skill and the experience needed to lead the State Department's participation in formulating and implementing international economic policies aimed at protecting and advancing U.S. economic, political, and security interests.

Particularly at a time in which we are seeking to create more jobs here at home, our advocacy abroad to open markets, to have transparency, to have the rule of law for our companies that do invest abroad, to ultimately ensure that when they make such decisions, if there is a violation of their contracts, they have a transparent judicial process in which they can litigate their judicial issues are not only incredibly important to our companies' investments abroad but to the jobs created at home that promote the products and services we generate across the globe.

I urge my colleagues to support these nominations in pursuit of the national interest and security of the United States.

I yield the floor, and I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The legislative clerk proceeded to call the roll.

Mr. MENENDEZ. I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. MENENDEZ. I ask unanimous consent to yield back all time on both sides, including the 2 minutes prior to the vote.

The PRESIDING OFFICER. Is there objection?

Without objection, it is so ordered.

The question is, Will the Senate advise and consent to the nomination of Richard Stengel, of New York, to be Under Secretary of State for Public Diplomacy?

Mr. MENENDEZ. Mr. President, I ask for the yeas and nays.

The PRESIDING OFFICER. Is there a sufficient second? There is a sufficient second.

The clerk will call the roll.

Mr. CORNYN. The following Senators are necessarily absent: the Senator from Oklahoma (Mr. COBURN) and the Senator from Tennessee (Mr. CORKER).

The PRESIDING OFFICER (Ms. WARREN). Are there any other Senators in the Chamber desiring to vote?

The result was announced—yeas 90, nays 8, as follows:

[Rollcall Vote No. 27 Ex.]

YEAS—90

Alexander	Blumenthal	Burr
Ayotte	Blunt	Cantwell
Baldwin	Booker	Cardin
Barrasso	Boozman	Carper
Begich	Boxer	Casey
Bennet	Brown	Chambliss

Coats	Isakson	Portman
Cochran	Johanns	Pryor
Collins	Johnson (SD)	Reed
Coons	Johnson (WI)	Reid
Cornyn	Kaine	Rockefeller
Cruz	King	Rubio
Donnelly	Kirk	Sanders
Durbin	Klobuchar	Schatz
Enzi	Landrieu	Schumer
Feinstein	Leahy	Scott
Fischer	Levin	Sessions
Flake	Manchin	Shaheen
Franken	Markey	Stabenow
Gillibrand	McCaskill	Tester
Graham	McConnell	Thune
Grassley	Menendez	Toomey
Hagan	Merkley	Udall (CO)
Harkin	Mikulski	Udall (NM)
Hatch	Moran	Walsh
Heinrich	Murkowski	Warner
Heitkamp	Murphy	Warren
Heller	Murray	Whitehouse
Hirono	Nelson	Wicker
Hoeven	Paul	Wyden

NAYS—8

Crapo	McCain	Shelby
Inhofe	Risch	Vitter
Lee	Roberts	

NOT VOTING—2

Coburn	Corker.

The nomination was confirmed.

VOTE ON SEWALL NOMINATION

The PRESIDING OFFICER. Under the previous order, there will be 2 minutes of debate equally divided in the usual form prior to a vote on the Sewall nomination.

Mr. MENENDEZ. Madam President, I yield back all time.

The PRESIDING OFFICER. Is there objection?

Without objection, it is so ordered.

Mr. TOOMEY. I ask for the yeas and nays.

The PRESIDING OFFICER. Is there a sufficient second?

There appears to be a sufficient second.

The question is, shall the Senate advise and consent to the nomination of Sarah Sewall, to be an Under Secretary of State (Civilian Security, Democracy, and Human Rights)?

The clerk will call the roll.

The bill clerk called the roll.

Mr. CORNYN. The following Senators are necessarily absent: the Senator from Oklahoma (Mr. COBURN) and the Senator from Tennessee (Mr. CORKER).

The PRESIDING OFFICER. Are there any other Senators in the Chamber desiring to vote?

The result was announced—yeas 97, nays 1, as follows:

[Rollcall Vote No. 28 Ex.]

YEAS—97

Alexander	Coats	Harkin
Ayotte	Cochran	Hatch
Baldwin	Collins	Heinrich
Barrasso	Coons	Heitkamp
Begich	Cornyn	Heller
Bennet	Crapo	Hirono
Blumenthal	Cruz	Hoeven
Blunt	Donnelly	Inhofe
Booker	Durbin	Isakson
Boozman	Enzi	Johanns
Boxer	Feinstein	Johnson (SD)
Brown	Fischer	Johnson (WI)
Burr	Flake	Kaine
Cantwell	Franken	King
Cardin	Gillibrand	Kirk
Carper	Graham	Klobuchar
Casey	Grassley	Landrieu
Chambliss	Hagan	Leahy
Lee	Paul	Stabenow
Levin	Portman	Tester
Manchin	Pryor	Thune
Markey	Reed	Toomey
McCain	Reid	Udall (CO)
McCaskill	Risch	Udall (NM)
McConnell	Roberts	Vitter
Menendez	Rockefeller	Walsh
Merkley	Rubio	Warner
Mikulski	Sanders	Warren
Moran	Schatz	Whitehouse
Murkowski	Schumer	Wicker
Murphy	Scott	Wyden
Murray	Sessions	
Nelson	Shaheen	

NAYS—1

Shelby

NOT VOTING—2

Coburn	Corker

The nomination was confirmed.

Mr. REID. Madam President, we are going to have one more recorded vote. We think we will have another vote that will not be recorded, but it will be a voice vote and that will be the last vote tonight.

I am totally aware of the weather prediction, that we might get some snow tomorrow night. We will see what happens midday tomorrow and find out how much snow the weather forecasters are predicting, if any.

Tomorrow around 11:30 a.m. we are going to have a series of votes. The floor staff will be working on what the votes will be, and I will be discussing that with Senator MCCONNELL.

We have one more vote tonight and we have a series of votes tomorrow at 11:30 a.m.

VOTE ON RIVKIN NOMINATION

The PRESIDING OFFICER. Under the previous order, there will be 2 minutes of debate equally divided in the usual form prior to a vote on the Rivkin nomination.

Mr. REID. I yield back all time.

The PRESIDING OFFICER. All time has been yielded back.

Under the previous order, the question occurs on the Rivkin nomination.

Mr. CHAMBLISS. I ask for the yeas and nays.

The PRESIDING OFFICER. Is there a sufficient second?

There appears to be a sufficient second.

There is a sufficient second.

The question is, Will the Senate advise and consent to the nomination of Charles Hammerman Rivkin, of the District of Columbia, to be an Assistant Secretary of State for Economic and Business Affairs.

The clerk will call the roll.

The assistant bill clerk called the roll.

The PRESIDING OFFICER. Are there any other Senators in the Chamber desiring to vote?

Mr. CORNYN. The following Senators are necessarily absent: the Senator from Oklahoma (Mr. COBURN) and the Senator from Florida (Mr. RUBIO).

The result was announced—yeas 92, nays 6, as follows:

[Rollcall Vote No. 29 Ex.]

YEAS—92

Alexander	Gillibrand	Mikulski
Ayotte	Graham	Murkowski
Baldwin	Grassley	Murphy
Barrasso	Hagan	Murray
Begich	Harkin	Nelson
Bennet	Hatch	Paul
Blumenthal	Heinrich	Portman
Blunt	Heitkamp	Pryor
Booker	Heller	Reed
Boozman	Hirono	Reid
Boxer	Hoeven	Rockefeller
Brown	Inhofe	Sanders
Burr	Isakson	Schatz
Cantwell	Johanns	Schumer
Cardin	Johnson (SD)	Scott
Carper	Johnson (WI)	Sessions
Casey	Kaine	Shaheen
Chambliss	King	Stabenow
Coats	Kirk	Tester
Cochran	Klobuchar	Thune
Collins	Landrieu	Toomey
Coons	Leahy	Udall (CO)
Corker	Lee	Udall (NM)
Cruz	Levin	Vitter
Donnelly	Manchin	Walsh
Durbin	Markey	Warner
Enzi	McCain	Warren
Feinstein	McCaskill	Whitehouse
Fischer	McConnell	Wicker
Flake	Menendez	Wyden
Franken	Merkley	

NAYS—6

Cornyn	Moran	Roberts
Crapo	Risch	Shelby

NOT VOTING—2

Coburn	Rubio

The nomination was agreed to.

VOTE ON GIBSON NOMINATION

The PRESIDING OFFICER. Under the previous order, there will be 2 minutes of debate equally divided in the usual form prior to a vote on the Gibson nomination.

Mr. SANDERS. Madam President, today I wish to speak in strong support of the nomination of Sloan Gibson to serve as Deputy Secretary at the Department of Veterans Affairs.

Before I speak about Mr. Gibson's qualifications, I believe it is important that my colleagues understand the realities that Mr. Gibson will face if confirmed. He would be responsible for the day-to-day management of the Department charged with operating the Nation's largest integrated health care system and providing a variety of benefits and services to America's veterans, as well as their dependents and survivors.

It is also no secret the Department of Veterans Affairs faces a number of challenges. We know it takes VA too long to issue claims decisions. We know it takes the Board of Veterans' Appeals too long to decide appeals. We know VA and the Department of Defense have spent years on an integrated electronic health record with very little to show for their efforts. We know VA has difficulty managing major construction projects; and we know far too many veterans still do not know about the benefits and health care for which they are entitled. These are the just some of the challenges awaiting Mr. Gibson and highlight the need for this body to move quickly to confirm Mr. Gibson for this important vacancy.

All too often, VA's challenges can cast a large shadow over the things

that VA does well. I think it is also important to acknowledge the amazing things VA is accomplishing each and every day. For instance, patient satisfaction at VA medical centers remains high throughout the country as does the quality of care veterans receive. VA has taken an aggressive stance on homelessness by pursuing the ambitious goal of eliminating veteran homelessness by 2015 and continues to make significant progress in reducing the number of veterans living on the street. Finally, the VA continues to make significant advances in health care through its world-class research programs.

These are the realities and the challenges facing any nominee for a leadership position at the Department. I firmly believe Sloan Gibson is uniquely qualified to address these challenges. Mr. Gibson has a history of service to this Nation that has provided unique insights into the challenges confronting the servicemember and veteran communities. Mr. Gibson began his service as a cadet at the U.S. Military Academy at West Point. He graduated in 1975 and went on to serve as an infantry officer, earning airborne and ranger qualifications during his military service. His service to this country, however, did not end when Mr. Gibson left military service. He continues this tradition of service today by leading the United Service Organizations, commonly known as the USO, which has the important mission of lifting the spirits of America's troops and their families.

I feel the relationships Mr. Gibson has developed with the Congress and senior leaders within the Department of Defense during his tenure at the USO will serve him well as Deputy Secretary. Collaborative efforts between VA and DOD such as the Integrated Electronic Health Record and Integrated Disability Evaluation System have the potential to make the delivery of benefits and services much more efficient and to provide servicemembers with a smooth transition to civilian life. Yet, these efforts continue to face significant challenges. VA needs a Deputy Secretary like Sloan Gibson who will be able to provide the leadership attention necessary to ensure continued and meaningful collaboration between the Departments.

Sloan Gibson also has the business experience, gained from service in both the for-profit and not-for-profit sectors, necessary to serve as Deputy Secretary of the Department of Veterans Affairs. Following military service, Mr. Gibson spent 20 years serving in a number of positions within the banking industry. This service included 11 years as an executive at AmSouth Bancorporation. He retired from AmSouth in 2004 as vice chairman and chief financial officer.

Sloan Gibson's tradition of service, business experience, and educational qualifications make him well suited to manage the day-to-day operations of one of this Nation's largest Cabinet Departments. I am confident that if confirmed Mr. Gibson's service as Deputy Secretary would improve the lives of America's veterans and their families and as chairman of the Veterans' Affairs Committee I look forward to working with Mr. Gibson to do just that.

I urge my colleagues to join me in voting today to confirm the nomination of Sloan Gibson to serve as Deputy Secretary at the Department of Veterans Affairs.

Mr. REID. Madam President, I yield back all time.

The PRESIDING OFFICER. The question is, Will the Senate advise and consent to the nomination of Sloan D. Gibson, of the District of Columbia, to be Deputy Secretary of Veterans Affairs?

The nomination was confirmed.

The PRESIDING OFFICER. Under the previous order, the motions to reconsider are considered made and laid upon the table.

The President will be immediately notified of the Senate's action.

LEGISLATIVE SESSION

The PRESIDING OFFICER. The Senate will resume legislative session.

MORNING BUSINESS

Mr. REID. Madam President, I ask unanimous consent that we proceed to a period of morning business, with Senators permitted to speak for up to 10 minutes each.

The PRESIDING OFFICER. Without objection, it is so ordered.

MODERNIZING CUBA POLICY

Mr. LEAHY. Madam President, today the Atlantic Council's Adrienne Arsht Latin American Center released a new, bipartisan public opinion survey on Americans' views about U.S. policy toward Cuba which should be read by every Member of Congress. The findings of this thorough and wide-ranging poll will surprise many. For instance, not only do Floridians—and Cuban-Americans in Florida—favor new policy approaches, but they do so in even larger numbers than do Americans in other regions of the Nation.

It is time—past time—to modernize our policies and the frozen-in-time embargo on Americans' travel and trade with Cuba that have accomplished nothing but to give the Cuban regime a scapegoat for the failures of the Cuban economy. Change will come to Cuba, but our policies have delayed and impeded change. It is time to elevate the voice of a crucial stakeholder: the American people. Thanks to this poll, they are silent no longer.

It is time to recognize that U.S. policy toward Cuba has been unsuccessful in achieving any of its objectives. There is no disagreement among Americans on both sides of the issue about the desire for a government in Cuba that respects individual liberties. We want to see freedom of expression Cuba, just as we want to see American citizen Alan Gross, who has been imprisoned there for more than 4 years, come home. The disagreement is over how best to achieve that.

Just about the only beneficiary of our embargo has been Cuba's current regime.

The poll shows that a solid majority of Americans, including Cuban-Americans, favor a different course.

Trade with Latin America is the fastest growing part of our international commerce. Rather than isolate Cuba with outdated policies, we have isolated ourselves. Our Latin, European and Canadian friends engage with Cuba all that time. Meanwhile, U.S. companies are prohibited from any economic activity on the island.

This new detailed survey paves the way for a policy toward Cuba that is in the national interest of the United States as a whole. That is what the country needs, it is what the American people have made clear they want, and it is the responsibility of the White House and the Congress to act.

Let us have the common sense, and the courage, to finally put an end to the Cold War in our own hemisphere.

In this same spirit of bipartisanship as this public opinion poll, Senator JEFF FLAKE and I joined together in writing a guest column about the compelling reasons to change these antiquated policies. Our piece appeared today in the Miami Herald. I call it to the attention of the Senate, and I invite other Senators to join in re-examining and changing our self-defeating approach in our relationship with Cuba and the Cuban people. I ask unanimous consent that the article be printed in the RECORD.

There being no objection, the material was ordered to be printed in the RECORD, as follows:

[From the Miami Herald, Feb. 11, 2014]

TIME FOR A NEW POLICY ON CUBA

(By PATRICK LEAHY and JEFF FLAKE)

We are in the fifth decade—more than half a century—of our country's embargo toward Cuba. During that time the Soviet Union has ceased to exist. Apartheid in South Africa has ended. We have re-established diplomatic relations with the communist governments of China and Vietnam. Still, the United States has refused to reexamine the political and economic embargo on Cuba.

A majority of Americans, including Cuban-Americans, wants to change course. So do we.

A new public opinion poll commissioned by the Atlantic Council's Adrienne Arsht Latin America Center and carried out by a team of highly respected pollsters from both sides of the aisle shows a stark contrast between current American attitudes and the archaic U.S. embargo.

A solid majority of Americans from every region and across party lines supports normalizing relations with Cuba. When asked about specific elements of the policy—such as undoing the ban on travel by Americans to Cuba, facilitating financial transactions,

meeting with the Cuban government on bilateral issues like fighting drugs and smuggling—the margin is more than 61 percent.

Challenging conventional wisdom that Floridians—and especially the state's large Cuban-American population—are in lockstep with the embargo, the poll finds stronger support for normalization in Florida (63 percent) than in the country overall (56 percent). A full 67 percent of Floridians support removing all restrictions for Americans to travel to Cuba, and 82 percent favor meetings with the Cuban government on issues of mutual concern.

Simply put: The state that reportedly once had the greatest reluctance to re-engage has reversed its position.

Having jailed political opponents, Cuba has a political climate that is far from free. The Cuban government continues to hold former USAID subcontractor Alan Gross in prison. The Cuban government has inched toward loosening its grip on the island's economy. Despite that, however, the Cuban people continue to live under a repressive regime.

However, it would appear that a standard of 100 percent political alignment with the United States before allowing freedom of travel or economic activity with another country is only applied to Cuba. For instance, U.S.-China trade topped $500 billion in 2011, and we granted permanent normalized trade relations to Russia in 2012. American tourists visit both countries without restriction. It is easy to see why most Americans now oppose our frozen-in-time policies toward Cuba.

Trade with Latin America is the fastest growing part of our international commerce. In 2014, economic growth in Latin America is expected to continue to outpace U.S. growth. Rather than isolate Cuba with outdated policies, we have isolated ourselves.

For example, the presidents of our Latin American partners, including close allies such as Colombia and Mexico, recently traveled to Cuba alongside the U.N. secretary general. In January, Brazil joined Cuba in inaugurating a huge new shipping terminal on the island. And our European and Canadian friends engage with Cuba. Meanwhile, U.S. companies are prohibited from any economic activity on the island.

Just about the only beneficiary of our embargo has been Cuba's current regime. The embargo actually has helped the Castros maintain their grip on power by providing a reliable and convenient scapegoat for Cuba's failing economy. Change will come to Cuba. These counterproductive U.S. policies have delayed it.

President Obama has already relaxed some facets of our Cuba policy, lifting restrictions on Cuban-American travel and remittances, which have had positive effects. Anecdotally, U.S. remittances have been crucial in allowing Cuban entrepreneurs to take full advantage of economic openings that the Castro regime has been forced to allow. This not only improves Cubans' lives but will make future economic contractions by the Cuban government difficult for the regime to attempt. Current policy boxes U.S. entrepreneurs and companies out of taking part in any of this burgeoning Cuban private sector.

Further, there is simply no legitimate justification for restricting any American travel to Cuba. The travel ban, like the rest of the embargo, only bolsters the Cuban government's control over information and civil society. Instead of willingly restricting the liberty of our own citizens, we should be taking every opportunity to flood Cubans with American interaction, with our ideas, with our young people.

Americans want a change in our Cuba policy. The president should heed the majority of those across the country who recognize that we have much to gain by jettisoning this Cold War relic.

ADDITIONAL STATEMENTS

LITTLE COUNTRY THEATRE

● Ms. HEITKAMP. Madam President, I am pleased to honor and recognize the Little Country Theatre at North Dakota State University as it celebrates its 100th anniversary.

Founded in 1914 by a small group of drama students, the Little Country Theatre has inspired, challenged, and educated countless students, faculty, and community members across North Dakota. Today, the Little Country Theatre is well recognized and respected for its diverse programming and for bringing the gift of theater to the public.

Over the last 100 years, the Little Country Theatre has presented hundreds of plays throughout North Dakota. It is celebrating its 100th season with several special events, including the screening of a documentary on the rich history of the theater, its faculty, its leaders and its impact on the community. In addition, the group will be performing classic stories such as Oklahoma and Shakespeare's Love's Labour's Lost and hosting many thought-provoking discussions.

The Little Country Theatre is a fixture on the North Dakota State University campus and serves as an important hub for current students by helping them understand the great value of theater and performance art. But its impact can be felt well beyond the stage and campus. It has spread the joy of the theater to rural communities across the State, while inspiring the next generation of actors and actresses. I am proud to acknowledge and honor this significant milestone for the Little Country Theatre.

I ask the Senate to join me in congratulating the Little Country Theatre on its first 100 years and in wishing continued success in the future.●

SOUTHERN WEST VIRGINIA MOBILE HEALTH CLINIC

● Mr. MANCHIN. Madam President, today I wish to celebrate an exciting and significant victory for local veterans in southern West Virginia and to recognize the unwavering dedication of the people who have worked tirelessly to bring the first-ever mobile veterans health clinic to Mercer County.

Today, the Beckley VA Medical Center will debut the long-awaited mobile health clinic in Bluefield, WV. This facility will improve access to primary and mental health-care to the growing number of veterans in the region.

This is wonderful news for our brave heroes who have been without accessible health care for far too long. Until now, our veterans' only option for receiving health care has been to drive over an hour to the closest clinic or hospital. Expecting our veterans to commute this far after these courageous men and women have already risked their lives in the defense of this country is simply unacceptable.

I have always said that West Virginia is one of the most patriotic states in this great Nation, and we are so proud of the number of veterans and Active-Duty members who have served with honor and distinction. Upon returning home, they truly deserve the absolute best care and treatment that is available. That is why we have made it our top priority to bring this clinic to serve the veterans in Mercer County and the surrounding communities with quality care.

The mobile health clinic will be an extension of the Beckley VA Medical Center, and it will be initially stationed in Bluefield, WV. As long it is utilized by area veterans, we can count on this facility to stay in southern West Virginia for years to come.

I especially want to emphasize the efforts of one very special West Virginian who has dedicated the past 18 years to helping the veterans of southern West Virginia—Al Hancock. His leadership and commitment to the betterment of the veteran community is truly why this mobile clinic will open its doors today.

Throughout his life and still today, Al has answered the call of service—whether it was serving our great Nation or helping the people of West Virginia. He is a retired teacher and a retired Air Force veteran who served two tours in Vietnam.

A proud and passionate leader, he was the chairman of the retired military support group and he led discussions among over 250 veterans about the issues concerning them most. He talked with fellow veterans, their spouses, and their families regularly.

One issue that continued to arise was the need for more accessible health care. After more than 150 letters sent to the local newspaper and issuing a petition containing more than 3,000 resident signatures, he provided a voice to the veteran community. Despite the many obstacles and hurdles, Al never gave up—he worked passionately and tirelessly to bring this issue to light. And finally, that voice resonated loud and clear. Because of Al's perseverance and determined vision, I am proud to have worked closely with Al to help bring people together to make his vision a reality.

With the hard work and partnership of the Department of Veterans Affairs, the Beckley VA, and the West Virginia delegation, we have been able to make a difference for Al and for all of the veterans who reside throughout southern West Virginia.

We owe our veterans more than a debt of gratitude. Showing our appreciation to the brave men and women who have served is something we should do each and every day. By delivering this mobile health clinic, we are

paying tribute to those who have answered America's call of duty.

I thank Al, the VA, the Beckley VA Center, and all those who have worked to bring this much needed health care access to Mercer County.

This clinic will greatly benefit communities that have a need for health care resources, and it will help ensure all of our veterans and their families have access to the care they need and truly deserve.●

REMEMBERING J. SMITH LANIER II

● Mr. SESSIIONS. Madam President. I would like to take a moment to recognize the passing of a great American patriot, J. Smith Lanier II. Smith Lanier was an entrepreneur, business leader, philanthropist, community leader, national leader, and friend.

He was a native of Georgia, attended Auburn University then transferred to the U.S. Merchant Marine Academy where he earned a degree in mechanical engineering and a commission into the U.S. Navy.

In 1950, he joined his aunt's insurance agency, Lanier Insurance Agency, based in West Point, GA. His career was interrupted by 2 years of active duty aboard the USS Ault DD698 during the Korean war. When he returned from that service, he purchased the agency under the name J. Smith Lanier & Co. He began with a single office and five employees and grew to have offices throughout Georgia, Alabama, Tennessee, Florida, and Kentucky. Today the company is one of the oldest and largest insurance brokerage firms in the United States. He served as its chairman and CEO until 1998 and was chairman emeritus until his death.

During his life, he helped launch many other companies including Async, Inc.; SouthernNet; Interface, Inc., NASDAQ; Valley Realty Company, Inc.; ITC Holding Co., Inc.; Avdata, Inc.; National Vision Associates, Inc.; Cookbook Brands, Inc., now Beverage House; Powertel, Inc., formerly Intercel, Inc. and now TMobile; and ITC DeltaCom, NASDAQ. A remarkably successful entrepreneurial career indeed.

He was a strong advocate for education at all levels, both public and private, founding Springwood School in Lanett, AL and serving on the boards of trustees of several colleges and universities. He was a strong advocate for fair treatment for hospitals in the area, an issue that I worked with him to address.

Mr. Lanier was very close to Auburn University. He served on many boards for the university and in 2010 was presented the Auburn University Alumni Association Lifetime Achievement Award.

Smith was also active in local, regional and national politics serving the Republican Party in many ways, including being a delegate to two Republican National Conventions. He was always a strong supporter of policies that he believed served the long term interests of the United States.

Smith Lanier was, in the end, what he prepared to become in the beginning. An Eagle Scout, he credited the Boy Scout Oath and the twelve Boy Scout laws as foundations for his personal and business life.

Mr. Lanier leaves behind his wonderful wife, Elizabeth ''Betty'' Walker, daughters Mary Ellen (Mrs. Anthony Lee Collins, Sr.) of Lanett, AL, Elizabeth Lanier Lester of West Point, GA, and Edith Carroll (Mrs. Joseph Wiley Hodges, Jr.) of McDonough, GA, eight grandchildren, as well many other family members, friends and colleagues. They have been given a great legacy indeed.

Smith Lanier was a great patriot reflecting the highest and best values of American citizenship, and I am honored to be able to pay tribute to his many contributions to business, education, health, and his community.●

REMEMBERING YETTA GLENN SAMFORD, JR.

● Mr. SESSIONS. Madam President, I note the passing at age 90 of a truly outstanding American citizen, Yetta Glenn Samford, Jr., a lifelong resident of Opelika, AL. Opelika Mayor Gary Fuller rightly called him an icon. The product of a distinguished Alabama family, he was successful in law and business, all the while giving of himself for his Nation and community.

That such characteristics, such cast of mind and heart, have provided the unique values that have made America great is without doubt. The deeply held concept of neighbor helping neighbor has been the glory of the Republic. A member of the ''greatest generation'', Yetta Samford served his country and was consistently successful in his undertakings. He flourished in law and business. But, he was focused on giving back. He loved his country, State and community and was a strong believer in education. During World War II, he piloted B–17 bombers being stationed in England in 1944 and 1945—a calling that placed his very life at risk. Returning from the war, grateful for his survival, he declared, ''I thank the Lord for letting me come back.'' Then he married his wonderful lifetime partner, Mary Austill, got his degree at Auburn University and his law degree at the University of Alabama.

From then on success followed him and he lived a life of generosity. How many today will reach his level of service? Are we still producing such people? Perhaps so, but in the same numbers?

Yetta Samford was supportive of a host of positive activities. He was active in many local organizations, donated the land for the Opelika Sportsplex and Aquatics Center, and was a member of the board of deacons for the First Baptist Church of Opelika for 60 years. He served on the prestigious board of trustees of the University of Alabama, serving a 3-year-term as president pro tempore. He was, in addition, a founding trustee for the University of Mobile, a fine Baptist affiliated liberal arts college.

Mr. Samford was respected and loved throughout the Opelika area. He set a high standard for a life well lived. I was honored to have his friendship. Professionally accomplished, a man of high character and generous with his time, talents and resources, Yetta Samford's life reflected the highest qualities of American citizenship. It is fitting that this Senate take note of such a life.

He took great joy in his exceptional wife, Mary Austill Samford, and daughters Mary Austill Samford Lott and Katherine Park Samford Alford, five grandchildren and seven great-grandchildren. They reflect these same qualities and can take solace in the heritage that he has left them.●

MESSAGE FROM THE HOUSE

At 12:22 p.m., a message from the House of Representatives, delivered by Mr. Novotny, one of its reading clerks, announced that the House has passed the following bill, in which it requests the concurrence of the Senate:

H.R. 2431. An act to reauthorize the National Integrated Drought Information System.

MEASURES PLACED ON THE CALENDAR

The following bill was read the first and second times by unanimous consent, and placed on the calendar:

H.R. 2431. An act to reauthorize the National Integrated Drought Information System.

EXECUTIVE AND OTHER COMMUNICATIONS

The following communications were laid before the Senate, together with accompanying papers, reports, and documents, and were referred as indicated:

EC–4633. A communication from the Acting Under Secretary of Defense (Personnel and Readiness), transmitting a report on the approved retirement of Lieutenant General William N. Phillips, United States Army, and his advancement to the grade of lieutenant general on the retired list; to the Committee on Armed Services.

EC–4634. A communication from the Acting Under Secretary of Defense (Personnel and Readiness), transmitting a report on the approved retirement of General Keith B. Alexander, United States Army, and his advancement to the grade of general on the retired list; to the Committee on Armed Services.

EC–4635. A communication from the Chairman and President of the Export-Import Bank, transmitting, pursuant to law, a report relative to transactions involving U.S. exports to Kenya; to the Committee on Banking, Housing, and Urban Affairs.

EC–4636. A communication from the Chairman and President of the Export-Import Bank, transmitting, pursuant to law, a report relative to transactions involving U.S. exports to Canada; to the Committee on Banking, Housing, and Urban Affairs.

EC–4637. A communication from the Assistant Secretary, Legislative Affairs, Department of State, transmitting, pursuant to law, a report relative to the Department's Alternative Fuel Vehicle (AFV) program for fiscal year 2013; to the Committee on Energy and Natural Resources.

EC–4638. A communication from the Assistant Secretary, Legislative Affairs, Department of State, transmitting, pursuant to law, a report relative to Technical Collection for the New START Treaty (OSS–2013–0151); to the Committee on Foreign Relations.

EC–4639. A communication from the Assistant Secretary, Bureau of Political-Military Affairs, Department of State, transmitting, pursuant to law, an addendum to a certification, of the proposed sale or export of defense articles and/or defense services to a Middle East country regarding any possible affects such a sale might have relating to Israel's Qualitative Military Edge over military threats to Israel (OSS–2014–0160); to the Committee on Foreign Relations.

EC–4640. A communication from the Acting Assistant Secretary, Bureau of Political-Military Affairs, Department of State, transmitting, pursuant to law, an addendum to a certification, of the proposed sale or export of defense articles and/or defense services to a Middle East country regarding any possible affects such a sale might have relating to Israel's Qualitative Military Edge over military threats to Israel (OSS–2014–0159); to the Committee on Foreign Relations.

EC–4641. A communication from the Acting Assistant Secretary, Bureau of Political-Military Affairs, Department of State, transmitting, pursuant to law, an addendum to a certification, of the proposed sale or export of defense articles and/or defense services to a Middle East country regarding any possible affects such a sale might have relating to Israel's Qualitative Military Edge over military threats to Israel (OSS–2014–0134); to the Committee on Foreign Relations.

EC–4642. A communication from the Acting Assistant Secretary, Bureau of Political-Military Affairs, Department of State, transmitting, pursuant to law, an addendum to a certification, of the proposed sale or export of defense articles and/or defense services to a Middle East country regarding any possible affects such a sale might have relating to Israel's Qualitative Military Edge over military threats to Israel (OSS–2014–0137); to the Committee on Foreign Relations.

EC–4643. A communication from the Acting Assistant Secretary, Bureau of Political-Military Affairs, Department of State, transmitting, pursuant to law, an addendum to a certification, of the proposed sale or export of defense articles and/or defense services to a Middle East country regarding any possible affects such a sale might have relating to Israel's Qualitative Military Edge over military threats to Israel (OSS–2014–0136); to the Committee on Foreign Relations.

EC–4644. A communication from the Assistant Secretary of Legislative Affairs, U.S. Department of State, transmitting, pursuant to law, a report relative to the waiver of the restrictions contained in Section 907 of the FREEDOM Support Act of 1992; to the Committee on Foreign Relations.

EC–4645. A communication from the Assistant Secretary, Legislative Affairs, Department of State, transmitting, pursuant to law, a report relative to section 36(c) of the Arms Export Control Act (DDTC 13–176); to the Committee on Foreign Relations.

EC–4646. A communication from the Assistant Secretary, Legislative Affairs, Department of State, transmitting, pursuant to law, a report relative to section 36(c) of the Arms Export Control Act (DDTC 13–187); to the Committee on Foreign Relations.

EC–4647. A communication from the Assistant Secretary, Legislative Affairs, Department of State, transmitting, pursuant to law, a report relative to section 36(c) of the Arms Export Control Act (DDTC 13–179); to the Committee on Foreign Relations.

EC–4648. A communication from the Assistant Secretary, Legislative Affairs, Department of State, transmitting, pursuant to law, a report relative to section 36(c) of the Arms Export Control Act (DDTC 13–186); to the Committee on Foreign Relations.

EC–4649. A communication from the Regulations Officer, Federal Highway Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Environmental Impact and Related Procedures'' (RIN2125–AF48) received in the Office of the President of the Senate on February 6, 2014; to the Committee on Commerce, Science, and Transportation.

EC–4650. A communication from the Paralegal Specialist, Federal Transit Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Environmental Impact and Related Procedures'' (RIN2132–AB05) received in the Office of the President of the Senate on February 6, 2014; to the Committee on Commerce, Science, and Transportation.

EC–4651. A communication from the Regulatory Ombudsman, Federal Motor Carrier Safety Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Patterns of Safety Violations by Motor Carrier Management'' (RIN2126–AB42) received in the Office of the President of the Senate on February 6, 2014; to the Committee on Commerce, Science, and Transportation.

EC–4652. A communication from the Paralegal Specialist, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Standard Instrument Approach Procedures, and Takeoff Minimums and Obstacle Departure Procedures; Miscellaneous Amendments (32); Amdt. No. 3571'' (RIN2120–AA65) received in the Office of the President of the Senate on February 6, 2014; to the Committee on Commerce, Science, and Transportation.

EC–4653. A communication from the Paralegal Specialist, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Standard Instrument Approach Procedures, and Takeoff Minimums and Obstacle Departure Procedures; Miscellaneous Amendments (48); Amdt. No. 3572'' (RIN2120–AA65) received in the Office of the President of the Senate on February 6, 2014; to the Committee on Commerce, Science, and Transportation.

EC–4654. A communication from the Paralegal Specialist, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Part 95 Instrument Flight Rules; Miscellaneous Amendments (4); Amdt. No. 511'' (RIN2120–AA63) received in the Office of the President of the Senate on February 6, 2014; to the Committee on Commerce, Science, and Transportation.

EC–4655. A communication from the Paralegal Specialist, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Establishment and Modification of Area Navigation (RNAV) Routes'' ((RIN2120–AA66) (Docket No. FAA–2013–0860)) received in the Office of the President of the Senate on February 6, 2014; to the Committee on Commerce, Science, and Transportation.

EC–4656. A communication from the Paralegal Specialist, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Modification of the Dallas/Fort Worth Class B Airspace Area; TX'' ((RIN2120–AA66) (Docket No. FAA–2012–1168)) received in the Office of the President of the Senate on February 6, 2014; to the Committee on Commerce, Science, and Transportation.

EC–4657. A communication from the Paralegal Specialist, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Amendment to Class B Airspace; Detroit, MI'' ((RIN2120–AA66) (Docket No. FAA–2012–0661)) received in the Office of the President of the Senate on February 6, 2014; to the Committee on Commerce, Science, and Transportation.

EC–4658. A communication from the Paralegal Specialist, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Amendment of Restricted Areas; Camp Lejeune and Cherry Point, NC'' ((RIN2120–AA66) (Docket No. FAA–2013–1021)) received in the Office of the President of the Senate on February 6, 2014; to the Committee on Commerce, Science, and Transportation.

INTRODUCTION OF BILLS AND JOINT RESOLUTIONS

The following bills and joint resolutions were introduced, read the first and second times by unanimous consent, and referred as indicated:

By Mr. FLAKE (for himself, Mr. ROBERTS, Mr. MCCONNELL, Mr. CORNYN, Mr. ALEXANDER, Mr. THUNE, Mr. HATCH, Mr. ENZI, Mr. INHOFE, Mr. BURR, Mr. RUBIO, Mr. BOOZMAN, Mr. COATS, Mr. MORAN, Mr. SCOTT, Mr. RISCH, Mr. VITTER, Mr. GRAHAM, Mr. JOHANNS, Mrs. FISCHER, Mr. COBURN, Mr. ISAKSON, Mr. TOOMEY, Mr. JOHNSON of Wisconsin, Mr. CRUZ, Mr. LEE, Mr. BLUNT, Mr. WICKER, Mr. KIRK, Mr. CHAMBLISS, Mr. PORTMAN, Mr. PAUL, Mr. MCCAIN, Mr. CRAPO, Mr. BARRASSO, Mr. COCHRAN, Mr. HOEVEN, Mr. CORKER, Mr. SHELBY, and Mr. GRASSLEY):

S. 2011. A bill to prohibit the Internal Revenue Service from modifying the standard for determining whether an organization is operated exclusively for the promotion of social welfare for purposes of section 501(c)(4) of the Internal Revenue Code of 1986; to the Committee on Finance.

By Mr. WHITEHOUSE (for himself and Mr. HATCH):

S. 2012. A bill to amend the Controlled Substances Act to more effectively regulate anabolic steroids; to the Committee on the Judiciary.

By Mr. RUBIO:

S. 2013. A bill to amend title 38, United States Code, to provide for the removal of Senior Executive Service employees of the Department of Veterans Affairs for performance, and for other purposes; to the Committee on Veterans' Affairs.

By Mr. DURBIN:

S. 2014. A bill to amend title 38, United States Code, to provide for clarification regarding the children to whom entitlement to educational assistance may be transferred under Post-9/11 Educational Assistance, and for other purposes; to the Committee on Veterans' Affairs.

By Mr. LEE (for himself, Mr. CRUZ, Mr. VITTER, and Mr. INHOFE):

S. 2015. A bill to help individuals receiving assistance under means-tested welfare programs obtain self-sufficiency, to provide information on total spending on means-tested welfare programs, to provide an overall

spending limit on means-tested welfare programs, and for other purposes; to the Committee on Finance.

By Mrs. FEINSTEIN (for herself, Mrs. BOXER, Mr. WYDEN, and Mr. MERKLEY):

S. 2016. A bill to direct the Secretary of the Interior, the Secretary of Commerce, and the Administrator of the Environmental Protection Agency to take actions to provide additional water supplies and disaster assistance to the State of California due to drought, and for other purposes; to the Committee on Energy and Natural Resources.

SUBMISSION OF CONCURRENT AND SENATE RESOLUTIONS

The following concurrent resolutions and Senate resolutions were read, and referred (or acted upon), as indicated:

By Mr. MARKEY:

S. Res. 353. A resolution designating September 2014 as ''National Brain Aneurysm Awareness Month''; to the Committee on the Judiciary.

By Mr. TOOMEY (for himself, Mr. MCCONNELL, Mr. BURR, and Mr. CASEY):

S. Res. 354. A resolution expressing the sense of the Senate that the United States should leave no member of the Armed Forces unaccounted for during the drawdown of forces in Afghanistan; to the Committee on Armed Services.

ADDITIONAL COSPONSORS

S. 357

At the request of Mr. CARDIN, the name of the Senator from North Dakota (Mr. HOEVEN) was added as a cosponsor of S. 357, a bill to encourage, enhance, and integrate Blue Alert plans throughout the United States in order to disseminate information when a law enforcement officer is seriously injured or killed in the line of duty.

S. 511

At the request of Mr. RISCH, his name was added as a cosponsor of S. 511, a bill to amend the Small Business Investment Act of 1958 to enhance the Small Business Investment Company Program, and for other purposes.

S. 987

At the request of Mr. SCHUMER, the name of the Senator from Massachusetts (Mr. MARKEY) was added as a cosponsor of S. 987, a bill to maintain the free flow of information to the public by providing conditions for the federally compelled disclosure of information by certain persons connected with the news media.

S. 1158

At the request of Mr. ENZI, the name of the Senator from Texas (Mr. CRUZ) was added as a cosponsor of S. 1158, a bill to require the Secretary of the Treasury to mint coins commemorating the 100th anniversary of the establishment of the National Park Service, and for other purposes.

S. 1446

At the request of Mr. ROCKEFELLER, the name of the Senator from Wisconsin (Ms. BALDWIN) was added as a cosponsor of S. 1446, a bill to amend the Internal Revenue Code of 1986 to improve the affordability of the health care tax credit, and for other purposes.

S. 1725

At the request of Mr. VITTER, the name of the Senator from Arkansas (Mr. BOOZMAN) was added as a cosponsor of S. 1725, a bill to amend the Securities Investor Protection Act of 1970 to confirm that a customer's net equity claim is based on the customer's last statement and that certain recoveries are prohibited, to change how trustees are appointed, and for other purposes.

S. 1828

At the request of Mr. DONNELLY, the names of the Senator from Indiana (Mr. COATS), the Senator from Kentucky (Mr. PAUL) and the Senator from West Virginia (Mr. MANCHIN) were added as cosponsors of S. 1828, a bill to amend the Truth in Lending Act to modify the definitions of a mortgage originator and a high-cost mortgage.

S. 1862

At the request of Mr. BLUNT, the name of the Senator from Nebraska (Mr. JOHANNS) was added as a cosponsor of S. 1862, a bill to grant the Congressional Gold Medal, collectively, to the Monuments Men, in recognition of their heroic role in the preservation, protection, and restitution of monuments, works of art, and artifacts of cultural importance during and following World War II.

S. 1911

At the request of Mr. SCOTT, the name of the Senator from Idaho (Mr. RISCH) was added as a cosponsor of S. 1911, a bill to reform and strengthen the workforce investment system of the Nation to put Americans back to work and make the United States more competitive in the 21st century, and for other purposes.

S. 1956

At the request of Mr. SCHATZ, the names of the Senator from Ohio (Mr. BROWN) and the Senator from Oregon (Mr. MERKLEY) were added as cosponsors of S. 1956, a bill to direct the Secretary of Defense to review the discharge characterization of former members of the Armed Forces who were discharged by reason of the sexual orientation of the member, and for other purposes.

S. 1963

At the request of Mr. PRYOR, the name of the Senator from California (Mrs. BOXER) was added as a cosponsor of S. 1963, a bill to repeal section 403 of the Bipartisan Budget Act of 2013.

S. 1977

At the request of Ms. AYOTTE, the name of the Senator from Pennsylvania (Mr. TOOMEY) was added as a cosponsor of S. 1977, a bill to repeal section 403 of the Bipartisan Budget Act of 2013, relating to an annual adjustment of retired pay for members of the Armed Forces under the age of 62, and to provide an offset.

S. 1982

At the request of Mr. SANDERS, the names of the Senator from New Jersey (Mr. BOOKER) and the Senator from Michigan (Ms. STABENOW) were added as cosponsors of S. 1982, a bill to improve the provision of medical services and benefits to veterans, and for other purposes.

S. RES. 345

At the request of Mr. GRAHAM, the name of the Senator from Indiana (Mr. COATS) was added as a cosponsor of S. Res. 345, a resolution strongly supporting the restoration and protection of State authority and flexibility in establishing and defining challenging student academic standards and assessments, and strongly denouncing the President's coercion of States into adopting the Common Core State Standards by conferring preferences in Federal grants and flexibility waivers.

AMENDMENT NO. 2732

At the request of Mr. BARRASSO, his name was added as a cosponsor of amendment No. 2732 intended to be proposed to S. 1963, a bill to repeal section 403 of the Bipartisan Budget Act of 2013.

At the request of Ms. AYOTTE, the names of the Senator from Mississippi (Mr. COCHRAN), the Senator from North Dakota (Mr. HOEVEN) and the Senator from Maine (Ms. COLLINS) were added as cosponsors of amendment No. 2732 intended to be proposed to S. 1963, supra.

STATEMENTS ON INTRODUCED BILLS AND JOINT RESOLUTIONS

By Mr. WHITEHOUSE (for himself and Mr. HATCH):

S. 2012. A bill to amend the Controlled Substances Act to more effectively regulate anabolic steroids; to the Committee on the Judiciary.

Mr. WHITEHOUSE. Mr. President, today I am pleased to join Senator HATCH once again in introducing the bipartisan Designer Anabolic Steroid Control Act. Like the legislation we introduced in 2012, this measure will help keep American children and families safe from dangerous designer drugs that masquerade as healthy dietary supplements.

Doctors and scientists have long recognized the health hazards of non-medical use of anabolic steroids. For that reason, Congress has previously acted to ensure that these drugs are listed as controlled substances. Nonetheless, according to investigative reporting and Congressional testimony, a loophole in current law allows for designer anabolic steroids to easily be found on the Internet, in gyms, and even in retail stores.

Designer steroids are produced by reverse engineering existing illegal steroids and then slightly modifying the chemical composition, so that the resulting product is not on the Drug Enforcement Administration's, DEA, list of controlled substances. When taken by consumers, designer steroids can cause serious medical consequences, including liver injury and

increased risk of heart attack and stroke. They may also lead to psychological effects such as aggression, hostility, and addiction.

These designer products can be even more dangerous than traditional steroids because they are often untested, produced from overseas raw materials, and manufactured without quality controls. As one witness testified at a Crime Subcommittee hearing on the issue, ''all it takes to cash in on the storefront steroid craze is a credit card to import raw products from China or India where most of the raw ingredients come from, the ability to pour powders into a bottle or pill and a printer to create shiny, glossy labels.''

The unscrupulous actors responsible for manufacturing and selling these products often market them with misleading and inaccurate labels. That can cause consumers who are looking for a healthy supplement—not just elite athletes, but also high school students, law enforcement personnel, and mainstream Americans—to be deceived into taking these dangerous products. While the world's top athletes competing in the Winter Olympics are subjected to strict guidelines and rigorous testing to prevent the use of steroids, as they should be, many Americans may be unknowingly dosing themselves with these harmful substances.

Loopholes in existing law allow these dangerous designer steroids to evade regulation. Under current law, in order to classify new substances as steroids, the DEA must complete a burdensome and time-consuming series of chemical and pharmacological testing. As a DEA official testified before Congress: ''in the time that it takes DEA to administratively schedule an anabolic steroid used in a dietary supplement product, several new products can enter the market to take the place of those products.''

The Designer Anabolic Steroid Control Act of 2014 would quickly protect consumers from these dangerous products. First, it would immediately place 27 known designer anabolic steroids on the list of controlled substances. Second, it would grant the DEA authority to temporarily schedule new designer steroids on the controlled substances list, so that if bad actors develop new variations, these products can be removed from the market. Third, it would create new penalties for importing, manufacturing, or distributing anabolic steroids under false labels.

Senator HATCH and I worked closely with a range of consumer and industry organizations to ensure that this legislation would not interfere with consumers' access to legitimate dietary supplements. I thank these organizations for their support, and look forward to working with them, with Senator HATCH, and with colleagues from both sides of the aisle to enact this common sense measure into law.

By Mr. DURBIN:

S. 2014. A bill to amend title 38, United States Code, to provide for clarification regarding the children to whom entitlement to educational assistance may be transferred under Post-9/11 Educational Assistance, and for other purposes; to the Committee on Veterans' Affairs.

Mr. DURBIN. Mr. President, I ask unanimous consent that the text of the bill be printed in the RECORD.

There being no objection, the text of the bill was ordered to be printed in the RECORD, as follows:

S. 2014

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''GI Education Benefit Fairness Act of 2014''.

SEC. 2. CLARIFICATION REGARDING THE CHILDREN TO WHOM ENTITLEMENT TO EDUCATIONAL ASSISTANCE MAY BE TRANSFERRED UNDER POST-9/11 EDUCATIONAL ASSISTANCE.

(a) IN GENERAL.—Subsection (c) of section 3319 of title 38, United States Code, is amended to read as follows:

''(c) ELIGIBLE DEPENDENTS.—

''(1) TRANSFER.—An individual approved to transfer an entitlement to educational assistance under this section may transfer the individual's entitlement as follows:

''(A) To the individual's spouse.

''(B) To one or more of the individual's children.

''(C) To a combination of the individuals referred to in subparagraphs (A) and (B).

''(2) DEFINITION OF CHILDREN.—For purposes of this subsection, the term 'children' includes dependents described in section 1072(2)(I) of title 10.''.

(b) APPLICABILITY.—The amendment made by subsection (a) shall apply with respect to educational assistance payable under chapter 33 of title 38, United States Code, before, on, or after the date of the enactment of this Act.

By Mrs. FEINSTEIN (for herself, Mrs. BOXER, Mr. WYDEN, and Mr. MERKLEY):

S. 2016. A bill to direct the Secretary of the Interior, the Secretary of Commerce, and the Administrator of the Environmental Protection Agency to take actions to provide additional water supplies and disaster assistance to the State of California due to drought, and for other purposes; to the Committee on Energy and Natural Resources.

Mrs. FEINSTEIN. Mr. President, I rise on behalf of myself and Senators BOXER, WYDEN and MERKLEY to introduce legislation to respond to California's devastating drought conditions.

This weekend's storm in Northern California was more than a year in coming, and there are some encouraging signs that came from it: Rainfall in the Sacramento Valley averaged 2 to 3 inches. North of San Francisco Bay, precipitation averaged 4 to 7 inches. Between Friday and Monday, about 7 inches of precipitation fell in the Northern Sierra. The Southern Sierra saw more than 3 inches. Over the same period, the water contained in Northern Sierra snow increased by 3 inches; Central Sierra by 4 inches; and Southern Sierra by an inch.

But one storm in the North will not end this historic drought. In the San Joaquin Valley, precipitation over the weekend was less than an inch, while San Diego and Los Angeles saw only about a quarter-inch of rain. Also, the snowpack in the Sierra remains very troubling. Statewide, the snowpack is at 29 percent of normal for this date. The Northern California mountains are at 18 percent, and the Central Sierra is 36 percent.

State officials have confirmed that this weekend's rain and snow will have very little effect on the amount of water available for California. Even after this storm, California faces some of the driest conditions in modern times, leading to last month's declaration by Governor Brown of a drought emergency.

As of the beginning of February, at least 10 communities are in danger of running out of drinking water within 2 months. Without relief, more communities may face similar difficulties.

California's State Water Project helps supply water to 25 million Californians and 750,000 acres of farmland. For the first time in its 54-year history, it will not be providing any water to its water agencies.

The Central Valley Project irrigates about 3 million acres of farmland, supplies water to millions of Californians and supports crucial environmental habitats. This year, it will likely not be able to provide water to many farmers in the Central Valley.

As of February 9, Lake Shasta, California's largest reservoir, and Lake Oroville, the State Water Project's principal reservoir, are both at only 37 percent of capacity. San Luis Reservoir, crucial to farmers south of the Delta, is at only 30 percent of capacity.

Without water, farmers north and south of the Delta have lost crops, trees, workers, and income. Businesses, factories, schools, hospitals, fire departments, and other social services facilities will have trouble carrying out their work.

Let me put this in perspective: According to the State, to reach average annual rain and snowfall levels, this past weekend's rainfall must be repeated very frequently from now until May. And even then, California would still remain in drought conditions.

We need a forceful and immediate response to help those who are suffering. That is why I am introducing the California Emergency Drought Relief Act of 2014 along with Senators BOXER, WYDEN and MERKLEY. Representative JIM COSTA will introduce this bill in the House.

This bill focuses on measures that can provide water supplies to California this year. It would cut red tape and free up federal agencies to operate with maximum flexibility and speed so they can move water to those who need it. When we have more water to move from storms like we saw this weekend, this bill will make an even greater difference.

Let me sum up how this bill would help. First, the bill would increase

water supplies. By being smarter about how we manage water projects, we can free up more water. For example: This bill directs Federal agencies to open water gates on the Sacramento River for as long as possible when few salmon are migrating. This should allow thousands of acre feet of water to be pumped without harming the species.

It also directs agencies to find ways to control turbid waters so endangered Delta smelt that are attracted to these waters do not swim near the water pumps. Less risk to fish means more water can be pumped. And the bill mandates agencies to use the maximum authority allowed under the Endangered Species Act to provide as much water as possible from Delta pumping while staying within the law.

The bill would also reduce bureaucracy. During this emergency situation, the federal government must work as quickly and as efficiently as possible. Relying on emergency authorities that already exist, the bill directs Federal agencies to complete environmental reviews under shortened timeframes so water supply measures such as water transfers and fallowing of land can be carried out with minimal delay.

The bill would also provide emergency funding and disaster assistance. It authorizes additional expenditures to fund measures that can make a difference now, especially for the communities that are at risk of running out of drinking water soon.

They include $100 million to carry out projects to maximize water supplies. There is also $200 million for disaster relief to help farmers and rural communities. That includes $100 million for emergency conservation measures so farmers can carry out projects to protect lands, crops and watersheds; $25 million in grants for rural communities to take action to upgrade, repair or secure water systems; $25 million in pre-disaster hazard mitigation grants so communities and the State can complete projects to lessen the effects of the drought; $25 million in grant funding for public and nonprofit organizations to provide emergency assistance to low-income migrant and seasonal farmworkers affected by the drought; and $25 million in grants to private forest landowners for conservation measures related to drought and wildfire. The bill would also direct Federal agencies to prioritize grant funding for water projects that can yield water supplies and alleviate the drought's effects now.

The bill also amends the Stafford Act. The 1988 Stafford Act was meant to provide a comprehensive framework for how the country responds to major disasters, including droughts. However, because the Act has been interpreted very narrowly since its passage, eight drought-stricken States have applied for a major disaster declaration, and all eight have been denied: California in 2009; Georgia in 2008; Virginia in 2003; Maine in 2002; Texas and Oklahoma in 1998; and Minnesota and North Dakota in 1988.

To correct this, the bill amends the Stafford Act. These changes will provide States with greater flexibility to access Federal disaster assistance programs. These programs help individuals affected by drought conditions with disaster unemployment assistance and crisis counseling.

Let me be clear: this bill does not create new Federal assistance programs. It is an effort to clarify the intent of Congress regarding the Stafford Act, and to make the Stafford Act work better for droughts. When major disasters like a severe drought occur, communities should be eligible for Federal assistance.

During these emergency times, I also strongly believe some requirements should be relaxed to relieve the pressures faced by water users. To that effect, my bill proposes giving North-of-Delta water contractors more time to take delivery of water they were allocated in 2013, so they have more flexibility with their 2014 supplies. It also delays some water contract payments that Central Valley Project contractors must pay the Federal Government to lessen financial stress as they confront and recover from the drought.

I want to be clear: the success of some of these measures will depend on how much rain we get and how much water is available to be moved. This bill is not a replacement for rain, but it will give us tools to make water available when we have storms like the one over the weekend. My goal is to make sure we are maximizing every drop of water in the system and we are doing everything as quickly as possible to offer some measure of relief.

Finally, there are important lessons to learn. Southern California is better prepared than the rest of the State to cope with this drought thanks to decades of work to build storage and improve water conservation. Metropolitan Water District, I understand, has enough water supplies for 19 million customers through voluntary water use reductions.

Were it not for the more than 2 million acre-feet of water reserves, including 600,000 acre feet in Diamond Valley Lake, Southern California water users would be facing up to 50 percent mandatory water use restrictions.

The message is clear: For the long term, we must build additional storage if we are to be prepared for the next drought which is sure to come.

I urge my colleagues on both sides of the aisle, and our counterparts in the House, to support this bill.

Mr. President, I ask unanimous consent that the text of the bill be printed in the RECORD.

There being no objection, the text of the bill was ordered to be printed in the RECORD, as follows:

S. 2016

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''California Emergency Drought Relief Act of 2014''.

SEC. 2. TABLE OF CONTENTS.

The table of contents of this Act are as follows:

Sec. 1. Short title.
Sec. 2. Table of contents.
TITLE I—CALIFORNIA EMERGENCY DROUGHT RELIEF
Sec. 101. Findings.
Sec. 102. Definitions.
Sec. 103. Emergency projects.
Sec. 104. Emergency funding.
Sec. 105. Emergency environmental reviews.
Sec. 106. State revolving funds.
Sec. 107. Drought planning assistance.
Sec. 108. Calfed Bay-Delta Act reauthorization.
Sec. 109. Reclamation States Emergency Drought Relief Act reauthorization.
Sec. 110. Secure Water Act reauthorization.
Sec. 111. Effect on State laws.
Sec. 112. Klamath Basin water supply.
Sec. 113. Termination of authorities.
TITLE II—EMERGENCY SUPPLEMENTAL AGRICULTURE DISASTER APPROPRIATIONS
Sec. 201. Emergency supplemental agriculture disaster appropriations.
TITLE III—FEDERAL DISASTER ASSISTANCE
Sec. 301. Treatment of drought under the Robert T. Stafford Disaster Relief and Emergency Assistance Act.
TITLE IV—EMERGENCY DESIGNATIONS
Sec. 401. Emergency designations.

TITLE I—CALIFORNIA EMERGENCY DROUGHT RELIEF

SEC. 101. FINDINGS.

Congress finds that—

(1) as established in the Proclamation of a State of Emergency issued by the Governor of the State on January 17, 2014, the State is experiencing record dry conditions;

(2) extremely dry conditions have persisted in the State since 2012, and the current drought conditions are likely to persist into the future;

(3) the water supplies of the State are at record-low levels, as indicated by a statewide average snowpack of 12 percent of the normal average for winter as of February 1, 2014, and the fact that all major Central Valley Project reservoir levels are below 50 percent of the capacity of the reservoirs as of the date of enactment of this Act;

(4) the 2013–2014 drought constitutes a serious emergency posing immediate and severe risks to human life and safety and to the environment throughout the State;

(5) the emergency requires—

(A) immediate and credible action that respects the complexity of the State of California's water system and its importance to the entire State; and

(B) policies that do not pit stakeholders against one another, which history has shown only leads to costly litigation that benefits no one and prevents any real solutions;

(6) Federal law (including regulations) directly authorizes expedited decision-making procedures and environmental and public review procedures to enable timely and appropriate implementation of actions to respond to such a type and severity of emergency; and

(7) the serious emergency posed by the 2013–2014 drought in the State fully satisfies the conditions necessary for the exercise of emergency decision making, analytical, and public review requirements under—

(A) the Endangered Species Act of 1973 (16 U.S.C. 1531 et seq.);

(B) the National Environmental Policy Act of 1969 (42 U.S.C. 4321 et seq.);

(C) water control management procedures of the Corps of Engineers described in section 222.5 of title 33, Code of Federal Regulations (including successor regulations); and

(D) the Reclamation States Emergency Drought Relief Act of 1991 (Public Law 102–250; 106 Stat. 53).

SEC. 102. DEFINITIONS.

In this title:

(1) CENTRAL VALLEY PROJECT.—The term ''Central Valley Project'' has the meaning given the term in section 3403 of the Central Valley Project Improvement Act (106 Stat. 4707).

(2) KLAMATH PROJECT.—The term ''Klamath Project'' means the Bureau of Reclamation project in the States of California and Oregon—

(A) as authorized under the Act of June 17, 1902 (32 Stat. 388, chapter 1093); and

(B) as described in—

(i) title II of the Oregon Resource Conservation Act of 1996 (Public Law 104–208; 110 Stat. 3009–532); and

(ii) the Klamath Basin Water Supply Enhancement Act of 2000 (Public Law 106–498; 114 Stat. 2221).

(3) RECLAMATION PROJECT.—The term ''Reclamation Project'' means a project constructed pursuant to the authorities of the reclamation laws and whose facilities are wholly or partially located in the State.

(4) RESERVED WORKS.—The term ''reserved works'' means Bureau of Reclamation-owned project facilities for which the operations and maintenance are performed by employees of the Bureau of Reclamation or by contract, regardless of funding source.

(5) SECRETARIES.—The term ''Secretaries'' means—

(A) the Administrator of the Environmental Protection Agency;

(B) the Secretary of Commerce; and

(C) the Secretary of the Interior.

(6) STATE.—The term ''State'' means the State of California.

(7) STATE WATER PROJECT.—The term ''State Water Project'' means the water project described by California Water Code section 11550 et seq., and operated by the California Department of Water Resources.

SEC. 103. EMERGENCY PROJECTS.

(a) IN GENERAL.—In response to the declaration of a state of drought emergency by the Governor of the State, the Secretaries shall provide the maximum quantity of water supplies possible to Central Valley Project and Klamath Project agricultural, municipal and industrial, and refuge service and repayment contractors, State Water Project contractors, and any other locality or municipality in the State, by approving, consistent with applicable laws (including regulations)—

(1) any project or operations to provide additional water supplies if there is any possible way whatsoever that the Secretaries can do so unless the project or operations constitute a highly inefficient way of providing additional water supplies; and

(2) any projects or operations as quickly as possible based on available information to address the emergency conditions.

(b) MANDATE.—In carrying out subsection (a), the applicable agency heads described in that subsection shall, consistent with applicable laws (including regulations)—

(1) authorize and implement actions to ensure that the Delta Cross Channel Gates shall remain open to the greatest extent possible, timed to maximize the peak flood tide period and provide water supply and water quality benefits for the duration of the State's drought emergency declaration, consistent with operational criteria and monitoring criteria developed pursuant to the California State Water Resources Control Board's Order Approving a Temporary Urgency Change in License and Permit Terms in Response to Drought Conditions, effective January 31, 2014, or a successor order;

(2)(A) collect data associated with the operation of the Delta Cross Channel Gates described in paragraph (1) and its impact on species listed as threatened or endangered under the Endangered Species Act of 1973 (16 U.S.C. 1531 et seq.), water quality, and water supply; and

(B) after assessing the data described in subparagraph (A), require the Director of the National Marine Fisheries Service to recommend revisions to operations of the Central Valley Project and the California State Water Project, including, if appropriate, the reasonable and prudent alternatives contained in the biological opinion issued by the National Marine Fisheries Service on June 4, 2009, that are likely to produce fishery, water quality, and water supply benefits;

(3)(A) implement turbidity control strategies that allow for increased water deliveries while avoiding jeopardy to adult delta smelt (Hypomesus transpacificus) due to entrainment at Central Valley Project and State Water Project pumping plants; and

(B) manage reverse flow in Old and Middle Rivers as prescribed by the biological opinion issued by the United States Fish and Wildlife Service and dated December 15, 2008, to minimize water supply reductions for the Central Valley Project and the State Water Project;

(4) adopt a 1:1 inflow to export ratio for the increased flow of the San Joaquin River, as measured as a 3-day running average at Vernalis during the period from April 1 through May 31, resulting from voluntary transfers and exchanges of water supplies, among other purposes;

(5) issue all necessary permit decisions under the authority of the Secretaries within 30 days of receiving a completed application by the State to place and use temporary barriers or operable gates in Delta channels to improve water quantity and quality for State Water Project and Central Valley Project South of Delta water contractors and other water users, which barriers or gates should provide benefits for species protection and in-Delta water user water quality and shall be designed such that formal consultations under section 7 of the Endangered Species Act of 1973 (16 U.S.C. 1536) would not be necessary;

(6)(A) require the Director of the United States Fish and Wildlife Service and the Commissioner of the Bureau of Reclamation to complete all requirements under the National Environmental Policy Act of 1969 (42 U.S.C. 4321 et seq.) and the Endangered Species Act of 1973 (16 U.S.C. 1531 et seq.) necessary to make final permit decisions on water transfer requests associated with voluntarily fallowing nonpermanent crops in the State, within 30 days of receiving such a request; and

(B) require the Director of the United States Fish and Wildlife Service to allow any water transfer request associated with fallowing to maximize the quantity of water supplies available for nonhabitat uses as long as the fallowing and associated water transfer are in compliance with applicable Federal laws (including regulations);

(7) allow North of Delta water service contractors with unused 2013 Central Valley Project contract supplies to take delivery of those unused supplies through April 15, 2014, if—

(A) the contractor requests the extension; and

(B) the requesting contractor certifies that, without the extension, the contractor would have insufficient supplies to adequately meet water delivery obligations;

(8) maintain all rescheduled water supplies held in the San Luis Reservoir and Millerton Reservoir for all water users for delivery in the immediately following contract water year unless precluded by reservoir storage capacity limitations;

(9) to the maximum extent possible based on the availability of water and without causing land subsidence—

(A) meet the contract water supply needs of Central Valley Project refuges through the improvement or installation of wells to use groundwater resources and the purchase of water from willing sellers, which activities may be accomplished by using funding made available under section 104 or the Water Assistance Program or the WaterSMART program of the Department of the Interior; and

(B) make a quantity of Central Valley Project surface water obtained from the measures implemented under subparagraph (A) available to Central Valley Project contractors;

(10) make WaterSMART grant funding administered by the Bureau of Reclamation available for eligible projects within the State on a priority and expedited basis—

(A) to provide emergency drinking and municipal water supplies to localities in a quantity necessary to meet minimum public health and safety needs;

(B) to prevent the loss of permanent crops;

(C) to minimize economic losses resulting from drought conditions; and

(D) to provide innovative water conservation tools and technology for agriculture and urban water use that can have immediate water supply benefits;

(11) implement offsite upstream projects in the Delta and upstream Sacramento River and San Joaquin basins, in coordination with the California Department of Water Resources and the California Department of Fish and Wildlife, that offset the effects on species listed as threatened or endangered under the Endangered Species Act of 1973 (16 U.S.C. 1531 et seq.) due to actions taken under this Act;

(12) for reserved works only, authorize annual operation and maintenance deficits, owed to the Federal Government and incurred due to delivery of contract water supplies to a Central Valley Project or Klamath Project water contractor during each fiscal year the State emergency drought declaration is in force, to accrue without interest for a period of 5 years and then to be repaid, notwithstanding section 106 of Public Law 99–546 (100 Stat. 3052), to the Federal Government over a period of not more than 10 years at the lesser of—

(A) the project interest rate; and

(B) the rate specified in section 106 of Public Law 99–546 (100 Stat. 3052); and

(13) use all available scientific tools to identify and implement any changes to real-time operations of Bureau of Reclamation, State, and local water projects that could result in the availability of additional water supplies.

(c) OTHER AGENCIES.—To the extent that a Federal agency other than agencies headed by the Secretaries has a role in approving projects described in subsections (a) and (b), the provisions of this section shall apply to those Federal agencies.

(d) ACCELERATED PROJECT DECISION AND ELEVATION.—

(1) IN GENERAL.—Upon the request of the State, the heads of Federal agencies shall use the expedited procedures under this subsection to make final decisions relating to a Federal project or operation to provide additional water supplies or address emergency drought conditions pursuant to subsections (a) and (b).

(2) REQUEST FOR RESOLUTION.—

(A) IN GENERAL.—Upon the request of the State, the head of an agency referred to in subsection (a), or the head of another Federal agency responsible for carrying out a review of a project, as applicable, the Secretary of the Interior shall convene a final project decision meeting with the heads of all relevant Federal agencies to decide whether to approve a project to provide emergency water supplies.

(B) MEETING.—The Secretary of the Interior shall convene a meeting requested under subparagraph (A) not later than 7 days after receiving the meeting request.

(3) NOTIFICATION.—Upon receipt of a request for a meeting under this subsection, the Secretary of the Interior shall notify the heads of all relevant Federal agencies of the request, including the project to be reviewed and the date for the meeting.

(4) DECISION.—Not later than 10 days after the date on which a meeting is requested under paragraph (2), the head of the relevant Federal agency shall issue a final decision on the project.

(5) MEETING CONVENED BY SECRETARY.—The Secretary may convene a final project decision meeting under this subsection at any time, at the discretion of the Secretary, regardless of whether a meeting is requested under paragraph (2).

SEC. 104. EMERGENCY FUNDING.

(a) FINANCIAL ASSISTANCE.—

(1) IN GENERAL.—Financial assistance may be made available under the Reclamation States Emergency Drought Relief Act of 1991 (43 U.S.C. 2201 et seq.), subtitle F of title IX of the Omnibus Public Land Management Act of 2009 (42 U.S.C. 10361 et seq.) (commonly known as the ''Secure Water Act of 2009''), and any other applicable Federal law (including regulations), to be divided among each applicable program at the discretion of the Secretary for the optimization and conservation of Reclamation Project water supplies to assist drought-plagued areas of the State and the West.

(2) ADDITIONAL AVAILABILITY.—Financial assistance may be made available under this section to organizations and entities, including tribal governments, that are engaged in collaborative processes to restore the environment while settling water rights claims that are part of an active water rights adjudication or a broader settlement of claims that are part of a basin-wide solution for restoration.

(b) TYPES OF ASSISTANCE.—Assistance under subsection (a) shall include a range of projects, including—

(1) the installation of pumps, temporary barriers, or operable gates for water diversion and fish protection;

(2) the installation of groundwater wells in wildlife refuges and other areas;

(3) the purchase or assistance in the purchase of water from willing sellers;

(4) conservation projects providing water supply benefits in the short-term;

(5) exchanges with any water district willing to provide water to meet the emergency water needs of other water districts in return for the delivery of equivalent quantities of water later that year or in future years;

(6) maintenance of cover crops to prevent public health impacts from severe dust storms;

(7) emergency pumping projects for critical health and safety purposes;

(8) activities to reduce water demand consistent with a comprehensive program for environmental restoration and settlement of water rights claims;

(9) the use of new or innovative water on-farm water conservation technologies or methods that may assist in sustaining permanent crops in areas with severe water shortages;

(10) technical assistance to improve existing irrigation practices to provide water supply benefits in the short-term; and

(11) any other assistance the Secretary determines to be necessary to increase available water supplies or mitigate drought impacts.

(c) FUNDING.—There is appropriated, out of funds of the Treasury not otherwise appropriated, $100,000,000 to the Secretary of the Interior and the Secretary of Commerce to carry out this section.

SEC. 105. EMERGENCY ENVIRONMENTAL REVIEWS.

To minimize the time spent carrying out environmental reviews and to deliver water quickly that is needed to address emergency drought conditions in the State, the head of each applicable Federal agency shall, in carrying out this Act, consult with the Council on Environmental Quality in accordance with section 1506.11 of title 40, Code of Federal Regulations (including successor regulations) to develop alternative arrangements to comply with the National Environmental Policy Act of 1969 (42 U.S.C. 4321 et seq.) during the emergency.

SEC. 106. STATE REVOLVING FUNDS.

The Administrator of the Environmental Protection Agency, in allocating amounts for each of the fiscal years during which the State's emergency drought declaration is in force to State water pollution control revolving funds established under title VI of the Federal Water Pollution Control Act (33 U.S.C. 1381 et seq.) and the State drinking water treatment revolving loan funds established under section 1452 of the Safe Drinking Water Act (42 U.S.C. 300j–12), shall, for those projects that are eligible to receive assistance under section 603 of the Federal Water Pollution Control Act (33 U.S.C. 1383) or section 1452(a)(2) of the Safe Drinking Water Act (42 U.S.C. 300j–12(a)(2)), respectively, that the State determines will provide additional water supplies most expeditiously to areas that are at risk of having an inadequate supply of water for public health and safety purposes or to improve resiliency to drought—

(1) require the State to review and prioritize funding for such projects;

(2) issue a determination of waivers within 30 days of the conclusion of the informal public comment period pursuant to section 436(c) of title IV of division G of Public Law 113–76; and

(3) authorize, at the request of the State, 40-year financing for assistance under section 603(d)(2) of the Federal Water Pollution Control Act (33 U.S.C. 1383(d)(2)) or section 1452(f)(2) of the Safe Drinking Water Act (42 U.S.C. 300j–12(f)(2)).

SEC. 107. DROUGHT PLANNING ASSISTANCE.

(a) IN GENERAL.—Upon the request of Central Valley Project or Klamath Project contractors or other Reclamation Project contractors in the State, the Secretary of the Interior, acting through the Commissioner of Reclamation, shall provide water supply planning assistance in preparation for and in response to dry, critically dry, and below normal water year types to those Central Valley Project or Klamath Project contractors or other Reclamation Project contractors making those requests, including contractors who possess contracts for refuge water supplies or deliver refuge water supplies.

(b) TYPES OF ASSISTANCE.—Assistance under subsection (a) shall include—

(1) hydrological forecasting;

(2) assessment of water supply sources under different water year classification types;

(3) identification of alternative water supply sources;

(4) guidance on potential water transfer partners;

(5) technical assistance regarding Federal and State permits and contracts under the Act of February 21, 1911 (36 Stat. 925, chapter 141) (commonly known as the ''Warren Act'');

(6) technical assistance regarding emergency provision of water supplies for critical health and safety purposes;

(7) activities carried out in conjunction with the National Oceanic and Atmospheric Administration, the National Integrated Drought Information System, and the State partners of the National Integrated Drought Information System under the National Integrated Drought Information System Act of 2006 (15 U.S.C. 313d)—

(A) to collect and integrate key indicators of drought severity and impacts; and

(B) to produce and communicate timely monitoring and forecast information to local and regional communities, including the San Joaquin Valley, the Delta, and the Central Coast; and

(8) any other assistance the Secretary determines to be necessary.

SEC. 108. CALFED BAY-DELTA ACT REAUTHORIZATION.

Title I of the Water Supply, Reliability, and Environmental Improvement Act (118 Stat. 1681; 123 Stat. 2860) (as amended by section 207 of title II of division D of the Consolidated Appropriations Act, 2014) is amended by striking ''2015'' each place it appears and inserting ''2018''.

SEC. 109. RECLAMATION STATES EMERGENCY DROUGHT RELIEF ACT REAUTHORIZATION.

Section 301 of the Reclamation States Emergency Drought Relief Act of 1991 (43 U.S.C. 2241) is amended—

(1) by striking ''$90,000,000'' and inserting ''$190,000,000''; and

(2) by striking ''2012'' and inserting ''2017''.

SEC. 110. SECURE WATER ACT REAUTHORIZATION.

Section 9504 of Public Law 111–11 (42 U.S.C. 10364) is amended—

(1) in subsection (a)(3)(E), by adding at the end the following:

''(v) AUTHORITY OF COMMISSIONER.—The Commissioner of Reclamation may, at the discretion of the Commissioner—

''(I) waive any cost-share requirements to address emergency situations; and

''(II) prioritize projects based on the ability of the projects to expeditiously yield water supply benefits during periods of drought.''; and

(2) in subsection (e), by striking ''$200,000,000'' and inserting ''$250,000,000''.

SEC. 111. EFFECT ON STATE LAWS.

Nothing in this Act preempts any State law in effect on the date of enactment of this Act, including area of origin and other water rights protections.

SEC. 112. KLAMATH BASIN WATER SUPPLY.

The Klamath Basin Water Supply Enhancement Act of 2000 (Public Law 106–498; 114 Stat. 2221) is amended—

(1) by redesignating sections 4 through 6 as sections 5 through 7, respectively; and

(2) by inserting after section 3 the following:

''SEC. 4. WATER MANAGEMENT AND PLANNING ACTIVITIES.

''The Secretary is authorized to engage in activities, including entering into agreements and contracts, or otherwise making financial assistance available, to reduce water consumption or demand, or to restore ecosystems in the Klamath Basin watershed, including tribal fishery resources held in trust, consistent with collaborative agreements for environmental restoration and settlements of water rights claims.''.

SEC. 113. TERMINATION OF AUTHORITIES.

The authorities under sections 103, 104, 105, and 106 expire on the date on which the Governor of the State suspends the state of drought emergency declaration.

TITLE II—EMERGENCY SUPPLEMENTAL AGRICULTURE DISASTER APPROPRIATIONS

SEC. 201. EMERGENCY SUPPLEMENTAL AGRICULTURE DISASTER APPROPRIATIONS.

(a) FUNDING.—

(1) IN GENERAL.—Notwithstanding any other provision of law, as soon as practicable after the date of enactment of this Act, out of any funds in the Treasury not otherwise appropriated, the Secretary of the Treasury shall transfer to the Secretary of Agriculture (referred to in this section as the ''Secretary'') for the emergency conservation program established under title IV of the Agricultural Credit Act of 1978 (16 U.S.C. 2201 et seq.) and the emergency watershed protection program established under section 403 of the Agricultural Credit Act of 1978 (16 U.S.C. 2203) $100,000,000, to be divided among each applicable program as the Secretary determines to be appropriate—

(A) to provide to agricultural producers and other eligible entities affected by the 2014 drought assistance upon declaration of a natural disaster under section 321(a) of the Consolidated Farm and Rural Development Act (7 U.S.C. 1961(a)) or for the same purposes for counties that are contiguous to a designated natural disaster area; and

(B) to carry out any other activities the Secretary determines necessary as a result of the 2014 drought, such as activities relating to wildfire damage.

(2) RECEIPT AND ACCEPTANCE.—The Secretary shall be entitled to receive, shall accept, and shall use to carry out this subsection the funds transferred under paragraph (1), without further appropriation.

(b) EMERGENCY ASSISTANCE PROGRAM FOR LIVESTOCK, HONEY BEES, AND FARM-RAISED FISH.—Notwithstanding any other applicable limitations under law, the Secretary shall use such sums as are necessary of the funds of the Commodity Credit Corporation to carry out the emergency assistance program for livestock, honey bees, and farm-raised fish under section 531(e) of the Federal Crop Insurance Act (7 U.S.C. 1531(e)) for fiscal year 2014 to provide assistance to agricultural producers for losses due to drought.

(c) FEMA PREDISASTER HAZARD MITIGATION GRANTS.—

(1) IN GENERAL.—Notwithstanding any other provision of law, as soon as practicable after the date of enactment of this Act, out of any funds in the Treasury not otherwise appropriated, the Secretary of the Treasury shall transfer to the Administrator of the Federal Emergency Management Agency $25,000,000 for fiscal year 2014 for mitigation activities related to drought and wildfire hazards.

(2) RECEIPT AND ACCEPTANCE.—The Administrator of the Federal Emergency Management Agency shall be entitled to receive, shall accept, and shall use to carry out this subsection the funds transferred under paragraph (1), without further appropriation.

(d) EMERGENCY COMMUNITY WATER ASSISTANCE GRANTS.—

(1) IN GENERAL.—Notwithstanding any other provision of law—

(A) as soon as practicable after the date of enactment of this Act, out of any funds in the Treasury not otherwise appropriated, the Secretary of the Treasury shall transfer to the Secretary $25,000,000 for fiscal year 2014 to provide emergency community water assistance grants under section 306A of the Consolidated Farm and Rural Development Act (7 U.S.C. 1926a) to address impacts of drought;

(B) the maximum amount of a grant provided under subparagraph (A) for fiscal year 2014 shall be $1,000,000; and

(C) for fiscal year 2014, a community whose population is less than 50,000 shall be eligible for a grant under this paragraph.

(2) RECEIPT AND ACCEPTANCE.—The Secretary shall be entitled to receive, shall accept, and shall use to carry out this subsection the funds transferred under paragraph (1), without further appropriation.

(e) OFFICE OF THE INSPECTOR GENERAL.—

(1) IN GENERAL.—Notwithstanding any other provision of law, as soon as practicable after the date of enactment of this Act, out of any funds in the Treasury not otherwise appropriated, the Secretary of the Treasury shall transfer to the Inspector General of the Department of Agriculture $2,000,000 for fiscal year 2014, to remain available until expended, for oversight of activities carried out by the Department relating to drought.

(2) RECEIPT AND ACCEPTANCE.—The Inspector General of the Department of Agriculture shall be entitled to receive, shall accept, and shall use to carry out this subsection the funds transferred under paragraph (1), without further appropriation.

(f) EMERGENCY GRANTS TO ASSIST LOW-INCOME MIGRANT AND SEASONAL FARMWORKERS.—

(1) IN GENERAL.—Notwithstanding any other provision of law, as soon as practicable after the date of enactment of this Act, out of any funds in the Treasury not otherwise appropriated, the Secretary of the Treasury shall transfer to the Secretary $25,000,000 for fiscal year 2014 to provide emergency grants to assist low-income migrant and seasonal farmworkers under section 2281 of the Food, Agriculture, Conservation, and Trade Act of 1990 (42 U.S.C. 5177a) to address impacts of drought upon declaration of a natural disaster under section 321(a) of the Consolidated Farm and Rural Development Act (7 U.S.C. 1961(a)) or for the same purposes in counties that are contiguous to a designated natural disaster area.

(2) RECEIPT AND ACCEPTANCE.—The Secretary shall be entitled to receive, shall accept, and shall use to carry out this subsection the funds transferred under paragraph (1), without further appropriation.

(g) EMERGENCY FOREST RESTORATION PROGRAM.—

(1) IN GENERAL.—Notwithstanding any other provision of law, as soon as practicable after the date of enactment of this Act, out of any funds in the Treasury not otherwise appropriated, the Secretary of the Treasury shall transfer to the Secretary $25,000,000 for fiscal year 2014 for the Emergency Forest Restoration Program under section 407 of the Agricultural Credit Act of 1978 (16 U.S.C. 2206) to address impacts of drought or wildfire upon declaration of a natural disaster under section 321(a) of the Consolidated Farm and Rural Development Act (7 U.S.C. 1961(a)) or for the same purposes in counties that are contiguous to a designated natural disaster area.

(2) RECEIPT AND ACCEPTANCE.—The Secretary shall be entitled to receive, shall accept, and shall use to carry out this subsection the funds transferred under paragraph (1), without further appropriation.

TITLE III—FEDERAL DISASTER ASSISTANCE

SEC. 301. TREATMENT OF DROUGHT UNDER THE ROBERT T. STAFFORD DISASTER RELIEF AND EMERGENCY ASSISTANCE ACT.

(a) FINDINGS.—Congress finds that—

(1) the term ''major disaster'' (as defined in section 102 of the Robert T. Stafford Disaster Relief and Emergency Assistance Act (42 U.S.C. 5122)) includes drought, yet no drought in the 30 years preceding the date of enactment of this Act has been declared by the President to be a major disaster in any of the States in accordance with section 401 of that Act (42 U.S.C. 5170);

(2) a major drought shall be eligible to be declared a major disaster or state of emergency by the President on the request of the Governor of any State;

(3) droughts are natural disasters that do occur, and while of a different type of impact, the scale of the impact of a major drought can be equivalent to other disasters that have been declared by the President to be a major disaster under the Robert T. Stafford Disaster Relief and Emergency Assistance Act (42 U.S.C. 5121 et seq.); and

(4) droughts have wide-ranging and long-term impacts on ecosystem health, agriculture production, permanent crops, forests, waterways, air quality, public health, wildlife, employment, communities, State and national parks, and other natural resources of a State and the people of that State that have significant value.

(b) AMENDMENT.—Section 502(a) of the Robert T. Stafford Disaster Relief and Emergency Assistance Act (42 U.S.C. 5192(a)) is amended—

(1) in paragraph (7), by striking ''and'';

(2) in paragraph (8), by striking the period at the end and inserting a semicolon; and

(3) by adding at the end the following:

''(9) provide disaster unemployment assistance in accordance with section 410;

''(10) provide emergency nutrition assistance in accordance with section 412; and

''(11) provide crisis counseling assistance in accordance with section 416.''.

TITLE IV—EMERGENCY DESIGNATIONS

SEC. 401. EMERGENCY DESIGNATIONS.

(a) This Act is designated as an emergency requirement pursuant to section 4(g) of the Statutory Pay-As-You-Go Act of 2010 (Public Law 111-139; 2 U.S.C. 933(g)).

(b) In the Senate, this Act is designated as an emergency requirement pursuant to section 403(a) of S. Con. Res. 13 (111th Congress), the concurrent resolution on the budget for fiscal year 2010.

SUBMITTED RESOLUTIONS

SENATE RESOLUTION 353—DESIGNATING SEPTEMBER 2014 AS ''NATIONAL BRAIN ANEURYSM AWARENESS MONTH''

Mr. MARKEY submitted the following resolution; which was referred to the Committee on the Judiciary:

S. RES. 353

Whereas a brain aneurysm is an abnormal saccular or fusiform bulging of an artery in the brain;

Whereas an estimated 1 out of every 50 people in the United States has a brain aneurysm;

Whereas brain aneurysms are most likely to occur in people between the ages of 35 and 60 and there are typically no warning signs;

Whereas brain aneurysms are more likely to occur in women than in men by a 3-to-2 ratio;

Whereas young and middle aged African Americans have a higher risk of brain aneurysm rupture compared to Caucasian Americans;

Whereas various risk factors can contribute to the formation of a brain aneurysm, including smoking, hypertension, and a family history of brain aneurysms;

Whereas approximately 6,000,000 people in the United States have a brain aneurysm;

Whereas an unruptured brain aneurysm can lead to double vision, vision loss, loss of sensation, weakness, loss of balance, incoordination, and speech problems;

Whereas a brain aneurysm is often discovered when it ruptures and causes a subarachnoid hemorrhage;

Whereas a subarachnoid hemorrhage can lead to brain damage, hydrocephalus, stroke, and death;

Whereas each year, more than 30,000 people in the United States suffer from ruptured brain aneurysms and 40 percent of these people die as a result;

Whereas annually, between 3,000 and 4,500 people in the United States with ruptured brain aneurysms die before reaching the hospital;

Whereas a number of advancements have been made in recent years regarding the detection of aneurysms, including the computerized tomography (CT) scan, the magnetic resonance imaging (MRI) test, and the cerebral arteriogram, and early detection can save lives;

Whereas various research studies are currently being conducted in the United States in order to better understand, prevent, and treat brain aneurysms; and

Whereas the month of September would be an appropriate month to designate as ''National Brain Aneurysm Awareness Month'': Now, therefore, be it

Resolved, That the Senate—

(1) designates September 2014 as National Brain Aneurysm Awareness Month; and

(2) continues to support research to prevent, detect, and treat brain aneurysms.

SENATE RESOLUTION 354—EXPRESSING THE SENSE OF THE SENATE THAT THE UNITED STATES SHOULD LEAVE NO MEMBER OF THE ARMED FORCES UNACCOUNTED FOR DURING THE DRAWDOWN OF FORCES IN AFGHANISTAN

Mr. TOOMEY (for himself, Mr. MCCONNELL, Mr. BURR, and Mr. CASEY) submitted the following resolution; which was referred to the Committee on Armed Services:

S. RES. 354

Whereas the United States is a country of great honor and integrity;

Whereas the United States has made a sacred promise to members of the Armed Forces who are deployed overseas in defense of this country that their sacrifice and service will never be forgotten; and

Whereas the United States can never thank the proud members of the Armed Forces enough for what they do for this country on a daily basis: Now, therefore, be it

Resolved, That the Senate—

(1) believes that the United States should undertake every reasonable effort—

(A) to find and repatriate members of the Armed Forces who are missing; and

(B) to repatriate members of the Armed Forces who are captured;

(2) believes that the United States has a responsibility to keep the promises made to members of the Armed Forces who risk their lives on a daily basis on behalf of the people of the United States;

(3) supports the United States Soldier's Creed and the Warrior Ethos, which state that ''I will never leave a fallen comrade''; and

(4) believes that, while the United States continues to transition leadership roles in combat operations in Afghanistan to the people of Afghanistan, the United States must continue to fulfill these important promises to any member of the Armed Forces who is in a missing status or captured as a result of service in Afghanistan now or in the future.

AMENDMENTS SUBMITTED AND PROPOSED

SA 2733. Mr. PAUL submitted an amendment intended to be proposed by him to the bill S. 1963, to repeal section 403 of the Bipartisan Budget Act of 2013; which was ordered to lie on the table.

SA 2734. Mr. HELLER submitted an amendment intended to be proposed by him to the bill S. 1963, supra; which was ordered to lie on the table.

SA 2735. Mrs. SHAHEEN (for herself, Mr. BLUMENTHAL, Mr. COONS, Ms. HIRONO, Mr. UDALL of Colorado, Mr. MERKLEY, Mr. MARKEY, Mr. MANCHIN, Mr. UDALL of New Mexico, Mr. KAINE, Ms. LANDRIEU, Mr. SCHATZ, Mr. FRANKEN, and Mr. WARNER) submitted an amendment intended to be proposed by her to the bill S. 1963, supra; which was ordered to lie on the table.

SA 2736. Mr. HOEVEN submitted an amendment intended to be proposed by him to the bill S. 1963, supra; which was ordered to lie on the table.

SA 2737. Mr. LEE submitted an amendment intended to be proposed by him to the bill S. 1963, supra; which was ordered to lie on the table.

SA 2738. Mr. PORTMAN (for himself and Mr. COATS) submitted an amendment intended to be proposed by him to the bill S. 1963, supra; which was ordered to lie on the table.

SA 2739. Mr. VITTER submitted an amendment intended to be proposed by him to the bill S. 1963, supra; which was ordered to lie on the table.

SA 2740. Mr. REID (for Mr. BEGICH) proposed an amendment to the bill S. 1068, to reauthorize and amend the National Oceanic and Atmospheric Administration Commissioned Officer Corps Act of 2002, and for other purposes.

TEXT OF AMENDMENTS

SA 2733. Mr. PAUL submitted an amendment intended to be proposed by him to the bill S. 1963, to repeal section 403 of the Bipartisan Budget Act of 2013; which was ordered to lie on the table; as follows:

On page 1, strike lines 5 through 7 and insert the following:

(a) ADJUSTMENT OF RETIREMENT PAY.—Section 403 of the Bipartisan Budget Act of 2013 is repealed as of the date of the enactment of such Act.

(b) CONFORMING AMENDMENT.—Title X of the Department of Defense Appropriations Act, 2014 (division C of Public Law 113–76) is hereby repealed.

SEC. 2. LIMITATIONS ON FOREIGN ASSISTANCE.

(a) FOREIGN ASSISTANCE TO THE GOVERNMENT OF EGYPT.—

(1) RESTRICTIONS ON ASSISTANCE UNDER SECTION 7008.—In accordance with section 7008 of the Department of State, Foreign Operations, and Related Programs Act, 2012 (division I of Public Law 112–74; 125 Stat. 1195), the United States Government, including the Department of State, shall refrain from providing to the Government of Egypt the assistance restricted under such section.

(2) ADDITIONAL RESTRICTIONS.—In addition to the restrictions referred to in paragraph (1), the following restrictions shall be in effect with respect to United States assistance to the Government of Egypt:

(A) Deliveries of defense articles currently slated for transfer to Egyptian Ministry of Defense (MOD) and Ministry of Interior (MOI) shall be suspended until the President certifies to Congress that democratic national elections have taken place in Egypt followed by a peaceful transfer of power.

(B) Provision of defense services to Egyptian MOD and MOI shall be halted immediately until the President certifies to Congress that democratic national elections have taken place in Egypt followed by a peaceful transfer of power.

(C) Processing of draft Letters of Offer and Acceptance (LOAs) for future arms sales to Egyptian MOD and MOI entities shall be halted until the President certifies to Congress that democratic national elections have taken place in Egypt followed by a peaceful transfer of power.

(D) All costs associated with the delays in deliveries and provision of services required under subparagraphs (A) through (C) shall be borne by the Government of Egypt.

(b) OTHER LIMITATIONS ON FOREIGN ASSISTANCE.—

(1) PROHIBITION.—No amounts may be obligated or expended to provide any direct United States assistance, loan guarantee, or debt relief to a Government described under paragraph (2).

(2) COVERED GOVERNMENTS.—The Governments referred to in paragraph (1) are as follows:

(A) The Government of Libya.

(B) The Government of Pakistan.

(C) The Government of a host country of a United States diplomatic facility on the list submitted to Congress pursuant to paragraph (3).

(3) DETERMINATION BY SECRETARY.—The Secretary of State shall submit to Congress a list of all United States diplomatic facilities attacked, trespassed upon, breached, or attempted to be attacked, trespassed upon, or breached on or after September 1, 2012, not later than 5 days after the date of enactment of this Act and not later than 5 days after any subsequent attack, trespass, breach, or attempt.

(4) CERTIFICATION.—Beginning 90 days after the date of the enactment of this Act, the President may certify to Congress that—

(A) a Government described under paragraph (2)—

(i) is cooperating or has cooperated fully with investigations into an attack, trespass, breach, or attempted attack, trespass, or breach;

(ii) has arrested or facilitated the arrest of, and if requested has permitted extradition of, all identifiable persons in such country associated with organizing, planning, or participating in the attack, trespass, breach, or attempted attack, trespass, or breach;

(iii) is facilitating or has facilitated any security improvements at United States diplomatic facilities, as requested by the United States Government; and

(iv) is taking or has taken sufficient steps to strengthen and improve reliability of local security in order to prevent any future attack, trespass, or breach; and

(B) all identifiable persons associated with organizing, planning, or participating in the attack, trespass, breach, or attempted attack, trespass, or breach—

(i) have been identified by the Federal Bureau of Investigations, the Bureau of Diplomatic Security, or other United States law enforcement entity; and

(ii) are in United States custody.

(5) REQUEST TO SUSPEND PROHIBITION ON FOREIGN ASSISTANCE.—Upon submitting a

certification under paragraph (4) with respect to a Government described under paragraph (2), the President may submit a request to Congress to suspend the prohibition on foreign assistance to the Government.

(c) EFFECTIVE DATE.—This section takes effect on the date of the enactment of this Act and applies with respect to funds made available to any Federal department or agency beginning with fiscal year 2015.

SEC. 3. AUTHORIZATION TO SELL LAND.

(a) AUTHORIZATION.—For each of fiscal years 2014 through 2024 or when the authority under this section is terminated in accordance with subsection (d), whichever occurs first, subject to valid existing rights, the Secretary of the Interior or the Secretary of Agriculture, as the case may be, shall offer for competitive sale by auction all right, title, and interest, to the extent provided in subsection (b)(2), in and to the following:

(1) Eight percent of the Federal land managed by the Bureau of Land Management.

(2) Eight percent of the National Forest System land.

(b) TERMS AND CONDITIONS.—

(1) CONFIGURATION OF LAND.—The Secretary concerned shall configure the land to be sold to maximize marketability or achieve management objectives, and may prescribe such terms and conditions on the land sales authorized by this Act as the Secretary deems in the public interest.

(2) MINERAL RIGHTS.—For each fiscal year, the Secretary concerned may include in the sale of land under subsection (a) the mineral rights to such land for not more than 50 percent of the total acreage sold under subsection (a) by that Secretary, if the Secretary determines that such inclusion is likely to maximize marketability.

(c) PROCEEDS FROM THE SALE OF LAND.—All proceeds from the sale of land under this section shall be deposited into the Treasury and applied—

(1) to reduce the annual Federal budget deficit for the fiscal year in which the sums are received, except as provided in paragraph (2); and

(2) if there is no annual Federal budget deficit for the fiscal year in which the sums are received, to reduce the outstanding Federal debt.

(d) TERMINATION OF AUTHORITY.—The authority under this section shall terminate when the proceeds deposited into the Treasury under subsection (c) equal $3,500,000 or at the end of fiscal year 2024, whichever occurs first.

SA 2734. Mr. HELLER submitted an amendment intended to be proposed by him to the bill S. 1963, to repeal section 403 of the Bipartisan Budget Act of 2013; which was ordered to lie on the table; as follows:

Strike all after the enacting clause and insert the following:

SECTION 1. REPEAL OF CERTAIN REDUCTIONS MADE BY THE BIPARTISAN BUDGET ACT OF 2013.

(a) ADJUSTMENT OF RETIREMENT PAY.—Section 403 of the Bipartisan Budget Act of 2013 is repealed as of the date of the enactment of such Act.

(b) CONFORMING AMENDMENT.—Title X of the Department of Defense Appropriations Act, 2014 (division C of Public Law 113–76) is hereby repealed.

SEC. 2. REDUCTION OF NONMEDICARE, NONDEFENSE DIRECT SPENDING.

Section 251A of the Balanced Budget and Emergency Deficit Control Act of 1985 (2 U.S.C. 901a) is amended by adding at the end the following:

''(11) ADDITIONAL REDUCTION OF NONMEDICARE, NONDEFENSE DIRECT SPENDING.—

''(A) IN GENERAL.—For each of fiscal years 2015 through 2023, in addition to the reduction in direct spending under paragraph (6), on the date specified in paragraph (2), OMB shall prepare and the President shall order a sequestration, effective upon issuance, reducing the spending described in subparagraph (B) by the uniform percentage necessary to reduce such spending for the fiscal year by $757,000,000.

''(B) SPENDING COVERED.—The spending described in this subparagraph is spending that is—

''(i) nonexempt direct spending;

''(ii) not spending for the Medicare programs specified in section 256(d); and

''(iii) within the revised nonsecurity category.''.

SA 2735. Mrs. SHAHEEN (for herself, Mr. BLUMENTHAL, Mr. COONS, Ms. HIRONO, Mr. UDALL of Colorado, Mr. MERKLEY, Mr. MARKEY, Mr. MANCHIN, Mr. UDALL of New Mexico, Mr. KAINE, Ms. LANDRIEU, Mr. SCHATZ, Mr. FRANKEN, and Mr. WARNER) submitted an amendment intended to be proposed by her to the bill S. 1963, to repeal section 403 of the Bipartisan Budget Act of 2013; which was ordered to lie on the table; as follows:

At the end, add the following:

SEC. 2. TREATMENT OF FOREIGN CORPORATIONS MANAGED AND CONTROLLED IN THE UNITED STATES AS DOMESTIC CORPORATIONS.

(a) IN GENERAL.—Section 7701 of the Internal Revenue Code of 1986 is amended by redesignating subsection (p) as subsection (q) and by inserting after subsection (o) the following new subsection:

''(p) CERTAIN CORPORATIONS MANAGED AND CONTROLLED IN THE UNITED STATES TREATED AS DOMESTIC FOR INCOME TAX.—

''(1) IN GENERAL.—Notwithstanding subsection (a)(4), in the case of a corporation described in paragraph (2) if—

''(A) the corporation would not otherwise be treated as a domestic corporation for purposes of this title, but

''(B) the management and control of the corporation occurs, directly or indirectly, primarily within the United States,

then, solely for purposes of chapter 1 (and any other provision of this title relating to chapter 1), the corporation shall be treated as a domestic corporation.

''(2) CORPORATION DESCRIBED.—

''(A) IN GENERAL.—A corporation is described in this paragraph if—

''(i) the stock of such corporation is regularly traded on an established securities market, or

''(ii) the aggregate gross assets of such corporation (or any predecessor thereof), including assets under management for investors, whether held directly or indirectly, at any time during the taxable year or any preceding taxable year is $50,000,000 or more.

''(B) GENERAL EXCEPTION.—A corporation shall not be treated as described in this paragraph if—

''(i) such corporation was treated as a corporation described in this paragraph in a preceding taxable year,

''(ii) such corporation—

''(I) is not regularly traded on an established securities market, and

''(II) has, and is reasonably expected to continue to have, aggregate gross assets (including assets under management for investors, whether held directly or indirectly) of less than $50,000,000, and

''(iii) the Secretary grants a waiver to such corporation under this subparagraph.

''(3) MANAGEMENT AND CONTROL.—

''(A) IN GENERAL.—The Secretary shall prescribe regulations for purposes of determining cases in which the management and control of a corporation is to be treated as occurring primarily within the United States.

''(B) EXECUTIVE OFFICERS AND SENIOR MANAGEMENT.—Such regulations shall provide that—

''(i) the management and control of a corporation shall be treated as occurring primarily within the United States if substantially all of the executive officers and senior management of the corporation who exercise day-to-day responsibility for making decisions involving strategic, financial, and operational policies of the corporation are located primarily within the United States, and

''(ii) individuals who are not executive officers and senior management of the corporation (including individuals who are officers or employees of other corporations in the same chain of corporations as the corporation) shall be treated as executive officers and senior management if such individuals exercise the day-to-day responsibilities of the corporation described in clause (i).

''(C) CORPORATIONS PRIMARILY HOLDING INVESTMENT ASSETS.—Such regulations shall also provide that the management and control of a corporation shall be treated as occurring primarily within the United States if—

''(i) the assets of such corporation (directly or indirectly) consist primarily of assets being managed on behalf of investors, and

''(ii) decisions about how to invest the assets are made in the United States.''.

(b) EFFECTIVE DATE.—The amendments made by this section shall apply to taxable years beginning on or after the date which is 2 years after the date of the enactment of this Act, whether or not regulations are issued under section 7701(p)(3) of the Internal Revenue Code of 1986, as added by this section.

SA 2736. Mr. HOEVEN submitted an amendment intended to be proposed by him to the bill S. 1963, to repeal section 403 of the Bipartisan Budget Act of 2013; which was ordered to lie on the table; as follows:

At the end, add the following:

SEC. 2. EXTENSION OF DIRECT SPENDING REDUCTION FOR FISCAL YEAR 2024.

Section 251A(6)(B) of the Balanced Budget and Emergency Deficit Control Act of 1985 (2 U.S.C. 901a(6)(B)) is amended by striking ''and for fiscal year 2023'' and inserting '', for fiscal year 2023, and for fiscal year 2024''.

SA 2737. Mr. LEE submitted an amendment intended to be proposed by him to the bill S. 1963, to repeal section 403 of the Bipartisan Budget Act of 2013; which was ordered to lie on the table; as follows:

At the end, add the following:

SEC. 2. REPEAL OF DEPARTMENT OF DEFENSE GOAL REGARDING USE OF RENEWABLE ENERGY TO MEET ELECTRICITY NEEDS.

Section 2911 of title 10, United States Code, is amended by striking subsection (e).

SA 2738. Mr. PORTMAN (for himself and Mr. COATS) submitted an amendment intended to be proposed by him to the bill S. 1963, to repeal section 403 of the Bipartisan Budget Act of 2013; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

TITLE II—EMERGENCY UNEMPLOYMENT COMPENSATION EXTENSION

SEC. 201. SHORT TITLE.

This title may be cited as the ''Emergency Unemployment Compensation Extension Act of 2014''.

SEC. 202. EXTENSION OF EMERGENCY UNEMPLOYMENT COMPENSATION PROGRAM.

(a) EXTENSION.—Section 4007(a)(2) of the Supplemental Appropriations Act, 2008 (Public Law 110–252; 26 U.S.C. 3304 note) is amended by striking ''January 1, 2014'' and inserting ''April 1, 2014''.

(b) FUNDING.—Section 4004(e)(1) of the Supplemental Appropriations Act, 2008 (Public Law 110–252; 26 U.S.C. 3304 note) is amended—

(1) in subparagraph (I), by striking ''and'' at the end;

(2) in subparagraph (J), by inserting ''and'' at the end; and

(3) by inserting after subparagraph (J) the following:

''(K) the amendment made by section 202(a) of the Emergency Unemployment Compensation Extension Act of 2014;''.

(c) EFFECTIVE DATE.—The amendments made by this section shall take effect as if included in the enactment of the American Taxpayer Relief Act of 2012 (Public Law 112–240).

SEC. 203. TEMPORARY EXTENSION OF EXTENDED BENEFIT PROVISIONS.

(a) IN GENERAL.—Section 2005 of the Assistance for Unemployed Workers and Struggling Families Act, as contained in Public Law 111–5 (26 U.S.C. 3304 note), is amended—

(1) by striking ''December 31, 2013'' each place it appears and inserting ''March 31, 2014''; and

(2) in subsection (c), by striking ''June 30, 2014'' and inserting ''September 30, 2014''.

(b) EXTENSION OF MATCHING FOR STATES WITH NO WAITING WEEK.—Section 5 of the Unemployment Compensation Extension Act of 2008 (Public Law 110–449; 26 U.S.C. 3304 note) is amended by striking ''June 30, 2014'' and inserting ''September 30, 2014''.

(c) EXTENSION OF MODIFICATION OF INDICATORS UNDER THE EXTENDED BENEFIT PROGRAM.—Section 203 of the Federal-State Extended Unemployment Compensation Act of 1970 (26 U.S.C. 3304 note) is amended—

(1) in subsection (d), by striking ''December 31, 2013'' and inserting ''March 31, 2014''; and

(2) in subsection (f)(2), by striking ''December 31, 2013'' and inserting ''March 31, 2014''.

(d) EFFECTIVE DATE.—The amendments made by this section shall take effect as if included in the enactment of the American Taxpayer Relief Act of 2012 (Public Law 112–240).

SEC. 204. EXTENSION OF FUNDING FOR REEMPLOYMENT SERVICES AND REEMPLOYMENT AND ELIGIBILITY ASSESSMENT ACTIVITIES.

(a) IN GENERAL.—Section 4004(c)(2)(A) of the Supplemental Appropriations Act, 2008 (Public Law 110–252; 26 U.S.C. 3304 note) is amended by striking ''through fiscal year 2014'' and inserting ''through the first quarter of fiscal year 2015''.

(b) EFFECTIVE DATE.—The amendments made by this section shall take effect as if included in the enactment of the American Taxpayer Relief Act of 2012 (Public Law 112–240).

SEC. 205. ADDITIONAL EXTENDED UNEMPLOYMENT BENEFITS UNDER THE RAILROAD UNEMPLOYMENT INSURANCE ACT.

(a) EXTENSION.—Section 2(c)(2)(D)(iii) of the Railroad Unemployment Insurance Act (45 U.S.C. 352(c)(2)(D)(iii)) is amended—

(1) by striking ''June 30, 2013'' and inserting ''September 30, 2013''; and

(2) by striking ''December 31, 2013'' and inserting ''March 31, 2014''.

(b) CLARIFICATION ON AUTHORITY TO USE FUNDS.—Funds appropriated under either the first or second sentence of clause (iv) of section 2(c)(2)(D) of the Railroad Unemployment Insurance Act shall be available to cover the cost of additional extended unemployment benefits provided under such section 2(c)(2)(D) by reason of the amendments made by subsection (a) as well as to cover the cost of such benefits provided under such section 2(c)(2)(D), as in effect on the day before the date of enactment of this Act.

(c) FUNDING FOR ADMINISTRATION.—Out of any funds in the Treasury not otherwise appropriated, there are appropriated to the Railroad Retirement Board $62,500 for administrative expenses associated with the payment of additional extended unemployment benefits provided under section 2(c)(2)(D) of the Railroad Unemployment Insurance Act by reason of the amendments made by subsection (a), to remain available until expended.

SEC. 206. FLEXIBILITY FOR UNEMPLOYMENT PROGRAM AGREEMENTS.

(a) FLEXIBILITY.—

(1) IN GENERAL.—Subsection (g) of section 4001 of the Supplemental Appropriations Act, 2008 (Public Law 110–252; 26 U.S.C. 3304 note) shall not apply with respect to a State that has enacted a law before December 1, 2013, that, upon taking effect, would violate such subsection.

(2) EFFECTIVE DATE.—Paragraph (1) is effective with respect to weeks of unemployment beginning on or after December 29, 2013.

(b) PERMITTING A SUBSEQUENT AGREEMENT.—Nothing in title IV of the Supplemental Appropriations Act, 2008 (Public Law 110–252; 26 U.S.C. 3304 note) shall preclude a State whose agreement under such title was terminated from entering into a subsequent agreement under such title on or after the date of the enactment of this Act if the State, taking into account the application of subsection (a), would otherwise meet the requirements for an agreement under such title.

SEC. 207. ENDING UNEMPLOYMENT PAYMENTS TO JOBLESS MILLIONAIRES AND BILLIONAIRES.

(a) PROHIBITION.—Notwithstanding any other provision of law, no Federal funds may be used to make payments of unemployment compensation (including such compensation under the Federal-State Extended Compensation Act of 1970 and the emergency unemployment compensation program under title IV of the Supplemental Appropriations Act, 2008) to an individual whose adjusted gross income in the preceding year was equal to or greater than $1,000,000.

(b) COMPLIANCE.—Unemployment Insurance applications shall include a form or procedure for an individual applicant to certify the individual's adjusted gross income was not equal to or greater than $1,000,000 in the preceding year.

(c) AUDITS.—The certifications required by subsection (b) shall be auditable by the U.S. Department of Labor or the U.S. Government Accountability Office.

(d) STATUS OF APPLICANTS.—It is the duty of the states to verify the residency, employment, legal, and income status of applicants for Unemployment Insurance and no Federal funds may be expended for purposes of determining an individual's eligibility under this Act.

(e) EFFECTIVE DATE.—The prohibition under subsection (a) shall apply to weeks of unemployment beginning on or after the date of the enactment of this Act.

SEC. 208. FUNDING STABILIZATION.

(a) FUNDING STABILIZATION UNDER THE INTERNAL REVENUE CODE.—The table in subclause (II) of section 430(h)(2)(C)(iv) of the Internal Revenue Code of 1986 is amended to read as follows:

''If the calendar year is:	The applicable minimum percentage is:	The applicable maximum percentage is:
2012, 2013, 2014, 2015, or 2016.	90%	110%
2017	85%	115%
2018	80%	120%
2019	75%	125%
After 2019	70%	130%''.

(b) FUNDING STABILIZATION UNDER ERISA.—

(1) IN GENERAL.—The table in subclause (II) of section 303(h)(2)(C)(iv) of the Employee Retirement Income Security Act of 1974 is amended to read as follows:

''If the calendar year is:	The applicable minimum percentage is:	The applicable maximum percentage is:
2012, 2013, 2014, 2015, or 2016.	90%	110%
2017	85%	115%
2018	80%	120%
2019	75%	125%
After 2019	70%	130%''.

(2) CONFORMING AMENDMENT.—

(A) IN GENERAL.—Clause (ii) of section 101(f)(2)(D) of such Act is amended by striking ''2015'' and inserting ''2019''.

(B) STATEMENTS.—The Secretary of Labor shall modify the statements required under subclauses (I) and (II) of section 101(f)(2)(D)(i) of such Act to conform to the amendments made by this section.

(c) STABILIZATION NOT TO APPLY FOR PURPOSES OF CERTAIN ACCELERATED BENEFIT DISTRIBUTION RULES.—

(1) INTERNAL REVENUE CODE OF 1986.—The second sentence of paragraph (2) of section 436(d) of the Internal Revenue Code of 1986 is amended by striking ''of such plan'' and inserting ''of such plan (determined by not taking into account any adjustment of segment rates under section 430(h)(2)(C)(iv))''.

(2) EMPLOYEE RETIREMENT INCOME SECURITY ACT OF 1974.—The second sentence of subparagraph (B) of section 206(g)(3) of the Employee Retirement Income Security Act of 1974 (29 U.S.C. 1056(g)(3)(B)) is amended by striking ''of such plan'' and inserting ''of such plan (determined by not taking into account any adjustment of segment rates under section 303(h)(2)(C)(iv))''.

(3) EFFECTIVE DATE.—

(A) IN GENERAL.—Except as provided in subparagraph (B), the amendments made by this subsection shall apply to plan years beginning after December 31, 2014.

(B) COLLECTIVELY BARGAINED PLANS.—In the case of a plan maintained pursuant to 1 or more collective bargaining agreements, the amendments made by this subsection shall apply to plan years beginning after December 31, 2015.

(4) PROVISIONS RELATING TO PLAN AMENDMENTS.—

(A) IN GENERAL.—If this paragraph applies to any amendment to any plan or annuity contract, such plan or contract shall be treated as being operated in accordance with the terms of the plan during the period described in subparagraph (B)(ii).

(B) AMENDMENTS TO WHICH PARAGRAPH APPLIES.—

(i) IN GENERAL.—This paragraph shall apply to any amendment to any plan or annuity contract which is made—

(I) pursuant to the amendments made by this subsection, or pursuant to any regulation issued by the Secretary of the Treasury

or the Secretary of Labor under any provision as so amended, and

(II) on or before the last day of the first plan year beginning on or after January 1, 2016, or such later date as the Secretary of the Treasury may prescribe.

(ii) CONDITIONS.—This subsection shall not apply to any amendment unless, during the period—

(I) beginning on the date that the amendments made by this subsection or the regulation described in clause (i)(I) takes effect (or in the case of a plan or contract amendment not required by such amendments or such regulation, the effective date specified by the plan), and

(II) ending on the date described in clause (i)(II) (or, if earlier, the date the plan or contract amendment is adopted),

the plan or contract is operated as if such plan or contract amendment were in effect, and such plan or contract amendment applies retroactively for such period.

(C) ANTI-CUTBACK RELIEF.—A plan shall not be treated as failing to meet the requirements of section 204(g) of the Employee Retirement Income Security Act of 1974 and section 411(d)(6) of the Internal Revenue Code of 1986 solely by reason of a plan amendment to which this paragraph applies.

(d) MODIFICATION OF FUNDING TARGET DETERMINATION PERIODS.—

(1) INTERNAL REVENUE CODE OF 1986.—Clause (i) of section 430(h)(2)(B) of the Internal Revenue Code of 1986 is amended by striking ''the first day of the plan year'' and inserting ''the valuation date for the plan year''.

(2) EMPLOYEE RETIREMENT INCOME SECURITY ACT OF 1974.—Clause (i) of section 303(h)(2)(B) of the Employee Retirement Income Security Act of 1974 (29 U.S.C. 1083(h)(2)(B)(i)) is amended by striking ''the first day of the plan year'' and inserting ''the valuation date for the plan year''.

(e) EFFECTIVE DATE.—

(1) IN GENERAL.—The amendments made by subsections (a), (b), and (d) shall apply with respect to plan years beginning after December 31, 2012.

(2) ELECTIONS.—A plan sponsor may elect not to have the amendments made by subsections (a), (b), and (d) apply to any plan year beginning before January 1, 2014, either (as specified in the election)—

(A) for all purposes for which such amendments apply, or

(B) solely for purposes of determining the adjusted funding target attainment percentage under sections 436 of the Internal Revenue Code of 1986 and 206(g) of the Employee Retirement Income Security Act of 1974 for such plan year.

A plan shall not be treated as failing to meet the requirements of section 204(g) of such Act and section 411(d)(6) of such Code solely by reason of an election under this paragraph.

SEC. 209. REQUIREMENT THAT INDIVIDUALS RECEIVING EMERGENCY UNEMPLOYMENT COMPENSATION BE ACTIVELY ENGAGED IN A SYSTEMATIC AND SUSTAINED EFFORT TO OBTAIN SUITABLE WORK.

(a) IN GENERAL.—Subsection (h) of section 4001 of the Supplemental Appropriations Act, 2008 (Public Law 110-252; 26 U.S.C. 3304 note) is amended to read as follows:

''(h) ACTIVELY SEEKING WORK.—

''(1) IN GENERAL.—For purposes of subsection (b)(4), payment of emergency unemployment compensation shall not be made to any individual for any week of unemployment—

''(A) during which the individual fails to accept any offer of suitable work (as defined in paragraph (3)) or fails to apply for any suitable work to which the individual was referred by the State agency; or

''(B) during which the individual fails to actively engage in seeking work, unless such individual is not actively engaged in seeking work because such individual is, as determined in accordance with State law—

''(i) before any court of the United States or any State pursuant to a lawfully issued summons to appear for jury duty (as such term may be defined by the Secretary); or

''(ii) hospitalized for treatment of an emergency or a life-threatening condition (as such term may be defined by the Secretary),

if such exemptions in clauses (i) and (ii) apply to recipients of regular benefits, and the State chooses to apply such exemptions for recipients of emergency unemployment benefits.

''(2) PERIOD OF INELIGIBILITY.—If any individual is ineligible for emergency unemployment compensation for any week by reason of a failure described in subparagraph (A) or (B) of paragraph (1), the individual shall be ineligible to receive emergency unemployment compensation for any week which begins during a period which—

''(A) begins with the week following the week in which such failure occurs; and

''(B) does not end until such individual has been employed during at least 4 weeks which begin after such failure and the total of the remuneration earned by the individual for being so employed is not less than the product of 4 multiplied by the individual's average weekly benefit amount for the individual's benefit year.

''(3) SUITABLE WORK.—For purposes of this subsection, the term 'suitable work' means, with respect to any individual, any work which is within such individual's capabilities, except that, if the individual furnishes evidence satisfactory to the State agency that such individual's prospects for obtaining work in his customary occupation within a reasonably short period are good, the determination of whether any work is suitable work with respect to such individual shall be made in accordance with the applicable State law.

''(4) EXCEPTION.—Extended compensation shall not be denied under subparagraph (A) of paragraph (1) to any individual for any week by reason of a failure to accept an offer of, or apply for, suitable work—

''(A) if the gross average weekly remuneration payable to such individual for the position does not exceed the sum of—

''(i) the individual's average weekly benefit amount for his benefit year, plus

''(ii) the amount (if any) of supplemental unemployment compensation benefits (as defined in section 501(c)(17)(D) of the Internal Revenue Code of 1986) payable to such individual for such week;

''(B) if the position was not offered to such individual in writing and was not listed with the State employment service;

''(C) if such failure would not result in a denial of compensation under the provisions of the applicable State law to the extent that such provisions are not inconsistent with the provisions of paragraphs (3) and (5); or

''(D) if the position pays wages less than the higher of—

''(i) the minimum wage provided by section 6(a)(1) of the Fair Labor Standards Act of 1938, without regard to any exemption; or

''(ii) any applicable State or local minimum wage.

''(5) ACTIVELY ENGAGED IN SEEKING WORK.—For purposes of this subsection, an individual shall be treated as actively engaged in seeking work during any week if—

''(A) the individual has engaged in a systematic and sustained effort to obtain work during such week, and

''(B) the individual provides tangible evidence to the State agency that he has engaged in such an effort during such week.

''(6) REFERRAL.—The State agency shall provide for referring applicants for emergency unemployment benefits to any suitable work to which paragraph (4) would not apply.''.

(b) EFFECTIVE DATE.—The amendments made by this section shall take effect on the date of the enactment of this Act.

SEC. 210. REDUCTION IN BENEFITS BASED ON RECEIPT OF UNEMPLOYMENT COMPENSATION.

(a) IN GENERAL.—Title II of the Social Security Act (42 U.S.C. 401 et seq.) is amended by inserting after section 224 the following new section:

''REDUCTION IN BENEFITS BASED ON RECEIPT OF UNEMPLOYMENT COMPENSATION

''SEC. 224A (a)(1) If for any month prior to the month in which an individual attains retirement age (as defined in section 216(l)(1))—

''(A) such individual is entitled to benefits under section 223, and

''(B) such individual is entitled for such month to unemployment compensation,

the total of the individual's benefits under section 223 for such month and of any benefits under section 202 for such month based on the individual's wages and self-employment income shall be reduced (but not below zero) by the total amount of unemployment compensation received by such individual for such month.

''(2) The reduction of benefits under paragraph (1) shall also apply to any past-due benefits under section 223 for any month in which the individual was entitled to—

''(A) benefits under such section, and

''(B) unemployment compensation.

''(3) The reduction of benefits under paragraph (1) shall not apply to any benefits under section 223 for any month, or any benefits under section 202 for such month based on the individual's wages and self-employment income for such month, if the individual is entitled for such month to unemployment compensation following a period of trial work (as described in section 222(c)(1), participation in the Ticket to Work and Self-Sufficiency Program established under section 1148, or participation in any other program that is designed to encourage an individual entitled to benefits under section 223 or 202 to work.

''(b) If any unemployment compensation is payable to an individual on other than a monthly basis (including a benefit payable as a lump sum to the extent that it is a commutation of, or a substitute for, such periodic compensation), the reduction under this section shall be made at such time or times and in such amounts as the Commissioner of Social Security (referred to in this section as the 'Commissioner') determines will approximate as nearly as practicable the reduction prescribed by subsection (a).

''(c) Reduction of benefits under this section shall be made after any applicable reductions under section 203(a) and section 224, but before any other applicable deductions under section 203.

''(d)(1) Subject to paragraph (2), if the Commissioner determines that an individual may be eligible for unemployment compensation which would give rise to a reduction of benefits under this section, the Commissioner may require, as a condition of certification for payment of any benefits under section 223 to any individual for any month and of any benefits under section 202 for such month based on such individual's wages and self-employment income, that such individual certify—

''(A) whether the individual has filed or intends to file any claim for unemployment compensation, and

''(B) if the individual has filed a claim, whether there has been a decision on such claim.

''(2) For purposes of paragraph (1), the Commissioner may, in the absence of evidence to the contrary, rely upon a certification by the individual that the individual has not filed and does not intend to file such a claim, or that the individual has so filed and no final decision thereon has been made, in certifying benefits for payment pursuant to section 205(i).

''(e) Whenever a reduction in total benefits based on an individual's wages and self-employment income is made under this section for any month, each benefit, except the disability insurance benefit, shall first be proportionately decreased, and any excess of such reduction over the sum of all such benefits other than the disability insurance benefit shall then be applied to such disability insurance benefit.

''(f)(1) Notwithstanding any other provision of law, the head of any Federal agency shall provide such information within its possession as the Commissioner may require for purposes of making a timely determination of the amount of the reduction, if any, required by this section in benefits payable under this title, or verifying other information necessary in carrying out the provisions of this section.

''(2) The Commissioner is authorized to enter into agreements with States, political subdivisions, and other organizations that administer unemployment compensation, in order to obtain such information as the Commissioner may require to carry out the provisions of this section.

''(g) For purposes of this section, the term 'unemployment compensation' has the meaning given that term in section 85(b) of the Internal Revenue Code of 1986, and the total amount of unemployment compensation to which an individual is entitled shall be determined prior to any applicable reduction under State law based on the receipt of benefits under section 202 or 223.''.

(b) CONFORMING AMENDMENT.—Section 224(a) of the Social Security Act (42 U.S.C. 424a(a)) is amended, in the matter preceding paragraph (1), by striking ''the age of 65'' and inserting ''retirement age (as defined in section 216(l)(1))''.

(c) EFFECTIVE DATE.—The amendments made by subsections (a) and (b) shall apply to benefits payable for months beginning on or after the date that is 12 months after the date of enactment of this section.

SEC. 211. EXTENSION OF NONMEDICARE, NONDEFENSE DIRECT SPENDING REDUCTIONS.

Section 251A(6) of the Balanced Budget and Emergency Deficit Control Act of 1985 (2 U.S.C. 901a(6)) is amended by adding at the end the following:

''(D)(i) On the date OMB issues its sequestration preview report for fiscal year 2024, pursuant to section 254(c), the President shall order a sequestration, effective upon issuance such that the percentage reduction for spending described in clause (ii) is the same percent as the percentage reduction for nonexempt direct spending for nondefense functions for fiscal year 2021 calculated under paragraph (4)(B).

''(ii) The spending described in this clause is spending that is—

''(I) nonexempt direct spending;

''(II) not spending for the Medicare programs specified in section 256(d); and

''(III) within the revised nonsecurity category.''.

SA 2739. Mr. VITTER submitted an amendment intended to be proposed by him to the bill S. 1963, to repeal section 403 of the Bipartisan Budget Act of 2013; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. _____. MAJOR MEDICAL FACILITY LEASES.

(a) AUTHORIZATION.—The Secretary of Veterans Affairs may carry out the following major medical facility leases at the locations specified, and in an amount for each lease not to exceed the amount shown for such location (not including any estimated cancellation costs):

(1) For a clinical research and pharmacy coordinating center, Albuquerque, New Mexico, an amount not to exceed $9,560,000.

(2) For a community-based outpatient clinic, Brick, New Jersey, an amount not to exceed $7,280,000.

(3) For a new primary care and dental clinic annex, Charleston, South Carolina, an amount not to exceed $7,070,250.

(4) For the Cobb County community-based Outpatient Clinic, Cobb County, Georgia, an amount not to exceed $6,409,000.

(5) For the Leeward Outpatient Healthcare Access Center, Honolulu, Hawaii, including a co-located clinic with the Department of Defense and the co-location of the Honolulu Regional Office of the Veterans Benefits Administration and the Kapolei Vet Center of the Department of Veterans Affairs, an amount not to exceed $15,887,370.

(6) For a community-based outpatient clinic, Johnson County, Kansas, an amount not to exceed $2,263,000.

(7) For a replacement community-based outpatient clinic, Lafayette, Louisiana, an amount not to exceed $2,996,000.

(8) For a community-based outpatient clinic, Lake Charles, Louisiana, an amount not to exceed $2,626,000.

(9) For outpatient clinic consolidation, New Port Richey, Florida, an amount not to exceed $11,927,000.

(10) For an outpatient clinic, Ponce, Puerto Rico, an amount not to exceed $11,535,000.

(11) For lease consolidation, San Antonio, Texas, an amount not to exceed $19,426,000.

(12) For a community-based outpatient clinic, San Diego, California, an amount not to exceed $11,946,100.

(13) For an outpatient clinic, Tyler, Texas, an amount not to exceed $4,327,000.

(14) For the Errera Community Care Center, West Haven, Connecticut, an amount not to exceed $4,883,000.

(15) For the Worcester community-based Outpatient Clinic, Worcester, Massachusetts, an amount not to exceed $4,855,000.

(16) For the expansion of a community-based outpatient clinic, Cape Girardeau, Missouri, an amount not to exceed $4,232,060.

(17) For a multispecialty clinic, Chattanooga, Tennessee, an amount not to exceed $7,069,000.

(18) For the expansion of a community-based outpatient clinic, Chico, California, an amount not to exceed $4,534,000.

(19) For a community-based outpatient clinic, Chula Vista, California, an amount not to exceed $3,714,000.

(20) For a new research lease, Hines, Illinois, an amount not to exceed $22,032,000.

(21) For a replacement research lease, Houston, Texas, an amount not to exceed $6,142,000.

(22) For a community-based outpatient clinic, Lincoln, Nebraska, an amount not to exceed $7,178,400.

(23) For a community-based outpatient clinic, Lubbock, Texas, an amount not to exceed $8,554,000.

(24) For a community-based outpatient clinic consolidation, Myrtle Beach, South Carolina, an amount not to exceed $8,022,000.

(25) For a community-based outpatient clinic, Phoenix, Arizona, an amount not to exceed $20,757,000.

(26) For the expansion of a community-based outpatient clinic, Redding, California, an amount not to exceed $8,154,000.

(27) For the expansion of a community-based outpatient clinic, Tulsa, Oklahoma, an amount not to exceed $13,269,200.

(b) BUDGETARY TREATMENT OF DEPARTMENT OF VETERANS AFFAIRS MAJOR MEDICAL FACILITIES LEASES.—

(1) FINDINGS.—Congress finds the following:

(A) Title 31, United States Code, requires the Department of Veterans Affairs to record the full cost of its contractual obligation against funds available at the time a contract is executed.

(B) Office of Management and Budget Circular A–11 provides guidance to agencies in meeting the statutory requirements under title 31, United States Code, with respect to leases.

(C) For operating leases, Office of Management and Budget Circular A–11 requires the Department of Veterans Affairs to record upfront budget authority in an ''amount equal to total payments under the full term of the lease or [an] amount sufficient to cover first year lease payments plus cancellation costs''.

(2) REQUIREMENT FOR OBLIGATION OF FULL COST.—Subject to the availability of appropriations provided in advance, in exercising the authority of the Secretary of Veterans Affairs to enter into leases under subsection (a), the Secretary shall record, pursuant to section 1501 of title 31, United States Code, as the full cost of the contractual obligation at the time a contract is executed, either—

(A) an amount equal to total payments under the full term of the lease; or

(B) if the lease specifies payments to be made in the event the lease is terminated before the full term of the lease, an amount sufficient to cover the first year lease payments plus the specified cancellation costs.

(3) TRANSPARENCY.—

(A) COMPLIANCE.—Subsection (b) of section 8104 of title 38, United States Code, is amended by adding at the end the following new paragraph:

''(7) In the case of a prospectus proposing funding for a major medical facility lease, a detailed analysis of how the lease is expected to comply with Office of Management and Budget Circular A–11 and section 1341 of title 31 (commonly referred to as the 'Anti-Deficiency Act'). Any such analysis shall include the following:

''(A) An analysis of the classification of the lease as a 'lease-purchase', 'capital lease', or 'operating lease' as those terms are defined in Office of Management and Budget Circular A–11.

''(B) An analysis of the obligation of budgetary resources associated with the lease.

''(C) An analysis of the methodology used in determining the asset cost, fair market value, and cancellation costs of the lease.''.

(B) SUBMITTAL TO CONGRESS.—Such section 8104 is further amended by adding at the end the following new subsection:

''(h)(1) Not later than 30 days before entering into a major medical facility lease, the Secretary shall submit to the Committee on Veterans' Affairs of the Senate and the Committee on Veterans' Affairs of the House of Representatives—

''(A) notice of the intention of the Secretary to enter into the lease;

''(B) a copy of the proposed lease;

''(C) a description and analysis of any differences between the prospectus submitted pursuant to subsection (b) and the proposed lease; and

''(D) a scoring analysis demonstrating that the proposed lease fully complies with Office of Management and Budget Circular A–11.

''(2) Each committee described in paragraph (1) shall ensure that any information submitted to the committee under such paragraph is treated by the committee with the same level of confidentiality as is required of the Secretary by law and subject to the same statutory penalties for unauthorized disclosure or use to which the Secretary is subject.

''(3) Not later than 30 days after entering into a major medical facility lease, the Secretary shall submit to each committee described in paragraph (1) a report on any material differences between the lease that was entered into and the proposed lease described under such paragraph, including how the lease that was entered into changes the previously submitted scoring analysis described in subparagraph (D) of such paragraph.''.

(4) RULE OF CONSTRUCTION.—Nothing in this subsection, or the amendments made by this subsection, shall be construed to relieve the Department of Veterans Affairs from any statutory or regulatory obligations or requirements existing prior to the date of the enactment of this Act.

SEC. _____. ELIGIBILITY FOR CHILD TAX CREDIT.

(a) IN GENERAL.—Subsection (e) of section 24 of the Internal Revenue Code of 1986 is amended by striking ''under this section to a taxpayer'' and all that follows and inserting ''under this section to any taxpayer unless—

''(1) such taxpayer includes the taxpayer's valid identification number (as defined in section 6428(h)(2)) on the return of tax for the taxable year, and

''(2) with respect to any qualifying child, the taxpayer includes the name and taxpayer identification number of such qualifying child on such return of tax.''.

(b) EFFECTIVE DATE.—The amendment made by this section shall apply to taxable years beginning after the date of the enactment of this Act.

SA 2740. Mr. REID (for Mr. BEGICH) proposed an amendment to the bill S. 1068, to reauthorize and amend the National Oceanic and Atmospheric Administration Commissioned Officer Corps Act of 2002, and for other purposes; as follows:

At the end of title IV, add the following:

SEC. 412. TREATMENT OF COMMISSION IN COMMISSIONED OFFICER CORPS AS EMPLOYMENT IN NATIONAL OCEANIC AND ATMOSPHERIC ADMINISTRATION FOR PURPOSES OF CERTAIN HIRING DECISIONS.

(a) IN GENERAL.—Subtitle E (33 U.S.C. 3071 et seq.), as amended by this title, is further amended by adding at the end the following:

''SEC. 269A. TREATMENT OF COMMISSION IN COMMISSIONED OFFICER CORPS AS EMPLOYMENT IN ADMINISTRATION FOR PURPOSES OF CERTAIN HIRING DECISIONS.

''(a) IN GENERAL.—In any case in which the Secretary accepts an application for a position of employment with the Administration and limits consideration of applications for such position to applications submitted by individuals serving in a career or career-conditional position in the competitive service within the Administration, the Secretary shall deem an officer who has served as an officer in the commissioned officer corps for at least 3 years to be serving in a career or career-conditional position in the competitive service within the Administration for purposes of such limitation.

''(b) CAREER APPOINTMENTS.—If the Secretary selects an application submitted by an officer described in subsection (a) for a position described in such subsection, the Secretary shall give such officer a career or career-conditional appointment in the competitive service, as appropriate.

''(c) COMPETITIVE SERVICE DEFINED.—In this section, the term 'competitive service' has the meaning given the term in section 2102 of title 5, United States Code.''.

(b) CLERICAL AMENDMENT.—The table of sections in section 1 of the Act entitled ''An Act to authorize the Hydrographic Service Improvement Act of 1998, and for other purposes'' (Public Law 107–372) is amended by inserting after the item relating to section 269, as added by this title, the following new item:

''Sec. 269A. Treatment of commission in commissioned officer corps as employment in Administration for purposes of certain hiring decisions.''.

NOTICES OF HEARINGS

COMMITTEE ON RULES AND ADMINISTRATION

Mr. SCHUMER. Mr. President, I wish to announce that the Committee on Rules and Administration will meet at 10:30 a.m., on February 12, 2014, to conduct a business meeting to consider the nominations of Thomas Hicks and Myrna Perez to be members of the Election Assistance Commission.

COMMITTEE ON ENERGY AND NATURAL RESOURCES

Mr. WYDEN. Mr. President, I would like to announce that the Committee on Energy and Natural Resources will meet on February 13, 2014, at 10 a.m., in room SD–366 of the Dirksen Senate Office Building. The purpose of the Business Meeting is to consider the following nominations.

Rhea S. Suh, to be the Assistant Secretary for Fish and Wildlife and Parks; and Janice M. Schneider, to be an Assistance Secretary of the Interior, Land and Minerals Management.

Because of the limited time available for the hearing, witnesses may testify by invitation only. However, those wishing to submit written testimony for the hearing record should send it to the Committee on Energy and Natural Resources, United States Senate, Washington, DC 20510–6150, or by email to sam_fowler@energy.senate.gov.

For further information, please contact Sam Fowler at (202) 224–7571.

AUTHORITY FOR COMMITTEES TO MEET

COMMITTEE ON ARMED SERVICES

Ms. STABENOW. Mr. President, I ask unanimous consent that the Committee on Armed Services be authorized to meet during the session of the Senate on February 11, 2014, at 9:30 a.m.

The PRESIDING OFFICER. Without objection, it is so ordered.

COMMITTEE ON FOREIGN RELATIONS

Ms. STABENOW. Mr. President, I ask unanimous consent that the Committee on Foreign Relations be authorized to meet during the session of the Senate on February 11, 2014, at 10 a.m., to conduct a hearing entitled ''Prospects for Democratic Reconciliation and Workers' Rights in Bangladesh.''

The PRESIDING OFFICER. Without objection, it is so ordered.

COMMITTEE ON HEALTH, EDUCATION, LABOR, AND PENSIONS

Ms. STABENOW. Mr. President, I ask unanimous consent that the Committee on Health, Education, Labor, and Pensions be authorized to meet during the session of the Senate on February 11, 2014, at 10 a.m., in room SD–430 of the Dirksen Senate Office Building.

The PRESIDING OFFICER. Without objection, it is so ordered.

COMMITTEE ON THE JUDICIARY

Ms. STABENOW. Mr. President, I ask unanimous consent that the Committee on the Judiciary be authorized to meet during the session of the Senate on February 11, 2014, at 9 a.m., in room SD–226 of the Dirksen Senate Office Building, to conduct a hearing entitled ''Nominations.''

The PRESIDING OFFICER. Without objection, it is so ordered.

SELECT COMMITTEE ON INTELLIGENCE

Ms. STABENOW. Mr. President, I ask unanimous consent that the Select Committee on Intelligence be authorized to meet during the session of the Senate on February 11, 2014, at 2:30 p.m.

The PRESIDING OFFICER. Without objection, it is so ordered.

PRIVILEGES OF THE FLOOR

Mr. BLUMENTHAL. Mr. President, I ask unanimous consent that Margaret Taylor, a detailee from the State Department to the Senate Foreign Relations Committee, be granted floor privileges today in anticipation of votes on nominations and for the rest of the 113th Congress in order to assist with matters related to the work of the committee.

The PRESIDING OFFICER. Without objection, it is so ordered.

UNANIMOUS CONSENT REQUEST—EXECUTIVE CALENDAR

Mr. REID. I ask unanimous consent that at 11 a.m. on Wednesday, February 12, 2014, the Senate proceed to executive session to consider the following nominations: Calendar Nos. 525, 595, 527, and 529; that there be 30 minutes for debate divided in the usual form; that upon the use or yielding back of time, the Senate proceed to vote without intervening action or debate on the nominations in the order listed; that the motions to reconsider be considered made and laid upon the table, with no intervening action or debate; that no further motions be in order; that any related statements be printed in the RECORD; that the President be immediately notified of the Senate's action and the Senate then resume legislative session; further, that there be 2 minutes for debate equally divided in the usual form prior to each vote and

all votes after the first be 10 minutes in length.

The PRESIDING OFFICER. Without objection, it is so ordered.

TO REAUTHORIZE AND AMEND THE NATIONAL OCEANIC AND ATMOSPHERIC ADMINISTRATION COMMISSIONED OFFICER CORPS ACT OF 2002

Mr. REID. Madam President, I ask unanimous consent that the Senate proceed to Calendar No. 292, S. 1068.

The PRESIDING OFFICER. The clerk will report the bill by title.

The legislative clerk read as follows:

A bill (S. 1068) to reauthorize and amend the National Oceanic and Atmospheric Administration Commission Officer Corps Act of 2002, and for other purposes.

There being no objection, the Senate proceeded to consider the bill (S. 1068) to reauthorize and amend the National Oceanic and Atmospheric Administration Commissioned Officer Corps Act of 2002, and for other purpose, which had been reported from the Committee on Commerce, Science, and Transportation, with an amendment to strike all after the enacting clause and insert in lieu thereof the following:

SECTION 1. SHORT TITLE; TABLE OF CONTENTS.

(a) SHORT TITLE.—This Act may be cited as the ''National Oceanic and Atmospheric Administration Commissioned Officer Corps Amendments Act of 2013''.

(b) TABLE OF CONTENTS.—The table of contents for this Act is as follows:

Sec. 1. Short title; table of contents.
Sec. 2. References to National Oceanic and Atmospheric Administration Commissioned Officer Corps Act of 2002.

TITLE I—GENERAL PROVISIONS

Sec. 101. Strength and distribution in grade.
Sec. 102. Exclusion of officers recalled from retired status and positions of importance and responsibility from number of authorized commissioned officers.
Sec. 103. Obligated service requirement.
Sec. 104. Training and physical fitness.

TITLE II—APPOINTMENTS AND PROMOTION OF OFFICERS

Sec. 201. Appointments.
Sec. 202. Personnel boards.
Sec. 203. Delegation of authority for appointments and promotions to permanent grades.
Sec. 204. Temporary appointments.
Sec. 205. Officer candidates.
Sec. 206. Procurement of personnel.

TITLE III—SEPARATION AND RETIREMENT OF OFFICERS

Sec. 301. Involuntary retirement or separation.
Sec. 302. Separation pay.

TITLE IV—RIGHTS AND BENEFITS

Sec. 401. Education loan repayment program.
Sec. 402. Interest payment program.
Sec. 403. Student pre-commissioning education assistance program.
Sec. 404. Limitation on educational assistance.
Sec. 405. Applicability of certain provisions of title 10, United States Code.
Sec. 406. Applicability of certain provisions of title 37, United States Code.
Sec. 407. Application of certain provisions of competitive service law.
Sec. 408. Eligibility of all members of uniformed services for Legion of Merit award.
Sec. 409. Application of Employment and Reemployment Rights of Members of the Uniformed Services to members of commissioned officer corps.
Sec. 410. Protected communications for commissioned officer corps and prohibition of retaliatory personnel actions.
Sec. 411. Criminal penalties for wearing uniform without authority.

TITLE V—OTHER MATTERS

Sec. 501. Technical correction.
Sec. 502. Report.
Sec. 503. Effective date.

SEC. 2. REFERENCES TO NATIONAL OCEANIC AND ATMOSPHERIC ADMINISTRATION COMMISSIONED OFFICER CORPS ACT OF 2002.

Except as otherwise expressly provided, whenever in this Act an amendment or repeal is expressed in terms of an amendment to, or repeal of, a section or other provision, the reference shall be considered to be made to a section or other provision of the National Oceanic and Atmospheric Administration Commissioned Officer Corps Act of 2002 (33 U.S.C. 3001 et seq.).

TITLE I—GENERAL PROVISIONS

SEC. 101. STRENGTH AND DISTRIBUTION IN GRADE.

Section 214 (33 U.S.C. 3004) is amended to read as follows:

''SEC. 214. STRENGTH AND DISTRIBUTION IN GRADE.

''(a) GRADES.—The commissioned grades in the commissioned officer corps of the Administration are the following, in relative rank with officers of the Navy:

''(1) Vice admiral.
''(2) Rear admiral.
''(3) Rear admiral (lower half).
''(4) Captain.
''(5) Commander.
''(6) Lieutenant commander.
''(7) Lieutenant.
''(8) Lieutenant (junior grade).
''(9) Ensign.

''(b) PROPORTION.—

''(1) IN GENERAL.—The officers on the lineal list shall be distributed in grade in the following percentages:

''(A) 8 in the grade of captain.
''(B) 14 in the grade of commander.
''(C) 19 in the grade of lieutenant commander.

''(2) GRADES BELOW LIEUTENANT COMMANDER.—The Secretary shall prescribe, with respect to the distribution on the lineal list in grade, the percentages applicable to the grades of lieutenant, lieutenant (junior grade), and ensign.

''(c) ANNUAL COMPUTATION OF NUMBER IN GRADE.—

''(1) IN GENERAL.—Not less frequently than once each year, the Secretary shall make a computation to determine the number of officers on the lineal list authorized to be serving in each grade.

''(2) METHOD OF COMPUTATION.—The number in each grade shall be computed by applying the applicable percentage to the total number of such officers serving on active duty on the date the computation is made.

''(3) FRACTIONS.—If a final fraction occurs in computing the authorized number of officers in a grade, the nearest whole number shall be taken. If the fraction is ½, the next higher whole number shall be taken.

''(d) TEMPORARY INCREASE IN NUMBERS.—The total number of officers authorized by law to be on the lineal list during a fiscal year may be temporarily exceeded if the average number on that list during that fiscal year does not exceed the authorized number.

''(e) POSITIONS OF IMPORTANCE AND RESPONSIBILITY.—Officers serving in positions designated under section 228(a) and officers recalled from retired status shall not be counted when computing authorized strengths under subsection (c) and shall not count against those strengths.

''(f) PRESERVATION OF GRADE AND PAY.—No officer may be reduced in grade or pay or separated from the commissioned officer corps of the Administration as the result of a computation made to determine the authorized number of officers in the various grades.''.

SEC. 102. EXCLUSION OF OFFICERS RECALLED FROM RETIRED STATUS AND POSITIONS OF IMPORTANCE AND RESPONSIBILITY FROM NUMBER OF AUTHORIZED COMMISSIONED OFFICERS.

Section 215 (33 U.S.C. 3005) is amended—

(1) in the matter before paragraph (1), by striking ''Effective'' and inserting the following:

''(a) IN GENERAL.—Effective''; and

(2) by adding at the end the following new subsection:

''(b) POSITIONS OF IMPORTANCE AND RESPONSIBILITY.—Officers serving in positions designated under section 228 and officers recalled from retired status—

''(1) may not be counted in determining the total number of authorized officers on the lineal list under this section; and

''(2) may not count against such number.''.

SEC. 103. OBLIGATED SERVICE REQUIREMENT.

(a) IN GENERAL.—Subtitle A (33 U.S.C. 3001 et seq.) is amended by adding at the end the following:

''SEC. 216. OBLIGATED SERVICE REQUIREMENT.

''(a) IN GENERAL.—

''(1) RULEMAKING.—The Secretary shall prescribe the obligated service requirements for appointments, training, promotions, separations, continuations, and retirement of officers not otherwise covered by law.

''(2) WRITTEN AGREEMENTS.—The Secretary and officers shall enter into written agreements that describe the officers' obligated service requirements prescribed under paragraph (1) in return for such appointments, training, promotions, separations, and retirements as the Secretary considers appropriate.

''(b) REPAYMENT FOR FAILURE TO SATISFY REQUIREMENTS.—

''(1) IN GENERAL.—The Secretary may require an officer who fails to meet the service requirements prescribed under subsection (a)(1) to reimburse the Secretary in an amount that bears the same ratio to the total costs of the training provided to that officer by the Secretary as the unserved portion of active duty bears to the total period of active duty the officer agreed to serve.

''(2) OBLIGATION AS DEBT TO UNITED STATES.—An obligation to reimburse the Secretary under paragraph (1) shall be considered for all purposes as a debt owed to the United States.

''(3) DISCHARGE IN BANKRUPTCY.—A discharge in bankruptcy under title 11 that is entered less than 5 years after the termination of a written agreement entered into under subsection (a)(2) does not discharge the individual signing the agreement from a debt arising under such agreement.

''(c) WAIVER OR SUSPENSION OF COMPLIANCE.—The Secretary may waive the service obligation of an officer who—

''(1) becomes unqualified to serve on active duty in the commissioned officer corps of the Administration because of a circumstance not within the control of that officer; or

''(2) is—

''(A) not physically qualified for appointment; and

''(B) determined to be unqualified for service in the commissioned officer corps of the Administration because of a physical or medical condition that was not the result of the officer's own misconduct or grossly negligent conduct.''.

(b) CLERICAL AMENDMENT.—The table of sections in section 1 of the Act entitled ''An Act to authorize the Hydrographic Service Improvement Act of 1998, and for other purposes'' (Public Law 107–372) is amended by inserting after the item relating to section 215 the following:

''Sec. 216. Obligated service requirement.''.

SEC. 104. TRAINING AND PHYSICAL FITNESS.

(a) IN GENERAL.—Subtitle A (33 U.S.C. 3001 et seq.), as amended by section 103(a), is further amended by adding at the end the following:

''SEC. 217. TRAINING AND PHYSICAL FITNESS.

''(a) TRAINING.—The Secretary may take such measures as may be necessary to ensure that officers are prepared to carry out their duties in the commissioned officer corps of the Administration and proficient in the skills necessary to carry out such duties. Such measures may include the following:

''(1) Carrying out training programs and correspondence courses, including establishing and operating a basic officer training program to provide initial indoctrination and maritime vocational training for officer candidates as well as refresher training, mid-career training, aviation training, and such other training as the Secretary considers necessary for officer development and proficiency.

''(2) Providing officers and officer candidates with books and school supplies.

''(3) Acquiring such equipment as may be necessary for training and instructional purposes.

''(b) PHYSICAL FITNESS.—The Secretary shall ensure that officers maintain a high physical state of readiness by establishing standards of physical fitness for officers that are substantially equivalent to those prescribed for officers in the Coast Guard.''.

(b) CLERICAL AMENDMENT.—The table of sections in section 1 of the Act entitled ''An Act to authorize the Hydrographic Service Improvement Act of 1998, and for other purposes'' (Public Law 107–372), as amended by section 103(b), is further amended by inserting after the item relating to section 216 the following:

''Sec. 217. Training and physical fitness.''.

TITLE II—APPOINTMENTS AND PROMOTION OF OFFICERS

SEC. 201. APPOINTMENTS.

(a) ORIGINAL APPOINTMENTS.—

(1) IN GENERAL.—Section 221 (33 U.S.C. 3021) is amended to read as follows:

''SEC. 221. ORIGINAL APPOINTMENTS AND REAPPOINTMENTS.

''(a) ORIGINAL APPOINTMENTS.—

''(1) GRADES.—

''(A) IN GENERAL.—Except as provided in subparagraph (B), an original appointment of an officer may be made in such grades as may be appropriate for—

''(i) the qualification, experience, and length of service of the appointee; and

''(ii) the commissioned officer corps of the Administration.

''(B) APPOINTMENT OF OFFICER CANDIDATES.—

''(i) LIMITATION ON GRADE.—An original appointment of an officer candidate, upon graduation from the basic officer training program of the commissioned officer corps of the Administration, may not be made in any other grade than ensign.

''(ii) RANK.—Officer candidates receiving appointments as ensigns upon graduation from basic officer training program shall take rank according to their proficiency as shown by the order of their merit at date of graduation.

''(2) SOURCE OF APPOINTMENTS.—An original appointment may be made from among the following:

''(A) Graduates of the basic officer training program of the commissioned officer corps of the Administration.

''(B) Graduates of the military service academies of the United States who otherwise meet the academic standards for enrollment in the training program described in subparagraph (A).

''(C) Licensed officers of the United States merchant marine who have served 2 or more years aboard a vessel of the United States in the capacity of a licensed officer, who otherwise meet the academic standards for enrollment in the training program described in subparagraph (A).

''(3) MILITARY SERVICE ACADEMIES OF THE UNITED STATES DEFINED.—In this subsection, the term 'military service academies of the United States' means the following:

''(A) The United States Military Academy, West Point, New York.

''(B) The United States Naval Academy, Annapolis, Maryland.

''(C) The United States Air Force Academy, Colorado Springs, Colorado.

''(D) The United States Coast Guard Academy, New London, Connecticut.

''(E) The United States Merchant Marine Academy, Kings Point, New York.

''(b) REAPPOINTMENT.—

''(1) IN GENERAL.—Except as provided in paragraph (2), an individual who previously served in the commissioned officer corps of the Administration may be appointed by the Secretary to the grade the individual held prior to separation.

''(2) REAPPOINTMENTS TO HIGHER GRADES.—An appointment under paragraph (1) to a position of importance and responsibility designated under section 228 may only be made by the President.

''(c) QUALIFICATIONS.—An appointment under subsection (a) or (b) may not be given to an individual until the individual's mental, moral, physical, and professional fitness to perform the duties of an officer has been established under such regulations as the Secretary shall prescribe.

''(d) PRECEDENCE OF APPOINTEES.—Appointees under this section shall take precedence in the grade to which appointed in accordance with the dates of their commissions as commissioned officers in such grade. Appointees whose dates of commission are the same shall take precedence with each other as the Secretary shall determine.

''(e) INTER-SERVICE TRANSFERS.—For inter-service transfers (as described in the Department of Defense Directive 1300.4 (dated December 27, 2006)) the Secretary shall—

''(1) coordinate with the Secretary of Defense and the Secretary of the Department in which the Coast Guard is operating to promote and streamline inter-service transfers;

''(2) give preference to such inter-service transfers for recruitment purposes as determined appropriate by the Secretary; and

''(3) reappoint such inter-service transfers to the equivalent grade in the commissioned officer corps.''.

(2) CLERICAL AMENDMENT.—The table of sections in section 1 of the Act entitled ''An Act to authorize the Hydrographic Service Improvement Act of 1998, and for other purposes'' (Public Law 107–372) is amended by striking the item relating to section 221 and inserting the following:

''Sec. 221. Original appointments and reappointments.''.

SEC. 202. PERSONNEL BOARDS.

Section 222 (33 U.S.C. 3022) is amended to read as follows:

''SEC. 222. PERSONNEL BOARDS.

''(a) CONVENING.—Not less frequently than once each year and at such other times as the Secretary determines necessary, the Secretary shall convene a personnel board.

''(b) MEMBERSHIP.—

''(1) IN GENERAL.—A board convened under subsection (a) shall consist of 5 or more officers who are serving in or above the permanent grade of the officers under consideration by the board.

''(2) RETIRED OFFICERS.—Officers on the retired list may be recalled to serve on such personnel boards as the Secretary considers necessary.

''(3) NO MEMBERSHIP ON 2 SUCCESSIVE BOARDS.—No officer may be a member of 2 successive personnel boards convened to consider officers of the same grade for promotion or separation.

''(c) DUTIES.—Each personnel board shall—

''(1) recommend to the Secretary such changes as may be necessary to correct any erroneous position on the lineal list that was caused by administrative error; and

''(2) make selections and recommendations to the Secretary and the President for the appointment, promotion, involuntary separation, continuation, and involuntary retirement of officers in the commissioned officer corps of the Administration as prescribed in this title.

''(d) ACTION ON RECOMMENDATIONS NOT ACCEPTABLE.—If any recommendation by a board convened under subsection (a) is not accepted by the Secretary or the President, the board shall make such further recommendations as the Secretary or the President consider appropriate.''.

SEC. 203. DELEGATION OF AUTHORITY FOR APPOINTMENTS AND PROMOTIONS TO PERMANENT GRADES.

Section 226 (33 U.S.C. 3026) is amended—

(1) by striking ''Appointments'' and inserting the following:

''(a) IN GENERAL.—Appointments''; and

(2) by adding at the end the following:

''(b) DELEGATION OF APPOINTMENT AUTHORITY.—If the President delegates authority to the Secretary to make appointments under this section, the President shall, during a period in which the position of the Secretary is vacant, delegate such authority to the Deputy Secretary of Commerce or the Under Secretary for Oceans and Atmosphere during such period.''.

SEC. 204. TEMPORARY APPOINTMENTS.

(a) IN GENERAL.—Section 229 (33 U.S.C. 3029) is amended to read as follows:

''SEC. 229. TEMPORARY APPOINTMENTS.

''(a) APPOINTMENTS BY PRESIDENT.—Temporary appointments in the grade of ensign, lieutenant junior grade, or lieutenant may be made by the President.

''(b) TERMINATION.—A temporary appointment to a position under subsection (a) shall terminate upon approval of a permanent appointment for such position made by the President.

''(c) ORDER OF PRECEDENCE.—Appointees under subsection (a) shall take precedence in the grade to which appointed in accordance with the dates of their appointments as officers in such grade. The order of precedence of appointees who are appointed on the same date shall be determined by the Secretary.

''(d) ANY ONE GRADE.—When determined by the Secretary to be in the best interest of the commissioned officer corps, officers in any permanent grade may be temporarily promoted one grade by the President. Any such temporary promotion terminates upon the transfer of the officer to a new assignment.

''(e) DELEGATION OF APPOINTMENT AUTHORITY.—If the President delegates authority to the Secretary to make appointments under this section, the President shall, during a period in which the position of the Secretary is vacant, delegate such authority to the Deputy Secretary of Commerce or the Under Secretary for Oceans and Atmosphere during such period.''.

(b) CLERICAL AMENDMENT.—The table of sections in section 1 of the Act entitled ''An Act to authorize the Hydrographic Service Improvement Act of 1998, and for other purposes'' (Public Law 107–372) is amended by striking the item relating to section 229 and inserting the following:

''Sec. 229. Temporary appointments.''.

SEC. 205. OFFICER CANDIDATES.

(a) IN GENERAL.—Subtitle B (33 U.S.C. 3021 et seq.) is amended by adding at the end the following:

''SEC. 234. OFFICER CANDIDATES.

''(a) DETERMINATION OF NUMBER.—The Secretary shall determine the number of appointments of officer candidates.

''(b) APPOINTMENT.—Appointment of officer candidates shall be made under regulations

which the Secretary shall prescribe, including regulations with respect to determining age limits, methods of selection of officer candidates, term of service as an officer candidate before graduation from the program, and all other matters affecting such appointment.

''(c) DISMISSAL.—The Secretary may dismiss from the basic officer training program of the Administration any officer candidate who, during the officer candidate's term as an officer candidate, the Secretary considers unsatisfactory in either academics or conduct, or not adapted for a career in the commissioned officer corps of the Administration. Officer candidates shall be subject to rules governing discipline prescribed by the Director of the National Oceanic and Atmospheric Administration Commissioned Officer Corps.

''(d) AGREEMENT.—

''(1) IN GENERAL.—Each officer candidate shall sign an agreement with the Secretary in accordance with section 216(a)(2) regarding the officer candidate's term of service in the commissioned officer corps of the Administration.

''(2) ELEMENTS.—An agreement signed by an officer candidate under paragraph (1) shall provide that the officer candidate agrees to the following:

''(A) That the officer candidate will complete the course of instruction at the basic officer training program of the Administration.

''(B) That upon graduation from the such program, the officer candidate—

''(i) will accept an appointment, if tendered, as an officer; and

''(ii) will serve on active duty for at least 4 years immediately after such appointment.

''(e) REGULATIONS.—The Secretary shall prescribe regulations to carry out this section. Such regulations shall include—

''(1) standards for determining what constitutes a breach of an agreement signed under such subsection (d)(1); and

''(2) procedures for determining whether such a breach has occurred.

''(f) REPAYMENT.—An officer candidate or former officer candidate who does not fulfill the terms of the obligation to serve as specified under section (d) shall be subject to the repayment provisions of section 216(b).''.

(b) CLERICAL AMENDMENT.—The table of sections in section 1 of the Act entitled ''An Act to authorize the Hydrographic Service Improvement Act of 1998, and for other purposes'' (Public Law 107–372) is amended by inserting after the item relating to section 233 the following:

''Sec. 234. Officer candidates.''.

(c) OFFICER CANDIDATE DEFINED.—Section 212(b) (33 U.S.C. 3002(b)) is amended—

(1) by redesignating paragraphs (4) through (6) as paragraphs (5) through (7), respectively; and

(2) by inserting after paragraph (3) the following:

''(4) OFFICER CANDIDATE.—The term 'officer candidate' means an individual who is enrolled in the basic officer training program of the Administration and is under consideration for appointment as an officer under section 221(a)(2)(A).''.

(d) PAY FOR OFFICER CANDIDATES.—Section 203 of title 37, United States Code, is amended by adding at the end the following:

''(f)(1) An officer candidate enrolled in the basic officer training program of the commissioned officer corps of the National Oceanic and Atmospheric Administration is entitled, while participating in such program, to monthly officer candidate pay at monthly rate equal to the basic pay of an enlisted member in the pay grade E–5 with less than 2 years service.

''(2) An individual who graduates from such program shall receive credit for the time spent participating in such program as if such time were time served while on active duty as a commissioned officer. If the individual does not graduate from such program, such time shall not be considered creditable for active duty or pay.''.

SEC. 206. PROCUREMENT OF PERSONNEL.

(a) IN GENERAL.—Subtitle B (33 U.S.C. 3021 et seq.), as amended by section 205(a), is further amended by adding at the end the following:

''SEC. 235. PROCUREMENT OF PERSONNEL.

''The Secretary may make such expenditures as the Secretary considers necessary in order to obtain recruits for the commissioned officer corps of the Administration, including advertising.''.

(b) CLERICAL AMENDMENT.—The table of sections in section 1 of the Act entitled ''An Act to authorize the Hydrographic Service Improvement Act of 1998, and for other purposes'' (Public Law 107–372), as amended by section 205(b), is further amended by inserting after the item relating to section 234 the following:

''235. Procurement of personnel.''.

TITLE III—SEPARATION AND RETIREMENT OF OFFICERS

SEC. 301. INVOLUNTARY RETIREMENT OR SEPARATION.

Section 241 (33 U.S.C. 3041) is amended by adding at the end the following:

''(d) DEFERMENT OF RETIREMENT OR SEPARATION FOR MEDICAL REASONS.—

''(1) IN GENERAL.—If the Secretary determines that the evaluation of the medical condition of an officer requires hospitalization or medical observation that cannot be completed with confidence in a manner consistent with the officer's well being before the date on which the officer would otherwise be required to retire or be separated under this section, the Secretary may defer the retirement or separation of the officer.

''(2) CONSENT REQUIRED.—A deferment may only be made with the written consent of the officer involved. If the officer does not provide written consent to the deferment, the officer shall be retired or separated as scheduled.

''(3) LIMITATION.—A deferral of retirement or separation under this subsection may not extend for more than 30 days after completion of the evaluation requiring hospitalization or medical observation.''.

SEC. 302. SEPARATION PAY.

Section 242 (33 U.S.C. 3042) is amended by adding at the end the following:

''(d) EXCEPTION.—An officer discharged for twice failing selection for promotion to the next higher grade is not entitled to separation pay under this section if the officer—

''(1) expresses a desire not to be selected for promotion; or

''(2) requests removal from the list of selectees.''.

TITLE IV—RIGHTS AND BENEFITS

SEC. 401. EDUCATION LOAN REPAYMENT PROGRAM.

(a) IN GENERAL.—Subtitle E (33 U.S.C. 3071 et seq.) is amended by adding at the end the following:

''SEC. 267. EDUCATION LOAN REPAYMENT PROGRAM.

''(a) AUTHORITY TO REPAY EDUCATION LOANS.—For the purpose of maintaining adequate numbers of officers of the commissioned officer corps of the Administration on active duty who have skills required by the commissioned officer corps, the Secretary may repay, in the case of a person described in subsection (b), a loan that—

''(1) was used by the person to finance education; and

''(2) was obtained from a governmental entity, private financial institution, educational institution, or other authorized entity.

''(b) ELIGIBLE PERSONS.—To be eligible to obtain a loan repayment under this section, a person must—

''(1) satisfy 1 of the requirements specified in subsection (c);

''(2) be fully qualified for, or hold, an appointment as a commissioned officer in the commissioned officer corps of the Administration; and

''(3) sign a written agreement to serve on active duty, or, if on active duty, to remain on active duty for a period in addition to any other incurred active duty obligation.

''(c) ACADEMIC AND PROFESSIONAL REQUIREMENTS.—One of the following academic requirements must be satisfied for purposes of determining the eligibility of an individual for a loan repayment under this section:

''(1) The person is fully qualified in a profession that the Secretary has determined to be necessary to meet identified skill shortages in the commissioned officer corps.

''(2) The person is enrolled as a full-time student in the final year of a course of study at an accredited educational institution (as determined by the Secretary of Education) leading to a degree in a profession that will meet identified skill shortages in the commissioned officer corps.

''(d) LOAN REPAYMENTS.—

''(1) IN GENERAL.—Subject to the limits established under paragraph (2), a loan repayment under this section may consist of the payment of the principal, interest, and related expenses of a loan obtained by a person described in subsection (b).

''(2) LIMITATION ON AMOUNT.—For each year of obligated service that a person agrees to serve in an agreement described in subsection (b)(3), the Secretary may pay not more than the amount specified in section 2173(e)(2) of title 10, United States Code.

''(e) ACTIVE DUTY SERVICE OBLIGATION.—

''(1) IN GENERAL.—A person entering into an agreement described in subsection (b)(3) incurs an active duty service obligation.

''(2) LENGTH OF OBLIGATION DETERMINED UNDER REGULATIONS.—

''(A) IN GENERAL.—Except as provided in subparagraph (B), the length of the obligation under paragraph (1) shall be determined under regulations prescribed by the Secretary.

''(B) MINIMUM OBLIGATION.—The regulations prescribed under subparagraph (A) may not provide for a period of obligation of less than 1 year for each maximum annual amount, or portion thereof, paid on behalf of the person for qualified loans.

''(3) PERSONS ON ACTIVE DUTY BEFORE ENTERING INTO AGREEMENT.—The active duty service obligation of persons on active duty before entering into the agreement shall be served after the conclusion of any other obligation incurred under the agreement.

''(f) EFFECT OF FAILURE TO COMPLETE OBLIGATION.—

''(1) ALTERNATIVE OBLIGATIONS.—An officer who is relieved of the officer's active duty obligation under this section before the completion of that obligation may be given any alternative obligation, at the discretion of the Secretary.

''(2) REPAYMENT.—An officer who does not complete the period of active duty specified in the agreement entered into under subsection (b)(3), or the alternative obligation imposed under paragraph (1), shall be subject to the repayment provisions under section 216.

''(g) RULEMAKING.—The Secretary shall prescribe regulations to carry out this section, including—

''(1) standards for qualified loans and authorized payees; and

''(2) other terms and conditions for the making of loan repayments.''.

(b) CLERICAL AMENDMENT.—The table of sections in section 1 of the Act entitled ''An Act to authorize the Hydrographic Service Improvement Act of 1998, and for other purposes'' (Public Law 107–372) is amended by inserting after the item relating to section 266 the following:

''Sec. 267. Education loan repayment program.''.

SEC. 402. INTEREST PAYMENT PROGRAM.

(a) IN GENERAL.—Subtitle E (33 U.S.C. 3071 et seq.), as amended by section 401(a), is further amended by adding at the end the following:

"SEC. 268. INTEREST PAYMENT PROGRAM.

''(a) AUTHORITY.—The Secretary may pay the interest and any special allowances that accrue on 1 or more student loans of an eligible officer, in accordance with this section.

''(b) ELIGIBLE OFFICERS.—An officer is eligible for the benefit described in subsection (a) while the officer—

''(1) is serving on active duty;

''(2) has not completed more than 3 years of service on active duty;

''(3) is the debtor on 1 or more unpaid loans described in subsection (c); and

''(4) is not in default on any such loan.

''(c) STUDENT LOANS.—The authority to make payments under subsection (a) may be exercised with respect to the following loans:

''(1) A loan made, insured, or guaranteed under part B of title IV of the Higher Education Act of 1965 (20 U.S.C. 1071 et seq.).

''(2) A loan made under part D of such title (20 U.S.C. 1087a et seq.).

''(3) A loan made under part E of such title (20 U.S.C. 1087aa et seq.).

''(d) MAXIMUM BENEFIT.—Interest and any special allowance may be paid on behalf of an officer under this section for any of the 36 consecutive months during which the officer is eligible under subsection (b).

''(e) FUNDS FOR PAYMENTS.—The Secretary may use amounts appropriated for the pay and allowances of personnel of the commissioned officer corps of the Administration for payments under this section.

''(f) COORDINATION WITH SECRETARY OF EDUCATION.—

''(1) IN GENERAL.—The Secretary shall consult with the Secretary of Education regarding the administration of this section.

''(2) TRANSFER OF FUNDS.—The Secretary shall transfer to the Secretary of Education the funds necessary—

''(A) to pay interest and special allowances on student loans under this section (in accordance with sections 428(o), 455(l), and 464(j) of the Higher Education Act of 1965 (20 U.S.C. 1078(o), 1087e(l), and 1087dd(j)); and

''(B) to reimburse the Secretary of Education for any reasonable administrative costs incurred by the Secretary in coordinating the program under this section with the administration of the student loan programs under parts B, D, and E of title IV of the Higher Education Act of 1965 (20 U.S.C. 1071 et seq., 1087a et seq., 1087aa et seq.).

''(g) SPECIAL ALLOWANCE DEFINED.—In this section, the term 'special allowance' means a special allowance that is payable under section 438 of the Higher Education Act of 1965 (20 U.S.C. 1087–1).''.

(b) CONFORMING AMENDMENTS.—

(1) Section 428(o) of the Higher Education Act of 1965 (20 U.S.C. 1078(o)) is amended—

(A) by striking the subsection heading and inserting ''ARMED FORCES AND NOAA COMMISSIONED OFFICER CORPS STUDENT LOAN INTEREST PAYMENT PROGRAMS''; and

(B) in paragraph (1)—

(i) by inserting ''or section 264 of the National Oceanic and Atmospheric Administration Commissioned Officer Corps Act of 2002'' after ''Code,''; and

(ii) by inserting ''or an officer in the commissioned officer corps of the National Oceanic and Atmospheric Administration, respectively,'' after ''Armed Forces''.

(2) Sections 455(l) and 464(j) of the Higher Education Act of 1965 (20 U.S.C. 1087e(l) and 1087dd(j)) are each amended—

(A) by striking the subsection heading and inserting ''ARMED FORCES AND NOAA COMMISSIONED OFFICER CORPS STUDENT LOAN INTEREST PAYMENT PROGRAMS''; and

(B) in paragraph (1)—

(i) by inserting ''or section 264 of the National Oceanic and Atmospheric Administration Commissioned Officer Corps Act of 2002'' after ''Code,''; and

(ii) by inserting ''or an officer in the commissioned officer corps of the National Oceanic and Atmospheric Administration, respectively'' after ''Armed Forces''.

(c) CLERICAL AMENDMENT.—The table of sections in section 1 of the Act entitled ''An Act to authorize the Hydrographic Service Improvement Act of 1998, and for other purposes'' (Public Law 107–372), as amended by section 401(b), is further amended by inserting after the item relating to section 267 the following:

''Sec. 268. Interest payment program.''.

SEC. 403. STUDENT PRE-COMMISSIONING EDUCATION ASSISTANCE PROGRAM.

(a) IN GENERAL.—Subtitle E (33 U.S.C. 3071 et seq.), as amended by sections 401(a) and 402(a), is further amended by adding at the end the following:

"SEC. 269. STUDENT PRE-COMMISSIONING EDUCATION ASSISTANCE PROGRAM.

''(a) AUTHORITY TO PROVIDE FINANCIAL ASSISTANCE.—For the purpose of maintaining adequate numbers of officers of the commissioned officer corps of the Administration on active duty, the Secretary may provide financial assistance to a person described in subsection (b) for expenses of the person while the person is pursuing on a full-time basis at an accredited educational institution (as determined by the Secretary of Education) a program of education approved by the Secretary that leads to—

''(1) a baccalaureate degree in not more than 5 academic years; or

''(2) a postbaccalaureate degree.

''(b) ELIGIBLE PERSONS.—

''(1) IN GENERAL.—A person is eligible to obtain financial assistance under subsection (a) if the person—

''(A) is enrolled on a full-time basis in a program of education referred to in subsection (a) at any educational institution described in such subsection;

''(B) meets all of the requirements for acceptance into the commissioned officer corps of the Administration except for the completion of a baccalaureate degree; and

''(C) enters into a written agreement with the Secretary described in paragraph (2).

''(2) AGREEMENT.—A written agreement referred to in paragraph (1)(C) is an agreement between the person and the Secretary in which the person agrees—

''(A) to accept an appointment as an officer, if tendered; and

''(B) upon completion of the person's educational program, agrees to serve on active duty, immediately after appointment, for—

''(i) up to 3 years if the person received less than 3 years of assistance; and

''(ii) up to 5 years if the person received at least 3 years of assistance.

''(c) QUALIFYING EXPENSES.—Expenses for which financial assistance may be provided under subsection (a) are the following:

''(1) Tuition and fees charged by the educational institution involved.

''(2) The cost of books.

''(3) In the case of a program of education leading to a baccalaureate degree, laboratory expenses.

''(4) Such other expenses as the Secretary considers appropriate.

''(d) LIMITATION ON AMOUNT.—The Secretary shall prescribe the amount of financial assistance provided to a person under subsection (a), which may not exceed the amount specified in section 2173(e)(2) of title 10, United States Code, for each year of obligated service that a person agrees to serve in an agreement described in subsection (b)(2).

''(e) DURATION OF ASSISTANCE.—Financial assistance may be provided to a person under subsection (a) for not more than 5 consecutive academic years.

''(f) SUBSISTENCE ALLOWANCE.—

''(1) IN GENERAL.—A person who receives financial assistance under subsection (a) shall be entitled to a monthly subsistence allowance at a rate prescribed under paragraph (2) for the duration of the period for which the person receives such financial assistance.

''(2) DETERMINATION OF AMOUNT.—The Secretary shall prescribe monthly rates for subsistence allowance provided under paragraph (1), which shall be equal to the amount specified in section 2144(a) of title 10, United States Code.

''(g) INITIAL CLOTHING ALLOWANCE.—

''(1) TRAINING.—The Secretary may prescribe a sum which shall be credited to each person who receives financial assistance under subsection (a) to cover the cost of the person's initial clothing and equipment issue.

''(2) APPOINTMENT.—Upon completion of the program of education for which a person receives financial assistance under subsection (a) and acceptance of appointment in the commissioned officer corps of the Administration, the person may be issued a subsequent clothing allowance equivalent to that normally provided to a newly appointed officer.

''(h) TERMINATION OF FINANCIAL ASSISTANCE.—

''(1) IN GENERAL.—The Secretary shall terminate the assistance provided to a person under this section if—

''(A) the Secretary accepts a request by the person to be released from an agreement described in subsection (b)(2);

''(B) the misconduct of the person results in a failure to complete the period of active duty required under the agreement; or

''(C) the person fails to fulfill any term or condition of the agreement.

''(2) REIMBURSEMENT.—The Secretary may require a person who receives assistance described in subsection (c), (f), or (g) under an agreement entered into under subsection (b)(1)(C) to reimburse the Secretary in an amount that bears the same ratio to the total costs of the assistance provided to that person as the unserved portion of active duty bears to the total period of active duty the officer agreed to serve under the agreement.

''(3) WAIVER.—The Secretary may waive the service obligation of a person through an agreement entered into under subsection (b)(1)(C) if the person—

''(A) becomes unqualified to serve on active duty in the commissioned officer corps of the Administration because of a circumstance not within the control of that person; or

''(B) is—

''(i) not physically qualified for appointment; and

''(ii) determined to be unqualified for service in the commissioned officer corps of the Administration because of a physical or medical condition that was not the result of the person's own misconduct or grossly negligent conduct.

''(4) OBLIGATION AS DEBT TO UNITED STATES.—An obligation to reimburse the Secretary imposed under paragraph (2) is, for all purposes, a debt owed to the United States.

''(5) DISCHARGE IN BANKRUPTCY.—A discharge in bankruptcy under title 11, United States Code, that is entered less than 5 years after the termination of a written agreement entered into under subsection (b)(1)(C) does not discharge the person signing the agreement from a debt arising under such agreement or under paragraph (2).

''(i) REGULATIONS.—The Secretary may promulgate such regulations and orders as the Secretary considers appropriate to carry out this section.''.

(b) CLERICAL AMENDMENT.—The table of sections in section 1 of the Act entitled ''An Act to authorize the Hydrographic Service Improvement Act of 1998, and for other purposes'' (Public Law 107–372), as amended by section 402(c), is further amended by inserting after the item relating to section 268 the following:

''Sec. 269. Student pre-commissioning education assistance program.''.

SEC. 404. LIMITATION ON EDUCATIONAL ASSISTANCE.

(a) IN GENERAL.—Each fiscal year, beginning with fiscal year 2013, the Secretary of Commerce shall ensure that the total amount expended by the Secretary under section 267 of the National Oceanic and Atmospheric Administration Commissioned Officer Corps Act of 2002 (as added by section 401(a)), section 268 of such Act (as added by section 402(a)), and section 269 of such Act (as added by section 403(a)) does not exceed the amount by which—

(1) the total amount the Secretary would pay in that fiscal year to officer candidates under section 203(f)(1) of title 37, United States Code (as added by section 205(d)), if such section entitled officers candidates to pay at monthly rates equal to the basic pay of a commissioned officer in the pay grade O–1 with less than 2 years of service; exceeds

(2) the total amount the Secretary actually pays in that fiscal year to officer candidates under section 203(f)(1) of such title (as so added).

(b) OFFICER CANDIDATE DEFINED.—In this section, the term ''officer candidate'' has the meaning given the term in section 212 of the National Oceanic and Atmospheric Administration Commissioned Officer Corps Act of 2002 (33 U.S.C. 3002), as added by section 205(c).

SEC. 405. APPLICABILITY OF CERTAIN PROVISIONS OF TITLE 10, UNITED STATES CODE.

Section 261(a) (33 U.S.C. 3071(a)) is amended—

(1) by redesignating paragraphs (13) through (16) as paragraphs (20) through (23), respectively;

(2) by redesignating paragraphs (7) through (12) as paragraphs (12) through (17), respectively;

(3) by redesignating paragraphs (4) through (6) as paragraphs (8) through (10), respectively;

(4) by inserting after paragraph (3) the following:

''(4) Section 771, relating to unauthorized wearing of uniforms.

''(5) Section 774, relating to wearing religious apparel while in uniform.

''(6) Section 982, relating to service on State and local juries.

''(7) Section 1031, relating to administration of oaths.'';

(5) by inserting after paragraph (10), as redesignated, the following:

''(11) Chapter 58, relating to the Benefits and Services for members being separated or recently separated.''; and

(6) by inserting after paragraph (17), as redesignated, the following:

''(18) Subchapter I of chapter 88, relating to Military Family Programs.

''(19) Section 2005, relating to advanced education assistance, active duty agreements, and reimbursement requirements.''.

SEC. 406. APPLICABILITY OF CERTAIN PROVISIONS OF TITLE 37, UNITED STATES CODE.

(a) IN GENERAL.—Subtitle E (33 U.S.C. 3071 et seq.) is amended by inserting after section 261 the following:

''SEC. 261A. APPLICABILITY OF CERTAIN PROVISIONS OF TITLE 37, UNITED STATES CODE.

''(a) PROVISIONS MADE APPLICABLE TO COMMISSIONED OFFICER CORPS.—The provisions of law applicable to the Armed Forces under the following provisions of title 37, United States Code, shall apply to the commissioned officer corps of the Administration:

''(1) Section 324, relating to accession bonuses for new officers in critical skills.

''(2) Section 403(f)(3), relating to prescribing regulations defining the terms 'field duty' and 'sea duty'.

''(3) Section 403(l), relating to temporary continuation of housing allowance for dependents of members dying on active duty.

''(4) Section 414(a)(2), relating to personal money allowance while serving as Director of the National Oceanic and Atmospheric Administration Commissioned Officer Corps.

''(5) Section 488, relating to allowances for recruiting expenses.

''(6) Section 495, relating to allowances for funeral honors duty.

''(b) REFERENCES.—The authority vested by title 37, United States Code, in the 'military departments', 'the Secretary concerned', or 'the Secretary of Defense' with respect to the provisions of law referred to in subsection (a) shall be exercised, with respect to the commissioned officer corps of the Administration, by the Secretary of Commerce or the Secretary's designee.''.

(b) CLERICAL AMENDMENT.—The table of sections in section 1 of the Act entitled ''An Act to authorize the Hydrographic Service Improvement Act of 1998, and for other purposes'' (Public Law 107–372) is amended by inserting after the item relating to section 261 the following:

''Sec. 261A. Applicability of certain provisions of title 37, United States Code.''.

SEC. 407. APPLICATION OF CERTAIN PROVISIONS OF COMPETITIVE SERVICE LAW.

Section 3304(f) of title 5, United States Code, is amended—

(1) in paragraph (1), by inserting ''and members of the commissioned officer corps of the National Oceanic and Atmospheric Administration (or its predecessor organization the Coast and Geodetic Survey) separated from such uniformed service'' after ''separated from the armed forces'';

(2) in paragraph (2), by striking ''or veteran'' and inserting '', veteran, or member''; and

(3) in paragraph (4), by inserting ''and members of the commissioned officer corps of the National Oceanic and Atmospheric Administration (or its predecessor organization the Coast and Geodetic Survey) separated from such uniformed service'' after ''separated from the armed forces''.

SEC. 408. ELIGIBILITY OF ALL MEMBERS OF UNIFORMED SERVICES FOR LEGION OF MERIT AWARD.

Section 1121 of title 10, United States Code, is amended by striking ''armed forces'' and inserting ''uniformed services''.

SEC. 409. APPLICATION OF EMPLOYMENT AND REEMPLOYMENT RIGHTS OF MEMBERS OF THE UNIFORMED SERVICES TO MEMBERS OF COMMISSIONED OFFICER CORPS.

Section 4303(16) of title 38, United States Code, is amended by inserting ''the commissioned officer corps of the National Oceanic and Atmospheric Administration,'' after ''Public Health Service,''.

SEC. 410. PROTECTED COMMUNICATIONS FOR COMMISSIONED OFFICER CORPS AND PROHIBITION OF RETALIATORY PERSONNEL ACTIONS.

(a) IN GENERAL.—Subsection (a) of section 261 (33 U.S.C. 3071), as amended by section 405, is further amended—

(1) by redesignating paragraphs (8) through (23) as paragraphs (9) through (24), respectively; and

(2) by inserting after paragraph (7) the following:

''(8) Section 1034, relating to protected communications and prohibition of retaliatory personnel actions.''.

(b) CONFORMING AMENDMENT.—Subsection (b) of such section is amended by adding at the end the following: ''For purposes of paragraph (8) of subsection (a), the term 'Inspector General' in section 1034 of such title 10 shall mean the Inspector General of the Department of Commerce.''.

SEC. 411. CRIMINAL PENALTIES FOR WEARING UNIFORM WITHOUT AUTHORITY.

Section 702 of title 18, United States Code, is amended by striking ''Service or any'' and inserting ''Service, the commissioned officer corps of the National Oceanic and Atmospheric Administration, or any''.

TITLE V—OTHER MATTERS

SEC. 501. TECHNICAL CORRECTION.

Section 101(21)(C) of title 38, United States Code, is amended by inserting ''in the commissioned officer corps'' before ''of the National''.

SEC. 502. REPORT.

(a) IN GENERAL.—Not later than 90 days after the date of the enactment of this Act, the Secretary of Commerce shall submit to Congress a report evaluating the current status and projected needs of the commissioned officer corps of the National Oceanic and Atmospheric Administration to operate sufficiently through fiscal year 2017.

(b) CONTENTS.—The report required by subsection (a) shall include the following:

(1) The average annual attrition rate of officers in the commissioned officer corps of the National Oceanic and Atmospheric Administration.

(2) An estimate of the number of annual recruits that would reasonably be required to operate the commissioned officer corps sufficiently through fiscal year 2017.

(3) The projected impact of this Act on annual recruitment numbers through fiscal year 2017.

(4) Identification of areas of duplication or unnecessary redundancy in current activities of the commissioned officer corps that could otherwise be streamlined or eliminated to save costs.

(5) Such other matters as the Secretary considers appropriate regarding the provisions of this Act and the amendments made by this Act.

SEC. 503. EFFECTIVE DATE.

Notwithstanding any other provision of this Act, sections 101 through 411 shall take effect on the date that is 90 days after the date on which the Secretary of Commerce submits to Congress the report required by section 502(a).

Mr. REID. I further ask that the committee-reported substitute amendment be considered; the Begich amendment, which is at the desk, be agreed to; the committee-reported substitute, as amended, be agreed to; the bill, as amended, be read a third time and passed; and the motions to reconsider be considered made and laid upon the table, with no intervening action or debate.

The PRESIDING OFFICER. Without objection, it is so ordered.

The amendment (No. 2740) was agreed to, as follows:

(Purpose: To treat certain officers in the commissioned officer corps of the National Oceanic and Atmospheric Administration as employees of the Administration for purposes of vacant positions of employment open only to current employees of the Administration)

At the end of title IV, add the following:

SEC. 412. TREATMENT OF COMMISSION IN COMMISSIONED OFFICER CORPS AS EMPLOYMENT IN NATIONAL OCEANIC AND ATMOSPHERIC ADMINISTRATION FOR PURPOSES OF CERTAIN HIRING DECISIONS.

(a) IN GENERAL.—Subtitle E (33 U.S.C. 3071 et seq.), as amended by this title, is further amended by adding at the end the following:

''SEC. 269A. TREATMENT OF COMMISSION IN COMMISSIONED OFFICER CORPS AS EMPLOYMENT IN ADMINISTRATION FOR PURPOSES OF CERTAIN HIRING DECISIONS.

''(a) IN GENERAL.—In any case in which the Secretary accepts an application for a position of employment with the Administration and limits consideration of applications for such position to applications submitted by individuals serving in a career or career-conditional position in the competitive service within the Administration, the Secretary shall deem an officer who has served as an officer in the commissioned officer corps for

at least 3 years to be serving in a career or career-conditional position in the competitive service within the Administration for purposes of such limitation.

''(b) CAREER APPOINTMENTS.—If the Secretary selects an application submitted by an officer described in subsection (a) for a position described in such subsection, the Secretary shall give such officer a career or career-conditional appointment in the competitive service, as appropriate.

''(c) COMPETITIVE SERVICE DEFINED.—In this section, the term 'competitive service' has the meaning given the term in section 2102 of title 5, United States Code.''.

(b) CLERICAL AMENDMENT.—The table of sections in section 1 of the Act entitled ''An Act to authorize the Hydrographic Service Improvement Act of 1998, and for other purposes'' (Public Law 107–372) is amended by inserting after the item relating to section 269, as added by this title, the following new item:

''Sec. 269A. Treatment of commission in commissioned officer corps as employment in Administration for purposes of certain hiring decisions.''.

The committee amendment in the nature of a substitute, as amended, was agreed to.

The bill (S. 1068), as amended, was ordered to be engrossed for a third reading, was read the third time, and passed, as follows:

S. 1068

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE; TABLE OF CONTENTS.

(a) SHORT TITLE.—This Act may be cited as the ''National Oceanic and Atmospheric Administration Commissioned Officer Corps Amendments Act of 2013''.

(b) TABLE OF CONTENTS.—The table of contents for this Act is as follows:

Sec. 1. Short title; table of contents.
Sec. 2. References to National Oceanic and Atmospheric Administration Commissioned Officer Corps Act of 2002.

TITLE I—GENERAL PROVISIONS

Sec. 101. Strength and distribution in grade.
Sec. 102. Exclusion of officers recalled from retired status and positions of importance and responsibility from number of authorized commissioned officers.
Sec. 103. Obligated service requirement.
Sec. 104. Training and physical fitness.

TITLE II—APPOINTMENTS AND PROMOTION OF OFFICERS

Sec. 201. Appointments.
Sec. 202. Personnel boards.
Sec. 203. Delegation of authority for appointments and promotions to permanent grades.
Sec. 204. Temporary appointments.
Sec. 205. Officer candidates.
Sec. 206. Procurement of personnel.

TITLE III—SEPARATION AND RETIREMENT OF OFFICERS

Sec. 301. Involuntary retirement or separation.
Sec. 302. Separation pay.

TITLE IV—RIGHTS AND BENEFITS

Sec. 401. Education loan repayment program.
Sec. 402. Interest payment program.
Sec. 403. Student pre-commissioning education assistance program.
Sec. 404. Limitation on educational assistance.
Sec. 405. Applicability of certain provisions of title 10, United States Code.
Sec. 406. Applicability of certain provisions of title 37, United States Code.
Sec. 407. Application of certain provisions of competitive service law.
Sec. 408. Eligibility of all members of uniformed services for Legion of Merit award.
Sec. 409. Application of Employment and Reemployment Rights of Members of the Uniformed Services to members of commissioned officer corps.
Sec. 410. Protected communications for commissioned officer corps and prohibition of retaliatory personnel actions.
Sec. 411. Criminal penalties for wearing uniform without authority.
Sec. 412. Treatment of commission in commissioned officer corps as employment in National Oceanic and Atmospheric Administration for purposes of certain hiring decisions.

TITLE V—OTHER MATTERS

Sec. 501. Technical correction.
Sec. 502. Report.
Sec. 503. Effective date.

SEC. 2. REFERENCES TO NATIONAL OCEANIC AND ATMOSPHERIC ADMINISTRATION COMMISSIONED OFFICER CORPS ACT OF 2002.

Except as otherwise expressly provided, whenever in this Act an amendment or repeal is expressed in terms of an amendment to, or repeal of, a section or other provision, the reference shall be considered to be made to a section or other provision of the National Oceanic and Atmospheric Administration Commissioned Officer Corps Act of 2002 (33 U.S.C. 3001 et seq.).

TITLE I—GENERAL PROVISIONS

SEC. 101. STRENGTH AND DISTRIBUTION IN GRADE.

Section 214 (33 U.S.C. 3004) is amended to read as follows:

''SEC. 214. STRENGTH AND DISTRIBUTION IN GRADE.

''(a) GRADES.—The commissioned grades in the commissioned officer corps of the Administration are the following, in relative rank with officers of the Navy:

''(1) Vice admiral.
''(2) Rear admiral.
''(3) Rear admiral (lower half).
''(4) Captain.
''(5) Commander.
''(6) Lieutenant commander.
''(7) Lieutenant.
''(8) Lieutenant (junior grade).
''(9) Ensign.

''(b) PROPORTION.—

''(1) IN GENERAL.—The officers on the lineal list shall be distributed in grade in the following percentages:

''(A) 8 in the grade of captain.
''(B) 14 in the grade of commander.
''(C) 19 in the grade of lieutenant commander.

''(2) GRADES BELOW LIEUTENANT COMMANDER.—The Secretary shall prescribe, with respect to the distribution on the lineal list in grade, the percentages applicable to the grades of lieutenant, lieutenant (junior grade), and ensign.

''(c) ANNUAL COMPUTATION OF NUMBER IN GRADE.—

''(1) IN GENERAL.—Not less frequently than once each year, the Secretary shall make a computation to determine the number of officers on the lineal list authorized to be serving in each grade.

''(2) METHOD OF COMPUTATION.—The number in each grade shall be computed by applying the applicable percentage to the total number of such officers serving on active duty on the date the computation is made.

''(3) FRACTIONS.—If a final fraction occurs in computing the authorized number of officers in a grade, the nearest whole number shall be taken. If the fraction is ½, the next higher whole number shall be taken.

''(d) TEMPORARY INCREASE IN NUMBERS.—The total number of officers authorized by law to be on the lineal list during a fiscal year may be temporarily exceeded if the average number on that list during that fiscal year does not exceed the authorized number.

''(e) POSITIONS OF IMPORTANCE AND RESPONSIBILITY.—Officers serving in positions designated under section 228(a) and officers recalled from retired status shall not be counted when computing authorized strengths under subsection (c) and shall not count against those strengths.

''(f) PRESERVATION OF GRADE AND PAY.—No officer may be reduced in grade or pay or separated from the commissioned officer corps of the Administration as the result of a computation made to determine the authorized number of officers in the various grades.''.

SEC. 102. EXCLUSION OF OFFICERS RECALLED FROM RETIRED STATUS AND POSITIONS OF IMPORTANCE AND RESPONSIBILITY FROM NUMBER OF AUTHORIZED COMMISSIONED OFFICERS.

Section 215 (33 U.S.C. 3005) is amended—

(1) in the matter before paragraph (1), by striking ''Effective'' and inserting the following:

''(a) IN GENERAL.—Effective''; and

(2) by adding at the end the following new subsection:

''(b) POSITIONS OF IMPORTANCE AND RESPONSIBILITY.—Officers serving in positions designated under section 228 and officers recalled from retired status—

''(1) may not be counted in determining the total number of authorized officers on the lineal list under this section; and

''(2) may not count against such number.''.

SEC. 103. OBLIGATED SERVICE REQUIREMENT.

(a) IN GENERAL.—Subtitle A (33 U.S.C. 3001 et seq.) is amended by adding at the end the following:

''SEC. 216. OBLIGATED SERVICE REQUIREMENT.

''(a) IN GENERAL.—

''(1) RULEMAKING.—The Secretary shall prescribe the obligated service requirements for appointments, training, promotions, separations, continuations, and retirement of officers not otherwise covered by law.

''(2) WRITTEN AGREEMENTS.—The Secretary and officers shall enter into written agreements that describe the officers' obligated service requirements prescribed under paragraph (1) in return for such appointments, training, promotions, separations, and retirements as the Secretary considers appropriate.

''(b) REPAYMENT FOR FAILURE TO SATISFY REQUIREMENTS.—

''(1) IN GENERAL.—The Secretary may require an officer who fails to meet the service requirements prescribed under subsection (a)(1) to reimburse the Secretary in an amount that bears the same ratio to the total costs of the training provided to that officer by the Secretary as the unserved portion of active duty bears to the total period of active duty the officer agreed to serve.

''(2) OBLIGATION AS DEBT TO UNITED STATES.—An obligation to reimburse the Secretary under paragraph (1) shall be considered for all purposes as a debt owed to the United States.

''(3) DISCHARGE IN BANKRUPTCY.—A discharge in bankruptcy under title 11 that is entered less than 5 years after the termination of a written agreement entered into under subsection (a)(2) does not discharge the individual signing the agreement from a debt arising under such agreement.

''(c) WAIVER OR SUSPENSION OF COMPLIANCE.—The Secretary may waive the service obligation of an officer who—

''(1) becomes unqualified to serve on active duty in the commissioned officer corps of the Administration because of a circumstance not within the control of that officer; or

''(2) is—

''(A) not physically qualified for appointment; and

''(B) determined to be unqualified for service in the commissioned officer corps of the Administration because of a physical or medical condition that was not the result of the officer's own misconduct or grossly negligent conduct.''.

(b) CLERICAL AMENDMENT.—The table of sections in section 1 of the Act entitled ''An Act to authorize the Hydrographic Service Improvement Act of 1998, and for other purposes'' (Public Law 107–372) is amended by inserting after the item relating to section 215 the following:

''Sec. 216. Obligated service requirement.''.

SEC. 104. TRAINING AND PHYSICAL FITNESS.

(a) IN GENERAL.—Subtitle A (33 U.S.C. 3001 et seq.), as amended by section 103(a), is further amended by adding at the end the following:

''SEC. 217. TRAINING AND PHYSICAL FITNESS.

''(a) TRAINING.—The Secretary may take such measures as may be necessary to ensure that officers are prepared to carry out their duties in the commissioned officer corps of the Administration and proficient in the skills necessary to carry out such duties. Such measures may include the following:

''(1) Carrying out training programs and correspondence courses, including establishing and operating a basic officer training program to provide initial indoctrination and maritime vocational training for officer candidates as well as refresher training, mid-career training, aviation training, and such other training as the Secretary considers necessary for officer development and proficiency.

''(2) Providing officers and officer candidates with books and school supplies.

''(3) Acquiring such equipment as may be necessary for training and instructional purposes.

''(b) PHYSICAL FITNESS.—The Secretary shall ensure that officers maintain a high physical state of readiness by establishing standards of physical fitness for officers that are substantially equivalent to those prescribed for officers in the Coast Guard.''.

(b) CLERICAL AMENDMENT.—The table of sections in section 1 of the Act entitled ''An Act to authorize the Hydrographic Service Improvement Act of 1998, and for other purposes'' (Public Law 107–372), as amended by section 103(b), is further amended by inserting after the item relating to section 216 the following:

''Sec. 217. Training and physical fitness.''.

TITLE II—APPOINTMENTS AND PROMOTION OF OFFICERS

SEC. 201. APPOINTMENTS.

(a) ORIGINAL APPOINTMENTS.—

(1) IN GENERAL.—Section 221 (33 U.S.C. 3021) is amended to read as follows:

''SEC. 221. ORIGINAL APPOINTMENTS AND REAPPOINTMENTS.

''(a) ORIGINAL APPOINTMENTS.—

''(1) GRADES.—

''(A) IN GENERAL.—Except as provided in subparagraph (B), an original appointment of an officer may be made in such grades as may be appropriate for—

''(i) the qualification, experience, and length of service of the appointee; and

''(ii) the commissioned officer corps of the Administration.

''(B) APPOINTMENT OF OFFICER CANDIDATES.—

''(i) LIMITATION ON GRADE.—An original appointment of an officer candidate, upon graduation from the basic officer training program of the commissioned officer corps of the Administration, may not be made in any other grade than ensign.

''(ii) RANK.—Officer candidates receiving appointments as ensigns upon graduation from basic officer training program shall take rank according to their proficiency as shown by the order of their merit at date of graduation.

''(2) SOURCE OF APPOINTMENTS.—An original appointment may be made from among the following:

''(A) Graduates of the basic officer training program of the commissioned officer corps of the Administration.

''(B) Graduates of the military service academies of the United States who otherwise meet the academic standards for enrollment in the training program described in subparagraph (A).

''(C) Licensed officers of the United States merchant marine who have served 2 or more years aboard a vessel of the United States in the capacity of a licensed officer, who otherwise meet the academic standards for enrollment in the training program described in subparagraph (A).

''(3) MILITARY SERVICE ACADEMIES OF THE UNITED STATES DEFINED.—In this subsection, the term 'military service academies of the United States' means the following:

''(A) The United States Military Academy, West Point, New York.

''(B) The United States Naval Academy, Annapolis, Maryland.

''(C) The United States Air Force Academy, Colorado Springs, Colorado.

''(D) The United States Coast Guard Academy, New London, Connecticut.

''(E) The United States Merchant Marine Academy, Kings Point, New York.

''(b) REAPPOINTMENT.—

''(1) IN GENERAL.—Except as provided in paragraph (2), an individual who previously served in the commissioned officer corps of the Administration may be appointed by the Secretary to the grade the individual held prior to separation.

''(2) REAPPOINTMENTS TO HIGHER GRADES.—An appointment under paragraph (1) to a position of importance and responsibility designated under section 228 may only be made by the President.

''(c) QUALIFICATIONS.—An appointment under subsection (a) or (b) may not be given to an individual until the individual's mental, moral, physical, and professional fitness to perform the duties of an officer has been established under such regulations as the Secretary shall prescribe.

''(d) PRECEDENCE OF APPOINTEES.—Appointees under this section shall take precedence in the grade to which appointed in accordance with the dates of their commissions as commissioned officers in such grade. Appointees whose dates of commission are the same shall take precedence with each other as the Secretary shall determine.

''(e) INTER-SERVICE TRANSFERS.—For inter-service transfers (as described in the Department of Defense Directive 1300.4 (dated December 27, 2006)) the Secretary shall—

''(1) coordinate with the Secretary of Defense and the Secretary of the Department in which the Coast Guard is operating to promote and streamline inter-service transfers;

''(2) give preference to such inter-service transfers for recruitment purposes as determined appropriate by the Secretary; and

''(3) reappoint such inter-service transfers to the equivalent grade in the commissioned officer corps.''.

(2) CLERICAL AMENDMENT.—The table of sections in section 1 of the Act entitled ''An Act to authorize the Hydrographic Service Improvement Act of 1998, and for other purposes'' (Public Law 107–372) is amended by striking the item relating to section 221 and inserting the following:

''Sec. 221. Original appointments and reappointments.''.

SEC. 202. PERSONNEL BOARDS.

Section 222 (33 U.S.C. 3022) is amended to read as follows:

''SEC. 222. PERSONNEL BOARDS.

''(a) CONVENING.—Not less frequently than once each year and at such other times as the Secretary determines necessary, the Secretary shall convene a personnel board.

''(b) MEMBERSHIP.—

''(1) IN GENERAL.—A board convened under subsection (a) shall consist of 5 or more officers who are serving in or above the permanent grade of the officers under consideration by the board.

''(2) RETIRED OFFICERS.—Officers on the retired list may be recalled to serve on such personnel boards as the Secretary considers necessary.

''(3) NO MEMBERSHIP ON 2 SUCCESSIVE BOARDS.—No officer may be a member of 2 successive personnel boards convened to consider officers of the same grade for promotion or separation.

''(c) DUTIES.—Each personnel board shall—

''(1) recommend to the Secretary such changes as may be necessary to correct any erroneous position on the lineal list that was caused by administrative error; and

''(2) make selections and recommendations to the Secretary and the President for the appointment, promotion, involuntary separation, continuation, and involuntary retirement of officers in the commissioned officer corps of the Administration as prescribed in this title.

''(d) ACTION ON RECOMMENDATIONS NOT ACCEPTABLE.—If any recommendation by a board convened under subsection (a) is not accepted by the Secretary or the President, the board shall make such further recommendations as the Secretary or the President consider appropriate.''.

SEC. 203. DELEGATION OF AUTHORITY FOR APPOINTMENTS AND PROMOTIONS TO PERMANENT GRADES.

Section 226 (33 U.S.C. 3026) is amended—

(1) by striking ''Appointments'' and inserting the following:

''(a) IN GENERAL.—Appointments''; and

(2) by adding at the end the following:

''(b) DELEGATION OF APPOINTMENT AUTHORITY.—If the President delegates authority to the Secretary to make appointments under this section, the President shall, during a period in which the position of the Secretary is vacant, delegate such authority to the Deputy Secretary of Commerce or the Under Secretary for Oceans and Atmosphere during such period.''.

SEC. 204. TEMPORARY APPOINTMENTS.

(a) IN GENERAL.—Section 229 (33 U.S.C. 3029) is amended to read as follows:

''SEC. 229. TEMPORARY APPOINTMENTS.

''(a) APPOINTMENTS BY PRESIDENT.—Temporary appointments in the grade of ensign, lieutenant junior grade, or lieutenant may be made by the President.

''(b) TERMINATION.—A temporary appointment to a position under subsection (a) shall terminate upon approval of a permanent appointment for such position made by the President.

''(c) ORDER OF PRECEDENCE.—Appointees under subsection (a) shall take precedence in the grade to which appointed in accordance with the dates of their appointments as officers in such grade. The order of precedence of appointees who are appointed on the same date shall be determined by the Secretary.

''(d) ANY ONE GRADE.—When determined by the Secretary to be in the best interest of

the commissioned officer corps, officers in any permanent grade may be temporarily promoted one grade by the President. Any such temporary promotion terminates upon the transfer of the officer to a new assignment.

''(e) DELEGATION OF APPOINTMENT AUTHORITY.—If the President delegates authority to the Secretary to make appointments under this section, the President shall, during a period in which the position of the Secretary is vacant, delegate such authority to the Deputy Secretary of Commerce or the Under Secretary for Oceans and Atmosphere during such period.''.

(b) CLERICAL AMENDMENT.—The table of sections in section 1 of the Act entitled ''An Act to authorize the Hydrographic Service Improvement Act of 1998, and for other purposes'' (Public Law 107–372) is amended by striking the item relating to section 229 and inserting the following:

''Sec. 229. Temporary appointments.''.

SEC. 205. OFFICER CANDIDATES.

(a) IN GENERAL.—Subtitle B (33 U.S.C. 3021 et seq.) is amended by adding at the end the following:

''SEC. 234. OFFICER CANDIDATES.

''(a) DETERMINATION OF NUMBER.—The Secretary shall determine the number of appointments of officer candidates.

''(b) APPOINTMENT.—Appointment of officer candidates shall be made under regulations which the Secretary shall prescribe, including regulations with respect to determining age limits, methods of selection of officer candidates, term of service as an officer candidate before graduation from the program, and all other matters affecting such appointment.

''(c) DISMISSAL.—The Secretary may dismiss from the basic officer training program of the Administration any officer candidate who, during the officer candidate's term as an officer candidate, the Secretary considers unsatisfactory in either academics or conduct, or not adapted for a career in the commissioned officer corps of the Administration. Officer candidates shall be subject to rules governing discipline prescribed by the Director of the National Oceanic and Atmospheric Administration Commissioned Officer Corps.

''(d) AGREEMENT.—

''(1) IN GENERAL.—Each officer candidate shall sign an agreement with the Secretary in accordance with section 216(a)(2) regarding the officer candidate's term of service in the commissioned officer corps of the Administration.

''(2) ELEMENTS.—An agreement signed by an officer candidate under paragraph (1) shall provide that the officer candidate agrees to the following:

''(A) That the officer candidate will complete the course of instruction at the basic officer training program of the Administration.

''(B) That upon graduation from the such program, the officer candidate—

''(i) will accept an appointment, if tendered, as an officer; and

''(ii) will serve on active duty for at least 4 years immediately after such appointment.

''(e) REGULATIONS.—The Secretary shall prescribe regulations to carry out this section. Such regulations shall include—

''(1) standards for determining what constitutes a breach of an agreement signed under such subsection (d)(1); and

''(2) procedures for determining whether such a breach has occurred.

''(f) REPAYMENT.—An officer candidate or former officer candidate who does not fulfill the terms of the obligation to serve as specified under section (d) shall be subject to the repayment provisions of section 216(b).''.

(b) CLERICAL AMENDMENT.—The table of sections in section 1 of the Act entitled ''An Act to authorize the Hydrographic Service Improvement Act of 1998, and for other purposes'' (Public Law 107–372) is amended by inserting after the item relating to section 233 the following:

''Sec. 234. Officer candidates.''.

(c) OFFICER CANDIDATE DEFINED.—Section 212(b) (33 U.S.C. 3002(b)) is amended—

(1) by redesignating paragraphs (4) through (6) as paragraphs (5) through (7), respectively; and

(2) by inserting after paragraph (3) the following:

''(4) OFFICER CANDIDATE.—The term 'officer candidate' means an individual who is enrolled in the basic officer training program of the Administration and is under consideration for appointment as an officer under section 221(a)(2)(A).''.

(d) PAY FOR OFFICER CANDIDATES.—Section 203 of title 37, United States Code, is amended by adding at the end the following:

''(f)(1) An officer candidate enrolled in the basic officer training program of the commissioned officer corps of the National Oceanic and Atmospheric Administration is entitled, while participating in such program, to monthly officer candidate pay at monthly rate equal to the basic pay of an enlisted member in the pay grade E–5 with less than 2 years service.

''(2) An individual who graduates from such program shall receive credit for the time spent participating in such program as if such time were time served while on active duty as a commissioned officer. If the individual does not graduate from such program, such time shall not be considered creditable for active duty or pay.''.

SEC. 206. PROCUREMENT OF PERSONNEL.

(a) IN GENERAL.—Subtitle B (33 U.S.C. 3021 et seq.), as amended by section 205(a), is further amended by adding at the end the following:

''SEC. 235. PROCUREMENT OF PERSONNEL.

''The Secretary may make such expenditures as the Secretary considers necessary in order to obtain recruits for the commissioned officer corps of the Administration, including advertising.''.

(b) CLERICAL AMENDMENT.—The table of sections in section 1 of the Act entitled ''An Act to authorize the Hydrographic Service Improvement Act of 1998, and for other purposes'' (Public Law 107–372), as amended by section 205(b), is further amended by inserting after the item relating to section 234 the following:

''235. Procurement of personnel.''.

TITLE III—SEPARATION AND RETIREMENT OF OFFICERS

SEC. 301. INVOLUNTARY RETIREMENT OR SEPARATION.

Section 241 (33 U.S.C. 3041) is amended by adding at the end the following:

''(d) DEFERMENT OF RETIREMENT OR SEPARATION FOR MEDICAL REASONS.—

''(1) IN GENERAL.—If the Secretary determines that the evaluation of the medical condition of an officer requires hospitalization or medical observation that cannot be completed with confidence in a manner consistent with the officer's well being before the date on which the officer would otherwise be required to retire or be separated under this section, the Secretary may defer the retirement or separation of the officer.

''(2) CONSENT REQUIRED.—A deferment may only be made with the written consent of the officer involved. If the officer does not provide written consent to the deferment, the officer shall be retired or separated as scheduled.

''(3) LIMITATION.—A deferral of retirement or separation under this subsection may not extend for more than 30 days after completion of the evaluation requiring hospitalization or medical observation.''.

SEC. 302. SEPARATION PAY.

Section 242 (33 U.S.C. 3042) is amended by adding at the end the following:

''(d) EXCEPTION.—An officer discharged for twice failing selection for promotion to the next higher grade is not entitled to separation pay under this section if the officer—

''(1) expresses a desire not to be selected for promotion; or

''(2) requests removal from the list of selectees.''.

TITLE IV—RIGHTS AND BENEFITS

SEC. 401. EDUCATION LOAN REPAYMENT PROGRAM.

(a) IN GENERAL.—Subtitle E (33 U.S.C. 3071 et seq.) is amended by adding at the end the following:

''SEC. 267. EDUCATION LOAN REPAYMENT PROGRAM.

''(a) AUTHORITY TO REPAY EDUCATION LOANS.—For the purpose of maintaining adequate numbers of officers of the commissioned officer corps of the Administration on active duty who have skills required by the commissioned officer corps, the Secretary may repay, in the case of a person described in subsection (b), a loan that—

''(1) was used by the person to finance education; and

''(2) was obtained from a governmental entity, private financial institution, educational institution, or other authorized entity.

''(b) ELIGIBLE PERSONS.—To be eligible to obtain a loan repayment under this section, a person must—

''(1) satisfy 1 of the requirements specified in subsection (c);

''(2) be fully qualified for, or hold, an appointment as a commissioned officer in the commissioned officer corps of the Administration; and

''(3) sign a written agreement to serve on active duty, or, if on active duty, to remain on active duty for a period in addition to any other incurred active duty obligation.

''(c) ACADEMIC AND PROFESSIONAL REQUIREMENTS.—One of the following academic requirements must be satisfied for purposes of determining the eligibility of an individual for a loan repayment under this section:

''(1) The person is fully qualified in a profession that the Secretary has determined to be necessary to meet identified skill shortages in the commissioned officer corps.

''(2) The person is enrolled as a full-time student in the final year of a course of study at an accredited educational institution (as determined by the Secretary of Education) leading to a degree in a profession that will meet identified skill shortages in the commissioned officer corps.

''(d) LOAN REPAYMENTS.—

''(1) IN GENERAL.—Subject to the limits established under paragraph (2), a loan repayment under this section may consist of the payment of the principal, interest, and related expenses of a loan obtained by a person described in subsection (b).

''(2) LIMITATION ON AMOUNT.—For each year of obligated service that a person agrees to serve in an agreement described in subsection (b)(3), the Secretary may pay not more than the amount specified in section 2173(e)(2) of title 10, United States Code.

''(e) ACTIVE DUTY SERVICE OBLIGATION.—

''(1) IN GENERAL.—A person entering into an agreement described in subsection (b)(3) incurs an active duty service obligation.

''(2) LENGTH OF OBLIGATION DETERMINED UNDER REGULATIONS.—

''(A) IN GENERAL.—Except as provided in subparagraph (B), the length of the obligation under paragraph (1) shall be determined

under regulations prescribed by the Secretary.

''(B) MINIMUM OBLIGATION.—The regulations prescribed under subparagraph (A) may not provide for a period of obligation of less than 1 year for each maximum annual amount, or portion thereof, paid on behalf of the person for qualified loans.

''(3) PERSONS ON ACTIVE DUTY BEFORE ENTERING INTO AGREEMENT.—The active duty service obligation of persons on active duty before entering into the agreement shall be served after the conclusion of any other obligation incurred under the agreement.

''(f) EFFECT OF FAILURE TO COMPLETE OBLIGATION.—

''(1) ALTERNATIVE OBLIGATIONS.—An officer who is relieved of the officer's active duty obligation under this section before the completion of that obligation may be given any alternative obligation, at the discretion of the Secretary.

''(2) REPAYMENT.—An officer who does not complete the period of active duty specified in the agreement entered into under subsection (b)(3), or the alternative obligation imposed under paragraph (1), shall be subject to the repayment provisions under section 216.

''(g) RULEMAKING.—The Secretary shall prescribe regulations to carry out this section, including—

''(1) standards for qualified loans and authorized payees; and

''(2) other terms and conditions for the making of loan repayments.''.

(b) CLERICAL AMENDMENT.—The table of sections in section 1 of the Act entitled ''An Act to authorize the Hydrographic Service Improvement Act of 1998, and for other purposes'' (Public Law 107–372) is amended by inserting after the item relating to section 266 the following:

''Sec. 267. Education loan repayment program.''.

SEC. 402. INTEREST PAYMENT PROGRAM.

(a) IN GENERAL.—Subtitle E (33 U.S.C. 3071 et seq.), as amended by section 401(a), is further amended by adding at the end the following:

''SEC. 268. INTEREST PAYMENT PROGRAM.

''(a) AUTHORITY.—The Secretary may pay the interest and any special allowances that accrue on 1 or more student loans of an eligible officer, in accordance with this section.

''(b) ELIGIBLE OFFICERS.—An officer is eligible for the benefit described in subsection (a) while the officer—

''(1) is serving on active duty;

''(2) has not completed more than 3 years of service on active duty;

''(3) is the debtor on 1 or more unpaid loans described in subsection (c); and

''(4) is not in default on any such loan.

''(c) STUDENT LOANS.—The authority to make payments under subsection (a) may be exercised with respect to the following loans:

''(1) A loan made, insured, or guaranteed under part B of title IV of the Higher Education Act of 1965 (20 U.S.C. 1071 et seq.).

''(2) A loan made under part D of such title (20 U.S.C. 1087a et seq.).

''(3) A loan made under part E of such title (20 U.S.C. 1087aa et seq.).

''(d) MAXIMUM BENEFIT.—Interest and any special allowance may be paid on behalf of an officer under this section for any of the 36 consecutive months during which the officer is eligible under subsection (b).

''(e) FUNDS FOR PAYMENTS.—The Secretary may use amounts appropriated for the pay and allowances of personnel of the commissioned officer corps of the Administration for payments under this section.

''(f) COORDINATION WITH SECRETARY OF EDUCATION.—

''(1) IN GENERAL.—The Secretary shall consult with the Secretary of Education regarding the administration of this section.

''(2) TRANSFER OF FUNDS.—The Secretary shall transfer to the Secretary of Education the funds necessary—

''(A) to pay interest and special allowances on student loans under this section (in accordance with sections 428(o), 455(l), and 464(j) of the Higher Education Act of 1965 (20 U.S.C. 1078(o), 1087e(l), and 1087dd(j)); and

''(B) to reimburse the Secretary of Education for any reasonable administrative costs incurred by the Secretary in coordinating the program under this section with the administration of the student loan programs under parts B, D, and E of title IV of the Higher Education Act of 1965 (20 U.S.C. 1071 et seq., 1087a et seq., 1087aa et seq.).

''(g) SPECIAL ALLOWANCE DEFINED.—In this section, the term 'special allowance' means a special allowance that is payable under section 438 of the Higher Education Act of 1965 (20 U.S.C. 1087–1).''.

(b) CONFORMING AMENDMENTS.—

(1) Section 428(o) of the Higher Education Act of 1965 (20 U.S.C. 1078(o)) is amended—

(A) by striking the subsection heading and inserting ''ARMED FORCES AND NOAA COMMISSIONED OFFICER CORPS STUDENT LOAN INTEREST PAYMENT PROGRAMS''; and

(B) in paragraph (1)—

(i) by inserting ''or section 264 of the National Oceanic and Atmospheric Administration Commissioned Officer Corps Act of 2002'' after ''Code,''; and

(ii) by inserting ''or an officer in the commissioned officer corps of the National Oceanic and Atmospheric Administration, respectively,'' after ''Armed Forces''.

(2) Sections 455(l) and 464(j) of the Higher Education Act of 1965 (20 U.S.C. 1087e(l) and 1087dd(j)) are each amended—

(A) by striking the subsection heading and inserting ''ARMED FORCES AND NOAA COMMISSIONED OFFICER CORPS STUDENT LOAN INTEREST PAYMENT PROGRAMS''; and

(B) in paragraph (1)—

(i) by inserting ''or section 264 of the National Oceanic and Atmospheric Administration Commissioned Officer Corps Act of 2002'' after ''Code,''; and

(ii) by inserting ''or an officer in the commissioned officer corps of the National Oceanic and Atmospheric Administration, respectively'' after ''Armed Forces''.

(c) CLERICAL AMENDMENT.—The table of sections in section 1 of the Act entitled ''An Act to authorize the Hydrographic Service Improvement Act of 1998, and for other purposes'' (Public Law 107–372), as amended by section 401(b), is further amended by inserting after the item relating to section 267 the following:

''Sec. 268. Interest payment program.''.

SEC. 403. STUDENT PRE-COMMISSIONING EDUCATION ASSISTANCE PROGRAM.

(a) IN GENERAL.—Subtitle E (33 U.S.C. 3071 et seq.), as amended by sections 401(a) and 402(a), is further amended by adding at the end the following:

''SEC. 269. STUDENT PRE-COMMISSIONING EDUCATION ASSISTANCE PROGRAM.

''(a) AUTHORITY TO PROVIDE FINANCIAL ASSISTANCE.—For the purpose of maintaining adequate numbers of officers of the commissioned officer corps of the Administration on active duty, the Secretary may provide financial assistance to a person described in subsection (b) for expenses of the person while the person is pursuing on a full-time basis at an accredited educational institution (as determined by the Secretary of Education) a program of education approved by the Secretary that leads to—

''(1) a baccalaureate degree in not more than 5 academic years; or

''(2) a postbaccalaureate degree.

''(b) ELIGIBLE PERSONS.—

''(1) IN GENERAL.—A person is eligible to obtain financial assistance under subsection (a) if the person—

''(A) is enrolled on a full-time basis in a program of education referred to in subsection (a) at any educational institution described in such subsection;

''(B) meets all of the requirements for acceptance into the commissioned officer corps of the Administration except for the completion of a baccalaureate degree; and

''(C) enters into a written agreement with the Secretary described in paragraph (2).

''(2) AGREEMENT.—A written agreement referred to in paragraph (1)(C) is an agreement between the person and the Secretary in which the person agrees—

''(A) to accept an appointment as an officer, if tendered; and

''(B) upon completion of the person's educational program, agrees to serve on active duty, immediately after appointment, for—

''(i) up to 3 years if the person received less than 3 years of assistance; and

''(ii) up to 5 years if the person received at least 3 years of assistance.

''(c) QUALIFYING EXPENSES.—Expenses for which financial assistance may be provided under subsection (a) are the following:

''(1) Tuition and fees charged by the educational institution involved.

''(2) The cost of books.

''(3) In the case of a program of education leading to a baccalaureate degree, laboratory expenses.

''(4) Such other expenses as the Secretary considers appropriate.

''(d) LIMITATION ON AMOUNT.—The Secretary shall prescribe the amount of financial assistance provided to a person under subsection (a), which may not exceed the amount specified in section 2173(e)(2) of title 10, United States Code, for each year of obligated service that a person agrees to serve in an agreement described in subsection (b)(2).

''(e) DURATION OF ASSISTANCE.—Financial assistance may be provided to a person under subsection (a) for not more than 5 consecutive academic years.

''(f) SUBSISTENCE ALLOWANCE.—

''(1) IN GENERAL.—A person who receives financial assistance under subsection (a) shall be entitled to a monthly subsistence allowance at a rate prescribed under paragraph (2) for the duration of the period for which the person receives such financial assistance.

''(2) DETERMINATION OF AMOUNT.—The Secretary shall prescribe monthly rates for subsistence allowance provided under paragraph (1), which shall be equal to the amount specified in section 2144(a) of title 10, United States Code.

''(g) INITIAL CLOTHING ALLOWANCE.—

''(1) TRAINING.—The Secretary may prescribe a sum which shall be credited to each person who receives financial assistance under subsection (a) to cover the cost of the person's initial clothing and equipment issue.

''(2) APPOINTMENT.—Upon completion of the program of education for which a person receives financial assistance under subsection (a) and acceptance of appointment in the commissioned officer corps of the Administration, the person may be issued a subsequent clothing allowance equivalent to that normally provided to a newly appointed officer.

''(h) TERMINATION OF FINANCIAL ASSISTANCE.—

''(1) IN GENERAL.—The Secretary shall terminate the assistance provided to a person under this section if—

''(A) the Secretary accepts a request by the person to be released from an agreement described in subsection (b)(2);

''(B) the misconduct of the person results in a failure to complete the period of active duty required under the agreement; or

''(C) the person fails to fulfill any term or condition of the agreement.

''(2) REIMBURSEMENT.—The Secretary may require a person who receives assistance described in subsection (c), (f), or (g) under an agreement entered into under subsection (b)(1)(C) to reimburse the Secretary in an amount that bears the same ratio to the total costs of the assistance provided to that person as the unserved portion of active duty bears to the total period of active duty the officer agreed to serve under the agreement.

''(3) WAIVER.—The Secretary may waive the service obligation of a person through an agreement entered into under subsection (b)(1)(C) if the person—

''(A) becomes unqualified to serve on active duty in the commissioned officer corps of the Administration because of a circumstance not within the control of that person; or

''(B) is—

''(i) not physically qualified for appointment; and

''(ii) determined to be unqualified for service in the commissioned officer corps of the Administration because of a physical or medical condition that was not the result of the person's own misconduct or grossly negligent conduct.

''(4) OBLIGATION AS DEBT TO UNITED STATES.—An obligation to reimburse the Secretary imposed under paragraph (2) is, for all purposes, a debt owed to the United States.

''(5) DISCHARGE IN BANKRUPTCY.—A discharge in bankruptcy under title 11, United States Code, that is entered less than 5 years after the termination of a written agreement entered into under subsection (b)(1)(C) does not discharge the person signing the agreement from a debt arising under such agreement or under paragraph (2).

''(i) REGULATIONS.—The Secretary may promulgate such regulations and orders as the Secretary considers appropriate to carry out this section.''.

(b) CLERICAL AMENDMENT.—The table of sections in section 1 of the Act entitled ''An Act to authorize the Hydrographic Service Improvement Act of 1998, and for other purposes'' (Public Law 107–372), as amended by section 402(c), is further amended by inserting after the item relating to section 268 the following:

''Sec. 269. Student pre-commissioning education assistance program.''.

SEC. 404. LIMITATION ON EDUCATIONAL ASSISTANCE.

(a) IN GENERAL.—Each fiscal year, beginning with fiscal year 2013, the Secretary of Commerce shall ensure that the total amount expended by the Secretary under section 267 of the National Oceanic and Atmospheric Administration Commissioned Officer Corps Act of 2002 (as added by section 401(a)), section 268 of such Act (as added by section 402(a)), and section 269 of such Act (as added by section 403(a)) does not exceed the amount by which—

(1) the total amount the Secretary would pay in that fiscal year to officer candidates under section 203(f)(1) of title 37, United States Code (as added by section 205(d)), if such section entitled officers candidates to pay at monthly rates equal to the basic pay of a commissioned officer in the pay grade O–1 with less than 2 years of service; exceeds

(2) the total amount the Secretary actually pays in that fiscal year to officer candidates under section 203(f)(1) of such title (as so added).

(b) OFFICER CANDIDATE DEFINED.—In this section, the term ''officer candidate'' has the meaning given the term in section 212 of the National Oceanic and Atmospheric Administration Commissioned Officer Corps Act of 2002 (33 U.S.C. 3002), as added by section 205(c).

SEC. 405. APPLICABILITY OF CERTAIN PROVISIONS OF TITLE 10, UNITED STATES CODE.

Section 261(a) (33 U.S.C. 3071(a)) is amended—

(1) by redesignating paragraphs (13) through (16) as paragraphs (20) through (23), respectively;

(2) by redesignating paragraphs (7) through (12) as paragraphs (12) through (17), respectively;

(3) by redesignating paragraphs (4) through (6) as paragraphs (8) through (10), respectively;

(4) by inserting after paragraph (3) the following:

''(4) Section 771, relating to unauthorized wearing of uniforms.

''(5) Section 774, relating to wearing religious apparel while in uniform.

''(6) Section 982, relating to service on State and local juries.

''(7) Section 1031, relating to administration of oaths.'';

(5) by inserting after paragraph (10), as redesignated, the following:

''(11) Chapter 58, relating to the Benefits and Services for members being separated or recently separated.''; and

(6) by inserting after paragraph (17), as redesignated, the following:

''(18) Subchapter I of chapter 88, relating to Military Family Programs.

''(19) Section 2005, relating to advanced education assistance, active duty agreements, and reimbursement requirements.''.

SEC. 406. APPLICABILITY OF CERTAIN PROVISIONS OF TITLE 37, UNITED STATES CODE.

(a) IN GENERAL.—Subtitle E (33 U.S.C. 3071 et seq.) is amended by inserting after section 261 the following:

''SEC. 261A. APPLICABILITY OF CERTAIN PROVISIONS OF TITLE 37, UNITED STATES CODE.

''(a) PROVISIONS MADE APPLICABLE TO COMMISSIONED OFFICER CORPS.—The provisions of law applicable to the Armed Forces under the following provisions of title 37, United States Code, shall apply to the commissioned officer corps of the Administration:

''(1) Section 324, relating to accession bonuses for new officers in critical skills.

''(2) Section 403(f)(3), relating to prescribing regulations defining the terms 'field duty' and 'sea duty'.

''(3) Section 403(l), relating to temporary continuation of housing allowance for dependents of members dying on active duty.

''(4) Section 414(a)(2), relating to personal money allowance while serving as Director of the National Oceanic and Atmospheric Administration Commissioned Officer Corps.

''(5) Section 488, relating to allowances for recruiting expenses.

''(6) Section 495, relating to allowances for funeral honors duty.

''(b) REFERENCES.—The authority vested by title 37, United States Code, in the 'military departments', 'the Secretary concerned', or 'the Secretary of Defense' with respect to the provisions of law referred to in subsection (a) shall be exercised, with respect to the commissioned officer corps of the Administration, by the Secretary of Commerce or the Secretary's designee.''.

(b) CLERICAL AMENDMENT.—The table of sections in section 1 of the Act entitled ''An Act to authorize the Hydrographic Service Improvement Act of 1998, and for other purposes'' (Public Law 107–372) is amended by inserting after the item relating to section 261 the following:

''Sec. 261A. Applicability of certain provisions of title 37, United States Code.''.

SEC. 407. APPLICATION OF CERTAIN PROVISIONS OF COMPETITIVE SERVICE LAW.

Section 3304(f) of title 5, United States Code, is amended—

(1) in paragraph (1), by inserting ''and members of the commissioned officer corps of the National Oceanic and Atmospheric Administration (or its predecessor organization the Coast and Geodetic Survey) separated from such uniformed service'' after ''separated from the armed forces'';

(2) in paragraph (2), by striking ''or veteran'' and inserting '', veteran, or member''; and

(3) in paragraph (4), by inserting ''and members of the commissioned officer corps of the National Oceanic and Atmospheric Administration (or its predecessor organization the Coast and Geodetic Survey) separated from such uniformed service'' after ''separated from the armed forces''.

SEC. 408. ELIGIBILITY OF ALL MEMBERS OF UNIFORMED SERVICES FOR LEGION OF MERIT AWARD.

Section 1121 of title 10, United States Code, is amended by striking ''armed forces'' and inserting ''uniformed services''.

SEC. 409. APPLICATION OF EMPLOYMENT AND REEMPLOYMENT RIGHTS OF MEMBERS OF THE UNIFORMED SERVICES TO MEMBERS OF COMMISSIONED OFFICER CORPS.

Section 4303(16) of title 38, United States Code, is amended by inserting ''the commissioned officer corps of the National Oceanic and Atmospheric Administration,'' after ''Public Health Service,''.

SEC. 410. PROTECTED COMMUNICATIONS FOR COMMISSIONED OFFICER CORPS AND PROHIBITION OF RETALIATORY PERSONNEL ACTIONS.

(a) IN GENERAL.—Subsection (a) of section 261 (33 U.S.C. 3071), as amended by section 405, is further amended—

(1) by redesignating paragraphs (8) through (23) as paragraphs (9) through (24), respectively; and

(2) by inserting after paragraph (7) the following:

''(8) Section 1034, relating to protected communications and prohibition of retaliatory personnel actions.''.

(b) CONFORMING AMENDMENT.—Subsection (b) of such section is amended by adding at the end the following: ''For purposes of paragraph (8) of subsection (a), the term 'Inspector General' in section 1034 of such title 10 shall mean the Inspector General of the Department of Commerce.''.

SEC. 411. CRIMINAL PENALTIES FOR WEARING UNIFORM WITHOUT AUTHORITY.

Section 702 of title 18, United States Code, is amended by striking ''Service or any'' and inserting ''Service, the commissioned officer corps of the National Oceanic and Atmospheric Administration, or any''.

SEC. 412. TREATMENT OF COMMISSION IN COMMISSIONED OFFICER CORPS AS EMPLOYMENT IN NATIONAL OCEANIC AND ATMOSPHERIC ADMINISTRATION FOR PURPOSES OF CERTAIN HIRING DECISIONS.

(a) IN GENERAL.—Subtitle E (33 U.S.C. 3071 et seq.), as amended by this title, is further amended by adding at the end the following:

''SEC. 269A. TREATMENT OF COMMISSION IN COMMISSIONED OFFICER CORPS AS EMPLOYMENT IN ADMINISTRATION FOR PURPOSES OF CERTAIN HIRING DECISIONS.

''(a) IN GENERAL.—In any case in which the Secretary accepts an application for a position of employment with the Administration and limits consideration of applications for such position to applications submitted by individuals serving in a career or career-conditional position in the competitive service within the Administration, the Secretary shall deem an officer who has served as an

officer in the commissioned officer corps for at least 3 years to be serving in a career or career-conditional position in the competitive service within the Administration for purposes of such limitation.

''(b) CAREER APPOINTMENTS.—If the Secretary selects an application submitted by an officer described in subsection (a) for a position described in such subsection, the Secretary shall give such officer a career or career-conditional appointment in the competitive service, as appropriate.

''(c) COMPETITIVE SERVICE DEFINED.—In this section, the term 'competitive service' has the meaning given the term in section 2102 of title 5, United States Code.''.

(b) CLERICAL AMENDMENT.—The table of sections in section 1 of the Act entitled ''An Act to authorize the Hydrographic Service Improvement Act of 1998, and for other purposes'' (Public Law 107–372) is amended by inserting after the item relating to section 269, as added by this title, the following new item:

''Sec. 269A. Treatment of commission in commissioned officer corps as employment in Administration for purposes of certain hiring decisions.''.

TITLE V—OTHER MATTERS

SEC. 501. TECHNICAL CORRECTION.

Section 101(21)(C) of title 38, United States Code, is amended by inserting ''in the commissioned officer corps'' before ''of the National''.

SEC. 502. REPORT.

(a) IN GENERAL.—Not later than 90 days after the date of the enactment of this Act, the Secretary of Commerce shall submit to Congress a report evaluating the current status and projected needs of the commissioned officer corps of the National Oceanic and Atmospheric Administration to operate sufficiently through fiscal year 2017.

(b) CONTENTS.—The report required by subsection (a) shall include the following:

(1) The average annual attrition rate of officers in the commissioned officer corps of the National Oceanic and Atmospheric Administration.

(2) An estimate of the number of annual recruits that would reasonably be required to operate the commissioned officer corps sufficiently through fiscal year 2017.

(3) The projected impact of this Act on annual recruitment numbers through fiscal year 2017.

(4) Identification of areas of duplication or unnecessary redundancy in current activities of the commissioned officer corps that could otherwise be streamlined or eliminated to save costs.

(5) Such other matters as the Secretary considers appropriate regarding the provisions of this Act and the amendments made by this Act.

SEC. 503. EFFECTIVE DATE.

Notwithstanding any other provision of this Act, sections 101 through 411 shall take effect on the date that is 90 days after the date on which the Secretary of Commerce submits to Congress the report required by section 502(a).

APPOINTMENTS

THE PRESIDING OFFICER. The Chair, on behalf of the Vice President, pursuant to 10 U.S.C. 9355(a), appoints the following Senator to the Board of Visitors of the U.S. Air Force Academy: The Honorable JERRY MORAN of Kansas, vice The Honorable JOHN HOEVEN of North Dakota.

The Chair, on behalf of the Vice President, pursuant to Section 1295b(h) of title 46 App., United States Code, and upon the recommendation of the Chairman of the Committee on Commerce, Science and Transportation, appoints the following Senators to the Board of Visitors of the U.S. Merchant Marine Academy: The Honorable JOHN BOOZMAN of Arkansas and The Honorable ROGER WICKER of Mississippi.

ORDERS FOR WEDNESDAY, FEBRUARY 12, 2014

Mr. REID. I ask unanimous consent that when the Senate completes its business today, it adjourn until 9:30 a.m. tomorrow, February 12, 2014; that following the prayer and pledge the morning hour be deemed expired, the Journal of proceedings be approved to date, and the time for the two leaders be reserved for their use later in the day; that following any leader remarks, the Senate be in a period of morning business until 11 a.m., with Senators permitted to speak therein for up to 10 minutes each, with the time equally divided and controlled between the two leaders or their designees, with the Republicans controlling the first half and the majority controlling the final half; and that following morning business, the Senate proceed to executive session under the previous order.

The PRESIDING OFFICER. Without objection, it is so ordered.

PROGRAM

Mr. REID. So there will be up to four rollcall votes starting at 11:30 a.m. tomorrow. We expect to receive the debt limit legislation and the military retirement pay bill from the House tomorrow and we hope to consider both items during tomorrow's session.

ADJOURNMENT UNTIL 9:30 A.M. TOMORROW

Mr. REID. If there is no further business to come before the Senate, I ask unanimous consent that it adjourn under the previous order.

There being no objection, the Senate, at 6:45 p.m., adjourned until Wednesday, February 12, 2014, at 9:30 a.m.

CONFIRMATIONS

Executive nominations confirmed by the Senate February 11, 2014:

DEPARTMENT OF STATE

RICHARD STENGEL, OF NEW YORK, TO BE UNDER SECRETARY OF STATE FOR PUBLIC DIPLOMACY.

SARAH SEWALL, OF MASSACHUSETTS, TO BE AN UNDER SECRETARY OF STATE (CIVILIAN SECURITY, DEMOCRACY, AND HUMAN RIGHTS).

CHARLES HAMMERMAN RIVKIN, OF THE DISTRICT OF COLUMBIA, TO BE AN ASSISTANT SECRETARY OF STATE (ECONOMIC AND BUSINESS AFFAIRS).

DEPARTMENT OF VETERANS AFFAIRS

SLOAN D. GIBSON, OF THE DISTRICT OF COLUMBIA, TO BE DEPUTY SECRETARY OF VETERANS AFFAIRS.

EXTENSIONS OF REMARKS

TRIBUTE TO HON. WILLIAM ENGLE III

HON. HAROLD ROGERS

OF KENTUCKY

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 11, 2014

Mr. ROGERS of Kentucky. Mr. Speaker, I rise today to pay tribute to one of eastern Kentucky's toughest leaders, both in and out of the courtroom, Chief Circuit Judge for Kentucky's Thirty-Third Judicial Circuit, the Honorable William Engle III, upon his upcoming retirement.

Judge Engle made a profound impression on Kentucky's Perry County when he first won a special election in 2004 to take the bench. He was determined to restore dignity and honor to the court that was mired by countless drug-related cases. One year earlier, our region was dubbed the nation's ''Painkiller Capital,'' and Judge Engle was determined to implement changes that could save the lives of people who entered his courtroom, and curb the tide of prescription drug abuse in Eastern Kentucky.

Fulfilling his pledge, Judge Engle established a Drug Court in Perry County in 2005, volunteering his own time to oversee the program. Drug Courts are designed to reduce the relapse rate of drug abusers and drug-related crime through substance abuse education, treatment, drug-testing, and counseling. With strict oversight, four participants made it to the first graduation ceremony in 2006. Since then, some 60 people have successfully graduated from this impressive treatment-alternative program in Perry County. Additionally, Judge Engle had the foresight to partner with a local workforce center to help Drug Court participants re-enter the workforce and build a career. His work has helped restore thousands of dollars in child support payments, as well as restitution and fines owed by the individuals. Most importantly, dozens of families have been transformed through the program and at least eleven drug-free babies have been born, giving them all a wonderful new beginning.

As he passes the gavel, Judge Engle leaves behind a legacy of fortitude in the law, yet humility in his service. His wisdom and passion will undoubtedly be sought after as the people of Perry County choose his successor.

Mr. Speaker, I ask my colleagues to join me in honoring a champion for drug-free communities, the Honorable William Engle III. I wish him all the best in the years to come.

IN RECOGNITION OF THE WISSAHICKON SKATING CLUB AND THE MERRITTON ATHLETIC ASSOCIATION

HON. PATRICK MEEHAN

OF PENNSYLVANIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 11, 2014

Mr. MEEHAN. Mr. Speaker, I rise today to recognize and congratulate the skaters and families, current and past, of the Wissahickon Skating Club in Chestnut Hill, Pennsylvania and the Merritton Athletic Association in St. Catherines, Ontario. This third weekend in February marks the 50th anniversary of the Wissahickon Skating Club—Merritton Athletic Association Hockey Exchange. For five decades without interruption, the organizations have taken turns hosting players and even entire families in their homes for a long weekend of festivities. The exchange culminates in a youth hockey tournament for which trophies are awarded to the victorious teams. It is understood to be the longest uninterrupted exchange of its type in international competition.

This tournament would not be possible without the vision of former Wissahickon hockey coach Walter Jewell and Merritton Athletic Association President, Walter Baum. Walter Jewell had been taking hockey teams to Canada since 1962. Looking to start his own tournament with a team from Canada, the Merritton Athletic Association was recommended to him. In November of 1964, the Merritton Athletic Association and Walter Baum received a letter written by Walter Jewell from the Wissahickon Skating Club seeking to arrange an exchange trip between the two organizations.

In March 1965 two teams from the Wissahickon Skating Club arrived as guests of the Merritton Athletic Association. The first games were a Pee Wee-Bantam double-header, taking place at the Thorold Arena in St. Catharines, Ontario, the home of the Merritton Athletic Association. The tournament trophies for this exchange were donated by the Wissahickon Skating Club for the Bantam level and the Kaupp Electric Trophy for the pee wee level. Each organization was victorious that weekend with the Merritton Pee Wees accepting the Kaupp Electric Trophy and the Wissahickon Bantams taking home the Bantam Trophy. No one had any idea at the time that 49 exchanges were to occur without ever missing a single year.

Mr. Speaker, this tournament brings back special memories for me. As an 11-year-old I can recall the adventurous bus ride, for the first of numerous visits to Canada, and the warm hospitality of the Greenough and Isherwood families who welcomed my older brother Mike and me into their homes. We visited Niagara Falls, learned how a cargo ship navigates a river lock and walked the floor of a paper mill, all the while growing closer to the same boys we would be skating against that evening. Lifetime bonds were formed. It was then and still remains so much more than a hockey game. It represents the warm and genuine affection Americans and Canadians have for each other and it is expressed through the rich tradition of friendly competition and the great game of ice hockey. The friendship endures through generations as fathers are reunited watching their sons skate on the same ice they remember playing on as children.

The 50th anniversary of this very special engagement of camaraderie and sportsmanship will be celebrated the weekend of February 13–15, 2014 in Chestnut Hill, Philadelphia. The two ''Walters'' would be proud of their legacy. I hope that this wonderful tradition can continue for the children of the children who will compete on this special 50th anniversary.

SPORTSMEN'S HERITAGE AND RECREATIONAL ENHANCEMENT ACT OF 2013

SPEECH OF

HON. GARY C. PETERS

OF MICHIGAN

IN THE HOUSE OF REPRESENTATIVES

Wednesday, February 5, 2014

The House in Committee of the Whole House on the state of the Union had under consideration the bill (H.R. 3590) to protect and enhance opportunities for recreational hunting, fishing, and shooting, and for other purposes:

Mr. PETERS of Michigan. Mr. Chair, I rise today in strong opposition to H.R. 3590, the SHARE Act of 2013. This bill contains a harmful provision that chips away at the Endangered Species Act (ESA) and the Marine Mammal Protection Act (MMPA) by retroactively allowing the import of sport-hunted polar bear trophies as Title IV of the bill. I submitted an amendment to the bill which would have struck Title IV, however the Rules Committee denied the members of this body an opportunity to vote on this issue. I am disappointed this legislation was not brought to the floor under an open rule which would have allowed consideration of my amendment so members could debate this precedent-setting provision.

Polar bears are protected from sport hunting in the United States, including the polar bear population in Alaska. In 2008 the Bush Administration listed the polar bear as a threatened species under the Endangered Species Act and the 1972 MMPA protects polar bears and other marine mammals. To allow American hunters to kill them for trophies in other countries is irresponsible and inconsistent with the bipartisan commitment to conserving the polar bear population.

According to the International Union for Conservation of Nature (IUCN), the polar bear is a ''vulnerable'' species based on a projected population reduction of more than 30 percent within three generations (45 years) due to a decrease in distribution and habitat quality. It is estimated there are fewer than 20,000 to 25,000 polar bears remaining in the wild.

● This ''bullet'' symbol identifies statements or insertions which are not spoken by a Member of the Senate on the floor.

Matter set in this typeface indicates words inserted or appended, rather than spoken, by a Member of the House on the floor.

Title IV of this bill exempts 41 trophy hunters who had proper notice of the impending prohibition on import of polar bear trophies. These 41 individuals hunted these bears after the Bush Administration proposed the species for listing as threatened under ESA, and all but one continued to hunt polar bears more than a year after the listing was proposed. Despite repeated warnings from hunting organizations and government agencies that they were hunting at their own risk because trophy imports were unlikely to be allowed as of the listing date, these individuals sport hunted polar bears anyway.

An example of warnings regarding the prospects of importing polar bear trophies comes from hunting rights organization Conservation Force. The group wrote to hunters in December 2007: ''American hunters are asking us whether they should even look at polar bear hunts in light of the current effort by the U.S. Fish & Wildlife Service to list this species as threatened . . . The bottom line is, no American hunter should be putting hard, non-returnable money down on a polar bear hunt at this point.'' The group also noted in January 2008: ''We feel compelled to tell you that American trophy hunters are likely to be barred from importing bears they take this season. Moreover, there is a chance that bears taken previous to this season may be barred as well. American clients with polar bear trophies still in Canada or Nunavut need to get those bears home.''

Conservation Force again reminded hunters that the ESA listing ''will stop all imports . . . immediately'' in April 2008. Later that same month, Safari Club International informed hunters: ''If some or all of the polar bear populations are listed, the FWS has indicated that imports of trophies from any listed populations would be barred as of that date, regardless of where in the process the application is.''

Congress should not change a law just because a few people did not heed clear and ample warnings. It is an affront to the millions of hunters and sportsmen who followed the law and observed the warning of government agencies and hunting organizations. The hunters that chose to travel to the Arctic to sport hunt polar bears should not receive special treatment. Doing so creates a moral hazard and establishes a dangerous precedent that could encourage rushes to sport hunt imperiled species prior to their formal listing as an endangered species. Those who wish to sport hunt imperiled species should understand they do so at their own risk and cannot rely on allies in Congress to bail them out with a retroactive waiver of critical conservation law.

Congress first carved out a loophole in the MMPA and allowed for more than 900 sport-hunted polar bear trophies to be imported into the United States from Canada in 1994. In 1997, Congress amended the MMPA to allow imports of polar bear trophies taken in sport hunts in Canada before April 1994, regardless of what population the bear was taken from, and despite the strict prohibition on trophy imports in place prior to 1994. In 2003, Congress amended the MMPA to allow imports of polar bear trophies taken in sport hunts in Canada before February 1997. This allowed imports regardless of what population the bear is taken from, and as long as the hunter proves that the bear is ''legally harvested in Canada.''

Today with H.R. 3590, we have yet another effort to allow polar bear imports. This time we are asked to approve an additional 41 trophies on top of the more than 1,000 already Congress previously sanctioned for import. How many times are we going to provide these ''one-time'' import allowances? Doing this repeatedly undermines the restrictions on killing rare species.

At a time when Congress should be working in a bipartisan basis to address many of the critical issues facing American families, more special treatment for wealthy sport hunters should not be a priority. I am disappointed that my amendment to strike Title IV was not made in order and that the House did not have an opportunity to further debate this matter.

RECOGNIZING THE 12TH ANNUAL BLACK HISTORY MONTH BRUNCH HOSTED BY THE GENESEE DISTRICT LIBRARY

HON. DANIEL T. KILDEE

OF MICHIGAN

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 11, 2014

Mr. KILDEE. Mr. Speaker, I ask the House of Representatives to join me in congratulating the Genesee District Library as they celebrate their 12th Annual Black History Month Brunch on Saturday, February 8th in Flint, Michigan.

Formed in 2002, this Black History Month Brunch has become a staple in our community, and is regarded as one of Genesee County's signature events. A portion of the proceeds raised will go to support the Genesee District Library's Summer Reading Program.

During this special Black History Month Brunch, the Genesee District Library will honor Carolyn Nash, Retired Executive Director, Genesee District Library; Louis Hawkins, Community Relation Administrator, HealthPlus of Michigan; Lawrence E. Moon, Owner, Lawrence E. Moon Funeral Home; and Bruce Bradley, CEO/Founder, Tapology, all for their unwavering commitment and significant contribution to our community. The event will also feature a performance from four-time Grammy Award and Academy Award winning vocalist, Regina Belle.

Mr. Speaker, I applaud the Genesee District Library for providing this opportunity for the community to join hands, recognize, and celebrate the contribution of local African Americans. This event captures the essence of Black History Month, and inspires residents to celebrate all year long.

HONORING 2013 FELLOWS OF THE NATIONAL ACADEMY OF INVENTORS

HON. KATHY CASTOR

OF FLORIDA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 11, 2014

Ms. CASTOR of Florida. Mr. Speaker, I rise today to honor the 143 inventors who will soon be recognized at the United States Patent and Trademark Office and inducted as the 2013 Fellows of the National Academy of Inventors by the United States Deputy Commissioner of Patent Operations, Andrew Faile. In order to be named as a Fellow, these men and women were nominated by their peers and have undergone the scrutiny of the NAI Selection Committee, having had their innovations deemed as making significant impact on quality of life, economic development and welfare of society. Collectively, this elite group holds more than 5,600 patents.

The individuals making up this year's class of Fellows include individuals from 94 research universities and non-profit research institutes spanning not just the United States but also the world. This group of inductees touts 26 presidents and senior leadership of research universities and non-profit research institutes, 69 members of the National Academies, five inductees of the National Inventors Hall of Fame, six recipients of the National Medal of Technology and Innovation, two recipients of the National Medal of Science, nine Nobel Laureates, and 23 AAAS Fellows, among other major awards and distinctions.

The contributions made to society through innovation are immeasurable. I commend these individuals, and the organizations that support them, for the work that they do to revolutionize the world we live in. As the following inventors are inducted, may it encourage future innovators to strive to meet this high honor and continue the spirit of innovation.

The 2013 NAI Fellows include:

Patrick Aebischer, Ecole Polytechnique Federale de Lausanne; Rakesh Agrawal, Purdue University; Dimitris Anastassiou, Columbia University; David E. Aspnes, North Carolina State University; Michael Bass, University of Central Florida; David J. Bayless, Ohio University; Kurt H. Becker, New York University; Carolyn R. Bertozzi, University of California, Berkeley; Rathindra N. Bose, University of Houston; David E. Briles, The University of Alabama at Birmingham; Richard D. Bucholz, Saint Louis University; Mark A. Burns, University of Michigan; Anne K. Camper, Montana State University; Lisa A. Cannon-Albright, The University of Utah; Charles R. Cantor, Boston University; Dennis A. Carson, University of California, San Diego; Carolyn L. Cason, The University of Texas at Arlington; David M. Center, Boston University; Vinton G. Cerf, National Science Foundation; Stephen Y. Chou, Princeton University.

Christos Christodoulatos, Stevens Institute of Technology; Benjamin Chu, Stony Brook University; Aaron J. Ciechanover, Technion-Israel Institute of Technology; Graeme M. Clark, The University of Melbourne; Leon N. Cooper, Brown University; Carlo M. Croce, The Ohio State University; William W. Cruikshank, Boston University; Brian T. Cunningham, University of Illinois at Urbana-Champaign; Jerome J. Cuomo, North Carolina State University; Narendra Dahotre, University of North Texas; William S. Dalton, H. Lee Moffitt Cancer Center; Rathindra DasGupta, National Science Foundation; Paul L. DeAngelis, The University of Oklahoma; William F. DeGrado, University of California, San Francisco; Peter J. Delfyett, University of Central Florida; Lawrence J. DeLucas, The University of Alabama at Birmingham; Steven P. DenBaars, University of California, Santa Barbara; Joseph M. DeSimone, The University of North Carolina at Chapel Hill; Spiros S. Dimolitsas, Georgetown University; Michael P. Doyle, The University of Georgia.

James A. Dumesic, University of Wisconsin-Madison; David A. Edwards, Harvard University; T. Taylor Eighmy, The University of Tennessee, Knoxville; John G. Elias, University of

Delaware; Ronald L. Elsenbaumer, The University of Texas at Arlington; Todd S. Emrick, University of Massachusetts Amherst; Liang-Shih Fan, The Ohio State University; Nariman Farvardin, Stevens Institute of Technology; Henry C. Foley, University of Missouri System; Ophir Frieder, Georgetown University; Fred H. Gage, Salk Institute for Biological Studies; Tillman U. Gerngross, Dartmouth College; George W. Gokel, University of Missouri-St. Louis; Clifford M. Gross, University of South Florida; Robert H. Grubbs, California Institute of Technology; Theodor W. Hänsch, Max-Planck-Institut für Quantenoptik Germany; Jeffrey H. Harwell, The University of Oklahoma; Jason C. Heikenfeld, University of Cincinnati; Benjamin S. Hsiao, Stony Brook University; Stephen D. H. Hsu, Michigan State University.

Lonnie O. Ingram, University of Florida; Tatsuo Itoh, University of California, Los Angeles; S. Sitharama Iyengar, Florida International University; Richard Jove, Vaccine and Gene Therapy Institute of Florida; Biing-Hwang Juang, Georgia Institute of Technology; Vistasp M. Karbhari, The University of Texas at Arlington; Joachim B. Kohn, Rutgers, The State University of New Jersey; George P. Korfiatis, Stevens Institute of Technology; Michael R. Ladisch, Purdue University; David C. Larbalestier, Florida State University; Cato T. Laurencin, University of Connecticut; Kam W. Leong, Duke University; Frank L. Lewis, The University of Texas at Arlington; Ping Liang, University of California, Riverside; Charles M. Lieber, Harvard University; Stephen B. Liggett, University of South Florida; Dennis C. Liotta, Emory University; Dmitri Litvinov, University of Houston; Michael R. Lovell, University of Wisconsin-Milwaukee; Richard J. Mammone, Rutgers, The State University of New Jersey.

Michael A. Marletta, The Scripps Research Institute; Edith Mathiowitz, Brown University; Krzysztof Matyjaszewski, Carnegie Mellon University; Constantinos Mavroidis, Northeastern University; Robert M. Metcalfe, The University of Texas at Austin; Gary K. Michelson, Twenty Million Minds Foundation; Robert H. Miller, Case Western Reserve University; Chad A. Mirkin, Northwestern University; Samir Mitragotri, University of California, Santa Barbara; Shanta M. Modak, Columbia University; Marsha A. Moses, Harvard University; Ferid Murad, The George Washington University; Hameed Naseem, University of Arkansas; Laura E. Niklason, Yale University; Santa J. Ono, University of Cincinnati; Sethuraman Panchanathan, Arizona State University; P. Hunter Peckham, Case Western Reserve University; Gholam A. Peyman, Tulane University; Glenn D. Prestwich, The University of Utah; Stephen R. Quake, Stanford University.

Dabbala R. Reddy, Carnegie Mellon University; Zhifeng Ren, University of Houston; Darrell H. Reneker, The University of Akron; John A. Rogers, University of Illinois at Urbana-Champaign; Bernard Roizman, The University of Chicago; Arye Rosen, Drexel University; Joseph C. Salamone, University of Massachusetts Lowell; W. Mark Saltzman, Yale University; Yoshiaki Sato, Kaatsu International University; Martin Schadt, Nanjing University; Vern L. Schramm, Yeshiva University; Sudipta Seal, University of Central Florida; Venkat Selvamanickam, University of Houston; Wei-Heng Shih, Drexel University; Mary Shire, University of Limerick, Ireland; Henry I. Smith, Massachusetts Institute of Technology; George F. Smoot III, University of California, Berkeley; Thomas C. Südhof, Stanford University; Subra Suresh, Carnegie Mellon University; Theodore F. Taraschi, Thomas Jefferson University.

Arthur J. Tipton, Southern Research Institute; Satish S. Udpa, Michigan State University; Kathryn E. Uhrich, Rutgers, The State University of New Jersey; Akos Vertes, The George Washington University; Vitaly J. Vodyanoy, Auburn University; John N. Vournakis, Medical University of South Carolina; Jay S. Walker, Cornell University; David R. Walt, Tufts University; Donald P. Weeks, University of Nebraska-Lincoln; Sherman M. Weissman, Yale University; James E. West, The Johns Hopkins University; Wayne C. Westerman, University of Delaware; George M. Whitesides, Harvard University; H. Kumar Wickramasinghe, University of California, Irvine; David J. Wineland, National Institute of Standards and Technology; Carl T. Wittwer, The University of Utah; Jerry M. Woodall, University of California, Davis; Mark S. Wrighton, Washington University in St. Louis; James J. Wynne, University of South Florida; Ralph T. Yang, University of Michigan; Frederic Zenhausern, The University of Arizona; Shuguang Zhang, Massachusetts Institute of Technology; Harald zur Hausen, German Cancer Research Center.

PERSONAL EXPLANATION

HON. BARBARA LEE

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 11, 2014

Ms. LEE of California. Mr. Speaker, I was not present for rollcall votes 55–56. Had I been present, I would have voted "yes" on rollcall votes 55 and 56.

HONORING ADA LUCILLE WILLIAMS UPON THE OCCASION OF HER 90TH BIRTHDAY

HON. BRIAN HIGGINS

OF NEW YORK

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 11, 2014

Mr. HIGGINS. Mr. Speaker, today I rise to honor the accomplishments of a virtuous woman, a professional homemaker, positive role model, counselor, proud mother, grandmother of nineteen grandchildren, fourteen great-grandchildren, and three great-great grandchildren, Ada Lucille Williams on the occasion of her 90th Birthday.

Ada Lucille Williams was born on February 29, 1924, in Vicksburg, Mississippi to her proud parents, Robert and Flora (Bass) Williams. Raised by her maternal grandmother, Hettie Bass, Ada grew up in the segregated South. She often recounts the life and struggles of African Americans during this time, noting that she and other black children walked to school, while white children rode past them on the school buses. Black children were responsible for purchasing their own books, while white children were provided with school books by their district. It was then she learned the valuable lessons about team work. She shared her textbooks with other children who were not fortunate enough to have them. This was an early lesson in creatively making ends meet.

Ada married the late James Louis Williams on September 2, 1942. They had nine children. Lucille and James migrated from Vicksburg to Niagara Falls, New York. Lucille joined the New Hope Baptist Church where she participated in the Missionary Society. Besides raising her children and grandchildren, Lucille participated in the March of Dimes, Muscular Dystrophy campaigns, and the Center Avenue Parent Teachers Association.

Affectionately called, "Ma Williams," she is a founding member of Mt. Zion Missionary Baptist Church, where she serves as Church Mother, Kitchen Committee Chairperson, Missionary Society President, Youth Choir Advisor, willing worker and provider of religious instruction.

Ada's favorite Scripture is Proverbs 22:6, "Train up a child in the way he should go, and when he is old, he will not depart from it." Her devotion to serving others is inspired by her deep spirituality.

Mr. Speaker, I thank you for allowing me a few moments to honor this special lady, an incredible citizen who commits her life to the betterment of others. I am thankful for Ada's many years of service to the community and I wish her many more good and prosperous years.

COMMEMORATING NORMAN AND NORMA BURMAH'S 83 YEARS OF MARRIAGE

HON. VANCE M. McALLISTER

OF LOUISIANA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 11, 2014

Mr. McALLISTER. Mr. Speaker, I rise today with great pride and pleasure to commemorate Norman and Norma Burmah on the occasion of their 83rd wedding anniversary.

Norman and Norma were introduced at the "Roof Garden Dance Hall" in New Orleans during a performance by the legendary Louis Armstrong, and were married on January 26, 1931.

Inspired by their Creole heritage, Norman and Norma created a livelihood by starting a successful catering business. They were blessed with two children, six grandchildren, and thirteen great grandchildren. They have stood steadfast in their faith over the years, still beginning each day in prayer. Norma's love for parties and traveling is what she claims have kept her young at heart. They enjoy the simple things in life: old movies, game shows, watching the New Orleans Saints and entertaining guests at their home. Until 2005, the Burmahs lived in New Orleans, where they met, until they sadly lost their home in Hurricane Katrina. The Burmahs now reside in Marksville, LA, and continue to exemplify a strong character of dedication, compassion and devotion to one another.

I ask my colleagues to join me in paying tribute to Norman and Norma Burmah, the longest married couple in Louisiana, as they celebrate 83 years of dedication to one another which serves as an inspiration to all.

[From the Louisiana Family Forum]

Introduced by a close friend, Norman and Norma Burmah met at the "Roof Garden Dance Hall" in New Orleans during a live

performance by Louis Armstrong playing their theme song ''What a Wonderful World.'' They were married shortly thereafter on January 26, 1931, and the two have remained inseparable. ''Maw'' and ''Paw,'' as their family fondly calls them, begin each day in prayer. Norma claims that she's a ''young 98'' and continues to prove this through her love for parties and her independent trip to France only years ago. Norma has never driven a day in her life! However, Norman is not shy of his achievements adding that he drove until he was 97 and rode his first jet-ski at 92! While he's a student of politics, football and game shows, she a fan of ''Lawrence Welk'' and enjoys old movies. They created a livelihood together, operating a thriving catering business inspired by their Creole heritage.

They lived in New Orleans until 2005, and, to this day, they both remain deeply devoted New Orleans Saints fans! After tragically losing their home during Hurricane Katrina, the Burmahs moved to Marksville, La. At 97 years of age, Norman proudly purchased their new home where they independently live along with their prize Rooster, ''Jindal.''

They have been blessed with a healthy family consisting of two children, six grandchildren and 13 great-grandchildren.

OHIO'S WILLIAM McCULLOCH LED THE 1964 CIVIL RIGHTS ACT 50 YEARS AGO

HON. TIM RYAN

OF OHIO

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 11, 2014

Mr. RYAN of Ohio. Mr. Speaker, I rise today to pay tribute to the late William Moore McCulloch, a Republican Member of Congress from Ohio, for his extraordinary work on the Civil Rights Act of 1964.

Fifty years ago on February 10, 1964, the House of Representatives passed what would become the Civil Rights Act of 1964 by a vote of 290 to 130.

This landmark piece of legislation outlawed discrimination against race, ethnicity, gender, and religious minorities. I believe this was the most important piece of American domestic legislation in 20th Century America, as it protected fundamental civil rights and ensured equal opportunities for all Americans.

McCulloch was born in 1901, in Holmes County, Ohio. Despite being raised working on his family's farm and attending local rural schools, he studied at the College of Wooster before earning a law degree from Ohio State University College in 1925.

Following graduation, McCulloch moved to Florida to practice constitutional law for a year. This period of his life was crucial in developing his passion for overhauling civil rights legislation, as he saw the effect of the oppressive Jim Crow ''separate but equal'' racial segregation laws firsthand. This experience fueled his passion for civil rights, and his belief that the Constitution guaranteed equal rights for all Americans. In 1932, McCulloch was elected to the State House of Representatives. From here, his determination to outlaw discrimination began to manifest itself.

For example, he supported the local chapter of the National Association for the Advancement of Colored People in its drive to end segregated seating in restaurants in Piqua. I am inspired by his work here, as this was a risky political move in such a rural, white, middle class, and conservative region of Ohio. Nevertheless, his desire to dismantle institutionalized discrimination outweighed everything else, and African Americans and all Americans are better off for it.

In 1947, he was elected to Congress from Ohio's fourth Congressional district. It is important to note that McCulloch only had a small number of African American constituents—roughly 2.7 percent. His determination to protect American civil rights regardless of race, ethnicity, gender or religion was due to his intrinsic desire to achieve equality, and not his own political agenda. He focused purely on doing what was right for the people of the United States. I find encouragement in this, and believe more of us in Congress can learn from McCulloch's example.

However, McCulloch's work in civil rights didn't stop in Piqua, Ohio. He was the ranking Republican member of the House Judiciary Committee in the early 1960s, and used this to ensure civil rights legislation was introduced to the House. In 1963, President Kennedy called for legislation that removed discrimination, and increased protection for the right to vote. McCulloch personally met with the Kennedy Administration, and the two parties confirmed their joint commitment to a bipartisan civil rights bill. Despite his position as a Republican minority Member, he was determined to ensure the Civil Rights Act's passage through the House. He worked tirelessly with the Kennedy Administration and House Democrats for the bill. McCulloch's work was instrumental, and led to President Kennedy's declaration of ''Without him, it can't be done''.

The legislation passed the House on February 10, fifty years ago. Later after a 54-day filibuster, the bill passed in the Senate. The Civil Rights Act became law with President Johnson's signature. Like Kennedy, Johnson recognized McCulloch's significant involvement in the Civil Rights Act, and stated he was ''the most important and powerful political force'' in passing the legislation.

Despite his position as a minority Republican member in the House Judiciary Committee, McCulloch worked across party lines to pass legislation that guaranteed equal rights for all. I am inspired by this, and believe we can all learn something from McCulloch's efforts. He was willing to cooperate with the Democratic majority, including the Kennedy and Johnson Administrations, in a time when there was a desperate need for anti-discrimination legislation and positive social change. I hope we can all follow in William McCulloch's example, and commit to finding bipartisan solutions to the issues facing our country. He was a proud son of Ohio.

CONGRATULATING RICHARD ROBB ON HIS 90TH BIRTHDAY

HON. MARK MEADOWS

OF NORTH CAROLINA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 11, 2014

Mr. MEADOWS. Mr. Speaker, I rise today to congratulate Mr. Richard Robb on his 90th birthday, which he celebrated on January 19th, and to thank him for his tireless service to our nation.

During World War II, Mr. Robb served in the U.S. Navy at Iwo Jima, Okinawa, and the Marshall Islands. He was a crew member on the USS *Stockton,* a destroyer that sunk the Japanese I–8 submarine which was responsible for numerous war crimes and atrocities.

Following his military service, Mr. Robb continued to devote himself to defending the lives of others. He served 22 years as a sergeant and later a detective in the Sarasota Police Department in Sarasota, Florida.

Since moving to Western North Carolina, Mr. Robb and his wife, Cate, have been active participants in the Macon County Republican Party. They still attend every event and have served crucial roles in Election Day operations to serve the voters of the 11th District. In 2012, they received the ''Golden Elephant'' award for their exemplary lives of service.

Mr. Speaker, on behalf of the entire 11th District of North Carolina, I congratulate Mr. Robb on his milestone 90th birthday and thank him for his service to Western North Carolina and our nation.

SPORTSMEN'S HERITAGE AND RECREATIONAL ENHANCEMENT ACT OF 2013

SPEECH OF

HON. TOM COLE

OF OKLAHOMA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 4, 2014

The House in Committee of the Whole House on the state of the Union had under consideration the bill (H.R. 3590) to protect and enhance opportunities for recreational hunting, fishing, and shooting, and for other purposes:

Mr. COLE. Mr. Speaker, I rise today in support of the amendment offered by Chairman HASTINGS. This important amendment includes a provision protecting the hunting, fishing and related treaty rights of all federally recognized tribes with respect to the provisions of H.R. 3590.

Treaties are at the foundation of the government-to-government relationship between the United States and Indian tribes. Throughout the history of this country, tribal governments signed hundreds of treaties with the United States, often ceding significant portions of their homelands. Many of these treaties included provisions in which the United States made solemn promises to secure and protect the important hunting and fishing rights as well as other rights to sustain Indian people. As we pass laws that affect federal lands, it is important that we ensure the continued treaty rights of all federally recognized Indian tribes.

Rights emanating from treaties between Indian tribes and the United States apply to all federally recognized tribes, whether they were recognized by treaty, an act of Congress, administratively or through a court settlement. This amendment to H.R. 3590 would make it clear in the legislation that the treaty rights, including treaty hunting and fishing rights, and other rights of all federally recognized tribes are preserved and not affected by the other provisions of this legislation. I urge your support for this amendment.

RECOGNIZING GRADUATING SENIOR BUFFALO STATE BENGALS BASKETBALL PLAYERS, CHRIS CASTREN AND JUSTIN MITCHELL

HON. BRIAN HIGGINS

OF NEW YORK

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 11, 2014

Mr. HIGGINS. Mr. Speaker, I rise today to recognize two members of the senior class at Buffalo State College, Chris Castren and Justin Mitchell. Both students are members of the men's varsity basketball team at Buffalo State and will graduate this spring. I commend Chris and Justin for their dedication to academics and athletics and congratulate them at the culmination of their college careers.

Chris Castren hails from Voorheesville, New York, where he attended the regional public high school. Upon graduation, Chris will have earned a degree in Elementary Education. On the basketball team, he excelled playing guard.

Justin Mitchell is a native of Buffalo, and graduated from Bishop Timon-St. Jude High School in South Buffalo, New York. At Buffalo State, he pursued a degree in Sociology and held the position of forward on the team.

Participating in collegiate athletics while enrolled as a full time student is notoriously demanding. In spite of the unique challenges faced by student athletes, Chris and Justin have excelled during their time at Buffalo State. They have shown extreme discipline in balancing both commitments and are leaders to their peers and teammates. As an alumnus of Buffalo State, I will be proud to call them fellow alumni.

Mr. Speaker, I thank you for allowing my colleagues to join me in recognizing these exceptional Buffalo State Bengals and in congratulating them as they obtain their undergraduate degrees. Their work ethic, determination, and spirit will ensure their success, and I wish them all the best in their future endeavors.

PUBLIC ACCESS AND LANDS IMPROVEMENT ACT

SPEECH OF

HON. CHRIS VAN HOLLEN

OF MARYLAND

IN THE HOUSE OF REPRESENTATIVES

Thursday, February 6, 2014

The House in Committee of the Whole House on the state of the Union had under consideration the bill (H.R. 2954) to authorize Escambia County, Florida, to convey certain property that was formerly part of Santa Rosa Island National Monument and that was conveyed to Escambia County subject to restrictions on use and reconveyance:

Mr. VAN HOLLEN. Mr. Speaker, I rise in opposition to H.R. 2954, the so-called ''Public Access and Lands Improvement Act.'' While there are some provisions in this bill that I think many of us could support, most of its titles include unacceptable waivers of environmental law and giveaways to private interests.

The bill bypasses carefully balanced processes for transferring federal lands while protecting access and value for taxpayers, reverses a scientifically-based land management decision, and waives environmental protections and local consultation for certain land for timber harvests and grazing.

As with many of the bills we've seen on the Floor this week, H.R. 2954 makes sweeping and unnecessary changes to existing law that disrupt the balance necessary to manage our public lands in the best interest of American taxpayers. By waiving scientific review and local consultation, this cobbled-together omnibus makes ill-considered decisions about the future of public resources. I urge a no vote.

A TRIBUTE TO HANNAH BLYTH AND THE UNI-CAPITOL WASHINGTON INTERNSHIP PROGRAM

HON. JOE COURTNEY

OF CONNECTICUT

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 11, 2014

Mr. COURTNEY. Mr. Speaker, for decades the United States has worked closely with Australia on issues of great importance to our two nations. Australia has stood stalwartly as a friend of the United States and remains one of our closest allies today. Last year I worked with the Department of Commerce to organize a trade mission of Connecticut companies to Australia. As part of the trip planning, I was pleased to work closely with Australia's Ambassador to the United States, Kim Beazley, who joined me on a visit to Connecticut last spring. As Australia and the United States increase export and defense collaboration in the coming years, we must continue to strengthen our bilateral relationship with Australia.

Fifteen years ago, a program launched to place Australian students in offices in our Nation's Capital. Since that time, the Uni-Capitol Washington Internship Program has delivered to the United States some of Australia's best and brightest to serve as interns in a variety of federal agencies, congressional offices, and committees.

During my first term in Congress, I was privileged to welcome Anthony Bremmer to my office, and since then my office has hosted Jehane Sharah and Niall O'Shea. When the opportunity arose again to participate in the Uni-Capitol Washington Internship Program, I immediately agreed to welcome another Australian ''ambassador.'' Once again, my office and I have been pleased with the positive contributions of Hannah Blyth, who was placed in our office. She has attended meetings and briefings, assisted my staff with various research initiatives, and helped serve my constituents of the Second District of Connecticut. Prior to coming to the United States, Hannah worked for the Parliament of New South Wales as a Policy and Project Officer. With an avid interest in American politics and international relations, Hannah hopes to grow her experience and knowledge of the American political landscape during her time in my office. Hannah is truly an exceptional ambassador for the people of Australia.

Hannah's participation in this program has provided her with new opportunities and experiences that only the Uni-Capitol Washington Internship Program could provide. While in the program Hannah has attended events at the Australian Embassy, met with State Department and USAID officials, and toured the United Nations headquarters in New York with the Australian Mission to the U.N. A well-rounded graduate student, Hannah will be receiving a Master's degree in U.S. Studies from the University of Sydney's United States Studies Centre when she graduates later this year.

Many of my colleagues have also been privileged to welcome students like Hannah to their offices. This year, 14 students from 10 Australian universities all across Australia are serving in offices in Washington, helping foster a new generation of understanding and shared experiences between our two nations. Launched by former Congressional staffer Eric Federing, the Uni-Capitol Washington Internship program has now delivered 156 Australian student interns over the past 15 years.

Mr. Speaker, I would encourage all of my colleagues to open their doors to students from around the world so that they can share in our great democracy. Similarly, I would encourage American university students to seek established and creative ways to connect with their counterparts around the globe. I ask my colleagues to join with me in recognizing the contributions of the Uni-Capitol Internship Program and to once more thank Hannah Blyth for her dedication and hard work.

H.R. 3590, H.R. 2954 AND H.R. 3964

HON. EARL BLUMENAUER

OF OREGON

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 11, 2014

Mr. BLUMENAUER. Mr. Speaker, last week, I voted against three bills designed to weaken important environmental laws and roll back protections for our wilderness areas, parks, and wildlife.

Many of my constituents love Oregon's public lands and use them for hiking, hunting and fishing. They value efforts to conserve and responsibly manage these lands. H.R. 3590, the ''Sportsmen's Heritage and Recreational Enhancement Act,'' will not, however, ensure responsible management and access. Rather, it contained measures to roll back important environmental laws, to curb public engagement in management decisions and limit the Environmental Protection Agency's ability to appropriately regulate toxic lead in ammunition.

I joined a number of my colleagues in offering an amendment to H.R. 3590 to ensure the Secretary of the Interior maintains the authority to consider climate change when making decisions regarding conservation and recreational activities on public lands. I was disappointed that this amendment failed, and I will continue to use every opportunity to elevate the importance of climate change.

H.R. 2954, the misleadingly named ''Public Access and Lands Improvement Act,'' also weakens protections for wildlife conservation at treasured places like Yellowstone National Park, the Grand Tetons and Cape Hatteras.

Finally, H.R. 3964, the ''Sacramento-San Joaquin Valley Emergency Water Delivery Act,'' will do nothing to help with serious drought conditions in California and overrides state and federal protections for wildlife and water quality. The bill sets a dangerous precedent by favoring certain water interests over others, disrupting the State's ongoing efforts to bring people together to find long-term, science-based solutions to manage this severe water crisis.

Our precious natural resources and public lands face serious challenges when it comes to climate change, recreation management, and fish and wildlife conservation. Unfortunately, these bills did nothing to alleviate those problems.

RECOGNIZING SUPER BOWL XLVIII CHAMPIONS, THE SEATTLE SEAHAWKS

HON. DAVID G. REICHERT

OF WASHINGTON

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 11, 2014

Mr. REICHERT. Mr. Speaker, I rise to recognize the extraordinary talent, teamwork, and success of the Super Bowl XLVIII champions the Seattle Seahawks today, February 11, 2014.

The Seattle Seahawks finished the 2013 season with a remarkable 43–8 win over the Denver Broncos at Super Bowl XLVIII. This is the franchise's first championship team since their introduction into the National Football League in 1976. They ended their season with a 13–3 record and the number one defense in the league.

The Seahawks defense showed they were a dominant force all season and especially during the Super Bowl. All season the offense performed admirably battling through injuries and powerful opposing defensive lines. Their indomitable spirit was shown at its finest when it counted the most, February 2nd in the Super Bowl.

Seattle demonstrated exactly the teamwork and proactive spirit that we Pacific Northwesterners take such pride in. The ''12th Man'' has shown the ultimate teamwork setting world noise records in the process of supporting their Seattle Seahawks. The team's preparation, determination, and true partnership with the fans led them to dominate the Denver Broncos, ending the game with a final score of 43–8.

Coach Pete Carroll has been an inspirational leader rebuilding the Seahawks and strengthening team unity. He has also been instrumental working with youth in our communities through A Better Seattle, a partnership to help create a culture of safety and inclusion, while reducing violence in our communities.

I am pleased that, in addition to Coach Carroll, there are so many players from my hometown sports team that have Charitable Foundations. Their passion for giving back to their community exemplifies the spirit of the Pacific Northwest.

Mr. Speaker, I again offer my appreciation for the community spirit of Seattle Seahawks and congratulations for an outstanding and entertaining 2013 season and look forward to their 2014 season. Go Hawks.

RECOGNIZING GRADUATING SENIOR BUFFALO STATE BENGALS BASKETBALL PLAYERS, MARY CAIN, KALA CRAWFORD, KELLY KELL, STACI McELROY, AND BIANCA SMILEY

HON. BRIAN HIGGINS

OF NEW YORK

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 11, 2014

Mr. HIGGINS. Mr. Speaker, I rise today to recognize five outstanding members of the senior class at Buffalo State College, Mary Cain, Kala Crawford, Kelly Kell, Staci McElroy and Bianca Smiley. As members of the Buffalo State women's basketball team, these students are known as leaders among their peers and teammates. I commend these young women for their dedication to academics and athletics and congratulate them on the completion of their college careers.

Hailing from Niagara Falls, New York, Mary Cain attended Niagara Catholic High School and majored in Health & Wellness. During her years on the basketball team, Mary played the position of guard.

Kala Crawford enrolled at Buffalo State coming from her hometown of Middle Springs, New York and as a graduate of Saratoga Springs High School. Kala played guard for the Buffalo State Bengals and will be earning a degree in Business.

During her time at Buffalo State, Kelly Kell played guard and studied Public Communication. Her hometown is Port Ewen, New York, and she attended Kingston High School.

Staci McElroy traveled to Buffalo State from Saratoga Springs, New York, and graduated from Saratoga Springs High School. On the team, she played guard, and off the court, studied Psychology.

A graduate of Sweet Home High School and native of Amherst, New York, Bianca Smiley played forward at Buffalo State. She will be earning her degree in Criminal Justice this year.

Balancing the responsibilities demanded of student athletes is a true challenge, and each of these students handled the test with dignity and grace. As an alumnus of Buffalo State, I will be proud to call them fellow alumni.

Mr. Speaker, I thank you for allowing my colleagues to join me in recognizing these extraordinary Buffalo State Bengals and in congratulating them as they obtain their undergraduate degrees. Their dedication and drive will propel them to success, and I wish them all the best in their future endeavors.

HONORING MR. GARREN MIMS, SR.

HON. CEDRIC L. RICHMOND

OF LOUISIANA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 11, 2014

Mr. RICHMOND. Mr. Speaker, I rise today to honor a special man, Mr. Garren Thomas Mims, Sr., a native of my hometown of New Orleans, Louisiana. I especially wish to congratulate him on becoming the 99th King of the Zulu Social Aid & Pleasure Club. It is my distinct privilege to recognize him here today for this accomplishment.

Mr. Mims has been an active and loyal member of the Zulu Social Aid & Pleasure Club since 1995. During his time in Zulu Mr. Mims has held and served in a variety of leadership offices. He has also been an active member of several committees and takes special pride in Zulu's community activities committee, in particular the Toys For Tots program. However, his service is not limited to his activity in Zulu. He also enjoys volunteering in his community and serves as a parishioner at his family church, Our Lady of Guadalupe Catholic Church. The church's annual fundraiser for the St. Jude Center holds a special place in Mr. Mims' heart. His community service serves as an inspiration and we are grateful to him for his continued commitment.

In addition to his activity in Zulu, Mr. Mims is a dedicated family man. As a lifelong resident of New Orleans, Mr. Mims is deeply rooted within his community. He is a proud graduate of McDonogh #35 Senior High School and Southern University. For the past 19 years, he has been married to Mrs. Georgette Anita Mims. Mr. and Mrs. Mims are the proud parents of three children: Garren Mims, Jr., Gabrielle Mims, and Gabriel Mims. This year, he will get a chance to share the honor and joy of being Zulu royalty with his wife, as Mrs. Mims will reign alongside him as the 78th Queen of Zulu. This will be a special time for the family, and we are very proud of him. The commitment that Mr. Mims shows to his family and his community is an example to all of us. The hard work and dedication of Mr. and Mrs. Mims to improving the community and raising a strong family gives us hope and promise for the future of our city.

In closing Mr. Speaker, I wish to congratulate Mr. Garren Mims, Sr., on his coronation as the 99th King of Zulu and wish him a successful reign as King Zulu, 2014.

HONORING ALEXANDER M. MOYER

HON. SAM GRAVES

OF MISSOURI

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 11, 2014

Mr. GRAVES of Missouri. Mr. Speaker, I proudly pause to recognize Alexander M. Moyer. Alex is a very special young man who has exemplified the finest qualities of citizenship and leadership by taking an active part in the Boy Scouts of America, Troop 444, and earning the most prestigious award of Eagle Scout.

Alex has been very active with his troop, participating in many scout activities. Over the many years Alex has been involved with scouting, he has not only earned numerous merit badges, but also the respect of his family, peers, and community. Most notably, Alex has contributed to his community through his Eagle Scout project. Alex planted prairie grasses and placed gravel in a water runoff guide at Park Hill High School in Kansas City, Missouri.

Mr. Speaker, I proudly ask you to join me in commending Alexander M. Moyer for his accomplishments with the Boy Scouts of America and for his efforts put forth in achieving the highest distinction of Eagle Scout.

REINTRODUCING LEGISLATION TO ADDRESS THE DISPUTE BETWEEN THE FORMER YUGOSLAV REPUBLIC OF MACEDONIA AND GREECE

HON. CAROLYN B. MALONEY

OF NEW YORK

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 11, 2014

Mrs. CAROLYN B. MALONEY of New York. Mr. Speaker, today I rise to reintroduce legislation to address the long-standing name dispute between the former Yugoslav Republic of Macedonia (FYROM) and Greece. This House Resolution urges the FYROM to work within the framework of the United Nations process with Greece to achieve longstanding United States and United Nations policy goals of resolving the name dispute and encourages the United States to work with its NATO allies to uphold previous NATO Summits decisions, with regard to the enlargement issue.

As founder and co-Chair of the Congressional Caucus on Hellenic Issues, this is of tremendous importance to me. I believe the United States must send a strong message, supporting a solution to the name issue and to encourage the FYROM and Greece to reach a mutually acceptable solution as soon as possible.

Historical and archaeological evidence shows that the ancient Macedonians were Greek. Macedonia is a Greek name that has designated the northern area of Greece for 2,500 years. In 1944, the name of the Skopje region was changed to Macedonia as part of Tito's imperialist campaign to gain control of the Greek province of Macedonia.

Both NATO and the White House have repeatedly emphasized their support for the unanimous decision made at the NATO Bucharest Summit in 2008 (and reiterated at NATO Summits in Strasbourg/Kehl in 2009 and Lisbon in 2010) that an invitation would be extended once a mutually acceptable solution to the name dispute has been reached. As the United States and its NATO allies consider the future of NATO and possible changes in membership, the United States must abide by this decision. Otherwise, any move by the United States that shows support for extending NATO membership to the FYROM, before a resolution is reached in the name dispute, might be misinterpreted by the government in Skopje as a sign for further intransigence. This would eventually derail the ongoing negotiations, thus undermining U.S. interests in the Western Balkan region.

This resolution urges the FYROM to work within the framework of the United Nations process and in good faith with Greece to achieve longstanding United States and United Nations policy goals of resolving the name dispute. The resolution also encourages the United States to work with its NATO allies to uphold previous NATO Summits decisions, with regard to the enlargement issue and extend an invitation to the former Yugoslav Republic of Macedonia as soon as a mutually acceptable solution to the name issue has been reached.

IN MEMORIAM OF MICHAEL DALE GARRETT

HON. DAVID B. McKINLEY

OF WEST VIRGINIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 11, 2014

Mr. McKINLEY. Mr. Speaker, I rise today to honor the memory of Michael Dale Garrett, a Firefighter and EMT-I with the Nutter Fort Volunteer Firefighter Department, who lost his life serving in the line of duty on February 1, 2014.

Michael, or "Mikey" as he is known by his family, attended South Harrison High School, Alderson-Broaddus College and was scheduled to graduate from Fairmont State University in May with an associate's degree in emergency services. Michael's life was serving others as a first responder. He started when he was only a teenager and had experience and knowledge beyond his 28 years. He trained other firefighters and EMT personnel and was proud of his work.

Michael's passion in life was helping others. Every call he took meant the potential for danger but he did his job as a professional up until his last call. His sense of humor and smile will be remembered by his family and friends. The Nutter Fort Fire Department want to stress that he died a hero, doing what he loved and lived for.

I offer my condolences to his family, friends, colleagues and all those who knew Michael Garrett. We honor his memory and his dedicated service to others.

INTRODUCTION OF THE FREDERICK DOUGLASS BICENTENNIAL COMMISSION ACT

HON. ELEANOR HOLMES NORTON

OF THE DISTRICT OF COLUMBIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 11, 2014

Ms. NORTON. Mr. Speaker, as we celebrate the birthday of Frederick Douglass, I introduce a bill that would establish a Bicentennial Commission to study ways that the Federal Government might honor and celebrate the life of Douglass during the bicentennial anniversary of his birth in 2018.

Frederick Douglass was born into slavery in 1818 on the Eastern Shore of Maryland. He learned basic reading skills from his mistress and continued to teach himself and other slaves to read and write despite the risks he faced, including death. After two attempts, Douglass successfully escaped from slavery to New York and became an anti-slavery lecturer and abolitionist. He went on to serve in several administrations, including as a close advisor to President Abraham Lincoln, U.S. Marshal of the District of Columbia under President Rutherford B. Hayes and District of Columbia Recorder of Deeds under President James Garfield. In 1889, President Benjamin Harrison appointed Frederick Douglass to be the U.S. minister to Haiti. He was later appointed by President Ulysses S. Grant to serve as secretary of the commission of Santo Domingo.

Douglass dedicated his life to achieving justice for all Americans. He lived in the District of Columbia for 23 of his 57 years as a free man and was deeply committed to obtaining equal congressional voting and self-government rights for District of Columbia residents. His home, Cedar Hill, was established as a National Historic Site, in Anacostia in Southeast Washington, DC and his statue in the U.S. Capitol is a gift from the almost 650,000 American citizens of the District of Columbia.

My bill would simply establish a commission to examine ways the Federal Government can honor Douglass during the bicentennial anniversary of his birth, including the issuance of a Frederick Douglass bicentennial postage stamp, the convening of a joint meeting or joint session of Congress for ceremonies and activities relating to Frederick Douglass, a rededication of the Frederick Douglass National Historic Site, and the acquisition and preservation of artifacts associated with Frederick Douglass. The Commission would report its findings and recommendations to Congress.

I urge my colleagues to support this important legislation.

IN RECOGNITION OF THE 25TH PASTORAL ANNIVERSARY OF REV. DR. KENNETH L. SAUNDERS, SR.

HON. FRANK PALLONE, JR.

OF NEW JERSEY

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 11, 2014

Mr. PALLONE. Mr. Speaker, I rise today to congratulate Rev. Dr. Kenneth L. Saunders, Sr. on his 25th Pastoral Anniversary. As the pastor of North Stelton A.M.E. Church, Rev. Saunders continues to provide outstanding spiritual leadership to the Piscataway community.

Rev. Saunders was ordained Itinerant Elder of the A.M.E. Church in 1977 and became pastor of Bright's Temple A.M.E. Church in Warwick, Bermuda. Immediately prior to his service as pastor of North Stelton A.M.E. Church, Rev. Saunders served at Bethel A.M.E. Church in Madison, New Jersey. During the 11 years at Bethel A.M.E., Rev. Saunders oversaw the growth of the church from 7 congregants to 375.

In addition to his service to North Stelton A.M.E. Church, Rev. Saunders is an active member of his community. He has served as a member of the New Jersey State Parole Board, a Councilman-at-Large and Police Chaplain in Piscataway and has been recognized for his many contributions to the community.

Rev. Saunders was born in Jersey City, New Jersey and worshipped at Mt. Pisgah A.M.E. Church as a child. He was honorably discharged from the United States Army, which he joined after high school. He also worked for the United States Postal Service and enrolled in the Newark College of Engineering before entering the ministry. Rev. Saunders has been married to Sis. Shirley Harris for over 35 years and together they have a son, Kenneth, Jr.

Mr. Speaker, once again, please join me in celebrating the 25th Pastoral Anniversary of Rev. Dr. Kenneth L. Saunders, Sr. His leadership, service and dedication to the church and community are truly deserving of this body's recognition.

HONORING WILLIAM A. RYAN IV

HON. SAM GRAVES

OF MISSOURI

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 11, 2014

Mr. GRAVES of Missouri. Mr. Speaker, I proudly pause to recognize William A. Ryan IV. Will is a very special young man who has exemplified the finest qualities of citizenship and leadership by taking an active part in the Boy Scouts of America, Troop 444, and earning the most prestigious award of Eagle Scout.

Will has been very active with his troop, participating in many scout activities. Over the many years Will has been involved with scouting, he has not only earned numerous merit badges, but also the respect of his family, peers, and community. Most notably, Will has contributed to his community through his Eagle Scout project. Will organized and completely renovated the Girl Scouts storage facility at Fort Leavenworth, Kansas. Additionally, I am proud to say Will has been accepted into the United States Military Academy Class of 2018. I am sure he will serve his country with the same dedication as fellow north Missourians and West Point graduates, Generals John J. Pershing and Omar Bradley.

Mr. Speaker, I proudly ask you to join me in commending William A. Ryan IV for his accomplishments with the Boy Scouts of America and for his efforts put forth in achieving the highest distinction of Eagle Scout.

IN RECOGNITION OF THE OUTSTANDING LEADERSHIP OF DR. WANDA COOK-ROBINSON AS SUPERINTENDENT OF SOUTHFIELD PUBLIC SCHOOLS

HON. GARY C. PETERS

OF MICHIGAN

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 11, 2014

Mr. PETERS of Michigan. Mr. Speaker, I rise to honor a local education leader in Metropolitan Detroit, Dr. Wanda Cook-Robinson, the superintendent of Southfield Public Schools for the last seven years. In recognition of the profound impact of her leadership on the quality of public education in Southfield, Dr. Cook-Robinson was honored in 2013 as the Michigan Superintendent of the Year by the Michigan Association of School Administrators.

Dr. Cook-Robinson became the superintendent of Southfield Public Schools in 2006—directly serving the community she has called home for the last 30 years. She brought with her a wealth of knowledge and experience in the realm of public education as an instructor for both graduate and undergraduate education classes at Grand Valley State University, Marygrove College, and Wayne State University, as well as a tenure of service as Assistant Superintendent for Student Performance and Human Resources for the Oakland County Intermediate School District.

The constant theme of Dr. Cook-Robinson's term has been promoting collaboration with staff and community stakeholders across all sectors of Southfield to fully leverage the maximum educational experience for her students. Among the fifty-two active partnerships Southfield Public Schools' has engaged in on Dr. Cook-Robinson's watch, is the Revolution Read program which has brought together local elected officials, the higher education sector, and small businesses with the goal of having every Southfield Public Schools' student reading at grade level by the end of their fifth grade year. It is a program that has already seen success as reading scores on state assessments improved in the program's second year. Dr. Cook-Robinson has also overseen the Southfield Public Schools' accreditation in the AdvancED program of the North Central Association Commission, which requires high academic standards to obtain—a distinction that had been achieved by only five other school districts in Michigan at that time. Additionally, Dr. Cook-Robinson has been directly involved with the creation of high school preparatory academies for Southfield students, providing a uniquely tailored small-class-size environment for students as they transition from middle school to high school in the eighth and ninth grades.

For her outstanding record at the forefront of leadership in the public education sector, Dr. Cook-Robinson has been recognized by many organizations. She has been honored by Delta Sigma Theta Sorority, Inc's Southfield Alumnae Chapter as its Educator of the Year, and has been named a Distinguished Educator by the Wayne State University College of Education Alumnae Chapter. Dr. Cook-Robinson remains an active leader across a number of local organizations including the Southfield Community Foundation, Wayne State University Board of Visitors, the Oakland University Department of Educational Leadership and the Southfield Area Chamber of Commerce, where she continues to build partnerships that are providing Southfield Public School students the tools they need to succeed.

Mr. Speaker, as we continue to move into a future where knowledge is an increasingly critical component to our nation's enduring prosperity, providing a world class education that prepares our youth to meet this demand is crucial. The work of educators, like Southfield Public Schools Superintendent Dr. Wanda Cook-Robinson, is key part of the continuing success of the Greater Detroit region, the State of Michigan and our Nation. I congratulate Dr. Wanda Cook-Robinson on her achievements and know that as she transitions to new responsibilities at the Oakland Intermediate School District, that she will continue to play a vital role in preparing our youth to meet the challenges and demands of our changing world.

HONORING ELAINE POMEROY McKELLAR

HON. BARBARA LEE

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 11, 2014

Ms. LEE of California. Mr. Speaker, I rise today to honor the exceptional life of Ms. Elaine Pomeroy McKellar, devoted wife, mother, sister, friend and colleague. With her passing on January 8, 2014, we look to the outstanding quality of her life's work to improve the social welfare of individuals and families as well as the countless lives she touched over the course of her career in social work and advocacy.

Born on August 3, 1944 in Thomasville, Georgia, she and her family moved to Valley City, North Dakota following World War II, where she grew up with her three younger siblings Linda, Earl, and Glenn. Mrs. McKellar received her Bachelor of Science in Social Work from the University of North Dakota, and obtained her Masters in Social Work (MSW) at the Washington University in St. Louis.

After completing her studies, Mrs. McKellar headed to the San Francisco Bay Area determined to work in the progressive political climate and change-oriented environment. While she walked on the front lines advocating for fair wages and walking a picket line for the United Farm Workers, she met her husband Larry McKellar. They had one son, Dominic McKellar.

She started her career off in the 1970s at Catholic Social Services in San Francisco. She primarily worked on foster care services and with youth transitioning out of the foster care system. She later went to the Children's Home Society as the Coordinator of Emergency Foster Care Family and recruitment, a non-profit agency serving children and families through critical child welfare services.

In the late 1980s, Mrs. McKellar's career took her to Bay View Hunters Point Foundation, where she helped to implement elementary school mental health programs with her experience and expertise in social welfare. Following her experience at the Bay View Hunters Point Foundation, Mrs. McKellar worked at the UCSF Medical Center at Mount Zion through a Robert Wood Johnson grant and provided critical mental health services to children victimized by domestic violence.

In April 2005, Mrs. McKellar came to work in my Oakland District Office. While initially starting as a part-time caseworker, she quickly rose to become the Senior Caseworker managing the casework services. She had spent the past 8 years providing outstanding constituent services to the residents of the 13th Congressional District. Mrs. McKellar's experience as a social worker was an asset to my office, as her institutional knowledge and expertise in social welfare easily allowed her to work closely with federal agencies and handle sensitive situations with the upmost professionalism and ease. She was committed to ensuring that my constituents received timely responses from agencies, often going above and beyond what was required.

Mrs. McKellar worked closely with veterans and constituents with issues relating to Social Security and Medicare. Her many contributions to the office have not gone unnoticed. For 5 years, she was responsible for organizing An Artistic Discovery, an annual Congressional high school art competition aimed at encouraging students to express themselves through the arts. Mrs. McKellar worked tirelessly to build relationships with high school art teachers and community stakeholders, which helped to successfully grow the event. In 2012 and 2013, Mrs. McKellar worked closely with staff from Congresswoman JACKIE SPEIER's office to host the Veterans' Fix-It Event, an event to address the backlog in veterans' claims and cases with the Oakland VA Regional Office.

On a personal note, Elaine was an exemplary example of a public servant. She demonstrated the highest ethical standards and truly embodied the social work code of ethics in all aspects of her life. She will be deeply missed.

Today, California's 13th Congressional District salutes and honors an outstanding individual and dedicated public servant, Mrs. Elaine Pomeroy McKellar. Her invaluable service to improving the lives of the underrepresented and underserved will live on in the endless legacy of her life's work. I offer my sincerest condolences to her many loved ones, friends and colleagues she touched over the course of her incredible life. May her soul rest in peace.

CELEBRATING THE 90TH BIRTHDAY OF GENERAL ROBERT SHOEMAKER

HON. JOHN R. CARTER

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 11, 2014

Mr. CARTER. Mr. Speaker, I rise today to celebrate the 90th birthday of General Robert Shoemaker, U.S. Army, Retired. Through a lifetime dedicated to service, General Shoemaker continues to make extraordinary contributions to both the security of his nation as well as to improving the quality of life in Central Texas.

He was born February 18, 1924 and grew up in eastern Michigan. Following graduation from West Point in 1946, General Shoemaker was commissioned in the Infantry. His brave service of nearly 40 years in both the 1st and 2nd Infantry Divisions as well as the 82nd Airborne Division saw numerous tours of duty in Vietnam, various commands, as well as achieving the elite status of Army Aviator. General Shoemaker rose to the highest levels of the military and was promoted to four star general and led the U.S. Army Forces Command. Known as FORSCOM, this command consists of more than 750,000 soldiers, nearly 90 percent of the Army's combat power, and provides expeditionary, campaign-capable land forces to combatant commanders. Under his steady leadership, FORSCOM held fast and true to its motto as ''Freedom's Guardian.''

Bringing to life Patton's maxim ''the soldier is also a citizen,'' General Shoemaker settled in the Fort Hood, TX area following his 1982 retirement and began the next chapter of his life of extraordinary service. Knowing firsthand of the importance of education to military communities, he worked tirelessly to establish Texas A&M University—Central Texas near Fort Hood. He served eight years as an elected Bell County, TX Commissioner. Important civic organizations sought his tremendous leadership skills and General Shoemaker served as President and advisor to numerous entities, including the 1st Cavalry Division Association, the Heart of Texas Council of the Boy Scouts, and the Fort Hood Chapter of the United Way. The same commitment to excellence General Shoemaker brought to the Army he also brought to his beloved community.

Some people live an entire lifetime and wonder if they have made a difference in the world. General Robert Shoemaker doesn't have that problem. His patriotism, citizenship, and commitment to service reflect the very best values of Central Texas. Let February 18 continue to be a celebration of one of our nation's heroes who devoted his life to keeping us free and making America a beacon of hope in the world. Along with his friends, family, and loved ones, I wish him both a happy 90th birthday and all the best in the years ahead.

OUR UNCONSCIONABLE NATIONAL DEBT

HON. MIKE COFFMAN

OF COLORADO

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 11, 2014

Mr. COFFMAN. Mr. Speaker, on January 20, 2009, the day President Obama took office, the national debt was $10,626,877,048,913.08.

Today, it is $17,258,824,690,537.53. We've added $6,631,947,641,624.45 to our debt in 5 years. This is over $6.6 trillion in debt our nation, our economy, and our children could have avoided with a balanced budget amendment.

CONGRATULATING ASCAP ON 100 YEARS OF PROTECTING SONGWRITERS AND COMPOSERS

HON. JERROLD NADLER

OF NEW YORK

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 11, 2014

Mr. NADLER. Mr. Speaker, I rise today to recognize ASCAP, the American Society of Composers, Authors and Publishers, on its milestone 100th birthday.

In February of 1914, a group of prominent American music creators and publishers met at the Hotel Claridge in New York to discuss a noble idea: a society that would champion and protect the rights of music writers and publishers by licensing the public performance of their music. The result was ASCAP, officially formed 100 years ago as of this Thursday, February 13th.

ASCAP's earliest members included John Philip Sousa, Irving Berlin and James Weldon Johnson—enormously important songwriters and composers of the early 20th century, and still beloved by Americans today. Since then, ASCAP's membership has grown exponentially. It currently has nearly 500,000 creators and publishers of music of all genres, and licenses the public performance of more than nine million musical works.

The society's membership includes countless musical luminaries past and present, from Duke Ellington to Katy Perry, George Gershwin to Jay Z, Leonard Bernstein to Beyoncé, Marc Anthony to Brad Paisley, Henry Mancini to Hans Zimmer. Equally important, ASCAP also represents many thousands of writers whose names we might not recognize, but whose music we love.

As a long-time member of the House Judiciary Committee, I can attest to ASCAP's commitment to protecting the creative and economic rights of its members, and to working with lawmakers to build a viable future for professional songwriters and composers. ASCAP is always willing to come to Washington with guitars in hand, to remind us that every music creator is a small business owner who helps drive the US economy as they provide the soundtrack to our lives.

I can also attest to the important cultural and economic contributions made by the 3,500 ASCAP members in my congressional district. ASCAP members write the music for Broadway musicals; compose the theme songs and scores for the many movies and TV shows filmed in Manhattan and Brooklyn; and write the musical compositions performed by many New York recording artists. They are an integral part of the cultural and economic fabric of my district.

ASCAP's centennial comes at a critical juncture for music and copyright. The modes of music consumption are changing rapidly, and the future for songwriters has never been less clear. While ASCAP is uniquely positioned to help its members navigate this uncertain future, it is also hampered by a regulatory structure that has not evolved along with the music landscape. That antiquated regulatory structure prevents ASCAP from licensing new services in ways that balances the needs of music creators, licensees and consumers. Those rules need to be updated so that, in its second century, ASCAP can continue to enable songwriters to enrich our culture and uplift our souls while feeding their families and paying the rent.

For 100 years now ASCAP has been at the forefront of the global music industry, nurturing new music talent and licensing every new music distribution platform, all in the name of protecting the songwriters, composers and publishers that call ASCAP home. I hope my colleagues will join me in recognizing its contributions and wishing ASCAP a second century as remarkable as its first.

HONORING JOSHUA D. McPHERSON

HON. SAM GRAVES

OF MISSOURI

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 11, 2014

Mr. GRAVES of Missouri. Mr. Speaker, I proudly pause to recognize Joshua D. McPherson. Josh is a very special young man who has exemplified the finest qualities of citizenship and leadership by taking an active part in the Boy Scouts of America, Troop 444, and earning the most prestigious award of Eagle Scout.

Josh has been very active with his troop, participating in many scout activities. Over the many years Josh has been involved with scouting, he has not only earned numerous merit badges, but also the respect of his family, peers, and community. Most notably, Josh has contributed to his community through his Eagle Scout project. Josh installed a bench and placed landscaping rock at Park Hill Christian Church in Kansas City, Missouri.

Mr. Speaker, I proudly ask you to join me in commending Joshua D. McPherson for his accomplishments with the Boy Scouts of America and for his efforts put forth in achieving the highest distinction of Eagle Scout.

HONORING KEVIN McCORMICK

HON. LOIS FRANKEL

OF FLORIDA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 11, 2014

Ms. FRANKEL of Florida. Mr. Speaker, I rise today to honor Kevin McCormick.

Kevin recently retired from his position as District Manager of the North Broward Social Security Administration office, where he has worked tirelessly for 40 years.

Throughout his career, his hard work and dedication have been recognized through awards such as the Regional Commissioner's Citation and an individual Commissioner's Citation. Kevin also took the time to both mentor others and serve as an instructor and a recruiter.

In honor of his tireless work to help our seniors, I am pleased to recognize Kevin McCormick and to thank him for his service to our country. I wish him good health and a peaceful retirement.

DAIMLER ENVIRONMENTAL STEWARDSHIP

HON. VIRGINIA FOXX

OF NORTH CAROLINA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 11, 2014

Ms. FOXX. Mr. Speaker, I rise today to congratulate Daimler Trucks North America for being named an Environmental Steward by the North Carolina Department of Environment and Natural Resources.

This award, which goes to ''an organization that has demonstrated environmental leadership through its commitment to exemplary environmental performance beyond what is required by regulations,'' was given for its environmental performance at its Cleveland, N.C. plant, which builds Freightliner trucks. Only 16 facilities in North Carolina have achieved this recognition.

Daimler Trucks was recognized for eliminating hazardous wastewater sludge and reducing energy usage by 43 percent since 2008. The board also cited the facility's elite status as one of the nation's few manufacturing plants to send ''zero waste'' to landfills and noted Daimler's ''commitment to continual improvement.''

Mr. Speaker, we are proud to have this great facility in North Carolina's fifth district and I thank Daimler Trucks North America for its exceptional environmental stewardship.

PERSONAL EXPLANATION

HON. ADAM SMITH

OF WASHINGTON

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 11, 2014

Mr. SMITH of Washington. Mr. Speaker, on Monday, February 10, 2014, I was unable to be present for recorded votes. Had I been present, I would have voted: ''yes'' on rollcall vote No. 55 (on the motion to suspend the rules and pass H.R. 2431, as amended); ''yes'' on rollcall vote No. 56 (on the motion to suspend the rules and agree to H. Res. 447, as amended); and ''yes'' on rollcall vote No. 57 (on approving the journal).

PERSONAL EXPLANATION

HON. JASON CHAFFETZ

OF UTAH

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 11, 2014

Mr. CHAFFETZ. Mr. Speaker, I attended the funeral of a slain deputy sheriff in Utah on Feb. 2, 2013 and missed rollcall votes on H.R. 3590, The Sportsmen's Heritage and Recreational Enhancement (SHARE) Act of 2013, as well as votes on amendments to that bill.

Had I been present, I would have voted ''no'' on all of the amendments. I also would have voted ''no'' on the Motion to Recommit with Instructions.

Most importantly, I would have voted ''yes'' on final passage of the bill.

RECOGNIZING THE GATEWAY FOUNDATION

HON. BILL FOSTER

OF ILLINOIS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 11, 2014

Mr. FOSTER. Mr. Speaker, I rise today to congratulate the Gateway Foundation on its renewed accreditation by The Joint Commission. Since 1968, the Gateway Foundation's Alcohol & Drug Treatment Centers have helped thousands of individuals and their families formulate comprehensive and cost-effective treatment plans to battle addiction. Gateway's unique treatment approach, which focuses on both the mind and body, has allowed them to help individuals struggling with addiction lead full and healthy lives.

The Joint Commission is the leading accrediting organization for hospitals and behavioral healthcare organizations. To achieve accreditation, healthcare organizations like the Gateway Foundation have to be thoroughly assessed by health care professionals. The evaluation is based on a series of areas including how the organization educates its clients on treatment risks and options, whether or not the organization provides a safe treatment environment and how well the organization monitors a client's condition before, during, and after treatment. The Gateway Foundation excelled in these fields, receiving the Joint Commission's Gold Seal of Approval.

The Joint Commission evaluation included 11 Gateway locations throughout Illinois, including several in Chicago, one in Aurora, and one in Springfield. It also ensured that thirty of Gateway's alcohol and drug treatment programs targeting men, women, and teens, will be available for the next three years to those in need.

Mr. Speaker, I ask my colleagues to join me in recognizing the achievements of the Gateway Foundation, and to congratulate them on receiving accreditation from The Joint Commission for their commitment to providing high-quality care and treatment.

HONORING ALEXANDER M. FORBES

HON. SAM GRAVES

OF MISSOURI

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 11, 2014

Mr. GRAVES of Missouri. Mr. Speaker, I proudly pause to recognize Alexander M. Forbes. Alex is a very special young man who has exemplified the finest qualities of citizenship and leadership by taking an active part in the Boy Scouts of America, Troop 444, and earning the most prestigious award of Eagle Scout.

Alex has been very active with his troop, participating in many scout activities. Over the many years Alex has been involved with scouting, he has not only earned numerous merit badges, but also the respect of his family, peers, and community. Most notably, Alex has contributed to his community through his Eagle Scout project. Alex repainted parking lines at Christ Temple North Church in Kansas City, Missouri.

Mr. Speaker, I proudly ask you to join me in commending Alexander M. Forbes for his accomplishments with the Boy Scouts of America and for his efforts put forth in achieving the highest distinction of Eagle Scout.

TRIBUTE TO PATRICIA MULROY ON HER RETIREMENT

HON. GRACE F. NAPOLITANO

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 11, 2014

Mrs. NAPOLITANO. Mr. Speaker, I rise today to honor and recognize Patricia Mulroy on her retirement after twenty-five years of tireless work for Nevada and the Colorado River as General Manager of the Southern Nevada Water Authority (SNWA).

For over a quarter century, Pat Mulroy has been a dedicated partner in protecting and preserving the Colorado River Basin for varying interests. She is a determined advocate for the water needs of what once was a sleepy railroad town called Las Vegas. This was no easy task; she represented the driest state in the Nation with the smallest allocation from the River. Yet Clark County, where Las Vegas is located, grew from 900,000 in the early 1990's to 2.7 million during her tenure at SNWA. Under Mulroy's leadership, this community embraces water conservation as their primary means of finding ''new'' water.

It has been said that the ultimate measure of a man or woman is not where he or she stands in moments of comfort and convenience, but where he or she stands at times of challenge and controversy. Despite the challenges, she has been involved in almost every major water policy development on the Colorado River since the 1980's, including the historic 2007 Colorado River Interim Guidelines for Lower Basin Shortages. But perhaps, her closing act may be the most important of them all. In December 2013, Pat helped negotiate Minute 319 to the 1944 Treaty with Mexico—a momentous binational agreement to guide future management of the Colorado River through 2017.

The Colorado River Basin is better today thanks to the work of Pat Mulroy. As she

leaves SNWA to take on new challenges, I want to express my deep appreciation for her contributions to the Colorado River Basin, for her dedication to her community, and for inspiring a new generation of women leaders in water.

My best wishes to Pat, and continued success on behalf of the people in the Colorado River Basin. I ask that all of my colleagues join me to honor Pat for her years of public service.

HONORING NATIONAL VOICES FOR EQUALITY, EDUCATION AND ENLIGHTENMENT

HON. LOIS FRANKEL

OF FLORIDA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 11, 2014

Ms. FRANKEL of Florida. Mr. Speaker, I rise today to honor National Voices for Equality, Education and Enlightenment (NVEEE), an organization from my district, on receiving a $25,000 grant from the first-ever Be a STAR (Show Tolerance and Respect) Initiative.

The Be a STAR program, cofounded by the WWE and the Creative Coalition, recognizes projects that help encourage respect and tolerance among our nation's schoolchildren, and NVEEE has certainly earned this distinction.

NVEE is a non-profit organization located in Fort Lauderdale, Florida, whose mission is to prevent bullying, violence, and suicide. This grant will be used to fund the Peace Ambassadors program and train young leaders in South Florida to serve as advocates to prevent bullying in their schools and communities.

Once again, I am proud to congratulate NVEEE on their efforts to empower our children and create a climate of acceptance, and I look forward to their continued success.

COMMENDING SAINT LEO UNIVERSITY ON ITS 125TH ANNIVERSARY

HON. GUS M. BILIRAKIS

OF FLORIDA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 11, 2014

Mr. BILIRAKIS. I rise to congratulate Saint Leo University in Pasco County on their 125th anniversary. Back in 1889, Saint Leo was first founded as a college by the Benedictine Monks and was the first Catholic college in Florida. The Florida legislature granted their charter on June 4, 1889.

Saint Leo opened their doors in 1890 and started with a first class of 32 students. They focused on establishing a liberal arts education curriculum.

From its humble beginnings, Saint Leo College grew and in 1999 Saint Leo College became Saint Leo University. Today, Saint Leo University serves over 16,000 students with students from all 50 States, the District of Columbia and more than 60 countries.

Saint Leo University has been a longtime supporter of our Nation's active duty soldiers. In 1973, Saint Leo began offering degree programs on military bases. Saint Leo today is one of the largest providers of higher education to active duty military with an extensive online program. GI Jobs & Military Advanced Education magazine recognized Saint Leo University as one of the Nation's most military-friendly institutions.

I want to congratulate Saint Leo University for its service to our community during the past 125 years and look forward to it being around for another 125 years. I yield back the balance of my time.

IN HONOR OF THE VOLUNTEERS WHO SERVED THANKSGIVING DINNER TO VETERANS ON THE USS NEW JERSEY

HON. ROBERT E. ANDREWS

OF NEW JERSEY

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 11, 2014

Mr. ANDREWS. Mr. Speaker, I rise today to honor the volunteers who served Thanksgiving dinner to homeless veterans on the USS *New Jersey* this past November.

These patriotic South Jersey citizens expressed their appreciation and gratitude those who have selflessly served in our armed services by taking time on Thanksgiving Day to give back to serve dinner to homeless veterans.

For that reason Mister Speaker, it is my honor to submit the names of the volunteers for the CONGRESSIONAL RECORD. Dominick M. Carella, Bob Catando, Amber Louise Clark, Chenay Baxter Clark, Cadet Sophie-Leigh Clark, Malik Cobb Jr., Robert Day, Victoria Day, Jacqueline Dorosky, John Dorosky, Alexis Dowgin, Kyle Dowgin, Min Elders, Chris Fuller, Christopher Jonathan Gruberg, Gerard Harkins, Joseph Hawes, Matthew Hawes, the Hegarty family, Justin Henderson, James Dallas Hoefle, Deborah Johnson, Kelly Johnson, Ginelle Joseph, Jordan Kelley, Austin Kelley, Julie Keys, Bernadette N. Kirkland, Elijah Kirkland, Jan Maurice Kirkland, Keith Kirkland, Nzinga Kirkland, Justin Casey Lamanna, Chloe Madison, Carole Magowan, Steven Magowan, Chase Miller, Joanne Mooney, Martin Mooney, Kayla Phillips, Madison Phillips, Angelo D. Pizzullo Jr., Pamela Pratt, Alyssa Rivers, Alison Rivers, Luis Daniel Marchena Del Rosario, Joseph Rubino, Amanda Saini, Elizabeth Saini, Kenneth Aaron Smith, Sam Snyder, Susan Stefencavage, Donna Stein, Robert Stein, Beth T. Suckiel, Tatiana Swain, Kaoir Takasu, Ty Takasu, Carson Wallace, Charles Wallace III, Kay Walcott-Henderson, and Johanne Wells.

Mr. Speaker, these volunteers exemplify the patriotic character of the citizens of South Jersey. As elected officials it is our duty to match their patriotism—by enacting laws that provide mental health support and other benefits to veterans, so that those who risk their lives on our behalf never become homeless.

MARCY KAPTUR'S UKRAINIAN ROOTS

HON. TIM RYAN

OF OHIO

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 11, 2014

Mr. RYAN of Ohio. Mr. Speaker, I rise today to call attention to an article that recently appeared in the Toledo Blade that describes the family heritage of our colleague and friend, the Honorable MARCY KAPTUR. Ms. KAPTUR represents Ohio's 9th Congressional District, is the dean of the Ohio delegation, and is the senior-most woman in the House.

As this extraordinary article points out, Congresswoman KAPTUR's interest in the current situation in Ukraine is influenced by her grandparents who were born in Ukraine and immigrated to America in the early 1900's.

Last night, the House passed a resolution supporting "the Ukrainian people's struggle to build an independent, democratic, and strong Ukraine that is free from foreign meddling."

Ohioans are very proud of our family heritage as I am a son of Irish and Italian immigrants. MARCY KAPTUR is proud of her Ukrainian heritage and I am honored to serve with her in the House.

I submit an article from the Toledo Blade by Tom Troy.

KAPTUR'S UKRAINE ROOTS RUN DEEP

BEHIND THE SCENES, CONGRESSMAN ENCOURAGES DEMOCRACY

U.S. Rep. Marcy Kaptur (D., Toledo) looks over family pictures on her desk. Miss Kaptur's grandparents were both born in Ukraine, and she worries about that nation's future. She plans to bring some Ukrainian farmers here on a trade mission this month.

During her 30 years as the representative of Ohio's 9th Congressional District, U.S. Rep. Marcy Kaptur has carried on a love affair.

The object of her affections is Ukraine, the former Soviet socialist republic that was the land of her grandmother and grandfather's birth.

''It has been a lifelong interest because, as our mother used to say, our children know the history of our family,'' Miss Kaptur, 67, said last week of herself and her brother Stephen, 61, who lives with her in West Toledo. As Ukraine—a giant eastern European nation famed for its fertile farmland—roils in political unrest, Miss Kaptur has been working behind the scenes to encourage democracy to flourish.

The Toledo Democrat said she has made at least a dozen trips to Ukraine over the last four decades, and she is cochairman of the Congressional Ukrainian Caucus.

In recent months the country has exploded into demonstrations, triggered by outrage at Ukraine President Viktor Yanukovych's decision to end negotiations to join the European Union and turn to Russia to help it pay off a crippling debt. Some see the revolutionary movement as a step toward true independence that started when Ukraine broke off from the Soviet Union in 1990.

Miss Kaptur was the co-sponsor of a resolution that passed Wednesday in a House committee calling the Ukraine leadership to a higher standard, and to support rights of assembly. Whether it will come up for a vote in the full House is not known.

''As the co-chair of the Ukraine caucus I have met with literally hundreds of Ukrainian leaders, existing leaders, emerging leaders, presidents, ambassadors, farmers. The Ukrainian embassy knows about our caucus,'' Miss Kaptur said.

As the Ukrainian military begins making sounds about intervening in the unrest, Miss Kaptur said she hopes that if it does, it exercises restraint.

''The point is there has been a lot of interaction [with the United States], training at the highest level,'' she said. ''The kind of bloodshed that is historic in that region hasn't happened and I hope it won't.''

Miss Kaptur as an infant sits in her Grandmother Teofila Swiecicki Rogowski's lap

while her mother, Anastasia Rogowski, stands. During college, the representative 'worshipped' her hard-working grandparents, who emigrated from Ukraine in the early 1900s.

The realignment of Miss Kaptur's 9th Congressional District in 2012 to snake along Lake Erie all the way from Toledo to Cleveland has been widely decried as gerrymandering designed to achieve Republican goals of squeezing as many Democrats into as few districts as possible.

But one upshot has been the linkage of one of Congress's most Eastern European-focused lawmakers with communities that have a lot of Eastern European immigrants and their descendants.

The district now contains the Cuyahoga County city of Parma, which has a large Ukrainian-American population. Miss Kaptur is also a founder and co-chairman of the Polish and Hungarian congressional caucuses.

Her mother's family was Polish living in modern-day Ukraine.

Miss Kaptur's grandmother Teofila Swiecicki Rogowski and Grandfather John Rogowski emigrated from Ukraine early in the 1900s.

''Then it was czarist Russia. They were not allowed to graze their one cow on the open field and could not feed themselves,'' Miss Kaptur said.

Over the years, as their homeland was devastated by political and military rivalries, including a famine brought on by Soviet leader Joseph Stalin and invasion by the Nazis, they lost all contact with family members in Ukraine. Her grandmother took in wash, and worked in the Commodore Perry and Willard hotels to earn money, while her grandfather, a carpenter, struggled to find work.

''When I was in college I worshipped her and her husband,'' Miss Kaptur said. She wanted to take her grandmother back to Ukraine and find the town they came from, Burtyn, but her grandmother was afraid, she said. Teofila died in 1970.

In 1973, Miss Kaptur—then a planner for the city of Toledo—and her mother, the former Anastasia Rogowski, drove into Soviet Ukraine, where they found her grandmother's brother, a former inmate of Stalin's gulag political prison system for 20 years.

''He was not allowed to travel out of his area because he was viewed as an enemy of the state,'' Miss Kaptur said. He was released from the gulag in 1952, but lost his brother to the camps. Her great-uncle's crime: He had offered aid to a wounded Kulak, a member of the property-owning farming class that was being driven into extinction by Stalin. They had the only car in the dusty town, and were the only guests in the hotel, which had no curtains but a listening device. They had sent word to relatives that they would be at the hotel if anyone wanted to meet them. They were on their third day with no visitors when they heard activity in the lobby.

Miss Kaptur's great-uncle Casmierz Swiecicici was a former inmate in Joseph Stalin's prison system for 20 years. ''We learned the desk clerk had been denying to the woman visitor that any foreigners were staying in the hotel, despite her repeated attempts to contact us,'' Miss Kaptur said.

She said the moment that she finally met her grandmother's brother, Casmierz Swiecicki, was an emotional one. ''There stood this tall man and I looked at him and gasped because he held his hands the same way that our grandmother did. He looked at my mother and said, 'are you my sister?' We just wept,'' Miss Kaptur said. They gave him an orange. ''That began the moment when we began to unlock the history of what happened,'' she said. They met more family members in a return trip two years later.

Andy Fedynsky, resident scholar at the Ukrainian Museum and Archives in Cleveland, said Miss Kaptur has actively supported Ukraine since her first term in 1983. He said that year she played a leadership role in passing a bill to create a commission on the Ukraine famine, which was widely denied.

''This commission was set up and did a thorough job establishing there was a famine, it was planned, 7 million people were deliberately starved to death,'' Mr. Fedynsky said. He said Miss Kapttr testified that the victims included her own family.

''She said, 'Don't tell me this never happened. I know it happened because my ancestors endured it,''' Mr. Fedynsky said. The commission ''made a huge difference in Ukraine historiography.''

Miss Kaptur and others worked to get President Obama to include a Ukraine reference in his State of the Union speech last week, which he did. The President said, ''In Ukraine, we stand for the principle that all people have the right to express themselves freely and peacefully and to have a say in their country's future.''

''I have been meeting with Ukrainians on a regular basis. We are planing a trade mission for farmers to bring them to Ohio in February,'' Miss Kaptur said.

She has a picture of herself meeting a year and a half ago with one of the opposition leaders when he was in Washington.

She said she was in Ukraine in 2013 while on her way to Poland to be awarded an honorary citizenship—her father's family was from Poland—when she feared that Ukraine was slipping backward. ''I left very, very worried. I saw how much more difficult their life had become. I was deeply worried about what I saw—greater poverty among older women, farmers that I've known.''

Ironically to the girl whose grandmother had only wanted to raise money in order to buy a piece of land on which to graze their cow, Ukrainian farmland is being bought up by oligarchs.

''There was a real sense that democracy was slipping away. Then all of this has happened. The people of Ukraine have stood up, and we should stand with them,'' Miss Kaptur said.

HONORING JACOB E. LEE

HON. SAM GRAVES

OF MISSOURI

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 11, 2014

Mr. GRAVES of Missouri. Mr. Speaker, I proudly pause to recognize Jacob E. Lee. Jacob is a very special young man who has exemplified the finest qualities of citizenship and leadership by taking an active part in the Boy Scouts of America, Troop 444, and earning the most prestigious award of Eagle Scout.

Jacob has been very active with his troop, participating in many scout activities. Over the many years Jacob has been involved with scouting, he has not only earned numerous merit badges, but also the respect of his family, peers, and community. Most notably, Jacob has contributed to his community through his Eagle Scout project. Jacob replaced a gate at Harvester's Community Garden in Kansas City, Missouri.

Mr. Speaker, I proudly ask you to join me in commending Jacob E. Lee for his accomplishments with the Boy Scouts of America and for his efforts put forth in achieving the highest distinction of Eagle Scout.

IN RECOGNITION OF THE RETIREMENT OF MASTER SERGEANT SHAWN EDWARDS

HON. MIKE ROGERS

OF ALABAMA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 11, 2014

Mr. ROGERS of Alabama. Mr. Speaker, I ask for the House's attention today to recognize Master Sergeant Shawn Edwards, a constituent of mine from Opelika, Alabama. MSgt Edwards is retiring June 1st from the United States Air Force after over 20 years of service.

MSgt Edwards began his career as a Security Forces member. He was responsible for guarding our nation's highest priority weapons. He spent ten years in this position with assignments in Grand Forks Air Force Base, Izmir Air Station in Turkey; and Kirtland Air Force Base. In 2003, he re-trained into the contracting career field. He has been responsible for the purchase and acquisition of supplies, services and construction to support the needs of the installation at which he is serving. As a contractor, he has served at Maxwell Air Force Base, Ramstein Air Base and Hurlburt Field. MSgt Edwards has also served his country in deployments to Camp Victory, Iraq, Bagram Air Base, Afghanistan and Thumrait, Oman.

MSgt Edwards has served his country with honors for over 20 years. Some of these awards include: the Defense Meritorious Service Medal, the Air Force Meritorious Service Medal, the Joint Service Commendation Medal, the Air Force Commendation Medal with four devices, the Air Force Achievement Medal with two devices, the Air Force Good Conduct Medal, the National Defense Medal with one device, the Afghanistan Campaign Medal with one device, the Iraq Campaign Medal with one device, the Global War on Terrorism Expeditionary Medal, the Global War on Terrorism Service Medal, the Humanitarian Service Medal with one device and the NATO Medal.

Mr. Speaker, please join me in thanking Master Sergeant Shawn Edwards for his tireless dedication to serving America. His service to our state and country is an inspiration. I wish him the best of luck in his future endeavors.

RECOGNIZING POLK STATE COLLEGE

HON. DANIEL WEBSTER

OF FLORIDA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 11, 2014

Mr. WEBSTER of Florida. Mr. Speaker, I am pleased to recognize Polk State College on the occasion of its 50 year anniversary.

Polk State College, the first higher education institution in Polk County, was established in 1964. The college enjoyed early success, enrolling 1,200 students in its first semester. Its continued growth necessitated construction of a larger, permanent campus. Ground was broken in 1966 on the shores of

Lake Elbert, and within a decade, the campus had expanded to accommodate the growing student population and academic program offerings.

Today, Polk State College serves more than 20,000 students of which 95% are Polk County residents. It is a multi-campus institution offering four-year degrees, including a Bachelor of Science in Nursing and a Bachelor of Applied Science in Supervision and Management. Further expansions are planned for Polk State in 2014, including the Polk State Center for Public Safety in Winter Haven.

I applaud Polk State College for their commitment to education and invaluable contributions to our community. Go Eagles! As their motto declares, Polk State College is ''the perfect place to soar.''

HONORING SIX OUTSTANDING GRADUATES TO RECEIVE FULBRIGHT AWARDS

HON. LOIS FRANKEL

OF FLORIDA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 11, 2014

Ms. FRANKEL of Florida. Mr. Speaker, I rise today to honor six outstanding graduates in Florida's 22nd District who have been selected to receive prestigious Fulbright awards to study, lecture, teach, or conduct research abroad during the 2013–2014 academic year. All of them were selected on the basis of academic or professional achievement, as well as demonstrated leadership potential in their fields.

The awardees are the following: Asma Aftab of the University of Miami, Jack Armstrong of Broward Community College, Anne Fertig of Rollins College, Debra Reyes-Brannon, also of Rollins College, Alicia Richardson of Florida State University, and Usar Suragarn of Florida Atlantic University.

These individuals are continuing a tradition of international exchange and mutual understanding that began in 1946, when Congress established the Fulbright Program. I would like to congratulate them on such a remarkable accomplishment and wish them the best of luck in their endeavors abroad.

THE SENSIBLE ESTATE TAX ACT OF 2014

HON. JIM McDERMOTT

OF WASHINGTON

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 11, 2014

Mr. MCDERMOTT. Mr. Speaker, I rise today to introduce the Sensible Estate Tax Act of 2014. This legislation offers a thoughtful, comprehensive approach to reforming our estate tax system that is supported by voters across all income levels. As America comes out of one of the worst recessions in its history, this Congress must carefully consider all sources of revenue that are not only effective, but fair and equitable. This estate tax embodies those values.

The past decade of failed tax policies have killed jobs and resulted in significant income and wealth disparity in this country. The promise and strength of America lies in a system that benefits everyone. These tax policies have steered us away from this promise and crippled the American economy. The middle class continues to shrink as more and more wealth flows to the top—and this country's current tax system makes this unfairness worse. The current estate tax policy is the poster child for the unfairness we all see.

That is why I am introducing this legislation. This bill will bring the estate tax back to the rates and exemptions from before the Bush tax cuts—a time when this country experienced continued prosperity and budget surpluses.

Specifically, the Sensible Estate Tax Act of 2014 will return the top marginal rate to 55% and lower the exemption for individuals to $1 million. Estate tax loopholes are also addressed, including a 10-year minimum on grantor retained annuity trusts, limitations on the generation skipping transfer trust exemption, and rules for consistent basis reporting.

Succeeding financially in life is a wonderful American right and the families of wealthy people should benefit from that good fortune. But no one gets wealthy on their own. Financial success for any American is achieved by using the roads, schools, and public services that all Americans pay for. It is only fair that they reinvest in the country that provided them with so much opportunity.

RECOGNIZING THE EFFORTS OF LAKE COUNTY RISING TO END VIOLENCE AGAINST WOMEN AROUND THE WORLD

HON. BRADLEY S. SCHNEIDER

OF ILLINOIS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 11, 2014

Mr. SCHNEIDER. Mr. Speaker, I rise today because Lake County, Illinois is rising. Lake County has joined One Billion Rising around the world to stand up for justice, equality and women's rights.

This initiative started two years ago because the United Nations reported that one-in-three women will be victims of rape or other gender-based violence in their lifetimes.

That tragic statistic is simply unacceptable. That is why the global community has joined together to rise up to end this violence and work towards equality and justice for all.

This February 14th, one billion, in more than 200 countries, will rise, and I am most proud that Lake County will join this historic effort and rise up for justice.

One Billion Rising celebrates the empowerment of women and girls around the world, bringing people together in a joyous expression of freedom and strength.

Around the world, one billion people stood up last year and danced in support of justice. And true justice must include all facets of life: at home; at work; before the law; and everywhere else in society.

Every woman and girl deserves the freedom and confidence to live free, absent of fear.

Perhaps the single most effective tool in this campaign for justice is education. Education is how we improve our lives, and how we help others improve theirs. Education allows women and girls throughout the world to rise up and achieve their full potential.

Mr. Speaker, these committed men and women of Lake County have shown an inspiring dedication and resolve to stand for justice. I thank everyone involved in this year's celebration for their work and for showing that Lake County is strong, Lake County is committed, Lake County is rising!

PERSONAL EXPLANATION

HON. RON KIND

OF WISCONSIN

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 11, 2014

Mr. KIND. Mr. Speaker, I was unable to have my votes recorded on the House floor on Monday, February 10, 2014. Winter weather in the Midwest delayed my flight out of Minneapolis. Had I been present, I would have voted in favor of H.R. 2431 (rollcall No. 55), in favor of H. Res. 447 (rollcall No. 56), and in favor of the Journal Vote (rollcall No. 57).

HONORING SCOTT DANIEL BYBEE

HON. SAM GRAVES

OF MISSOURI

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 11, 2014

Mr. GRAVES of Missouri.

Mr. Speaker, I proudly pause to recognize Scott Daniel Bybee. Scott is a very special young man who has exemplified the finest qualities of citizenship and leadership by taking an active part in the Boy Scouts of America, Troop 177, and earning the most prestigious award of Eagle Scout.

Scott has been very active with his troop, participating in many scout activities. Over the many years Scott has been involved with scouting, he has not only earned numerous merit badges, but also the respect of his family, peers, and community. Most notably, Scott has contributed to his community through his Eagle Scout project. Scott planned and led his troop in a tree-planting project in conjunction with the United States Army Corps of Engineers.

Mr. Speaker, I proudly ask you to join me in commending Scott Daniel Bybee for his accomplishments with the Boy Scouts of America and for his efforts put forth in achieving the highest distinction of Eagle Scout.

RECOGNIZING VFW POST 7327 AND THE 2014 AWARD RECIPIENTS

HON. GERALD E. CONNOLLY

OF VIRGINIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 11, 2014

Mr. CONNOLLY. Mr. Speaker, I rise to recognize the Springfield Veterans of Foreign Wars Post 7327 and the recipients of its 2014 Annual Awards.

The Veterans of Foreign Wars, VFW, traces its beginnings to 1899 when veterans of the Spanish American War established local organizations to bring awareness to their service and to advocate for veterans' retirement benefits and improved medical care. Annually, the nearly 2 million members of the VFW and its Auxiliaries contribute more than 8.6 million hours of volunteerism in the community, including participation in Make A Difference Day and National Volunteer Week.

With approximately 700 Comrades and 150 Ladies Auxiliary members, the Springfield VFW Post 7327 stands out for the depth of its commitment to our community. Often called ''The Friendliest VFW Post in Virginia,'' Post 7327 has one of the most aggressive ADOPT-A-UNIT programs in the entire VFW organization to support our service members stationed overseas. VFW Post 7327 visits the VA hospital at least quarterly; bringing along goodie bags for our Wounded Warriors. Each Thanksgiving and Christmas, VFW Post 7327 adopts military families in need through the USO and provides them with meal baskets for each holiday, gifts for children, commissary cards for the parents, and a Christmas party where the children can meet Santa and receive a gift-filled stocking. The Ladies Auxiliary members collect, sort, and distribute more than 2,000 pieces of clothing each month to various charitable organizations. VFW Post 7327 is a strong supporter of local youth organizations including the Boy Scouts, Girl Scouts, and Little League Baseball that contribute greatly to the education and well-being of our children.

Each year, VFW Post 7327 bestows awards to local students who have submitted outstanding essays on a theme and to local citizens in recognition of their extraordinary actions and dedication. I am honored to enter the names of the following 2014 honorees into the CONGRESSIONAL RECORD:

Voice of Democracy:

Winner: Sebrina Hess.

2nd Place: Tirzah Sheppard.

3rd Place: Nicia Grier-Spratley.

Patriot's Pen:

Winner: Aubrey Taradash.

2nd Place: Madelynn Cerami.

3rd Place: Skyler Foley.

Fire Fighter of the Year: Anthony Shaffer.

EMS of the Year: Sean Wetjen.

Police Officer of the Year: PFC James L. Thur.

Teachers of the Year: Aaron Tagert, Silverbrook Elementary; Jennie Lindner, South County High School.

I would also like to recognize the following sponsors of the VFW's Recycled Rides Program that provided an automobile to a needy soldier at Fort Belvoir: Progressive Insurance, Enterprise Car Rental, Refinish Solutions, Tan Auto Body, LKO Northern Virginia, and Jerry's Collision Repair.

Finally, I wish to thank the following sponsors of the 2013 VFW Thanksgiving/Christmas Program which provided food and gifts to 14 needy military families at Fort Belvoir. The sponsors of this program were Hilltop Golf Club, Olympians Family Restaurant, Safford Dodge of Springfield, Frizzles Salon and Spa, Residence Inn Marriott of Springfield, Northern Virginia Surgical Center, Greater Springfield Chamber of Commerce, Women's Club of Springfield, Springfield Optimist Club.

Mr. Speaker, I ask that my colleagues join me in congratulating the 2014 Awardees and in thanking the members, Ladies Auxiliary, program sponsors, and supporters of VFW Post 7327 for their continued service to our country and our community.

CONGENITAL HEART DEFECT AWARENESS WEEK

HON. BILLY LONG

OF MISSOURI

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 11, 2014

Mr. LONG. Mr. Speaker, I rise today to recognize Congenital Heart Defect Awareness Week, which is February 7–14, 2014.

Congenital Heart Defects affect nearly two million Americans and are considered one of the most common birth defects within the United States. Each year approximately forty thousand babies are born in the United States with Congenital Heart Defects, while many remain undiagnosed for months or even years after birth. This dangerous condition can cause sudden cardiac death if left undiagnosed, which is especially harmful in young adolescent athletes who unknowingly suffer from this defect.

This week not only serves to raise awareness of Congenital Heart Defects to increase screenings and funding for research, it serves as a dedication to the millions of Americans diagnosed with Congenital Heart Defects, the challenges their families face, and for the families of those who have sadly lost loved ones to this condition.

HONORING GEORGETOWN UNIVERSITY'S 225TH ANNIVERSARY

HON. HENRY CUELLAR

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 11, 2014

Mr. CUELLAR. Mr. Speaker, I rise today to honor Georgetown's 225th anniversary. Founded in 1789 by Bishop John Carroll of Maryland, Georgetown stands as the oldest Jesuit and Catholic University in the United States. For over 225 years Georgetown has educated young scholars of all ages and backgrounds, equipping them with the knowledge and skills to make a difference in the world. What began as a two story old brick building has now become one of the finest universities in the country and I celebrate the University's founding.

Bishop Carroll, in his ''Proposals for Establishing an Academy at George-Town, Potowmack River, Maryland,'' envisioned an institution which gave ''undivided attention . . . to the cultivation of virtue, and literary improvement.'' On January 23rd, 1789 he received the first deed for the land that became the campus of Georgetown University. Then in 1815 President James Madison signed an Act of Congress granting a federal charter to ''The College of Georgetown in the District of Columbia.'' Only the U.S. Military Academy had received a federal charter prior to Georgetown. In 1850 the first Catholic Medical School was established and 20 years later Father Patrick Healy, who was born a slave, became the first African American president of a major American university. Much later in 1919 the university added the Walsh School of Foreign Service, of which I am a proud alumnus.

For over two centuries Georgetown has grown and evolved along with the Nation; today, it is home to students from all fifty states, the District of Columbia, Puerto Rico, Guam, the Virgin Islands and the Northern Marianas as well as from 141 countries around the globe. At the university's Centennial Anniversary a speaker noted, ''It has taken a century to develop our country into a mighty nation and a united people. The same century has developed the college founded by John Carroll into a great and prosperous university, fully competent to hold her place among the universities of the world.'' This statement still holds true today and Georgetown stands as one of the most highly ranked educational institutions in the world.

In recent years, research at Georgetown has led to important breakthroughs such as the development of a vaccine against the human papillomavirus, and efforts are being made to improve the Nation's capacity to identify and track the outbreak of diseases. The campus has been home to renowned faculty including the late U.N. Ambassador Jeanne Kirkpatrick and the late Carroll Quigley whom, Georgetown alum Bill Clinton quoted in his first inaugural address.

Today, fifteen Members of the House of Representatives hold Georgetown degrees including our colleague the Honorable JOHN DINGELL, who holds two Georgetown degrees and is the longest serving Member of Congress in the Nation's history. It is a distinct privilege to serve in this body with esteemed colleagues who also studied at Georgetown.

Mr. Speaker, I know they, in particular, share my pride in recognizing the 225th anniversary of the university's founding and look forward to a bright future for our alma mater.

THANK YOU, LORA HOBBS

HON. JOE WILSON

OF SOUTH CAROLINA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 11, 2014

Mr. WILSON of South Carolina. Mr. Speaker, today, I am very grateful for the opportunity to recognize Lora Hobbs, a committed staff member for the Second Congressional District of South Carolina. After serving the great state of South Carolina for more than two and a half years, Lora is leaving the office to join the office of Congressman BRADLEY BRYNEE of Alabama's First Congressional District as a legislative assistant.

Lora, is a native of Laurens, South Carolina, and joined the office in August of 2011 as a staff assistant after recently graduating from the University of South Carolina. Her tremendous leadership skills allowed her to transition quickly and become the legislative correspondent.

It is with sincere gratitude that I would like to thank Lora for her dedicated staff work. I have no doubt that the people of lower Alabama will benefit significantly from her expertise. I wish Lora all the best in future endeavors and look forward to hearing of her continued success.

In conclusion, God Bless our Troops and we will never forget September 11th in the Global War on Terrorism.

HONORING U.S. CAPITOL POLICE SERGEANT CLINTON HOLTZ

HON. DAVID G. REICHERT

OF WASHINGTON

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 11, 2014

Mr. REICHERT. Mr. Speaker, I rise today to honor the life of U.S. Capitol Police Sergeant Clinton Holtz. Sergeant Holtz served this Congress every day, working to keep us safe, willing to put his life on the line. But he was more than a police officer. He was a beloved son and brother. He had an exciting career before joining the police force, playing professional basketball across the globe, and he was also my friend. Sergeant Holtz was always ready with a kind word or a funny story; willing to swap stories with an old cop like me. My thoughts and prayers are with his family and friends as they mourn him. He will be greatly missed but always remembered.

RECOGNIZING CHRISTOPHER HABERLAND FOR RECEIVING THE 2013 CRITICAL LANGUAGE SCHOLARSHIP

HON. GERALD E. CONNOLLY

OF VIRGINIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 11, 2014

Mr. CONNOLLY. Mr. Speaker, I rise to recognize Mr. Christopher Haberland, a resident of Herndon, Virginia, who is a recipient of the 2013 Critical Language Scholarship.

The Critical Language Scholarship Program was established in 2006 by the Department of State as part of an effort to train American young people in languages that are critical to our nation's global interests. For three months, attendees are immersed in an intensive cultural environment that teaches a new language, new culture, and new sense of self. The CLS program is remarkably competitive; in 2013 nearly 4,000 students from around the country applied, but only 597 were accepted. Due to his impressive academic success, I am proud to say that Christopher Haberland was one of those chosen.

Participants in the Critical Language Scholarship Program do more than simply enrich their own understanding and appreciation of a foreign culture. Their deep understanding of these critical regions ensures that our nation has capable individuals that can work on issues vital to the interests of the United States. Mr. Speaker, I urge my colleagues to join me in recognizing the service of Christopher Haberland, and in wishing him heartfelt congratulations on his achievements.

TRIBUTE TO MEREDITH OCKMAN

HON. LOIS FRANKEL

OF FLORIDA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 11, 2014

Ms. FRANKEL of Florida. Mr. Speaker, I rise today to honor Meredith Ockman, recipient of the Palm Beach County National Organization for Women (NOW) Blood, Sweat, and Tears Award and tireless advocate for justice and equality.

Meredith, who currently serves as Vice President for Florida NOW, has truly dedicated her career to community service. She has worked with Compass: The Gay and Lesbian Community Center of the Palm Beaches to teach safe sex education, and has bravely defended women seeking abortion care from harassment and intimidation.

Her impact includes grassroots advocacy as well. She organized participants for the March for Women's Lives, and has served NOW in several capacities, including as Legislative Director for Florida NOW and President of Palm Beach County NOW.

With her limited spare time, Meredith volunteers with several organizations and is the President of the Women's Health Foundation of South Florida. In honor of her tireless efforts on behalf of South Florida women, I am pleased to recognize Meredith Ockman for her amazing achievements and wish her continued success.

PERSONAL EXPLANATION

HON. LUIS V. GUTIÉRREZ

OF ILLINOIS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 11, 2014

Mr. GUTIÉRREZ. Mr. Speaker, I was unavoidably absent in the House Chamber for votes on Monday, February 10, 2014.

Had I been present, I would have voted ''yea'' on rollcall vote 55, and ''yea'' on rollcall vote 56, and ''nay'' on rollcall vote 57.

INTRODUCTION OF THE PROMOTING NATIONAL SERVICE AND REDUCING UNEMPLOYMENT ACT

HON. ELEANOR HOLMES NORTON

OF THE DISTRICT OF COLUMBIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 11, 2014

Ms. NORTON. Mr. Speaker, I rise today to introduce the Promoting National Service and Reducing Unemployment Act, to address one of the greatest workforce tragedies resulting from today's economy—our unemployed young people—and to spur economic growth and alleviate strain on state and local governments. This tragedy is not only hurting our young people, it is costing our government $25 billion each year through lost tax revenue and other costs. While over 10.4 million Americans are unemployed, my bill targets the 3.8 million young people who have not had a fair chance to ever use their high school and college education, which this nation has strongly urged them to get.

What is particularly disappointing is the high unemployment rate for young people who heeded our advice to graduate from high school and college, only to try to enter the workforce in the worst economy in generations. The total unemployment rate was 7.3 percent compared to 16.3 percent for young adults aged 16 to 24 even during the recent summer. Hundreds of thousands now compete for unpaid internships wherever they can find them. By significantly expanding AmeriCorps, my bill, without needing a new administrative structure or bureaucracy, would allow unemployed young people to earn a stipend sufficient to support themselves and to obtain work experience and secure a good work history to help them obtain future employment. The net cost of the expansion would be low, because these young people would be providing urgently needed local services that are being dropped or curtailed because of federal, state, and local budget cuts, such as after-school programs, tutoring, and assistance for the elderly.

The bill would significantly expand job opportunities for young people who have played by the rules but find themselves unemployed in this economy. It would increase the number of participants in the AmeriCorps State and National program from approximately 78,000 to 500,000 full-time participants. Participants receive a living allowance, which most find sufficient to meet their basic needs, and are also eligible for an education award equal to the value of a Pell grant, for school-loan forbearance, health care benefits and child care assistance. By expanding the program, we would reduce the number of unemployed young people, provide them with the work skills and experience they would not get while unemployed, and help cash-strapped states and local governments provide services that they would otherwise have to cut.

For some time, it has been clear that policies to address today's unusually stubborn unemployment need to be targeted in order to be effective. Without significant targeting, young graduates will continue to face their first years as adults without jobs and with no way to acquire work experience. They deserve better. I ask my colleagues to support this urgently needed targeted assistance for young, unemployed Americans.

IN HONOR OF THE 60TH WEDDING ANNIVERSARY OF REVEREND BILL LAWSON AND MRS. AUDREY LAWSON

HON. AL GREEN

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 11, 2014

Mr. AL GREEN of Texas. Mr. Speaker, I would like to acknowledge the 60th wedding anniversary of two respected and revered individuals, Reverend Bill Lawson and Mrs. Audrey Lawson. Married January 28, 1954, while Reverend Lawson was attending Central Baptist Theological Seminary. The Lawsons are pillars of the Houston community, who have reared four successful children.

In 1962, Reverend Lawson alongside his first-lady Mrs. Lawson founded the Wheeler Avenue Baptist Church with just thirteen members. Reverend Lawson went on to serve as Senior Pastor at the church for 42 years before retiring to focus on his work in the community, through the William A. Lawson Institute for Peace and Prosperity (WALIPP).

Mr. Speaker, I am blessed to have the opportunity to pay tribute to two individuals who have so selflessly and faithfully served their community. They are exemplars for all those who aspire to greatness through service and mentorship of others. I pray that God will grant them many more years of love and happiness.

RECOGNIZING NATIONAL ACCREDITED ACH PROFESSIONAL DAY

HON. GERALD E. CONNOLLY

OF VIRGINIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 11, 2014

Mr. CONNOLLY. Mr. Speaker, I rise to recognize Tuesday, February 11, as National Accredited ACH Professional (AAP) Day. This day highlights the importance of the AAP credential, as well as celebrates the achievements and contributions of AAPs nationwide.

The AAP credential is the standard of excellence in ACH payments competency. AAPs are recognized payments industry experts on subjects ranging from the NACHA Operating Rules to sound risk management practices, and as such, are highly regarded by financial regulators and examiners. They play a key role in the individual organizations they serve and the greater industry as a whole, imparting knowledge and supporting practices that help ensure continued confidence in ACH payments and the safety, security, and reliability of the ACH Network.

The ACH Network, administered by NACHA—The Electronic Payments Association, provides for the efficient exchange of direct account-to-account payments for consumers, businesses, and governments. Annually, it processes more than 21 billion electronic payments—including more than 5 billion Direct Deposit transactions—totaling almost $37 trillion. Through their expertise, AAPs help safeguard the quality of the ACH Network and the billions of transactions that flow through it. To be awarded the AAP credential, individuals must pass a comprehensive exam, which is administered by NACHA each fall. The exam tests an individual's knowledge of a variety of subjects including the NACHA Operating Rules, the ACH Network and other payments systems, technical and operational ACH requirements, risk management, and payments-related regulations. Mr. Speaker, I ask that my colleagues join me in commending the more than four thousand AAPs nationwide by recognizing today as National Accredited ACH Professional Day.

PERSONAL EXPLANATION

HON. PAUL A. GOSAR

OF ARIZONA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 11, 2014

Mr. GOSAR. Mr. Speaker, I rise today to recognize passage this week of three important pieces of legislation: H.R. 2431, the National Integrated Drought Information System Reauthorization Act of 2013; S. 25, the vehicle which included the military retiree COLA fix and SGR bill; and H.R. 3448, the Small Cap Liquidity Reform Act. Additionally, I would like to make clear that I would have opposed S. 540, the Debt Limit Extension. Unfortunately, I was not able to vote on final passage of these important bills because of much needed hip replacement surgery. I guess I'm finally being paid back for playing rugby all through college and dental school.

H.R. 2431, National Integrated Drought Information System Reauthorization Act of 2013, is important legislation that will provide critical benefits for ranchers, waters users and local communities allowing them to better prepare and respond to extreme drought conditions that are continuing to plague the West as well as rural communities.

S. 25 reverses the cost of living adjustment (COLA) cuts for working-age military retirees that was found in the Bipartisan Budget Act. I voted against the flawed Bipartisan Budget Act because it increased spending levels by $45 billion in one year and $63 billion over the course of two years. To pay for those increases, the Bipartisan Budget Act erased various, if not all, spending cuts from the Budget Control Act which passed back in 2011. Additionally, the Bipartisan Budget Act reduced the annual retirement COLA for working age military retirees by one full percentage point. I found this provision to be completely unacceptable and don't believe we should be balancing our budget on the backs of our veterans. As S. 25 repeals this provision that penalizes our military retirees and includes a payfor, I would have supported this legislation.

H.R. 3448, the Small Cap Liquidity Reform Act of 2013 is important legislation that establishes an optional liquidity pilot program which will benefit the securities of small emerging growth companies.

Finally, I want to reiterate that I would have opposed S. 540, the Debt Limit Extension. Back in 2011, we reached an understanding that if we're going to raise the debt ceiling and not jeopardize the nation's credit, then we need to attach reforms to each debt ceiling increase so that we reduce the need to constantly raise the debt ceiling and we start living within our means. This increase violates those principles. Although some like to call this a ''clean'' debt ceiling increase, there is nothing clean about borrowing another trillion dollars; this is as messy as it gets and the term ''clean'' is propaganda as far as I'm concerned. The bottom line is that our nation has a spending addiction—it's past the point of a problem—when we must continually raise the debt ceiling to accommodate our dangerous spending habits. At what point does it stop? How is it possible that we couldn't include a single reform in this legislation? I don't want our country to default but I wouldn't have voted to give the President a blank check. The federal government will collect an estimated $3 trillion in taxes from October 1, 2013 until September 30, 2014. We do have the ability to live within our means and it's time we make the hard decisions necessary to make that happen.

Had I been present for these votes, I would have voted in support of these three important bills with a ''yea'' vote on rollcall Numbers 55, 60 and 62. I would have opposed increasing the debt ceiling and voted ''nay'' on rollcall Numbers 61.

IN HONOR OF THE NOMINATION OF RENEE PATRON FOR LEUKEMIA WOMAN OF THE YEAR

HON. ROBERT E. ANDREWS

OF NEW JERSEY

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 11, 2014

Mr. ANDREWS. Mr. Speaker, I rise today to honor Renee Patron for being nominated for Leukemia Woman of the Year, an award given by the Leukemia and Lymphoma Society.

Ms. Patron earned her bachelor's degree in communications with a minor in marketing from Eastern University in St. Davids, PA. During her time at college, a friend of hers named Dina Innella suffered from leukemia. Selflessly, Ms. Patron cared for Ms. Innella during her time of need. While she didn't expect any recognition for her kindness, another friend nominated her through the Leukemia and Lymphoma Society to recognize her dedication.

After college, Ms. Patron went on to become a successful small business owner, opening Events by Renee. She is the programming and event co-chair for the Public Relations Society of America, in addition to being a founding member of a Philadelphia women's networking group called Femmefessionals. In her free time, she volunteers with the Big Brothers Big Sisters Philadelphia chapter and with the Ronald McDonald House in Philadelphia.

Mr. Speaker, Ms. Patron is a role model for her kindness and sacrifice. I join all of South Jersey in thanking Ms. Patron for her dedication and wish her best in her future endeavors.

RECOGNIZING THE BELLEVUE DOWNTOWN ASSOCIATION

HON. ADAM SMITH

OF WASHINGTON

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 11, 2014

Mr. SMITH of Washington. Mr. Speaker, I rise to honor the Bellevue Downtown Association on the occasion of its 40th anniversary. This non-profit organization is made up of passionate community members and has played a key role in creating the flourishing downtown that the citizens and businesses of Bellevue, Washington enjoy today.

Over the last 40 years, Bellevue has been transformed into a thriving business center that is home to roughly 1,300 businesses and 45,000 workers. I am confident that this rapid economic development would not have been possible without the work of the Bellevue Downtown Association, as their efforts have made this area an inviting location for both businesses and residents.

In particular, much of Bellevue's growth as a rising entertainment and cultural scene in the area is largely bolstered by the Association's impressive lineup of annual events. From a jazz festival and summer concert series, to the Eastside's largest Fourth of July celebration, the Bellevue Downtown Association's efforts have made downtown Bellevue more than just a great location to do business, but an appealing, culturally diverse place to live as well.

Mr. Speaker, it is with great admiration that I recognize the work of the Bellevue Downtown Association. Without its voice and hard work, downtown Bellevue would not be the economic and cultural center that it has become today.

HONORING REVEREND PAM CAHOON

HON. LOIS FRANKEL

OF FLORIDA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 11, 2014

Ms. FRANKEL of Florida. Mr. Speaker, I rise today to honor one of my constituents, Reverend Pam Cahoon, who has steadfastly fought against hunger and injustice her entire life. When Reverend Cahoon was in elementary school, she convinced her mother to pack extra lunches so her classmates could have something to eat.

Since that time, her impact on Palm Beach County has been extraordinary. As executive director of Christians Reaching Out to Society Ministries (CROS), an organization working to end hunger in our community, she managed to increase the budget by more than 50 times the amount available when she first joined CROS. Under her leadership, CROS has served more than 85,000 meals, given out more than 28,000 after-school snacks, and provided more than 16,000 lunches for students to take home to provide meals over the weekend. She will retire on February 20th after spending 35 years as the Executive Director of CROS.

Additionally, Reverend Cahoon helped to bring Habitat for Humanity to our area and helped create the Palm Beach County food bank. She has also served on the Palm Beach County Council on Child Abuse and Neglect and served on the board of many other community organizations and coalitions.

Reverend Pam Cahoon is truly an exceptional woman. She received her Masters of Divinity from Emory University, and she has three children and four grandchildren. I am pleased to recognize the Reverend for all of her accomplishments and wish her good health and a peaceful retirement.

RECOGNIZING GRACE MENG FOR RECEIVING THE 2013 CRITICAL LANGUAGE SCHOLARSHIP

HON. GERALD E. CONNOLLY

OF VIRGINIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, February 11, 2014

Mr. CONNOLLY. Mr. Speaker, I rise today to recognize Ms. Grace Meng, a resident of Vienna, Virginia, who is a recipient of the 2013 Critical Language Scholarship.

The Critical Language Scholarship Program was established in 2006 by the Department of State as part of an effort to train American young people in languages that are critical to our nation's global interests. For three months, attendees are immersed in an intensive cultural environment that teaches a new language, new culture, and new sense of self. The CLS program is remarkably competitive; in 2013 nearly 4,000 students from around the country applied, but only 597 were accepted. Due to her impressive academic success, I am proud to say that Grace Meng was one of those chosen.

Participants in the Critical Language Scholarship Program do more than simply enrich their own appreciation of a foreign culture. Their deep understanding of these critical regions ensures that our nation has capable individuals that can work on issues vital to the interests of the United States. Mr. Speaker, I urge my colleagues to join me in recognizing the service of Grace Meng, and in wishing her heartfelt congratulations on her achievements.

CORRECTION

Daily Digest

HIGHLIGHTS

Senator-Designate John E. Walsh, of Montana, was administered the oath of office by the Vice President.

Senate

Chamber Action

Routine Proceedings, pages S859–S913

Measures Introduced: Six bills and one resolution were introduced, as follows: S. 2011–2016, and S. Res. 353. **Pages S890–91**

Measures Passed:

National Oceanic and Atmospheric Administration Commissioned Officer Corps Amendments Act: Senate passed S. 1068, to reauthorize and amend the National Oceanic and Atmospheric Administration Commissioned Officer Corps Act of 2002, after agreeing to the committee amendment in the nature of a substitute, and the following amendment proposed thereto: **Pages S903–13**

Reid (for Begich) Amendment No. 2740, to treat certain officers in the commissioned officer corps of the National Oceanic and Atmospheric Administration as employees of the Administration for purposes of vacant positions of employment open only to current employees of the Administration. **Page S907**

Measures Considered:

Bipartisan Budget Act: Senate continued consideration of the motion to proceed to consideration of S. 1963, to repeal section 403 of the Bipartisan Budget Act of 2013. **Pages S860–85**

Appointments:

Board of Visitors of the U.S. Air Force Academy: The Chair, on behalf of the Vice President, pursuant to 10 U.S.C. 9355(a), appointed the following Senator to the Board of Visitors of the U.S. Air Force Academy: Senator Moran, vice Senator Hoeven. **Page S913**

Board of Visitors of the U.S. Merchant Marine Academy: The Chair, on behalf of the Vice President, pursuant to Section 1295b(h) of title 46 App., United States Code, and upon the recommendation of the Chairman of the Committee on Commerce, Science and Transportation, appointed the following Senators to the Board of Visitors of the U.S. Merchant Marine Academy: Senators Boozman and Wicker. **Page S913**

Swearing-in of Senator Walsh: The Chair laid before the Senate the certificate of appointment of Senator-Designate John E. Walsh of the State of Montana, and the oath of office was then administered as required by the U.S. Constitution and prescribed by law. **Pages S871–72**

Nominations—Agreement: A unanimous-consent-time agreement was reached providing that at 11 a.m., on Wednesday, February 12, 2014, Senate begin consideration of the following nominations: Tina S. Kaidanow, of the District of Columbia, a Career Member of the Senior Foreign Service, Class of Minister-Counselor, to be Coordinator for Counterterrorism, with the rank and status of Ambassador at Large, Daniel Bennett Smith, of Virginia, to be an Assistant Secretary of State (Intelligence and Research), Catherine Ann Novelli, of Virginia, to be United States Alternate Governor of the International Bank for Reconstruction and Development for a term of five years, and United States Alternate Governor of the Inter-American Development Bank for a term of five years, and Catherine Ann Novelli, of Virginia, to be an Under Secretary of State (Economic Growth, Energy, and the Environment); that there be 30 minutes for debate equally divided in the usual form; that upon the use or yielding back of time, Senate vote, without intervening action or debate, on confirmation of the nominations, in the order listed; that no further motions be in order; provided further, that there be two minutes for debate, equally divided in the usual form prior to each vote, and all votes after the first, be ten minutes in length. **Pages S902–03**

Nominations Confirmed: Senate confirmed the following nominations:

By 90 yeas to 8 nays (Vote No. EX. 27), Richard Stengel, of New York, to be Under Secretary of State for Public Diplomacy. **Pages S885–86, S913**

By 97 yeas to 1 nay (Vote No. EX. 28), Sarah Sewall, of Massachusetts, to be an Under Secretary of State (Civilian Security, Democracy, and Human Rights). **Pages S885–86, S913**

By 92 yeas to 6 nays (Vote No. EX. 29), Charles Hammerman Rivkin, of the District of Columbia, to be an Assistant Secretary of State (Economic and Business Affairs). **Pages S885–86, S913**

Sloan D. Gibson, of the District of Columbia, to be Deputy Secretary of Veterans Affairs. **Pages S885–87, S913**

Messages from the House: **Page S889**

Measures Placed on the Calendar: **Page S889**

Executive Communications: **Pages S889–90**

Additional Cosponsors: **Page S891**

Statements on Introduced Bills/Resolutions: **Pages S891–97**

Additional Statements: **Pages S888–89**

Amendments Submitted: **Pages S897–S902**

Notices of Hearings/Meetings: **Page S902**

Authorities for Committees to Meet: **Page S902**

Privileges of the Floor: **Page S902**

Record Votes: Three record votes were taken today. (Total—29) **Pages S885–86**

Adjournment: Senate convened at 10 a.m. and adjourned at 6:45 p.m., until 9:30 a.m. on Wednesday, February 12, 2014. (For Senate's program, see the remarks of the Majority Leader in today's Record on page S913.)

Committee Meetings

(Committees not listed did not meet)

WORLDWIDE THREATS TO U.S. NATIONAL SECURITY

Committee on Armed Services: Committee concluded a hearing to examine current and future worldwide threats to the national security of the United States, after receiving testimony from James R. Clapper, Jr., Director of National Intelligence; and Lieutenant General Michael T. Flynn, USA, Director, Defense Intelligence Agency, Department of Defense.

BUDGET AND ECONOMIC OUTLOOK

Committee on the Budget: Committee concluded a hearing to examine the budget and economic outlook for fiscal years 2014–2024, after receiving testimony from Douglas W. Elmendorf, Director, Congressional Budget Office.

WORKERS' RIGHTS IN BANGLADESH

Committee on Foreign Relations: Committee concluded a hearing to examine prospects for Democratic reconciliation and workers' rights in Bangladesh, after receiving testimony from former Representative Ellen Tauscher, Alliance for Bangladesh Worker Safety; Nisha D. Biswal, Assistant Secretary of State for South and Central Asian Affairs; Eric R. Biel, Acting Associate Deputy Undersecretary of Labor for International Affairs, Bureau of International Labor Affairs; Lewis Karesh, Assistant United States Trade Representative for Labor, Office of the United States Trade Representative; Scott Nova, Worker Rights Consortium, Washington, DC, on behalf of the Accord on Fire and Building Safety in Bangladesh; and Kalpona Akter, Bangladesh Center for Worker Solidarity, Dhaka.

NOMINATIONS

Committee on Health, Education, Labor, and Pensions: Committee concluded a hearing to examine the nominations of Christopher P. Lu, of Virginia, to be Deputy Secretary, who was introduced by Senator Kaine and Representative Gabbard, and Portia Y. Wu, of the District of Columbia, to be Assistant Secretary for Employment and Training, who was introduced by Senator Harkin, both of the Department of Labor, after the nominees testified and answered questions in their own behalf.

NOMINATIONS

Committee on the Judiciary: Committee concluded a hearing to examine the nominations of Robin S. Rosenbaum, of Florida, to be United States Circuit Judge for the Eleventh Circuit, who was introduced by Senators Nelson and Rubio, Bruce Howe Hendricks, to be United States District Judge for the District of South Carolina, who was introduced by Senators Graham and Scott, Mark G. Mastroianni, to be United States District Judge for the District of Massachusetts, who was introduced by Senator Warren, and Leslie Ragon Caldwell, of New York, to be an Assistant Attorney General, Department of Justice, after the nominees testified and answered questions in their own behalf.

INTELLIGENCE

Select Committee on Intelligence: Committee held closed hearings on intelligence matters, receiving testimony from officials of the intelligence community.

Committee recessed subject to the call.

House of Representatives

Chamber Action

Public Bills and Resolutions Introduced: 27 public bills, H.R. 4031–4057; and 13 resolutions, H.J. Res. 110; H. Con. Res. 81–84; and H. Res. 476–477, 479–484 were introduced. **Pages H1759–72**

Additional Cosponsors: **Pages H1772–73**

Report Filed: A report was filed today as follows:

H. Res. 478, providing for consideration of the bill (S. 540), to designate the air route traffic control center located in Nashua, New Hampshire, as the "Patricia Clark Boston Air Route Traffic Control Center", and for other purposes (H. Rept. 113–351). **Page H1769**

Speaker: Read a letter from the Speaker wherein he appointed Representative LaMalfa to act as Speaker pro tempore for today. **Page H1721**

Recess: The House recessed at 10:57 a.m. and reconvened at 12 noon. **Page H1727**

Journal: The House agreed to the Speaker's approval of the Journal by voice vote. **Pages H1758–59**

Consumer Financial Protection Safety and Soundness Improvement Act—Rule for Consideration: The House agreed to H. Res. 475, the rule that is providing for consideration of the bill (H.R. 3193) to amend the Consumer Financial Protection Act of 2010 to strengthen the review authority of the Financial Stability Oversight Council of regulations issued by the Bureau of Consumer Financial Protection, and for other purposes; and providing for proceedings during the period from February 13, 2014, through February 24, 2014, by a recorded vote of 223 ayes to 193 noes with 1 answering "present", Roll No. 59, after the previous question was ordered by a yea-and-nay vote of 222 yeas to 195 nays, Roll No. 58. **Pages H1731–39, S1741–43**

Committee Resignation: Read a letter from Representative Cicilline, wherein he resigned from the Committee on the Budget. **Page H1744**

Suspensions: The House agreed to suspend the rules and pass the following measures:

South Utah Valley Electric Conveyance Act: S. 25, amended, to direct the Secretary of the Interior to convey certain Federal features of the electric distribution system to the South Utah Valley Electric Service District, by a ⅔ yea-and-nay vote of 326 yeas to 90 nays with 1 answering "present", Roll No. 60; **Page H1743**

Ensuring that any new or revised requirement providing for the screening, testing, or treatment of an airman or an air traffic controller for a sleep disorder is adopted pursuant to a rulemaking proceeding: H.R. 3578, amended, to ensure that any new or revised requirement providing for the screening, testing, or treatment of an airman or an air traffic controller for a sleep disorder is adopted pursuant to a rulemaking proceeding; and **Pages H1744–46**

Agreed to amend the title so as to read: "To establish requirements for the adoption of any new or revised requirement providing for the screening, testing, or treatment of an airman or an air traffic controller for a sleep disorder, and for other purposes". **Page H1758**

Small Cap Liquidity Reform Act: H.R. 3448, amended, to amend the Securities Exchange Act of 1934 to provide for an optional pilot program allowing certain emerging growth companies to increase the tick sizes of their stocks, by a ⅔ yea-and-nay vote of 412 yeas to 4 nays, Roll No. 62. **Pages H1746–48, H1758**

Designating the air route traffic control center located in Nashua, New Hampshire, as the "Patricia Clark Boston Air Route Traffic Control Center": The House passed S. 540, to designate the air route traffic control center located in Nashua, New Hampshire, as the "Patricia Clark Boston Air Route Traffic Control Center", by a yea-and-nay vote of 221 yeas to 201 nays, Roll No. 61. **Pages H1748–58**

Pursuant to the rule, an amendment in the nature of a substitute consisting of the text of sections 1 through 3 of Rules Committee Print 113–37 shall be considered as adopted. **Page H1752**

H. Res. 478, the rule providing for consideration of the bill, was agreed to by voice vote after the previous question was ordered without objection. **Pages H1748–58**

Providing for the appointment of John Fahey as a citizen regent of the Board of Regents of the Smithsonian Institution: The House agreed to discharge from committee and agree to S.J. Res. 28, to provide for the appointment of John Fahey as a citizen regent of the Board of Regents of the Smithsonian Institution. **Page H1759**

Providing for the appointment of Risa Lavizzo-Mourey as a citizen regent of the Board of Regents of the Smithsonian Institution: The House agreed to discharge from committee and agree to S.J. Res. 29, to provide for the appointment of Risa Lavizzo-Mourey as a citizen regent of the Board of Regents of the Smithsonian Institution. **Page H1759**

Meeting Hour: Agreed that when the House adjourns today, it adjourn to meet at 2 p.m. on Friday, February 14th. Page H1759

Providing a correction in the enrollment of S. 25: The House agreed to H. Con. Res. 81, providing a correction in the enrollment of S. 25. Page H1759

Providing a correction in the enrollment of S. 540: The House agreed to H. Con. Res. 82, providing a correction in the enrollment of S. 540. Page H1759

Senate Message: Message received from the Senate by the Clerk and subsequently presented to the House today appears on page H1731.

Senate Referral: S. 1954 was referred to the Committees on Energy and Commerce and Ways and Means. Page H1768

Quorum Calls—Votes: Four yea-and-nay votes and one recorded vote developed during the proceedings of today and appear on pages H1742, H1742–43, H1743, H1757–58 and H1758. There were no quorum calls.

Adjournment: The House met at 10 a.m. and adjourned at 7:03 p.m.

Committee Meetings

UNITED STATES SECURITY POLICY AND DEFENSE POSTURE IN THE MIDDLE EAST

Committee on Armed Services: Full Committee held a hearing entitled "United States Security Policy and Defense Posture in the Middle East". Testimony was heard from Vice Admiral Frank Pandolfe, Director for Strategic Plans and Policy, Joint Staff, Department of Defense; Anne Patterson, Assistant Secretary of State, Near Eastern Affairs, Department of State; and Elissa Slotkin, Principal Deputy Assistant Secretary of Defense, International Security Affairs, Department of Defense.

MISCELLANEOUS MEASURES

Committee on the Budget: Full Committee held a markup on H.R. 1872, the "Budget and Accounting Transparency Act of 2014"; and H.R. 1869, the "Biennial Budgeting and Enhanced Oversight Act of 2014". The following bills were ordered reported, as amended: H.R. 1872 and H.R. 1869.

SERVING SENIORS THROUGH THE OLDER AMERICANS ACT

Committee on Education and the Workforce: Subcommittee on Education and Workforce Training held a hearing entitled "Serving Seniors Through the Older Americans Act". Testimony was heard from public witnesses.

DEPARTMENT OF ENERGY OVERSIGHT: STATUS OF CLEAN COAL PROGRAMS

Committee on Energy and Commerce: Subcommittee on Oversight and Investigations held a hearing entitled "Department of Energy Oversight: Status of Clean Coal Programs". Testimony was heard from Julio Friedmann, Deputy Assistant Secretary, Clean Coal Department of Energy.

MONETARY POLICY AND THE STATE OF THE ECONOMY

Committee on Financial Services: Full Committee held a hearing entitled "Monetary Policy and the State of the Economy". Testimony was heard from Janet L. Yellen, Chair, Board of Governors, Federal Reserve System; and public witnesses.

WORLDWIDE PERSECUTION OF CHRISTIANS

Committee on Foreign Affairs: Subcommittee on African, Global Health, Global Human Rights, and International Organizations held a hearing entitled "The Worldwide Persecution of Christians". Testimony was heard from public witnesses.

BIOTERRORISM: ASSESSING THE THREAT

Committee on Homeland Security: Subcommittee on Emergency Preparedness, Response, and Communications held a hearing entitled "Bioterrorism: Assessing the Threat". Testimony was heard from public witnesses.

AL QAEDA'S EXPANSION IN EGYPT: IMPLICATIONS FOR U.S. HOMELAND SECURITY

Committee on Homeland Security: Subcommittee on Counterterrorism and Intelligence held a hearing entitled "Al Qaeda's Expansion in Egypt: implications for U.S. Homeland Security". Testimony was heard from public witnesses.

LEGISLATIVE MEASURE

Committee on the Judiciary: Subcommittee on Regulatory Reform, Commercial and Antitrust Law held a hearing on legislation regarding the Searching for and Cutting Regulations that are Unnecessarily Burdensome Act of 2014. Testimony was heard from public witnesses.

ASYLUM FRAUD

Committee on the Judiciary: Subcommittee on Immigration and Border Security held a hearing entitled "Asylum Fraud: Abusing America's Compassion?". Testimony was heard from public witnesses.

MISCELLANEOUS MEASURES

Committee on Oversight and Government Reform: Full Committee held a markup to consider the following

legislation: H.R. 4011, the ''Alaska Bypass Fair Competition Act of 2014''; H.R. 3308, the ''Taxpayer Transparency Act of 2013''; and H.R. 2804, the ''All Economic Regulations are Transparent Act of 2013''. The following bills were ordered reported, as amended: H.R. 2804 and H.R. 3308. The following bill was ordered reported, without amendment: H.R. 4011.

DC NAVY YARD SHOOTING: FIXING THE SECURITY CLEARANCE PROCESS

Committee on Oversight and Government Reform: Full Committee held a hearing entitled ''DC Navy Yard Shooting: Fixing the Security Clearance Process''. Testimony was heard from Katherine Archuleta, Director, Office of Personnel Management; Patrick McFarland, Inspector General, Office of Personnel Management; Stephen Lewis, Deputy Director, Personnel Industrial and Physical Security Policy, Counterintelligence and Security Directorate, Office of Under Secretary, Defense Intelligence, Department of Defense; and public witnesses.

PATRICIA CLARK BOSTON AIR ROUTE TRAFFIC CONTROL CENTER

Committee on Rules: Full Committee held a hearing on S. 540, to designate the air route traffic control center located in Nashua, New Hampshire, as the ''Patricia Clark Boston Air Route Traffic Control Center''. The Committee granted, by voice vote, a closed rule for S. 540. The rule provides one hour of debate equally divided and controlled by the Majority Leader and Minority Leader or their respective designees. The rule waives all points of order against consideration of the bill. The rule provides that an amendment in the nature of a substitute consisting of the text of sections 1 through 3 of the Rules Committee Print 113–37 shall be considered as adopted and the bill, as amended, shall be considered as read. The rule waives all points of order against provisions in the bill, as amended. The rule provides one motion to recommit with or without instructions. In section 2, the rule provides that House Resolution 475 is amended in section 2 by striking ''February 13, 2014'' and inserting ''February 12, 2014''.

ENSURING OPEN SCIENCE AT EPA

Committee on Science, Space, and Technology: Subcommittee on the Environment held a hearing entitled ''Ensuring Open Science at EPA''. Testimony was heard from public witnesses.

BUILDING ON THE WIRELESS REVOLUTION

Committee on Small Business: Full Committee held a hearing entitled ''Building on the Wireless Revolution: Opportunities and Barriers for Small Firms''. Testimony was heard from public witnesses.

MISCELLANEOUS MEASURES

Committee on Transportation and Infrastructure: Full Committee held a markup on H.R. 3676, the ''Prohibiting In-Flight Voice Communications on Mobile Wireless Devices Act of 2013''; General Services Administration Capital Investment and Leasing Program Resolutions; H.R. 1378, to designate the United States courthouse located at 333 West Broadway in San Diego, California, as the ''James M. Carter and Judith N. Keep United States Courthouse''; and H.R. 4005, the ''Coast Guard and Maritime Transportation Act of 2014''. The General Services Administration Capital Investing and Leasing Program Resolutions were approved. The following bills were ordered reported, as amended: H.R. 1378 and H.R. 4005. The following bill was ordered reported, without amendment: H.R. 3676.

MISCELLANEOUS MEASURES

Committee on Ways and Means: Full Committee held a markup on H.R. 3865, the ''Stop Targeting of Political Beliefs by the IRS Act of 2014''. The bill was ordered reported, as amended.

Joint Meetings

No joint committee meetings were held.

NEW PUBLIC LAWS

(For last listing of Public Laws, see DAILY DIGEST, *p. D84)*

H.R. 2642, to provide for the reform and continuation of agricultural and other programs of the Department of Agriculture through fiscal year 2018. Signed on February 7, 2014. (Public Law 113–79)

COMMITTEE MEETINGS FOR WEDNESDAY, FEBRUARY 12, 2014

(Committee meetings are open unless otherwise indicated)

Senate

Committee on Energy and Natural Resources: Subcommittee on Energy, to hold an oversight hearing to examine lessons for Federal policy from state efficiency and renewable programs, 2:30 p.m., SD–366.

Committee on Environment and Public Works: to hold hearings to examine Moving Ahead for Progress in the 21st Century (MAP–21) reauthorization, focusing on the economic importance of maintaining Federal investments in our transportation infrastructure, 10 a.m., SD–406.

Committee on Foreign Relations: to hold hearings to examine fisheries treaties and Port State Measures Agreements, 2:30 p.m., SD–419.

Committee on Homeland Security and Governmental Affairs: to hold hearings to examine extreme weather events, focusing on the costs of not being prepared, 10 a.m., SD–342.

Committee on Indian Affairs: to hold an oversight hearing to examine the Indian Law and Order Commission Report, focusing on a roadmap for making Native America safer, 2:30 p.m., SD–628.

Committee on the Judiciary: to hold an oversight to examine the report of the Privacy and Civil Liberties Oversight Board on Reforms to the Section 215 telephone records program and the Foreign Intelligence Surveillance Court, 10 a.m., SD–226.

Committee on Rules and Administration: to hold hearings to examine bipartisan support for improving United States elections, focusing on an overview from the Presidential Commission on Election Administration, 10 a.m., SR–301.

Full Committee, business meeting to consider the nominations of Thomas Hicks, of Virginia, and Myrna Perez, of Texas, both to be a Member of the Election Assistance Commission, 10:30 a.m., SR–301.

Committee on Small Business and Entrepreneurship: with the Special Committee on Aging, to hold a joint hearing to examine the challenges and advantages of senior entrepreneurship, 10 a.m., SD–562.

Full Committee, to hold hearings to examine the nomination of Maria Contreras-Sweet, of California, to be Administrator of the Small Business Administration, 10:30 a.m., SR–428.

Special Committee on Aging: with the Committee on Small Business and Entrepreneurship, to hold a joint hearing to examine the challenges and advantages of senior entrepreneurship, 10 a.m., SD–562.

House

No hearings are scheduled.

Next Meeting of the **SENATE**

9:30 a.m., Wednesday, February 12

Senate Chamber

Program for Wednesday: After the transaction of any morning business (not to extend beyond 11 a.m.), Senate will begin consideration of the nominations of Tina S. Kaidanow, of the District of Columbia, a Career Member of the Senior Foreign Service, Class of Minister-Counselor, to be Coordinator for Counterterrorism, with the rank and status of Ambassador at Large, Daniel Bennett Smith, of Virginia, to be an Assistant Secretary of State (Intelligence and Research), Catherine Ann Novelli, of Virginia, to be United States Alternate Governor of the International Bank for Reconstruction and Development for a term of five years, and United States Alternate Governor of the Inter-American Development Bank for a term of five years, and Catherine Ann Novelli, of Virginia, to be an Under Secretary of State (Economic Growth, Energy, and the Environment). At 11:30 a.m., Senate will vote on confirmation of the nominations.

Also, Senate expects to receive and consider the debt limit legislation and the Military Retirement Pay bill from the House.

Next Meeting of the **HOUSE OF REPRESENTATIVES**

2 p.m., Friday, February 14

House Chamber

Program for Friday: The House will meet in pro forma session at 2 p.m.

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